

# American Fork Police Department

## American Fork PD Policy Manual

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### **PREFACE FROM THE CHIEF**

September 26, 2023

Dear Members of the Police Department:

I first want to thank you all for the excellent people that you are! Our department simply would not be successful without all you each do and without your individual contributions toward excellence! For those who have been hired since this date, you would only be with us if we considered you to be among the greatest!

Although there are several reasons for this policy manual, there are two overarching ones:

- (a) Decision Making - our jobs are challenging! We are constantly having to make difficult decisions. Sometimes, we have to make them in situations in which we have never found ourselves. This manual is meant to provide a guiding framework for us to help us follow best practices and make the best decisions in the many things we do each day.
- (b) Protection - even when done perfectly or in absolute good faith, our individual or collective actions may expose us to negative media attention, legal pursuits, scrutiny, false allegations, and others. Following the policies of this manual as closely as possible provides us with a protective umbrella maintained by the Department, the City, and State and Federal Law.

It would be unreasonable for us to expect ourselves to memorize every word of this manual. However, we all should be familiar with its overall contents, organization, and layout for quick reference. Time is usually on our side. This manual is meant to be easily accessible so we can refer to it often, especially during calls or while on the scene of an incident.

Please make it a part of your ongoing professional development to review the components of this manual often.

If you have any questions or comments about any of our policies, please let me know.

Stay safe, have fun, and continue to enjoy what you do! Our community needs you!

Cameron Paul, Chief of Police

# American Fork Police Department

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### DEPARTMENT VISION

# American Fork Police Department

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### DEPARTMENT MISSION

# American Fork Police Department

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### **DEPARTMENT VALUES**

#### **COURAGE**

Courage is standing for what we know to be right, regardless of the costs, despite feeling fear, and even when that means standing alone.

We will not hesitate to make personal sacrifices, including our lives, in order to protect the rights of others.

#### **UNITY**

Unity is being one with our community; it is critical for successful policing and an elevated quality of life for all.

We seek every opportunity to build common ground and positive relationships in our community and within our department.

#### **RESPECT**

Respect is treating everyone with equal dignity regardless of differences. We extend respect to all individuals and we strive to earn that respect in return.

We aspire to see the humanity in all people.



# American Fork Police Department

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### DEPARTMENT MOTTO

# American Fork Police Department

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### **STATEMENT OF ETHICS**

As a statement of professional ethics, the American Fork Police Department has adopted the Law Enforcement Code of Ethics of the International Association of Chiefs of Police (IACP.) This ethics statement is as follows:

"As a law enforcement officer, my fundamental duty is to serve the community; to safeguard lives and property; to protect the innocent against deception, the weak against oppression or intimidation and the peaceful against violence or disorder; and to respect the constitutional rights of all to liberty, equality, and justice.

I will keep my private life unsullied as an example to all and will behave in a manner that does not bring discredit to me or to my agency. I will maintain courageous calm in the face of danger, scorn or ridicule; develop self-restraint; and be constantly mindful of the welfare of others. Honest in thought and deed both in my personal and official life, I will be exemplary in obeying the law and the regulations of my department. Whatever I see or hear of a confidential nature or that is confided to me in my official capacity will be kept ever secret unless revelation is necessary in the performance of my duty.

I will never act officiously or permit personal feelings, prejudices, political beliefs, aspirations, animosities or friendships to influence my decisions. With no compromise for crime and with relentless prosecution of criminals, I will enforce the law courteously and appropriately without fear or favor, malice or ill will, never employing unnecessary force or violence and never accepting gratuities.

I recognize the badge of my office as a symbol of public faith, and I accept it as a public trust to be held so long as I am true to the ethics of police service. I will never engage in acts of corruption or bribery, nor will I condone such acts by other police officers. I will cooperate with all legally authorized agencies and their representatives in the pursuit of justice.

I know that I alone am responsible for my own standard of professional performance and will take every reasonable opportunity to enhance and improve my level of knowledge and competence.

I will constantly strive to achieve these objectives and ideals, dedicating myself before God to my chosen profession... law enforcement."

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## **Chapter 1 - Law Enforcement Role and Authority**



# Law Enforcement Authority

## 100.1 PURPOSE AND SCOPE

The purpose of this policy is to affirm the authority of the members of the American Fork Police Department to perform their functions based on established legal authority.

## 100.2 PEACE OFFICER POWERS

Sworn members of the Department shall be considered peace officers pursuant to Utah Code 53-13-102 and Utah Code 53-13-103.

### 100.2.1 ARREST AUTHORITY WITHIN THE JURISDICTION OF THE AMERICAN FORK POLICE DEPARTMENT

The arrest authority within the jurisdiction of the American Fork Police Department includes:

- (a) In compliance with an arrest warrant.
- (b) Without a warrant (Utah Code 77-7-2):
  - (a) For any public offense committed or attempted in the presence of any peace officer
    - (a) "presence" includes all of the physical senses or any device that enhances the acuity, sensitivity, or range of any physical sense, or records the observations of any of the physical senses
  - (b) When an officer has reasonable cause to believe that a felony or class A misdemeanor has been committed and has reasonable cause to believe that the person arrested has committed it
  - (c) When an officer has reasonable cause to believe a person has committed a public offense, and there is reasonable cause for believing the person may:
    - (a) flee or conceal himself to avoid arrest;
    - (b) destroy or conceal evidence of the commission of the offense; or
    - (c) injure another person or damage property belonging to another person
  - (d) When an officer has reasonable cause to believe the person has committed the offense of failure to disclose identity under Utah Code 76-8-301.5
- (c) Without a warrant when there is reasonable cause to believe that the person has committed a theft under Utah Code Title 76, Chapter 6, Part 8 (Library Theft) or of goods held or displayed for sale (Utah Code 77-7-13)
- (d) Without a warrant when an officer has probable cause to believe that a person is driving under the influence in violation of Utah Code 41-6a-502 (Utah Code 41-6a-508)

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### *Law Enforcement Authority*

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#### 100.2.2 ARREST AUTHORITY OUTSIDE THE JURISDICTION OF THE AMERICAN FORK POLICE DEPARTMENT

The arrest authority of officers outside the jurisdiction of the American Fork Police Department includes (Utah Code 77-9-3):

- (a) When the officer is in fresh pursuit of an offender for the purpose of arresting and holding the person in custody or returning the person to the jurisdiction where the offense was committed.
- (b) When a public offense is committed in the officer's presence
- (c) When the officer is participating in an investigation of criminal activity which originated in the officer's normal jurisdiction in cooperation with the local authority
- (d) When the officer is called to assist peace officers of another jurisdiction.

Officers, prior to taking any action authorized by Utah Code 77-9-3, shall notify and receive approval of the local law enforcement authority, or if the prior contact is not reasonably possible, notify the local law enforcement authority as soon as reasonably possible.

#### 100.3 CONSTITUTIONAL REQUIREMENTS

All members shall observe and comply with every person's clearly established rights under the United States and Utah Constitutions.

#### 100.4 POLICY

It is the policy of the American Fork Police Department to limit its members to only exercise the authority granted to them by law.

While this department recognizes the power of peace officers to make arrests and take other enforcement action, officers are encouraged to use sound discretion in the enforcement of the law. This department does not tolerate abuse of law enforcement authority.

#### 100.5 INTERSTATE PEACE OFFICER POWERS

Peace officer powers may be extended to other states:

- (a) As applicable under interstate compacts, memorandums of understanding or mutual aid agreements in compliance with the laws of each state.
- (b) When an officer enters another state in fresh pursuit:
  - (a) In Colorado, to arrest the person for a crime committed in Utah (CRS § 16-3-104).
  - (b) In Arizona, Idaho, Nevada and New Mexico, to arrest the person for committing a felony in Utah (ARS § 13-3832; Idaho Code 19-701; NRS 171.158; NMSA § 31-2-1).
- (c) When an interstate compact exists with the state of Wyoming that permits an officer to pursue and arrest an offender who has fled Utah (Wyo. Stat. § 7-3-103).

Whenever an officer makes an arrest in another state, the officer shall take the offender to a magistrate or other proper judicial official in the county where the arrest occurred as soon as

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### *Law Enforcement Authority*

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practicable (ARS § 13-3833; CRS § 16-3-104; Idaho Code 19-702; NRS 171.158; NMSA § 31-2-2 (New Mexico)).

# Chief Executive Officer

## 101.1 PURPOSE AND SCOPE

Utah Code 53-6-205 mandates that all sworn officers employed after January 1, 1985 successfully complete a Utah POST Council certified academy or successfully pass a state certification examination pursuant to Utah Code 53-6-206, and obtain POST certification, prior to being permitted to exercise peace officer authority.

### 101.1.1 CHIEF OF POLICE REQUIREMENTS

It is recommended that a candidate for Chief of Police of the Department should, as a condition of continued employment:

- (a) Be an individual of recognized executive and administrative capacity.
- (b) Be selected solely with regard to their qualifications and fitness to discharge the duties of the office.
- (c) Be of high moral character.
- (d) Be of good standing in their community of residence.

## Oath of Office

### **102.1 PURPOSE AND SCOPE**

Officers of the Department are sworn to uphold the federal and state constitutions and to enforce federal, state and local laws, and to abide by the Department Code of Ethics.

### **102.2 POLICY**

It is the policy of the American Fork Police Department that, when appropriate, department members affirm the oath of their office as an expression of commitment to the constitutional rights of those served by the Department and the dedication of its members to their duties.

### **102.3 OATH OF OFFICE**

All department members, when appropriate, shall take and subscribe to the oaths or affirmations applicable to their positions (Utah Constitution, Article IV, Section 10).

For members of the Department, the following constitutes the Oath of Office: "I do solemnly swear (or affirm) that I will support, obey, and defend the Constitution of the United States and the Constitution of the State of Utah, and that I will discharge the duties of my office with fidelity" (Utah Constitution, Article IV, Section 10).

If a member is opposed to taking an oath, the member shall be permitted to substitute the word "affirm" for the word "swear" as illustrated above.

### **102.4 MAINTENANCE OF RECORDS**

The oath of office shall be filed as prescribed by law (Utah Code 52-1-4). The chief of police or authorized designee shall also maintain a copy of the oath of office in the member's personnel file.

# Policy Manual

## 103.1 PURPOSE AND SCOPE

The manual of the American Fork Police Department is hereby established and shall be referred to as the "Policy Manual" or the "manual". The Policy Manual is a statement of the current policies, rules and guidelines of this department. All members are to conform to the provisions of this manual.

All prior and existing manuals, orders and regulations that are in conflict with this manual are rescinded, except to the extent that portions of existing manuals, procedures, orders and other regulations that have not been included herein shall remain in effect, provided that they do not conflict with the provisions of this manual.

## 103.2 POLICY

Except where otherwise expressly stated, the provisions of this manual shall be considered as guidelines. It is recognized that the work of law enforcement is not always predictable and circumstances may arise which warrant departure from these guidelines. It is the intent of this manual to be viewed from an objective standard, taking into consideration the sound discretion entrusted to members of this department under the circumstances reasonably available at the time of any incident.

### 103.2.1 DISCLAIMER

The provisions contained in the Policy Manual are not intended to create an employment contract nor any employment rights or entitlements. The policies contained within this manual are for the internal use of the American Fork Police Department and shall not be construed to create a higher standard or duty of care for civil or criminal liability against the City, its officials, or its members. Violations of any provision of any policy contained within this manual shall only form the basis for department administrative action, training, or discipline. The American Fork Police Department reserves the right to revise any policy content, in whole or in part.

## 103.3 AUTHORITY

The Chief of Police shall be considered the ultimate authority for the content and adoption of the provisions of this manual and shall ensure compliance with all applicable federal, state and local laws. The Chief of Police or the authorized designee is authorized to issue General Orders, which shall modify those provisions of the manual to which they pertain. General Orders shall remain in effect until such time as they may be permanently incorporated into the manual.

## 103.4 DEFINITIONS

The following words and terms shall have these assigned meanings throughout the Policy Manual, unless it is apparent from the content that they have a different meaning:

**Adult** - Any person 18 years of age or older.

**CFR** - Code of Federal Regulations.

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**City** - The City of American Fork.

**Non-sworn** - Employees and volunteers who are not sworn peace officers.

**Department/AFP** - The American Fork Police Department.

**DMV** - The Department of Motor Vehicles.

**Employee/personnel** - Any person employed by the Department.

**Juvenile** - Any person under the age of 18-years.

**Manual** - The American Fork Police Department Policy Manual.

**May** - Indicates a permissive, discretionary or conditional action.

**Member** - Any person employed or appointed by the American Fork Police Department, including:

- Full- and part-time employees
- Sworn peace officers
- Reserve, auxiliary officers
- Non-sworn employees
- Volunteers

**Officer** - Those employees, regardless of rank, who are sworn peace officer employees of the American Fork Police Department.

**On-duty** - A member's status during the period when he/she is actually engaged in the performance of his/her assigned duties.

**Order** - A written or verbal instruction issued by a superior.

**POST** - The Utah Peace Officer Standards and Training Division.

**Rank** - The title of the classification held by an officer.

**Shall or will** - Indicates a mandatory action.

**Should** - Indicates a generally required or expected action, absent a rational basis for failing to conform.

**Supervisor** - A person in a position of authority that may include responsibility for hiring, transfer, suspension, promotion, discharge, assignment, reward or discipline of other department members, directing the work of other members or having the authority to adjust grievances. The supervisory exercise of authority may not be merely routine or clerical in nature but requires the use of independent judgment.

The term "supervisor" may also include any person (e.g., officer-in-charge, lead or senior worker) given responsibility for the direction of the work of others without regard to a formal job title, rank or compensation.

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When there is only one department member on-duty, that person may also be the supervisor, except when circumstances reasonably require the notification or involvement of the member's off-duty supervisor or an on-call supervisor.

**UAC** - Utah Administrative Code (Example: UAC R728-503-10).

**USC** - United States Code.

#### **103.5 ISSUING THE POLICY MANUAL**

An electronic version of the Policy Manual will be made available to all members on the department network for viewing and printing. No changes shall be made to the manual without authorization from the Chief of Police or the authorized designee.

Each member shall acknowledge that he/she has been provided access to, and has had the opportunity to review the Policy Manual and General Orders. Members shall seek clarification as needed from an appropriate supervisor for any provisions that they do not fully understand.

#### **103.6 PERIODIC REVIEW OF THE POLICY MANUAL**

The Chief of Police will ensure that the Policy Manual is periodically reviewed and updated as necessary.

#### **103.7 REVISIONS TO POLICIES**

All revisions to the Policy Manual will be provided to each member on or before the date the policy becomes effective. Each member will be required to acknowledge that he/she has reviewed the revisions and shall seek clarification from an appropriate supervisor as needed.

Members are responsible for keeping themselves apprised of any and all Policy Manual revisions.

Each Division Commander will ensure that members under his/her command are aware of any Policy Manual revision.

Any department member suggesting any revision of the contents of the Policy Manual shall forward their written suggestions to their respective division commander who will consider the recommendations and forward them to the Chief of Police as appropriate.



## **Chapter 2 - Organization and Administration**

# Organizational Structure and Responsibility

## 200.1 PURPOSE AND SCOPE

This policy establishes the organizational structure of the [Department/Office] and defines general responsibilities of [department/office] members.

## 200.2 ORGANIZATIONAL STRUCTURE

The Chief of Police is responsible for administering and managing the American Fork Police Department. There are five divisions in the police department as follows:

- Administrative Division
- Investigations Division
- Patrol Division
- Records Division
- Support Services Division

### 200.2.1 ADMINISTRATION DIVISION

The Administrative Division is commanded by the Administrative Lieutenant who, under the direction of the Chief of Police, is responsible for providing general management, direction, and control for this division. The Administrative Division consists of the following sections of the department:

- fleet
- equipment
- training
- community engagement
- administration
- others as assigned by the Chief of Police

### 200.2.2 INVESTIGATIONS DIVISION

The Investigations Division is commanded by the Investigations Lieutenant who, under the direction of the Chief of Police, is responsible for providing general management, direction, and control for this division. The Investigations Division consists of the following sections of the department

- detectives
- special enforcement team (SET)
- Utah County Major Crimes Task Force (MCTF)
- animal control

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- code enforcement
- victim advocacy
- others as assigned by the Chief of Police

#### 200.2.3 PATROL DIVISION

The Patrol Division is commanded by the Patrol Lieutenant who, under the direction of the Chief of Police, is responsible for providing general management, direction, and control for this division. The Patrol Division consists of the following sections of the department:

- uniformed patrol
- traffic operations
- police motorcycles
- police bicycles
- K-9 operations
- police social work and community mental health
- others as assigned by the Chief of Police

#### 200.2.4 RECORDS DIVISION

The Records Division is commanded by the Records Supervisor who, under the direction of the Chief of Police, is responsible for providing general management, direction, and control for this division.

#### 200.2.5 SUPPORT SERVICES DIVISION

The Support Services Division is commanded by the Management Analyst who, under the direction of the Chief of Police, is responsible for providing general management, direction, and control for this division. The Support Services Division consists of the following sections of the department:

- Communities that Care (CTC)
- evidence
- Honorary Colonels
- others as assigned by the Chief of Police

#### 200.2.6 ORGANIZATIONAL CHART

[See attachment: American Fork Police Department - FY24 Organizational Chart.pdf](#)

### **200.3 COMMAND PROTOCOL**

The following outlines the command protocols of the department.

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#### **200.3.1 SUCCESSION OF COMMAND**

The Chief of Police exercises command over all personnel in the department. During planned absences when the Chief of Police will not be available for contact, he or she will designate a lieutenant to be responsible for the overall administration and management of the department until the Chief of Police is again available for contact.

Except when designated as above, the order of command authority in the unplanned absence or unavailability of the Chief of Police is as follows:

1. Senior Ranking Lieutenant
2. Senior Ranking Sergeant
3. Senior Ranking Officer

#### **200.3.2 UNITY OF COMMAND**

The principles of unity of command ensure efficient supervision and control within the [Department/Office]. Generally, each employee shall be accountable to one supervisor at any time for a given assignment or responsibility. Except where specifically delegated authority may exist by policy or special assignment (e.g., canine, bicycle patrol), any supervisor may temporarily direct any subordinate if an operational necessity exists.

#### **200.3.3 ORDERS**

Members shall respond to and make a good faith and reasonable effort to comply with the lawful order of superior officers and other proper authority.

#### **200.4 AUTHORITY AND RESPONSIBILITY**

Consistent with the principles of sound supervisory practices, all supervisory personnel will be held accountable for the performance of their subordinates.

Irrespective of rank, each employee within the organization has clearly articulated duties and responsibilities. Each employee is hereby delegated the authority necessary to effectively execute those responsibilities. Each employee will also be held accountable for the appropriate application of that delegated authority.

#### **200.5 DUTY TO PERFORM**

It will be the duty of each and every member of the American Fork Police Department to perform their duties in an expeditious, efficient, and complete manner. Calls for service from the community shall be met in a timely, thorough, and professional manner. Calls for service, investigations, and requests for assistance will be conducted by the department members in such a manner as to give the citizens involved confidence in the law enforcement product being delivered to them by the department.

#### **200.6 POLICY**

The American Fork Police Department will implement and maintain an organizational structure that provides clear and identifiable roles for command, control, and guidance of the [Department/

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Office]. Each position and assignment should have clearly identified responsibilities and a defined chain of command.

#### **200.7 MULTI-YEAR PLAN**

The Chief of Police or the authorized designee is responsible for establishing a multi-year plan, which includes:

- Goals and operational objectives.
- Anticipated workloads and population trends.
- Anticipated personnel levels.
- Anticipated capital improvement and equipment needs.

#### **200.8 NON-SWORN CONSIDERATIONS**

Assignments for non-sworn members shall take into consideration that they:

- Shall not be commissioned as officers.
- Shall not be assigned to duties requiring sworn officer status.
- Shall perform the duties described and governed by appropriate policy and receive training in the proper performance of such duties.

#### **200.9 JOB DESCRIPTIONS**

The Chief of Police or designee shall ensure that a current job description is maintained for each position in the Department. Job descriptions shall include the duties and responsibilities of each position, including entry-level requirements, and be made available to all members.

# General Order

## **201.1 PURPOSE AND SCOPE**

General Orders establish an interdepartmental communication that may be used by the Chief of Police to make immediate changes to policies consistent with the current Memorandum of Understanding or other collective bargaining agreement. General Orders will immediately modify or change and supersede sections of this manual to which they pertain.

### **201.1.1 GENERAL ORDER PROTOCOL**

General Orders will be incorporated into the manual as required upon approval of Staff. General Orders will modify an existing policy or create a new policy as appropriate and will be rescinded upon incorporation into the manual.

All existing General Orders have been incorporated in the updated Policy Manual as of the below revision date.

Any General Orders issued after publication of the manual shall be numbered consecutively starting with the last two digits of the year, followed by the number "01." For example, 09-01 signifies the first General Order for the year 2009.

## **201.2 RESPONSIBILITIES**

### **201.2.1 STAFF**

The Staff shall review and approve revisions of the Policy Manual, which will incorporate changes originally made by a General Order.

### **201.2.2 CHIEF OF POLICE**

The Chief of Police shall issue all General Orders.

## **201.3 ACCEPTANCE OF GENERAL ORDERS**

All employees are required to read and obtain any necessary clarification of all General Orders. All employees are required to acknowledge in writing the receipt and review of any new General Order. Signed acknowledgement forms and/or e-mail receipts showing an employee's acknowledgement will be maintained by the Administration Division supervisor.

## Electronic Mail

### 202.1 PURPOSE AND SCOPE

The purpose of this policy is to establish guidelines for the proper use and application of the [department/office]'s electronic mail (email) system provided by the [Department/Office].

### 202.2 POLICY

American Fork Police Department members shall use email in a professional manner in accordance with this policy and current law (e.g., Utah Government Records Access and Management Act).

### 202.3 PROFESSIONALISM

Email communications from department-issued email addresses are considered to be the equivalent of printed documents or correspondence on department letterhead. Department members shall exercise professionalism and good judgment in the use of their department-issued e-mail accounts.

Messages transmitted over the email system should only involve official business or contain information essential to employees for the accomplishment of department-related tasks and/or communication directly related to the business, administration, or practices of the department.

### 202.4 PRIVACY EXPECTATION

Members forfeit any expectation of privacy with regard to emails accessed, transmitted, received, or reviewed on any [department/office] technology system (see the Information Technology Use Policy for additional guidance).

### 202.5 RESTRICTIONS ON USE OF EMAIL

Messages transmitted over the email system are restricted to official business activities, or shall only contain information that is essential for the accomplishment of business-related tasks or for communications that are directly related to the business, administration, or practices of the [Department/Office].

Sending derogatory, defamatory, obscene, disrespectful, sexually suggestive, harassing, or any other inappropriate messages on the email system is prohibited and may result in discipline.

Email messages addressed to the entire [Department/Office] are only to be used for official business-related items that are of particular interest to all users. In the event that a member has questions about sending a particular email communication, the member should seek prior approval from a supervisor in their chain of command.

It is a violation of this policy to transmit a message under another member's name or email address or to use the password of another to log into the system unless directed to do so by a supervisor. Members are required to log off the network or secure the workstation when the computer is unattended. This added security measure will minimize the potential misuse of an

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individual's email, name, or password. Any member who believes their password has become known to another person shall change their password immediately.

#### **202.5.1 USE CONSIDERATIONS**

The department's email system is not a confidential system and is not appropriate for confidential communications. If a communication must be confidential, an alternative delivery method should be considered (such as postal mail or fax.)

Email messages addressed to the entire department should only be used for official department business and where the contents are of particular interest to all recipients.

Incidental personal use (as defined under Utah Code Section 76-8-402) of the email system that does not reflect poorly upon the department is authorized.

#### **202.5.2 PROHIBITED USE**

Sending derogatory, defamatory, obscene, disrespectful, sexually suggestive and harassing or any other inappropriate messages on the email system will not be tolerated and may result in discipline. The department's and city's sexual harassment and anti-discrimination policies shall also apply to electronic mail.

It is a violation of this policy to transmit an email under another department member's name or to access and/or use another department member's email account without that member's authorization. This does not apply to administratively-required access pursuant to section 202.3 of this policy.

Employees should not use personal accounts to exchange email or other information that is related to official department business.

#### **202.6 NETWORK SECURITY**

Network security is a serious concern for the department and the city. The most common way that a network is compromised is through a network end user unknowingly allowing malicious or unauthorized access through accessing malicious email links and/or malicious email attachments.

Subsequently, department members are strongly encouraged to highly scrutinize all email links and/or attachments received through their official e-mail. Department members should only open email attachments or access email links that are expected or anticipated.

If a department member is unsure about any element of an e-mail, an e-mail link, or an e-mail attachment, the member shall reach out to the sender through other means to confirm authenticity.

Department members should log off the network when their computer is unattended. This added security measure will minimize the misuse of an individual's email, name, and/or password by others.



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#### **202.7 EMAIL RECORD MANAGEMENT**

Email may, depending upon the individual content, be a public record under the Utah Government Records Access and Management Act (Utah Code 63G-2-201 et seq.) and must be managed in accordance with the established records retention schedule and in compliance with state law.

The Records Officer shall ensure that email messages are retained and recoverable as outlined in the Records Maintenance and Release Policy.

# Administrative Communications

## 203.1 PURPOSE AND SCOPE

Administrative communications of the department are governed by the following policies.

## 203.2 MEMORANDUMS

Memorandums may be issued periodically by the Chief of Police to announce and document all promotions, transfers, operational information or instructions, dissemination of department related information, hiring of new personnel, separations, personnel and group commendations, or other changes in status.

## 203.3 CORRESPONDENCE

In order to ensure that the letterhead and name of the department are not misused, all external correspondence shall be on department letterhead. All department letterhead shall bear the signature element of the Chief of Police. Personnel should use department letterhead only for official business and with approval of their supervisor.

## 203.4 SURVEYS

All surveys made in the name of the department shall be authorized by the Chief of Police or a Division Commander.

## 203.5 USE OF DEPARTMENT IDENTIFIERS

Any and all use of department identifiers such as but not limited to: the name of the department or its abbreviation, department badges or representations of the AFD badges, department patches or representations of the department patches, photos of department vehicles, equipment, or personnel is strictly forbidden without the express permission of the Chief of Police. Any stationary (hardcopy or electronic) or electronic signatures using the before mentioned material must be approved by the Chief of Police.

## Staffing Levels

### 204.1 PURPOSE AND SCOPE

The purpose of this policy is to ensure that adequate coverage and proper supervision are maintained on every patrol shift.

The department intends to balance the employee's needs with the need to have flexibility and discretion in using personnel to meet operational needs. While balance is desirable, the paramount concern is the need to meet the operational requirements of the department.

### 204.2 MINIMUM STAFFING LEVELS

From the hours of 6:00 AM to 12:00 AM, the department shall maintain a minimum on-duty staffing level of four sworn officers. From the hours of 12:00 AM to 6:00 AM, the department shall maintain a preferred on-duty staffing level of four sworn officers, with a minimum on-duty staffing level of three sworn officers.

It is the responsibility of the department's patrol sergeants to anticipate and/or address the needs of their shifts to ensure minimum staffing. If a patrol sergeant determines an upcoming shift will fall below minimum staffing, the sergeant may authorize overtime with the approval of the patrol division commander.

If exigent circumstances arise or unforeseen circumstances result in coverage that falls below minimum staffing, it shall be the responsibility of that shift's sergeant (or the patrol division commander if that sergeant is unavailable) to bring coverage back to minimum staffing levels. Under these circumstances, shift sergeants may authorize overtime without any prior approval.

The scheduling or deployment of fewer than the minimum staffing levels set out above for any patrol shift must be approved by the Patrol Division Commander or the Chief of Police.

#### 204.2.1 SUPERVISION CONSIDERATIONS

If a patrol sergeant will be absent for his or her patrol shift, that sergeant shall designate an advanced officer to be the officer-in-charge (OIC.) While the patrol sergeant is absent, the OIC will assume the supervisory duties of the shift as delegated by the patrol sergeant and/or the patrol division commander.

## Concealed Weapon License

### 205.1 PURPOSE AND SCOPE

Concealed weapon permit holders are subject to suspension or revocation of the permit upon commission of certain acts. This policy will provide guidance to the officer for notification to the Bureau of Criminal Identification of circumstances that may be grounds for review of a concealed weapon permit (Utah Code 53-5-704).

### 205.2 QUALIFIED APPLICANTS

In order to continue to qualify for a permit to carry a concealed weapon, a person (Utah Code 53-5-704):

- (a) Must not have been convicted of a felony.
- (b) Must not have been convicted of any crime of violence.
- (c) Must not have been convicted of any offense involving the use of alcohol.
- (d) Must not have been convicted of any offenses involving the unlawful use of narcotics or other controlled substances.
- (e) Must not have been convicted of any offenses involving moral turpitude, as defined in UAC R722-300-3.
- (f) Must not have been convicted of any offense involving domestic violence.
- (g) Must not have been adjudicated by a court of a state or of the United States as mentally incompetent, unless the adjudication has been withdrawn or reversed; must not have been committed to a mental institution or found not guilty by reason of insanity for a felony offense; and must not have been found mentally incompetent to stand trial for a felony offense.
- (h) Must not be a person who is illegally or unlawfully in the United States.
- (i) Must not have been dishonorably discharged from the armed forces.
- (j) Must not have renounced his/her citizenship after having been a citizen of the United States.
- (k) Must not have committed any crime or act that would disqualify the person from possession of a weapon under federal law.

An officer who has reason to believe that a concealed weapon permit holder or applicant has violated one of the foregoing provisions should notify the Department of Public Safety Bureau of Criminal Identification and document the reasons in an information report. The Bureau of Criminal Identification may then review the person's eligibility to hold a concealed weapon permit.

## Retiree Concealed Firearms

### 206.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for the issuance, denial, suspension or revocation of American Fork Police Department identification cards under the Law Enforcement Officers' Safety Act (LEOSA) and Utah law (18 USC § 926C; Utah Code 53-5-704).

### 206.2 POLICY

It is the policy of the American Fork Police Department to provide identification cards to qualified former or retired officers as provided in this policy.

### 206.3 LEOSA

The Chief of Police may issue an identification card for LEOSA purposes to any qualified former officer of this department who (18 USC § 926C(c)):

- (a) Separated from service in good standing from this department as an officer.
- (b) Before such separation, had regular employment as a law enforcement officer for an aggregate of 10 years or more or, if employed as a law enforcement officer for less than 10 years, separated from service after completing any applicable probationary period due to a service-connected disability as determined by this department.
- (c) Has not been disqualified for reasons related to mental health.
- (d) Has not entered into an agreement with this department where the officer acknowledges that he/she is not qualified to receive a firearm qualification certificate for reasons related to mental health.
- (e) Is not prohibited by federal law from receiving or possessing a firearm.

#### 206.3.1 LEOSA IDENTIFICATION CARD FORMAT

The LEOSA identification card should contain a photograph of the former officer and identify him/her as having been employed as an officer.

If the American Fork Police Department qualifies the former officer, the LEOSA identification card or separate certification should indicate the date the former officer was tested or otherwise found by the department to meet the active duty standards for qualification to carry a firearm.

#### 206.3.2 AUTHORIZATION

Any qualified former law enforcement officer, including a former officer of this department, may carry a concealed firearm under 18 USC § 926C when he/she is:

- (a) In possession of photographic identification that identifies him/her as having been employed as a law enforcement officer and one of the following:
  - 1. An indication from the person's former law enforcement agency that he/she has, within the past year, been tested or otherwise found by the law enforcement agency to meet agency-established active duty standards for qualification in firearms training to carry a firearm of the same type as the concealed firearm.

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2. A certification, issued by either the state in which the person resides or by a certified firearms instructor who is qualified to conduct a firearms qualification test for active duty law enforcement officers within that state, indicating that the person has, within the past year, been tested or otherwise found to meet the standards established by the state or, if not applicable, the standards of any agency in that state.
- (b) Not under the influence of alcohol or another intoxicating or hallucinatory drug or substance.
- (c) Not prohibited by federal law from receiving a firearm.
- (d) Not in a location prohibited by Utah law or by a private person or entity on his/her property if such prohibition is permitted by Utah law.

#### **206.4 FORMER OFFICER/DEPUTY RESPONSIBILITIES**

A former officer with a card issued under this policy shall immediately notify the Shift Supervisor of his/her arrest or conviction in any jurisdiction, or that he/she is the subject of a court order, in accordance with the Reporting of Employee Convictions Policy.

##### **206.4.1 RESPONSIBILITIES UNDER LEOSA**

In order to obtain or retain a LEOSA identification card, the former officer shall:

- (a) Sign a waiver of liability of the department for all acts taken related to carrying a concealed firearm, acknowledging both his/her personal responsibility as a private person for all acts taken when carrying a concealed firearm as permitted by LEOSA and also that these acts were not taken as an employee or former employee of the department.
- (b) Remain subject to all applicable department policies and federal, state and local laws.
- (c) Demonstrate good judgment and character commensurate with carrying a loaded and concealed firearm.
- (d) Successfully pass an annual criminal history background check indicating that he/she is not prohibited by law from receiving or possessing a firearm.

#### **206.5 DENIAL, SUSPENSION OR REVOCATION**

A LEOSA identification card may be denied or revoked upon a showing of good cause as determined by the department. In the event that an identification card is denied, suspended or revoked, the former officer may request a review by the Chief of Police. The decision of the Chief of Police is final.

#### **206.6 FIREARM QUALIFICATIONS**

The Firearms Instructor may provide former officers from this department an opportunity to qualify. Written evidence of the qualification and the weapons used will be provided and will contain the date of the qualification. The Firearms Instructor will maintain a record of the qualifications and weapons used.

# Training

## 207.1 PURPOSE AND SCOPE

This policy establishes general guidelines for how training is to be identified, conducted, and documented. This policy is not meant to address all specific training endeavors or identify every required training topic.

## 207.2 POLICY

The [Department/Office] shall administer a training program that will meet the standards of federal, state, local, and Utah Peace Officer Standards and Training Division (POST) training requirements. It is a priority of this [department/office] to provide continuing education and training for the professional growth and development of its members.

## 207.3 OBJECTIVES

The objectives of the training program are to:

- (a) Enhance the level of law enforcement service to the public.
- (b) Increase the technical expertise and overall effectiveness of [department/office] members.
- (c) Provide for continued professional development of [department/office] members.
- (d) Ensure compliance with POST rules and regulations concerning law enforcement training.

## 207.4 TRAINING OFFICER

The Chief of Police shall designate a Training Officer who is responsible for developing, reviewing, updating, and maintaining the [department/office] training plan so that required training is completed. The Training Officer should review the training plan annually.

## 207.5 TRAINING PLAN

The training plan should include the anticipated costs associated with each type of training, including attendee salaries and backfill costs. The plan should include a systematic and detailed method for recording all training for all members.

Updates and revisions may be made to any portion of the training plan at any time it is deemed necessary.

The plan will address all required training.

### 207.5.1 GOVERNMENT-MANDATED TRAINING

The following lists, while not all inclusive, identify training that is required under state and federal laws and regulations.

- (a) Federally mandated training:
  - 1. National Incident Management System (NIMS) training

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(b) State-mandated training:

1. Compliance with POST-mandated annual certified training of not less than 40 hours which shall include training focused on arrest, control, and de-escalation (Utah Code 53-6-202(4)).
2. Part of the 40-hour POST-mandated training shall focus, at least every three years, on the following (Utah Code 53-6-202(5)):
  - (a) Mental health and other crisis intervention responses
  - (b) Intervention responses for mental illnesses, autism spectrum disorder, and other neurological and developmental disorders
  - (c) Responses to sexual traumas and investigations of sexual assault and sexual abuse
3. At least once, a training shall be made available which ensures that oral fluid and portable breath testing techniques and practices comply with the rules set out by state authority and oral fluid and portable breath testing equipment is used in a manner consistent with manufacturer and industry standards.
4. On an annual basis, in-service training shall be conducted on the Department's use of force policies, including lethal force, chokehold/carotid hold prohibitions, legal updates on use of force, and affirmative duties to intervene and request or render medical aid.
5. On an annual basis, training on implicit bias and avoiding improper profiling based on the actual or perceived race, ethnicity, national origin, limited English proficiency, religion, gender, gender identity, sexual orientation, or disability of individuals.
6. Firearms qualifications.
7. Emergency vehicle operations.
8. Arrest control tactics (defensive tactics).

(c) [Department/Office]-required training:

1. Legislative changes
2. State-mandated training
3. Critical issues training

#### 207.5.2 ADDITIONAL TRAINING

The following list, while not all-inclusive, identifies training that is required by the Utah Chiefs of Police Association accreditation standards:

- (a) Every member appointed or promoted to a first-level supervisory position shall successfully complete [department/office]-approved supervisory training within three years of such appointment or promotion.



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- (b) Every member appointed or promoted to a mid-level management position shall successfully complete [department/office]-approved management training within three years of such appointment or promotion.

#### **207.5.3 CAREER DEVELOPMENT**

The Training Officer shall be responsible for administering a career development strategy for officers that should:

- (a) Encourage mentorship.
- (b) Promote officer retention.
- (c) Promote leadership development opportunities.

#### **207.6 TRAINING PLANNING**

The Training Officer shall identify training needs of the Department, and solicit the thoughts and opinions of other Department members, including senior leadership, regarding potential training topics.

The Training Officer should review certain incidents to determine whether training would likely improve future outcomes or reduce or prevent the recurrence of the undesirable issues related to an incident. Specific incidents the Training Officer should review include but are not limited to:

- (a) Any incident involving the death or serious injury of a member.
- (b) Incidents involving a high risk of death, serious injury, or civil liability.
- (c) Incidents identified by the [Department/Office] to determine possible training needs.

The Training Officer should review identified incidents, legislative updates, and other relevant information on a regular basis and determine what training should be addressed, taking into consideration the mission of the American Fork Police Department and the available resources. Training recommendations as determined by the Training Officer shall be submitted to the Administrative Division Commander or Chief of Police for review and approval.

#### **207.7 TRAINING ATTENDANCE**

- (a) All employees assigned to attend training shall attend unless previously excused by their immediate supervisor. Excused absences should be limited to:
  - 1. Court appearances.
  - 2. Previously approved vacation or time off.
  - 3. Illness or medical leave.
  - 4. Physical limitations preventing the member's participation
  - 5. Emergency situations or [department/office] necessity
- (b) Any member who is unable to attend training as scheduled shall notify their supervisor as soon as practicable, but no later than one hour prior to the start of training and shall:
  - 1. Document the absence in a memorandum to their supervisor.

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2. Make arrangements through the member's supervisor or the Training Officer to attend the required training on an alternate date.

#### **207.8 DAILY TRAINING BULLETINS**

The Lexipol Daily Training Bulletins (DTBs) are contained in a web-accessed system that provides training on the American Fork Police Department Policy Manual and other important topics. Generally, one training bulletin is available for each day of the month. However, the number of DTBs may be adjusted by the Lexipol administrator.

Members assigned to participate in DTBs shall only use login credentials assigned to them by the Lexipol administrator. Members should not share their password with others and should frequently change their password to protect the security of the system. After each session, members should log off the system to prevent unauthorized access. The content of the DTBs is copyrighted material and shall not be shared with others outside of the [Department/Office].

Members who are assigned to participate in the DTB program should complete each DTB at the beginning of their shifts or as otherwise directed by their supervisor. Members should not allow uncompleted DTBs to build up over time and may be required to complete DTBs missed during extended absences (e.g., vacation, medical leave) upon returning to duty. Although the DTB system can be accessed from any internet-enabled computer, members shall only take DTBs as part of their on-duty assignments, unless directed otherwise by a supervisor.

Supervisors will be responsible for monitoring the progress of those under their command to ensure compliance with this policy.

#### **207.9 REPORTING**

Command Staff shall ensure that all required training records are forwarded to POST in the appropriate format pursuant to UAC R728-410-6.

#### **207.10 TRAINING RECORDS**

The Training Officer is responsible for the creation, filing, and storage of all training records. Training records shall be retained in accordance with the established records retention schedule.

# Emergency Management Plan

## **208.1 PURPOSE AND SCOPE**

The City has prepared an Emergency Management Plan Manual for use by all employees in the event of a major disaster or other emergency event. The manual provides for a strategic response by all employees and assigns specific responsibilities in the event the plan is activated.

## **208.2 RESPONSE PLANNING**

The Chief of Police, Fire Chief, or designee will ensure that the Department has a written plan in place for responding to emergencies and unusual occurrences such as natural and man-made disasters.

## **208.3 ACTIVATING THE EMERGENCY PLAN AND INCIDENT COMMAND**

The Emergency Management Plan can be activated in a number of ways. For the Police Department, the Chief of Police or the highest ranking official on-duty may activate the Emergency Management Plan in response to a major emergency.

In the event of a major emergency, the Chief of Police will follow the City Emergency Management Plan provisions regarding incident command. Any question of command within the Department will be resolved by following the command protocol set out in the "Organizational Structure and Responsibility" policy.

### **208.3.1 RECALL OF PERSONNEL**

In the event that the Emergency Management Plan is activated, all employees of the American Fork Police Department are subject to immediate recall. Employees may also be subject to recall during extraordinary circumstances as deemed necessary by the Chief of Police or the authorized designee.

Failure to promptly respond to an order to report for duty may result in discipline.

## **208.4 MANUAL ACCESSIBILITY**

The Emergency Management Plan Manual shall be made readily accessible to employees, and will be provided upon request.

## **208.5 BUILDING EVACUATION PLAN**

In the event of a disaster or emergency which requires evacuation of the public safety services building, all employees shall follow implemented evacuation plans and posted exit strategies. The posted exit strategies shall include any special directions for physically impaired employees.

## **208.6 INTERAGENCY RESPONSE**

If the Department is involved with a contingency plan concerning an emergency situation at any other agency or institution, it will develop and keep on file a written document reflecting the plan.

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#### **208.7 EMERGENCY EQUIPMENT**

Department equipment designated for use in emergency/unusual occurrence situations should be inspected annually (or more often as needed) to ensure operational readiness. Equipment should also be inspected post incident. The Department member responsible for the equipment will document and keep on file all inspections.

#### **208.8 INCIDENT REVIEW**

In the event the Emergency Management Plan is activated, an After Action report on the incident will be completed, reviewed, and filed.

#### **208.9 UPDATING OF MANUALS**

The Chief of Police or designee shall review and update, if necessary, the Emergency Management Plan Manual at least once every two years to ensure that the manual conforms to any revisions made by the National Incident Management System (NIMS).

# Budget Management

## 209.1 PURPOSE AND SCOPE

This policy provides guidelines for [department/office] budget management and accounting.

## 209.2 POLICY

The American Fork Police Department endeavors to appropriately obtain, manage, review, and audit [department/office] funds

## 209.3 BUDGET PREPARATION AND MANAGEMENT

The Chief of Police or the authorized designee shall be responsible for preparing an annual budget proposal for review by and approval by the City.

Adopted budgets should be reviewed and monitored periodically by the Chief of Police or designee so expenditures do not exceed allocated funds.

### 209.3.1 ACCOUNTING

The Chief of Police or designee shall be responsible for ensuring that the Department uses accounting procedures that include approval of each account and provisions for quarterly status reports including but not limited to:

- The initial appropriation for each account or program.
- Balances at the commencement of each reporting period.
- Expenditures and encumbrances made during the reporting period.
- The unencumbered balance of the account or program.

Accounting practices for cash accounts are described in the Cash Handling, Security, and Management Policy.

## 209.4 AUDITS

Audits of the [department/office]'s fiscal activities should occur in accordance with City policy and procedure.

## **Chapter 3 - General Operations**

# Use of Force

## 300.1 PURPOSE AND SCOPE

This policy provides guidelines on the reasonable use of force. While there is no way to specify the exact amount or type of reasonable force to be applied in any situation, every member of this department is expected to use these guidelines to make such decisions in a professional, impartial, and reasonable manner.

In addition to those methods, techniques, and tools set forth below, the guidelines for the reasonable application of force contained in this policy shall apply to all policies addressing the potential use of force, including but not limited to the Control Devices and Techniques and Conducted Energy Device policies.

### 300.1.1 DEFINITIONS

Definitions related to this policy include (UAC R728-507-3):

**Deadly force** - Force reasonably anticipated and intended to create a substantial likelihood of causing death or very serious injury.

**Feasible** - Reasonably capable of being done or carried out under the circumstances to successfully achieve the arrest or lawful objective without increasing risk to the officer or another person.

**Force** - The application of physical techniques or tactics, chemical agents, or weapons to another person. It is not a use of force when a person allows him/herself to be searched, escorted, handcuffed, or restrained.

**Imminent** - Ready to take place; impending. Note that imminent does not mean immediate or instantaneous.

**Totality of the circumstances** - All facts and circumstances known to the officer at the time, taken as a whole, including the conduct of the officer and the subject leading up to the use of force.

## 300.2 POLICY

The use of force by law enforcement personnel is a matter of critical concern, both to the public and to the law enforcement community. Officers are involved on a daily basis in numerous and varied interactions and, when warranted, may use reasonable force in carrying out their duties.

Officers must have an understanding of, and true appreciation for, their authority and limitations. This is especially true with respect to overcoming resistance while engaged in the performance of law enforcement duties.

The [Department/Office] recognizes and respects the value of all human life and dignity without prejudice to anyone. Vesting officers with the authority to use reasonable force and to protect the public welfare requires monitoring, evaluation, and a careful balancing of all interests (UAC R728-507-5).

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#### 300.2.1 DUTY TO INTERVENE AND REPORT

Any officer present and observing another law enforcement officer or a member using force that is clearly beyond that which is objectively reasonable under the circumstances shall, when in a position to do so, intervene to prevent the use of unreasonable force (UAC R728-507-10).

Any officer who observes another law enforcement officer or a member use force that is potentially beyond that which is objectively reasonable under the circumstances shall report these observations to a supervisor as soon as feasible (UAC R728-507-10).

#### 300.2.2 PERSPECTIVE

When observing or reporting force used by a law enforcement officer, each officer should take into account the totality of the circumstances and the possibility that other law enforcement officers may have additional information regarding the threat posed by the subject (UAC R728-507-10).

### 300.3 USE OF FORCE

Officers shall use only that amount of force that reasonably appears necessary given the facts and circumstances perceived by the officer at the time of the event to accomplish a legitimate law enforcement purpose (UAC R728-507-5).

The reasonableness of force will be judged from the perspective of a reasonable officer on the scene at the time of the incident. Any evaluation of reasonableness must allow for the fact that officers are often forced to make split-second decisions about the amount of force that reasonably appears necessary in a particular situation, with limited information and in circumstances that are tense, uncertain, and rapidly evolving.

Given that no policy can realistically predict every possible situation an officer might encounter, officers are entrusted to use well-reasoned discretion in determining the appropriate use of force in each incident (UAC R728-507-5).

It is also recognized that circumstances may arise in which officers reasonably believe that it would be impractical or ineffective to use any of the tools, weapons, or methods provided by this department. Officers may find it more effective or reasonable to improvise their response to rapidly unfolding conditions that they are confronting. In such circumstances, the use of any improvised device or method must nonetheless be reasonable and utilized only to the degree that reasonably appears necessary to accomplish a legitimate law enforcement purpose (UAC R728-507-5).

While the ultimate objective of every law enforcement encounter is to avoid or minimize injury, nothing in this policy requires an officer to retreat or be exposed to possible physical injury before applying reasonable force (UAC R728-507-5).

#### 300.3.1 USE OF FORCE TO EFFECT AN ARREST

An officer may use reasonable force to effect arrest, to prevent escape, or to overcome resistance. An officer who makes or attempts to make an arrest need not retreat or desist from the officer's efforts by reason of resistance or threatened resistance of the person being arrested; nor shall such officer be deemed the aggressor or lose the officer's right to self-defense by the use of



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reasonable force to effect the arrest or to prevent escape or to overcome resistance (Utah Code 77-7-7; UAC R728-507-5).

#### 300.3.2 FACTORS USED TO DETERMINE THE REASONABLENESS OF FORCE

When determining whether to apply force and evaluating whether an officer has used reasonable force, a number of factors should be taken into consideration, as time and circumstances permit. These factors include but are not limited to (UAC R728-507-5; UAC R728-507-7):

- (a) Immediacy and severity of the threat to officers or others.
- (b) The conduct of the individual being confronted, as reasonably perceived by the officer at the time.
- (c) Officer/subject factors (e.g., age, size, relative strength, skill level, injuries sustained, level of exhaustion or fatigue, the number of officers available vs. subjects).
- (d) The effects of suspected drug or alcohol use.
- (e) The individual's mental state or capacity.
- (f) The individual's ability to understand and comply with officer commands.
- (g) Proximity of weapons or dangerous improvised devices.
- (h) The degree to which the individual has been effectively restrained and the individual's ability to resist despite being restrained.
- (i) The availability of other reasonable and feasible options and their possible effectiveness.
- (j) Seriousness of the suspected offense or reason for contact with the individual.
- (k) Training and experience of the officer.
- (l) Potential for injury to officers, suspects, and others.
- (m) Whether the individual appears to be resisting, attempting to evade arrest by flight, or is attacking the officer.
- (n) The risk and reasonably foreseeable consequences of escape.
- (o) The apparent need for immediate control of the individual or a prompt resolution of the situation.
- (p) Whether the conduct of the individual being confronted no longer reasonably appears to pose an imminent threat to the officer or others.
- (q) Prior contacts with the individual or awareness of any propensity for violence.
- (r) Any other exigent circumstances.

#### 300.3.3 PAIN COMPLIANCE TECHNIQUES

Pain compliance techniques may be effective in controlling a physically or actively resisting individual. Officers may only apply those pain compliance techniques for which they have successfully completed [department/office]-approved training (UAC R728-507-7). Officers utilizing any pain compliance technique should consider:

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- (a) The degree to which the application of the technique may be controlled given the level of resistance.
- (b) Whether the individual can comply with the direction or orders of the officer.
- (c) Whether the individual has been given sufficient opportunity to comply.

The application of any pain compliance technique shall be discontinued once the officer determines that compliance has been achieved (UAC R728-507-7).

#### 300.3.4 CAROTID CONTROL HOLD

A carotid control hold is a technique designed to control an individual by temporarily restricting blood flow through the application of pressure to the side of the neck and, unlike a chokehold, does not restrict the airway. The proper application of the carotid control hold may be effective in restraining a violent or combative individual. However, due to the potential for injury, the use of the carotid control hold is limited to those circumstances where deadly force is authorized and is subject to the following (UAC R728-507-7):

- (a) The officer shall have completed department-approved training in the use and application of the carotid control hold.
- (b) At all times during the application of the carotid control hold, the response of the individual should be monitored. The carotid control hold should be discontinued when circumstances indicate that the application no longer reasonably appears necessary.
- (c) Any individual who has had the carotid control hold applied, regardless of whether the individual was rendered unconscious, shall be promptly examined by paramedics or other qualified medical personnel and should be monitored until such examination occurs.
- (d) The officer shall inform any person receiving custody, or any person placed in a position of providing care, that the individual has been subjected to the carotid control hold and whether the individual lost consciousness as a result.
- (e) Any officer attempting or applying the carotid control hold shall promptly notify a supervisor of the use or attempted use of such hold.
- (f) The use or attempted use of the carotid control hold shall be thoroughly documented by the officer in any related reports.

#### 300.3.5 RESPIRATORY RESTRAINTS

The use of a respiratory restraint, also known as a chokehold, is limited to circumstances where deadly force is authorized and if applied, is subject to the same guidelines and requirements as a carotid control hold (UAC R728-507-7).

#### 300.3.6 USE OF FORCE TO SEIZE EVIDENCE

In general, officers may use reasonable force to lawfully seize evidence and to prevent the destruction of evidence. However, officers are discouraged from using force solely to prevent a person from swallowing evidence or contraband. In the instance when force is used, officers should not intentionally use any technique that restricts blood flow to the head, restricts respiration

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or which creates a reasonable likelihood that blood flow to the head or respiration would be restricted. Officers are encouraged to use techniques and methods taught by the American Fork Police Department for this specific purpose.

#### **300.3.7 ALTERNATIVE TACTICS - DE-ESCALATION**

When circumstances reasonably permit, officers should use non-violent strategies and techniques to decrease the intensity of a situation, improve decision-making, improve communication, reduce the need for force, and increase voluntary compliance (e.g., summoning additional resources, formulating a plan, attempting verbal persuasion) (UAC R728-507-5).

#### **300.3.8 DEFENSIVE TACTICS**

Officers who have successfully completed [department/office]-approved training may apply defensive tactic techniques, including but not limited to focused strikes that involve the use of empty-hand techniques and contact control measures (UAC R728-507-8).

#### **300.3.9 KNEE ON NECK RESTRAINT**

An officer shall not restrain a person by the application of a knee applying pressure to the neck or throat of a person (Utah Code 53-13-115).

### **300.4 DEADLY FORCE APPLICATIONS**

If reasonable and feasible, the officer shall, prior to the use of deadly force, make efforts to identify the officer as a peace officer and to give a warning to submit to the authority of the officer if doing so would not increase the danger to the officer or others. (UAC R728-507-6).

Use of deadly force is justified in the following circumstances involving an imminent threat or an imminent risk (Utah Code 76-2-404; UAC R728-507-6):

- (a) An officer may use deadly force to protect the officer or an individual other than the suspect from what the officer reasonably believes is an imminent threat of death or serious bodily injury.
- (b) An officer may use deadly force to stop a fleeing subject when the officer has probable cause to believe that the individual has committed, or intends to commit, a felony involving the infliction or threatened infliction of serious bodily injury or death, and the officer reasonably believes that there is an imminent risk of serious bodily injury or death to an individual other than the suspect if the suspect is not immediately apprehended. Under such circumstances, a verbal warning should precede the use of deadly force, where feasible.

However, an officer shall not use deadly force against a person whose actions are a threat solely to themselves or property unless the person poses an imminent danger of death or serious physical injury to the officer or others in close proximity.

If a fleeing suspect does not pose an imminent danger of death or serious physical injury to the officer or another person, the use of deadly force is prohibited.

Imminent does not mean immediate or instantaneous. An imminent danger may exist even if the suspect is not at that very moment pointing a weapon at someone. For example, an imminent

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danger may exist if an officer reasonably believes that the suspect has a weapon or is attempting to access one and intends to use it against the officer or an individual other than the suspect. An imminent danger may also exist if the suspect is capable of causing serious bodily injury or death without a weapon, and the officer believes the individual intends to do so.

#### **300.4.1 MOVING VEHICLES**

Shots fired at or from a moving vehicle are rarely effective and involve additional considerations and risks (such as the hazard of an uncontrolled vehicle) in addition to the justification for the use of deadly force (UAC R728-507-6).

When feasible, officers should take reasonable steps to move out of the path of an approaching vehicle instead of discharging their firearm at the vehicle or any of its occupants (UAC R728-507-6).

An officer shall only discharge a firearm at a moving vehicle or its occupants when the vehicle is operated in a manner that threatens to cause death or serious physical injury to the officer or others, and the officer reasonably believes there are no other reasonable means available to avert the threat of the vehicle (including moving out of the path of the approaching vehicle), or if deadly force other than the vehicle is directed at the officer or others (UAC R728-507-6). Prior to discharging a firearm at a moving vehicle or its occupants, an officer shall consider relevant risk factors, including the target foreground and background, risk to the life and property of others posed by errant rounds, and risk to the life and property of others posed in the event the driver is incapacitated and unable to control or stop the vehicle.

Officers should not shoot at any part of a vehicle in an attempt to disable the vehicle (UAC R728-507-6).

An Officer shall not discharge a firearm from a moving vehicle except in exigent circumstances. In these situations, an officer must have articulable reason for this use of deadly force.

#### **300.5 REPORTING THE USE OF FORCE**

Any use of force by a member of this [department/office] shall be documented promptly, completely, and accurately in an appropriate report, depending on the nature of the incident. The officer should articulate the factors perceived and why the officer believed the use of force was reasonable under the circumstances. To collect data for purposes of training, resource allocation, analysis, and related purposes, the [Department/Office] may require the completion of additional report forms, as specified in department policy, procedure, or law (UAC R728-507-7). See the Report Preparation Policy for additional circumstances that may require documentation.

##### **300.5.1 NOTIFICATIONS TO SUPERVISORS**

Supervisory notification shall be made as soon as practicable following the application of force in any of the following circumstances:

- (a) The application caused a visible injury.

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- (b) The application would lead a reasonable officer to conclude that the individual may have experienced more than momentary discomfort.
- (c) The individual subjected to the force complained of injury or continuing pain.
- (d) The individual indicates intent to pursue litigation.
- (e) Any application of the conducted energy device or control device.
- (f) Any application of a restraint device other than handcuffs, shackles, or belly chains.
- (g) The individual subjected to the force was rendered unconscious.
- (h) An individual was struck or kicked.
- (i) An individual alleges unreasonable force was used or that any of the above has occurred.

#### **300.5.2 REPORTING THE THREAT OF FORCE**

When an officer points a firearm at an individual or aims a conductive energy device at an individual and displays the electrical current, the officer shall report the incident in accordance with Utah Code 53-13-116 and UAC R728-507-12.

Reports shall be submitted within 48 hours of the incident and should include at a minimum (Utah Code 53-13-116; UAC R728-507-12):

- (a) A description of the incident.
- (b) The identification of the individuals involved in the incident.

#### **300.6 MEDICAL CONSIDERATIONS**

Once it is reasonably safe to do so, medical assistance shall be obtained for any person who exhibits signs of physical distress, has sustained visible injury, expresses a complaint of injury or continuing pain, or was rendered unconscious (UAC R728-507-7; UAC R728-507-11). Any individual exhibiting signs of physical distress after an encounter should be continuously monitored until the individual can be medically assessed. Individuals should not be placed on their stomachs for an extended period, as this could impair their ability to breathe.

Based upon the officer's initial assessment of the nature and extent of the individual's injuries, medical assistance may consist of examination by an emergency medical services provider or medical personnel at a hospital or jail. If any such individual refuses medical attention, such a refusal shall be fully documented in related reports and, whenever practicable, should be witnessed by another officer and/or medical personnel (UAC R728-507-11). If a recording is made of the contact or an interview with the individual, any refusal should be included in the recording, if possible.

The on-scene supervisor or, if the on-scene supervisor is not available, the primary handling officer shall ensure that any person providing medical care or receiving custody of a person following any use of force is informed that the person was subjected to force. This notification shall include a description of the force used and any other circumstances the officer reasonably believes would

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be potential safety or medical risks to the subject (e.g., prolonged struggle, extreme agitation, impaired respiration).

Individuals who exhibit extreme agitation, violent irrational behavior accompanied by profuse sweating, extraordinary strength beyond their physical characteristics, and imperviousness to pain, or who require a protracted physical encounter with multiple officers to be brought under control, may be at an increased risk of sudden death. Calls involving these persons should be considered medical emergencies. Officers who reasonably suspect a medical emergency should request medical assistance as soon as practicable and have medical personnel stage away (UAC R728-507-11).

See the Medical Aid and Response Policy for additional guidelines.

#### **300.7 SUPERVISOR RESPONSIBILITIES**

A supervisor should respond to a reported application of force resulting in visible injury, if reasonably available. When a supervisor is able to respond to an incident in which there has been a reported application of force, the supervisor is expected to (UAC R728-507-12):

- (a) Obtain the basic facts from the involved officers. Absent an allegation of misconduct or excessive force, this will be considered a routine contact in the normal course of duties.
- (b) Ensure that any injured parties are examined and treated.
- (c) When possible, separately obtain a recorded interview with the individual upon whom force was applied. If this interview is conducted without the individual having voluntarily waived the individual's *Miranda* rights, the following shall apply:
  - 1. The content of the interview should not be summarized or included in any related criminal charges.
  - 2. The fact that a recorded interview was conducted should be documented in a property or other report.
  - 3. The recording of the interview should be distinctly marked for retention until all potential for civil litigation has expired.
- (d) Once any initial medical assessment has been completed or first aid has been rendered, ensure that photographs have been taken of any areas involving visible injury or complaint of pain, as well as overall photographs of uninjured areas.
  - 1. These photographs should be retained until all potential for civil litigation has expired.
- (e) Identify any witnesses not already included in related reports.
- (f) Review and approve all related reports.
- (g) Determine if there is any indication that the individual may pursue civil litigation.
  - 1. If there is an indication of potential civil litigation, the supervisor should complete and route a notification of a potential claim through the appropriate channels.

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- (h) Evaluate the circumstances surrounding the incident and initiate an administrative investigation if there is a question of policy noncompliance or if for any reason further investigation may be appropriate (UAC R728-507-10).

In the event that a supervisor is unable to respond to the scene of an incident involving the reported application of force, the supervisor is still expected to complete as many of the above items as circumstances permit.

#### **300.7.1 SHIFT SUPERVISOR RESPONSIBILITY**

The Shift Supervisor shall review each use of force by any personnel within his/her command to ensure compliance with this policy and to address any training issues.

#### **300.8 USE OF FORCE REVIEW BOARD**

Any use of force, as defined in Section 300.1.1 will be documented in both the initial police report and a "Use of Force Report". The Use of Force Report will be generated by the involved officer with the assistance of the supervisor or OIC (Officer in Charge).

The Use of Force Report will be forwarded to the Division Commander and Chief of Police as soon as practical. The Use of Force Report will ultimately be reviewed by a gathering of supervisors of the department. The supervisory review will determine if the

use of force was within the stated policies of the department. The review will also determine if there are policy or training issues that need to be addressed as a result of the incident.

#### **300.9 TRAINING**

Officers shall receive annual training on this policy and demonstrate their knowledge and understanding.

Subject to available resources, officers should receive periodic training on guidelines regarding vulnerable populations, including but not limited to children, elderly, pregnant persons, and individuals with physical, mental, or intellectual disabilities.

##### **300.9.1 TRAINING REQUIREMENTS**

Required annual training shall include:

- (a) Legal updates.
- (b) De-escalation tactics, including alternatives to force.
- (c) The duty to intervene.
- (d) The duty to request and/or render medical aid.
- (e) Warning shots (see the Firearms Policy).
- (f) All other subjects covered in this policy (e.g., use of deadly force, chokeholds and carotid holds, discharge of a firearm at or from a moving vehicle, verbal warnings).

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#### **300.10 USE OF FORCE ANALYSIS**

At least annually, the Analyst or designee should prepare an analysis report on use of force incidents. The report should be submitted to the Chief of Police. The report should not contain the names of officers, suspects or case numbers, and should include:

- (a) The identification of any trends in the use of force by members.
- (b) Training needs recommendations.
- (c) Equipment needs recommendations.
- (d) Policy revision recommendations.

#### **300.11 SECTION TITLE**

#### **300.12 USE OF FORCE TRACKING AND EARLY INTERVENTION SYSTEM**

The [Department/Office] shall establish an early intervention system for tracking use of force incidents, and follow the Performance History Audits Policy for guidelines regarding monitoring and remediating use of force patterns for officers. The early intervention system must enable supervisors to identify problematic conduct and conduct appropriate interventions to help prevent avoidable uses of force.



## Use of Force Review Boards

### **301.1 PURPOSE AND SCOPE**

This policy establishes a process for the American Fork Police Department to review the use of force by its employees.

This review process shall be in addition to any other review or investigation that may be conducted by any outside or multi-agency entity having jurisdiction over the investigation or evaluation of the use of deadly force.

### **301.2 POLICY**

The American Fork Police Department will objectively evaluate the use of force by its members to ensure that their authority is used lawfully, appropriately and is consistent with training and policy.

### **301.3 REMOVAL FROM LINE DUTY ASSIGNMENT**

Generally, whenever an employee's actions or use of force in an official capacity, or while using department equipment, results in death or serious bodily injury to another, that employee will be placed in a temporary administrative assignment pending an administrative review. The Chief of Police may exercise discretion and choose not to place an employee in an administrative assignment in any case.

### **301.4 REVIEW BOARD**

The Use of Force Review Board will be convened when any use of force (as defined in the Use of Force Policy) occurs by any member, including any use of force that results in serious bodily injury or death to another.

The Use of Force Review Board will also investigate and review the circumstances surrounding every discharge of a firearm, whether the employee was on- or off-duty, excluding training or recreational use.

The Chief of Police may request the Use of Force Review Board to investigate the circumstances surrounding any use of force incident.

All use of force incidents shall be reviewed by the Use of Force Review Board and forwarded to the Chief of Police within 21 days of their occurrence. The Chief of Police may also convene the Use of Force Review Board as necessary. It will be the responsibility of the Division Commander or supervisor of the involved employee to notify the designated Department member of any incidents requiring board review. The involved employee's Division Commander or supervisor will also ensure that all relevant reports, documents and materials are available for consideration and review by the board.

#### **301.4.1 COMPOSITION OF THE BOARD**

A patrol sergeant will be designated to oversee the Use of Force Board. Each time it convenes, the Use of Force Board shall be made up, at a minimum, of a member of Command Staff, a Line

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Officer, and a Department member well-versed in use of force issues. The Chief of Police may require additional Board members as needed.

#### 301.4.2 RESPONSIBILITIES OF THE BOARD

The Use of Force Review Board is empowered to conduct an administrative review and inquiry into the circumstances of an incident.

The board members may request further investigation, request reports be submitted for the board's review, call persons to present information and request the involved employee to appear. The involved employee will be notified of the meeting of the board and may choose to have a representative through all phases of the review process.

The Chief of Police will determine whether the board should delay its review until after completion of any criminal investigation, review by any prosecutorial body, filing of criminal charges, the decision not to file criminal charges or any other action. The board should be provided all relevant available material from these proceedings for its consideration.

The review shall be based upon those facts which were reasonably believed or known by the officer at the time of the incident, applying any legal requirements, department policies, procedures and approved training to those facts. Facts later discovered but unknown to the officer at the time shall neither justify nor call into question an officer's decision regarding the use of force.

Any questioning of the involved employee conducted by the board will be in accordance with the department's disciplinary procedures, the Personnel Complaints Policy, and any applicable state or federal law.

The board shall make one of the following recommended findings:

- (a) The employee's actions were within department policy and procedure.
- (b) The employee's actions were in violation of department policy and procedure.

A recommended finding requires a majority vote of the board. The board may also recommend additional investigations or reviews, such as disciplinary investigations, training reviews to consider whether training should be developed or revised, and policy reviews, as may be appropriate.

The Chief of Police shall review the recommendation, make a final determination as to whether the employee's actions were within policy and procedure and will determine whether any additional actions, investigations or reviews are appropriate. The Chief of Police's final findings will be forwarded to the involved employee's Division Commander for review and appropriate action. If the Chief of Police concludes that discipline should be considered, a disciplinary process will be initiated.

At the conclusion of any additional reviews, copies of all relevant reports and information will be filed with the Chief of Police.

# Handcuffing and Restraints

## 302.1 PURPOSE AND SCOPE

This policy provides guidelines for the use of handcuffs and other restraints during detentions and arrests.

## 302.2 POLICY

The American Fork Police Department authorizes the use of restraint devices in accordance with this policy, the Use of Force Policy, the Transporting Persons in Custody Policy, and [department/office] training. Restraint devices shall not be used to punish, to display authority, or as a show of force (Utah Code 77-7-1).

## 302.3 USE OF RESTRAINTS

Only members who have successfully completed American Fork Police Department-approved training on the use of restraint devices described in this policy are authorized to use these devices.

When deciding whether to use any restraint, officers should carefully balance officer safety concerns with factors that include, but are not limited to:

- The circumstances or crime leading to the arrest.
- The demeanor and behavior of the arrested person.
- The age and health of the person.
- Whether the person is known to be pregnant.
- Whether the person has a hearing or speaking disability. In such cases, consideration should be given, safety permitting, to handcuffing to the front in order to allow the person to sign or write notes.
- Whether the person has any other apparent disability.

### 302.3.1 RESTRAINT OF DETAINEES

Situations may arise where it may be reasonable to restrain an individual who may, after brief investigation, be released without arrest. Unless arrested, the use of restraints on detainees should continue only for as long as is reasonably necessary to assure the safety of officers and others. When deciding whether to remove restraints from a detainee, officers should continuously weigh the safety interests at hand against the continuing intrusion upon the detainee.

The temporary detention or restraint of any individual shall be documented in the accompanying police report. The documenting officer shall include, in detail, the explanation and reasoning for the detention or restraint.

### 302.3.2 RESTRAINT OF PREGNANT PERSONS

Persons who are known to be pregnant should be restrained in the least restrictive manner that is effective for officer safety. Leg restraints, waist chains, or handcuffs behind the body should not

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be used unless the officer has a reasonable suspicion that the person may resist, attempt escape, injure themselves or others, or damage property.

No person who is in labor, delivery, or recovery after delivery shall be handcuffed or restrained except in extraordinary circumstances, and only when a supervisor makes an individualized determination that such restraints are necessary for the safety of the detainee, officers, or others. See the Transporting Persons in Custody Policy for guidelines relating to transporting pregnant persons.

#### **302.3.3 RESTRAINT OF JUVENILES**

A juvenile under 14 years of age should not be restrained unless he/she is suspected of a dangerous felony or when the officer has a reasonable suspicion that the juvenile may resist, attempt escape, injure him/herself, injure the officer or damage property.

#### **302.4 APPLICATION OF HANDCUFFS OR PLASTIC CUFFS**

Handcuffs, including temporary nylon or plastic cuffs, may be used only to restrain a person's hands to ensure officer safety.

Although recommended for most arrest situations, handcuffing is discretionary and not an absolute requirement of the [Department/Office]. Officers should consider handcuffing any person they reasonably believe warrants that degree of restraint. However, officers should not conclude that in order to avoid risk every person should be handcuffed, regardless of the circumstances.

In most situations handcuffs should be applied with the hands behind the person's back. When feasible, handcuffs should be double-locked to prevent tightening, which may cause undue discomfort or injury to the hands or wrists.

In situations where one pair of handcuffs does not appear sufficient to restrain the individual or may cause unreasonable discomfort due to the person's size, officers should consider alternatives, such as using an additional set of handcuffs or multiple plastic cuffs.

Handcuffs should be removed as soon as it is reasonable or after the person has been searched and is safely confined within a detention facility.

#### **302.5 APPLICATION OF SPIT HOODS/MASKS/SOCKS**

Spit hoods/masks/socks are temporary protective devices designed to prevent the wearer from biting and/or transferring or transmitting fluids (saliva and mucous) to others.

Spit hoods may be placed upon persons in custody when the officer reasonably believes the person will bite or spit, either on a person or in an inappropriate place. They are generally used during application of a physical restraint, while the person is restrained, or during or after transport.

Officers utilizing spit hoods should ensure that the spit hood is fastened properly to allow for adequate ventilation and that the restrained person can breathe normally. Officers should provide assistance during the movement of restrained individuals due to the potential for impaired or distorted vision on the part of the individual. Officers should avoid comingling individuals wearing spit hoods with other detainees.

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Spit hoods should not be used in situations where the restrained person is bleeding profusely from the area around the mouth or nose, or if there are indications that the person has a medical condition, such as difficulty breathing or vomiting. In such cases, prompt medical care should be obtained. If the person vomits while wearing a spit hood, the spit hood should be promptly removed and discarded. Persons who have been sprayed with oleoresin capsicum (OC) spray should be thoroughly decontaminated including hair, head and clothing prior to application of a spit hood.

Those who have been placed in a spit hood should be continually monitored and shall not be left unattended until the spit hood is removed. Spit hoods shall be discarded after each use.

#### **302.6 APPLICATION OF AUXILIARY RESTRAINT DEVICES**

Auxiliary restraint devices include transport belts, waist or belly chains, transportation chains, leg restraints, and other similar devices. Auxiliary restraint devices are intended for use during long-term restraint or transportation. They provide additional security and safety without impeding breathing, while permitting adequate movement, comfort, and mobility.

Only [department/office]-authorized devices may be used. Any person in auxiliary restraints should be monitored as reasonably appears necessary.

#### **302.7 APPLICATION OF LEG RESTRAINT DEVICES**

Leg restraints may be used to restrain the legs of a violent or potentially violent person when it is reasonable to do so during the course of detention, arrest, or transportation. Only restraint devices approved by the [Department/Office] shall be used.

In determining whether to use the leg restraint, officers should consider:

- (a) Whether the officer or others could be exposed to injury due to the assaultive or resistant behavior of a suspect.
- (b) Whether it is reasonably necessary to protect the suspect from their own actions (e.g., hitting their head against the interior of the patrol unit, running away from the arresting officer while handcuffed, kicking at objects or officers).
- (c) Whether it is reasonably necessary to avoid damage to property (e.g., kicking at windows of the patrol unit).

##### **302.7.1 GUIDELINES FOR USE OF LEG RESTRAINTS**

When applying leg restraints, the following guidelines should be followed:

- (a) If practicable, officers should notify a supervisor of the intent to apply the leg restraint device. In all cases, a supervisor shall be notified as soon as practicable after the application of the leg restraint device.
- (b) Once applied, absent a medical or other emergency, restraints should remain in place until the officer arrives at the jail or other facility or the person no longer reasonably appears to pose a threat.
- (c) Once secured, the person should be placed in a seated or upright position, secured with a seat belt, and shall not be placed on their stomach for an extended period, as this could reduce the person's ability to breathe.

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- (d) The restrained person should be continually monitored by an officer while in the leg restraint. The officer should ensure that the person does not roll onto and remain on their stomach.
- (e) The officer should look for signs of labored breathing and take appropriate steps to relieve and minimize any obvious factors contributing to this condition.

#### **302.8 REQUIRED DOCUMENTATION**

If a person is restrained and released without an arrest, the officer shall document the details of the detention and the need for handcuffs or other restraints.

If a person is arrested, the use of handcuffs or other restraints shall be documented in the related report.

Officers should document the following information in reports, as appropriate, when restraints other than handcuffs are used on a person:

- (a) The factors that led to the decision to use restraints.
- (b) Supervisor notification and approval of restraint use.
- (c) The types of restraint used.
- (d) The amount of time the suspect was restrained.
- (e) How the person was transported and the position of the person during transport.
- (f) Observations of the person's behavior and any signs of physiological problems.
- (g) Any known or suspected drug use or other medical problems.

#### **302.9 TRAINING**

The Training Officer should ensure that officers receive periodic training on the proper use of handcuffs and other restraints, including:

- (a) Proper placement and fit of handcuffs and other restraint devices approved for use by the [Department/Office].
- (b) Response to complaints of pain by restrained persons.
- (c) Options for restraining those who may be pregnant without the use of leg restraints, waist chains, or handcuffs behind the body.
- (d) Options for restraining amputees or those with medical conditions or other physical conditions that may be aggravated by being restrained.
- (e) Proper placement of safely secured persons into an upright or seated position to avoid placement on the stomach for an extended period, as this could reduce the person's ability to breathe.

## Control Devices and Techniques

### **303.1 PURPOSE AND SCOPE**

This policy provides guidelines for the use and maintenance of control devices that are described in this policy.

### **303.2 POLICY**

In order to control subjects who are violent or who demonstrate the intent to be violent, the American Fork Police Department authorizes officers to use control devices in accordance with the guidelines in this policy and the Use of Force Policy.

### **303.3 ISSUING, CARRYING AND USING CONTROL DEVICES**

Control devices described in this policy may be carried and used by members of this department only if the device has been approved by the Chief of Police or the authorized designee.

Only officers who have successfully completed department-approved training in the use of any control device are authorized to carry and use the device.

Control devices may be used when a decision has been made to control, restrain or arrest a subject who is violent or who demonstrates the intent to be violent, and the use of the device appears reasonable under the circumstances. When reasonable, a verbal warning and opportunity to comply should precede the use of these devices.

When using control devices, officers should carefully consider potential impact areas in order to minimize injuries and unintentional targets.

### **303.4 RESPONSIBILITIES**

#### **303.4.1 INCIDENT COMMANDER RESPONSIBILITIES**

The Incident Commander or supervisor may authorize the use of a control device by selected personnel or members of specialized units who have successfully completed the required training.

#### **303.4.2 DIVISION COMMANDER AND INSTRUCTOR RESPONSIBILITIES**

The Division Commander shall control the inventory and issuance of all control devices and shall ensure that all damaged, inoperative, outdated or expended control devices or munitions are properly disposed of, repaired or replaced.

Every control device will be periodically inspected by the designated instructor for a particular control device. The inspection shall be documented.

#### **303.4.3 USER RESPONSIBILITIES**

All normal maintenance, charging or cleaning shall remain the responsibility of personnel using the various devices.

Any damaged, inoperative, outdated or expended control devices or munitions, along with documentation explaining the cause of the damage, shall be returned to the officer's sergeant for

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disposition. Damage to City property memorandum shall also be prepared and forwarded through the chain of command, when appropriate, explaining the cause of damage.

#### **303.5 BATON GUIDELINES**

The need to immediately control a suspect must be weighed against the risk of causing serious injury. The head, neck, throat, spine, heart, kidneys and groin should not be intentionally targeted except when the officer reasonably believes the suspect poses an imminent threat of serious bodily injury or death to the officer or others.

When carrying a baton, uniformed personnel shall carry the baton in its authorized holder on the equipment belt. Plainclothes and non-field personnel may carry the baton as authorized and in accordance with the needs of their assignment or at the direction of their supervisor.

#### **303.6 TEAR GAS GUIDELINES**

Tear gas may be used for crowd control, crowd dispersal or against barricaded suspects based on the circumstances. Only the Duty Sergeant, Incident Commander or SWAT Commander may authorize the delivery and use of tear gas, and only after evaluating all conditions known at the time and determining that such force reasonably appears justified and necessary.

#### **303.7 OLEORESIN CAPSICUM (OC) GUIDELINES**

As with other control devices, oleoresin capsicum (OC) spray and pepper projectiles may be considered for use to bring under control an individual or groups of individuals who are engaging in, or are about to engage in violent behavior. Pepper projectiles and OC spray should not, however, be used against individuals or groups who merely fail to disperse or do not reasonably appear to present a risk to the safety of officers or the public.

##### **303.7.1 OC SPRAY**

Uniformed personnel carrying OC spray shall carry the device in its holster on the equipment belt or ballistic vest outer carrier. Plainclothes and non-field personnel may carry OC spray as authorized, in accordance with the needs of their assignment or at the direction of their supervisor.

##### **303.7.2 PEPPER PROJECTILE SYSTEMS**

Pepper projectiles are plastic spheres that are filled with a derivative of OC powder. Because the compressed gas launcher delivers the projectiles with enough force to burst the projectiles on impact and release the OC powder, the potential exists for the projectiles to inflict injury if they strike the head, neck, spine or groin. Therefore, personnel using a pepper projectile system should not intentionally target those areas, except when the officer reasonably believes the suspect poses an imminent threat of serious bodily injury or death to the officer or others.

Officers encountering a situation that warrants the use of a pepper projectile system shall notify a supervisor as soon as practicable. A supervisor shall respond to all pepper projectile system incidents where the suspect has been hit or exposed to the chemical agent. The supervisor shall ensure that all notifications and reports are completed as required by the Use of Force Policy.



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Each deployment of a pepper projectile system shall be documented. This includes situations where the launcher was directed toward the suspect, whether or not the launcher was used. Unintentional discharges shall be promptly reported to a supervisor and documented on the appropriate report form. Only non-incident use of a pepper projectile system, such as training and product demonstrations, is exempt from the reporting requirement.

#### **303.7.3 TREATMENT FOR OC SPRAY EXPOSURE**

Persons who have been sprayed with or otherwise affected by the use of OC should be promptly provided with fresh air and clean water to cleanse the affected areas. Those persons who complain of further severe effects shall be examined by appropriate medical personnel.

#### **303.8 POST-APPLICATION NOTICE**

Whenever tear gas or OC has been introduced into a residence, building interior, vehicle or other enclosed area, officers should provide the owners or available occupants with notice of the possible presence of residue that could result in irritation or injury if the area is not properly cleaned. Such notice should include advisement that clean up will be at the owner's expense. Information regarding the method of notice and the individuals notified should be included in related reports.

#### **303.9 KINETIC ENERGY PROJECTILE GUIDELINES**

This department is committed to reducing the potential for violent confrontations. Kinetic energy projectiles, when used properly, are less likely to result in death or serious physical injury and can be used in an attempt to de-escalate a potentially deadly situation.

##### **303.9.1 DEPLOYMENT AND USE**

Only department-approved kinetic energy munitions shall be carried and deployed. Approved munitions may be used to compel an individual to cease his/her actions when such munitions present a reasonable option.

Officers are not required or compelled to use approved munitions in lieu of other reasonable tactics if the involved officer determines that deployment of these munitions cannot be done safely. The safety of hostages, innocent persons and officers takes priority over the safety of subjects engaged in criminal or suicidal behavior.

Circumstances appropriate for deployment include, but are not limited to, situations in which:

- (a) The suspect is armed with a weapon and the tactical circumstances allow for the safe application of approved munitions.
- (b) The suspect has made credible threats to harm him/herself or others.
- (c) The suspect is engaged in riotous behavior or is throwing rocks, bottles or other dangerous projectiles at people and/or officers.
- (d) There is probable cause to believe that the suspect has already committed a crime of violence and is refusing to comply with lawful orders.

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#### 303.9.2 DEPLOYMENT CONSIDERATIONS

Before discharging projectiles, the officer should consider such factors as:

- (a) Distance and angle to target.
- (b) Type of munitions employed.
- (c) Type and thickness of subject's clothing.
- (d) The subject's proximity to others.
- (e) The location of the subject.
- (f) Whether the subject's actions dictate the need for an immediate response and the use of control devices appears appropriate.

A verbal warning of the intended use of the device may precede its application, unless it would otherwise endanger the safety of officers or when it is not practicable due to the circumstances. The purpose of the warning is to give the individual a reasonable opportunity to voluntarily comply and to warn other officers and individuals that the device is being deployed.

Officers should keep in mind the manufacturer's recommendations and their training regarding effective distances and target areas. However, officers are not restricted solely to use according to manufacturer recommendations. Each situation must be evaluated on the totality of circumstances at the time of deployment.

The need to immediately incapacitate the subject must be weighed against the risk of causing serious injury or death. The head and neck should not be intentionally targeted, except when the officer reasonably believes the suspect poses an imminent threat of serious bodily injury or death to the officer or others.

#### 303.9.3 SAFETY PROCEDURES

Shotguns specifically designated for use with kinetic energy projectiles will be specially marked in a manner that makes them readily identifiable as such.

Officers will regularly inspect the kinetic energy projectile shotgun and projectiles to ensure that the shotgun is in proper working order and the projectiles are of the approved type and appear to be free from defects. When loading the kinetic energy projectile shotgun, the officer shall visually inspect the kinetic energy projectiles to ensure that conventional ammunition is not being loaded into the shotgun.

Officers are encouraged to employ the two-person rule for loading. The two-person rule is a safety measure in which a second officer watches the unloading and loading process to ensure that the kinetic energy projectile shotgun is loaded only with the approved kinetic energy projectiles and not conventional ammunition.

Officers will only carry or deploy one type of shotgun. Officers will be issued or authorized to carry either a kinetic energy projectile shotgun or a conventional shotgun with conventional ammunition,

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but not both. Officers issued a kinetic projectile shotgun will not carry conventional shotgun ammunition on their person or in their department vehicle.

When not deployed, the kinetic energy projectile shotgun shall be properly secured in a locking weapons rack of the patrol vehicle or secured in a case in the trunk of the patrol vehicle with the magazine loaded, the action closed on an empty chamber, and the safety in the safe position..

#### **303.10 TRAINING FOR CONTROL DEVICES**

The Use of Force Instructors shall ensure that all personnel who are authorized to carry a control device have been properly trained and certified to carry the specific control device and are retrained or recertified as necessary.

- (a) Proficiency training shall be monitored and documented by a certified, control-device weapons or tactics instructor.
- (b) All training and proficiency for control devices will be documented in the officer's training file.
- (c) Officers who fail to demonstrate proficiency with the control device or knowledge of this agency's Use of Force Policy will be provided remedial training. If an officer cannot demonstrate proficiency with a control device or knowledge of this agency's Use of Force Policy after remedial training, the officer will be restricted from carrying the control device and may be subject to discipline.

#### **303.11 REPORTING USE OF CONTROL DEVICES AND TECHNIQUES**

Any application of a control device or technique listed in this policy shall be documented in the related incident report and reported pursuant to the Use of Force Policy.

## Conducted Energy Device

### 304.1 PURPOSE AND SCOPE

This policy provides guidelines for the issuance and use of the conducted energy device (CED).

### 304.2 POLICY

The CED is used in an attempt to control a violent or potentially violent individual. The appropriate use of such a device may result in fewer serious injuries to officers and suspects.

### 304.3 ISSUANCE AND CARRYING CEDS

Only members who have successfully completed [department/office]-approved training may be issued and may carry the CED.

The CED Program Manager should keep a log of issued CED devices and the serial numbers of cartridges/magazines issued to members.

CEDs are issued for use during a member's current assignment. Those leaving a particular assignment may be required to return the device to the [department/office] inventory.

Officers shall only use the CED and cartridges/magazines that have been issued by the [Department/Office]. Cartridges/magazines should not be used after the manufacturer's expiration date.

Uniformed officers who have been issued the CED shall wear the device in an approved holster.

Officers who carry the CED while in uniform shall carry it in a holster on the side opposite the duty weapon.

- (a) All CEDs shall be clearly distinguishable to differentiate them from the duty weapon and any other device.
- (b) For single-shot devices, whenever practicable, officers should carry an additional cartridge on their person when carrying the CED.
- (c) Officers should not hold a firearm and the CED at the same time.

Non-uniformed officers may secure the CED in a concealed, secure location in the driver's compartment of their vehicles.

#### 304.3.1 USER RESPONSIBILITIES

Officers shall be responsible for ensuring that the issued CED is properly maintained and in good working order. This includes a function test and battery life monitoring, as required by the manufacturer, and should be completed prior to the beginning of the officer's shift.

CEDs that are damaged or inoperative, or cartridges/magazines that are expired or damaged, shall be returned to the CED Program Manager for disposition. Officers shall submit documentation stating the reason for the return and how the CED or cartridge/magazine was damaged or became inoperative, if known.

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#### **304.4 VERBAL AND VISUAL WARNINGS**

A verbal warning of the intended use of the CED should precede its application, unless it would otherwise endanger the safety of officers or when it is not practicable due to the circumstances. The purpose of the warning is to:

- (a) Provide the individual with a reasonable opportunity to voluntarily comply.
- (b) Provide other officers and individuals with a warning that the CED may be deployed.

The CED laser should not be intentionally directed into anyone's eyes.

The fact that a verbal or other warning was given or the reasons it was not given shall be documented by the officer deploying the CED in the related report.

#### **304.5 USE OF THE CED**

The CED has limitations and restrictions requiring consideration before its use. The CED should only be used when its operator can safely deploy the device within its operational range. Although the CED may be effective in controlling most individuals, officers should be aware that the device may not achieve the intended results and be prepared with other options.

If sufficient personnel are available and can be safely assigned, an officer designated as lethal cover for any officer deploying a CED may be considered for officer safety.

##### **304.5.1 APPLICATION OF THE CED**

The CED may be used when the circumstances reasonably perceived by the officer at the time indicate that such application reasonably appears necessary to control a person who:

- (a) Is violent or is physically resisting.
- (b) Has demonstrated, by words or action, an intention to be violent or to physically resist, and reasonably appears to present the potential to harm officers, themselves, or others.

Mere flight from a pursuing officer, without additional circumstances or factors, is not good cause for the use of the CED to apprehend an individual.

The CED shall not be used to psychologically torment, to elicit statements, or to punish any individual.

##### **304.5.2 SPECIAL DEPLOYMENT CONSIDERATIONS**

The use of the CED on certain individuals should generally be avoided unless the totality of the circumstances indicates that other available options reasonably appear ineffective or would present a greater danger to the officer, the subject, or others, and the officer reasonably believes that the need to control the individual outweighs the potential risk of using the device. This includes:

- (a) Individuals who are known to be pregnant.
- (b) Elderly individuals or obvious juveniles.
- (c) Individuals with obviously low body mass.
- (d) Individuals who are handcuffed or otherwise restrained.

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- (e) Individuals known to have been recently sprayed with a flammable chemical agent or who are otherwise known to be in close proximity to any known combustible vapor or flammable material, including alcohol-based oleoresin capsicum (OC) spray.
- (f) Individuals whose position or activity is likely to result in collateral injury (e.g., falls from height, located in water, operating vehicles).

Any CED capable of being applied in the drive-stun mode (i.e., direct contact without probes as a primary form of pain compliance) should be limited to supplementing the probe-mode to complete the circuit, or as a distraction technique to gain separation between officers and the subject, thereby giving officers time and distance to consider other force options or actions.

#### 304.5.3 TARGETING CONSIDERATIONS

Recognizing that the dynamics of a situation and movement of the subject may affect target placement of probes, when practicable, officers should attempt to target the back, lower center mass, and upper legs of the subject, and avoid intentionally targeting the head, neck, area of the heart, or genitals. If circumstances result in one or more probes inadvertently striking an area outside of the preferred target zones, the individual should be closely monitored until examined by paramedics or other medical personnel.

#### 304.5.4 MULTIPLE APPLICATIONS OF THE CED

Once an officer has successfully deployed two probes on the subject, the officer should continually assess the subject to determine if additional probe deployments or cycles reasonably appear necessary. Additional factors officers may consider include but are not limited to:

- (a) Whether it is reasonable to believe that the need to control the individual outweighs the potentially increased risk posed by multiple applications.
- (b) Whether the probes are making proper contact.
- (c) Whether the individual has the ability and has been given a reasonable opportunity to comply.
- (d) Whether verbal commands or other options or tactics may be more effective.

Given that on certain devices (e.g., TASER 10™) each trigger pull deploys a single probe, the officer must pull the trigger twice to deploy two probes to create the possibility of neuro-muscular incapacitation.

#### 304.5.5 ACTIONS FOLLOWING DEPLOYMENTS

Officers should take appropriate actions to control and restrain the individual as soon as reasonably practicable to minimize the need for longer or multiple exposures to the CED. As soon as practicable, officers shall notify a supervisor any time the CED has been discharged. If needed for evidentiary purposes, the expended cartridge, along with any probes and wire, should be submitted into evidence (including confetti tags, when equipped on the device). The evidence packaging should be marked "Biohazard" if the probes penetrated the subject's skin.

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#### 304.5.6 DANGEROUS ANIMALS

The CED may be deployed against an animal if the animal reasonably appears to pose an imminent threat to human safety.

#### 304.5.7 OFF-DUTY CONSIDERATIONS

Officers are not authorized to carry [department/office] CEDs while off-duty.

Officers shall ensure that CEDs are secured while in their homes, vehicles, or any other area under their control, in a manner that will keep the device inaccessible to others.

### **304.6 DOCUMENTATION**

Officers shall document all CED discharges in the related arrest/crime reports and the CED report forms. Photographs should be taken of any obvious probe impact or drive-stun application sites and attached to the CED report form. Notification shall also be made to a supervisor in compliance with the Use of Force Policy. Unintentional discharges, pointing the device at a person, audible warning, laser activation, and arcing the device, other than for testing purposes, will also be documented on the report form (Utah Code 53-13-116; UAC R728-507-12). Data downloads from the CED after use on a subject should be done as soon as practicable using a [department/office]-approved process to preserve the data.

#### 304.6.1 CED REPORT FORM

As applicable based on the device type, items that shall be included in the CED report form are:

- (a) The brand, model, and serial number of the CED and any cartridge/magazine.
- (b) Date, time, and location of the incident.
- (c) Whether any warning, display, laser, or arc deterred a subject and gained compliance.
- (d) The number of probes deployed, CED activations, the duration of each cycle, the duration between activations, and (as best as can be determined) the duration that the subject received applications.
- (e) The range at which the CED was used.
- (f) The type of mode used (e.g., probe deployment, drive-stun).
- (g) Location of any probe impact.
- (h) Location of contact in drive-stun mode.
- (i) Description of where missed probes went.
- (j) Whether medical care was provided to the subject.
- (k) Whether the subject sustained any injuries.
- (l) Whether any officers sustained any injuries.

The Training Officer should periodically analyze the report forms to identify trends, including deterrence and effectiveness. The Training Officer should also conduct audits of CED device data downloaded to an approved location and reconcile CED report forms with recorded activations.

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CED information and statistics, with identifying information removed, should periodically be made available to the public.

#### **304.6.2 REPORTS**

The officer should include the following in the arrest/crime report:

- (a) Identification of all personnel firing CEDs
- (b) Identification of all witnesses
- (c) Medical care provided to the subject
- (d) Observations of the subject's physical and physiological actions
- (e) Any known or suspected drug use, intoxication, or other medical problems

#### **304.7 MEDICAL TREATMENT**

Consistent with local medical personnel protocols and absent extenuating circumstances, only appropriate medical personnel or officers trained in probe removal and handling should remove CED probes from a person's body. Used CED probes shall be treated as a sharps biohazard, similar to a used hypodermic needle, and handled appropriately. Universal precautions should be taken.

All persons who have been struck by CED probes, who have been subjected to the electric discharge of the device, or who sustained direct exposure of the laser to the eyes shall be medically assessed prior to booking. Additionally, any such individual who falls under any of the following categories should, as soon as practicable, be examined by paramedics or other qualified medical personnel:

- (a) The person is suspected of being under the influence of controlled substances and/or alcohol.
- (b) The person may be pregnant.
- (c) The person reasonably appears to be in need of medical attention.
- (d) The CED probes are lodged in a sensitive area (e.g., groin, female breast, head, face, neck).
- (e) The person requests medical treatment.

Any individual exhibiting signs of distress or who is exposed to multiple or prolonged applications shall be transported to a medical facility for examination or medically evaluated prior to booking. If any individual refuses medical attention, such a refusal should be witnessed by another officer and/or medical personnel and shall be fully documented in related reports. If an audio/video recording is made of the contact or an interview with the individual, any refusal should be included, if possible.

The transporting officer shall inform any person providing medical care or receiving custody that the individual has been subjected to the application of the CED (see the Medical Aid and Response Policy).



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#### **304.8 SUPERVISOR RESPONSIBILITIES**

When possible, supervisors should respond to calls when they reasonably believe there is a likelihood the CED may be used. A supervisor should respond to all incidents where the CED was activated.

A supervisor should review each incident where a person has been exposed to a CED. The device's internal logs should be downloaded by a supervisor or training instructor and saved with the related arrest/crime report. The supervisor should arrange for photographs of probe sites to be taken and witnesses to be interviewed.

#### **304.9 TRAINING**

Personnel who are authorized to carry the CED shall be permitted to do so only after successfully completing the initial [department/office]-approved training. Any personnel who have not carried the CED as a part of their assignments for a period of six months or more shall be recertified by a qualified CED instructor prior to again carrying or using the device.

Proficiency training for personnel who have been issued CEDs should occur every year. A reassessment of an officer's knowledge and/or practical skills may be required at any time, if deemed appropriate, by the Training Officer. All training and proficiency for CEDs will be documented in the officer's training files.

Command staff, supervisors, and investigators should receive CED training as appropriate for the investigations they conduct and review.

Officers who do not carry CEDs should receive training that is sufficient to familiarize them with the device and with working with officers who use the device.

The Training Officer is responsible for ensuring that all members who carry CEDs have received initial and annual proficiency training. Periodic audits should be used for verification.

Application of CEDs during training could result in injuries and should not be mandatory for certification.

The Training Officer should include the following training:

- (a) A review of this policy.
- (b) A review of the Use of Force Policy.
- (c) Performing weak-hand draws or cross-draws until proficient to reduce the possibility of unintentionally drawing and firing a firearm.
- (d) Target area considerations, to include techniques or options to reduce the unintentional application of probes to the head, neck, area of the heart, and groin.
- (e) Scenario-based training, including virtual reality training when available.
- (f) Handcuffing a subject during the application of the CED and transitioning to other force options.
- (g) De-escalation techniques.

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- (h) Restraint techniques that do not impair respiration following the application of the CED.
- (i) Proper use of cover and concealment during deployment of the CED for purposes of officer safety.
- (j) Proper tactics and techniques related to multiple applications of CEDs.

# Officer-Involved Shootings and Deaths

## 305.1 PURPOSE AND SCOPE

The purpose of this policy is to establish policy and procedures for the investigation of an incident in which a person is injured or dies as the result of an officer-involved shooting or dies as a result of other action of an officer.

In other incidents not covered by this policy, the Chief of Police may decide that the investigation will follow the process provided in this policy.

## 305.2 POLICY

The policy of the American Fork Police Department is to ensure that officer-involved shootings and deaths are investigated in a thorough, fair and impartial manner.

## 305.3 TYPES OF INVESTIGATIONS

Officer-involved shootings and deaths involve several separate investigations. The investigations may include:

- (a) A criminal investigation of the suspect's actions.
- (b) A criminal investigation of the involved officer's actions.
- (c) An administrative investigation as to policy compliance by involved officers.
- (d) A civil investigation to determine potential liability.

## 305.4 CONTROL OF INVESTIGATIONS

Investigators from surrounding agencies may be assigned to work on the criminal investigation of officer-involved shootings and deaths. This may include at least one investigator from the agency that employs the involved officer.

Jurisdiction is determined by the location of the shooting or death and the agency employing the involved officer. The following scenarios outline the jurisdictional responsibilities for investigating officer-involved shootings and deaths.

### 305.4.1 ADMINISTRATIVE AND CIVIL INVESTIGATION

Regardless of where the incident occurs, the administrative and civil investigation of each involved officer is controlled by the respective employing agency.

### 305.4.2 CRIMINAL INVESTIGATION OF OFFICER ACTIONS

The control of the criminal investigation into the involved officer's conduct during the incident will be determined by the employing agency's protocol. When an officer from this department is involved, the criminal investigation will be handled according to the Criminal Investigation section of this policy.

Requests made of this department to investigate a shooting or death involving an outside agency's officer shall be referred to the Chief of Police or the authorized designee for approval.

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#### 305.4.3 CRIMINAL INVESTIGATION OF SUSPECT ACTIONS

The investigation of any possible criminal conduct by the suspect is controlled by the agency in whose jurisdiction the suspect's crime occurred. For example, the American Fork Police Department would control the investigation if the suspect's crime occurred in American Fork.

If multiple crimes have been committed in multiple jurisdictions, identification of the agency that will control the investigation may be reached in the same way as with any other crime. The investigation may be conducted by the agency in control of the criminal investigation of the involved officer, at the discretion of the Chief of Police and with concurrence from the other agency.

#### 305.5 INVESTIGATION PROCESS

The following procedures are guidelines used in the investigation of an officer-involved shooting or death.

##### 305.5.1 UNINVOLVED OFFICER RESPONSIBILITIES

Upon arrival at the scene of an officer-involved shooting or death, the first uninvolved AFPD officer will be the officer-in-charge and will assume the responsibilities of a supervisor until properly relieved. This officer should, as appropriate:

- (a) Secure the scene and identify and eliminate hazards for all those involved.
- (b) Take reasonable steps to obtain emergency medical attention for injured individuals.
- (c) Request additional resources from the Department or other agencies.
- (d) Coordinate a perimeter or pursuit of suspects.
- (e) Check for injured persons and evacuate as needed.
- (f) Brief the supervisor upon arrival.

##### 305.5.2 SUPERVISOR RESPONSIBILITIES

Upon arrival at the scene, the first uninvolved AFPD supervisor should ensure completion of the duties as outlined above, plus:

- (a) Attempt to obtain a brief overview of the situation from any uninvolved officers.
  - 1. In the event that there are no uninvolved officers who can supply adequate overview, the supervisor should attempt to obtain a brief voluntary overview from one involved officer.
- (b) If necessary, the supervisor may administratively order any AFPD officer to immediately provide public safety information necessary to secure the scene, identify injured parties and pursue suspects.
  - 1. Public safety information shall be limited to such things as outstanding suspect information, number and direction of any shots fired, perimeter of the incident scene, identity of known or potential witnesses and any other pertinent information.
  - 2. The initial on-scene supervisor should not attempt to order any involved officer to provide any information other than public safety information.

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- (c) Provide all available information to the Shift Sergeant and Dispatch. If feasible, sensitive information should be communicated over secure networks.
- (d) Take command of and secure the incident scene with additional AFPD members until properly relieved by another supervisor or other assigned personnel or investigator.
- (e) As soon as practicable, ensure that involved officers are transported (separately, if feasible) to a suitable location for further direction.
  - 1. Each involved AFPD officer should be given an administrative order not to discuss the incident with other involved officers or AFPD members pending further direction from a supervisor.
  - 2. When an involved officer's weapon is taken or left at the scene for other than officer-safety reasons (e.g., evidence), ensure that he/she is provided with a comparable replacement weapon or transported by other officers.

#### 305.5.3 SHIFT SUPERVISOR RESPONSIBILITIES

Upon learning of an officer-involved shooting or death, the Shift Supervisor shall be responsible for coordinating all aspects of the incident until he/she is relieved by the Chief of Police or a Division Commander.

All outside inquiries about the incident shall be directed to the Incident Commander or the Chief of Police's designee.

#### 305.5.4 NOTIFICATIONS

Upon learning of an officer-involved shooting or death, the Shift Supervisor shall notify the Chief of Police as soon as is practical.

Upon receiving such notification, the Chief of Police shall ensure that any remaining notifications are made as soon as is practical, which at a minimum shall include notification to the county attorney having jurisdiction where the incident occurred, including the Utah County Officer Incident Protocol Task Force (Utah Code 76-2-408).

#### 305.5.5 INVOLVED OFFICERS

The following shall be considered for the involved officer:

- (a) Any request for legal or union representation will be accommodated.
  - 1. Involved AFPD officers shall not be permitted to meet collectively or in a group with an attorney or any representative prior to providing a formal interview or report.
  - 2. Requests from involved non-AFPD officers should be referred to their employing agency.
- (b) Discussions with licensed attorneys will be considered privileged as attorney-client communications.
- (c) Discussions with agency representatives/employee groups will be privileged only as to the discussion of non-criminal information.

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- (d) A licensed psychotherapist shall be provided by the [Department/Office] to each involved AFPD officer. A licensed psychotherapist may also be provided to any other affected AFPD members, upon request.
  - 1. Interviews with a licensed psychotherapist will be considered privileged.
  - 2. An interview or session with a licensed psychotherapist may take place prior to the member providing a formal interview or report. However, involved members shall not be permitted to consult or meet collectively or in a group with a licensed psychotherapist prior to providing a formal interview or report.
  - 3. A separate fitness-for-duty exam may also be required (see the Fitness for Duty Policy).
- (e) Communications between the involved officer and a peer support member are addressed in the Wellness Program Policy.

Care should be taken to preserve the integrity of any physical evidence present on the involved officer's equipment or clothing, such as blood or fingerprints, until investigators or lab personnel can properly retrieve it.

Each involved AFPD officer shall be given reasonable paid administrative leave following an officer-involved shooting or death. It shall be the responsibility of the Shift Sergeant to make schedule adjustments to accommodate such leave.

#### **305.6 CRIMINAL INVESTIGATION**

The Utah County Officer Involved Critical Incident Task Force is responsible for the criminal investigation into the circumstances of any officer-involved shooting or death.

If available, investigative personnel from this department may be assigned to partner with investigators from outside agencies or the Utah County Officer Involved Critical Incident Task Force to avoid duplicating efforts in related criminal investigations.

Once public safety issues have been addressed, criminal investigators may be given the opportunity to obtain a voluntary statement from involved officers and to complete their interviews.

The following shall be considered for the involved officer:

- (a) AFPD supervisors and Internal Affairs Unit personnel should not participate directly in any voluntary interview of AFPD officers. This will not prohibit such personnel from monitoring interviews or providing the criminal investigators with topics for inquiry.
- (b) If requested, any involved officer will be afforded the opportunity to consult individually with a representative of his/her choosing or an attorney prior to speaking with criminal investigators. However, in order to maintain the integrity of each involved officer's statement, involved officers shall not consult or meet with a representative or an attorney collectively or in groups prior to being interviewed.
- (c) If any involved officer is physically, emotionally or otherwise not in a position to provide a voluntary statement when interviewed by criminal investigators, consideration should be given to allowing a reasonable period for the officer to schedule an alternate time for the interview.

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- (d) Any voluntary statement provided by an involved officer will be made available for inclusion in any related investigation, including administrative investigations. However, no administratively coerced statement will be provided to any criminal investigators unless the officer consents.

#### 305.6.1 REPORTS BY INVOLVED AFPD OFFICERS

In the event that suspects remain outstanding or subject to prosecution for related offenses, this department shall retain the authority to require involved AFPD officers to provide sufficient information for related criminal reports to facilitate the apprehension and prosecution of those individuals.

While the involved AFPD officers may write the report, it is generally recommended that such reports be completed by assigned investigators, who should interview all involved officers as victims/witnesses. Since the purpose of these reports will be to facilitate criminal prosecution, statements of involved officers should focus on evidence to establish the elements of criminal activities by suspects. Care should be taken not to duplicate information provided by involved officers in other reports.

Nothing in this section shall be construed to deprive an involved AFPD officer of the right to consult with legal counsel prior to completing any such criminal report.

Reports related to the prosecution of criminal suspects will be processed according to normal procedures but should also be included for reference in the investigation of the officer-involved shooting or death.

#### 305.6.2 WITNESS IDENTIFICATION AND INTERVIEWS

Because potential witnesses to an officer-involved shooting or death may become unavailable or the integrity of their statements compromised with the passage of time, a supervisor should take reasonable steps to promptly coordinate with criminal investigators to utilize available law enforcement personnel for the following:

- (a) Identification of all persons present at the scene and in the immediate area.
  - 1. When feasible, a recorded statement should be obtained from those persons who claim not to have witnessed the incident but who were present at the time it occurred.
  - 2. Any potential witness who is unwilling or unable to remain available for a formal interview should not be detained absent reasonable suspicion to detain or probable cause to arrest. Without detaining the individual for the sole purpose of identification, attempts to identify the witness prior to his/her departure should be made whenever feasible.
- (b) Witnesses who are willing to provide a formal interview should be asked to meet at a suitable location where criminal investigators may obtain a recorded statement. Such witnesses, if willing, may be transported by a member of the Department.

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1. A written, verbal or recorded statement of consent should be obtained prior to transporting a witness. When the witness is a minor, consent should be obtained from the parent or guardian, if available, prior to transportation.
- (c) Promptly contacting the suspect's known family and associates to obtain any available and untainted background information about the suspect's activities and state of mind prior to the incident.

#### **305.6.3 INVESTIGATIVE PERSONNEL**

Once notified of an officer-involved shooting or death, it shall be the responsibility of the designated Investigations Sergeant to assign appropriate investigative personnel to handle the investigation of related crimes. Department investigators will be assigned to work with investigators from the Prosecuting Attorney's Office and may be assigned to separately handle the investigation of any related crimes not being investigated by the Prosecuting Attorney's Office.

All related department reports, except administrative and/or privileged reports, will be forwarded to the designated Investigations Sergeant for approval. Privileged reports shall be maintained exclusively by members who are authorized such access. Administrative reports will be forwarded to the appropriate Division Commander.

#### **305.6.4 STATUTORY MANDATES RELATED TO CRIMINAL INVESTIGATIONS OF CRITICAL INCIDENTS**

The Shift Supervisor shall notify the Chief of Police, who shall notify the Prosecuting Attorney as soon as practical if the following critical incidents occur within the jurisdiction of the American Fork Police Department, whether or not an involved law enforcement officer is a department member (Utah Code 76-2-408):

- (a) Use of a firearm that caused an injury by a law enforcement officer or any other use of a weapon by a law enforcement officer in a manner that could have caused death or serious injury (e.g., a blow to the head of a person with a baton).
- (b) A fatal injury to any person that could have been caused by a law enforcement officer or while the person was in the custody of a law enforcement agency.

The Chief of Police or authorized designee and the Prosecuting Attorney shall jointly designate an agency to criminally investigate the actions of a law enforcement officer involved in a critical incident, as appropriate, and may jointly designate a lead agency if more than one agency will be involved. An agency other than the American Fork Police Department will criminally investigate the actions of members who may have caused or contributed to a critical incident (Utah Code 76-2-408).

#### **305.7 ADMINISTRATIVE INVESTIGATION**

In addition to all other investigations associated with an officer-involved shooting or death, this department will conduct an internal administrative investigation to determine conformance with all department policy. This investigation will be conducted under the supervision of the Chief of Police or designee and will be considered a confidential officer personnel file.



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Interviews of members shall be subject to department policies and applicable laws.

- (a) Any officer involved in a shooting or death may be requested or administratively compelled to provide a blood sample for alcohol/drug screening. Absent consent from the officer, such compelled samples and the results of any such testing shall not be disclosed to any criminal investigative agency.
- (b) If any officer has voluntarily elected to provide a statement to criminal investigators, the assigned administrative investigator should review that statement before proceeding with any further interview of that involved officer.
  - 1. If a further interview of the officer is deemed necessary to determine policy compliance, care should be taken to limit the inquiry to new areas with minimal, if any, duplication of questions addressed in the voluntary statement. The involved officer shall be provided with a copy of his/her prior statement before proceeding with any subsequent interviews.
- (c) In the event that an involved officer has elected not to provide criminal investigators with a voluntary statement, the assigned administrative investigator shall conduct an administrative interview to determine all relevant information.
  - 1. Although this interview should not be unreasonably delayed, care should be taken to ensure that the officer's physical and psychological needs have been addressed before commencing the interview.
  - 2. If requested, the officer shall have the opportunity to select an uninvolved representative to be present during the interview. However, in order to maintain the integrity of each individual officer's statement, involved officers shall not consult or meet with a representative or attorney collectively or in a group prior to being interviewed.
  - 3. Administrative interviews should be recorded by the investigator. The officer may also record the interview.
  - 4. The officer shall be informed of the nature of the investigation. If an officer refuses to answer questions, he/she should be given his/her *Garrity* rights and ordered to provide full and truthful answers to all questions. The officer shall be informed that the interview will be for administrative purposes only and that the statement cannot be used criminally.
  - 5. The Internal Affairs Investigator shall compile all relevant information and reports necessary for the department to determine compliance with applicable policies.
  - 6. Regardless of whether the use of force is an issue in the case, the completed administrative investigation shall be submitted to the Use of Force Review Board, which will restrict its findings as to whether there was compliance with the Use of Force Policy.

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7. Any other indications of a potential violation of any policy shall be determined in accordance with standard disciplinary procedures.

#### **305.7.1 CIVIL LIABILITY RESPONSE**

An employee of the Department may be assigned to work exclusively under the direction of the legal counsel for the Department to assist in the preparation of materials deemed necessary in anticipation of potential civil litigation.

All materials generated in this capacity shall be considered attorney work product and may not be used for any other purpose. The civil liability response is not intended to interfere with any other investigation, but shall be given reasonable access to all other investigations.

#### **305.8 CIVIL LIABILITY RESPONSE**

A member of this department may be assigned to work exclusively under the direction of the legal counsel for the department to assist in the preparation of materials deemed necessary in anticipation of potential civil litigation.

All materials generated in this capacity shall be considered attorney work product and may not be used for any other purpose. The civil liability response is not intended to interfere with any other investigation but shall be given reasonable access to all other investigations.

#### **305.9 AUDIO AND VIDEO RECORDINGS**

Any officer involved in a shooting or death may be permitted to review available Mobile Audio/Video (MAV), body-worn video, or other video or audio recordings prior to providing a recorded statement or completing reports.

Any MAV, body-worn and other known video or audio recordings of an incident should not be publicly released during an ongoing investigation without consulting the prosecuting attorney or City Attorney's Office, as appropriate.

#### **305.10 DEBRIEFING**

Following an officer-involved shooting or death, the American Fork Police Department should conduct both a Critical Incident Stress Debriefing and a tactical debriefing. See the Wellness Program Policy for guidance on Critical Incident Stress Debriefings.

##### **305.10.1 TACTICAL DEBRIEFING**

A tactical debriefing should take place to identify any training or areas of policy that need improvement. The Chief of Police should identify the appropriate participants. This debriefing should not be conducted until all involved members have provided recorded or formal statements to criminal and/or administrative investigators.

#### **305.11 MEDIA RELATIONS**

All media inquiries and media releases will be handled through the office of the Chief of Police or designee.

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No involved AFPD officer shall make any comment to the media unless he/she is authorized by the Chief of Police or a Division Commander.

Department members receiving inquiries regarding officer-involved shootings or deaths occurring in other jurisdictions shall refrain from public comment and will direct those inquiries to the agency having jurisdiction and primary responsibility for the investigation.

#### 305.11.1 DEPARTMENT WEBSITE

Pursuant to Utah Code 76-2-408, the department will post on its publicly accessible website the following:

- (a) the policies and procedures the department has adopted to select the investigating agency if an officer-involved critical incident occurs in its jurisdiction and one of its officers is alleged to have caused or contributed to the officer-involved incident; and
- (b) the protocols the department has adopted to ensure that any investigation of officer-involved incidents occurring in its jurisdiction are conducted professionally, thoroughly, and impartially.

# Firearms

## 306.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines, rules, and instructions regarding firearms assigned to and used by members of the American Fork Police Department.

This policy does not govern issues pertaining to the following policies:

- Policy 300: Use of Force
- Policy 305: Officer-Involved Shootings and Death

## 306.2 POLICY

The American Fork Police Department may issue firearms to its members to address the risks posed to the public and to department members by violent and armed individuals.

The department and its members to whom firearms have been assigned share joint responsibility to ensure that firearms are well maintained and remain in good working order.

The department will ensure that assigned firearms are appropriate and that relevant training is provided to its members.

## 306.3 FIREARMS - AUTHORIZATION AND ASSIGNMENT

Members shall only use firearms that are issued or authorized by the department and have been thoroughly inspected by a member of the firearms team. Except in an emergency or as directed by a supervisor, no firearm shall be carried by a member who has not qualified with that firearm.

All other weapons not provided by the department, including, but not limited to, edged weapons, chemical or electronic weapons, impact weapons, or any weapon prohibited or restricted by law or that is not covered elsewhere by department policy, may not be carried by members in the performance of their official duties without the express written authorization of the Chief of Police. This exclusion does not apply to the carrying of knives that are not otherwise prohibited by law.

### 306.3.1 HANDGUNS

The authorized department-issued handgun is the Glock semi-automatic handgun chambered in 9mm.

The following are approved for on-duty use as follows:

- Any full-sized semi-automatic Glock chambered in 9mm for patrol operations and duties; or
- Any semi-automatic Glock chambered in 9mm for other assigned and duties.

Prior to carrying a department-issued handgun, members shall qualify under range supervision and, thereafter, shall qualify in accordance with the department qualification schedule. Members must demonstrate proficiency, safe handling, and proper functioning of the handgun.

Members desiring to carry a personally owned handgun shall refer to section 306.3.6 of this policy.

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#### 306.3.2 SHOTGUNS

Shotguns (excluding department-issued less-than-lethal shotguns) are not authorized for carry while on duty.

#### 306.3.3 PATROL RIFLES

The authorized department-issued patrol rifle is any variant of the AR15/M4/M16 rifle chambered in.223.

The following is approved for on-duty use:

- Any semi-automatic variant of the AR15/M4/M16 rifle chambered in.223 for all operations and duties.

Prior to carrying a department-issued patrol rifle, members shall qualify under range supervision and, thereafter, shall qualify in accordance with the department qualification schedule. Members must demonstrate proficiency, safe handling, and proper functioning of the patrol rifle.

Members desiring to carry a personally owned patrol rifle shall refer to section 306.3.6 of this policy.

#### 306.3.4 OTHER FIREARMS

The department may also issue other department owned firearms to members of the department based upon individual member duties and responsibilities in combination with the needs of the department.

The issuance of any other department owned firearm which would fall under this section to any member of the police department must be authorized by the Chief of Police.

Prior to carrying any other department-issued firearm, members shall qualify under range supervision and, thereafter, shall qualify in accordance with the department qualification schedule. Members must demonstrate proficiency, safe handling, and proper functioning of the firearm.

#### 306.3.5 SECONDARY FIREARMS

Members are authorized to carry a secondary firearm while on duty. The following apply to both department-issued and personally owned secondary firearms.

- (a) Only one secondary firearm may be carried at a time.
- (b) A secondary firearm shall be carried in a concealed manner at all times and in such a way as to prevent unintentional manipulation, discharge, or loss of physical control.
- (c) Prior to carrying a secondary firearm, members shall qualify under range supervision and, thereafter, shall qualify in accordance with the department qualification schedule. Members must demonstrate proficiency, safe handling, and proper functioning of the firearm.

The following also apply to personally owned secondary firearms:

- (a) Any member desiring to carry a personally owned secondary firearm of any type while on-duty must receive written authorization from the Chief of Police.

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- (b) The personally owned secondary firearm must comply with the National Firearms Act (NFA).
- (c) The personally owned secondary firearm shall be in good working order.
- (d) Once approved, the member shall provide in writing the make, model, color, serial number, and caliber of the personally owned secondary firearm to a member of the firearms team.
- (e) Prior to being carried, the personally owned secondary firearm shall be inspected by a member of the firearms team and, thereafter, shall be subject to inspection at the request of any member of the firearms team.
- (f) The trigger and other related safety mechanisms of the personally owned secondary firearm shall not be modified from factory standards unless authorized by the Chief of Police.
- (g) Members should remember that any personally owned secondary firearm that is used in an officer-involved critical incident (OICI) or other similar incident is subject to seizure as evidence. The department will not be responsible for replacing a personally owned secondary firearm while an investigation is being conducted.
- (h) The provision of ammunition for a personally owned secondary firearm shall be the responsibility of the member. This includes ammunition used for qualification, training, and on-duty use.
- (i) Ammunition shall be the same as department-issued ammunition or ammunition from the approved ammunition list which is maintained by the firearms team.

#### 306.3.6 PERSONALLY OWNED FIREARMS - PRIMARY DUTY USE

Members desiring to carry a personally owned firearm as their primary firearm for duty use are subject to the following:

- (a) Any member desiring to carry a personally owned firearm of any type for primary duty use must receive written authorization from the Chief of Police.
- (b) The personally owned firearm must comply with the National Firearms Act (NFA).
- (c) The personally owned firearm shall be in good working order.
- (d) Once approved, the member shall provide in writing the make, model, color, serial number, and caliber of the personally owned firearm to the firearms team.
- (e) Prior to being carried, the personally owned firearm shall be inspected by a member of the firearms team and, thereafter, shall be subject to inspection at the request of any member of the firearms team.
- (f) The trigger and other related safety mechanisms of the personally owned firearm shall not be modified from factory standards unless authorized by the Chief of Police.
- (g) Members should remember that any personally owned firearm used in an officer-involved critical incident (OICI) or other similar incident is subject to seizure as evidence. The department will not be responsible for replacing a personally owned firearm while the investigation is being conducted. In such instances, however, the

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member will be issued a department owned firearm for use while an investigation is being conducted.

- (h) The provision of ammunition for a personally owned firearm shall be the responsibility of the member. This includes ammunition used for qualification, training, and on-duty use.
- (i) Ammunition shall be the same as department-issued ammunition or ammunition from the approved ammunition list.

#### 306.3.7 AUTHORIZED OFF-DUTY FIREARMS

The carrying of firearms by members while off-duty is permitted and strongly encouraged by the Chief of Police but may be rescinded should circumstances dictate (e.g., administrative leave). Members who choose to carry a firearm while off-duty, based on their authority as peace officers, will be required to meet the following guidelines:

- (a) A personally owned firearm shall be used, carried, and inspected in accordance with the Personally Owned Duty Firearms requirements in this policy. The purchase of the personally owned firearm and ammunition shall be the responsibility of the member.
- (b) The firearm shall be carried concealed at all times and in such a manner as to prevent unintentional cocking, discharge, or loss of physical control.
- (c) It will be the responsibility of the member to submit the firearm to a member of the firearms team for inspection prior to being personally carried. Thereafter the firearm shall be subject to periodic inspection by the firearms team.
- (d) Prior to carrying any off-duty firearm, the member shall demonstrate to a member of the firearms team that the member is proficient in handling and firing the firearm and that it will be carried in a safe manner.
- (e) The member will successfully qualify with the firearm prior to it being carried.
- (f) Members shall provide written notice of the make, model, color, serial number, and caliber of the firearm to the firearms team, who will maintain a list of the information.
- (g) If a member desires to use more than one firearm while off-duty, the member may do so, as long as all requirements set forth in this policy for each firearm are met.
- (h) Members shall only carry [department/office]-authorized ammunition.
- (i) When armed, officers shall carry their badges and American Fork Police Department identification cards under circumstances requiring possession of such identification.

#### 306.3.8 AMMUNITION

Members shall carry only [department/office]-authorized ammunition. Members shall be issued fresh duty ammunition in the specified quantity for all [department/office]-issued firearms during the member's firearms qualification. Replacements for unserviceable or depleted ammunition issued by the [Department/Office] shall be dispensed by the firearms team when needed, in accordance with established policy.

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Members carrying personally owned authorized firearms of a caliber differing from [department/office]-issued firearms shall be responsible for obtaining fresh duty ammunition in accordance with the above, at their own expense.

#### **306.4 FIREARMS - DEPLOYMENT CONSIDERATIONS FOR PATROL RIFLES**

Members may deploy a patrol rifle in any circumstance where the member can articulate a reasonable expectation that the rifle may be needed. Examples of when a patrol rifle may be needed include, but are not limited to:

- (a) Situations where the member reasonably anticipates an armed encounter.
- (b) When a member is faced with a situation that may require accurate and effective fire.
- (c) Situations where a member reasonably expects the need to meet or exceed a suspect's firepower.
- (d) When a member reasonably believes that there may be a need to fire on a barricaded person or a person with a hostage.
- (e) When a member reasonably believes that a suspect may be wearing body armor.
- (f) When authorized or requested by a supervisor.
- (g) When needed to euthanize an animal.

#### **306.5 FIREARMS - MODIFICATION, ACCESSORIES, AND EQUIPMENT**

Firearms carried on- or off-duty shall be maintained in a clean, serviceable condition. Maintenance and repair of authorized personally owned firearms are the responsibility of the individual member.

##### **306.5.1 REPAIRS AND MODIFICATIONS**

Each member shall be responsible for promptly reporting any damage or malfunction of an assigned firearm to a supervisor or the firearms team.

Firearms that are the property of the department or personally owned firearms that are approved for department use may be repaired or modified only by a person who is department-approved and certified as an armorer or gunsmith in the repair of the specific firearm. Such modification or repair must be authorized in advance by a member of the firearms team.

Any repairs or modifications to the member's personally owned firearm shall be done at his/her expense and must be approved by a member of the firearms team.

##### **306.5.2 HOLSTERS**

Only [department/office]-approved holsters shall be used and worn by members. Members shall periodically inspect their holsters to make sure they are serviceable and provide the proper security and retention of the handgun.

##### **306.5.3 TACTICAL LIGHTS**

Tactical lights may only be installed on a firearm carried on- or off-duty after they have been examined and approved by the Chief of Police or authorized designee. Once the approved tactical



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lights have been properly installed on any firearm, the member shall qualify with the firearm to ensure proper functionality and sighting of the firearm prior to carrying it.

#### 306.5.4 SIGHTS AND OPTICS

Red dot and other optic sights may only be installed on a firearm carried on- or off-duty after they have been approved by the Chief of Police or designee and examined by a member of the firearms team. The holster used for any firearm equipped with a red dot or other optic sight must be compatible with the optic, and must be approved specifically for use with that optic by the Chief of Police or designee prior to use. Any approved red dot or other optic sight shall only be installed in strict accordance with manufacturer specifications under the supervision of a Department-approved, certified armorer. Once approved sights have been properly installed on any firearm, the member shall qualify with the firearm to ensure proper functionality and sighting of the firearm prior to carrying it.

The use of laser sights by Department members is discouraged and generally prohibited unless otherwise expressly authorized by the Chief of Police or designee.

Except in an approved training situation, a member may only sight in on a target when the member would otherwise be justified in pointing a firearm at the target.

#### 306.7 SAFE HANDLING, INSPECTION, AND STORAGE

Members shall maintain the highest level of safety when handling firearms and shall consider the following:

- (a) Members shall not unnecessarily display or handle any firearm.
- (b) While cleaning, repairing, loading, or unloading a firearm anywhere in the department, members shall ensure safety protocols are followed and that all firearms shall be pointed in a safe direction. Any cleaning, repairing, loading, or unloading of rifles and less-than-lethal shotguns shall be done outside of the patrol vehicle.
- (c) While training at any department range, members shall be governed by all rules and regulations pertaining to the use of the range and shall obey all orders issued by any member of the firearms team. Members shall not dry fire or practice quick draws except as instructed by a member of the firearms team.
- (d) Members shall not place or store any firearm or other weapon on [department/office] premises except where the place of storage is locked. No one shall carry firearms into the jail section or any part thereof when securing or processing an arrestee, but shall place all firearms in a secured location. Members providing access to the jail section to persons from outside agencies are responsible for ensuring firearms are not brought into the jail section.
- (e) Members shall not use any automatic firearm, heavy caliber rifle, gas, or other type of chemical weapon or firearm from the armory, except with approval of a supervisor.
- (f) Any firearm authorized by the [Department/Office] to be carried on- or off-duty that is determined by a member to be malfunctioning or in need of service or repair shall not be carried. It shall be promptly presented to a member of the firearms team for

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inspection and repair. Any firearm deemed in need of repair or service by a member of the firearms team will be immediately removed from service. If the firearm is the member's primary duty firearm, a replacement firearm will be issued to the member until the duty firearm is serviceable.

#### **306.7.1 INSPECTION AND STORAGE**

All firearms used by members while on-duty shall be inspected regularly and upon access or possession by another person. The member shall ensure that the firearm is carried in the proper condition and loaded with approved ammunition. Inspection of a rifle or less-than-lethal shotgun shall be done while standing outside of the patrol vehicle. While being inspected, all firearms shall be pointed in a safe direction or into clearing barrels.

Personally owned firearms may be safely stored in lockers at the end of the shift. Department-owned firearms shall be stored in the appropriate equipment storage room. Handguns may remain loaded if they are secured in an appropriate holster. Shotguns and rifles shall be unloaded in a safe manner outside the building and then stored in the appropriate equipment storage room.

#### **306.7.2 STORAGE AT HOME**

Members shall ensure that all firearms and ammunition are locked and secured while in their homes, vehicles or any other area under their control, and in a manner that will keep them inaccessible to children and others who should not have access. When a department vehicle is parked at a member's residence, if the vehicle is not secured inside a locked garage, all firearms and ammunition shall be removed and properly secured in the residence. Members shall not permit department-issued firearms to be handled by anyone not authorized to do so. Members should be aware that negligent storage of a firearm could result in civil liability.

#### **306.7.3 ALCOHOL AND DRUGS**

Firearms shall not be carried by any member, either on- or off-duty, who has consumed an amount of an alcoholic beverage, taken any drugs or medication, or has taken any combination thereof that would tend to adversely affect the member's senses or judgment.

### **306.8 FIREARMS TRAINING AND QUALIFICATIONS**

All members who carry a firearm while on-duty are required to successfully complete training semi-annually with their duty firearms. In addition to semi-annual training, all members will qualify at least annually with their duty firearms. Members will qualify with off-duty and secondary firearms at least once a year. Training and qualifications must be on an approved range course.

#### **306.8.1 NON-CERTIFICATION OR NON-QUALIFICATION**

If any member fails to meet minimum standards for firearms training or qualification for any reason, including injury, illness, duty status or scheduling conflict, that member shall submit a memorandum to his/her immediate supervisor prior to the end of the required training or qualification period.

Those who fail to meet minimum standards or qualify on their first shooting attempt shall be provided remedial training and will be subject to the following requirements:

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- (a) Additional range assignments may be scheduled to assist the member in demonstrating consistent firearm proficiency.
- (b) Members shall be given credit for a range training or qualification when obtaining a qualifying score or meeting standards after remedial training.
- (c) No range credit will be given for the following:
  - 1. Unauthorized range make-up
  - 2. Failure to meet minimum standards or qualify after remedial training

Members who repeatedly fail to meet minimum standards will be removed from field assignment and may be subject to disciplinary action.

#### 306.8.2 REQUIREMENTS PRIOR TO CARRYING

Before being authorized to carry a firearm, officers shall be issued copies of, and demonstrate understanding of, this policy and the Use of Force Policy.

#### 306.9 FIREARM DISCHARGE

Except during training or recreational use, any member who discharges a firearm intentionally or unintentionally, on- or off-duty, shall make a verbal report to his/her supervisor as soon as circumstances permit. If the discharge results in injury or death to another person, additional statements and reports shall be made in accordance with the Officer-Involved Shootings and Deaths Policy. If a firearm was discharged as a use of force, the involved member shall adhere to the additional reporting requirements set forth in the Use of Force Policy.

In all other cases, written reports shall be made as follows:

- (a) If on-duty at the time of the incident, the member shall file a written report with his/her Division Commander or provide a recorded statement to investigators prior to the end of shift, unless otherwise directed.
- (b) If off-duty at the time of the incident, a written report shall be submitted or a recorded statement provided no later than the end of the next regularly scheduled shift, unless otherwise directed by a supervisor.

#### 306.9.1 DESTRUCTION OF ANIMALS

Members are authorized to use firearms to stop an animal in circumstances where the animal reasonably appears to pose an imminent threat to human safety and alternative methods are not reasonably available or would likely be ineffective.

In circumstances where there is sufficient advance notice that a potentially dangerous animal may be encountered, [department/office] members should develop reasonable contingency plans for dealing with the animal (e.g., fire extinguisher, conducted energy device, oleoresin capsicum (OC) spray, animal control officer). Nothing in this policy shall prohibit any member from shooting a dangerous animal if circumstances reasonably dictate that a contingency plan has failed, becomes impractical, or if the animal reasonably appears to pose an imminent threat to human safety.

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#### **306.9.2 INJURED ANIMALS**

With the approval of a supervisor, a member may euthanize an animal that is so badly injured that human compassion requires its removal from further suffering and where other dispositions are impractical. In the case of a domestic animal, the officer, when practicable, shall obtain consent to the destruction from the owner of the animal prior to destroying it (Utah Code 76-9-305(3)).

#### **306.9.3 WARNING AND OTHER SHOTS**

Generally, shots fired for the purpose of summoning aid are discouraged and may not be discharged unless the member reasonably believes that they appear necessary, effective, and reasonably safe.

Warning shots shall not be used. A warning shot is the discharge of a firearm for the purpose of compelling compliance from the individual, but not intended to cause physical injury.

#### **306.10 FIREARMS TEAM MEMBER DUTIES**

The range will be under the exclusive control of the the firearms team and Chief of Police. All members attending will follow the directions of the the firearms team. The firearms team will maintain a roster of all members attending the range and will submit the roster to the training sergeant after each range date. Failure of any officer to sign in and out with the firearms team may result in non-qualification.

The range shall remain operational and accessible to department members during hours established by the department.

The firearms team has the responsibility of making periodic inspection, at least once a year, of all duty weapons carried by officers of the department to verify proper operation. Members of the firearms team have the authority to deem any privately owned weapon unfit for service. The officer will be responsible for all repairs to his/her personally owned weapon and it will not be returned to service until inspected by the firearms team.

The firearms team has the responsibility for ensuring each member meets the minimum requirements during training shoots and, on at least a yearly basis, can demonstrate proficiency in the care, cleaning and safety of all firearms the member is authorized to carry.

The firearms team shall complete and submit to the Training Officer documentation of the training courses provided. Documentation shall include the qualifications of each instructor who provides the training, a description of the training provided and, on a form that has been approved by the department, a list of each member who completes the training. The firearms team should keep accurate records of all training shoots, qualifications, repairs, maintenance or other records as directed by the Training Officer.

#### **306.11 FLYING WHILE ARMED**

The Transportation Security Administration (TSA) has imposed rules governing law enforcement officers flying armed on commercial aircraft. The following requirements apply to officers who intend to be armed while flying on a commercial air carrier or flights where screening is conducted (49 CFR 1544.219):

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- (a) Officers wishing to fly while armed must be flying in an official capacity, not for vacation or pleasure, and must have a need to have the firearm accessible, as determined by the [Department/Office] based on the law and published TSA rules.
- (b) Officers must carry their American Fork Police Department identification card, bearing the officer's name, a full-face photograph, identification number, the officer's signature, and the signature of the Chief of Police or the official seal of the [Department/Office], and must present this identification to airline officials when requested. The officer should also carry the standard photo identification needed for passenger screening by airline and TSA officials (e.g., driver license, passport).
- (c) The American Fork Police Department must submit a National Law Enforcement Telecommunications System (NLETS) message prior to the officer's travel. If approved, TSA will send the American Fork Police Department an NLETS message containing a unique alphanumeric identifier. The officer must present the message on the day of travel to airport personnel as authorization to travel while armed.
- (d) An official letter signed by the Chief of Police authorizing armed travel may also accompany the officer. The letter should outline the officer's need to fly armed, detail their itinerary, and should include that the officer has completed the mandatory TSA training for a law enforcement officer flying while armed.
- (e) Officers must have completed the mandated TSA security training covering officers flying while armed. The training shall be given by the [department/office]-appointed instructor.
- (f) It is the officer's responsibility to notify the air carrier in advance of the intended armed travel. This notification should be accomplished by early check-in at the carrier's check-in counter.
- (g) Any officer flying while armed should discreetly contact the flight crew prior to take-off and notify them of the officer's assigned seat.
- (h) Discretion must be used to avoid alarming passengers or crew by displaying a firearm. The officer must keep the firearm concealed on their person at all times. Firearms are not permitted in carry-on luggage and may not be stored in an overhead compartment.
- (i) Officers should try to resolve any problems associated with flying armed through the flight captain, ground security manager, TSA representative, or other management representative of the air carrier.
- (j) Officers shall not consume alcoholic beverages while aboard an aircraft, or within eight hours prior to boarding an aircraft.

#### **306.12 CARRYING FIREARMS OUT OF STATE**

Qualified, active, full-time officers of this [department/office] are authorized to carry a concealed firearm in all other states subject to the following conditions (18 USC § 926B):

- (a) The officer shall carry their American Fork Police Department identification card whenever carrying such firearm.
- (b) The officer is not the subject of any current disciplinary action.

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- (c) The officer may not be under the influence of alcohol or any other intoxicating or hallucinatory drug.
- (d) The officer will remain subject to this and all other [department/office] policies (including qualifying and training).

Officers are cautioned that individual states may enact local regulations that permit private persons or entities to prohibit or restrict the possession of concealed firearms on their property, or that prohibit or restrict the possession of firearms on any state or local government property, installation, building, base, or park. Federal authority may not shield an officer from arrest and prosecution in such locally restricted areas.

Active law enforcement officers from other states are subject to all requirements set forth in 18 USC § 926B.

## Vehicle Pursuits

### 307.1 PURPOSE AND SCOPE

Vehicle pursuits expose innocent citizens, law enforcement officers and fleeing violators to the risk of serious injury or death. The primary purpose of this policy is to provide officers with guidance in balancing the safety of the public and themselves against law enforcement's duty to apprehend violators of the law. Another purpose of this policy is to minimize the potential for pursuit-related collisions. Vehicular pursuits require officers to exhibit a high degree of common sense and sound judgment. Officers must not forget that the immediate apprehension of a suspect is generally not more important than the safety of the public and pursuing officers.

Deciding whether to pursue a motor vehicle is a critical decision that must be made quickly and under difficult and unpredictable circumstances. In recognizing the potential risk to public safety created by vehicular pursuits, no officer or supervisor shall be criticized or disciplined for deciding not to engage in a vehicular pursuit because of the risk involved. This includes circumstances where a department policy would permit the initiation or continuation of a pursuit. It is recognized that vehicular pursuit situations are not always predictable and decisions made pursuant to this policy will be evaluated according to the totality of the circumstances reasonably available at the time of the pursuit.

Officers must remember that the most important factors in the successful conclusion of a pursuit are proper self-discipline and sound professional judgment. Officers' conduct during the course of a pursuit must be objectively reasonable, i.e. what a reasonable officer would do under the circumstances. An unreasonable individual's desire to apprehend a fleeing suspect at all costs has no place in professional law enforcement.

#### 307.1.1 DEFINITIONS

Definitions related to this policy include (UAC R728-503-2):

**Blocking or vehicle intercept** - A slow-speed coordinated maneuver where two or more patrol vehicles simultaneously intercept and block the movement of a suspect vehicle, the driver of which may be unaware of the impending enforcement stop, with the goal of containment and preventing a pursuit. Blocking is not a moving or stationary roadblock.

**Boxing-in** - A tactic designed to stop a violator's vehicle by surrounding it with law enforcement vehicles and then slowing all vehicles to a stop.

**Channelization** - A technique similar to a roadblock, where objects are placed in the anticipated (or actual) path of a pursued vehicle with the intent of altering the vehicle's direction of travel.

**Paralleling** - Participating in the pursuit by proceeding in the same direction and maintaining approximately the same speed while traveling on an alternate street or highway that parallels the pursuit route.

**Pursuit intervention** - An attempt to terminate the ability of a suspect to continue to flee in a motor vehicle through tactical application of technology, road spikes, blocking, boxing, PIT

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(Pursuit Intervention Technique), ramming or roadblock procedures. In this context, ramming shall be construed to mean maneuvering the police vehicle into contact with the pursued vehicle to mechanically disable or forcibly position it such that further flight is not possible or practical.

**Pursuit Intervention Technique (PIT)** - A low-speed maneuver designed to cause the suspect vehicle to spin out and terminate the pursuit.

**Ramming** - When deadly force is warranted the deliberate act of impacting a violator's vehicle with another vehicle to functionally damage or otherwise force the violator's vehicle to stop.

**Roadblocks** - When deadly force is warranted, establishing a physical impediment to traffic as a means of stopping a vehicle using actual physical obstructions or barricades.

**Tire deflating device** - Tire-deflating spikes utilized to deflate the suspect vehicle's tires.

**Trailing** - Following the path of the pursuit at a safe speed while obeying all traffic laws and without activating emergency equipment.

**Vehicle pursuit** - An active attempt by an officer in an authorized emergency vehicle to apprehend fleeing suspects who are attempting to avoid apprehension through evasive and unlawful tactics.

### **307.2 OFFICER RESPONSIBILITIES**

It shall be the policy of the department that a vehicle pursuit shall be conducted only with emergency lights and siren as required by Utah Code 41-6a-212 for exemption from compliance with the rules of the road. The following policy is established to provide officers with guidelines for driving with due regard and caution for the safety of all persons using the highway as required by Utah Code 41-6a-212.

#### **307.2.1 WHEN TO INITIATE A PURSUIT**

- (a) Officers in a department vehicle with operable emergency vehicle equipment and radio may initiate a vehicular pursuit when the following criteria are met (UAC R728-503-4):
  - 1. The suspect exhibits the intention to avoid apprehension through evasive or unlawful tactics.
  - 2. The suspect operating the vehicle refuses to stop at the direction of the officer.
  - 3. The suspect's actions are such that failure to pursue would further enhance the danger presented to the public.
- (b) Department vehicles that do not possess operable emergency vehicle equipment and an operable police radio will not be involved in a pursuit. Factors that individually and collectively shall be considered in deciding whether to initiate or continue a pursuit are (UAC R728-503-4):
  - 1. The performance capabilities of the pursuit vehicle.
  - 2. The condition of the road surface upon which the pursuit is being conducted.
  - 3. The amount of vehicular and pedestrian traffic in the area.
  - 4. The weather conditions.



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5. The offense for which the subject will be pursued.
6. Any potential or existing hazards.
7. Familiarity with the area and road.
8. Any other pertinent factors.

#### 307.2.2 WHEN TO TERMINATE A PURSUIT

Pursuits should be discontinued whenever the totality of objective circumstances known or which reasonably ought to be known to the officer or supervisor during the pursuit indicates that the present risks of continuing the pursuit reasonably appear to outweigh the risks resulting from the suspect's escape.

The factors listed above are expressly included herein and will apply equally to the decision to discontinue as well as the decision to initiate a pursuit. Officers and supervisors must objectively and continuously weigh the seriousness of the offense against the potential danger to innocent motorists and themselves when electing to continue a pursuit. In the context of this policy, the term "terminate" shall be construed to mean discontinue or to stop chasing the fleeing vehicles.

In addition to the factors, listed above the following factors should also be considered in deciding whether to terminate a pursuit (UAC R728-503-9):

- (a) Distance between the pursuing officers and the fleeing vehicle is so great that further pursuit would be futile or require the pursuit to continue for an unreasonable time and/or distance.
- (b) Pursued vehicle's location is no longer definitely known.
- (c) Officer's pursuit vehicle sustains any type of damage that renders it unsafe to drive.
- (d) The danger posed by the continued pursuit to the public, the officers or the suspect is greater than the value of apprehending the suspect.
- (e) Weather or traffic conditions substantially increase the danger of the pursuit beyond the benefit of apprehending the suspect.
- (f) If the identity of the offender is known and it does not reasonably appear that the need for immediate capture outweighs the risks associated with continuing the pursuit, officers should strongly consider discontinuing the pursuit and apprehending the offender at a later time.
- (g) The pursuit is terminated by a supervisor.
- (h) The officer is unfamiliar with the area and is unable to accurately notify dispatch of the location and direction of the pursuit.
- (i) The violator is driving the wrong way on a limited access highway or one-way road.
- (j) Air support is available to track the suspect.

Pursuits will terminate at the state line, unless exigent circumstances exist.

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When an officer terminates a pursuit, the officer shall turn off the siren and emergency lights, pull the vehicle to the side of the road and stop. The officer shall advise dispatch the pursuit is terminated and obtain a time check when the notification was made.

#### **307.2.3 SPEED LIMITS**

The speed of a pursuit is a factor that should be evaluated on a continuing basis by the officer and supervisor. Evaluation of vehicle speeds shall take into consideration public safety, officer safety and the safety of the occupants of the fleeing vehicle.

Should high vehicle speeds be reached during a pursuit, officers and supervisors shall also consider these factors when determining the reasonableness of the speed of the pursuit:

- (a) Pursuit speeds have become unsafe for the surrounding conditions.
- (b) Pursuit speeds have exceeded the driving ability of the officer.
- (c) Pursuit speeds are beyond the capabilities of the pursuit vehicle thus making its operation unsafe.

#### **307.3 PURSUIT UNITS**

Pursuit units should be limited to two vehicles and, if warranted under the circumstances, a supervisor. However, the number of units involved will vary with the circumstances (UAC R728-503-5). An officer or supervisor may request additional units to join a pursuit if, after assessing the factors outlined above, it appears that the number of officers involved would be insufficient to safely arrest the suspects. All other officers should stay out of the pursuit, but should remain alert to its progress and location. Any officer who drops out of a pursuit may then, if necessary, proceed to the termination point at legal speeds, following the appropriate rules of the road.

##### **307.3.1 MOTORCYCLE OFFICERS**

A distinctively marked patrol vehicle equipped with emergency overhead lighting should replace a police motorcycle as primary and/or secondary pursuit vehicle as soon as practicable.

##### **307.3.2 VEHICLES WITHOUT EMERGENCY EQUIPMENT**

- (a) Vehicles without emergency equipment are generally prohibited from becoming involved in a pursuit.
- (b) All unmarked units will relinquish the primary or secondary role in a pursuit to a marked vehicle as soon as practicable (UAC R728-503-7).

##### **307.3.3 PRIMARY UNIT RESPONSIBILITIES**

The initial pursuing vehicle will be designated as the primary pursuit vehicle and will be responsible for the conduct of the pursuit unless it is unable to remain reasonably close enough to the violator's vehicle. The primary responsibility of the officer initiating the pursuit is the apprehension of the suspect(s) without unreasonable danger to themselves or other persons (UAC R728-503-7).

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The pursuing officer shall activate headlights and all emergency equipment upon initiating a pursuit.

The pursuing officer shall immediately notify Dispatch that a vehicle pursuit has been initiated. Use of plain English transmissions is encouraged, rather than using the 10-code. As soon as practicable the officer shall provide Dispatch information including, but not limited to:

- (a) Unit identification.
- (b) Location, speed and direction of travel of the fleeing vehicle.
- (c) Description of the fleeing vehicle and license number, if known.
- (d) Number of known occupants.
- (e) The identity or description of the known occupants.
- (f) Reason for initiating the pursuit.
- (g) Information concerning the use of firearms, threat of force, injuries, hostages or other unusual hazards.

Unless relieved by a supervisor or secondary vehicle, the officer in the primary vehicle shall be responsible for the broadcasting of the progress of the pursuit. Unless practical circumstances indicate otherwise, and in order to concentrate on pursuit driving, the primary officer should relinquish the responsibility of broadcasting the progress of the pursuit to a secondary vehicle or aircraft joining the pursuit as soon as practical.

#### 307.3.4 SECONDARY UNIT RESPONSIBILITIES

The second officer in the pursuit is responsible for the following:

- (a) The officer in the secondary vehicle should immediately notify the dispatcher of entry into the pursuit.
- (b) Remain a safe distance behind the primary vehicle unless directed to assume the role of primary officer, or if the primary vehicle is unable to continue the pursuit.
- (c) The secondary officer should be responsible for broadcasting the progress of the pursuit unless the situation indicates otherwise.

#### 307.3.5 PURSUIT DRIVING TACTICS

The decision to use specific driving tactics requires the same assessment of considerations outlined in the factors to be considered concerning pursuit initiation and termination. The following are tactics for units involved in the pursuit:

- (a) Officers, considering their driving skills and vehicle performance capabilities, will space themselves from other involved vehicles so they are able to see and avoid hazards or react safely to maneuvers by the fleeing vehicle.
- (b) Because intersections can present increased risks, the following tactics should be considered:

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1. Available units not directly involved in the pursuit may proceed safely to controlled intersections ahead of the pursuit in an effort to warn cross traffic.
  2. Pursuing units should exercise due caution when proceeding through controlled intersections.
- (c) Officers should generally not pursue a vehicle that is driving left of center (wrong way) on a roadway.
- (d) Officers shall notify the Utah Highway Patrol and/or other jurisdictional agency if it appears that the pursuit may enter their jurisdiction.
- (e) Officers involved in a pursuit should not attempt to pass other units unless the situation indicates otherwise or they are requested to do so by the primary vehicle or a supervisor.

#### 307.3.6 TACTICS/PROCEDURES FOR UNITS NOT INVOLVED IN THE PURSUIT

There shall be no paralleling of the pursuit route (UAC R728-503-7). Officers are authorized to use emergency equipment at intersections along the pursuit path to clear intersections of vehicular and pedestrian traffic to protect the public. Officers should remain in their assigned area and should not become involved with the pursuit unless directed otherwise by a supervisor.

Non-pursuing personnel needed at the termination of the pursuit should respond in a non-emergency manner, observing the rules of the road.

The primary and secondary units should be the only units operating under emergency conditions (emergency lights and siren) unless other units are assigned to the pursuit.

#### 307.3.7 PURSUIT TRAILING

In the event the initiating vehicle from this agency either relinquishes control of the pursuit to another vehicle or jurisdiction, that initiating vehicle may, with permission of supervisor, trail the pursuit to the termination point in order to provide necessary information and assistance for the arrest of the suspects.

If the pursuit is at a slow rate of speed, the trailing vehicle will maintain sufficient distance from the pursuit units so as to clearly indicate an absence of participation in the pursuit.

#### 307.3.8 AIRCRAFT ASSISTANCE

When available, aircraft assistance should be requested. Once the air vehicle has established visual contact with the pursued vehicle, it should assume control over the pursuit. The primary and secondary ground units should consider the participation of aircraft assistance when determining whether to continue the pursuit.

The air vehicle should coordinate the activities of resources on the ground, report progress of the pursuit and provide officers and supervisors with details of upcoming traffic congestion, road hazards, or other pertinent information to evaluate whether or not to continue the pursuit. If ground units are not within visual contact and the air unit determines that it is unsafe to continue the pursuit, the air unit has the authority to terminate the pursuit.

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#### **307.4 SUPERVISORY CONTROL AND RESPONSIBILITY**

Available supervisory and management control will be exercised over all vehicle pursuits involving officers from this department. When reasonably possible, the supervisor shall not actually be engaged in the pursuit itself (UAC R728-503-6).

After being notified of a pursuit, a supervisor shall:

- (a) Ensure proper radio channels and procedures are in use.
- (b) Ensure tactics are in conformance with any policy of the department.
- (c) Ensure only the necessary numbers of units are involved.
- (d) Ensure allied agencies are notified.
- (e) Consider aborting the pursuit if cause exists.
- (f) Consider air support availability and practicality.
- (g) Ensure post-incident notifications.
- (h) Ensure that proper written reports are completed and forwarded to the Division Commander (UAC R728-503-6).

The supervisor should proceed to the termination point of the pursuit and provide appropriate assistance and supervision at the scene, when practicable.

##### **307.4.1 SHIFT SUPERVISOR RESPONSIBILITY**

Upon becoming aware that a pursuit has been initiated, the Shift Supervisor should monitor and continually assess the situation and ensure the pursuit is conducted within the guidelines and requirements of this policy. The Shift Supervisor has the final responsibility for the coordination, control and termination of a vehicle pursuit and shall be in overall command.

The Shift Supervisor shall review all pertinent reports for content and forward to the Division Commander.

#### **307.5 COMMUNICATIONS**

If the pursuit is confined within the City limits, radio communications will be conducted on the primary channel unless instructed otherwise by a supervisor. If the pursuit leaves the jurisdiction of the department or such is imminent, involved units should, whenever available, switch radio communications to an emergency channel that is most accessible by participating agencies and units.

##### **307.5.1 COMMUNICATIONS CENTER RESPONSIBILITIES**

Upon notification that a pursuit has been initiated, Dispatch shall immediately advise a field supervisor of essential information regarding the pursuit (UAC R728-503-5).

Communications personnel also shall:

- (a) Receive and record all incoming information on the pursuit and the pursued vehicle.

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- (b) Control all radio communications and clear the radio channels of all non-emergency calls.
- (c) Perform relevant record and motor vehicle checks.
- (d) Coordinate and dispatch back-up assistance and air support units under the direction of the field supervisor.
- (e) Notify concurrent and neighboring jurisdictions, where practicable, when the pursuit may extend into their location.
- (f) If the pursuit enters a bordering state, that jurisdiction should be notified.

#### 307.5.2 LOSS OF PURSUED VEHICLE

When the pursued vehicle is lost, the primary vehicle should broadcast pertinent information to assist other units in locating suspects. The primary vehicle will be responsible for coordinating any further search for either the pursued vehicle or suspects fleeing on foot.

#### 307.6 INTER-JURISDICTIONAL CONSIDERATIONS

The primary unit shall notify communications when it is likely that a pursuit will continue into a neighboring jurisdiction or across the county or state line (UAC R728-503-8). When a pursuit enters another agency's jurisdiction, the primary officer or supervisor, taking into consideration distance traveled, unfamiliarity with the area, and other pertinent facts, should determine whether or not to request the other agency to assume the pursuit. Unless entry into another jurisdiction is expected to be brief, it is generally recommended that the primary officer or supervisor ensure that notification is provided to each outside jurisdiction into which the pursuit is reasonably expected to enter, regardless of whether or not such jurisdiction is expected to assist.

##### 307.6.1 ASSUMPTION OF PURSUIT BY ANOTHER AGENCY

Units originally involved will discontinue the pursuit when advised that another agency has assumed the pursuit and assistance of the American Fork Police Department is no longer needed. Upon discontinuing the pursuit, the primary vehicle may proceed upon request, with or at the direction of a supervisor, to the termination point to assist in the investigation.

The role and responsibilities of officers at the termination of a pursuit initiated by this department shall be coordinated with appropriate consideration of the units from the agency assuming the pursuit.

Notification of a pursuit in progress should not be construed as a request to join the pursuit. Requests to or from another agency to assume a pursuit should be specific.

##### 307.6.2 PURSUITS EXTENDING INTO THIS JURISDICTION

The agency that initiates a pursuit shall be responsible for conducting the pursuit. Units from this department should not join a pursuit unless specifically requested to do so by the agency whose officers are in pursuit. The exception to this is when a single vehicle from the initiating agency

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is in pursuit. Under this circumstance, a vehicle from this department may join the pursuit until sufficient units from the initiating agency join the pursuit.

When a request is made for this department to assist or take over a pursuit from another agency that has entered this jurisdiction, the supervisor should consider:

- (a) The department's ability to maintain the pursuit.
- (b) Whether the circumstances are serious enough to continue the pursuit.
- (c) Whether there is adequate staffing to continue the pursuit.
- (d) The public's safety within this jurisdiction.
- (e) The safety of the pursuing officers.

As soon as practicable, a supervisor or the Shift Supervisor should review a request for assistance from another agency. The Shift Supervisor, after consideration of the above factors, may decline to assist in, or assume the other agency's pursuit.

Assistance to a pursuing allied agency by officers of the department will terminate at the City limits provided that the pursuing officers have sufficient assistance from other sources. Ongoing participation from this department may continue only until sufficient assistance is present.

In the event that a pursuit from another agency terminates within this jurisdiction, officers shall provide appropriate assistance to officers from the allied agency including, but not limited to, scene control, coordination and completion of supplemental reports and any other assistance requested or needed.

### **307.7 PURSUIT INTERVENTION**

Intervention techniques shall be used only when the officer reasonably believes it is possible to do so safely and when the law enforcement officers using them have received training in their use (UAC R728-503-7). Use of pursuit intervention tactics should be employed only after approval of a supervisor. In deciding whether to use intervention tactics, officers/supervisors should balance the risks of allowing the pursuit to continue with the potential hazards arising from the use of each tactic to the public, the officers and persons in or on the pursued vehicle. With these risks in mind, the decision to use any intervention tactic should be reasonable in light of the circumstances confronting the officer at the time of the decision.

#### **307.7.1 INTERVENTION STANDARDS**

Any pursuit intervention tactic, depending upon the conditions and circumstances under which it is used, may present dangers to the officers, the public, or anyone in or on the vehicle being pursued. Certain applications of intervention tactics may be construed to be a use of deadly force and subject to the requirements for such use. Officers who have not received department-approved training in the application and use of any intervention tactic or equipment shall consider these facts and requirements prior to deciding how, when, where, and if an intervention tactic should be employed.

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- (a) Channelization may be used to redirect or stop a pursued vehicle. The selection of the best method and area in each circumstance should be preceded by an evaluation of all factors surrounding the individual pursuit. The methods used should offer the greatest probability of success with the least likelihood of injury to the general public, the officer and the suspect.
  - 1. Officers may deliberately direct a vehicle into a given path or location (i.e., unpaved roadway, dead end road, away from populated areas or intersections) by using stationary objects (pylons, barricades, vehicles) placed in the current path of the pursued vehicle. This method also may be used to direct a pursued vehicle toward and across a hollow spike strip.
  - 2. Channelization is considered a forcible stop technique, but does not require the justification of deadly force.
- (b) The Pursuit Intervention Technique (PIT) is a forced rotational non-compliant vehicle stop. This technique should not be used if speeds exceed 45 mph, if any of the vehicle tires have been blown or flattened, or if the vehicle has had its tires damaged by a tire deflating device, unless deadly force is justified.
  - 1. This technique should only be used when all other reasonable means of apprehension have been considered and rejected as impractical, e.g., air support, allied agency assistance, tire deflating devices or boxing-in; when the apparent risk of harm to other than the occupants of the pursued vehicle is so great as to outweigh the risk of harm in making the forcible stop; when the pursuing officer believes that the continued movement of the pursued vehicle would place others in danger of great bodily harm or death.
  - 2. Officers should use care and caution in selecting the location where the stop is to be made, so that any resulting danger can be minimized as much as possible.
- (c) Ramming a fleeing vehicle should be done only after other reasonable tactical means at the officers' disposal have been exhausted. This tactic should be reserved for situations where there does not appear to be another reasonable alternative method. This policy is an administrative guide to direct officers in their decision-making process before ramming another vehicle. When ramming is used as a means to stop a fleeing vehicle, the following factors should be present:
  - 1. The suspect is an actual or suspected felon, who reasonably appears to represent a serious threat to the public if not apprehended.
  - 2. The suspect is driving with willful or wanton disregard for the safety of other persons or is driving in a reckless and life-endangering manner. If there does not reasonably appear to be a present or immediately foreseeable serious threat to the public, the use of ramming is not authorized.



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- (d) The use of boxing-in as a technique for terminating pursuits is discouraged. Under ordinary circumstances, the potential hazard outweighs the probability of a successful stop of a violator. Therefore, this technique should only be used at slow speeds or where the obvious risks can be eliminated or appreciably reduced.
  - 1. Boxing-in shall not be used at high speeds or in those circumstances where the pursued subject has demonstrated a willingness to assault an officer either with the vehicle or some other means, i.e., a firearm.
  - 2. Boxing-in shall not be used when it is necessary to use citizens to effect the maneuver.
- (e) The use of tire deflating devices should be approved in advance by a supervisor and deployed only when it is reasonably certain that only the pursued vehicle will be affected by their use. Officers should carefully consider the limitations of such devices as well as the potential risks to officers, the public and occupants of the pursued vehicle. If the pursued vehicle is a motorcycle (consider if deadly force is justified), a vehicle transporting hazardous materials, or a school bus transporting children, officers and supervisors should weigh the potential consequences against the need to immediately stop the vehicle.
- (f) Roadblocks are prohibited unless the circumstances would warrant the use of deadly force. Roadblocks should only be established with a supervisor's approval. If a roadblock is established officers must:
  - 1. Allow the suspect vehicle reasonable stopping distance.
  - 2. Not place themselves or their vehicle in a position that would jeopardize the safety of the officers involved.
  - 3. Not place vehicles in a position that is not reasonably visible to the suspect.
  - 4. Reasonably ensure the safety of uninvolved pedestrians and motorists.

#### 307.7.2 USE OF FIREARMS

An officer's discharge of a firearm at or from a moving vehicle shall follow this department's Use of Force Policy. An officer's decision to discharge a firearm at or from a moving vehicle shall first be authorized, when reasonably possible, by a supervisor (UAC R728-503-7).

#### 307.7.3 CAPTURE OF SUSPECTS

Proper self-discipline and sound professional judgment are the keys to a successful conclusion of a pursuit and apprehension of evading suspects. Officers shall use only that amount of force which reasonably appears necessary under the circumstances to properly perform their lawful duties.

Unless relieved by a supervisor, the primary officer should coordinate efforts to apprehend the suspects following the pursuit. Officers should consider safety of the public and the involved officers when formulating plans to contain and capture the suspect.

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#### **307.8 REPORTING AND REVIEW REQUIREMENTS**

The primary officer shall complete the appropriate crime/arrest reports. A pursuit report should minimally contain:

- (a) Whether any person involved in the pursuit or subsequent arrest was injured, specifying the nature of that injury and differentiating between the suspect driver, a suspect passenger and the officers involved.
- (b) The violation that caused the pursuit to be initiated.
- (c) The identity of the officers involved in the pursuit.
- (d) The means or methods used to stop the suspect being pursued.
- (e) The charges filed with the court by the prosecuting attorney.
- (f) The conditions of the pursuit, including, but not limited to, all of the following:
  - 1. Duration
  - 2. Mileage
  - 3. Number of officers involved
  - 4. Maximum number of units involved
  - 5. Time of day
  - 6. Weather conditions
  - 7. Maximum speeds
- (g) Whether the pursuit resulted in a collision and a resulting injury or fatality to an uninvolved third party, and the corresponding number of persons involved.
- (h) Whether the pursuit involved multiple agencies.
- (i) How the pursuit was terminated.
- (j) After first obtaining available information, the supervisor shall promptly complete a supervisor's report, briefly summarizing the pursuit, to command staff. This memo should minimally contain the following information:
  - 1. Date and time of pursuit
  - 2. Length of pursuit
  - 3. Involved units and officers
  - 4. Initial reason for pursuit
  - 5. Starting and termination points
  - 6. Disposition: arrest, citation, arrestee information if applicable
  - 7. Injuries and/or property damage
  - 8. Medical treatment
  - 9. Name of supervisor at scene

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10. A preliminary determination that the pursuit appears to be in compliance with this policy or additional review and/or follow-up is warranted.

#### **307.8.1 REGULAR AND PERIODIC PURSUIT TRAINING**

Officers shall not engage in a pursuit until they have successfully completed the department-sponsored Emergency Vehicle Operations (EVO) course. Officers shall also be required to attend an annual course that specifically covers any policy adopted by the department regarding pursuits (UAC R728-503-10).

All department officers shall retain a current copy of the pursuit policy and shall refer to it as a basis for initiation, continuation, and termination of a pursuit (Utah Code 41-6a-212).

#### **307.8.2 POLICY REVIEW**

Each sworn employee of the department shall certify in writing that he/she has received, read and understands this policy initially and upon any amendments.

#### **307.8.3 MANDATORY COUNSELING**

Any officer involved in a pursuit resulting in death or serious bodily injury to any person is required to attend a timely critical incident debriefing arranged by the department.

The department will also schedule a professional psychological counseling session for any officer directly involved in a pursuit resulting in death or serious bodily injury to any person. Attendance by the involved officer at this counseling session is mandatory.

### **307.9 VEHICLE PURSUIT REVIEW BOARD**

All vehicle pursuit incidents shall be reviewed within 21 days of their occurrence by the Vehicle Pursuit Review Board. The Board shall be made up, at a minimum, of an EVO Instructor, a member of Command Staff, and a Line Officer, and any other Department members indicated by the Chief of Police. The Board shall determine, at a minimum, whether the conduct of the member involved in the vehicle pursuit complied with policy, shall document their review and recommendations in the appropriate form(s), and shall promptly forward all completed forms to the Division Commander for review.

The Division Commander and Chief of Police shall review all completed vehicle pursuit review forms, and the Chief of Police shall make a final determination as to whether the member involved in the pursuit complied with Department policy. The Chief of Police shall appropriately document this determination, and appropriately remedy, through agency administrative action, any violation of the agency's policies (Utah Code 41-6a-212).

### **307.10 APPLICATION OF VEHICLE PURSUIT POLICY**

This policy is expressly written and adopted pursuant to the provisions of Utah Code 41-6a-212. It incorporates the guidelines developed pursuant to Utah Code 41-6a-212 and established in UAC R728-503.

## Officer Response to Calls

### 308.1 PURPOSE AND SCOPE

This policy provides for the safe and appropriate response to routine, urgent, and emergency situations whether dispatched or self-initiated.

### 308.2 RESPONSE TO CALLS

All calls will be prioritized at the direction of the on-duty shift supervisor (or in the absence of a shift supervisor, the most senior officer) according to call urgency and severity.

It will be the decision of the officer or the duty supervisor to decide if the officer's response to a call should be with emergency lights and siren. If it is determined that the officer will respond with emergency lights and siren, the officer shall advise Dispatch that he or she will be responding with emergency lights and siren. Officers responding with emergency lights and siren shall continuously operate emergency lighting equipment and shall sound the siren as reasonably necessary until they have reached their destination and stopped or until their emergency response has otherwise terminated (Utah Code 41-6a-212).

Responding with emergency lights and siren does not relieve the officer operating an authorized emergency vehicle of the duty to act as a reasonably prudent emergency vehicle operator in like circumstances. The use of any other warning equipment without emergency lights and siren does not provide any privilege under the law.

Officers responding to assist shall declare via the radio if they are responding Code-3. If they are not responding Code-3 they shall observe all traffic laws and proceed without the use of emergency lights and siren.

### 308.3 REQUESTING EMERGENCY ASSISTANCE

Requests for emergency assistance should be limited to those situations where the involved personnel reasonably believe that there is an immediate threat to the safety of officers, or assistance is needed to prevent imminent serious harm to a citizen. In any event, where a situation has stabilized and emergency response is not required, the requesting officer shall immediately notify Dispatch.

If circumstances permit, the requesting officer should give the following information:

- The vehicle number
- The location
- The reason for the request and type of emergency
- The number of units required

### 308.4 REQUESTING BACKUP

Officers should request backup any time they feel it is necessary.

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Circumstances that may generally prompt a call for backup include, but are not limited to: a) any time an officer's safety is threatened b) situations that require or may require a use of force, c) any time a physical detention or arrest is to be made d) any time an officer is dealing with a subject that exhibits or threatens violence or noncompliance, e) situations where the officer is dealing with known or suspected gang members, f) any time the officer is dealing with a subject suspected to be hostile to law enforcement, g) any traffic stop that turns into an investigation of something more than a traffic violation.

#### **308.5 NUMBER OF UNITS ASSIGNED**

Normally, only the number of vehicles reasonably necessary to handle the demands of the call or contact should respond. Officers should use their best judgment to avoid deploying an excessive number of units to a call when their presence is not warranted. The Shift Supervisor may authorize additional units or direct resources as needed.

#### **308.6 INITIATING CODE 3 RESPONSE**

If an officer believes a Code-3 response to any call is appropriate, the officer shall immediately notify Dispatch. Generally, only one vehicle should respond Code-3 to any situation. Should another officer believe a Code-3 response is appropriate, Dispatch shall be notified and the Shift Sergeant or field supervisor will make a determination as to whether one or more officers driving Code-3 is appropriate.

#### **308.7 RESPONSIBILITIES OF RESPONDING OFFICERS**

Officers shall exercise sound judgment and care with due regard for life and property when responding to an emergency call. Officers shall reduce speed at all street intersections to such a degree that they shall have complete control of the vehicle.

The decision to continue a Code-3 response is at the discretion of the officer. If, in the officer's judgment, the roadway conditions or traffic congestion does not permit such a response without unreasonable risk, the officer may elect to respond to the call without the use of emergency lights and siren at the legal speed limit. In such an event, the officer should immediately notify Dispatch. An officer shall also discontinue the Code-3 response when directed by a supervisor.

Upon receiving authorization or determining a Code-3 response is appropriate, an officer shall immediately give the location from which he/she is responding.

#### **308.8 SUPERVISORY RESPONSIBILITIES**

Upon being notified that a Code-3 response has been initiated, the Shift Supervisor or the field supervisor shall verify the following:

- (a) The proper response has been initiated.
- (b) No more than those units reasonably necessary under the circumstances are involved in the response.
- (c) Affected outside jurisdictions are being notified as practical.

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The field supervisor shall monitor the response until it has been stabilized or terminated and assert control by directing units into or out of the response if necessary. If, in the supervisor's judgment, the circumstances require additional units to be assigned a Code-3 response, the supervisor may do so.

It is the supervisor's responsibility to terminate a Code-3 response that, in his/her judgment is inappropriate due to the circumstances.

When making the decision to authorize a Code-3 response, the Shift Supervisor or the field supervisor should consider the following:

- The type of call
- The necessity of a timely response
- Traffic and roadway conditions
- The location of the responding units

#### **308.9 FAILURE OF EMERGENCY EQUIPMENT**

If the emergency equipment on the vehicle should fail to operate, the officer must terminate the Code-3 response and respond accordingly. In all cases, the officer shall notify the Shift Supervisor, field supervisor, or Dispatch of the equipment failure so that another vehicle may be assigned to the emergency response.

# Canines

## **309.1 PURPOSE AND SCOPE**

This policy establishes guidelines for the use of canines to augment law enforcement services in the community, including but not limited to locating individuals and contraband and apprehending criminal offenders.

## **309.2 POLICY**

It is the policy of the American Fork Police Department that teams of handlers and canines meet and maintain the appropriate proficiency to effectively and reasonably carry out legitimate law enforcement objectives.

## **309.3 ASSIGNMENT**

Canine teams should be assigned to supplement the Patrol Division as per the schedule unless directed otherwise by a supervisor.

## **309.4 CANINE COORDINATOR**

The canine coordinator shall be the Patrol Division Commander or the authorized designee.

The responsibilities of the coordinator include, but are not limited to:

- (a) Reviewing all canine use reports to ensure compliance with policy and to identify training issues and other needs of the program.
- (b) Maintaining a liaison with the vendor kennel.
- (c) Maintaining a liaison with command staff and functional supervisors.
- (d) Maintaining a liaison with other agency canine coordinators.
- (e) Maintaining accurate records to document canine activities.
- (f) Recommending and overseeing the procurement of equipment and services for the teams of handlers and canines.
- (g) Scheduling all canine-related activities.
- (h) Ensuring the canine teams are scheduled for regular training to maximize their capabilities.

## **309.5 REQUESTS FOR CANINE TEAMS**

Patrol Division members are encouraged to request the use of a canine. Requests for a canine team from [department/office] units outside of the Patrol Division shall be reviewed by the shift supervisor.

### **309.5.1 OUTSIDE AGENCY REQUEST**

All requests for canine assistance from outside agencies must be approved by the Shift Supervisor and are subject to the following:

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- (a) Canine teams shall not be used for any assignment that is not consistent with this policy.
- (b) The canine handler shall have the authority to decline a request for any specific assignment that he/she deems unsuitable.
- (c) Calling out off-duty canine teams is discouraged.
- (d) It shall be the responsibility of the canine handler to coordinate operations with agency personnel in order to minimize the risk of unintended injury.
- (e) It shall be the responsibility of the canine handler to complete all necessary reports or as directed.

#### 309.5.2 PUBLIC DEMONSTRATIONS

All public requests for a canine team shall be reviewed and, if appropriate, approved by the canine coordinator prior to making any resource commitment. The canine coordinator is responsible for obtaining resources and coordinating involvement in the demonstration to include proper safety protocols. Canine handlers shall not demonstrate any apprehension work unless authorized to do so by the canine coordinator.

#### 309.6 APPREHENSION GUIDELINES

A canine may be used to locate and apprehend a suspect if the canine handler reasonably believes that the individual has committed, is committing, or is threatening to commit any serious offense and if any of the following conditions exist (UAC R728-507-9):

- (a) There is a reasonable belief the suspect poses an imminent threat of violence or serious harm to the public, any officer, or the handler.
- (b) The suspect is physically resisting or threatening to resist arrest and the use of a canine reasonably appears to be necessary to overcome such resistance.
- (c) The suspect is believed to be concealed in an area where entry by other than the canine would pose a threat to the safety of officers or the public.

It is recognized that situations may arise that do not fall within the provisions set forth in this policy. Such events require consideration of the totality of the circumstances and the use of an objective reasonableness standard applied to the decision to use a canine.

Absent a reasonable belief that a suspect has committed, is committing, or is threatening to commit a serious offense, mere flight from a pursuing officer, without any of the above conditions, shall not serve as the basis for the use of a canine to apprehend a suspect.

Use of a canine to locate and apprehend a suspect wanted for a lesser criminal offense than those identified above requires approval from the Shift Sergeant. Absent a change in circumstances that presents an imminent threat to officers, the canine, or the public, such canine use should be conducted on-leash or under conditions that minimize the likelihood the canine will bite or otherwise injure the individual.



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In all applications, once the suspect has been located and no longer reasonably appears to present a threat or risk of escape, the handler should secure the canine as soon as it becomes reasonably practicable.

If the canine has apprehended the suspect with a secure bite, and the handler believes that the suspect no longer poses a threat, the handler should promptly command the canine to release the suspect.

#### 309.6.1 PREPARATION FOR DEPLOYMENT

Prior to the use of a canine to search for or apprehend any suspect, the canine handler and/or the supervisor on-scene should carefully consider all pertinent information reasonably available at the time. The information should include but is not limited to (UAC R728-507-9):

- (a) The nature and seriousness of the suspected offense.
- (b) Whether violence or weapons were used or are anticipated.
- (c) The degree of resistance or threatened resistance, if any, the suspect has shown.
- (d) The suspect's known or perceived age.
  - 1. A canine shall not be deployed in instances involving a known juvenile suspect unless the juvenile poses an imminent threat of serious bodily injury or death to the officer or another person.
- (e) The potential for injury to officers or the public caused by the suspect if the canine is not utilized.
- (f) Any potential danger to the public and/or other officers at the scene if the canine is released.
- (g) The potential for the suspect to escape or flee if the canine is not utilized.

As circumstances permit, the canine handler should make every reasonable effort to communicate and coordinate with other involved members to minimize the risk of unintended injury.

It is the canine handler's responsibility to evaluate each situation and determine whether the use of a canine is appropriate and reasonable. The canine handler shall have the authority to decline the use of the canine whenever the handler deems deployment is unsuitable.

A supervisor who is sufficiently apprised of the situation may prohibit deploying the canine.

Unless otherwise directed by a supervisor, assisting members should take direction from the handler in order to minimize interference with the canine.

#### 309.6.2 WARNINGS AND ANNOUNCEMENTS

Unless it would increase the risk of injury or escape, a clearly audible warning announcing that a canine will be used if the suspect does not surrender should be made prior to releasing a canine. The handler should allow a reasonable time for a suspect to surrender and should quiet the canine momentarily to listen for any verbal response to the warning. If feasible, other members should

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be in a location opposite the warning to verify that the announcement could be heard. If available, warnings given in other languages should be used as necessary.

If a warning is not to be given, the canine handler, when practicable, should first advise the supervisor of his/her decision before releasing the canine. In the event of an apprehension, the handler shall document in any related report how the warning was given and, if none was given, the reasons why.

#### **309.6.3 REPORTING DEPLOYMENTS, BITES, AND INJURIES**

Handlers should document canine deployments in a canine use report. Whenever a canine deployment results in a bite or causes injury to an intended suspect, a supervisor should be promptly notified and the injuries documented in the canine use report. The injured person shall be promptly treated by Emergency Medical Services personnel and, if appropriate, transported to an appropriate medical facility for further treatment. The deployment and injuries should also be included in any related incident or arrest report (UAC R728-507-9; UAC R728-507-12).

Any unintended bite or injury caused by a canine, whether on- or off-duty, shall be promptly reported to the canine coordinator. Unintended bites or injuries caused by a canine should be documented in an administrative report, not in a canine use report.

If an individual alleges an injury, either visible or not visible, a supervisor shall be notified and both the individual's injured and uninjured areas shall be photographed as soon as practicable after first tending to the immediate needs of the injured party. Photographs shall be retained as evidence in accordance with current [department/office] evidence procedures. The photographs shall be retained until the criminal proceeding is completed and the time for any related civil proceeding has expired.

#### **309.7 NON-APPREHENSION GUIDELINES**

Properly trained canines may be used to track or search for non-criminals (e.g., lost children, individuals who may be disoriented or in need of medical attention). The canine handler is responsible for determining the canine's suitability for such assignments based on the conditions and the particular abilities of the canine. When the canine is deployed in a search or other non-apprehension operation, the following guidelines apply:

- (a) Absent a change in circumstances that presents an imminent threat to officers, the canine, or the public, such applications should be conducted on-leash or under conditions that minimize the likelihood the canine will bite or otherwise injure the individual, if located.
- (b) Unless otherwise directed by a supervisor, assisting members should take direction from the handler in order to minimize interference with the canine.
- (c) Throughout the deployment, the handler should periodically give verbal assurances that the canine will not bite or hurt the individual and encourage the individual to make him/herself known.
- (d) Once the individual has been located, the handler should place the canine in a down-stay or otherwise secure it as soon as reasonably practicable.

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#### 309.7.1 ARTICLE DETECTION

A canine trained to find objects or property related to a person or crime may be used to locate or identify articles. A canine search should be conducted in a manner that minimizes the likelihood of unintended bites or injuries.

#### 309.7.2 NARCOTICS DETECTION

A canine trained in narcotics detection may be used in accordance with current law and under certain circumstances, including:

- (a) The search of vehicles, buildings, bags, and other articles.
- (b) Assisting in the search for narcotics during a search warrant service.
- (c) Obtaining a search warrant by using the narcotics-detection trained canine in support of probable cause.

A narcotics-detection trained canine will not be used to search a person for narcotics unless the canine is trained to passively indicate the presence of narcotics.

#### 309.7.3 BOMB/EXPLOSIVE DETECTION

Because of the high risk of danger to the public and officers when a bomb or other explosive device is suspected, the use of a canine team trained in explosive detection may be considered. When available, an explosive-detection canine team may be used in accordance with current law and under certain circumstances, including:

- (a) Assisting in the search of a building, structure, area, vehicle, or article where an actual or suspected explosive device has been reported or located.
- (b) Assisting with searches at transportation facilities and vehicles (e.g., buses, airplanes, trains).
- (c) Preventive searches at special events, VIP visits, official buildings, and other restricted areas. Searches of individuals should remain minimally intrusive and shall be strictly limited to the purpose of detecting explosives.
- (d) Assisting in the search of scenes where an explosion has occurred and an explosive device or secondary explosive device is suspected.

At no time will an explosive-detection trained canine be used to render a suspected device safe or clear.

#### **309.8 HANDLER SELECTION**

The minimum qualifications for the assignment of canine handler include:

- (a) An officer who is currently off probation.
- (b) Residing in an adequately fenced, single-family residence (minimum 5-foot high fence with locking gates).
- (c) Living within 30 minutes travel time from the American Fork City limits.
- (d) Agreeing to be assigned to the position for a minimum of three years.

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#### **309.9 HANDLER RESPONSIBILITIES**

The canine handler shall ultimately be responsible for the health and welfare of the canine and shall ensure that the canine receives proper nutrition, grooming, training, medical care, affection and living conditions.

The canine handler will be responsible for the following:

- (a) Except as required during appropriate deployment, the handler shall not expose the canine to any foreseeable and unreasonable risk of harm.
- (b) The handler shall maintain all department equipment under his/her control in a clean and serviceable condition.
- (c) When a handler is off-duty for an extended number of days, the assigned canine vehicle should be stored at the American Fork Police Department facility.
- (d) Handlers shall permit the canine coordinator to conduct spontaneous on-site inspections of affected areas of their homes as well as their canine vehicles to verify that conditions and equipment conform to this policy.
- (e) Any changes in the living status of the handler that may affect the lodging or environment of the canine shall be reported to the canine coordinator as soon as possible.
- (f) When off-duty, the canine shall be in a kennel provided by the City at the home of the handler. When a canine is kenneled at the handler's home, the gate shall be secured with a lock. When off-duty, the canine may be let out of the kennel while under the direct control of the handler.
- (g) The canine should be permitted to socialize in the home with the handler's family for short periods of time and under the direct supervision of the handler.
- (h) Under no circumstances will the canine be lodged at another location unless approved by the canine coordinator or Shift Supervisor.
- (i) When off-duty, the handler shall not involve the canine in any law enforcement activity or official conduct unless approved in advance by the canine coordinator or Shift Supervisor.
- (j) Whenever a canine handler is off-duty for an extended number of days, it may be necessary to temporarily relocate the canine. In those situations, the handler shall give reasonable notice to the canine coordinator so that appropriate arrangements can be made.

#### **309.9.1 CANINE IN PUBLIC AREAS**

The canine should be kept on a leash when in areas that allow access to the public. Exceptions to this rule would include specific law enforcement operations for which the canine is trained.

- (a) A canine shall not be left unattended in any area to which the public may have access.
- (b) When the canine vehicle is left unattended, all windows and doors shall be secured in such a manner as to prevent unauthorized access to the canine. The handler shall also ensure that the unattended vehicle remains inhabitable for the canine.

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#### **309.10 CANINE INJURY AND MEDICAL CARE**

In the event that a canine is injured, or there is an indication that the canine is not in good physical condition, the injury or condition will be reported to the canine coordinator or Shift Supervisor as soon as practicable and appropriately documented.

All medical attention shall be rendered by the designated canine veterinarian, except during an emergency where treatment should be obtained from the nearest available veterinarian. All records of medical treatment shall be kept on file.

#### **309.11 TRAINING**

Before assignment in the field, each canine team shall be trained and certified to meet current Utah Peace Officer Standards and Training (POST) Service Dog Program requirements or other recognized and approved certification standards (Utah Code 53-6-402; UAC R728-508-4). Cross-trained canine teams or those canine teams trained exclusively for the detection of narcotics and/or explosives also shall be trained and certified to meet current nationally recognized standards or other recognized and approved certification standards established for their particular skills.

The canine coordinator shall be responsible for scheduling periodic training for all [department/office] members in order to familiarize them with how to conduct themselves in the presence of [department/office] canines. Because canines may be exposed to dangerous substances such as opioids, as resources are available, the canine coordinator should also schedule periodic training for the canine handlers about the risks of exposure and treatment for it.

All canine training shall be conducted while on-duty unless otherwise approved by the canine coordinator or Shift Sergeant.

##### **309.11.1 CONTINUED TRAINING**

Each canine team shall thereafter be recertified to Utah POST Service Dog Program or other recognized and approved certification standards on an annual basis (Utah Code 53-6-402; UAC R728-508-7). Additional training considerations are as follows:

- (a) Canine handlers are encouraged to engage in additional training with approval of the canine coordinator.
- (b) To ensure that all training is consistent, no handler, trainer, or outside vendor is authorized to train to a standard that is not reviewed and approved by the [Department/Office].

##### **309.11.2 FAILURE TO SUCCESSFULLY COMPLETE TRAINING**

Any canine team failing to graduate or obtain certification shall not be deployed in the field for tasks the team is not certified to perform until graduation or certification is achieved. When reasonably practicable, pending successful certification, the canine handler shall be temporarily reassigned to regular patrol duties.

##### **309.11.3 TRAINING RECORDS**

All canine training records shall be maintained in the canine handler's and the canine's training file.

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#### 309.11.4 TRAINING AIDS

Training aids are required to effectively train and maintain the skills of canines. Officers possessing, using, or transporting controlled substances or explosives for canine training purposes must comply with federal and state requirements. Alternatively, the American Fork Police Department may work with outside trainers with the applicable licenses or permits.

#### 309.11.5 CONTROLLED SUBSTANCE TRAINING AIDS

Officers acting in the performance of their official duties may possess or transfer controlled substances for the purpose of narcotics-detection canine training in compliance with state and federal laws (21 USC § 823(g); UAC R156-37-306).

The Chief of Police or the authorized designee may authorize a member to seek a court order to allow controlled substances seized by the American Fork Police Department to be possessed by the member or a narcotics-detection canine trainer who is working under the direction of this [department/office] for training purposes, provided the controlled substances are no longer needed as criminal evidence.

As an alternative, the Chief of Police or the authorized designee may request narcotics training aids from the Drug Enforcement Administration (DEA).

These procedures are not required if the canine handler uses commercially available synthetic substances that are not controlled narcotics.

#### 309.11.6 CONTROLLED SUBSTANCE PROCEDURES

Due to the responsibilities and liabilities involved with possessing readily usable amounts of controlled substances and the ever-present danger of the canine's accidental ingestion of these controlled substances, the following procedures shall be strictly followed:

- (a) All controlled substance training samples shall be weighed and tested prior to dispensing to the individual canine handler or trainer.
- (b) The weight and test results shall be recorded and maintained by this [department/office].
- (c) Any person possessing controlled substance training samples pursuant to court order or DEA registration shall maintain custody and control of the controlled substances and shall keep records regarding any loss of, or damage to, those controlled substances.
- (d) All controlled substance training samples will be inspected, weighed, and tested quarterly. The results of the quarterly testing shall be recorded and maintained by the canine coordinator with a copy forwarded to the dispensing agency.
- (e) All controlled substance training samples will be stored in locked, airtight, and watertight cases at all times, except during training. The locked cases shall be secured in the trunk of the canine handler's assigned patrol vehicle during transport and stored in an appropriate locked container. There are no exceptions to this procedure.
- (f) The canine coordinator shall periodically inspect every controlled substance training sample for damage or tampering and take any appropriate action.

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- (g) Any unusable controlled substance training samples shall be returned to the Property and Evidence Section or to the dispensing agency.
- (h) All controlled substance training samples shall be returned to the dispensing agency upon the conclusion of the training or upon demand by the dispensing agency.

#### 309.11.7 EXPLOSIVE TRAINING AIDS

Officers may possess, transport, store, or use explosives or destructive devices in compliance with state and federal laws (18 USC § 842; 27 CFR 555.41; Utah Code 76-15-210; Utah Code 76-15-211).

Explosive training aids designed specifically for canine teams should be used whenever feasible. Due to the safety concerns in the handling and transportation of explosives, inert or non-hazardous training aids should be employed whenever feasible. The use of explosives or destructive devices for training aids by canine teams is subject to the following:

- (a) All explosive training aids, when not in use, shall be properly stored in a secure facility appropriate for the type of materials.
- (b) An inventory ledger shall be maintained to document the type and quantity of explosive training aids that are stored.
- (c) The canine coordinator shall be responsible for verifying the explosive training aids on hand against the inventory ledger once each quarter.
- (d) Only members of the canine team shall have access to the explosive training aids storage facility.
- (e) A primary and secondary custodian will be designated to minimize the possibility of loss of explosive training aids during and after the training. Generally, the handler will be designated as the primary custodian while the trainer or authorized second person on-scene will be designated as the secondary custodian.
- (f) Any lost or damaged explosive training aids shall be promptly reported to the canine coordinator, who will determine if any further action will be necessary. Any loss of explosives will be reported to the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF).

# Domestic Violence and Violations of Court Orders

## 310.1 PURPOSE AND SCOPE

The purpose of this policy is to provide the guidelines necessary to deter, prevent, and reduce domestic violence and violations of court orders through vigorous enforcement and to address these offenses as serious crimes against society. The policy specifically addresses the commitment of this [department/office] to take enforcement action when appropriate, to provide assistance to victims, and to guide officers in the investigation of domestic violence and violations of court orders (Utah Code 53-25-1102).

## 310.2 POLICY

The American Fork Police Department's response to incidents of domestic violence and violations of court orders shall stress enforcement of the law to protect the victim and shall communicate the philosophy that domestic violence and court order violations are criminal behavior. It is also the policy of this [department/office] to facilitate victims' and offenders' access to appropriate civil remedies and community resources whenever feasible.

## 310.3 DEFINITIONS

Definitions related to this policy include:

**Court order:** All forms of orders related to domestic and dating violence, that have been issued by a court of this state or another, whether civil or criminal, regardless of whether service has been made.

**Cohabitant:** means an emancipated individual or an individual who is 16 years old or older who (Utah Code 78B-7-102):

- is or was a spouse of the other party
- is or was living as if a spouse of the other party
- is related by blood or marriage to the other party as the individual's parent, grandparent, sibling, or any other individual related to the individual by consanguinity or affinity to the second degree
- had or had one or more children in common with the other party
- is the biological parent of the other party's unborn child
- resides or has resided in the same residence as the other party
- is or was in a consensual sexual relationship with the other party
- DOES NOT include the relationship of a natural parent, adoptive parent, or step-parent to a minor
- DOES NOT include the relationship between natural, adoptive, step, or foster siblings who are under 18 years old



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**Dating Partner:** means an emancipated individual or an individual 18 years or older who is, or has been, in a dating relationship to the other party. Dating partner does not include an intimate partner (78B-7-102(11)).

**Dating Relationship:** means a social relationship of a romantic or intimate nature, or a relationship which has romance or intimacy as a goal by one or both parties, regardless of whether the relationship involves sexual intimacy. "Dating relationship" does not include casual fraternization in a business, educational, or social context.

**Dating Violence:** Any criminal offense involving violence or physical harm, threat of violence or physical harm, or any attempt, conspiracy, or solicitation by a person to commit an offense involving violence or physical harm, when committed by a person against a dating partner.

**Domestic violence:** Includes crime involving the actual, threatened, or attempted physical harm of a cohabitant. Domestic violence also includes committing or attempting to commit any crime listed in Utah Code 77-36-1 by one cohabitant against another. Some of these crimes include:

- aggravated assault (76-5-103)
- aggravated cruelty to animals (76-9-301(4))
- assault (76-5-102)
- criminal homicide (76-5-201)
- harassment (76-5-106)
- electronic communications harassment (76-9-201)
- kidnapping, child kidnapping, or aggravated kidnapping (76-5-301; 76-5-301.1; 76-5-302)
- mayhem (76-5-105)
- sexual offenses (Title 76, Chapter 5, Part 4)
- sexual exploitation and aggravated sexual exploitation of a minor (76-5b-201; 76-5b-201.1)
- stalking (76-5-106.5)
- unlawful detention or unlawful detention of a minor (76-5-304)
- violation of a protective order or ex parte protective order (76-5-108)
- property destruction offenses (Title 76, Chapter 6, Parts 1)
- trespass and burglary offenses (Title 76, Chapter 6, Part 2)
- robbery (Title 76, Chapter 6, Part 3)
- possession of a deadly weapon with criminal intent (76-10-507)
- discharge of a firearm (76-10-508)
- child abuse (76-5-114)

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- threatening use of a dangerous weapon (76-10-506)
- threatening violence (76-5-107)
- witness tampering (76-8-508)
- retaliation (76-8-508.3)
- unlawful distribution of a real or counterfeit intimate image (76-5b-203; 76-5b-205)
- sexual battery (76-9-702.1)
- voyeurism (76-9-702.7)
- damage to or interruption of a communication device (76-6-108)
- violation of a jail release agreement (78B-7-806)

**Intimate Partner:** means an emancipated individual or an individual who is 16 years old or older who (Utah Code 77-36-2.1):

- is or was a spouse of the other party
- is or was living as if a spouse of the other party
- has or had one or more children in common with the other party
- is the biological parent of the other party's unborn child
- is or was in a consensual sexual relationship with the other party
- is or was in a dating relationship with the other party

#### **310.4 OFFICER SAFETY**

The investigation of domestic violence and court order violations often places officers in emotionally charged and sometimes highly dangerous environments. No provision of this policy is intended to supersede the responsibility of all officers to exercise due caution and reasonable care in providing for the safety of any officers and parties involved.

#### **310.5 INVESTIGATIONS**

The following guidelines should be followed by officers when investigating domestic violence and court order violations:

- (a) Calls of reported, threatened, imminent, or ongoing domestic violence and the violation of any court order are of extreme importance and should be considered among the highest response priorities. This includes incomplete 9-1-1 calls.
- (b) When practicable, officers should obtain and document statements from the victim, the suspect, and any witnesses, including children, in or around the household or location of occurrence.
- (c) Officers should list the full name and date of birth (and school if available) of each child who was present at the time of the offense. The names of other children who may be affected but who are not present at that particular time should also be obtained for follow-up.

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- (d) When practicable and legally permitted officers should video or audio record all significant statements and observations.
- (e) All injuries should be photographed, regardless of severity, taking care to preserve the victim's personal privacy. Where practicable, photographs should be taken by a person of the same sex. Victims whose injuries are not visible at the time of the incident should be asked to contact the Investigation Unit in the event that the injuries later become visible.
- (f) Officers should request that the victim complete and sign an authorization for release of medical records related to the incident when applicable.
- (g) If the suspect is no longer at the scene, officers should make reasonable efforts to locate the suspect to further the investigation, provide the suspect with an opportunity to make a statement, and make an arrest or seek an arrest warrant if appropriate.
- (h) Firearms or other dangerous weapons should be seized, if appropriate and legally permitted, for safekeeping or as evidence (Utah Code 76-5-106.5; Utah Code 77-36-2.1; Utah Code 78B-7-408).
- (i) Officers shall take appropriate enforcement action when there is probable cause to believe an offense has occurred. Factors that should not be used as sole justification for declining to take enforcement action include:
  - 1. Whether the suspect lives on the premises with the victim.
  - 2. Claims by the suspect that the victim provoked or perpetuated the violence.
  - 3. The potential financial or child custody consequences of arrest.
  - 4. The physical or emotional state of either party.
  - 5. Use of drugs or alcohol by either party.
  - 6. Denial that the abuse occurred where evidence indicates otherwise.
  - 7. A request by the victim not to arrest the suspect.
  - 8. Location of the incident (public/private).
  - 9. Speculation that the complainant may not follow through with the prosecution.
  - 10. Actual or perceived characteristics such as race, ethnicity, national origin, religion, sex, sexual orientation, gender identity or expression, economic status, age, cultural group, disability, or marital status of the victim or suspect.
  - 11. The social status, community status, or professional position of the victim or suspect.
- (j) If the offense is alleged against an intimate partner, the officers shall conduct the lethality assessment protocols required by Utah Code 77-36-2.1. The lethality assessment shall be recorded on the appropriate form and the results submitted to the Department of Public Safety while on scene or as soon as reasonably practicable (Utah Code 77-36-2.1).

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#### 310.5.1 IF A SUSPECT IS ARRESTED

If a suspect is arrested, officers should:

- (a) Advise the victim that there is no guarantee the suspect will remain in custody.
- (b) Provide the victim's contact information to the jail staff to enable notification of the victim upon the suspect's release from jail.
- (c) Advise the victim whether any type of court order will be in effect when the suspect is released from jail.
- (d) Refer the victim to the department's victim advocates for victim services.

#### 310.5.2 IF NO ARREST IS MADE

If no arrest is made, the officer should:

- (a) Advise the parties of any options, including but not limited to:
  - 1. Voluntary separation of the parties.
  - 2. Appropriate resource referrals (e.g., counselors, friends, relatives, shelter homes, victim witness assistance).
- (b) Document the resolution in a report.

### **310.6 INTIMATE PARTNER VIOLENCE LETHALITY ASSESSMENT**

The American Fork Police Department uses the Lethality Assessment as part of its strategy to prevent intimate partner violence. The agency shall ensure that all personnel receive appropriate training on the use of the Lethality Assessment including the identification of risk factors and the appropriate response to individuals at high risk of lethality.

#### Implementation of the Lethality Assessment:

- (a) After the scene of a domestic violence incident has been secured and the initial investigation has been completed, the responding officer shall attempt to determine if the allegation of domestic violence is against an intimate partner.
- (b) If the officer determines the allegation of domestic violence is against an intimate partner, the officer must activate the Lethality Assessment Protocol (LAP.)
  - 1. The officer shall complete the "Lethality Assessment Protocol" form within UCJIS or by using the Utah LAP mobile application.
  - 2. If upon completion of the Lethality Assessment, the victim's responses are assessed as potentially lethal, or the officer believes the victim is in a potentially lethal situation, the officer shall advise the victim of the results of the assessment and refer the victim to a non-government organization victim advocate at a primary purpose domestic violence organization. The officer shall also notify their immediate supervisor.
  - 3. If a victim does not or is unable to provide information to the officer sufficient to allow the officer to complete the lethality assessment form, or does not speak or is unable to speak with a non-government organization victim advocate, the

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officer shall document this information on the lethality assessment form and submit the information to UCJIS.

4. The officer shall submit the results of the lethality assessment to UCJIS while on scene.
5. If the officer is not reasonably able to submit the results of the lethality assessment while on scene, the officer shall submit the results of the lethality assessment to UCJIS via the UCJIS Portal webpage or the Utah LAP mobile application as soon as practicable.
6. The officer shall include the results of a lethality assessment and any related, relevant analysis provided by (SIAC) with:
  - i. A probable cause statement; and
  - ii. An incident report
7. In a probable cause statement or incident report, the officer may not include information about how or where a victim was referred.

#### **310.7 VICTIM ASSISTANCE**

In order for an officer to serve victims of domestic and/or dating violence while on scene, the officer should be aware of the victim's immediate needs and assess the victim's safety by providing the following (Utah Code 77-36-2.1; Utah Code 78B-7-408):

- (a) Victims shall be provided with the [Department/Office]'s domestic violence information handout, even if the incident may not rise to the level of a crime.
- (b) Victims shall also be alerted to any available victim advocates, shelters, and community resources and advised of the results of the lethality assessment if applicable.
- (c) When an involved person requests law enforcement assistance while removing essential items of personal property, officers shall stand by for a reasonable amount of time.
- (d) If the victim has sustained injury or reports physical pain, the officer shall seek medical assistance for the victim as soon as practicable.
- (e) Officers should ask the victim if the victim has a safe place to stay. If the victim expresses concern for their safety or if the officer has a reason to believe that the victim's place of stay is at risk, the officer may assist the victim in arranging for or providing transportation to an emergency shelter or housing.
- (f) Officers should make reasonable efforts to ensure that any children or dependent adults who are under the supervision of the suspect or victim are being properly cared for.
- (g) If appropriate, officers shall refer the victim to the department's victim advocates for assistance with obtaining a protective order.
- (h) When applicable, the victim should be provided with the required information from the Department of Public Safety regarding the right to voluntarily turn over a firearm to a law enforcement agency for safekeeping.

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#### **310.8 LEGAL MANDATES AND RELEVANT LAWS**

Utah law provides for the following:

##### **310.8.1 STANDARDS FOR ARRESTS**

- (a) Officers responding to a domestic violence call shall arrest or issue a citation to a domestic violence offender if there is probable cause to believe an offense has occurred. The offense need not occur in the officer's presence (Utah Code 77-36-2.2). Any citation issued shall note that the offense involved a domestic violence offense (Utah Code 77-7-20).
- (b) An officer shall arrest an alleged perpetrator whenever there is probable cause to believe that the alleged perpetrator has violated any of the provisions of a court order or condition of release agreement and there is evidence the order has been served. The offense need not occur in the officer's presence (Utah Code 77-36-2.4; Utah Code 78B-7-119).
- (c) If an officer has probable cause to believe there will be continued violence against the victim or if there is evidence that the perpetrator has either recently caused serious bodily injury or used a dangerous weapon in the domestic violence offense, the officer may not utilize the option of issuing a citation (Utah Code 77-36-2.2). Factors that may support the likelihood of a continuing offense include:
  - 1. A prior history of arrests or citations involving domestic violence.
  - 2. The alleged perpetrator is violating a court order.
  - 3. The alleged perpetrator has a prior history of other assaultive behavior (e.g., arrests or convictions for assault and battery or aggravated assaults).
  - 4. The victim states that the alleged perpetrator has a history of physical abuse toward the victim.
  - 5. The victim expresses fear of retaliation or further violence should the alleged perpetrator be released.
  - 6. Any other evidence that would indicate the victim may be subjected to continued violence or abuse.
- (d) An officer receiving complaints of domestic violence from two or more opposing persons should arrest the predominant physical aggressor. To determine the predominant physical aggressor, the officer shall evaluate each complaint separately and consider (Utah Code 77-36-2.2):
  - 1. Any prior complaints of domestic violence.
  - 2. The relative severity of injuries inflicted on each person.
  - 3. The likelihood of future injury to each of the parties.
  - 4. Whether one of the parties acted in self-defense.
- (e) An officer shall not threaten, suggest, or otherwise indicate the possible arrest of all parties in order to discourage any party's request for intervention by law enforcement (Utah Code 77-36-2.2).

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- (f) Whenever a suspect is arrested or issued a citation and subsequently released subject to a jail release agreement, the releasing officer shall make every reasonable effort to notify the victim of that release. The releasing officer shall also transmit this information to the statewide domestic violence network (Utah Code 78B-7-802).
- (g) An officer who does not immediately exercise arrest powers or initiate criminal proceedings by citation or otherwise shall notify the victim of the right to initiate a criminal proceeding and of the importance of preserving evidence, in accordance with Utah Code 77-36-2.1.
- (h) Whenever a complainant advises of the existence of an enforceable court order, the officer shall determine if a valid court order exists and use every reasonable means to enforce the order. The officer should determine whether the order is in the statewide domestic violence network (Utah Code 78B-7-113) and/or:
  - 1. Whether a court order is on file with a law enforcement agency or whether the complainant has a copy of the court order in his/her possession.
  - 2. Whether proof of service or prior notice exists, whether the alleged perpetrator was in court when the order was made, or it was provided by a court ex parte.
  - 3. The terms of the court order that may be enforced against the alleged perpetrator.
- (i) In the event the alleged perpetrator is no longer at the scene, officers shall document the incident for follow-up investigation.
- (j) If an arrest is made or a citation is issued, the arresting officer shall provide the individual with written notice containing the following information (Utah Code 78B-7-802):
  - 1. The individual may not telephone, contact, or otherwise communicate directly or indirectly with the victim before being released.
  - 2. The individual may not be released except by court order or a written jail release agreement.
  - 3. Notification of the penalties for violation of the court order or any jail release agreement executed and that the individual must appear in court on the next business day after arrest.

#### 310.8.2 REPORTS AND RECORDS

- (a) Reports on incidents of domestic violence and violations of court orders shall include (Utah Code 77-36-2.2):
  - 1. The officer's disposition of the case.
  - 2. The appropriate crime classification.
  - 3. If no arrest was made, the report shall detail the grounds for not arresting.
  - 4. If two parties are arrested, the report shall detail the grounds for arresting both parties.

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5. The results of a lethality assessment when required by Utah Code 77-36-2.1. The report, however, shall not reflect information about a referral to a domestic violence organization if one is made as a result of the lethality assessment.
- (b) Reports on violations of a court order should also include specific information to establish that the suspect has been served, including the date of service and the name of the agency that served the order, and the provisions of the order that the suspect is alleged to have violated.
  1. Officers should document their efforts to verify the validity of an order, regardless of whether an arrest is made.
  2. When reasonably available, the arresting officer should attach a copy of the order to the incident or arrest report.
- (c) The officer creating the report should provide the victim with the case number of the report. The case number may be placed in the appropriate space on the victim information handout provided to the victim. If the case number is not immediately available, the officer should explain to the victim how the victim can obtain the information at a later time.
  1. The report shall be made available to the victim, upon request, at no cost (Utah Code 77-36-2.2).
- (d) The Records Supervisor shall forward a copy of the incident report to the appropriate prosecuting attorney within five days after the complaint of domestic violence occurred (Utah Code 77-36-2.2).
- (e) The officer completing a report should document whether the victim has waived, in writing, any condition of a jail release agreement. If the suspect is arrested, whether the victim has made a waiver shall also be documented in the information presented to the magistrate (Utah Code 78B-7-802).
- (f) The Records Supervisor or the authorized designee shall update the statewide domestic violence network when a person is released upon a written jail release agreement (Utah Code 78B-7-802).

#### **310.9 SERVICE OF COURT ORDERS**

When an officer serves an individual with a protective order which causes the individual to be a restricted person under Utah Code 76-11-302 or Utah Code 76-11-303, the officer shall verbally provide the individual with the appropriate firearm restriction notifications in accordance with Utah Code 76-11-309 and request the individual's signature on the acknowledgment contained within the protective order document.

#### **310.10 INVESTIGATIONS OF VIOLATIONS OF COURT ORDERS**

Officers should comply with the following when investigating violations of court orders:

- (a) Officers should confirm the existence and terms of a court order and determine whether the suspect has been properly served or was present when the order was issued



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1. Officers should use the statewide domestic violence network to verify an order issued by or registered with a court in this state and determine whether it has been violated (Utah Code 78B-7-113).
  2. Officers may rely upon a copy of a court order, the statements of the victim, or other reliable information to determine whether there is probable cause to believe that a foreign court order exists and has been violated (Utah Code 78B-7-304; Utah Code 78B-7-116).
- (b) If an order exists but cannot be enforced because the suspect has not been served, officers should notify the suspect of the order's existence and make a reasonable effort to serve it (Utah Code 78B-7-304).
- (c) Officers should make reasonable attempts to determine whether a suspect has prior violations of court orders.
1. Prior convictions should be documented in appropriate reports for consideration in charging and bail decisions.
  2. Repeat offenders should be properly charged in accordance with Utah Code 77-35-1.1.

#### 310.10.1 CANADIAN DOMESTIC VIOLENCE PROTECTION ORDERS

If there is probable cause to believe a valid Canadian domestic violence protection order exists and has been violated, an officer shall enforce the terms of the order as if it were the order of a court in this state (Utah Code 78B-7-1202).

#### 310.10.2 FOREIGN COURT ORDERS

Various types of orders may be issued by other jurisdictions in domestic violence cases. Any foreign court order properly issued by a court of another state, Indian tribe, or territory shall be enforced by officers as if it were the order of a court in this state. An order should be considered properly issued when it reasonably appears that the issuing court has jurisdiction over the parties and reasonable notice and opportunity to respond was given to the party against whom the order was issued (18 USC § 2265; Utah Code 78B-7-116; Utah Code 78B-7-304). An otherwise valid out-of-state court order shall be enforced, regardless of whether the order has been properly registered with this state.

# Search and Seizure

## 311.1 PURPOSE AND SCOPE

Both the federal and state constitutions provide every individual with the right to be free from unreasonable searches and seizures. This policy provides general guidelines for American Fork Police Department personnel to consider when dealing with search and seizure issues.

## 311.2 POLICY

It is the policy of the American Fork Police Department to respect the fundamental privacy rights of individuals. Members of this [department/office] will conduct searches in strict observance of the constitutional rights of persons being searched. All seizures by this [department/office] will comply with relevant federal and state law governing the seizure of persons and property.

The [Department/Office] will provide relevant and current training to officers as guidance for the application of current law, local community standards, and prosecutorial considerations regarding specific search and seizure situations, as appropriate.

## 311.3 SEARCHES

The U.S. Constitution generally provides that a valid warrant is required in order for a search to be valid. There are, however, several exceptions that permit a warrantless search.

Examples of law enforcement activities that are exceptions to the general warrant requirement include, but are not limited to, searches pursuant to the following:

- Valid consent
- Incident to lawful arrest
- Legitimate community caretaking interests
- Vehicle searches under certain circumstances
- Exigent circumstances

Certain other activities are recognized by federal and state courts and by certain statutes as legitimate law enforcement activities that also do not require a warrant. Such activities may include seizure and examination of abandoned property, and observations of activities and property located on open public areas.

Because case law regarding search and seizure is constantly changing and subject to interpretation by the courts, each member of this [department/office] is expected to act in each situation according to current training and their familiarity with clearly established rights as determined by case law.

Whenever practicable, officers are encouraged to contact a supervisor to resolve questions regarding search and seizure issues prior to electing a course of action.

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#### **311.3.1 PAROLE SEARCHES**

Absent a search warrant or other legal authority an officer may search the residence of a person on parole only after obtaining approval from a parole officer. In other circumstances where an officer stops a parolee and conducts a search of the parolee's person, personal effects or vehicle, the officer shall notify a parole officer as soon as reasonably practicable after conducting the search (Utah Code 77-23-301(3)(a) and (b)).

Officers shall not request or conduct a parole search for the purpose of harassment (Utah Code 77-23-301(4)).

#### **311.3.2 IMAGING SURVEILLANCE DEVICE**

An officer may not operate an imaging surveillance device to obtain information, not otherwise directly observable, about individuals, items, or activities within a closed structure unless (Utah Code 77-23d-103):

- (a) A warrant has been obtained.
- (b) Testing equipment or training is being performed.
  - 1. Training or testing may not be conducted as part of a criminal investigation or law enforcement activity.
  - 2. Testing or training requires the consent of the individuals imaged and the owners of the property to be imaged.
- (c) Exigent circumstances exist.
- (d) While in fresh pursuit of a person suspected committing a felony.

#### **311.3.3 ELECTRONIC INFORMATION AND DATA**

Officers shall follow warrant and notification requirements when (Utah Code 77-23c-101 et seq.; Utah Code 77-23f-101 et seq.):

- (a) Seeking reverse-location.
- (b) Seeking reverse-keyword information.
- (c) Seeking electronic data transmitted to a provider of a remote computing service or electronic communication service.

#### **311.4 SEARCH PROTOCOL**

Although conditions will vary and officer safety and other exigencies must be considered in every search situation, the following guidelines should be followed whenever circumstances permit:

- (a) Members of this department will strive to conduct searches with dignity and courtesy.
- (b) Officers should explain to the person being searched the reason for the search and how the search will be conducted.
- (c) Whenever practicable, all searches authorized by a search warrant shall be video recorded by the officer(s) conducting the search.

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- (d) Searches should be carried out with due regard and respect for private property interests and in a manner that minimizes damage. Property should be left in a condition as close as reasonably possible to its pre-search condition.
- (e) In order to minimize the need for forcible entry, an attempt should be made to obtain keys, combinations or access codes when a search of locked property is anticipated.
- (f) When the person to be searched is of the opposite sex as the searching officer, a reasonable effort should be made to summon an officer of the same sex as the subject to conduct the search. When it is not practicable to summon an officer of the same sex as the subject, the following guidelines should be followed:
  - 1. Another officer or a supervisor should witness the search.
  - 2. The officer should not search areas of the body covered by tight-fitting clothing, sheer clothing or clothing that could not reasonably conceal a weapon.

#### **311.5 DOCUMENTATION**

Officers are responsible to document any search and to ensure that any required reports are sufficient including, at minimum, documentation of the following:

- Reason for the search
- Any efforts used to minimize the intrusiveness of any search (e.g., asking for consent or keys)
- What force, if any, was used to execute the search
- Whether an announcement was made prior to or after entry into the premises
- What, if any, injuries or damage occurred
- All steps taken to secure property
- The results of the search, including a description of any property or contraband seized
- If the person searched is the opposite sex, any efforts to summon an officer of the same sex as the person being searched and the identification of any witness officer

Supervisors shall review reports to ensure the reports are accurate, that actions are properly documented, and that current legal requirements and [department/office] policy have been met.

# Temporary Custody of Juveniles

## 312.1 PURPOSE AND SCOPE

This policy provides guidelines consistent with the Juvenile Justice and Delinquency Prevention Act for juveniles taken into temporary custody by members of the American Fork Police Department (34 USC § 11133).

### 312.1.1 DEFINITIONS

Definitions related to this policy include:

**Juvenile non-offender** - An abused, neglected, dependent, or alien juvenile who may be legally held for the juvenile's own safety or welfare. This also includes any juvenile who may have initially been contacted for an offense that would not subject an adult to arrest (e.g., fine-only offense) but was taken into custody for the juvenile's protection or for purposes of reuniting the juvenile with a parent, guardian, or other responsible person. Juveniles engaged in commercial sex or sexual solicitation are non-offenders (Utah Code 76-10-1315).

**Juvenile offender** - A juvenile under 18 who is alleged to have committed an offense that would subject an adult to arrest (a non-status offense). It also includes possession of a handgun by a person under 18 years of age in violation of Utah Code 76-10-509.4 (28 CFR 31.303).

**Non-secure custody** - When a juvenile is held in the presence of an officer or other [department/office] member at all times and is not placed in a locked room, cell, or behind any locked doors. Juveniles in non-secure custody may be handcuffed but not to a stationary or secure object. Personal supervision, through direct visual monitoring and audio two-way communication is maintained. Monitoring through electronic devices, such as video, does not replace direct visual observation.

**Safety checks** - Direct visual observation by a member of this [department/office] performed at random intervals, within time frames prescribed in this policy, to provide for the health and welfare of juveniles in temporary custody.

**Secure custody** - When a juvenile offender is held in a locked room or set of rooms. Secure custody also includes being physically secured to a stationary object.

Examples of secure custody include:

- A juvenile left alone in an unlocked room within the secure perimeter of the adult temporary holding area.
- A juvenile handcuffed to a rail.
- A juvenile placed in a room that contains doors with delayed egress devices that have a delay of more than 30 seconds.
- A juvenile being processed in a secure booking area when a non-secure booking area is available.

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- A juvenile left alone in a secure booking area after being photographed and fingerprinted.
- A juvenile placed in a room that is capable of being locked or contains a fixed object designed for cuffing or restricting movement.

**Sight and sound separation** - Located or arranged to prevent physical, visual, or auditory contact.

**Status offender** - A juvenile suspected of committing a criminal violation of the law that would not be a criminal violation but for the age of the offender. Examples may include running away, underage possession of tobacco, curfew violation, and truancy. A juvenile in custody on a court order or warrant based upon a status offense is also a status offender.

#### **312.2 POLICY**

The American Fork Police Department is committed to releasing juveniles from temporary custody as soon as reasonably practicable and to keeping juveniles safe while in temporary custody at the American Fork Police Department. Juveniles should be held in temporary custody only for as long as reasonably necessary for processing, transfer, or release.

#### **312.3 JUVENILES WHO SHOULD NOT BE HELD**

Juveniles who exhibit certain behaviors or conditions should not be held at the American Fork Police Department. These include:

- (a) Unconsciousness or having been unconscious while being taken into custody or transported.
- (b) Serious injuries or a medical condition requiring immediate medical attention.
- (c) A suspected suicide risk or showing obvious signs of severe emotional or mental disturbance (see the Civil Commitments Policy).
  1. If the officer taking custody of a juvenile believes that the juvenile may be a suicide risk, the officer shall ensure continuous direct supervision until evaluation, release, or transfer to an appropriate facility is completed.
- (d) Significant intoxication or showing signs of having ingested any substance that poses a significant risk to their health, whether or not they appear intoxicated.
- (e) Extremely violent or continuously violent behavior.
- (f) Afflicted with, or displaying symptoms of, a communicable disease that poses an unreasonable exposure risk.

Officers taking custody of a juvenile exhibiting any of the above conditions should take reasonable steps to provide medical attention or mental health assistance and should notify a supervisor of the situation. These juveniles should not be held at the American Fork Police Department unless they have been evaluated by a qualified medical and/or mental health professional, as appropriate for the circumstances.

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#### **312.4 CUSTODY OF JUVENILES**

Officers should take custody of a juvenile and temporarily hold the juvenile at the American Fork Police Department when there is no other lawful and practicable alternative to temporary custody. Refer to the Child Abuse Policy for additional information regarding detaining a juvenile who is suspected of being a victim.

No juvenile should be held in temporary custody at the American Fork Police Department without authorization of the arresting officer's supervisor or the Shift Sergeant. Juveniles taken into custody shall be held in non-secure custody unless otherwise authorized by this policy.

Any juvenile taken into custody shall be released to the care of the juvenile's parent, legal guardian, or other responsible adult, or transferred to a juvenile custody facility or to other authority as soon as practicable, and in no event shall a juvenile be held beyond four hours from the time of the juvenile's entry into the American Fork Police Department (34 USC § 11133; Utah Code 80-6-203; Utah Code 80-6-204).

##### **312.4.1 CUSTODY OF JUVENILE NON-OFFENDERS**

Non-offenders taken into protective custody in compliance with the Child Abuse Policy should generally not be held at the American Fork Police Department. Custodial arrangements should be made for non-offenders as soon as reasonably possible. Juvenile non-offenders may not be held in secure custody (34 USC § 11133).

##### **312.4.2 CUSTODY OF JUVENILE STATUS OFFENDERS**

Status offenders should generally be released by citation or with a warning rather than taken into temporary custody. However, officers may take custody of a status offender if requested to do so by a parent or legal guardian in order to facilitate reunification (e.g., transported home or to the station to await a parent). Juvenile status offenders may not be held in secure custody (34 USC § 11133).

##### **312.4.3 CUSTODY OF JUVENILE OFFENDERS**

Juvenile offenders should be held in non-secure custody while at the American Fork Police Department unless another form of custody is authorized by this policy or is necessary due to exigent circumstances.

A juvenile offender may be taken into custody without order of the court if the officer has probable cause to believe the juvenile has violated a state law, federal law, local law, or municipal ordinance (Utah Code 80-6-201).

A juvenile offender may not be held in temporary custody any longer than is reasonably necessary to obtain the juvenile's name, age, residence, and other necessary information, and to contact the juvenile's parents, guardian, or custodian (Utah Code 80-6-203).

The juvenile offender shall be released to the care of a parent or other responsible adult, unless the officer reasonably believes the juvenile's immediate welfare or the protection of the community requires the juvenile's detention or a warrant has been issued under Utah Code 80-6-202 or Utah Code 80-6-806 (Utah Code 80-6-203). Before releasing the juvenile offender, the parent or other

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person taking custody of the juvenile shall be required to sign a written promise to bring the juvenile to the court at the specified date and time (Utah Code 80-6-203).

If the juvenile offender is not released, the juvenile shall be taken to a place of detention or shelter without unnecessary delay (Utah Code 80-6-203).

The officer who takes a juvenile offender to a detention or shelter facility shall complete and promptly file with the detention or shelter facility a written report on a form provided by the Division of Juvenile Justice Services. This should include the details of the presently alleged offense, the facts that bring the juvenile within the jurisdiction of the juvenile court, the reason the juvenile was not released by the [Department/Office], and if the juvenile is under consideration for detention, the eligibility of the juvenile for detention under the detention guidelines (Utah Code 80-6-203).

#### **312.5 ADVISEMENTS**

If a juvenile offender is taken into custody under Utah Code 80-6-201 for a serious offense as defined by Utah Code 80-6-103, the officer should notify the appropriate school superintendent or principal or their designee within five days for the purposes of the juvenile's supervision and student safety. The notice shall disclose only (Utah Code 80-6-103):

- (a) The name of the juvenile.
- (b) The offense for which the juvenile was taken into custody or detention.
- (c) If available, the name of the victim, if the victim either resides in the same school district as the juvenile or attends the same school as the juvenile.

#### **312.6 JUVENILE CUSTODY LOGS**

Any time a juvenile is held in temporary custody at the American Fork Police Department, the custody shall be promptly and properly documented in the juvenile custody log, including:

- (a) Identifying information about the juvenile.
- (b) Date and time of arrival and release from the American Fork Police Department.
- (c) Shift Sergeant notification and approval to temporarily hold the juvenile.
- (d) Any charges for which the juvenile is being held and classification of the juvenile as a juvenile offender, status offender, or non-offender.
- (e) Any changes in status (e.g., emergency situations, unusual incidents).
- (f) Time of all safety checks.
- (g) Any medical and other screening requested and completed.
- (h) Circumstances that justify any secure custody.
- (i) Any other information that may be required by other authorities, such as compliance inspectors or a local juvenile court authority.

The Shift Sergeant should initial the log to approve the custody, including any secure custody, and should initial the log when the juvenile is released.



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#### **312.7 CONFINEMENT AND NO-CONTACT REQUIREMENTS**

A juvenile shall not be confined in a jail, lockup, or cell used for an adult who is charged with a crime, nor may they be held in secure care as defined in state code (Utah Code 80-6-204).

Sight and sound separation shall be maintained between all juveniles and adults while in custody at the [Department/Office] (34 USC § 11133; Utah Code 80-6-204). There should also be sight and sound separation between non-offenders and juvenile and status offenders.

In situations where brief or accidental contact may occur (e.g., during the brief time a juvenile is being fingerprinted and/or photographed in booking), a member of the American Fork Police Department shall maintain a constant, immediate, side-by-side presence with the juvenile or the adult to minimize any contact. If inadvertent or accidental contact does occur, reasonable efforts shall be taken to end the contact.

#### **312.8 TEMPORARY CUSTODY REQUIREMENTS**

Members and supervisors assigned to monitor or process any juvenile at the American Fork Police Department shall ensure:

- (a) The Shift Sergeant is notified if it is anticipated that a juvenile may need to remain at the American Fork Police Department more than four hours. This will enable the Shift Sergeant to ensure no juvenile is held at the American Fork Police Department more than six hours.
- (b) Safety checks and significant incidents/activities are noted on the log.
- (c) Juveniles in custody are informed that they will be monitored at all times, except when using the toilet.
  - 1. There shall be no viewing devices, such as peep holes or mirrors, of which the juvenile is not aware.
  - 2. This does not apply to surreptitious and legally obtained recorded interrogations.
- (d) A member of the same sex will supervise personal hygiene activities and care, such as changing clothing or using the restroom, without direct observation to allow for privacy.
- (e) There is reasonable access to toilets and wash basins.
- (f) There is reasonable access to a drinking fountain or water.
- (g) Food is provided if a juvenile has not eaten within the past four hours or is otherwise in need of nourishment, including any special diet required for the health of the juvenile.
- (h) There are reasonable opportunities to stand and stretch, particularly if handcuffed or otherwise restrained.
- (i) There is privacy during family, guardian, and/or attorney visits.
- (j) Juveniles are generally permitted to remain in their personal clothing unless it is taken as evidence or is otherwise unsuitable or inadequate for continued wear while in custody.
- (k) Clean blankets are provided as reasonably necessary to ensure the comfort of an individual.

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1. The supervisor should ensure that there is an adequate supply of clean blankets.
- (l) Adequate shelter, heat, light, and ventilation are provided without compromising security or enabling escape.
- (m) Adequate furnishings are available, including suitable chairs or benches.
- (n) Juveniles have the right to the same number of telephone calls as adults in temporary custody (see the Temporary Custody of Adults Policy).
- (o) Discipline is not administered to any juvenile, nor will juveniles be subjected to corporal or unusual punishment, humiliation, or mental abuse.

#### **312.9 USE OF RESTRAINT DEVICES**

Juvenile offenders may be handcuffed in accordance with the Handcuffing and Restraints Policy. A juvenile offender may be handcuffed at the American Fork Police Department when the juvenile presents a heightened risk. However, non-offenders and status offenders should not be handcuffed unless they are combative or threatening.

Other restraints shall only be used after less restrictive measures have failed and with the approval of the Shift Supervisor. Restraints shall only be used so long as it reasonably appears necessary for the juvenile's protection or the protection of others.

Juveniles in restraints shall be kept away from other unrestrained individuals in custody and monitored to protect them from abuse.

##### **312.9.1 PREGNANT JUVENILES**

Juveniles who are known to be pregnant should be restrained in accordance with the Handcuffing and Restraints Policy.

#### **312.10 PERSONAL PROPERTY**

The personal property of a juvenile shall be processed in the same manner as an adult in temporary custody (see the Temporary Custody of Adults Policy).

#### **312.11 SECURE CUSTODY**

Only juvenile offenders 10 years and older may be placed in secure custody. Juveniles shall not be placed in secure custody for more than four hours (Utah Code 80-6-204). Shift Supervisor approval is required before placing a juvenile offender in secure custody.

Secure custody should only be used for juvenile offenders when there is a reasonable belief that the juvenile is a serious risk of harm to self or others.

Members of this department should not use secure custody for convenience when non-secure custody is, or later becomes, a reasonable option.

When practicable, handcuffing one hand of a juvenile offender to a fixed object while otherwise maintaining the juvenile in non-secure custody should be considered as the method of secure

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custody, rather than the use of a locked enclosure. An employee must be present at all times to ensure the juvenile's safety while secured to a stationary object.

Generally, juveniles should not be secured to a stationary object for more than 60 minutes. Supervisor approval is required to secure a juvenile to a stationary object for longer than 60 minutes and every 30 minutes thereafter. Supervisor approval should be documented.

#### 312.11.1 LOCKED ENCLOSURES

Juvenile offenders shall not be placed in any locked enclosure unless the enclosure is certified by the Commission on Criminal and Juvenile Justice as an approved holding room, and there is no other alternative that will protect the juvenile and the community (Utah Code 80-6-204).

A thorough inspection of the area shall be conducted before placing a juvenile into the locked enclosure to ensure there are no weapons or contraband and that the area is clean and sanitary. An inspection should be conducted when the juvenile is released. Any damage noted to the room should be photographed and documented.

The following requirements shall apply:

- (a) Anything that could create a security or suicide risk, such as contraband, hazardous items, belts, shoes or shoelaces, and jackets, shall be removed.
- (b) The juvenile shall constantly be monitored by an audio/video system during the entire temporary custody.
- (c) The juvenile shall have constant auditory access to [department/office] members.
- (d) The juvenile's initial placement into and removal from a locked enclosure shall be logged.
- (e) Unscheduled safety checks by [department/office] members shall occur no less than every 15 minutes.
  - 1. All safety checks shall be logged.
  - 2. Juveniles who are sleeping or apparently sleeping should be awakened.
  - 3. Requests or concerns of the juvenile should be logged.
- (f) Males and females shall not be placed in the same locked room.
- (g) Juvenile offenders should be separated according to severity of the crime (e.g., felony or misdemeanor).
- (h) Restrained juveniles shall not be placed in a cell or room with unrestrained juveniles.
- (i) Juveniles shall not be placed in a locked enclosure for more than four hours (Utah Code 80-6-204).
- (j) Juveniles shall not be placed in a jail, lockup, or cell that is typically used for adults who are charged with a crime or in secure care except as expressly authorized by state law (Utah Code 80-6-204).

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#### **312.12 SUICIDE ATTEMPT, DEATH, OR SERIOUS INJURY OF A JUVENILE**

The Patrol Division Commander will ensure procedures are in place to address the suicide attempt, death, or serious injury of any juvenile held at the American Fork Police Department. The procedures should include the following:

- (a) Immediate request for emergency medical assistance if appropriate
- (b) Immediate notification of the on-duty supervisor, Chief of Police, and Investigation Division supervisor
- (c) Notification of the parent, guardian, or person standing in loco parentis of the juvenile
- (d) Notification of the appropriate prosecutor
- (e) Notification of the City Attorney
- (f) Notification of the Medical Examiner
- (g) Notification of the juvenile court
- (h) Evidence preservation

#### **312.13 INTERVIEWING OR INTERROGATING**

No interview or interrogation of a juvenile should occur unless the juvenile has the apparent capacity to consent, and does consent, to an interview or interrogation.

No interrogation of a juvenile should occur unless (Utah Code 80-6-206):

- (a) The juvenile has been advised of the juvenile's constitutional rights, and the right to have a parent, a guardian, or a friendly adult present during the interrogation.
- (b) The juvenile voluntarily waives the juvenile's constitutional rights.
- (c) A parent, guardian, or friendly adult is present during the interrogation or gives consent to the interrogation after being present for the waiver. A parent, guardian, or friendly adult is not required to be present for the waiver or give consent if reasonable attempts to contact such an individual have been unsuccessful for one hour after taking the juvenile into custody or if the juvenile's attorney is present in accordance with (d) below.
- (d) When being held in a detention facility or a secure care facility, the juvenile has had a meaningful opportunity to consult with their attorney and the attorney is present for the interrogation.
- (e) The juvenile's guardian ad litem, if any, has given consent to the interrogation for a juvenile who is in the custody of the Division of Child and Family Services.

Any custodial interrogation of a juvenile should be recorded (audio or video with audio as available) in its entirety (Utah Code 80-6-206).

##### **312.13.1 CONDUCT OF INTERVIEW OR INTERROGATION**

An officer shall not provide false information about evidence that is reasonably likely to elicit an incriminating response, nor shall an officer make unauthorized statements about leniency for the offense being investigated.

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#### **312.14 RESTRICTION ON FINGERPRINTING AND PHOTOGRAPHING**

An officer should not photograph or fingerprint a juvenile who has not been adjudicated of an offense (Utah Code 80-6-608).

#### **312.15 RECORDS**

Court decisions and legislation have combined to carefully specify situations in which information may be given out or exchanged when a case involves a minor. Juvenile record disclosures are governed by Utah Code, Title 63G, Chapter 2, Government Records Access and Management Act (GRAMA) and the federal Family Educational Rights and Privacy Act (FERPA) (Utah Code 80-6-103).

Officers shall not divulge any information regarding juveniles in situations where they are uncertain of the legal authority to do so.

The Records Supervisor should maintain a copy of any current policy of the juvenile court concerning authorized release of information and appropriate acknowledgment forms.

Only information authorized by law will be released to other agencies. It shall be the responsibility of the Records Supervisor and the appropriate Investigation Division supervisors to ensure that personnel of those bureaus act within legal guidelines.

#### **312.16 TRAINING**

Members should be trained on and familiar with this policy and any supplemental procedures.

#### **312.17 RELIGIOUS ACCOMMODATION**

Juveniles have the right to the same religious accommodation as adults in temporary custody (see the Temporary Custody of Adults Policy).

# Adult Abuse

## 313.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for the investigation and reporting of suspected abuse of certain adults who may be more vulnerable than others. This policy also addresses mandatory notification for American Fork Police Department members as required by law.

### 313.1.1 DEFINITIONS

Definitions related to this policy include:

**Adult abuse** - Any offense or attempted offense involving violence or neglect of an adult victim when committed by a person responsible for the adult's care, or any other act that would mandate reporting or notification to a social service agency or law enforcement.

## 313.2 POLICY

The American Fork Police Department will investigate all reported incidents of alleged adult abuse and ensure proper reporting and notification as required by law.

## 313.3 MANDATORY NOTIFICATION

Members of the American Fork Police Department shall notify Adult Protective Services (APS) when the member has reason to believe that an elder or vulnerable adult has been abused.

For purposes of notification (Utah Code 26B-6-201):

- (a) Abuse includes but is not limited to the intentional infliction of harm or emotional abuse, the exploitation, or the neglect of an elder or vulnerable adult.
- (b) Elder adult means someone age 65 or older.
- (c) Vulnerable adult means an elder adult or a dependent adult age 18 or older who has a mental or physical impairment that substantially affects the person's ability to provide for themselves or their own personal protection.

### 313.3.1 NOTIFICATION PROCEDURE

Notification should occur either by telephone or by utilizing the online reporting form provided by APS immediately or as soon as practicable.

## 313.4 INVESTIGATIONS AND REPORTING

All reported or suspected cases of adult abuse require investigation and a report, even if the allegations appear unfounded or unsubstantiated.

Investigations and reports related to suspected cases of adult abuse should address, as applicable:

- (a) The overall basis for the contact. This should be done by the investigating officer in all circumstances where a suspected adult abuse victim is contacted.
- (b) Any relevant statements the victim may have made and to whom the victim made the statements.

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- (c) If a person is taken into protective custody, the reasons, the name and title of the person making the decision, and why other alternatives were not appropriate.
- (d) Documentation of any visible injuries or any injuries identified by the victim. This should include photographs of such injuries, if practicable.
- (e) Whether the victim was transported for medical treatment or a medical examination.
- (f) Whether the victim identified a household member as the alleged perpetrator, and a list of the names of any other potential victims or witnesses who may reside in the residence.
- (g) Identification of any prior related reports or allegations of abuse, including other jurisdictions, as reasonably known.
- (h) Previous addresses of the victim and suspect.
- (i) Other potential witnesses who have not yet been interviewed, such as relatives or others close to the victim's environment.
- (j) If any photographs or audio and/or video recordings of the victim were taken (Utah Code 26B-6-206).

Any unexplained death of an adult who was in the care of a guardian or caretaker should be considered as potential adult abuse and investigated similarly.

#### **313.5 PROTECTIVE CUSTODY**

Before taking an adult abuse victim into protective custody when facts indicate the adult may not be able to care for him/herself, the officer should make reasonable attempts to contact APS. Generally, removal of an adult abuse victim from his/her family, guardian or other responsible adult should be left to the welfare authorities when they are present or have become involved in an investigation.

Generally, members of this department should remove an adult abuse victim from his/her family or guardian without a court order only when no other effective alternative is reasonably available and immediate action reasonably appears necessary to protect the victim. Prior to taking an adult abuse victim into protective custody, the officer should take reasonable steps to deliver the adult to another qualified legal guardian, unless it reasonably appears that the release would endanger the victim or result in abduction. If this is not a reasonable option, the officer shall ensure that the adult is delivered to APS.

Whenever practicable, the officer should inform a supervisor of the circumstances prior to taking an adult abuse victim into protective custody. If prior notification is not practicable, officers should contact a supervisor promptly after taking the adult into protective custody.

When adult abuse victims are under state control, have a state-appointed guardian, or there exist other legal holdings for guardianship, it may be necessary or reasonable to seek a court order on behalf of the adult victim to either remove the adult from a dangerous environment (protective custody) or restrain a person from contact with the adult.

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#### 313.5.1 REMOVAL AND TRANSPORT OF ADULT ABUSE VICTIM

Removal and transport of an adult abuse victim by an officer may only occur under the following conditions (Utah Code 26B-6-207):

- (a) The officer has probable cause to believe that the adult abuse victim will suffer serious physical injury if not immediately removed and transported to a safe environment.
- (b) The adult abuse victim either refuses to consent or lacks capacity to consent to the removal and transport.
- (c) There is not time to notify interested parties or to secure a warrant or other court order for the removal and transport.
- (d) The person will be taken to a medical or shelter facility.

The officer removing and transporting an adult abuse victim shall notify APS within four hours to request that an emergency protective order be obtained from the court (Utah Code 26B-6-207).

#### **313.6 QUALIFIED INVESTIGATORS**

Qualified investigators should be available to investigate cases of adult abuse. These investigators should:

- (a) Conduct interviews in appropriate interview facilities.
- (b) Be familiar with forensic interview techniques specific to adult abuse investigations.
- (c) Present all cases of alleged adult abuse to the prosecutor for review.
- (d) Coordinate with other enforcement agencies, social service agencies and facility administrators as needed.
- (e) Provide referrals to therapy services, victim advocates, guardians and support for the victim and family as appropriate.
- (f) Participate in or coordinate with multidisciplinary investigative teams as applicable.

#### 313.6.1 MANDATORY COORDINATION

Members shall coordinate with APS to provide protection to victims and to investigate cases of elder or vulnerable adult abuse (Utah Code 26B-6-205).

#### **313.7 INTERVIEWS**

##### 313.7.1 PRELIMINARY INTERVIEWS

Absent extenuating circumstances or impracticality, officers should audio record the preliminary interview with a suspected adult abuse victim. Officers should avoid multiple interviews with the victim and should attempt to gather only the information necessary to begin an investigation. When practicable, investigating officers should defer interviews until a person who is specially trained in such interviews is available.



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#### 313.7.2 DETAINING VICTIMS FOR INTERVIEWS

An officer should not detain an adult involuntarily who is suspected of being a victim of abuse solely for the purpose of an interview or physical exam without his/her consent or the consent of a guardian unless one of the following applies:

- (a) Exigent circumstances exist, such as:
  - 1. A reasonable belief that medical issues of the adult need to be addressed immediately.
  - 2. A reasonable belief that the adult is or will be in danger of harm if the interview or physical exam is not immediately completed.
  - 3. The alleged offender is a family member or guardian and there is reason to believe the adult may be in continued danger.
- (b) A court order or warrant has been issued.

#### 313.8 MEDICAL EXAMINATIONS

When an adult abuse investigation requires a medical examination, the investigating officer should obtain consent for such examination from the victim, guardian, agency or entity having legal custody of the adult. The officer should also arrange for the adult's transportation to the appropriate medical facility.

In cases where the alleged offender is a family member, guardian, agency or entity having legal custody and is refusing to give consent for the medical examination, officers should notify a supervisor before proceeding. If exigent circumstances do not exist or if state law does not provide for officers to take the adult for a medical examination, the supervisor should consider other government agencies or services that may obtain a court order for such an examination.

#### 313.9 STATE MANDATES AND OTHER RELEVANT LAWS

Utah requires or permits the following:

##### 313.9.1 RECORDS SECTION RESPONSIBILITIES

The Records Section is responsible for:

- (a) Providing a copy of the adult abuse report to APS as required by law.
- (b) Retaining the original adult abuse report with the initial case file.

##### 313.9.2 RELEASE OF REPORTS

Information related to incidents of adult abuse or suspected adult abuse shall be confidential and may only be disclosed pursuant to state law and the Records Maintenance and Release Policy (Utah Code 26B-6-212).

##### 313.9.3 NOTIFICATION UPON ARREST OR ISSUANCE OF A CITATION

When an officer arrests or issues a citation to a person 18 years of age or older for adult abuse, the officer shall provide the person with the written notice required by Utah Code 78B-7-802. Victims shall be provided notice in accordance with the Victim and Witness Assistance Policy.

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#### **313.10 DRUG-ENDANGERED VICTIMS**

A coordinated response by law enforcement and social services agencies is appropriate to meet the immediate and longer-term medical and safety needs of an adult abuse victim who has been exposed to the manufacturing, trafficking or use of narcotics.

##### **313.10.1 OFFICER RESPONSIBILITIES**

Officers responding to a drug lab or other narcotics crime scene where an adult abuse victim is present or where there is evidence that an adult abuse victim lives should:

- (a) Document the environmental, medical, social and other conditions of the adult, using photography as appropriate and the checklist or form developed for this purpose.
- (b) Notify the Investigation Unit supervisor so an interagency response can begin.

# Discriminatory Harassment

## 314.1 PURPOSE AND SCOPE

The purpose of this policy is to prevent department members from being subjected to discriminatory harassment, including sexual harassment and retaliation. Nothing in this policy is intended to create a legal or employment right or duty that is not created by law.

## 314.2 POLICY

The American Fork Police Department is an equal opportunity employer and is committed to creating and maintaining a work environment that is free of all forms of discriminatory harassment, including sexual harassment and retaliation. The Department will not tolerate discrimination against employees in hiring, promotion, discharge, compensation, fringe benefits, and other privileges of employment. The Department will take preventive and corrective action to address any behavior that violates this policy or the rights and privileges it is designed to protect (Utah Antidiscrimination Act, Utah Code, Title 34A, Chapter 5).

The non-discrimination policies of the Department may be more comprehensive than state or federal law. Conduct that violates this policy may not violate state or federal law but still could subject an employee to discipline.

## 314.3 DEFINITIONS

Definitions related to this policy include:

### 314.3.1 DISCRIMINATION

The Department prohibits all forms of discrimination, including any employment-related action by a member that adversely affects an applicant or member and is based on actual or perceived race, ethnicity, national origin, religion, sex, sexual orientation, gender identity or expression, age, disability, pregnancy, genetic information, veteran status, marital status, and any other classification or status protected by law.

Discriminatory harassment, including sexual harassment, is verbal or physical conduct that demeans or shows hostility or aversion toward an individual based upon that individual's protected class. It has the effect of interfering with a member's work performance or creating a hostile or abusive work environment.

Conduct that may, under certain circumstances, constitute discriminatory harassment can include making derogatory comments; making crude and offensive statements or remarks; making slurs or off-color jokes; stereotyping; engaging in threatening acts; making indecent gestures, pictures, cartoons, posters, or material; making inappropriate physical contact; or using written material or department equipment and/or systems to transmit or receive offensive material, statements, or pictures. Such conduct is contrary to department policy and to a work environment that is free of discrimination.

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#### 314.3.2 RETALIATION

Retaliation is treating a person differently or engaging in acts of reprisal or intimidation against the person because the person has engaged in protected activity, filed a charge of discrimination, participated in an investigation, or opposed a discriminatory practice. Retaliation will not be tolerated.

#### 314.3.3 SEXUAL HARASSMENT

The Department prohibits all forms of discrimination and discriminatory harassment, including sexual harassment. It is unlawful to harass an applicant or a member because of that person's sex.

Sexual harassment includes but is not limited to unwelcome sexual advances, requests for sexual favors, or other verbal, visual, or physical conduct of a sexual nature when:

- (a) Submission to such conduct is made either explicitly or implicitly a term or condition of employment, position, or compensation.
- (b) Submission to, or rejection of, such conduct is used as the basis for any employment decisions affecting the member.
- (c) Such conduct has the purpose or effect of substantially interfering with a member's work performance or creating an intimidating, hostile, or offensive work environment.

#### 314.3.4 ADDITIONAL CONSIDERATIONS

Discrimination and discriminatory harassment do not include actions that are in accordance with established rules, principles, or standards, including:

- (a) Acts or omission of acts based solely upon bona fide occupational qualifications under the Equal Employment Opportunity Commission (EEOC) and the Utah Anti-Discrimination and Labor Division.
- (b) Bona fide requests or demands by a supervisor that the member improve the member's work quality or output, that the member report to the job site on time, that the member comply with City or department rules or regulations, or any other appropriate work-related communication between supervisor and member.

#### **314.4 RESPONSIBILITIES**

This policy applies to all department members, who shall follow the intent of these guidelines in a manner that reflects department policy, professional standards, and the best interest of the Department and its mission.

Members are required to promptly report any discriminatory, retaliatory, or harassing conduct or known violations of this policy to a supervisor. Any member who is not comfortable with reporting violations of this policy to the member's immediate supervisor may bypass the chain of command and make the report to a higher-ranking supervisor or manager. Complaints may also be filed with the Chief of Police, the Personnel Director, or the City Administrator.

Any member who believes, in good faith, that the member has been discriminated against, harassed, or subjected to retaliation, or who has observed harassment, discrimination, or

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retaliation, is encouraged to promptly report such conduct in accordance with the procedures set forth in this policy.

Supervisors and managers receiving information regarding alleged violations of this policy shall determine if there is any basis for the allegation and shall proceed with resolution as stated below.

#### 314.4.1 SUPERVISOR RESPONSIBILITIES

The responsibilities of supervisors and managers shall include but are not limited to:

- (a) Continually monitoring the work environment and striving to ensure that it is free from all types of unlawful discrimination, including sexual harassment or retaliation.
- (b) Taking prompt, appropriate action within their work units to avoid and minimize the incidence of any form of discrimination, harassment, or retaliation.
- (c) Ensuring that their subordinates understand their responsibilities under this policy.
- (d) Ensuring that members who make complaints or who oppose any unlawful employment practices are protected from retaliation and that such matters are kept confidential to the extent possible.
- (e) Making a timely determination regarding the substance of any allegation based upon all available facts.
- (f) Notifying the Chief of Police or the Personnel Director in writing of the circumstances surrounding any reported allegations or observed acts of discrimination, harassment or retaliation no later than the next business day.

#### 314.4.2 SUPERVISOR'S ROLE

Supervisors and managers shall be aware of the following:

- (a) Behavior of supervisors and managers should represent the values of the Department and professional standards.
- (b) False or mistaken accusations of discrimination, harassment or retaliation have negative effects on the careers of innocent members.
- (c) Supervisors and managers must act promptly and responsibly in the resolution of such situations.

Nothing in this section shall be construed to prevent supervisors or managers from discharging supervisory or management responsibilities, such as determining duty assignments, evaluating or counseling employees or issuing discipline in a manner that is consistent with established procedures.

#### 314.4.3 QUESTIONS OR CLARIFICATION

Members with questions regarding what constitutes discrimination, sexual harassment, or retaliation are encouraged to contact a supervisor, a manager, the Chief of Police, the Personnel Director, or the City Administrator for further information, direction, or clarification.

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#### **314.5 INVESTIGATION OF COMPLAINTS**

Various methods of resolution exist. During the pendency of any such investigation, the supervisor of the involved members should take prompt and reasonable steps to mitigate or eliminate any continuing abusive or hostile work environment. It is the policy of the Department that all complaints of discrimination, retaliation, or harassment shall be fully documented, and promptly and thoroughly investigated. The complaint and related investigation should be kept confidential to the extent possible.

##### **314.5.1 SUPERVISOR RESOLUTION**

Members who believe they are experiencing discrimination, harassment, or retaliation should be encouraged to inform the individual that the behavior is unwelcome, offensive, unprofessional, or inappropriate. However, if the member feels uncomfortable or threatened or has difficulty expressing the member's concern, or if this does not resolve the concern, assistance should be sought from a supervisor or manager who is a rank higher than the alleged transgressor.

##### **314.5.2 FORMAL INVESTIGATION**

If the complaint cannot be satisfactorily resolved through the process described above, a formal investigation will be conducted.

The person assigned to investigate the complaint will have full authority to investigate all aspects of the complaint. Investigative authority includes access to records and the cooperation of any members involved. No influence will be used to suppress any complaint and no member will be subject to retaliation or reprisal for filing a complaint, encouraging others to file a complaint or for offering testimony or evidence in an investigation.

Formal investigation of the complaint will be confidential to the extent possible and will include but is not limited to details of the specific incident, frequency and dates of occurrences and names of any witnesses. Witnesses will be advised regarding the prohibition against retaliation, and that a disciplinary process, up to and including termination, may result if retaliation occurs.

Members who believe they have been discriminated against, harassed, or retaliated against because of their protected status are encouraged to follow the chain of command but may also file a complaint directly with the Chief of Police, the Personnel Director, or the City Administrator.

##### **314.5.3 ALTERNATIVE COMPLAINT PROCESS**

No provision of this policy shall be construed to prevent any member from seeking legal redress outside the Department. Members who believe that they have been harassed, discriminated against, or retaliated against are entitled to bring complaints of employment discrimination to federal, state, and/or local agencies responsible for investigating such allegations. Specific time limitations apply to the filing of such charges. Members are advised that proceeding with complaints under the provisions of this policy does not in any way affect those filing requirements.

#### **314.6 DOCUMENTATION OF COMPLAINTS**

All complaints or allegations shall be thoroughly documented on the appropriate forms and in a manner designated by the Chief of Police. The outcome of all reports shall be:

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- Approved by the Chief of Police, the City Administrator, or the Personnel Director, depending on the ranks of the involved parties.
- Maintained in accordance with the established records retention schedule.

#### 314.6.1 NOTIFICATION OF DISPOSITION

The complainant and/or victim will be notified in writing of the disposition of the investigation and the action taken to remedy or address the circumstances giving rise to the complaint.

#### **314.7 TRAINING**

All new members shall be provided with a copy of this policy as part of their orientation. The policy shall be reviewed with each new member. The member shall certify by signing the prescribed form that the member has been advised of this policy, is aware of and understands its contents, and agrees to abide by its provisions during the member's term with the Department.

All members shall receive annual training on the requirements of this policy and shall certify by signing the prescribed form that they have reviewed the policy, understand its contents, and agree that they will continue to abide by its provisions.

# Child Abuse

## 315.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for the investigation of suspected child abuse. This policy also addresses when American Fork Police Department members are required to notify the Division of Child and Family Services (DCFS) of suspected child abuse.

### 315.1.1 DEFINITIONS

Definitions related to this policy include:

**Child** - Unless otherwise specified by a cited statute, a child is any person under the age of 18 years.

**Child abuse** - Non-accidental harm (e.g., physical, emotional, or developmental injury or damage) or threatened harm of a child (e.g., actions, inactions, or credible verbal threats, indicating that the child is at an unreasonable risk of harm or neglect), sexual abuse (e.g., bigamy, incest, lewdness), sexual exploitation of a child, human trafficking of a child, or causing the intentional death of the child's parent by the child's natural parent. Abuse does not include reasonable discipline, restraint, weapon removal, or management of a child or other legally justifiable acts (Utah Code 80-1-102).

## 315.2 POLICY

The American Fork Police Department will investigate all reported incidents of alleged criminal child abuse and ensure DCFS is notified as required by law.

## 315.3 MANDATORY NOTIFICATION

Members of the American Fork Police Department shall notify DCFS when there is reason to believe that a child has been subjected to child abuse, when they observe a child being subjected to conditions or circumstances that would reasonably result in child abuse, or when any person notifies the member of child abuse (Utah Code 80-2-602).

### 315.3.1 NOTIFICATION PROCEDURE

Notification should be made as soon as practicable to the nearest DCFS office (Utah Code 80-2-602).

Notification should also be made to the Prosecuting Attorney in cases where suspected child abuse resulted in death (Utah Code 80-2-604).

## 315.4 QUALIFIED INVESTIGATORS

Qualified investigators should be available for child abuse investigations. These investigators should:

- (a) Conduct interviews in child appropriate interview facilities.
- (b) Be familiar with forensic interview techniques specific to child abuse investigations.
- (c) Present all cases of alleged child abuse to the prosecutor for review.



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- (d) Coordinate with other enforcement agencies, social service agencies and school administrators as needed.
- (e) Provide referrals to therapy services, victim advocates, guardians and support for the child and family as appropriate.
- (f) Participate in or coordinate with multidisciplinary investigative teams as applicable.

#### **315.5 INVESTIGATIONS AND REPORTING**

In all reported or suspected cases of child abuse, a report will be written. Officers shall write a report even if the allegations appear unfounded or unsubstantiated.

Investigations and reports related to suspected cases of child abuse should address, as applicable:

- (a) The overall basis for the contact. This should be done by the investigating officer in all circumstances where a suspected child abuse victim was contacted.
- (b) The exigent circumstances that existed if officers interviewed the child victim without the presence of a parent or guardian.
- (c) Any relevant statements the child may have made and to whom he/she made the statements.
- (d) If a child was taken into protective custody, the reasons, the name and title of the person making the decision, and why other alternatives were not appropriate.
- (e) Documentation of any visible injuries or any injuries identified by the child. This should include photographs of such injuries, if practicable.
- (f) Whether the child victim was transported for medical treatment or a medical examination.
- (g) Whether the victim identified a household member as the alleged perpetrator, and a list of the names of any other children who may reside in the residence.
- (h) Identification of any prior related reports or allegations of child abuse, including other jurisdictions, as reasonably known.
- (i) Previous addresses of the victim and suspect.
- (j) Other potential witnesses who have not yet been interviewed, such as relatives or others close to the victim's environment.

All cases of the unexplained death of a child should be investigated as thoroughly as if it had been a case of suspected child abuse (e.g., a sudden or unexplained death of an infant).

When officers encounter a child engaged in commercial sex or sexual solicitation, officers should conduct an investigation into possible human trafficking of the child (Utah Code 76-10-1302).

##### **315.5.1 COMMERCIAL SEX OR SEXUAL SOLICITATION INVOLVING A CHILD**

When an officer encounters a child engaged in commercial sex or sexual solicitation, the officer should (Utah Code 76-10-1315):

- (a) Investigate possible human trafficking of the child.

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- (b) Refer the child to DCFS.
- (c) Bring the child to a receiving center.
- (d) Contact the child's parent or guardian.

#### **315.6 PROTECTIVE CUSTODY**

Before taking any child into protective custody, the officer should make reasonable attempts to contact DCFS. Generally, removal of a child from the child's family, guardian, or other responsible adult should be left to the child welfare authorities when they are present or have become involved in an investigation.

Generally, members of this [department/office] should remove a child from the child's parent or guardian without a court order only when no other effective alternative is reasonably available and immediate action reasonably appears necessary to protect the child. Prior to taking a child into protective custody, the officer should take reasonable steps to deliver the child to another qualified parent or legal guardian, unless it reasonably appears that the release would endanger the child or result in abduction. If this is not a reasonable option, the officer shall ensure that the child is delivered to DCFS.

Whenever practicable, the officer should inform a supervisor of the circumstances prior to taking a child into protective custody. If prior notification is not practicable, officers should contact a supervisor promptly after taking a child into protective custody.

Children may only be removed from a parent or guardian in the following situations (Utah Code 80-2a-202):

- (a) When a court order has been issued authorizing the removal of the child.
- (b) Without a court order, when there exist exigent circumstances sufficient to relieve an officer of the requirement to obtain a warrant.
- (c) Without a warrant when an officer obtains the consent of the child's parent or guardian.

The above apply to removing a child from a home or school as well as from a parent or guardian.

##### **315.6.1 NOTICE AFTER PROTECTIVE CUSTODY**

An officer who takes a child into protective custody shall immediately use reasonable efforts to locate and inform, through the most efficient means available, the child's parents, non-custodial parents, guardian, or responsible relative of the information set forth in Utah Code 80-2a-203. This notice should include the written information prepared by DCFS. Such efforts to provide this notification should be documented in the related report.

#### **315.7 INTERVIEWS**

##### **315.7.1 PRELIMINARY INTERVIEWS**

Absent extenuating circumstances or impracticality, officers should record the preliminary interview with suspected child abuse victims. Officers should avoid multiple interviews with a child victim and should attempt to gather only the information necessary to begin an investigation. When

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practicable, investigating officers should defer interviews until a person who is specially trained in such interviews is available. Generally, child victims should not be interviewed in the home or location where the alleged abuse occurred.

#### **315.7.2 DETAINING SUSPECTED CHILD ABUSE VICTIMS FOR AN INTERVIEW**

An officer should not detain a child involuntarily who is suspected of being a victim of child abuse solely for the purpose of an interview or physical exam without the consent of a parent or guardian unless one of the following applies:

- (a) Exigent circumstances exist, such as:
  - 1. A reasonable belief that medical issues of the child need to be addressed immediately.
  - 2. A reasonable belief that the child is or will be in danger of harm if the interview or physical exam is not immediately completed.
  - 3. The alleged offender is the custodial parent or guardian and there is reason to believe the child may be in continued danger.
- (b) A court order or warrant has been issued.

#### **315.7.3 INTERVIEWS OF CHILDREN IN STATE CUSTODY**

Officers should not interview a child who is in the custody of DCFS without the consent of the child's guardian ad litem. If a guardian ad litem has not been appointed, consent may be given by DCFS (Utah Code 80-2-705).

### **315.8 MEDICAL EXAMINATIONS**

If the child has been the victim of abuse that requires a medical examination, the investigating officer should obtain consent for such examination from the appropriate parent, guardian or agency having legal custody of the child. The officer should also arrange for the child's transportation to the appropriate medical facility.

In cases where the alleged offender is the custodial parent or guardian and is refusing consent for the medical examination, officers should notify a supervisor before proceeding. If exigent circumstances do not exist or if state law does not provide for officers to take the child for a medical examination, the notified supervisor should consider obtaining a court order for such an examination.

### **315.9 DRUG-ENDANGERED CHILDREN**

A coordinated response by law enforcement and social services agencies is appropriate to meet the immediate and longer-term medical and safety needs of children exposed to the manufacturing, trafficking or use of narcotics.

#### **315.9.1 SUPERVISOR RESPONSIBILITIES**

The Investigation Unit Supervisor should:

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- (a) Work with professionals from the appropriate agencies, including DCFS, other law enforcement agencies, medical service providers and local prosecutors to develop community specific procedures for responding to situations where there are children endangered by exposure to methamphetamine labs or the manufacture and trafficking of other drugs.
- (b) Activate any available interagency response when an officer notifies the Investigation Unit Supervisor that the officer has responded to a drug lab or other narcotics crime scene where a child is present or where evidence indicates that a child lives there.
- (c) Develop a report format or checklist for use when officers respond to drug labs or other narcotics crime scenes. The checklist will help officers document the environmental, medical, social and other conditions that may affect the child.

#### 315.9.2 OFFICER RESPONSIBILITIES

Officers responding to a drug lab or other narcotics crime scene where a child is present or where there is evidence that a child lives should:

- (a) Document the environmental, medical, social and other conditions of the child using photography as appropriate and the checklist or form developed for this purpose.
- (b) Notify the Investigation Unit Supervisor so an interagency response can begin.

#### **315.10 STATE MANDATES AND OTHER RELEVANT LAWS**

Utah requires or permits the following:

##### 315.10.1 RELEASE OF REPORTS

Information related to incidents of child abuse or suspected child abuse shall be confidential and may only be disclosed pursuant to state law and the Records Maintenance and Release Policy (Utah Code 77-37-4; Utah Code 80-2-608).

##### 315.10.2 RECORDED INTERVIEWS

A parent or guardian of a child victim may view a recorded interview of the child unless (Utah Code 77-37-4):

- (a) The suspect is also a parent or guardian of the child victim;
- (b) The suspect resides in the home with the child victim; or
- (c) The investigator reasonably believes that allowing the parent or guardian to review the recording would compromise or impede the investigation.

The investigator should coordinate with the Children's Justice Center to ensure the viewing takes place within two business days of the request.

##### 315.10.3 RETENTION REQUIREMENTS

Recordings of any interview of a child during the investigation of an allegation of any sexual abuse of the child shall be retained for 18 years following the date of the last recording, unless the prosecuting attorney requests in writing that the recording be retained for an additional period of time (Utah Code 53-13-110.5).

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#### 315.10.4 NOTIFICATION UPON ARREST OR ISSUANCE OF A CITATION

When an officer arrests or issues a citation to a person 18 years of age or older for child abuse, the officer shall provide the individual with the written notice required by Utah Code 78B-7-802. Victims shall be provided notice in accordance with the Victim and Witness Assistance Policy.

#### 315.10.5 NOTICE TO THE DEPARTMENT OF CORRECTIONS

The American Fork Police Department shall ensure that the Department of Corrections is notified (Utah Code 77-43-103):

- (a) Within three business days of the receipt of a report or complaint of an offense listed in Utah Code 77-43-102(2)(a) (child abuse or human trafficking of a child).
- (b) Within five business days after the arrest of a suspect for any of the offenses listed in Utah Code 77-43-102(2)(a).

#### **315.11 TRAINING**

The [Department/Office] should provide training on best practices in child abuse investigations to members tasked with investigating these cases. The training should include:

- (a) Participating in multidisciplinary investigations, as appropriate.
- (b) Conducting forensic interviews.
- (c) Availability of therapy services for children and families.
- (d) Availability of specialized forensic medical exams.
- (e) Cultural competence (including interpretive services) related to child abuse investigations.
- (f) Availability of victim advocate or guardian ad litem support.

# Missing Persons

## 316.1 PURPOSE AND SCOPE

This policy provides guidance for handling missing person investigations.

### 316.1.1 DEFINITIONS

Definitions related to this policy include:

**At risk** - Includes persons who:

- (a) Are 13 years of age or younger.
- (b) Regardless of age, are believed or determined to be experiencing one or more of the following circumstances:
  - 1. Out of the zone of safety for their chronological age and developmental stage
  - 2. Mentally or behaviorally disabled
  - 3. Drug dependent, including prescribed medication and/or illegal substances, and the dependency is potentially life-threatening
  - 4. Absent from home for more than 24 hours before being reported to law enforcement as missing
  - 5. In a life-threatening situation
  - 6. In the company of others who could endanger their welfare
  - 7. Absent in a way that is inconsistent with established patterns of behavior and cannot be readily explained. Most children have an established and reasonably predictable routine.
  - 8. Involved in a situation that would cause a reasonable person to conclude the person should be considered at risk

**Missing person** - Any person who is reported missing to law enforcement when that person's location is unknown. This includes a person who is missing from the person's home environment and is physically or mentally disabled, missing under circumstances that indicate that the person is endangered, missing involuntarily, or a victim of a catastrophe (Utah Code 26B-8-130).

**Missing person networks** - Databases or computer networks that are available to law enforcement and are suitable for obtaining information related to missing person investigations. This includes the National Crime Information Center (NCIC), the National Missing and Unidentified Persons System (NamUs), and the Utah Bureau of Criminal Identification (BCI) Missing Persons Clearinghouse.

## 316.2 POLICY

The American Fork Police Department does not consider any report of a missing person to be routine and assumes that the missing person is in need of immediate assistance until an investigation reveals otherwise. Priority shall be given to missing person cases over property-

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related cases. Members will initiate an investigation into all reports of missing persons, regardless of the length of time the person has been missing.

#### **316.3 REQUIRED FORMS AND BIOLOGICAL SAMPLE COLLECTION KITS**

The Investigation Unit supervisor shall ensure the following forms and kits are developed and available:

- Missing person report form
- Missing person investigation checklist that provides investigation guidelines and resources that could be helpful in the early hours of a missing person investigation
- Missing person school notification form
- Medical records release form
- Biological sample collection kits

#### **316.4 ACCEPTANCE OF REPORTS**

Any member encountering a person who wishes to report a missing person or runaway shall render assistance without delay. This can be accomplished by accepting the report via telephone or in-person and initiating the investigation. Those members who do not take such reports or who are unable to give immediate assistance shall promptly dispatch or alert a member who can take the report.

A report shall be accepted in all cases and regardless of where the person was last seen, where the person resides or any question of jurisdiction.

#### **316.5 INITIAL INVESTIGATION**

Officers or other members conducting the initial investigation of a missing person should take the following investigative actions, as applicable:

- (a) Respond to a dispatched call as soon as practicable.
- (b) Interview the reporting party and any witnesses to determine whether the person qualifies as a missing person and, if so, whether the person may be at risk.
- (c) Notify a supervisor immediately if there is evidence that a missing person is either at risk or may qualify for a public alert, or both (see the Public Alerts Policy).
- (d) Broadcast a "Be on the Look-Out (BOLO) bulletin" if the person is under 16 years of age or there is evidence that the missing person is at risk. The BOLO should be broadcast as soon as practicable but in no event more than one hour after determining the missing person is under 16 years of age or may be at risk.
- (e) Ensure that entries are made into the appropriate missing person networks:
  1. Immediately, when the missing person is at risk.
  2. In all other cases, as soon as practicable, but not later than two hours from the time of the initial report (34 USC § 41308).

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- (f) Complete the appropriate report forms accurately and completely and initiate a search as applicable according to the facts.
- (g) Collect and/or review:
  - 1. A photograph and fingerprint card of the missing person, if available.
  - 2. A voluntarily provided biological sample of the missing person, if available (e.g., toothbrush, hairbrush).
  - 3. Any documents that may assist in the investigation, such as court orders regarding custody.
  - 4. Any other evidence that may assist in the investigation, including personal electronic devices (e.g., cell phones, computers).
- (h) When circumstances permit and if appropriate, attempt to determine the missing person's location through their telecommunications carrier.
- (i) Contact the appropriate agency if the report relates to a missing person report previously made to another agency and that agency is actively investigating the report. When this is not practicable, the information should be documented in an appropriate report for transmission to the appropriate agency. If the information relates to an at-risk missing person, the member should notify a supervisor and proceed with reasonable steps to locate the missing person.

### **316.6 REPORT PROCEDURES AND ROUTING**

Members should complete all missing person reports and forms promptly and advise the appropriate supervisor as soon as a missing person report is ready for review.

#### **316.6.1 SUPERVISOR RESPONSIBILITIES**

The responsibilities of the supervisor shall include, but are not limited to:

- (a) Reviewing and approving missing person reports upon receipt.
  - 1. The reports should be promptly sent to the Records Section.
- (b) Ensuring resources are deployed as appropriate.
- (c) Initiating a command post as needed.
- (d) Ensuring applicable notifications and public alerts are made and documented.
- (e) Ensuring that records have been entered into the appropriate missing persons networks.
- (f) Taking reasonable steps to identify and address any jurisdictional issues to ensure cooperation among agencies.
  - 1. If the case falls within the jurisdiction of another agency, the supervisor should facilitate transfer of the case to the agency of jurisdiction.

#### **316.6.2 RECORDS SECTION RESPONSIBILITIES**

The responsibilities of the Records Section receiving member shall include, but are not limited to:



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- (a) As soon as reasonable under the circumstances, notifying and forwarding a copy of the report to the agency of jurisdiction for the missing person's residence in cases where the missing person is a resident of another jurisdiction.
- (b) Notifying and forwarding a copy of the report to the agency of jurisdiction where the missing person was last seen.
- (c) Notifying and forwarding a copy of the report to the agency of jurisdiction for the missing person's intended or possible destination, if known.
- (d) Forwarding a copy of the report to the Investigation Unit.
- (e) Coordinating with the NCIC Terminal Contractor for Utah to have the missing person record in the NCIC computer networks updated with additional information obtained from missing person investigations (34 USC § 41308).

#### **316.7 INVESTIGATION UNIT FOLLOW-UP**

In addition to completing or continuing any actions listed above, the investigator assigned to a missing person investigation:

- (a) Should ensure that the missing person's school is notified within 10 days if the missing person is a juvenile.
  - 1. The notice shall be in writing and should also include a photograph.
  - 2. The investigator should meet with school officials as appropriate to stress the importance of including the notice in the child's student file, along with the investigator's contact information if the school receives a call requesting the transfer of the missing child's files to another school.
- (b) Should re-contact the reporting party and/or other witnesses within 30 days of the initial report and within 30 days thereafter to determine if any additional information has become available.
- (c) Should consider contacting other agencies involved in the case to determine if any additional information is available.
- (d) Shall verify and update the Missing Persons Clearinghouse, NCIC and any other applicable missing person networks within 30 days of the original entry into the networks and every 30 days thereafter until the missing person is located (34 USC § 41308).
- (e) Should continue to make reasonable efforts to locate the missing person and document these efforts at least every 30 days.
- (f) Shall maintain a close liaison with state and local child welfare systems and the National Center for Missing and Exploited Children (NCMEC) if the missing person is under the age of 21 and shall promptly notify NCMEC when the person is missing from a foster care family home or childcare institution (34 USC § 41308).
- (g) Should make appropriate inquiry with the [MedicalExaminer/JOP].
- (h) Should obtain and forward medical and dental records, photos, X-rays, and biological samples, as applicable.

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- (i) Shall attempt to obtain the most recent photograph for persons under 18 years of age if it has not been obtained previously and forward the photograph to the Utah BCI and enter the photograph into applicable missing person networks (34 USC § 41308).
- (j) In the case of an at-risk missing person or a person who has been missing for an extended time, should consult with a supervisor regarding seeking federal assistance from the FBI and the U.S. Marshals Service (28 USC § 566).

#### **316.8 WHEN A MISSING PERSON IS FOUND**

When any person reported missing is found, the assigned investigator shall document the location of the missing person in the appropriate report, notify the relatives and/or reporting party, as appropriate, and other involved agencies, and refer the case for additional investigation if warranted.

The Records Supervisor should ensure that, upon receipt of information that a missing person has been located, the following occurs:

- (a) Notification is made to the Utah BCI.
- (b) A missing child's school is notified.
- (c) Entries are made in the applicable missing person networks.
- (d) When a person is at risk, the fact that the person has been found should be reported within 24 hours to the Utah BCI.
- (e) Notification shall be made to any other law enforcement agency that took the initial report or participated in the investigation.

##### **316.8.1 UNIDENTIFIED PERSONS**

Department members investigating a case of an unidentified person who is deceased or a living person who cannot assist in identifying themselves should:

- (a) Obtain a complete description of the person.
- (b) Enter the unidentified person's description into the NCIC Unidentified Person File and the NamUs database.
- (c) Use available resources, such as those related to missing persons, to identify the person.

#### **316.9 CASE CLOSURE**

The Investigation Unit supervisor may authorize the closure of a missing person case after considering the following:

- (a) Closure is appropriate when the missing person is confirmed returned or evidence matches an unidentified person or body.
- (b) If the missing person is a resident of American Fork or this department is the lead agency, the case should be kept under active investigation for as long as the person

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may still be alive. Exhaustion of leads in the investigation should not be a reason for closing a case.

- (c) If this department is not the lead agency, the case can be made inactive if all investigative leads have been exhausted, the lead agency has been notified and entries are made in the applicable missing person networks, as appropriate.
- (d) A missing person case should not be closed or reclassified because the person would have reached a certain age or adulthood or because the person is now the subject of a criminal or civil warrant.

#### **316.10 TRAINING**

Subject to available resources, the department supervisors should ensure that members of this department whose duties include missing person investigations and reports receive training that includes:

- (a) The initial investigation:
  - 1. Assessments and interviews
  - 2. Use of current resources, such as Mobile Audio Video (MAV)
  - 3. Confirming missing status and custody status of minors
  - 4. Evaluating the need for a heightened response
  - 5. Identifying the zone of safety based on chronological age and developmental stage
- (b) Briefing of department members at the scene.
- (c) Identifying NCIC Missing Person File categories (e.g., disability, endangered, involuntary, juvenile and catastrophe).
- (d) Verifying the accuracy of all descriptive information.
- (e) Initiating a neighborhood investigation.
- (f) Investigating any relevant recent family dynamics.
- (g) Addressing conflicting information.
- (h) Key investigative and coordination steps.
- (i) Managing a missing person case.
- (j) Additional resources and specialized services.
- (k) Update procedures for case information and descriptions.
- (l) Preserving scenes.
- (m) Internet and technology issues (e.g., Internet use, cell phone use).

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- (n) Media relations.

## Public Alerts

### 317.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for alerting the public to important information and soliciting public aid when appropriate.

### 317.2 POLICY

Public alerts may be employed using the Emergency Alert System (EAS), local radio, television and press organizations and other groups to notify the public of incidents, or enlist the aid of the public when the exchange of information may enhance the safety of the community. Various types of alerts may be available based upon each situation and the alert system's individual criteria.

### 317.3 RESPONSIBILITIES

#### 317.3.1 MEMBER RESPONSIBILITIES

Members of the American Fork Police Department should notify their supervisor, Shift Supervisor, or Investigation Unit Supervisor as soon as practicable upon learning of a situation where public notification, a warning, or enlisting the help of the media and public could assist in locating a missing person, apprehending a dangerous person, or gathering information.

#### 317.3.2 SUPERVISOR RESPONSIBILITIES

A supervisor apprised of the need for a public alert is responsible to make the appropriate notifications based upon the circumstances of each situation. The supervisor shall promptly notify the Chief of Police, the appropriate Division Commander and the Public Information Officer when any public alert is generated.

The supervisor in charge of the investigation to which the alert relates is responsible for the following:

- (a) Updating alerts
- (b) Canceling alerts
- (c) Ensuring all appropriate reports are completed
- (d) Preparing an after-action evaluation of the investigation to be forwarded to the Division Commander

### 317.4 AMBER ALERTS

AMBER Alert is the recruitment of public assistance to locate an abducted child via a widespread media alert. Utilizing the assistance of local radio, television, and press affiliates the public will be notified of the circumstances of a child's abduction and how they can assist law enforcement in the child's recovery. The goal of the AMBER Alert program is the safe return of an abducted child by establishing an effective partnership between the community, the media, and law enforcement. The AMBER Alert Plan is tested every year in January and August.

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The AMBER Alert does not preclude any law enforcement agency from utilizing or implementing in-house procedures, policies, or practices.

#### **317.4.1 CRITERIA**

AMBER Alerts are not to be used for cases involving custodial disputes or runaways that do not meet the criteria (Utah Code 53-10-1002). The [Department/Office] may consider issuing an Endangered Missing Advisory to inform law enforcement and the public about cases that don't meet the criteria for an AMBER Alert.

The four criteria required for an AMBER Alert are as follows (Utah Code 53-10-1002):

- (a) A confirmed abduction (non-custodial).
- (b) The child is 17-years of age or younger.
- (c) There is reason to believe the child is in imminent danger of serious bodily injury or death.
- (d) There is sufficient information available to give out to the public that could assist in the safe recovery of the victim and/or the apprehension of a suspect.

#### **317.4.2 PROCEDURE**

- (a) When the required criteria are met, the assigned officer should first obtain approval from the Chief of Police or designee, then request that the Records Division or Dispatch initiate an AMBER Alert by entering the required information into the appropriate Utah Criminal Justice Information System (UCJIS) transaction.
- (b) The supervisor may also consider the following resources as the circumstances dictate:
  - 1. The regional Child Abduction Response Team (CART).
  - 2. The State of Utah CART.
  - 3. Federal Bureau of Investigation (FBI local office).
  - 4. Prompt entry of information into the Bureau of Criminal Identification (BCI) and the Department of Justice Missing Person System (NCIC).
  - 5. National Center for Missing and Exploited Children.

### **317.5 BLUE ALERTS**

#### **317.5.1 CRITERIA**

The four criteria required for a BLUE Alert are as follows:

- (a) A law enforcement officer has been killed, seriously injured or assaulted with a deadly weapon by the suspect.
- (b) The suspect is an imminent threat to the public and other law enforcement personnel.
- (c) There is information available for the public about the suspect, the suspect's vehicle and vehicle tag.

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- (d) Public dissemination of available information will help avert further harm or accelerate apprehension of the suspect.

#### 317.5.2 PROCEDURE

BLUE Alerts are initiated solely by Utah law enforcement agencies through UCJIS and by contacting the BCI.

In the event of an assault with a deadly weapon, serious bodily injury or death of an officer, the following procedures designed to alert the media shall be followed.

- (a) The Public Information Officer, Shift Supervisor or Detective Supervisor will prepare an initial press release that includes all available information which might aid in locating the suspect:
  - 1. The license number and/or any other available description or photograph of the vehicle
  - 2. Photograph, description and/or identification of the suspect
  - 3. The suspect's identity, age and description, if known
  - 4. Detail regarding location of incident, direction of travel, potential destinations, if known
  - 5. Name and phone number of the Public Information Officer or other authorized individual to handle media liaison
  - 6. A telephone number for the public to call in with leads/information
- (b) The press release should be sent to the local television and radio stations.
- (c) The information in the press release should also be forwarded to the local emergency communications center so that general broadcasts can be made to local law enforcement agencies.

#### **317.6 ENDANGERED MISSING ADVISORY**

The Endangered Missing Advisory is a system to rapidly disseminate information about a missing and/or endangered person to law enforcement agencies and the media. The Endangered Missing Advisory is a voluntary partnership between law enforcement and local broadcasters for notifying the public about a missing and endangered person. The advisories are initiated solely by Utah law enforcement agencies.

##### 317.6.1 CRITERIA

The following criteria must be met to initiate an Endangered Missing Advisory:

- (a) The person must be missing under unexplained or suspicious circumstances.
- (b) The person is believed to be in danger because of age, health, mental or physical disability, environment or weather conditions, in the company of a potentially dangerous person or some other factor that may put the person in peril.

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- (c) There is information that could assist the public in the safe recovery of the missing person.

#### 317.6.2 PROCEDURE

When the required criteria are met, the assigned officer should ensure that either an authorized Department member or Dispatch activate an Endangered Missing Advisory by entering descriptive information and officer contact information into the appropriate UCJIS transaction and by contacting the Bureau of Criminal Identification. The assigned officer is responsible to ensure that information is entered into the National Crime Information Center (NCIC) database.

### **317.7 SILVER ALERTS**

Silver Alerts are used to provide a statewide system for the rapid dissemination of information regarding a missing endangered adult (Utah Code 53-10-702).

#### 317.7.1 CRITERIA

The following criteria must be met to initiate a Silver Alert:

- (a) The person is reported missing.
- (b) The person reported missing is 60 years of age or older or has some form of Alzheimer's disease or other forms of dementia resulting in continual loss of memory or awareness dementia (Utah Code 53-10-703).

#### 317.7.2 PROCEDURE

When the required criteria are met, the assigned officer should request that Dispatch initiate a Silver Alert by contacting BCI through the UCJIS system and providing descriptive information, the specific area in which the missing person was last seen, and the officer contact information (UT ADC R722-400-4).



## Victim and Witness Assistance

### 318.1 PURPOSE AND SCOPE

The purpose of this policy is to ensure that crime victims and witnesses receive appropriate assistance, that they are provided with information from government and private resources, and that the agency meets all related legal mandates.

### 318.2 POLICY

The American Fork Police Department is committed to providing guidance and assistance to the victims and witnesses of crime. The employees of the American Fork Police Department will show compassion and understanding for victims and witnesses and will make reasonable efforts to provide the support and information identified in this policy.

### 318.3 VICTIM ADVOCATE

The Chief of Police may appoint a member of this department to serve as the crime victim liaison (Victim Advocate). The Victim Advocate will be the point of contact for individuals requiring further assistance or information from the American Fork Police Department regarding benefits from crime victim resources. This person shall also be responsible for maintaining compliance with all legal mandates related to crime victims and/or witnesses.

### 318.4 CRIME VICTIMS

Officers should provide all victims with the applicable victim information handouts.

Officers should never guarantee a victim's safety from future harm but may make practical safety suggestions to victims who express fear of future harm or retaliation. Officers should never guarantee that a person qualifies as a victim for the purpose of compensation or restitution but may direct him/her to the proper written department material or available victim resources.

### 318.5 VICTIM INFORMATION

The Victim Advocate shall ensure that victim information handouts are available and current. These should include as appropriate:

- (a) Shelters and other community resources for victims of domestic violence.
- (b) Community resources for victims of sexual assault (Utah Code 53-10-804).
- (c) Assurance that sexual assault victims will not incur out-of-pocket expenses for forensic medical exams, and information about evidence collection, storage, and preservation in sexual assault cases (34 USC § 10449; 34 USC § 20109).
- (d) An advisement that a person who was arrested may be released on bond or some other form of release and that the victim should not rely upon an arrest as a guarantee of safety.
- (e) A clear explanation of relevant court orders and how they can be obtained.
- (f) Information regarding available compensation for qualifying victims of crime.

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- (g) VINE® information (Victim Information and Notification Everyday), including the telephone number and whether this free service is available to allow victims to check on an offender's custody status and to register for automatic notification when a person is released from jail.
- (h) Notice regarding U visa and T visa application processes.
- (i) Resources available for victims of identity theft.
- (j) A place for the officer's name, badge number, and any applicable case or incident number.
- (k) The written notices for victims of domestic violence and other qualifying offenses as mandated by Utah Code 78B-7-802 and Utah Code 77-36-2.1.
- (l) Local victim centers.
- (m) The Utah Department of Corrections (UDC) Victim Services Unit, which can provide assistance and support to victims whose victimizers are in the custody of the UDC.
- (n) Office of Crime Victim Reparations Program that offers financial assistance.
- (o) The Federal Department of Justice Office for Victims of Crime (OVC), which can also provide assistance.
- (p) The Utah Crime Victims' Bill of Rights (Utah Code 77-37-3).
- (q) Rights and remedies available to victims of stalking or dating violence (Utah Code 76-5-106.5; Utah Code 78B-7-408).
- (r) Eligibility and process to request review of investigations (Utah Code 11-64-101).
- (s) The written notices for victims of sexual violence as mandated by Utah Code 78B-7-509.
- (t) A guide for victims of sexual assault to be published on the [Department/Office] website as mandated by Utah Code 53-25-201.

#### **318.6 WITNESSES**

Officers should never guarantee a witness's safety from future harm or that his/her identity will always remain confidential. Officers may make practical safety suggestions to witnesses who express fear of future harm or retaliation.

Officers should investigate allegations of witness intimidation and take enforcement action when lawful and reasonable.

#### **318.7 VICTIM ASSISTANCE FOR STALKING**

Officers investigating allegations of stalking should take reasonable steps to protect the victim and any family or household member. This includes the following (Utah Code 76-5-106.5):

- (a) taking action that, in the officer's discretion, is reasonably necessary to provide for the safety of the victim and any family or household member;
- (b) confiscating the weapon or weapons involved in the alleged stalking;

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- (c) making arrangements for the victim and any child to obtain emergency housing or shelter;
- (d) providing protection while the victim removes essential personal effects;
- (e) arranging, facilitating, or providing for the victim and any child to obtain medical treatment;
- (f) arranging, facilitating, or providing the victim with immediate and adequate notice of the rights of victims and the remedies and services available to victims of stalking;
- (g) officers shall give written notice to the victim in simple language, describing the rights and remedies available pursuant to Utah Code 76-5-106.5 and 77-3a
- (h) Seize any firearms or other dangerous weapons, if appropriate and legally permitted, for safekeeping or as evidence.

#### **318.8 NON-DISCLOSURE OF CONFIDENTIAL OR PRIVATE INFORMATION**

In compliance with 34 U.S.C. Section 12291 (b)(2), when supported by federal funding, the Department shall not disclose, reveal, or release any personally identifying information or individual information collected in connection with services requested, utilized, or denied through the Department's Victim Assistance Program, regardless of whether the information has been encoded, encrypted, hashed, or otherwise protected, nor shall it disclose, reveal, or release individual client information without the informed, written, reasonably time-limited consent of the person (or in the case of an unemancipated minor, the minor and the parent or guardian or in the case of legal incapacity, a court-appointed guardian) about whom information is sought, except that consent for release may not be given by the abuser of the minor, incapacitated person, or the abuser of the other parent of the minor.

If a minor or a person with a legally appointed guardian is permitted by law to receive services without the parent's or guardian's consent, the minor or person with a guardian may release information without additional consent.

If release of information described above is compelled by statutory or court mandate, the Department shall make reasonable attempts to provide notice to victims affected by the disclosure of information, and the Department shall take steps necessary to protect the privacy and safety of the persons affected by the release of the information.

The Department may share nonpersonally identifying data in the aggregate regarding services to their clients and nonpersonally identifying demographic information in order to comply with federal, state, tribal, or territorial reporting, evaluation, or data collection requirements, court-generated information and law enforcement-generated information contained in secure, governmental registries for protection order enforcement purposes, and law enforcement-generated and prosecution-generated information necessary for law enforcement and prosecution purposes.

In no circumstances may an adult, youth, or child victim of domestic violence, dating violence, sexual assault, or stalking be required to provide a consent to release his or her personally identifying information as a condition of eligibility for the services provided by the Victim Assistance

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Program, nor may any personally identifying information be shared in order to comply with federal, tribal, or state reporting evaluation, or data collection requirements.

#### **318.9 BACKGROUND CHECK REQUIREMENTS**

##### **318.9.1 ADVANCE DETERMINATION REGARDING SUITABILITY**

Whenever in receipt of federal funding, the Victim Assistance Program may not permit any covered individual (as defined in federal guidelines) to interact with any participating minor in the course of Victim Assistance Program activities, unless the Department has first made a written determination of the suitability of that individual to interact with participating minors, based on current and appropriate information set out in federal guidelines and taking into account the factors and considerations described in the "Factors and Considerations" section below.

##### **318.9.2 UPDATES IN REEXAMINATIONS**

Whenever in receipt of federal funding, the Department must, at least every 5 years, update the searches described in the "Definitions" section of this policy, reexamine the covered individual's suitability determination in light of those search results, and, if appropriate, modify or withdraw that determination.

The Department must also reexamine a covered individual's suitability determination upon learning of information that reasonably may suggest unsuitability and, if appropriate, modify or withdraw that determination.

##### **318.9.3 FACTORS AND CONSIDERATIONS IN DETERMINING SUITABILITY**

In addition to the factors and considerations that must or may be considered under applicable federal, state, tribal, or local law, and under the Department's written policies and procedures, in making a determination regarding suitability, the Department must consider the current and appropriate information described in the "Definitions" section of this policy.

In particular (unless applicable law precludes it), with respect to either an initial determination of suitability or suitability of a subsequent reexamination, the Department may not determine that a covered individual is suitable to interact with participating minors in the course of Victim Assistance Program activities if the covered individual -

- i. Withholds consent to a criminal history search required by this condition;
- ii. knowingly makes (or made) a false statement that affects, or is intended to affect, any search required by this condition;
- iii. Is listed as a registered sex offender on the Dru Sjodin National Sex Offender Public Website;
- iv. To the knowledge of the Department, has been convicted - whether as a felony or misdemeanor - under federal, state, tribal, or local law of any of the following crimes (or substantially equivalent criminal offense, regardless of the specific words by which it may be identified in law);
  - 1. Sexual or physical abuse, neglect, or endangerment of an individual under the age of 18 at the time of the offense;

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2. Rape/sexual assault, including conspiracy to commit rape/sexual assault;
3. Sexual exploitation, such as through child pornography or sex trafficking;
4. Kidnapping;
5. Voyeurism; or
- v. Is determined by a federal, state, tribal, or local government agency not to be suitable.

#### **318.9.4 CURRENT AND APPROPRIATE INFORMATION**

In addition to information resulting from checks or screening required by applicable federal, state, tribal, or local law, and/or by the Department's written policies and procedures, current and appropriate information includes the results of all required searches listed below, each of which must be completed no earlier than six months before the determination regarding suitability.

1. Public Sex Offender and Child Abuse Websites/Registries - A search (by current name, and, if applicable, by previous name(s) or aliases), of the pertinent and reasonably accessible federal, state, and (if applicable) local and tribal sex offender and child abuse websites/public registries including -

a. The Dru Sjodin National Sex Offender Public Website ([www.nsopw.gov](http://www.nsopw.gov))

b. The website/public registry for each state (and/or tribe, if applicable) in which the individual lives, works, or goes to school, or has lived, worked, or gone to school at any time during the past five years; and

c. The website/public registry for each state (and/or tribe if applicable) in which the individual is expected to, or reasonably likely to, interact with a participating minor in the course of Victim Assistance Program activities.

2. Criminal History Registries and Similar Repositories of Criminal History Records - For each individual at least 18 years of age who is a covered individual under the Victim Assistance Program, a fingerprint search (or, if the recipient documents that a fingerprint search is not legally available, a name-based search, using current and, if applicable, previous names and aliases) - encompassing at least the time period beginning five calendar years preceding the date of the search request - of pertinent state (and if applicable, local and tribal) criminal history registries or similar repositories, including -

a. The criminal history for each state in which the individual lives, works, or goes to school, or has lived, worked, or gone to school at any time during the past five years; and

b. The criminal history registry for each state in which he or she is expected to, or reasonably likely to, interact with a participating minor in the course of Victim Assistance Program activities.

#### **318.10 COMPLAINTS OF VICTIM'S RIGHTS VIOLATIONS**

Complaints alleging a violation of a victim's rights shall be addressed in the manner described in the Personnel Complaints Policy. Investigative findings related to the complaint shall be provided to the appropriate Victim Rights Committee when required (Utah Code 63M-7-1003).

# Hate Crimes

## 319.1 PURPOSE AND SCOPE

This department recognizes and places a high priority on any individual's constitutional right to the lawful expression of free speech or other recognized rights secured by the Constitution or laws of the state or by the Constitution or laws of the United States. When such rights are infringed upon by violence, threats or other harassment, this department will utilize all available resources to see that justice is served under the law. This policy has been developed to provide members of the Department with guidelines for identifying and investigating incidents and crimes that may be motivated by hatred or other bias.

### 319.1.1 FEDERAL JURISDICTION

The federal government also has the power to investigate and prosecute bias-motivated violence by providing the U.S. Department of Justice with jurisdiction over crimes of violence where the perpetrator has selected the victim because of the person's actual or perceived race, color, religion, national origin, ethnicity, gender, sexual orientation, gender identity or expression, or disability (18 USC § 249).

## 319.2 DEFINITIONS

**Intimidate or terrorize** - Means an act which causes the person to fear for his/her physical safety or damages the property of that person or another. The act must be accompanied with the intent to cause or has the effect of causing a person to reasonably fear to freely exercise or enjoy any right secured by the Constitution or laws of the state or by the Constitution or laws of the United States (Utah Code 76-3-203.3(3)).

## 319.3 CRIMINAL STATUTES

Utah Code 76-3-203.3 (Penalty for Hate Crimes) and Utah Code 76-3-203.4 (Hate Crimes - Aggravating Factors).

## 319.4 PREVENTING AND PREPARING FOR LIKELY HATE CRIMES

While it is recognized that not all crime can be prevented, this department is committed to taking a proactive approach to preventing and preparing for likely hate crimes by, among other things:

- (a) Officers should make an affirmative effort to establish contact with persons and groups within the community who are likely targets of hate crimes to form and cooperate with prevention and response networks.
- (b) Providing victim assistance and follow-up as outlined below, including community follow-up.

## 319.5 PROCEDURE FOR INVESTIGATING HATE CRIMES

Whenever any member of the Department receives a report of a suspected hate crime or other activity that reasonably appears to involve a potential hate crime, the following should occur:

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- (a) Officers will be promptly assigned to contact the victim, witness, or reporting party to investigate the matter further as circumstances may dictate.
- (b) A supervisor should be notified of the circumstances as soon as practical.
- (c) Once “in progress” aspects of any such situation have been stabilized (e.g., treatment of victims, apprehension of present suspects), the assigned officers will take all reasonable steps to preserve available evidence that may tend to establish that a hate crime was involved.
- (d) The assigned officers will interview available witnesses, victims and others to determine what circumstances, if any, indicate that the situation may involve a hate crime.
- (e) Depending on the situation, the assigned officers or supervisor may request additional assistance from detectives or other resources to further the investigation.
- (f) The assigned officers will include all available evidence indicating the likelihood of a hate crime in the relevant reports. All related reports will be clearly marked as “Hate Crimes” and, absent prior approval of a supervisor, will be completed and submitted by the assigned officers before the end of the shift.
- (g) The assigned officers may provide the victims of any suspected hate crime with a brochure on hate crimes. The assigned officers should also make reasonable efforts to assist the victims by providing available information on local assistance programs and organizations.
- (h) The assigned officers and supervisor should take reasonable steps to ensure that any such situation does not escalate further (e.g., possible Temporary Restraining Order through the District Attorney or City Attorney).

#### **319.5.1 INVESTIGATION UNIT RESPONSIBILITY**

If a case is assigned to the Investigation Unit, the assigned detective will be responsible for following up on the reported hate crime as follows:

- (a) Coordinate further investigation with the District Attorney and other appropriate law enforcement agencies, as appropriate.
- (b) Maintain contact with the victims and other involved individuals as needed.
- (c) Maintain statistical data on suspected hate crimes and tracking as indicated and report such data to the county or state upon request.

#### **319.6 TRAINING**

All members of the Department will receive training approved by Utah Police Officer Standards and Training on hate crime recognition and investigation.

# Standards of Conduct

## 320.1 PURPOSE AND SCOPE

This policy establishes standards of conduct that are consistent with the values and mission of this department and are expected of all department members. The standards contained in this policy are not intended to be an exhaustive list of requirements and prohibitions but they do identify many of the important matters concerning conduct. In addition to the provisions of this policy, members are subject to all other provisions contained in this manual as well as any additional guidance on conduct that may be disseminated by this department or the member's supervisors.

## 320.2 POLICY

The continued employment or appointment of every member of the American Fork Police Department shall be based on conduct that reasonably conforms to the guidelines set forth herein. Failure to meet the guidelines set forth in this policy, whether on- or off-duty, may be cause for disciplinary action.

## 320.3 DIRECTIVES AND ORDERS

Members shall comply with lawful directives and orders from any [department/office] supervisor or person in a position of authority, absent a reasonable and bona fide justification. This includes any order relayed from a supervisor by a member of the same or lesser rank.

### 320.3.1 UNLAWFUL OR CONFLICTING ORDERS

Supervisors shall not knowingly issue orders or directives that, if carried out, would result in a violation of any law or department policy. Supervisors should not issue orders that conflict with any previous order without making reasonable clarification that the new order is intended to countermand the earlier order.

No member is required to obey any order that appears to be in direct conflict with any federal law, state law or local ordinance. Following a known unlawful order is not a defense and does not relieve the member from criminal or civil prosecution or administrative discipline. If the legality of an order is in doubt, the affected member shall ask the issuing supervisor to clarify the order or shall confer with a higher authority. The responsibility for refusal to obey rests with the member, who shall subsequently be required to justify the refusal.

Unless it would jeopardize the safety of any individual, members who are presented with a lawful order that is in conflict with a previous lawful order, department policy or other directive shall respectfully inform the issuing supervisor of the conflict. The issuing supervisor is responsible for either resolving the conflict or clarifying that the lawful order is intended to countermand the previous lawful order or directive, in which case the member is obliged to comply. Members who are compelled to follow a conflicting lawful order after having given the issuing supervisor the opportunity to correct the conflict, will not be held accountable for disobedience of the lawful order or directive that was initially issued.



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The person countermanding the original order shall notify, in writing, the person issuing the original order, indicating the action taken and the reason.

#### **320.3.2 SUPERVISOR RESPONSIBILITIES**

Supervisors and managers are required to follow all policies and procedures and may be subject to discipline for:

- (a) Failure to be reasonably aware of the performance of their subordinates or to provide appropriate guidance and control.
- (b) Failure to promptly and fully report any known misconduct of a member to their immediate supervisor or to document such misconduct appropriately or as required by policy.
- (c) Directing a subordinate to violate a policy or directive, acquiescing to such a violation, or exhibiting indifference to such a violation.
- (d) Exercising unequal or disparate authority toward any member for malicious or other improper purpose.

#### **320.4 GENERAL STANDARDS**

Members shall conduct themselves, whether on- or off-duty, in accordance with the United States and Utah constitutions and all applicable laws, ordinances, and rules enacted or established pursuant to legal authority.

Members shall familiarize themselves with policies and procedures and are responsible for compliance with each. Members should seek clarification and guidance from supervisors in the event of any perceived ambiguity or uncertainty.

Discipline may be initiated for any good cause. It is not mandatory that a specific policy or rule violation be cited to sustain discipline. This policy is not intended to cover every possible type of misconduct.

##### **320.4.1 DUTY TO INTERVENE AND REPORT MISCONDUCT**

An officer present and observing another officer engaging in police misconduct shall, when in a position to do so, intervene to stop the misconduct (Utah Code 53-6-210.5).

A member who witnesses police misconduct shall report the misconduct to a supervisor or [city/county] attorney, as applicable, as soon as practicable. Failure to report the misconduct is grounds for discipline by the [Department/Office] (Utah Code 53-6-210.5).

If the reported misconduct involves a law enforcement officer of another agency, the Chief of Police shall promptly notify and communicate the report to the chief executive of that law enforcement agency (Utah Code 53-6-210.5). Police misconduct means on-duty conduct by an officer that constitutes (Utah Code 53-6-210.5):

- (a) Force that is clearly beyond what is objectively reasonable under the totality of the circumstances or clearly does not amount to justified conduct (Utah Code 76-2-401 et seq.).

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- (b) A search or seizure without a warrant where the totality of circumstances clearly indicates that any exception to the warrant requirement would not apply (see the Search and Seizure Policy).
- (c) Conduct that an objectively reasonable person would find to be biased or discriminatory against an individual or a group based on race, color, sex, pregnancy, age, religion, national origin, disability, sexual orientation, or gender identity.

The Chief of Police or the authorized designee should ensure that any additional applicable reporting requirements, anti-retaliatory practices, and disciplinary procedures set forth in Utah Code 53-6-210.5 are followed.

#### **320.5 HONESTY**

Peace officers have an affirmative obligation to be honest about factual matters during work-related interactions with fellow officers, supervisors and administrators, and in particular during formal administrative questioning. Knowingly making untruthful, false, or misleading statements, or intentionally omitting relevant information in response to questioning is strictly prohibited.

Simple misstatements of fact are not dishonest if attributed to genuine inadvertence, mistake, or ignorance. Material misstatements of fact may be dishonest if the officer knows otherwise or has motive to conceal the truth.

If questions regarding a peace officer's honesty arise, the peace officer shall be provided immediate and specific notice that dishonesty is at issue, the specific basis for the claim that they were dishonest, and an opportunity to address or rebut the claim. Any finding of dishonesty may form the basis for adverse employment action by the Department.

All allegations of dishonesty shall be proven by clear and convincing evidence.

#### **320.6 CAUSES FOR DISCIPLINE**

The following are illustrative of causes for disciplinary action. This list is not intended to cover every possible type of misconduct and does not preclude the recommendation of disciplinary action for violation of other rules, standards, ethics and specific action or inaction that is detrimental to efficient department service.

##### **320.6.1 LAWS, RULES AND ORDERS**

- (a) Violation of, or ordering or instructing a subordinate to violate any policy, procedure, rule, order, directive, requirement or failure to follow instructions contained in department or City manuals.
- (b) Disobedience of any legal directive or order issued by any department member of a higher rank.
- (c) Violation of federal, state, local or administrative laws, rules or regulations.

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#### 320.6.2 ETHICS

- (a) Using or disclosing one's status as a member of the American Fork Police Department in any way that could reasonably be perceived as an attempt to gain influence or authority for nondepartment business or activity.
- (b) The wrongful or unlawful exercise of authority on the part of any member for malicious purpose, personal gain, willful deceit, or any other improper purpose.
- (c) The receipt or acceptance of a reward, fee, or gift from any person for service incident to the performance of the member's duties (lawful subpoena fees and authorized work permits excepted).
- (d) Acceptance of fees, gifts, or money contrary to the rules of this department and/or laws of the state.
- (e) Offer or acceptance of a bribe or gratuity.
- (f) Misappropriation or misuse of public funds, property, personnel, or services.
- (g) The unauthorized personal use of public money or public property in violation of Utah Code § 76-8-402.
- (h) Any other failure to abide by the standards of ethical conduct.

#### 320.6.3 DISCRIMINATION, OPPRESSION, OR FAVORITISM

Discriminating against, oppressing, or providing favoritism to any person because of actual or perceived characteristics such as race, ethnicity, national origin, religion, sex, sexual orientation, gender identity or expression, age, disability, economic status, cultural group, veteran status, marital status, and any other classification or status protected by law, or intentionally denying or impeding another in the exercise or enjoyment of any right, privilege, power, or immunity, knowing the conduct is unlawful.

#### 320.6.4 RELATIONSHIPS

- (a) Unwelcome solicitation of a personal or sexual relationship while on-duty or through the use of one's official capacity.
- (b) Engaging in sexual conduct of any kind while on duty (this includes intentionally receiving and/or sending pornographic images and/or video)
- (c) Engaging in sexual conduct of any kind in a department-owned vehicle (even if off duty)
- (d) Engaging in excessive displays of public affection
- (e) Entering into a dating relationship with another member of the department or the city without first disclosing this relationship as outlined in city policy
- (f) Establishing or maintaining an inappropriate personal or financial relationship, as a result of an investigation, with a known victim, witness, suspect or defendant while a case is being investigated or prosecuted, or as a direct result of any official contact.
- (g) Associating with or joining a criminal gang, organized crime and/or criminal syndicate when the member knows or reasonably should know of the criminal nature of the

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organization. This includes any organization involved in a definable criminal activity or enterprise, except as specifically directed and authorized by this department.

- (h) Associating on a personal, rather than official basis with persons who demonstrate recurring involvement in serious violations of state or federal laws after the member knows, or reasonably should know of such criminal activities, except as specifically directed and authorized by this department.

#### 320.6.5 ATTENDANCE

- (a) Leaving the job to which the member is assigned during duty hours without reasonable excuse and proper permission and approval.
- (b) Unexcused or unauthorized absence or tardiness.
- (c) Excessive absenteeism or abuse of leave privileges.
- (d) Failure to report to work or to the place of assignment at the time specified and fully prepared to perform duties without reasonable excuse.

#### 320.6.6 UNAUTHORIZED ACCESS, DISCLOSURE OR USE

- (a) Unauthorized and inappropriate intentional release of confidential or protected information, materials, data, forms or reports obtained as a result of the member's position with this department.
- (b) Disclosing to any unauthorized person any active investigation information.
- (c) The use of any information, photograph, video or other recording obtained or accessed as a result of employment or appointment to this department for personal or financial gain or without the express authorization of the Chief of Police or the authorized designee.
- (d) Loaning, selling, allowing unauthorized use, giving away or appropriating any American Fork Police Department badge, uniform, identification card or department property (outside of what has been authorized by policy) for personal use, personal gain or any other improper or unauthorized use or purpose.
- (e) Using department resources in association with any portion of an independent civil action. These resources include, but are not limited to, personnel, vehicles, equipment and nonsubpoenaed records.

#### 320.6.7 EFFICIENCY

- (a) Neglect of duty.
- (b) Unsatisfactory work performance including but not limited to failure, incompetence, inefficiency, or delay in performing and/or carrying out proper orders, work assignments, or the instructions of supervisors without a reasonable and bona fide excuse.
- (c) Concealing, attempting to conceal, removing, or destroying defective or incompetent work.
- (d) Unauthorized sleeping during on-duty time or assignments.

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- (e) Failure to notify the Department within 24 hours of any change in residence address or contact numbers.
- (f) Failure to notify the Personnel Department of changes in relevant personal information (e.g., information associated with benefits determination) in a timely fashion.

#### 320.6.8 PERFORMANCE

- (a) Failure to disclose or misrepresenting material facts, or making any false or misleading statement on any application, examination form, or other official document, report or form, or during the course of any workrelated investigation.
- (b) The falsification of any work-related records, making misleading entries or statements with the intent to deceive or the willful and unauthorized removal, alteration, destruction and/or mutilation of any department record, public record, book, paper or document.
- (c) Failure to participate in, or giving false or misleading statements, or misrepresenting or omitting material information to a supervisor or other person in a position of authority, in connection with any investigation or in the reporting of any departmentrelated business.
- (d) Being untruthful or knowingly making false, misleading or malicious statements that are reasonably calculated to harm the reputation, authority or official standing of this department or its members.
- (e) Disparaging remarks or conduct concerning duly constituted authority to the extent that such conduct disrupts the efficiency of this department or subverts the good order, efficiency and discipline of this department or that would tend to discredit any of its members.
- (f) Unlawful gambling or unlawful betting at any time or any place. Legal gambling or betting under any of the following conditions:
  - 1. While on department premises.
  - 2. At any work site, while on duty or while in uniform, or while using any department equipment or system.
  - 3. Gambling activity undertaken as part of an officer's official duties and with the express knowledge and permission of a direct supervisor is exempt from this prohibition.
- (g) Improper political activity including:
  - 1. Unauthorized attendance while on duty at official legislative or political sessions.
  - 2. Solicitations, speeches or distribution of campaign literature for or against any political candidate or position while on duty or, on department property or while in any way representing him/herself as a member of this department, except as expressly authorized by City policy, the collective bargaining agreement, or the Chief of Police.
- (h) Engaging in political activities during assigned working hours except as expressly authorized by City policy, the collective bargaining agreement, or the Chief of Police.

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- (i) Any act on or off duty that brings discredit to this department.

#### 320.6.9 CONDUCT

- (a) Failure of any member to promptly and fully report activities on his/her part or the part of any other member where such activities resulted in contact with any other law enforcement agency or that may result in criminal prosecution or discipline under this policy.
- (b) Unreasonable and unwarranted force to a person encountered or a person under arrest.
- (c) Exceeding lawful peace officer powers by unreasonable, unlawful or excessive conduct.
- (d) Unauthorized or unlawful fighting, threatening or attempting to inflict unlawful bodily harm on another.
- (e) Engaging in horseplay that reasonably could result in injury or property damage.
- (f) Discourteous, disrespectful or discriminatory treatment of any member of the public or any member of this department or the City.
- (g) Use of obscene, indecent, profane or derogatory language while on-duty or in uniform.
- (h) Criminal, dishonest, or disgraceful conduct, whether on- or off-duty, that adversely affects the member's relationship with this department.
- (i) Unauthorized possession of, loss of, or damage to department property or the property of others, or endangering it through carelessness or maliciousness.
- (j) Attempted or actual theft of department property; misappropriation or misuse of public funds, property, personnel or the services or property of others; unauthorized removal or possession of department property or the property of another person.
- (k) Activity that is incompatible with a member's conditions of employment or appointment as established by law or that violates a provision of any collective bargaining agreement to include fraud in securing the appointment or hire.
- (l) Initiating any civil action for recovery of any damages or injuries incurred in the course and scope of employment or appointment without first notifying the Chief of Police of such action.
- (m) Any other on- or off-duty conduct which any member knows or reasonably should know is unbecoming a member of this department, is contrary to good order, efficiency or morale, or tends to reflect unfavorably upon this department or its members.

#### 320.6.10 SAFETY

- (a) Failure to observe or violating department safety standards or safe working practices.
- (b) Failure to maintain current licenses or certifications required for the assignment or position (e.g., driver's license, first aid).
- (c) Failure to maintain good physical condition sufficient to adequately and safely perform law enforcement duties.

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- (d) Unsafe firearm or other dangerous weapon handling to include loading or unloading firearms in an unsafe manner, either on- or off-duty.
- (e) Carrying, while on the premises of the work place, any firearm or other lethal weapon that is not authorized by the member's appointing authority.
- (f) Unsafe or improper driving habits or actions in the course of employment or appointment.
- (g) Any personal action contributing to a preventable traffic collision.
- (h) Concealing or knowingly failing to report any on-the-job or work-related accident or injury as soon as practicable but within 24 hours.

#### 320.6.11 INTOXICANTS

- (a) Reporting for work or being at work while intoxicated or when the member's ability to perform assigned duties is impaired due to the use of alcohol, medication or drugs, whether legal, prescribed or illegal.
- (b) Possession or use of alcohol at any work site or while on-duty, except as authorized in the performance of an official assignment. A member who is authorized to consume alcohol is not permitted to do so to such a degree that it may impair on-duty performance.
- (c) Unauthorized possession, use of, or attempting to bring a controlled substance, illegal drug or non-prescribed medication to any work site.

# Information Technology Use

## 321.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for the proper use of [department/office] information technology resources, including computers, electronic devices, hardware, software, and systems.

### 321.1.1 DEFINITIONS

Definitions related to this policy include:

**Computer system** - All computers (on-site and portable), electronic devices, hardware, software, and resources owned, leased, rented, or licensed by the American Fork Police Department that are provided for official use by its members. This includes all access to, and use of, Internet Service Providers (ISP) or other service providers provided by or through the [Department/Office] or [department/office] funding.

**Hardware** - Includes but is not limited to computers, computer terminals, network equipment, electronic devices, telephones, including cellular and satellite, modems, or any other tangible computer device generally understood to comprise hardware.

**Software** - Includes but is not limited to all computer programs, systems, and applications, including shareware and firmware. This does not include files created by the individual user.

**Temporary file, permanent file, or file** - Any electronic document, information, or data residing or located, in whole or in part, on the system including but not limited to spreadsheets, calendar entries, appointments, tasks, notes, letters, reports, messages, photographs, or videos.

## 321.2 AGENCY PROPERTY

All information, data, documents, communications, and other entries initiated on, sent to or from, or accessed on any department computer or other department-issued electronic device, or through the department computer system or email system on any other computer, whether downloaded or transferred from the original department computer, shall remain the exclusive property of this department and shall not be available for personal or non-departmental use without the expressed authorization of an employee's supervisor or unless otherwise authorized by policy.

## 321.3 POLICY

It is the policy of the American Fork Police Department that members shall use information technology resources, including computers, software, and systems, that are issued or maintained by the [Department/Office] in a professional manner and in accordance with this policy.

## 321.4 RESTRICTED USE

Members shall not access computers, devices, software or systems for which they have not received prior authorization or the required training. Members shall immediately report unauthorized access or use of computers, devices, software or systems by another member to a supervisor.



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Members shall not use another person's access passwords, logon information and other individual security data, protocols and procedures unless directed to do so by a supervisor.

#### 321.4.1 SOFTWARE

Members shall not copy or duplicate any copyrighted or licensed software except for a single copy for backup purposes in accordance with the software company's copyright and license agreement.

To reduce the risk of a computer virus or malicious software, members shall not install any unlicensed or unauthorized software on any department computer. Members shall not install personal copies of any software onto any department computer.

When related to criminal investigations, software program files may be downloaded only with the authorization of the Chief of Police or the authorized designee.

No member shall knowingly make, acquire or use unauthorized copies of computer software that is not licensed to the department while on department premises, computer systems or electronic devices. Such unauthorized use of software could expose the department and involved members to severe civil and criminal penalties.

Introduction of software by members should only occur as part of the automated maintenance or update process of department- or City-approved or installed programs by the original manufacturer, producer or developer of the software. Any other introduction of software requires prior authorization from a supervisor, and any new software files shall be fully scanned for malicious attachments prior to installation.

#### 321.4.2 RESTRICTED TECHNOLOGY USE

Internet access provided by or through the department shall be limited to department-related activities, with the caveat that incidental personal use (as defined under Utah Code Section 76-8-402) of internet access provided through the department is authorized. Internet sites containing information that is not appropriate or applicable to department use and which shall not be intentionally accessed include, but are not limited to, adult forums, pornography, gambling, chat rooms and similar or related Internet sites. Certain exceptions may be permitted with the express approval of a supervisor as a function of a member's assignment.

Downloaded information shall be limited to messages, mail and data files.

Members shall not use or display any image on the background or screen saver of any department-issued technology device which is pornographic, sexually suggestive, or which could reasonably be viewed as being offensive to co-workers due to its sexual nature. Unless expressly authorized by a supervisor for law enforcement purposes, no department member shall view any image on any department-issued technology device which is pornographic, sexually suggestive, or which could reasonably be viewed as being offensive to a co-worker due to its sexual nature.

#### 321.4.3 HARDWARE

Access to technology resources provided by or through the department shall be limited to department-related activities, with the caveat that incidental personal use (as defined under Utah

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Code Section 76-8-402) of technology resources provided by the Department is authorized. Data stored on or available through department computer systems shall only be accessed by authorized members who are engaged in an active investigation or assisting in an active investigation, or who otherwise have a legitimate law enforcement or department-related purpose to access such data. Any exceptions to this policy must be approved by a supervisor.

#### **321.4.4 OFF-DUTY USE**

Members shall only use technology resources provided by the Department while on-duty or in conjunction with specific on-call assignments unless specifically authorized by a supervisor or unless otherwise authorized by policy. This includes the use of telephones, cell phones, texting, or email. This also applies to personally owned devices that are used to access department resources.

Refer to the Personal Communication Devices Policy for guidelines regarding off-duty use of personally owned technology.

#### **321.5 PRIVACY EXPECTATION**

Members forfeit any expectation of privacy with regard to emails, texts, or anything published, shared, transmitted, or maintained through file-sharing software or any internet site that is accessed, transmitted, received, or reviewed on any [department/office] computer system.

The [Department/Office] reserves the right to access, audit, and disclose, for whatever reason, any message, including attachments, and any information accessed, transmitted, received, or reviewed over any technology that is issued or maintained by the [Department/Office], including the [department/office] email system, computer network, and/or any information placed into storage on any [department/office] system or device. This includes records of all keystrokes or web-browsing history made at any [department/office] computer or over any [department/office] network. The fact that access to a database, service, or website requires a username or password will not create an expectation of privacy if it is accessed through [department/office] computers, electronic devices, or networks.

The [Department/Office] may not require a member to disclose a username and/or password that allows access to the member's personal internet accounts, except as may be provided in Utah Code 34-48-201.

#### **321.6 PROTECTION OF SYSTEMS AND FILES**

All members have a duty to protect the computer system and related systems and devices from physical and environmental damage and are responsible for the correct use, operation, care, and maintenance of the computer system.

Members shall ensure [department/office] computers and access terminals are not viewable by persons who are not authorized users. Computers and terminals should be secured, users logged off, and password protections enabled whenever the user is not present. Access passwords, logon information, and other individual security data, protocols, and procedures are confidential information and are not to be shared. Password length, format, structure, and content shall meet

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the prescribed standards required by the computer system or as directed by a supervisor and shall be changed at intervals as directed by IT staff or a supervisor. Passwords for accounts that access Criminal Justice Information (CJI) are governed by the CJIS Access, Maintenance, and Security Policy.

It is prohibited for a member to allow an unauthorized user to access the computer system at any time or for any reason. Members shall promptly report any unauthorized access to the computer system or suspected intrusion from outside sources (including the internet) to a supervisor.

#### **321.7 INSPECTION OR REVIEW**

A supervisor or the authorized designee has the express authority to inspect or review the computer system, all temporary or permanent files, related electronic systems or devices, and any contents thereof, whether such inspection or review is in the ordinary course of their supervisory duties or based on cause.

Reasons for inspection or review may include but are not limited to computer system malfunctions, problems or general computer system failure, a lawsuit against the [Department/Office] involving one of its members or a member's duties, an alleged or suspected violation of any [department/office] policy, a request for disclosure of data, or a need to perform or provide a service.

The IT staff may extract download, or otherwise obtain any and all temporary or permanent files residing or located in or on the [department/office] computer system when requested by a supervisor or during the course of regular duties that require such information.

# Report Preparation

## 322.1 PURPOSE AND SCOPE

Report preparation is a major part of each officer's job. The purpose of reports is to document sufficient information to refresh the officer's memory and to provide sufficient information for follow-up investigation and successful prosecution. Report writing is the subject of substantial formalized training and on-the-job training.

### 322.1.1 REPORT PREPARATION

Employees should ensure that reports are sufficiently detailed for their purpose and free from errors prior to submission. It is the responsibility of the assigned employee to complete and submit all reports taken during the shift before going off-duty unless permission to hold the report has been approved by a supervisor. Generally, reports requiring prompt follow-up action on active leads, or arrest reports where the suspect remains in custody should not be held.

Handwritten reports must be prepared legibly. If the report is not legible, the submitting employee will be required by the reviewing supervisor to promptly make corrections and resubmit the report. Employees who dictate reports shall use appropriate grammar, as content is not the responsibility of the typist. Employees who generate reports on computers are subject to all requirements of this policy.

All reports shall accurately reflect the identity of the persons involved, all pertinent information seen, heard or assimilated by any other sense, and any actions taken. Employees shall not suppress, conceal or distort the facts of any reported incident, nor shall any employee make a false report orally or in writing. Generally, the reporting employee's opinions should not be included in reports unless specifically identified as such.

## 322.2 REQUIRED REPORTING

Written reports are required in all of the following situations on the appropriate department-approved form unless otherwise approved by a supervisor.

### 322.2.1 CRIMINAL ACTIVITY

When a member responds to a call for service, or as a result of self-initiated activity becomes aware of any activity where a crime has occurred, the member shall document the incident regardless of whether a victim desires prosecution.

Activity to be documented in a written report includes:

- (a) All arrests
- (b) All felony or misdemeanor crimes
- (c) Any incident involving threats or stalking behavior
- (d) Situations covered by separate policy. These include:
  - 1. Use of Force Policy

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2. Domestic Violence Policy
3. Child Abuse Policy
4. Adult Abuse Policy
5. Hate Crimes Policy
6. Suspicious Activity Reporting Policy

#### 322.2.2 NON-CRIMINAL ACTIVITY

The following incidents shall be documented using the appropriate approved report:

- (a) Any time an officer points a firearm at any person
- (b) Any use of force against any person by a member of this department (see the Use of Force Policy)
- (c) Any firearm discharge (see the Firearms Policy)
- (d) Any time a person is reported missing, regardless of jurisdiction (see the Missing Persons Policy)
- (e) Any found property or found evidence
- (f) Any traffic collision above the minimum reporting level (see the Traffic Collision Reporting Policy)
- (g) Suspicious incidents that may indicate a potential for crimes against children or that a child's safety is in jeopardy
- (h) All protective custody detentions
- (i) Suspicious incidents that may place the public or others at risk
- (j) Whenever the employee believes the circumstances should be documented or at the direction of a supervisor

#### 322.2.3 DEATH CASES

Death investigations require specific investigation methods depending on circumstances and should be handled in accordance with the Death Investigations Policy. An officer handling a death investigation should notify and apprise a supervisor of the circumstances surrounding the incident and a determination will be made on how to proceed. All deaths shall be treated as a homicide until proven otherwise and shall be appropriately investigated and documented using the approved report.

#### 322.2.4 INJURY OR DAMAGE BY CITY PERSONNEL

Reports shall be taken if an injury occurs that is a result of an act of a City employee. Additionally, reports shall be taken involving damage to City property or City equipment.

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If the injury or damage is significant, or may expose the City to potential liability, a supervisor should be notified. Supervisors notified of such events should consider requesting an investigation by an allied agency, notification of the Chief of Police via chain of command and involvement of City Risk Management assistance.

#### 322.2.5 MISCELLANEOUS INJURIES

Any injury that is reported to this department shall require a report when:

- (a) The injury is a result of drug overdose.
- (b) Attempted suicide.
- (c) The injury is major/serious, whereas death could result.
- (d) The circumstances surrounding the incident are suspicious in nature and it is desirable to record the event.

The above reporting requirements are not intended to be all inclusive. A supervisor may direct an employee to document any incident he/she deems necessary.

#### 322.2.6 ALTERNATE REPORTING FOR VICTIMS

Reports that may be submitted by the public via online or other self-completed reporting processes may include:

- (a) Lost property.
- (b) Misdemeanor thefts of property, other than firearms or materials that threaten public safety, when there is no suspect information, serial number or ability to trace the item.
  - 1. Misdemeanor thefts of cellular telephones may be reported even though they have a serial number.
- (c) Misdemeanor vandalism or graffiti with no suspect information and no hate crime implications.
- (d) Vehicle burglaries with no suspect information or evidence.
- (e) Requests for extra patrol.
- (f) Annoying telephone calls with no suspect information.
- (g) Identity theft without an identifiable suspect.
- (h) Online or email fraud solicitations without an identifiable suspect and if the financial loss classifies the crime as a misdemeanor.
- (i) Supplemental property lists.
- (j) Report of a lost pet or animal.

Members at the scene of one of the above incidents should not refer the reporting party to an alternate means of reporting without authorization from a supervisor. Members may refer victims to online victim assistance programs (e.g., Federal Trade Commission (FTC) website for identity theft, Internet Crime Complaint Center (IC3) website for computer crimes).

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#### **322.3 EXPEDITIOUS REPORTING**

In general, all officers and supervisors shall act with promptness and efficiency in the preparation and processing of all reports. An incomplete report, unorganized reports or report completions delayed without supervisory approval are not acceptable. Reports shall be processed according to established priorities or according to special priority necessary under exceptional circumstances.

##### **322.3.1 HANDWRITTEN REPORTS**

Some incidents and report forms lend themselves to block print rather than typing. In general, the narrative portion of those reports where an arrest is made or when there is a long narrative should be typed or dictated.

Supervisors may require block printing or typing of reports of any nature for department consistency.

##### **322.3.2 GENERAL USE OF OTHER HANDWRITTEN FORMS**

County, state and federal agency forms may be block printed as appropriate. In general, the form, by design, may require typing.

#### **322.4 REPORT CORRECTIONS**

Supervisors shall review reports for content and accuracy. If a correction is necessary, the reviewing supervisor should complete the Report Correction form stating the reasons for rejection. The original report and the correction form should be returned to the reporting employee for correction as soon as practical. It shall be the responsibility of the originating officer to ensure that any report returned for correction is processed in a timely manner.

#### **322.5 REPORT CHANGES OR ALTERATIONS**

Reports that have been approved by a supervisor and submitted to the Records Section for filing and distribution shall not be modified or altered except by way of a supplemental report. Reviewed reports that have not yet been submitted to the Records Section may be corrected or modified by the authoring officer only with the knowledge and authorization of the reviewing supervisor.

#### **322.6 ELECTRONIC SIGNATURES**

The American Fork Police Department has established an electronic signature procedure for use by all employees of the American Fork Police Department. The Division Commander shall be responsible for maintaining the electronic signature system and ensuring that each employee creates a unique, confidential password for his/her electronic signature.

- Employees may only use their electronic signature for official reports or other official communications.
- Each employee shall be responsible for the security and use of his/her electronic signature and shall promptly notify a supervisor if the electronic signature has or may have been compromised or misused.

## Media Relations

### 323.1 PURPOSE AND SCOPE

This policy provides guidelines for the release of official department information to the media. It also addresses coordinating media access to scenes of disasters, criminal investigations, emergencies and other law enforcement activities.

### 323.2 POLICY

It is the policy of the American Fork Police Department to protect the privacy rights of individuals, while releasing non-confidential information to the media regarding topics of public concern. Information that has the potential to negatively affect investigations will not be released.

### 323.3 RESPONSIBILITIES

The ultimate authority and responsibility for the release of information to the media shall remain with the Chief of Police. In situations not warranting immediate notice to the Chief of Police and in situations where the Chief of Police has given prior approval, Division Commanders, Shift Sergeants, and designated Public Information Officers (PIOs) may prepare and release information to the media in accordance with this policy and the applicable laws regarding confidentiality.

### 323.4 PROVIDING ADVANCE INFORMATION

To protect the safety and rights of department members and other persons, advance information about planned actions by law enforcement personnel, such as movement of persons in custody or the execution of an arrest or search warrant, should not be disclosed to the media, nor should media representatives be invited to be present at such actions except with the prior approval of the Chief of Police.

Any exceptions to the above should only be considered for the furtherance of legitimate law enforcement purposes. Prior to approving any exception, the Chief of Police will consider, at a minimum, whether the release of information or the presence of the media would unreasonably endanger any individual or prejudice the rights of any person or is otherwise prohibited by law.

### 323.5 MEDIA REQUESTS

Any media request for information or access to a law enforcement incident shall be referred to the PIO, or if unavailable, to the first available supervisor. Prior to releasing any information to the media, members shall consider the following:

- (a) At no time shall any member of this department make any comment or release any official information to the media without prior approval from a supervisor or the PIO.
- (b) In situations involving multiple agencies or government departments, every reasonable effort should be made to coordinate media releases with the authorized representative of each involved agency prior to the release of any information by this department.



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- (c) Under no circumstance should any member of this department make any comment to the media regarding any law enforcement incident not involving this department without prior approval of the Chief of Police. Under these circumstances the member should direct the media to the agency handling the incident.

#### **323.6 ACCESS**

Authorized media representatives shall be provided access to scenes of disasters, criminal investigations, emergencies, and other law enforcement activities as required by law.

Access by the media is subject to the following conditions:

- (a) The media representative shall produce valid media credentials that shall be prominently displayed at all times while in areas otherwise closed to the public.
- (b) Media representatives should be prevented from interfering and may be removed for interfering with emergency operations and criminal investigations.
  - 1. Based upon available resources, reasonable effort should be made to provide a safe staging area for the media that is near the incident and that will not interfere with emergency or criminal investigation operations. All information released to the media should be coordinated through the PIO or other designated spokesperson.
- (c) Media interviews with individuals who are in custody should not be permitted without the approval of the Chief of Police and the express written consent of the person in custody.
- (d) No member of this [department/office] who is under investigation shall be subjected to media visits or interviews without the consent of the involved member.

##### **323.6.1 CRITICAL OPERATIONS**

A critical incident or tactical operation should be handled in the same manner as a crime scene, except the media should not be permitted within the inner perimeter of the incident, subject to any restrictions as determined by the supervisor in charge. Department members shall not jeopardize a critical incident or tactical operation in order to accommodate the media. All comments to the media shall be coordinated through a supervisor or the PIO.

##### **323.6.2 TEMPORARY FLIGHT RESTRICTIONS**

Whenever the presence of media or other aircraft pose a threat to public or member safety or significantly hamper incident operations, the field supervisor should consider requesting a Temporary Flight Restriction (TFR). All requests for a TFR should be routed through the Shift Sergeant. The TFR request should include specific information regarding the perimeter and altitude necessary for the incident and should be requested through the appropriate control tower. If the control tower is not known, the Federal Aviation Administration (FAA) should be contacted (14 CFR 91.137).

#### **323.7 CONFIDENTIAL OR RESTRICTED INFORMATION**

It shall be the responsibility of the designated department media representative to ensure that confidential or restricted information is not inappropriately released to the media (see the Records

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Maintenance and Release and Personnel Records policies). When in doubt, authorized and available legal counsel should be consulted prior to releasing any information.

#### **323.7.1 MEMBER INFORMATION**

The identities of officers involved in shootings or other critical incidents may only be released to the media upon the consent of the involved officer or upon a formal request.

Any requests for copies of related reports or additional information, including the identity of officers involved in shootings or other critical incidents, shall be referred to the designated department media representative.

Requests should be reviewed and fulfilled by the Division Commander, or if unavailable, the Shift Sergeant or the authorized designee. Such requests will be processed in accordance with the provisions of the Records Maintenance and Release Policy and public records laws (e.g., Government Records Access and Management Act).

#### **323.7.2 MINOR VICTIMS OF CRIMINAL HOMICIDE**

The [Department/Office] should not release the name or the personal identifying information of a minor victim of a criminal homicide to the media until reasonable steps have been taken to obtain the consent of the victim's parent or legal guardian to release the information (Utah Code 53-25-101).

#### **323.7.3 ONGOING CRIMINAL INVESTIGATIONS**

Media requests for information (but not records) about an ongoing criminal investigation should be evaluated by the Investigations Division Commander and the PIO. If a release of information could reasonably be expected to interfere with the investigation, the information shall not be released.

Requests for records regarding an ongoing criminal investigation shall be referred to the Support Services Division personnel handling public records requests. Upon receiving such a request, Support Services personnel should consult with the Investigations Division Commander. If release of the records could reasonably be expected to interfere with the investigation, the records shall not be released.

### **323.8 RELEASE OF INFORMATION**

Through its designated department media representative, the Department may release information to the media without receiving a specific request. This may include media releases regarding critical incidents, information of public concern, updates regarding significant incidents or requests for public assistance in solving crimes or identifying suspects. This information may also be released through the department website or other electronic data sources.

### **323.9 SECTION TITLE**

# Subpoenas and Court Appearances

## 324.1 PURPOSE AND SCOPE

This policy establishes the guidelines for department members who must appear in court.

## 324.2 POLICY

It is the policy of the American Fork Police Department that all members of the department will comply with all subpoenas that are issued requiring appearance for court matters. If a Department member believes a subpoena was issued in error, that the subpoena is improper, or that they will not be able to appear, they should promptly consult with their supervisor and the City Attorney and follow their direction regarding an appropriate response.

It is also the Department's policy that court appearances be done in a professional manner that contributes to the positive image and perception of the department.

Department members who attend court while off-duty shall be compensated fairly.

## 324.3 SUBPOENAS FOR COURT APPEARANCE

Only department members authorized to receive a subpoena on behalf of this department or any of its members may do so.

Criminal subpoenas may be served upon a member in accordance with Utah Rules of Criminal Procedure, Rule 14 by personally delivering a copy of the subpoena to the member.

Civil subpoenas may be served upon a member personally by leaving a copy at the member's residence with a person of suitable age and discretion who resides there, or by delivering a copy to an agent authorized by appointment or by law to receive process. The subpoena may also be served by mail, commercial courier service, or electronic delivery (Utah Rules of Criminal Procedure, Rules 45 & 4). Civil subpoenas shall not be accepted without properly posted fees (Utah Rules of Civil Procedure, Rule 45).

### 324.3.1 SUBPOENAS - SPECIAL NOTIFICATIONS

Any member who is subpoenaed to testify, agrees to testify, or provides information on behalf of or at the request of any party other than the city attorney's office or prosecutor shall notify his/her immediate supervisor without delay regarding:

- (a) Any civil case where the city or one of its members is a party as a result of his/her official capacity.
- (b) Any civil case where any other city, county, state, or federal unit of government, or a member of any such unit of government, is a party as a result of his/her official capacity.
- (c) Any criminal proceeding where the member is called to testify or provide information on behalf of the defense.
- (d) Any civil action stemming from the member's on-duty activity or because of his/her association with the American Fork Police Department.

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- (e) Any personnel or disciplinary matter when called to testify or to provide information by a government entity other than the American Fork Police Department.

The supervisor will then notify the Chief of Police and the appropriate prosecuting attorney as indicated by the case. The Chief of Police should determine if additional legal support is necessary.

No member shall be retaliated against for testifying in any matter.

#### 324.3.2 SUBPOENAS - CIVIL

The department will compensate members who appear in their official capacities on civil matters arising out of their official duties, as directed by the current memorandum of understanding.

The department should seek reimbursement for the member's compensation through the civil attorney of record who subpoenaed the member.

#### 324.3.3 SUBPOENAS - OFF-DUTY RELATED

Members receiving valid subpoenas for off-duty actions not related to their employment or appointment will not be compensated for their appearance. Arrangements for time off shall be coordinated through their immediate supervisors.

#### 324.3.4 SUBPOENAS - FAILURE TO APPEAR

Any member who fails to comply with the terms of any properly served subpoena or court-ordered appearance may be subject to discipline. This includes properly served order to appear that were issued by a state administrative agency.

### **324.4 PREPARATION FOR COURT APPEARANCE**

Department members are expected to be fully prepared for court appearances. This includes, but is not limited to, the review of available official reports, field notes, body-worn camera recordings, in-car camera recordings, evidence, and/or any other pertinent sources of information.

If a department member desires to accrue overtime to prepare for a court appearance, he/she shall follow the guidelines set forth in American Fork Police Department Policy 1020 (Overtime Compensation Requests.) This includes obtaining verbal authorization from his/her immediate supervisor *prior* to accruing overtime,

### **324.5 APPEARING IN COURT**

It is the policy of the department that officers appear in court in such a way as to reflect a high degree of competency and professionalism.

#### 324.5.1 COURT ATTIRE - SWORN DEPARTMENT MEMBERS

The required attire for sworn department members for in-person court appearances is the following:

- (a) **Uniform:** this includes a class B or class C patrol uniform.
- (b) **Business Professional:** this includes the following:

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- i. Men: button-down shirt with a tie, professional slacks, and dress shoes. A suit or suit coat is optional and not required.
- ii. Women: button-down shirt or other modest business-professional top, professional slacks, and dress shoes. A pant suit or skirt suit is optional and not required.

Unless otherwise directed by the Department or the party issuing the subpoena, sworn department members may choose between these two standards of attire for in-person court appearances.

For virtual court appearances, investigators assigned to the investigations division are also authorized to appear in their detective uniform, if desired.

#### 324.5.2 COURT ATTIRE - NON-SWORN DEPARTMENT MEMBERS

The required attire for non-sworn department members for both in-person and virtual court appearances is the following:

(a) **Business Professional:** this includes the following:

- i. Men: button-down shirt with a tie, professional slacks, and dress shoes. A suit or suit coat is optional and not required.
- ii. Women: button-down shirt or other modest business-professional top, professional slacks, and dress shoes. A pant suit or skirt suit is optional and not required.

#### 324.5.3 COURT PROTOCOL

When appearing in court, department members shall comply with the following:

- (a) Be punctual and prepared to proceed immediately with the case for which they are scheduled to appear.
- (b) Observe all rules of the court in which are appearing and remain alert to changes in the assigned courtroom where their matter is to be heard.

#### 324.5.4 COURT STANDBY

Occasionally, the court or the party that issued the subpoena may excuse an officer's requirement to be physically present at court inasmuch as the officer agrees to be on standby to be immediately summoned to court if needed.

If a member on standby changes his/her location during the standby period, the member shall notify the court or the party that issued the subpoena of how he/she can be contacted. Members are required to remain on standby until released by the court or the party that issued the subpoena.

#### 324.6 COMPENSATION FOR COURT APPEARANCE

It is the policy of the department that officers be compensated fairly with regard to court appearances.

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#### 324.6.1 IN-PERSON COURT APPEARANCE WHILE OFF DUTY

A department member who attends in-person court while off-duty shall be compensated a minimum of 2.5 hours of time, even if the court matter is resolved after the department member arrives or the department member completes the appearance in less than 2.5 hours.

For purposes of this policy section, "attends" begins when the department member enters the court building.

#### 324.6.2 VIRTUAL COURT APPEARANCE WHILE OFF DUTY

A department member who attends virtual court while off-duty shall be compensated a minimum of 2.5 hours of time, even if the court matter is resolved after the department member logs in or the department member completes the appearance in less than 2.5 hours.

For purposes of this policy section, "attends" begins when the department member is logged into the court hearing.

#### 324.6.3 COURT APPEARANCE WHILE ON DUTY

A department member who attends court while on duty will simply be compensated at his/her normal rate.

Department members are required to notify their supervisor as soon as reasonably practical of an upcoming, on-duty court appearance so that coverage arrangements may be made, if necessary.

#### 324.6.4 CANCELED COURT APPEARANCE

If a department member is canceled for a court appearance after having taken substantial steps to appear in court, but before the department member "attends" court as defined above, the department member shall consult with his/her immediate supervisor to discuss fair compensation for his/her efforts.

The Department's Sergeants, Lieutenants, and Division Commanders are authorized by the Chief of Police to approve what he/she feels is fair compensation for up to 2.5 hours under these circumstances.

## Reserve and Auxiliary Officers

### 325.1 PURPOSE AND SCOPE

The American Fork Police Department Reserve Unit was established to supplement and assist regular sworn police officers in their duties. This unit provides professional, sworn volunteer reserve officers who can augment regular staffing levels. For the purposes of this policy, "Reserve" includes reserve and auxiliary officers unless specifically described otherwise.

#### 325.1.1 DEFINITIONS

**Sworn** - Means having taken the oath of office set forth in Utah Constitution Article IV, Section 10, administered by the law enforcement agency for which a peace officer works.

**Reserve Officer** - Means a sworn and certified peace officer, whether paid or voluntary, who:

- (a) Is serving in a reserve capacity for a law enforcement agency that is part of or administered by the state or any of its political subdivisions.
- (b) Meets the basic and in-service training requirements of the peace officer classification in which the officer will function (Utah Code 53-13-111(3)).

**Auxiliary Officer** - Means a sworn, certified, and supervised special function officer, as described by Utah Code 53-13-112 and is a specific category of special function officer required to have the level of training of a special function officer as provided in Utah Code 53-13-105, including no fewer than 40 hours per year of in-service training (Utah Code 53-13-101; Utah Code 53-13-112).

**Volunteer** - Means an officer who donates service without pay or other compensation except expenses actually and reasonably incurred as approved by the supervising agency.

**While on-duty** - Means while an officer is actually performing the job duties and work activities assigned by the employing agency and for which the officer is trained and certified, and may include time spent outside those duties and activities if that additional time involves an activity that is an integral and necessary part of the job, and is spent for the benefit, and under the direction of, the employing agency (Utah Code 53-13-101(14)(a)). "While on-duty" does not include the time an officer spends commuting between home and place of employment unless that time involves an on-duty activity identified in Utah Code 53-13-101(14)(a) (Utah Code 53-13-101(14)(b)).

### 325.2 SELECTION AND APPOINTMENT OF POLICE RESERVE OFFICERS

The American Fork Police Department shall endeavor to recruit and appoint to the Reserve Unit only those applicants who meet the high ethical, moral and professional standards set forth by this Department.

#### 325.2.1 PROCEDURE

All applicants shall be required to meet and pass the same pre-employment procedures as regular police officers before appointment, including any state and or Police Officer Standards and Training (POST) requirements.

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#### 325.2.2 APPOINTMENT

Applicants who are selected for appointment to the Police Reserve Unit shall, on the recommendation of the Chief of Police, be sworn in by the City Recorder or his designee and take a loyalty oath to observe and obey all of the laws of the land and to carry out their duties to the best of their abilities.

The Department may utilize a sworn and certified peace officer in a reserve or auxiliary capacity (Utah Code 53-13-111(1)(a)).

#### 325.2.3 COMPENSATION FOR POLICE RESERVE OFFICERS

Compensation for reserve officers is provided as follows:

While serving as a non-paid volunteer in a reserve or auxiliary capacity, or working part-time for fewer hours than that which would qualify the officer as an "employee" under state or federal law, a peace officer is entitled to benefits in accordance with Utah Code, Title 67, Chapter 20, Volunteer Government Workers Act (Utah Code 53-13-111(2)).

All property issued to the reserve officer shall be returned to the department upon termination or resignation.

Reserve officers will not receive compensation prior to completing FTO training. After completing FTO training, and at the discretion of the department, reserve officers may have the opportunity to work paid hours for third party events. At the discretion of the department, reserve officers may be compensated for ten hours of directed patrol work per month as governed by administration of the department. Additional paid hours may be worked by the reserve officers for DUI enforcement, special assignments or events, and to cover shift shortages as determined by the command staff of the department.

#### 325.2.4 EMPLOYEES WORKING AS RESERVE OFFICERS

Qualified employees of this department, when authorized, may also serve as reserve officers. However, the Department must not utilize the services of a reserve or volunteer in such a way that it would violate employment laws or labor agreements (e.g., a detention officer working as a reserve officer for reduced or no pay). Therefore, the Reserve Coordinator should consult the Personnel Department prior to an employee serving in a reserve or volunteer capacity (29 CFR 553.30).

### 325.3 DUTIES OF RESERVE AND AUXILIARY OFFICERS

Reserve officers assist regular officers in the enforcement of laws and in maintaining peace and order within the community. Assignments of reserve officers will usually be to augment the Patrol Division. Reserve officers may be assigned to other areas within the Department as needed. Reserve officers are required to work a minimum of 10 hours per month.

A reserve or auxiliary officer has peace officer authority only while engaged in the reserve or auxiliary activities authorized by the Chief of Police and shall only exercise that spectrum of peace



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officer authority that the Department is empowered to delegate and for which the officer has been trained and certified (Utah Code 53-13-111(1)(b)).

An auxiliary officer (Special Function Officer or "SFO") is limited to the role of back-up to a law enforcement officer and may not initiate any action authorized for a law enforcement officer. An auxiliary officer may be separated from a law enforcement officer only under exigent circumstances or when engaged in functions not exclusive to law enforcement (Utah Code 53-13-112).

An auxiliary officer may exercise that spectrum of peace officer authority that has been designated by statute to the department, and only while on-duty, and not for the purpose of general law enforcement (Utah Code 53-13-105(2)(a)).

- (a) An auxiliary officer may not exercise the authority of a peace officer until the officer has satisfactorily completed an approved basic training program for special function officers and has been certified by the Chief of Police.

#### **325.3.1 POLICY COMPLIANCE**

Police reserve officers shall be required to adhere to every policy adopted by the Department. A copy of the Policy Manual will be made available to each reserve officer upon appointment and he/she shall become thoroughly familiar with these policies.

Whenever a rule, regulation or guideline in this manual refers to a sworn regular full-time officer, it shall also apply to a sworn reserve officer unless by its nature it is inapplicable.

#### **325.3.2 RESERVE OFFICER ASSIGNMENTS**

All reserve officers will be assigned to duties by any duty supervisor or Officer in Charge (OIC).

#### **325.3.3 RESERVE COORDINATOR**

The Patrol Division Commander or designee shall be responsible for administering the Reserve Officer program.

The Department member who administers the Reserve Officer program shall have the responsibility of, but not be limited to:

- (a) Assignment of reserve personnel.
- (b) Conducting reserve meetings.
- (c) Establishing and maintaining a reserve call-out roster.
- (d) Maintaining and ensuring performance evaluations are completed.
- (e) Monitoring individual reserve officer performance.
- (f) Monitoring overall Reserve Program.
- (g) Maintaining liaison with other agency Reserve Coordinators.

### **325.4 FIELD TRAINING**

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#### 325.4.1 TRAINING OFFICERS

Officers of the Department who demonstrate a desire and ability to train reserve officers may train the reserves during Phase II, subject to Shift Supervisor approval.

#### 325.4.2 PRIMARY TRAINING OFFICER

Upon completion of the academy, reserve officers will be assigned to a primary training officer. The primary training officer will be selected from members of the Field Training Officer (FTO) Committee. The reserve officer will be assigned to work with his/her primary training officer during the first 160 hours of training. This time shall be known as the Primary Training Phase.

#### 325.4.3 FIELD TRAINING MANUAL

Each new reserve officer will be issued a Field Training Manual at the beginning of his/her Primary Training Phase. This manual is an outline of the subject matter and/or skills necessary to properly function as an officer with the American Fork Police Department. The reserve officer shall become knowledgeable of the subject matter as outlined. The reserve officer shall also become proficient with those skills as set forth in the manual.

#### 325.4.4 COMPLETION OF THE PRIMARY TRAINING PHASE

At the completion of the Primary Training Phase the primary training officer will meet with the Reserve Coordinator. The purpose of this meeting is to discuss the progress of the reserve officer in training.

If the reserve officer has progressed satisfactorily, the reserve officer will then proceed to Phase II of the training. If he/she has not progressed satisfactorily, the Reserve Coordinator will determine the appropriate action to be taken.

#### 325.4.5 SECONDARY TRAINING PHASE

The Secondary Training Phase (Phase II) shall consist of 100 hours of additional on-duty training. The reserve officer will no longer be required to ride with the primary training officer. The reserve officer may now ride with any officer designated by the Shift Supervisor.

During Phase II of training, as with Phase I, the reserve officer's performance will be closely monitored. In addition, rapid progress should continue toward the completion of the Field Training Manual. At the completion of Phase II of training, the reserve officer will return to his/her primary training officer for Phase III.

#### 325.4.6 THIRD TRAINING PHASE

Phase III of training shall consist of 24 hours of additional on-duty training. For this training phase, the reserve officer will return to the original primary training officer. During this phase, the training officer will evaluate the reserve officer for suitability to graduate from the formal training program.

At the completion of Phase III, the primary training officer will meet with the Reserve Coordinator. Based upon the reserve officer's evaluations, plus input from the primary training officer, the Reserve Coordinator shall decide if the reserve officer has satisfactorily completed his/her formal training. If the reserve officer has progressed satisfactorily, the reserve officer will then graduate

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from the formal training process. If his/her progress is not satisfactory, the Reserve Coordinator will decide upon the appropriate action to be taken.

#### **325.4.7 COMPLETION OF THE FORMAL TRAINING PROCESS**

When a reserve officer has satisfactorily completed all three phases of formal training, the reserve officer will have had a minimum of 284 hours of on-duty training. He/she will no longer be required to ride with a reserve training officer. The reserve officer may now be assigned to ride with any officer for the remaining 200-hour requirement for a total of 484 hours before being considered for relief from immediate supervision.

#### **325.4.8 OFFICERS WITH PRIOR EXPERIENCE**

Officers who are or have been actively working in a law enforcement capacity but now wish to serve in a reserve or part-time status may be exempted from the complete new employee training process once they have demonstrated competency and proficiency as an Officer.

### **325.5 SUPERVISION OF RESERVE OFFICERS**

Reserve officers who have attained the status of Level II shall be under the immediate supervision of a regular sworn officer depending on their level of certification and number of hours with the Department.

Auxiliary officers shall work under the direction and immediate supervision of a certified law enforcement officer as defined in Utah Code 53-13-103.

#### **325.5.1 RESERVE OFFICER MEETINGS**

All reserve officer meetings will be scheduled and conducted by the Reserve Coordinator. All reserve officers are required to attend scheduled meetings. Any absences must be satisfactorily explained to the Reserve Coordinator.

#### **325.5.2 IDENTIFICATION OF RESERVE OFFICERS**

All reserve officers will be issued a uniform badge and a Department identification card. The uniform badge shall be the same as that worn by a regular full-time officer. The identification card will be the standard identification card with the exception that "Reserve" will be indicated on the card.

#### **325.5.3 UNIFORM AND EQUIPMENT**

The reserve officer uniform shall be the same as that worn by a regular full-time officer. Reserve officers shall conform to all uniform regulations and appearance standards of the [Department/Office].

All reserve officers shall have access to the same equipment as regular officers performing like functions.

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#### 325.5.4 INVESTIGATIONS AND COMPLAINTS

If a reserve officer has a complaint made against him/her or becomes involved in an internal investigation, that complaint or internal investigation may be investigated by the Reserve Coordinator, at the discretion of the Patrol Division Commander.

Reserve officers are considered at-will employees.

Any disciplinary action that may have to be administered to a reserve officer shall be accomplished as outlined in the Policy Manual.

#### 325.5.5 RESERVE OFFICER EVALUATIONS

While in training reserves will be continuously evaluated using standardized daily and weekly observation reports. The reserve will be considered a trainee until all of the training phases have been completed. Reserves having completed their field training will be evaluated annually using performance dimensions applicable to the duties and authorities granted to that reserve.

### **325.6 FIREARMS REQUIREMENTS**

#### 325.6.1 CARRYING WEAPON ON-DUTY

Reserve officers may carry a loaded firearm while on-duty. It is the policy of the Department to allow reserves to carry firearms only while on-duty or to and from duty.

Auxiliary officers may carry firearms only while on-duty, and only if authorized and under conditions specified by the Department (Utah Code 53-13-105(2)(c)).

#### 325.6.2 ADDITIONAL CONSIDERATIONS

A reserve officer shall not carry a concealed [department/office] firearm while in an off-duty capacity, other than to and from work. A personally owned firearm may be carried off-duty only if the officer possesses a valid Concealed Weapon License (CWL) issued by the Department of Public Safety, Bureau of Criminal Investigation or is otherwise authorized under state law or the Law Enforcement Officers' Safety Act (18 USC § 926B).

An instance may arise where a reserve officer is assigned to a plainclothes detail for their assigned tour of duty. Under these circumstances, the officer may be permitted to carry a weapon more suited to the assignment with the knowledge and approval of the supervisor in charge of the detail.

Any reserve officer who is permitted to carry a firearm other than the assigned duty weapon may do so only after verifying that the weapon conforms to [department/office] standards. The weapon must be registered by the reserve officer and be inspected and certified as fit for service by a [department/office] armorer.

Before being allowed to carry any optional firearm during an assigned tour of duty the reserve officer shall have demonstrated their proficiency with said weapon.

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#### **325.6.3 RESERVE OFFICER FIREARM TRAINING**

All reserve officers are required to maintain proficiency with firearms used in the course of their assignments. Reserve officers shall comply with all areas of the firearms training section of the Policy Manual, with the following exceptions:

- (a) All reserve officers are required to qualify semi-annually.
- (b) Should a reserve officer fail to qualify over a two-month period, that reserve officer will not be allowed to carry a firearm until proficiency has been reestablished.

#### **325.7 EMERGENCY CALL-OUT FOR RESERVE PERSONNEL**

Reserve personnel shall be subject to emergency call-out. The Department member who administers the Reserve Program shall develop a plan outlining an emergency call-out procedure for reserve personnel.

#### **325.8 LIABILITY PROTECTION**

Reserve officers shall be provided liability protection in the same manner as regular officers performing like functions.

## Outside Agency Assistance

### 326.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance to members when requesting or responding to a request for mutual aid or when assisting another law enforcement agency.

### 326.2 POLICY

It is the policy of the American Fork Police Department to provide assistance whenever possible, consistent with the applicable laws of arrest and detention policies of this department, when another law enforcement agency requests assistance. This department may also request an outside agency to provide assistance.

### 326.3 ASSISTING OUTSIDE AGENCIES

Generally, requests for any type of assistance from another agency should be routed through Dispatch, then directed to the Shift Supervisor for approval. Any on-duty member who receives a request from another law enforcement agency to participate in law enforcement activity in another jurisdiction shall obtain prior approval from the immediate supervisor or Shift Supervisor. If the request is emergency in nature, the member shall notify Dispatch before responding and thereafter notify a supervisor as soon as practicable. In some instances, a mutual aid agreement or other established protocol may exist that eliminates the need for approval of individual requests.

When another law enforcement agency requests assistance from this department, the Shift Sergeant may authorize, if available, an appropriate number of personnel to assist. Members are reminded that their actions when rendering assistance must conform with applicable laws and be consistent with the policies of this department.

Arrestees may be temporarily detained by this department until arrangements for transportation are made by the outside agency. Only in exceptional circumstances, and with the approval of the Shift Supervisor, will this department provide transportation of arrestees to other county facilities. When such assistance is rendered, a case number will be issued to report action taken by American Fork Police Department personnel. Probation violators detained by this department will be booked at the appropriate county facility.

#### 326.3.1 INITIATED ACTIVITY AND OFF-DUTY ACTIVITY

Prior to an officer taking any action beyond the limits of the officer's normal jurisdiction, the officer shall notify and receive approval of the local law enforcement authority, or if the prior contact is not reasonably possible, notify the local law enforcement authority as soon as reasonably possible (Utah Code 77-9-3).

Any on-duty officer who engages in law enforcement activities of any type that are not part of a mutual aid request and take place outside the jurisdiction of the American Fork Police Department shall notify his/her supervisor or the Shift Supervisor as soon as practicable. This requirement does not apply to special enforcement details or multi-agency units that regularly work in multiple jurisdictions.

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Any off-duty officer who engages in any law enforcement activities, regardless of jurisdiction shall notify the Shift Supervisor as soon as practical. The supervisor shall determine if a case report or other documentation of the officer's activity is required. The report or other documentation shall be forwarded to the officer's Division Commander.

#### **326.4 REQUESTING OUTSIDE ASSISTANCE**

If assistance is needed from another agency, the member requesting assistance shall first notify a supervisor. The handling member or supervisor should direct assisting personnel to where they are needed and to whom they should report when they arrive.

The requesting member should arrange for appropriate radio communication capabilities, if necessary and available, so that communication can be coordinated between assisting personnel.

#### **326.5 REPORTING REQUIREMENTS**

Incidents of outside assistance or law enforcement activities that are not documented in a crime report shall be documented in a general case report or as directed by the Shift Supervisor.

#### **326.6 MANDATORY SHARING**

Equipment and supplies purchased with federal funds or grants that require such equipment and supplies be shared with other agencies should be documented and updated as necessary by the Administration Division Commander or the authorized designee.

The documentation should include:

- (a) The conditions relative to sharing.
- (b) The training requirements for:
  - 1. The use of the supplies and equipment.
  - 2. The members trained in the use of the supplies and equipment.
- (c) Any other requirements for use of the equipment and supplies.

Copies of the documentation should be provided to the Shift Sergeant to ensure use of the equipment and supplies is in compliance with the applicable sharing agreements.

The Division Commander should maintain documentation that the appropriate members have received the required training.

## Registered Offender Information

### 327.1 PURPOSE AND SCOPE

This policy establishes guidelines by which the American Fork Police Department will address issues associated with certain offenders who are residing in the jurisdiction and how the [Department/Office] will disseminate information and respond to public inquiries for information about registered sex, kidnap, and child abuse offenders.

### 327.2 POLICY

It is the policy of the American Fork Police Department to identify and monitor registered offenders living within this jurisdiction and to take reasonable steps to address the risks those persons may pose.

### 327.3 REGISTRATION

The Investigation Unit supervisor shall establish a process to reasonably accommodate registration of certain offenders. The process should rebut any allegation on the part of the offender that the registration process was too confusing, burdensome, or difficult for compliance. If it is reasonable to do so, an investigator assigned to related investigations should conduct the registration in order to best evaluate any threat the person may pose to the community.

Upon conclusion of the registration process, the investigator shall ensure that the registration information is provided to the Utah Department of Public Safety (DPS).

The refusal of a registrant to provide any of the required information or complete the process should initiate a criminal investigation for failure to register (Utah Code 53-29-305).

#### 327.3.1 CONTENTS OF REGISTRATION

Members assigned to register offenders should obtain the following information from registering offenders (Utah Code 53-29-304):

- (a) All names and aliases
- (b) The primary and secondary residence addresses
- (c) A physical description, date of birth, height, weight, eye, and hair color
- (d) The make, model, color, year, plate number, and vehicle identification number of any vehicle or vehicles owned or driven more than 12 times per year
- (e) A current photograph
- (f) A set of fingerprints, if one has not already been provided
- (g) A DNA specimen, taken in accordance with Utah Code 53-10-404, if one has not already been provided
- (h) Telephone numbers and any other designations used for routing or self-identification in telephonic communications from fixed locations or cellular telephones



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- (i) Internet identifiers and any addresses used for routing or self-identification in internet communications or postings
- (j) The name and internet address of all websites on which the person is registered using an online identifier, including all online identifiers used to access those websites
- (k) A copy of any passport
- (l) If the person is an alien, all documents establishing immigration status
- (m) All professional licenses that authorize engaging in an occupation or carrying out a trade or business, including any identifiers, such as numbers
- (n) Each educational institution in Utah at which the person is employed, carries on a vocation, or is a student, and any change of enrollment or employment status at any educational institution
- (o) The name, telephone number, and address of any place of employment
- (p) The name, telephone number, and address of any place where the person volunteers
- (q) The person's Social Security number

Members assigned to register offenders should inform the offender of the duty to comply with the continuing registration requirements and identification card requirements, if applicable (Utah Code 53-29-302).

#### **327.4 MONITORING OF REGISTERED OFFENDERS**

The Investigation Unit supervisor should establish a system to periodically, and at least once annually, verify that a registrant remains in compliance with his/her registration requirements after the initial registration. This verification should include:

- (a) Efforts to confirm residence, such as a house visit of the declared residence.
- (b) Review of information on DPS's Sex, Kidnap, and Child Abuse Offender Notification and Registration (SONAR) website and the Child Abuse Offender Notification and Registration website.
- (c) Contact with a registrant's parole or probation officer.

Any discrepancies should be reported to DPS.

The Investigation Unit supervisor should also establish a procedure to routinely disseminate information regarding registered offenders to American Fork Police Department personnel, including timely updates regarding new or relocated registrants.

#### **327.5 DISSEMINATION OF PUBLIC INFORMATION**

Members will not unilaterally make a public notification advising the community of a particular registrant's presence in the community. Members who identify a significant risk or other public safety issue associated with a registrant should promptly advise their supervisor. The supervisor should evaluate the request and forward the information to the Chief of Police if warranted. A determination will be made by the Chief of Police, with the assistance of legal counsel as necessary, whether such a public alert should be made.

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Members of the public requesting information on registrants should be directed to the DPS's SONAR website for specific registrant information and photographs (Utah Code 53-29-404).

The Records Supervisor shall release local registered offender information to residents in accordance with Utah Code 53-29-303 and in compliance with a Government Records Access and Management Act (GRAMA) request.

#### **327.5.1 RELEASE NOTIFICATIONS**

Registrant information that is released should include notification that:

- (a) The offender registry includes only those persons who have been required by law to register and who are in compliance with the offender registration laws.
- (b) The information is provided as a public service and may not be current or accurate.
- (c) Persons should not rely solely on the offender registry as a safeguard against offenses in their communities.
- (d) The crime for which a person is convicted may not accurately reflect the level of risk.
- (e) Anyone who uses information contained in the registry to harass registrants or commit any crime may be subject to criminal prosecution.

#### **327.6 LEGAL MANDATES AND RELEVANT LAWS**

Members responsible for registering and entering sex, kidnap, or child abuse offenders into the database must be certified by the Utah DPS. To obtain and retain certification, the employee must receive initial and annual training from DPS (Utah Code 53-29-302).

The Training Officer will be responsible for ensuring the appropriate training and certifications are maintained.

# Major Incident Notification

## 328.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance to members of this department in determining when, how and to whom notification of major incidents should be made.

## 328.2 POLICY

The American Fork Police Department recognizes that certain incidents should be brought to the attention of supervisors or other specified personnel of this department to facilitate the coordination of activities and ensure that inquiries from the media and the public may be properly addressed.

## 328.3 MINIMUM CRITERIA FOR NOTIFICATION

Most situations where the media show a strong interest are also of interest to the Chief of Police and the affected Division Commander. The following list of incident types is provided as a guide for notification and is not intended to be all-inclusive:

- Homicides
- Kidnappings
- Aggravated crimes
- Traffic accidents with fatalities
- Officer-involved shooting on- or off-duty (See the Officer-Involved Shootings and Deaths Policy for special notifications)
- Significant injury or death to employee on- or off-duty
- Death of a prominent American Fork official
- Arrest of an American Fork Police Department employee, American Fork employee, or prominent American Fork official
- Aircraft crash with major damage and/or injury or death
- In-custody deaths
- Any law enforcement contact with an American Fork employee, American Fork official, or law enforcement official from another agency
- Any incident that may expose the Department to abnormally high levels of liability or shed a negative light on the Department

## 328.4 SHIFT SUPERVISOR RESPONSIBILITY

The Shift Supervisor or Officer in Charge (OIC) is responsible for making the appropriate notifications. The Shift Supervisor or Officer in Charge (OIC) shall make reasonable attempts to obtain as much information on the incident as possible before notification. The Shift Supervisor or Officer in Charge (OIC) shall attempt to make the notifications as soon as practical. Notification should be made by calling the department cellular phone first and any other contact number thereafter.

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#### 328.4.1 STAFF NOTIFICATION

In the event an incident occurs as described in this section's Minimum Criteria For Notification, the responsible supervisor shall notify the affected Division Commander, who shall then be responsible to notify the Chief of Police. If the responsible supervisor is unable to contact the affected Division Commander, they shall notify the Chief of Police directly.

#### 328.4.2 DETECTIVE NOTIFICATION

If the incident requires that a detective respond from home, the immediate supervisor of the appropriate detail shall be contacted.

#### 328.4.3 PUBLIC INFORMATION OFFICER (PIO)

The Public Information Officer shall be called after members of Staff have been notified that it appears the media may have a significant interest in the incident.

# Death Investigation

## 329.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for when officers initially respond to and investigate the circumstances of a deceased person. Some causes of death may not be readily apparent, and some cases differ substantially from what they appeared to be initially. Thorough death investigations and the use of appropriate resources and evidence-gathering techniques are critical.

## 329.2 INVESTIGATION CONSIDERATIONS

Officers shall approach all fatalities with the mindset that they are conducting a homicide investigation until available evidence indicates that the fatality was due to circumstances other than homicide.

Emergency Medical Services shall be called in all suspected death cases unless death is obvious (e.g., decapitated, decomposed).

A supervisor and on-call detective shall be notified as soon as possible to assist and provide appropriate personnel and resources in all death investigations. The on-scene supervisor should determine whether follow-up investigation is required and notify the Investigation Division Commander as necessary. The Shift Sergeant will make notification to command staff in accordance with the Major Incident Notification Policy.

### 329.2.1 [MEDICALEXAMINER/JOP] REQUEST

Officers are not authorized to pronounce death unless they are also Medical Examiner, Deputy Medical Examiner, or appointed Medical Examiner investigators. The Medical Examiner shall be called in all sudden or unexpected deaths, or deaths due to other than natural causes. State law requires that the Medical Examiner be notified in any of the following cases (Utah Code 26B-8-205; Utah Code 26B-8-206):

- (a) Unattended deaths wherein the deceased has not been attended by a physician in a professional capacity in the 365 days prior to death (Utah Code 26B-8-201).
- (b) Deaths by violence, gunshot, suicide, or accident.
- (c) Sudden death while in apparent good health.
- (d) Unattended deaths, except that an autopsy may only be performed in accordance with the provisions of Utah Code 26B-8-207.
- (e) The death is under suspicious or unusual circumstances.
- (f) The death results from poisoning or overdose of drugs.
- (g) The death results from diseases that may constitute a threat to the public health.
- (h) The death results from disease, injury, toxic effect, or unusual exertion incurred within the scope of the decedent's employment.
- (i) The death is due to sudden infant death syndrome.

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- (j) When a fetal death occurs without medical attendance at or immediately after the delivery or when inquiry is required by the Utah Medical Examiner Act (Utah Code 26B-8-115).
- (k) When there is a reason to believe that a child has died as a result of child abuse or neglect (Utah Code 80-2-604).
- (l) The death results while the decedent was in prison, jail, police custody, the state hospital, or in a detention or medical facility operated for the treatment of the mentally ill, emotionally disturbed, or delinquent persons.
- (m) The death is associated with diagnostic or therapeutic procedures.
- (n) When the death is being investigated as a homicide.
- (o) When a death results directly from the actions of a law enforcement officer.

#### 329.2.2 SEARCHING DEAD BODIES

- (a) The Medical Examiner, the Medical Examiner's assistant, and authorized investigators are generally the only persons permitted to move, handle, or search a dead body.
- (b) An officer may make a reasonable search of an individual who it is reasonable to believe is dead, or near death, for the purpose of identification or for information identifying the individual as an anatomical donor. If a donor document is located, the Medical Examiner or the Medical Examiner's assistant shall be promptly notified.
- (c) The Medical Examiner, with the permission of the [Department/Office], may take property, objects, or articles found on the deceased or in the immediate vicinity of the deceased that may be necessary for conducting an investigation to determine the identity of the deceased or the cause or manner of death.
- (d) Should exigent circumstances indicate to an officer that any other search of a known dead body is warranted prior to the arrival of the Medical Examiner or the Medical Examiner's assistant, the investigating officer should first obtain verbal consent from the Medical Examiner or the Medical Examiner's assistant when practicable.
- (e) Whenever reasonably possible, a witness, preferably a relative to the deceased or a member of the household, should be requested to remain nearby the scene and available to the officer pending the arrival of the Medical Examiner or the Medical Examiner's assistant. The name and address of this person shall be included in the narrative of the death report.
- (f) Whenever personal effects are removed from the body of the deceased by the Medical Examiner or the Medical Examiner's assistant, a receipt shall be obtained. This receipt shall be attached to the death report.

#### 329.2.3 DEATH NOTIFICATION

When practicable, and if not handled by the Medical Examiner's Office, notification to the next-of-kin of the deceased person shall be made, in person, by the most senior ranking officer on-duty, unless otherwise directed by a sergeant or above. If the next-of-kin lives in another jurisdiction, a law enforcement official from that jurisdiction shall be requested to make the personal notification. If the relatives live outside this county, the Medical Examiner may be requested to make the

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notification. The Medical Examiner needs to know if notification has been made. Assigned detectives may need to talk to the next-of-kin.

#### **329.2.4 UNIDENTIFIED DEAD BODIES**

If the identity of a dead body cannot be established, the Medical Examiner will assign a unique identifying number to the body and maintain a file under the assigned number. If possible, this number when applicable shall be included in any report.

#### **329.2.5 DEATH INVESTIGATION REPORTING**

All incidents involving a death shall be documented on the appropriate form.

#### **329.2.6 SUSPECTED HOMICIDE**

If the initially assigned officer suspects that the death involves a homicide or other suspicious circumstances, the officer shall take steps to protect the scene. The Investigation Unit shall be notified to determine the possible need for an investigator to respond to the scene.

If the supervisor, through consultation with the Shift Sergeant or Investigation Unit supervisor, is unable to determine the manner of death, the investigation shall proceed as though it is a homicide.

The investigator assigned to investigate a homicide or death that occurred under suspicious circumstances may, with the approval of his/her supervisor, request the Medical Examiner to conduct physical examinations and tests, and to provide a report.

If the case is believed to be a probable homicide, the County Attorney should be notified.

#### **329.2.7 EMPLOYMENT-RELATED DEATHS OR INJURIES**

Any member of this agency who responds to and determines that a death, serious illness, or serious injury has occurred as a result of an accident at, or in connection with, the victim's employment, should ensure that the nearest office of the Utah Division of Occupational Safety and Health is notified with all pertinent information.

### **329.3 POLICY**

It is the policy of the American Fork Police Department to respond, document, and investigate incidents where a person is deceased. Investigations involving the death of a person, including those from natural causes, accidents, workplace incidents, suicide, and homicide, shall be initiated, conducted and properly documented.

# Identity Fraud

## 330.1 SECTION TITLE

Identity fraud is a growing trend that frequently involves related crimes in multiple jurisdictions. This policy is intended to provide guidelines for the reporting and investigation of such crimes under the Identity Fraud Act (Utah Code 76-6-1101).

### 330.1.1 IDENTITY THEFT REPORTING INFORMATION SYSTEM (IRIS)

Officers should ensure that an IRIS report is made by a victim, even if the fraud is initially reported to the American Fork Police Department. Upon receiving identity fraud reports via IRIS, investigating officers should contact each victim to verify the situation, enter a case number, the investigating officer's contact information and the case status. This information is automatically returned to a victim's IRIS account, and can be used by the victim to begin resolving issues related to a fraud.

Investigating officers should utilize IRIS in all identity fraud investigations. Investigating officers should also encourage victims to make an IRIS report anytime personal information is stolen (e.g., theft of a driver's license, social security card) and encourage them to establish fraud alerts whenever personal information has been compromised.

## 330.2 REPORTING

(a) In an effort to maintain uniformity in reporting, officers presented with the crime of identity fraud (Utah Code 76-6-1102) shall initiate a report for victims residing within the jurisdiction of the Department. For incidents of identity fraud occurring outside this jurisdiction, officers should observe the following:

1. For any victim not residing within this jurisdiction, the officer may either take courtesy report to be forwarded to the victim's residence agency or the victim should be encouraged to promptly report the identity theft to the law enforcement agency where he/she resides.

(b) While the crime of identity theft should be reported to the law enforcement agency where the victim resides, officers of the Department should investigate and report crimes occurring within this jurisdiction which have resulted from the original identity theft (e.g., the identity theft occurred elsewhere, but the credit card fraud occurred and was reported in this jurisdiction).

(c) Officers should include all known incidents of fraudulent activity (e.g., credit card number applied for in victim's name when the victim has never made such an application).

(d) Officers should also cross-reference all known reports made by the victim (e.g., U.S. Secret Service, credit reporting bureaus, U.S. Postal Service and Department of Motor Vehicles) with all known report numbers.



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(e) Following supervisory review and Department processing, the initial report should be forwarded to the appropriate detective for follow up investigation, coordination with other agencies and prosecution as circumstances dictate.

#### **330.3 VICTIM REFERRAL TO IRIS**

If the victim is unable to respond to the Department, the victim should be informed of the Internet web site created by the Attorney General which allows a victim of an identity-related crime to report the crime on the web site and have the victim's report routed to the appropriate law enforcement agency for the jurisdiction in which the crime occurred (Utah Code 67-5-22). Web access to additional information is available at the Identity Theft Reporting Information System (IRIS).

## Temporary Detention by Private Persons

### 331.1 PURPOSE AND SCOPE

This policy provides guidance for the handling and acceptance of an individual temporarily detained by a private person.

### 331.2 POLICY

It is the policy of the American Fork Police Department to arrest an individual who has been temporarily detained by a private person only when legal and appropriate.

### 331.3 TEMPORARY DETENTIONS BY PRIVATE PERSONS

A private person may temporarily detain another under the following circumstances (Utah Code 77-7-3):

- (a) A public offense is committed or attempted in the private person's presence.
- (b) A felony has been committed, and the private person has reasonable cause to believe the individual being detained has committed it.
  - 1. Private persons may not detain an individual on suspicion that a felony has been committed. The felony must in fact have taken place.

For a temporary detention by a private person to be lawful, the private person must immediately notify law enforcement of the situation and the temporary detention unless they know another person has already done so, and the temporary detention lasts only until officers arrive (Utah Code 77-7-3).

### 331.4 OFFICER RESPONSIBILITIES

An officer confronted with a person claiming to have temporarily detained an individual should determine whether such a detention is lawful (Utah Code 77-7-7.1).

If the officer determines that the temporary detention is unlawful, the officer should:

- (a) Take no action to further detain or restrain the individual unless there is independent justification for continuing a detention.
- (b) Advise the parties that the detention will not be accepted but the circumstances will be documented in a report.
- (c) Document the incident, including the basis for refusing to accept custody of the individual.

Whenever an officer determines that a temporary detention by a private person is lawful, the officer may take the individual into custody and proceed in the same manner as with any other arrest (Utah Code 77-7-7.1)

### 331.5 PRIVATE PERSON'S TEMPORARY DETENTION FORM

The private person claiming to have made a temporary detention should be asked to complete and sign a witness statement and sign the citation. If the person fails or refuses to do so, the

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detained individual should be released, unless the officer has a lawful reason, independent of the private person's temporary detention, to take the individual into custody and determines an arrest is appropriate.

## Limited English Proficiency Services

### 332.1 PURPOSE AND SCOPE

This policy provides guidance to members when communicating with individuals with limited English proficiency (LEP) (42 USC § 2000d).

#### 332.1.1 DEFINITIONS

Definitions related to this policy include:

**Authorized interpreter** - A person who has been screened and authorized by this department to act as an interpreter and/or translator for others.

**Interpret or interpretation** - The act of listening to a communication in one language (source language) and orally converting it to another language (target language), while retaining the same meaning.

**Limited English proficient (LEP)** - Any individual whose primary language is not English and who has a limited ability to read, write, speak or understand English. These individuals may be competent in certain types of communication (e.g., speaking or understanding) but still be LEP for other purposes (e.g., reading or writing). Similarly, LEP designations are context-specific; an individual may possess sufficient English language skills to function in one setting but these skills may be insufficient in other situations.

**Qualified bilingual member** - A member of the American Fork Police Department, designated by the department, who has the ability to communicate fluently, directly and accurately in both English and another language. Bilingual members may be fluent enough to communicate in a non-English language but may not be sufficiently fluent to interpret or translate from one language into another.

**Translate or translation** - The replacement of written text from one language (source language) into an equivalent written text (target language).

### 332.2 POLICY

It is the policy of the American Fork Police Department to reasonably ensure that LEP individuals have meaningful access to law enforcement services, programs and activities, while not imposing undue burdens on its members.

This department will not discriminate against or deny any individual access to services, rights or programs based upon national origin or any other protected interest or right.

### 332.3 LEP COORDINATOR

The Chief of Police shall delegate certain responsibilities to an LEP Coordinator. The LEP Coordinator shall be appointed by, and directly responsible to, the Patrol Division Commander or the authorized designee.

The responsibilities of the LEP Coordinator include, but are not limited to:

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- (a) Coordinating and implementing all aspects of the American Fork Police Department's LEP services to LEP individuals.
- (b) Developing procedures that will enable members to access LEP services, including telephonic interpreters, and ensuring the procedures are available to all members.
- (c) Ensuring that a list of all qualified bilingual members and authorized interpreters is maintained and available to each Shift Supervisor and Dispatch Supervisor. The list should include information regarding the following:
  - 1. Languages spoken
  - 2. Contact information
  - 3. Availability
- (d) Ensuring signage stating that interpreters are available free of charge to LEP individuals is posted in appropriate areas and in the most commonly spoken languages.
- (e) Reviewing existing and newly developed documents to determine which are vital documents and should be translated, and into which languages the documents should be translated.
- (f) Annually assessing demographic data and other resources, including contracted language services utilization data and community-based organizations, to determine if there are additional documents or languages that are appropriate for translation.
- (g) Identifying standards and assessments to be used by this department to qualify individuals as qualified bilingual members or authorized interpreters.
- (h) Periodically reviewing efforts of this department in providing meaningful access to LEP individuals, and, as appropriate, developing reports, new procedures or recommending modifications to this policy.
- (i) Receiving and responding to complaints regarding department LEP services.
- (j) Ensuring appropriate processes are in place to provide for the prompt and equitable resolution of complaints and inquiries regarding discrimination in access to department services, programs and activities.

#### **332.4 FOUR-FACTOR ANALYSIS**

Since there are many different languages that members could encounter, this department will utilize the four-factor analysis outlined in the U.S. Department of Justice (DOJ) Guidance to Federal Financial Assistance Recipients, available at the DOJ website, to determine which measures will provide meaningful access to its services and programs. It is recognized that law enforcement contacts and circumstances will vary considerably. This analysis, therefore, must remain flexible and will require an ongoing balance of four factors, which are:

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- (a) The number or proportion of LEP individuals eligible to be served or likely to be encountered by department members, or who may benefit from programs or services within the jurisdiction of this department or a particular geographic area.
- (b) The frequency with which LEP individuals are likely to come in contact with department members, programs or services.
- (c) The nature and importance of the contact, program, information or service provided.
- (d) The cost of providing LEP assistance and the resources available.

#### **332.5 TYPES OF LEP ASSISTANCE AVAILABLE**

American Fork Police Department members should never refuse service to an LEP individual who is requesting assistance, nor should they require an LEP individual to furnish an interpreter as a condition for receiving assistance. This department will make every reasonable effort to provide meaningful and timely assistance to LEP individuals through a variety of services.

The department will utilize all reasonably available tools, such as language identification cards, when attempting to determine an LEP individual's primary language.

LEP individuals may choose to accept department-provided LEP services at no cost or they may choose to provide their own.

Department-provided LEP services may include, but are not limited to, the assistance methods described in this policy.

#### **332.6 WRITTEN FORMS AND GUIDELINES**

Vital documents or those that are frequently used should be translated into languages most likely to be encountered. The LEP Coordinator will arrange to make these translated documents available to members and other appropriate individuals, as necessary.

#### **332.7 AUDIO RECORDINGS**

The department may develop audio recordings of important or frequently requested information in a language most likely to be understood by those LEP individuals who are representative of the community being served.

#### **332.8 QUALIFIED BILINGUAL MEMBERS**

Bilingual members may be qualified to provide LEP services when they have demonstrated through established department procedures a sufficient level of skill and competence to fluently communicate in both English and a non-English language. Members utilized for LEP services must demonstrate knowledge of the functions of an interpreter/translator and the ethical issues involved when acting as a language conduit. Additionally, bilingual members must be able to communicate technical and law enforcement terminology, and be sufficiently proficient in the non-English language to perform complicated tasks, such as conducting interrogations, taking statements, collecting evidence or conveying rights or responsibilities.

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When a qualified bilingual member from this department is not available, personnel from other City departments, who have been identified by the department as having the requisite skills and competence, may be requested.

#### **332.9 AUTHORIZED INTERPRETERS**

Any person designated by this department to act as an authorized interpreter and/or translator must have demonstrated competence in both English and the involved non-English language, must have an understanding of the functions of an interpreter that allows for correct and effective translation, and should not be a person with an interest in the department case or investigation involving the LEP individual. A person providing interpretation or translation services may be required to establish the accuracy and trustworthiness of the interpretation or translation in a court proceeding.

Authorized interpreters must pass a screening process established by the LEP Coordinator which demonstrates that their skills and abilities include:

- (a) The competence and ability to communicate information accurately in both English and in the target language.
- (b) Knowledge, in both languages, of any specialized terms or concepts peculiar to this department and of any particularized vocabulary or phraseology used by the LEP individual.
- (c) The ability to understand and adhere to the interpreter role without deviating into other roles, such as counselor or legal adviser.
- (d) Knowledge of the ethical issues involved when acting as a language conduit.

##### **332.9.1 SOURCES OF AUTHORIZED INTERPRETERS**

The department may contract with authorized interpreters who are available over the telephone. Members may use these services with the approval of a supervisor and in compliance with established procedures.

Other sources may include:

- Qualified bilingual members of this department or personnel from other City departments.
- Individuals employed exclusively to perform interpretation services.
- Contracted in-person interpreters, such as state or federal court interpreters, among others.
- Interpreters from other agencies who have been qualified as interpreters by this department, and with whom the department has a resource-sharing or other arrangement that they will interpret according to department guidelines.

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#### **332.9.2 COMMUNITY VOLUNTEERS AND OTHER SOURCES OF LANGUAGE ASSISTANCE**

Language assistance may be available from community volunteers who have demonstrated competence in either monolingual (direct) communication and/or in interpretation or translation (as noted in above), and have been approved by the department to communicate with LEP individuals.

Where qualified bilingual members or other authorized interpreters are unavailable to assist, approved community volunteers who have demonstrated competence may be called upon when appropriate. However, department members must carefully consider the nature of the contact and the relationship between the LEP individual and the volunteer to ensure that the volunteer can provide neutral and unbiased assistance.

While family or friends of an LEP individual may offer to assist with communication or interpretation, members should carefully consider the circumstances before relying on such individuals. For example, children should not be relied upon except in exigent or very informal and non-confrontational situations.

#### **332.10 CONTACT AND REPORTING**

While all law enforcement contacts, services and individual rights are important, this department will utilize the four-factor analysis to prioritize service to LEP individuals so that such services may be targeted where they are most needed, according to the nature and importance of the particular law enforcement activity involved.

Whenever any member of this department is required to complete a report or other documentation and interpretation services are provided to any involved LEP individual, such services should be noted in the related report. Members should document the type of interpretation services utilized and whether the individual elected to use services provided by the department or some other identified source.

#### **332.11 RECEIVING AND RESPONDING TO REQUESTS FOR ASSISTANCE**

The American Fork Police Department will take reasonable steps and will work with the Personnel Department to develop in-house language capacity by hiring or appointing qualified members proficient in languages representative of the community being served.

#### **332.12 FIELD ENFORCEMENT**

Field enforcement will generally include such contacts as traffic stops, pedestrian stops, serving warrants and restraining orders, crowd/traffic control and other routine field contacts that may involve LEP individuals. The scope and nature of these activities and contacts will inevitably vary. Members and/or supervisors must assess each situation to determine the need and availability of language assistance to all involved LEP individuals and utilize the methods outlined in this policy to provide such assistance.

Although not every situation can be addressed in this policy, it is important that members are able to effectively communicate the reason for a contact, the need for information and the meaning



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or consequences of any enforcement action. For example, it would be meaningless to request consent to search if the officer is unable to effectively communicate with an LEP individual.

If available, officers should obtain the assistance of a qualified bilingual member or an authorized interpreter before placing an LEP individual under arrest.

#### **332.13 INVESTIGATIVE FIELD INTERVIEWS**

In any situation where an interview may reveal information that could be used as the basis for arrest or prosecution of an LEP individual and a qualified bilingual member is unavailable or lacks the skills to directly communicate with the LEP individual, an authorized interpreter should be used. This includes interviews conducted during an investigation with victims, witnesses and suspects. In such situations, audio recordings of the interviews should be made when reasonably possible. Identification and contact information for the interpreter (e.g., name, address) should be documented so that the person can be subpoenaed for trial if necessary.

If an authorized interpreter is needed, officers should consider calling for an authorized interpreter in the following order:

- An authorized department member or allied agency interpreter
- An authorized telephone interpreter
- Any other authorized interpreter

Any *Miranda* warnings shall be provided to suspects in their primary language by an authorized interpreter or, if the suspect is literate, by providing a translated *Miranda* warning card.

The use of an LEP individual's bilingual friends, family members, children, neighbors or bystanders may be used only when a qualified bilingual member or authorized interpreter is unavailable and there is an immediate need to interview an LEP individual.

#### **332.14 CUSTODIAL INTERROGATIONS**

Miscommunication during custodial interrogations may have a substantial impact on the evidence presented in a criminal prosecution. Only qualified bilingual members or, if none is available or appropriate, authorized interpreters shall be used during custodial interrogations. *Miranda* warnings shall be provided to suspects in their primary language by the qualified bilingual member or an authorized interpreter.

In order to ensure that translations during custodial interrogations are accurately documented and are admissible as evidence, interrogations should be recorded whenever reasonably possible. See guidance on recording custodial interrogations in the Investigation and Prosecution Policy.

#### **332.15 BOOKINGS**

When gathering information during the booking process, members should remain alert to the impediments that language barriers can create. In the interest of the arrestee's health and welfare, the safety and security of the facility, and to protect individual rights, it is important that accurate medical screening and booking information be obtained. Members should seek the assistance

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of a qualified bilingual member whenever there is concern that accurate information cannot be obtained or that booking instructions may not be properly understood by an LEP individual.

#### **332.16 COMPLAINTS**

The department shall ensure that LEP individuals who wish to file a complaint regarding members of this department are able to do so. The department may provide an authorized interpreter or translated forms, as appropriate.

Any notice required to be sent to an LEP individual as a complaining party pursuant to the Personnel Complaints Policy should be translated or otherwise communicated in a language-accessible manner.

#### **332.17 COMMUNITY OUTREACH**

Community outreach programs and other such services offered by this department are important to the ultimate success of more traditional law enforcement duties. This department will continue to work with community groups, local businesses and neighborhoods to provide equal access to such programs and services.

#### **332.18 TRAINING**

To ensure that all members who may have contact with LEP individuals are properly trained; the department will provide periodic training on this policy and related procedures, including how to access department-authorized telephonic and in-person interpreters and other available resources.

##### **332.18.1 TRAINING FOR AUTHORIZED INTERPRETERS**

All members on the authorized interpreter list must successfully complete prescribed interpreter training. To complete interpreter training successfully, an interpreter must demonstrate proficiency in and ability to communicate information accurately in both English and in the target language, demonstrate knowledge in both languages of any specialized terms or phraseology, and understand and adhere to the interpreter role without deviating into other roles, such as counselor or legal adviser.

Members on the authorized interpreter list must receive refresher training annually or they will be removed from the authorized interpreter list. This annual training should include language skills competency (including specialized terminology) and ethical considerations.

The Training Officer shall be responsible for coordinating the annual refresher training and will maintain a record of all training the interpreters have received.

# Communications with Persons with Disabilities

## 333.1 PURPOSE AND SCOPE

This policy provides guidance to members when communicating with individuals with disabilities, including those who are deaf or hard of hearing, have impaired speech or vision, or are blind.

### 333.1.1 DEFINITIONS

Definitions related to this policy include:

**Auxiliary aids** - These are used to communicate with people who have a disability or impairment. They include but are not limited to the use of gestures or visual aids to supplement oral communication; use of a notepad and pen or pencil to exchange written notes; use of a computer or typewriter; use of an assistive listening system or device to amplify sound; use of a teletypewriter (TTY) or videophones (video relay service or VRS); use of taped text; use of qualified readers; or use of a qualified interpreter.

**Disability or impairment** - A physical or mental impairment that substantially limits a major life activity, including hearing or seeing, regardless of whether the disabled person uses assistive or adaptive devices or auxiliary aids. Individuals who wear ordinary eyeglasses or contact lenses are not considered to have a disability (42 USC § 12102). This includes a person who has a hearing loss that requires the use of a Telecommunications Device for the Deaf (TDD) to communicate effectively on the telephone (UAC R746-8-405).

**Qualified interpreter** - A person who is able to interpret effectively, accurately, and impartially, both receptively and expressively, using any necessary specialized vocabulary. Qualified interpreters include oral interpreters, transliterators, sign language interpreters, and intermediary interpreters. When practical and available, qualified interpreters should have a certification approved by the Utah Division of Services for the Deaf and Hard of Hearing Interpreters Certification Board (Utah Code 35A-13-605; UAC R993-300-301 et seq.).

## 333.2 POLICY

It is the policy of the American Fork Police Department to reasonably ensure that people with disabilities, including victims, witnesses, suspects and arrestees have equal access to law enforcement services, programs and activities. Members must make efforts to communicate effectively with individuals with disabilities.

The American Fork Police Department will not discriminate against or deny any individual access to services, rights or programs based upon disabilities. It is further this Department's policy that all federal and state laws regarding communication with individuals with disabilities be followed.

## 333.3 AMERICANS WITH DISABILITIES (ADA) COORDINATOR

The Chief of Police shall delegate certain responsibilities to an ADA Coordinator (28 CFR 35.107).

The responsibilities of the ADA Coordinator shall include, but not be limited to:

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- (a) Working with the City ADA coordinator regarding the American Fork Police Department's efforts to ensure equal access to services, programs and activities.
- (b) Developing reports, new procedures, or recommending modifications to this policy.
- (c) Acting as a liaison with local disability advocacy groups or other disability groups regarding access to department services, programs and activities.
- (d) Ensuring that a list of qualified interpreter services is maintained and available to each Shift Supervisor and Dispatch Supervisor. The list should include information regarding the following:
  - 1. Contact Information
  - 2. Availability
- (e) Developing procedures that will enable members to access auxiliary aids or services, including qualified interpreters, and ensure the procedures are available to all members.
- (f) Ensuring signage is posted in appropriate areas, indicating that auxiliary aids are available free of charge to people with disabilities.
- (g) Ensuring appropriate processes are in place to provide for the prompt and equitable resolution of complaints and inquiries regarding discrimination in access to department services, programs and activities.

#### **333.4 FACTORS TO CONSIDER**

Because the nature of any law enforcement contact may vary substantially from one situation to the next, members of this department should consider all information reasonably available to them when determining how to communicate with an individual with a disability. Members should carefully balance all known factors in an effort to reasonably ensure people who are disabled have equal access to services, programs and activities. These factors may include, but are not limited to:

- (a) Members should not always assume that effective communication is being achieved. The fact that an individual appears to be nodding in agreement does not always mean he/she completely understands the message. When there is any doubt, members should ask the individual to communicate back or otherwise demonstrate their understanding.
- (b) The nature of the disability (e.g., deafness or blindness vs. hard of hearing or low vision).
- (c) The nature of the law enforcement contact (e.g., emergency vs. non-emergency, custodial vs. consensual contact).
- (d) The availability of auxiliary aids. The fact that a particular aid is not available does not eliminate the obligation to reasonably ensure access. However, in an emergency, availability may factor into the type of aid used.

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#### **333.5 INITIAL AND IMMEDIATE CONSIDERATIONS**

Recognizing that various law enforcement encounters may be potentially volatile and/or emotionally charged, members should remain alert to the possibility of communication problems.

Members should exercise special care in the use of all gestures, and verbal and written communication to minimize initial confusion and misunderstanding when dealing with any individual with known or suspected disabilities.

In a non-emergency situation, when a member knows or suspects an individual requires assistance to effectively communicate, the member shall identify the individual's choice of auxiliary aid or service.

The individual's preferred communication method must be honored unless another effective method of communication exists under the circumstances (28 CFR 35.160).

Factors to consider when determining whether an alternative method is effective include:

- (a) The methods of communication usually used by the individual.
- (b) The nature, length and complexity of the communication involved.
- (c) The context of the communication.

In emergency situations involving an imminent threat to the safety or welfare of any person, members may use whatever auxiliary aids and services that reasonably appear effective under the circumstances. This may include, for example, exchanging written notes or using the services of a person who knows sign language but is not a qualified interpreter, even if the person who is deaf or hard of hearing would prefer a qualified sign language interpreter or another appropriate auxiliary aid or service. Once the emergency has ended, the continued method of communication should be reconsidered. The member should inquire as to the individual's preference and give primary consideration to that preference.

If an individual who is deaf, hard of hearing or has impaired speech must be handcuffed while in the custody of the American Fork Police Department, consideration should be given, safety permitting, to placing the handcuffs in the front of the body to facilitate communication using sign language or writing.

#### **333.6 TYPES OF ASSISTANCE AVAILABLE**

American Fork Police Department members shall never refuse to assist an individual with disabilities who is requesting assistance. This department will not charge anyone to receive auxiliary aids, nor shall they require anyone to furnish their own auxiliary aid or service as a condition for receiving assistance. The department will make every reasonable effort to provide equal access and timely assistance to individuals who are disabled through a variety of services.

A person who is disabled may choose to accept department-provided auxiliary aids or services or they may choose to provide their own.

Department-provided auxiliary aids or services may include, but are not limited to, the assistance methods described in this policy.

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#### **333.7 AUDIO RECORDINGS AND ENLARGED PRINT**

This department may develop audio recordings to assist people who are blind or have a visual impairment with accessing important information. If such a recording is not available, members may read aloud from the appropriate form, for example a personnel complaint form, or provide forms with enlarged print.

#### **333.8 QUALIFIED INTERPRETERS**

An interpreter may be needed in lengthy or complex transactions (e.g., interviewing a victim, witness, suspect or arrestee), if the individual to be interviewed normally relies on sign language or speechreading (lip-reading) to understand what others are saying. Under such circumstances, a qualified interpreter is preferred, but the Department recognizes that circumstances may arise where it is not possible to obtain a qualified interpreter. When practical and available, an interpreter who is certified in either American Sign Language (ASL) or Signed English (SE) should be used. If a certified interpreter is not practical or available, prior approval must be obtained from a supervisor before using a non-certified interpreter. When a qualified interpreter is obtained, he or she should not be a person with an interest in the case or the investigation. A person providing interpretation services may be required to establish the accuracy and trustworthiness of the interpretation in a court proceeding.

Qualified interpreters should be:

- (a) Available within a reasonable amount of time, preferably no longer than one hour if requested.
- (b) Experienced in providing interpretation services related to law enforcement matters.
- (c) Familiar with the use of VRS and/or video remote interpreting services.
- (d) When practical and available, certified in either American Sign Language (ASL) or Signed English (SE).
- (e) Able to understand and adhere to the interpreter role without deviating into other roles, such as counselor or legal adviser.
- (f) Knowledgeable of the ethical issues involved when providing interpreter services.

Members should use department-approved procedures to request a qualified interpreter at the earliest reasonable opportunity, and generally not more than 15 minutes after a request for an interpreter has been made or it is reasonably apparent that an interpreter is needed. No individual who is disabled shall be required to provide his/her own interpreter (28 CFR 35.160).

#### **333.9 TTY AND RELAY SERVICES**

In situations where an individual without a disability would have access to a telephone (e.g., booking or attorney contacts), members must also provide those who are deaf, hard of hearing or have impaired speech the opportunity to place calls using an available TTY (also known as a telecommunications device for deaf people, or TDD). Members shall provide additional time, as needed, for effective communication due to the slower nature of TTY and TDD communications.

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The department will accept all TTY or TDD calls placed by those who are deaf or hard of hearing and received via a telecommunications relay service (28 CFR 35.162).

Note that relay services translate verbatim, so the conversation must be conducted as if speaking directly to the caller.

#### **333.10 COMMUNITY VOLUNTEERS**

Interpreter services may be available from community volunteers who have demonstrated competence in communication services, such as ASL or SE, and have been approved by the department to provide interpreter services.

Where qualified interpreters are unavailable to assist, approved community volunteers who have demonstrated competence may be called upon when appropriate. However, department members must carefully consider the nature of the contact and the relationship between the individual with the disability and the volunteer to ensure that the volunteer can provide neutral and unbiased assistance.

#### **333.11 FAMILY AND FRIENDS**

While family or friends may offer to assist with interpretation, members should carefully consider the circumstances before relying on such individuals. The nature of the contact and relationship between the individual with the disability and the person offering services must be carefully considered (e.g., victim/suspect).

Children shall not be relied upon except in emergency or critical situations when there is no qualified interpreter reasonably available.

Adults may be relied upon when (28 CFR 35.160):

- (a) There is an emergency or critical situation and there is no qualified interpreter reasonably available.
- (b) The person with the disability requests that the adult interpret or facilitate communication and the adult agrees to provide such assistance, and reliance on that adult for such assistance is reasonable under the circumstances.

#### **333.12 REPORTING**

Whenever any member of this department is required to complete a report or other documentation, and communication assistance has been provided, such services should be noted in the related report. Members should document the type of communication services utilized and whether the individual elected to use services provided by the department or some other identified source. If the individual's express preference is not honored, the member must document why another method of communication was used.

All written communications exchanged in a criminal case shall be attached to the report or placed into evidence.

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#### **333.13 FIELD ENFORCEMENT**

Field enforcement will generally include such contacts as traffic stops, pedestrian stops, serving warrants and restraining orders, crowd/traffic control and other routine field contacts that may involve individuals with disabilities. The scope and nature of these activities and contacts will inevitably vary.

This department recognizes that it would be virtually impossible to provide immediate access to complete communication services to every member of this department. Members and/or supervisors must assess each situation and consider the length, complexity and importance of the communication, as well as the individual's preferred method of communication, when determining the type of resources to use and whether a qualified interpreter is needed.

Although not every situation can be addressed in this policy, it is important that members are able to effectively communicate the reason for a contact, the need for information and the meaning or consequences of any enforcement action. For example, it would be meaningless to verbally request consent to search if the officer is unable to effectively communicate with an individual who is deaf or hard of hearing and requires communications assistance.

If available, officers should obtain the assistance of a qualified interpreter before placing an individual with a disability under arrest. Individuals who are arrested and are assisted by service animals should be permitted to make arrangements for the care of such animals prior to transport.

##### **333.13.1 FIELD RESOURCES**

Examples of methods that may be sufficient for transactions, such as checking a license or giving directions to a location or for urgent situations such as responding to a violent crime in progress, may, depending on the circumstances, include such simple things as:

- (a) Hand gestures or visual aids with an individual who is deaf, hard of hearing or has impaired speech.
- (b) Exchange of written notes or communications.
- (c) Verbal communication with an individual who can speechread by facing the individual and speaking slowly and clearly.
- (d) Use of computer, word processing, personal communication device or similar device to exchange texts or notes.
- (e) Slowly and clearly speaking or reading simple terms to individuals who have a visual or mental impairment.

Members should be aware that these techniques may not provide effective communication as required by law and this policy depending on the circumstances.

#### **333.14 CUSTODIAL INTERROGATIONS**

In an effort to ensure that the rights of individuals who are deaf, hard of hearing or have speech impairment are protected during a custodial interrogation, this department will provide interpreter services before beginning an interrogation, unless exigent circumstances exist or the individual



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has made a clear indication that he/she understands the process and desires to proceed without an interpreter. The use of a video remote interpreting service should be considered, where appropriate, if a live interpreter is not available. *Miranda* warnings shall be provided to suspects who are deaf or hard of hearing by a qualified interpreter or by providing a written *Miranda* warning card.

In order to ensure that communications during custodial investigations are accurately documented and are admissible as evidence, interrogations should be recorded whenever reasonably possible. See guidance on recording custodial interrogations in the Investigation and Prosecution Policy.

#### **333.15 ARRESTS AND BOOKINGS**

If an individual with speech or hearing disabilities is arrested, the arresting officer shall use department-approved procedures to provide a qualified interpreter at the place of arrest or booking as soon as reasonably practicable, unless the individual indicates that he/she prefers a different auxiliary aid or service or the officer reasonably determines another effective method of communication exists under the circumstances.

When gathering information during the booking process, members should remain alert to the impediments that often exist when communicating with those who are deaf, hard of hearing, who have impaired speech or vision, are blind, or have other disabilities. In the interest of the arrestee's health and welfare, the safety and security of the facility and to protect individual rights, it is important that accurate medical screening and booking information be obtained. If necessary, members should seek the assistance of a qualified interpreter whenever there is concern that accurate information cannot be obtained or that booking instructions may not be properly understood by the individual.

Individuals who require and possess personally owned communication aids (e.g., hearing aids, cochlear processors) should be permitted to retain them while in custody.

#### **333.16 COMPLAINTS**

This department shall ensure that individuals with disabilities who wish to file a complaint regarding members of the department are able to do so. The department may provide a qualified interpreter or forms in enlarged print, as appropriate.

Investigations into such complaints shall be handled in accordance with the Personnel Complaints Policy. Qualified interpreters used during the investigation of a complaint should not be members of this department.

#### **333.17 COMMUNITY OUTREACH**

Community outreach programs and other such services offered by this department are important to the ultimate success of more traditional law enforcement duties. This department will continue to work with community groups, local businesses and neighborhoods to provide equal access to such programs and services.

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#### **333.18 TRAINING**

To ensure that all members who may have contact with individuals who are disabled are properly trained, the department will provide periodic training that should include:

- (a) Awareness and understanding of this policy and related procedures, related forms and available resources.
- (b) Procedures for accessing qualified interpreters and other available resources.
- (c) Working with in-person and telephone interpreters and related equipment.

## Mandatory Employer Notification

### **334.1 PURPOSE AND SCOPE**

The purpose of this policy is to describe the notification requirements and procedures to follow when a school employee has been arrested for certain offenses.

### **334.2 POLICY**

The American Fork Police Department will meet the reporting mandates of Utah Code 53-10-211 to minimize the risks to children or others.

### **334.3 MANDATORY NOTIFICATION**

If a school employee is arrested, or the Department receives information from another jurisdiction of a school employee's arrest, for any of the following offenses, the Chief of Police or the authorized designee shall immediately report the arrest to the State Board of Education and the superintendent of the school district that employs the employee (Utah Code 53-10-211):

- (a) Any controlled substance offense under Utah Code 58-37-8
- (b) Any offense under Utah Code 76-5-4 et seq. (sexual offenses)
- (c) Any offense involving sexual conduct

If the person is an employee of a private school, notification shall be made to the State Board of Education and the administrator of the school.

## DNA Samples

### 335.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for the collection of DNA evidence from those persons (including qualified minors 14 years or older under Utah Code 53-10-403(3)) who are required to provide DNA specimens, which includes persons convicted or who pleaded guilty to any felony or class A misdemeanor under Utah law (Utah Code 53-10-403 et seq.).

Unless the department determines there are substantial reasons for using a different method of collection or the person refuses to cooperate with the collection, the preferred method of collection shall be obtaining a saliva specimen.

Every employee designated to collect DNA specimens will receive appropriate training to ensure that the specimens are obtained in accordance with accepted protocol.

#### 335.1.1 DEFINITIONS

**DNA** - Deoxyribonucleic acid.

**DNA specimen (or specimen)** - A sample of a person's saliva or blood.

### 335.2 PERSONS SUBJECT TO DNA COLLECTION

While the courts may order DNA samples taken in a variety of circumstances under the law, including post-conviction requests, members of this department are only authorized to obtain DNA samples from those qualifying persons under Utah law whose DNA sample is not currently on file with the Department of Public Safety (DPS) absent other lawful means (e.g., consent or a search warrant).

A person is required to provide one DNA specimen. The person shall provide an additional DNA specimen only if the DNA specimen previously provided is not adequate for analysis.

#### 335.2.1 ARRESTEES

Any adult booked into a county jail, who has been convicted or has pleaded guilty under any of the qualifying offenses listed in Utah Code 53-10-403(1)(c) is required to provide DNA samples. The person need not provide a sample if the jail staff can obtain information from the Bureau of Criminal Identification that the bureau has a DNA specimen on file for the person (Utah Code 53-10-404.5).

#### 335.2.2 SEX AND KIDNAP REGISTRANTS

Any adult or qualified juvenile 14 years or older who is required to register as a sex and/or kidnap offender defined in Utah Code 77-41-102 is required to submit a DNA sample (Utah Code 53-10-404, Utah Code 53-10-404).

At the time that any such person registers, updates registration or is notified by the DPS or other law enforcement officer, an appointment shall be made designating the time and place for the collection of DNA samples if no such sample has already been provided.

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#### **335.3 PROCEDURE**

Upon a determination that any individual is qualified and required to provide DNA samples under Utah law, the designated trained employee shall obtain DNA samples in accordance with this policy and proper protocol.

##### **335.3.1 BLOOD SAMPLES**

A blood sample shall be drawn in a medically acceptable manner by a licensed professional nurse, a licensed practical nurse, a paramedic, a qualified medical technician, a licensed physician or other person authorized by the state for this purpose (Utah Code 53-10-405(1)(a)).

##### **335.3.2 SALIVA SAMPLES**

A saliva sample shall be obtained in a professionally acceptable manner, using appropriate procedures to ensure the sample is adequate for DNA analysis. Every employee designated to collect saliva swab samples (taken from the inside of the mouth) will receive appropriate training to ensure that the specimens are obtained in accordance with accepted protocol.

A right thumbprint should be placed on the collector along with other required identifying information.

If an individual violently resists or presents other officer safety issues, employees may omit saliva swab samples upon approval of a supervisor.

##### **335.3.3 FULL PALM PRINTS**

Full palm print impressions shall be obtained on Department of Justice prescribed forms along with all DNA samples.

##### **335.3.4 USE OF FORCE TO OBTAIN SAMPLES**

If, after a written or oral request, a qualified person refuses to provide any or all of the required DNA samples, a sworn member of this department may complete a report of the refusal and may refer the person to the prosecuting attorney for additional criminal charges and may use reasonable force established by department guidelines and procedures to obtain such sample, which shall be under the following conditions (Utah Code 53-10-404(3)(c)):

- (a) Prior to the use of reasonable force, the officer shall take reasonable steps to secure voluntary compliance and shall document those steps.
- (b) Prior to the use of reasonable force, the officer should take reasonable steps to determine whether the DPS has on file a DNA specimen for the person.
- (c) Prior to the use of reasonable force, the officer shall obtain authorization from a supervisor, which shall minimally include that the individual was asked to provide the sample and refused.
- (d) If the authorized use of reasonable force includes a cell extraction, such extraction shall be videotaped.

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For the purpose of this section, the “use of reasonable force” shall be defined as the force that an objective, trained and competent officer faced with similar facts and circumstances would consider necessary and reasonable to gain compliance.

#### **335.4 PROCESSING DNA SAMPLES**

All DNA samples and related materials shall be promptly forwarded to the DPS laboratory using designated mailing tubes, labels and instructions for prompt analysis.

##### **335.4.1 NOTICE OF A REJECTED SAMPLE**

In the event the DPS notifies this department that a DNA sample is not usable, the individual whose original sample was provided is required to submit to collection of additional samples (Utah Code 53-10-404(4)(b)). The American Fork Police Department shall thereafter take all reasonable steps to collect additional samples from any such individual and promptly transmit these to the DPS.

##### **335.4.2 FOLLOW-UP NOTICE TO DEPARTMENT OF PUBLIC SAFETY**

Within 90 days of submitting any DNA specimen sample to the DPS, this department shall notify the DPS when charges for a qualifying offense have not been filed.

#### **335.5 MISUSE OR UNAUTHORIZED DISCLOSURE**

It is unlawful and a policy violation for any person to knowingly misuse or disclose to an unauthorized entity a DNA sample collected or profile obtained for DNA database purposes.

#### **335.6 LITIGATION**

The Chief of Police or a designee shall immediately notify the DPS in the event this department is named in a lawsuit involving the DNA sample collection, sample use or any aspect of the state's DNA Data Bank Program.

# Public Safety Video Surveillance System

## 336.1 PURPOSE AND SCOPE

This policy provides guidance for the placement and monitoring of department public safety video surveillance, as well as the storage and release of the captured images.

This policy only applies to overt, marked public safety video surveillance systems operated by the Department. It does not apply to mobile audio/video systems, covert audio/video systems or any other image-capturing devices used by the Department.

## 336.2 POLICY

The American Fork Police Department operates a public safety video surveillance system to complement its anti-crime strategy, to effectively allocate and deploy personnel, and to enhance public safety and security in public areas. Cameras may be placed in strategic locations throughout the City to detect and deter crime, to help safeguard against potential threats to the public, to help manage emergency response situations during natural and man-made disasters and to assist City officials in providing services to the community.

Video surveillance in public areas will be conducted in a legal and ethical manner while recognizing and protecting constitutional standards of privacy.

## 336.3 OPERATIONAL GUIDELINES

Only department-approved video surveillance equipment shall be utilized. Members authorized to monitor video surveillance equipment should only monitor public areas and public activities where no reasonable expectation of privacy exists. The Chief of Police or the authorized designee shall approve all proposed locations for the use of video surveillance technology and should consult with and be guided by legal counsel as necessary in making such determinations.

### 336.3.1 MONITORING

Camera placement will be guided by the underlying purpose or strategy associated with the overall video surveillance plan. If appropriate, the Chief of Police may confer with other affected City divisions and designated community groups when evaluating camera placement. Environmental factors, including lighting, location of buildings, presence of vegetation or other obstructions, should also be evaluated when determining placement.

Cameras shall only record video images and not sound. Recorded images may be used for a variety of purposes, including criminal investigations and monitoring of activity around high-value or high-threat areas. The public safety video surveillance system may be useful for the following purposes:

- (a) To prevent, deter and identify criminal activity.
- (b) To target identified areas of gang and narcotics complaints or activity.
- (c) To respond to critical incidents.
- (d) To assist in identifying, apprehending and prosecuting offenders.

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- (e) To document officer and offender conduct during interactions to safeguard the rights of the public and officers.
- (f) To augment resources in a cost-effective manner.
- (g) To monitor pedestrian and vehicle traffic activity.

Images from each camera should be recorded in a manner consistent with the underlying purpose of the particular camera. Images should be transmitted to monitors installed in the department facilities. When activity warranting further investigation is reported or detected at any camera location, the available information should be provided to responding officers in a timely manner. The Division Commander may authorize any department employee to adjust the cameras to more effectively view a particular area for any legitimate public safety purpose.

The Chief of Police may authorize video feeds from the public safety video surveillance system to be forwarded to a specified location for monitoring by other than police personnel, such as allied government agencies, road or traffic crews, or fire or emergency operations personnel.

Unauthorized recording, viewing, reproduction, dissemination or retention is prohibited.

#### **336.3.3 CAMERA MARKINGS**

Except in the case of covert operations or confidential investigations, all public areas that are monitored by public safety surveillance equipment shall be marked in a conspicuous manner with appropriate signs to inform the public that the area is under surveillance. Signs should be well lit, placed appropriately and without obstruction to ensure visibility.

#### **336.3.3 INTEGRATION WITH OTHER TECHNOLOGY**

The Department may elect to integrate its public safety video surveillance system with other technology to enhance available information. Systems such as gunshot detection, incident mapping, crime analysis, license plate recognition, facial recognition and other video-based analytical systems may be considered based upon availability and the nature of department strategy.

The Department should evaluate the availability and propriety of networking or otherwise collaborating with appropriate private sector entities and should evaluate whether the use of certain camera systems, such as pan-tilt-zoom systems and video enhancement or other analytical technology, requires additional safeguards.

#### **336.4 STORAGE AND RETENTION OF MEDIA**

All downloaded media shall be stored in a secure area with access restricted to authorized persons. A recording needed as evidence shall be copied to a suitable medium and booked into evidence in accordance with established evidence procedures. All actions taken with respect to retention of media shall be appropriately documented.

The type of video surveillance technology employed and the manner in which recordings are used and stored will affect retention periods. The recordings should be stored and retained in accordance with the established records retention schedule.



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#### 336.4.1 EVIDENTIARY INTEGRITY

All downloaded and retained media shall be treated in the same manner as other evidence. Media shall be accessed, maintained, stored and retrieved in a manner that ensures its integrity as evidence, including strict adherence to chain of custody requirements. Electronic trails, including encryption, digital masking of innocent or uninvolved individuals to preserve anonymity, authenticity certificates and date and time stamping, shall be used when appropriate and reasonably available to preserve individual rights and to ensure the authenticity and maintenance of a secure evidentiary chain of custody.

#### 336.5 RELEASE OF VIDEO IMAGES

All recorded video images gathered by the public safety video surveillance equipment are for the official use of the American Fork Police Department.

Requests for recorded video images from the public or the media shall be processed in the same manner as requests for department public records.

Requests for recorded images from other law enforcement agencies shall be referred to the Shift Sergeant for release in accordance with a specific and legitimate law enforcement purpose.

Recorded video images that are the subject of a court order or subpoena shall be processed in accordance with the established department subpoena process.

#### 336.5.1 PUBLIC AND OTHER AGENCY REQUESTS

Requests for recorded video images from other government agencies or by the submission of a court order or subpoena shall be promptly submitted to the Detective Division Commander, who will promptly research the request and submit the results of such search through the Chief of Police to the City Attorney's office for further handling. Every reasonable effort should be made to preserve the data requested until the request has been fully processed by the City Attorney's office.

Video images captured by public safety cameras that are requested by the public or media will be made available only to the extent required by law. Except as required by a valid court order or other lawful process, video images requested under the Government Records Access and Management Act (GRAMA) will generally not be disclosed to the public when such video images are evidence in an ongoing criminal investigation in which a disposition has not been reached.

#### 336.6 VIDEO SUPERVISION

Supervisors should monitor video surveillance access and usage to ensure members are within department policy and applicable laws. Supervisors should ensure such use and access is appropriately documented.

#### 336.6.1 VIDEO LOG

A log should be maintained at all locations where video surveillance monitors are located. The log should be used to document all persons not assigned to the monitoring locations who have

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been given access to view or monitor images provided by the video surveillance cameras. The logs should, at a minimum, record the:

- (a) Date and time access was given.
- (b) Name and agency of the person being given access to the images.
- (c) Name of person authorizing access.
- (d) Identifiable portion of images viewed.

#### **336.6.2 PROHIBITED ACTIVITY**

Public safety video surveillance systems will not intentionally be used to invade the privacy of individuals or observe areas where a reasonable expectation of privacy exists.

Public safety video surveillance equipment shall not be used in an unequal or discriminatory manner and shall not target individuals or groups based solely on actual or perceived characteristics such as race, ethnicity, national origin, religion, sex, sexual orientation, gender identity or expression, economic status, age, cultural group, or disability.

Video surveillance equipment shall not be used to harass, intimidate, or discriminate against any individual or group.

#### **336.7 TRAINING**

All department members authorized to operate or access public video surveillance systems shall receive appropriate training. Training should include guidance on the use of cameras, interaction with dispatch and patrol operations and a review regarding relevant policies and procedures, including this policy. Training should also address state and federal law related to the use of video surveillance equipment and privacy.

## Child and Dependent Adult Safety

### 337.1 PURPOSE AND SCOPE

This policy provides guidelines to ensure that children and dependent adults are not left without appropriate care in the event their caregiver or guardian is arrested or otherwise prevented from providing care due to actions taken by members of this department.

This policy does not address the actions to be taken during the course of a child abuse or dependent adult investigation. These are covered in the Child Abuse Policy and the Adult Abuse Policy.

### 337.2 POLICY

It is the policy of this department to mitigate, to the extent reasonably possible, the stressful experience individuals may have when their parent or caregiver is arrested. The American Fork Police Department will endeavor to create a strong, cooperative relationship with local, state and community-based social services to ensure an effective, collaborative response that addresses the needs of those affected, including call-out availability and follow-up responsibilities.

### 337.3 PROCEDURES DURING AN ARREST

When encountering an arrest or prolonged detention situation, officers should make reasonable attempts to determine if the arrestee is responsible for children or dependent adults. In some cases this may be obvious, such as when children or dependent adults are present. However, officers should inquire if the arrestee has caregiver responsibilities for any children or dependent adults who are without appropriate supervision. The following steps should be taken:

- (a) Inquire about and confirm the location of any children or dependent adults.
- (b) Look for evidence of children and dependent adults. Officers should be mindful that some arrestees may conceal the fact that they have a dependent for fear the individual may be taken from them.
- (c) Consider inquiring of witnesses, neighbors, friends and relatives of the arrestee as to whether the person is responsible for a child or dependent adult.

Whenever reasonably possible, officers should take reasonable steps to accomplish the arrest of a parent, guardian or caregiver out of the presence of his/her child or dependent adult. Removing children or dependent adults from the scene in advance of the arrest will generally ensure the best outcome for the individual.

Whenever it is safe to do so, officers should allow the parent or caregiver to assure children or dependent adults that they will be provided care. If this is not safe or if the demeanor of the parent or caregiver suggests this conversation would be non-productive, the officer at the scene should explain the reason for the arrest in age-appropriate language and offer reassurance to the child or dependent adult that he/she will receive appropriate care.

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#### 337.3.1 AFTER AN ARREST

Whenever an arrest is made, the officer should take all reasonable steps to ensure the safety of the arrestee's disclosed or discovered children or dependent adults.

Officers should allow the arrestee reasonable time to arrange for care of children and dependent adults. Temporary placement with family or friends may be appropriate. However, any decision should give priority to a care solution that is in the best interest of the child or dependent adult. In such cases the following guidelines should be followed:

- (a) Allow the person reasonable time to arrange for the care of children and dependent adults with a responsible party, as appropriate.
  - 1. Officers should consider allowing the person to use his/her cell phone to facilitate arrangements through access to contact phone numbers, and to lessen the likelihood of call screening by the recipients due to calls from unknown sources.
- (b) Unless there is evidence to the contrary (e.g., signs of abuse, drug use, unsafe environment), officers should respect the parent or caregiver's judgment regarding arrangements for care. It is generally best if the child or dependent adult remains with relatives or family friends that he/she knows and trusts because familiarity with surroundings and consideration for comfort, emotional state and safety are important.
  - 1. Except when a court order exists limiting contact, the officer should attempt to locate and place children or dependent adults with the non-arrested parent, guardian or caregiver.
- (c) Provide for the immediate supervision of children or dependent adults until an appropriate caregiver arrives.
- (d) Notify Child Protective Services, if appropriate.
- (e) Notify the field supervisor or Shift Sergeant of the disposition of children or dependent adults.

If children or dependent adults are at school or another known location outside the household at the time of arrest, the arresting officer should attempt to contact the school or other known location and inform the principal or appropriate responsible adult of the caregiver's arrest and of the arrangements being made for the care of the arrestee's dependent. The result of such actions should be documented in the associated report.

#### 337.3.2 REPORTING

- (a) For all arrests where children are present or living in the household, the reporting member will document the following information:
  - 1. Name
  - 2. Sex
  - 3. Age

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4. Special needs (e.g., medical, mental health)
  5. How, where and with whom or which agency the child was placed
  6. Identities and contact information for other potential caregivers
  7. Notifications made to other adults (e.g., schools, relatives)
- (b) For all arrests where dependent adults are present or living in the household, the reporting member will document the following information:
1. Name
  2. Sex
  3. Age
  4. Whether he/she reasonably appears able to care for him/herself
  5. Disposition or placement information if he/she is unable to care for him/herself

#### **337.3.3 SUPPORT AND COUNSELING REFERRAL**

If, in the judgment of the handling officers, the child or dependent adult would benefit from additional assistance, such as counseling services, contact with a victim advocate or a crisis telephone number, the appropriate referral information may be provided.

#### **337.4 DEPENDENT WELFARE SERVICES**

Whenever an arrestee is unwilling or incapable of arranging for the appropriate care of any child or dependent adult, the handling officer should contact the appropriate welfare service or other department-approved social service to determine whether protective custody is appropriate.

Only when other reasonable options are exhausted should a child or dependent adult be transported to the police facility, transported in a marked law enforcement vehicle or taken into formal protective custody.

Under no circumstances should a child or dependent adult be left unattended or without appropriate care.

## Service Animals

### 338.1 PURPOSE AND SCOPE

Service animals play an important role in helping to overcome the limitations often faced by people with disabilities. The American Fork Police Department recognizes this need and is committed to making reasonable modifications to its policies, practices, and procedures in accordance with Title II of the Americans with Disabilities Act of 1990 (ADA) to permit the use of service animals that are individually trained to assist a person with a disability.

### 338.2 SERVICE ANIMALS

The ADA defines a service animal as any dog or miniature horse that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including a physical, sensory, psychiatric, intellectual or other mental disability. The work or tasks performed by a service animal must be directly related to the owner's disability (28 CFR 35.104).

#### 338.2.1 USE OF SERVICE ANIMALS

Some service animals may be readily identifiable. However, many do not have a distinctive symbol, harness or collar. Service animals are not pets and may be trained by an individual or organization to assist people with disabilities.

Service animals may be used in a number of ways to provide assistance, including:

- Guiding people who are blind or have low vision.
- Alerting people who are deaf or hard of hearing.
- Retrieving or picking up items, opening doors or flipping switches for people who have limited use of their hands, arms or legs.
- Pulling wheelchairs.
- Providing physical support and assisting people with stability and balance.
- Doing work or performing tasks for persons with traumatic brain injury, intellectual disabilities or psychiatric disabilities, such as reminding a person with depression to take medication.
- Alerting a person with anxiety to the onset of panic attacks, providing tactile stimulation to calm a person with post-traumatic stress disorder, assisting people with schizophrenia to distinguish between hallucinations and reality and helping people with traumatic brain injury to locate misplaced items or follow daily routines.

### 338.3 EMPLOYEE RESPONSIBILITIES

Service animals that are assisting individuals with disabilities are permitted in all public facilities and areas where the general public is allowed. Department members are expected to treat individuals with service animals with the same courtesy and respect that the American Fork Police Department affords to all members of the public.

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If an animal exhibits vicious behavior, poses a direct threat to the health of others or unreasonably disrupts or interferes with normal business operations an officer may direct the owner to remove the animal from the premises. Barking alone is not a threat nor does a direct threat exist if the person takes prompt, effective action to control the animal. Each incident must be considered individually and past incidents alone are not cause for excluding a service animal. Removal of a service animal may not be used as a reason to refuse service to an individual with disabilities. Members of this department are expected to provide all services as are reasonably available to an individual with the disability.

If it is apparent or if an officer is aware the animal is a service animal, the owner should not be asked any questions as to the status of the animal. If it is unclear whether an animal meets the definition of a service animal, the officer should ask the individual only the following questions:

- Is the animal required because of a disability?
- What task or service has the service animal been trained to perform?

If the individual explains that the animal is required because of a disability and has been trained to work or perform at least one task the animal meets the definition of a service animal and no further question as to the animal's status should be asked. The person should not be questioned about his/her disabilities nor should the person be asked to provide any license, certification or identification card for the service animal.

Service animals are not pets. Department members should not interfere with the important work performed by a service animal by talking to, petting, or otherwise initiating contact with a service animal.

When handling calls of a complaint regarding a service animal, members of this department should remain neutral and should be prepared to explain the ADA requirements concerning service animals to the concerned parties. Businesses are required to allow service animals to accompany their owner into all areas that other customers or members of the public are allowed.

Absent a violation of law independent of the ADA, officers should take no enforcement action beyond keeping the peace. Individuals who believe they have been discriminated against as a result of a disability should be referred to the Civil Rights Division of the U.S. Department of Justice.

## Volunteer Program

### **339.1 PURPOSE AND SCOPE**

It is the policy of this department to use qualified volunteers for specified tasks and duties in order to create efficiencies for the department and improve services to the community. Volunteers are intended to supplement and support, rather than supplant, sworn officers and civilian personnel. Volunteers can be an important part of any organization and have proven to be a valuable asset to law enforcement agencies. Volunteers help to increase departmental responsiveness, delivery of services and information input, and provide new program opportunities. In addition, volunteers bring new skills and expertise to the department and prompt new enthusiasm.

#### **339.1.1 DEFINITION OF VOLUNTEER**

An individual who performs a service for the department without promise, expectation or receipt of compensation for services rendered. This may include unpaid chaplains, unpaid reserve officers, interns, persons providing administrative support and youth involved in a law enforcement Explorer Post, among others.

### **339.2 VOLUNTEER MANAGEMENT**

#### **339.2.1 VOLUNTEER COORDINATOR**

The Volunteer Coordinator shall be appointed by the Chief of Police. The function of the Volunteer Coordinator is to provide a central coordinating point for effective volunteer management within the department, and to direct and assist staff and volunteer efforts to jointly provide more productive services. The Volunteer Coordinator should work with other department staff on an ongoing basis to assist in the development and implementation of volunteer-staffed positions.

The Volunteer Coordinator, or his/her designee, shall be responsible for the following:

- (a) Recruiting, selecting and training qualified volunteers for various positions.
- (b) Facilitating the implementation of new volunteer activities and assignments.
- (c) Maintaining records for each volunteer.
- (d) Tracking and evaluating the contribution of volunteers.
- (e) Maintaining the volunteer handbook and outlining expectations, policies and responsibilities for all volunteers.
- (f) Maintaining a record of volunteer schedules and work hours.
- (g) Completion and dissemination as appropriate of all necessary paperwork and information.
- (h) Planning periodic recognition events.
- (i) Administering discipline when warranted.



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- (j) Maintaining liaison with other volunteer-utilizing programs in the community and assisting in community-wide efforts to recognize and promote volunteering.

#### 339.2.2 RECRUITMENT

Volunteers should be recruited on a continuous and ongoing basis consistent with department policy on equal opportunity nondiscriminatory employment. A primary qualification for participation in the application process should be an interest in, and an ability to assist the department in serving the public.

Requests for volunteers should be submitted in writing by interested staff to the Volunteer Coordinator through the requester's immediate supervisor. A complete position description and a requested time frame should be included in the request. All parties should understand that the recruitment of volunteers is enhanced by creative and interesting assignments. The Volunteer Coordinator may withhold assignment of any volunteer until such time as the requesting unit is prepared to make effective use of volunteer resources.

#### 339.2.3 SCREENING

All prospective volunteers should complete the volunteer application form. The Volunteer Coordinator or designee should conduct a face-to-face interview with an applicant under consideration.

A documented background investigation shall be completed on each volunteer applicant and shall include, but not necessarily be limited to, the following:

- (a) Traffic and criminal background check. Fingerprints shall be obtained from all applicants and processed through the Utah Department of Public Safety.
- (b) Employment.
- (c) References.
- (d) Credit check.

A polygraph exam may be required of each applicant depending on the type of assignment.

#### 339.2.4 SELECTION AND PLACEMENT

Service as a volunteer with the department shall begin with an official notice of acceptance or appointment to a volunteer position. Notice may only be given by an authorized representative of the department, who will normally be the Volunteer Coordinator. No volunteer should begin any assignment until they have been officially accepted for that position and completed all required screening and paperwork. At the time of final acceptance, each volunteer should complete all required enrollment paperwork and will receive a copy of their position description and agreement of service with the department. All volunteers shall receive a copy of the volunteer handbook and shall be required to sign a volunteer agreement.

Volunteers should be placed only in assignments or programs that are consistent with their knowledge, skills, abilities and the needs of the department.

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#### 339.2.5 TRAINING

Volunteers will be provided with an orientation program to acquaint them with the department, personnel, policies and procedures that have a direct impact on their work assignment.

Volunteers should receive position-specific training to ensure they have adequate knowledge and skills to complete tasks required by the position and should receive periodic ongoing training as deemed appropriate by their supervisor or the Volunteer Coordinator. Training should reinforce to volunteers that they may not intentionally represent themselves as, or by omission infer that they are sworn officers or other full-time members of the department. They shall always represent themselves as volunteers.

All volunteers shall comply with the rules of conduct and with all orders and directives, either oral or written, issued by the department.

#### 339.2.6 FITNESS FOR DUTY

No volunteer shall report to work or be on-duty when his/her judgment or physical condition has been impaired by alcohol, medication, other substances, illness or injury.

Volunteers shall report to their supervisor any changes in status that may affect their ability to fulfill their duties. This includes, but is not limited to, the following:

- (a) Driver's license
- (b) Medical condition
- (c) Arrests
- (d) Criminal investigations

All volunteers shall adhere to the guidelines set forth by this department regarding drug and alcohol use.

#### 339.2.7 DRESS CODE

As representatives of the department, volunteers are responsible for presenting a professional image to the community. Volunteers shall dress appropriately for the conditions and performance of their duties.

Volunteers shall conform to department-approved dress consistent with their duty assignment. Uniforms authorized for volunteers should be readily distinguishable from those worn by sworn officers. The uniform or identifiable parts of the uniform shall not be worn while off-duty except volunteers may choose to wear the uniform while in transit to or from official department assignments or functions provided an outer garment is worn over the uniform shirt so as not to bring attention to the volunteer while he/she is off duty.

Volunteers shall be required to return any issued uniform or department property at the termination of service.

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#### **339.3 SUPERVISION OF VOLUNTEERS**

Each volunteer who is accepted to a position with the department must have a clearly identified supervisor who is responsible for direct management of that volunteer. This supervisor will be responsible for day-to-day management and guidance of the work of the volunteer and should be available to the volunteer for consultation and assistance.

A volunteer may be assigned as and act as a supervisor of other volunteers provided that the supervising volunteer is under the direct supervision of a paid staff member.

Functional supervision of volunteers is the responsibility of the supervisor in charge of the unit where the volunteer is assigned. Following are some considerations to keep in mind while supervising volunteers:

- (a) Take the time to introduce volunteers to employees on all levels.
- (b) Ensure volunteers have work space and necessary office supplies.
- (c) Make sure the work is challenging. Do not hesitate to give them an assignment or task that will tap these valuable resources.

#### **339.4 CONFIDENTIALITY**

With appropriate security clearance, volunteers may have access to confidential information such as criminal histories or investigative files. Unless otherwise directed by a supervisor or departmental policy, all information shall be considered confidential. Only that information specifically identified and approved by authorized personnel shall be released. Confidential information shall be given only to persons who have a need and a right to know as determined by departmental policy and supervisory personnel.

Each volunteer will be required to sign a nondisclosure agreement before being given an assignment with the department. Subsequent unauthorized disclosure of any confidential information, verbally, in writing or by any other means, by the volunteer is grounds for immediate dismissal and possible criminal prosecution.

Volunteers shall not address public gatherings, appear on radio or television, prepare any article for publication, act as correspondents to a newspaper or other periodical, release or divulge any information concerning the activities of the department, or maintain that they represent the department in such matters without permission from the proper department personnel.

#### **339.5 PROPERTY AND EQUIPMENT**

Volunteers will be issued an identification card that must be worn at all times while on-duty. Any fixed and portable equipment issued by the department shall be for official and authorized use only. Any property or equipment issued to a volunteer shall remain the property of the department and shall be returned at the termination of service.

##### **339.5.1 VEHICLE USE**

Volunteers assigned to duties such as vacation house checks or other assignments that require the use of a vehicle must first complete the following:

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- (a) A driving safety briefing and department approved driver safety course.
- (b) Verification that the volunteer possesses a valid Utah Driver's License.
- (c) Verification that the volunteer carries current vehicle insurance.

The Volunteer Coordinator should insure that all volunteers receive safety briefing updates and license and insurance verification at least once a year.

When operating a department vehicle, volunteers shall obey all rules of the road, including seat belt requirements. Smoking is prohibited in all department vehicles.

Volunteers should not operate a marked patrol car unless there is a prominently placed sign indicating that it is out of service and are not authorized to operate a department vehicle Code-3.

#### **339.5.2 RADIO AND MDT USAGE**

Volunteers shall successfully complete Utah Criminal Justice Information System (UCJIS) and radio procedures training prior to using the police radio or MDT and comply with all related provisions. The Volunteer Coordinator should ensure that radio and UCJIS training is provided for volunteers whenever necessary.

#### **339.6 DISCIPLINARY PROCEDURES/TERMINATION**

A volunteer may be removed from the volunteer program at the discretion of the Chief of Police or the Volunteer Coordinator. Volunteers shall have no property interests in their continued appointment. However, if a volunteer is removed for alleged misconduct, the volunteer will be afforded an opportunity solely to clear his/her name through a liberty interest hearing which shall be limited to a single appearance before the Chief of Police or authorized designee.

Volunteers may resign from volunteer service with the department at any time. It is requested that volunteers who intend to resign provide advance notice of their departure and a reason for their decision.

##### **339.6.1 EXIT INTERVIEWS**

Exit interviews, where possible, should be conducted with volunteers who are leaving their positions. The interview should ascertain why the volunteer is leaving the position and solicit the volunteer's suggestions on improving the position. When appropriate, the interview should also include a discussion on the possibility of involvement in some other capacity with the department.

#### **339.7 EVALUATION**

An evaluation of the overall volunteer program will be conducted on an annual basis by the Volunteer Coordinator. Regular evaluations should be conducted with volunteers to ensure the best use of human resources available, to ensure personnel problems can be identified and dealt with promptly and fairly, and to ensure optimum satisfaction on the part of volunteers.

## Off-Duty Law Enforcement Actions

### 340.1 PURPOSE AND SCOPE

The decision to become involved in a law enforcement action when off-duty can place an officer as well as others at great risk and must be done with careful consideration. This policy is intended to provide guidelines for officers of the American Fork Police Department with respect to taking law enforcement action while off-duty.

### 340.2 POLICY

Initiating law enforcement action while off-duty is generally discouraged. Officers should not attempt to initiate enforcement action when witnessing minor crimes, such as suspected intoxicated drivers, reckless driving or minor property crimes. Such incidents should be promptly reported to the appropriate law enforcement agency when the officer witnessing the incident is not in a department-issued vehicle.

Officers are not expected to place themselves in unreasonable peril. However, any sworn member of this department who becomes aware of an incident or circumstance that he/she reasonably believes poses an imminent threat of serious bodily injury or death, or significant property damage may take reasonable action to minimize the threat.

Officers should remember that their authority as a peace officer may not extend to actions taken outside their jurisdiction unless authorized by law (Utah Code § 77-9-3).

### 340.3 FIREARMS

Officers of this department may carry firearms while off-duty in accordance with federal regulations and department policy. All firearms and ammunition must meet guidelines as described in the department Firearms Policy. When carrying firearms while off-duty, officers shall also carry their department-issued badge, identification, and handcuffs.

Firearms shall not be carried by any officer who has consumed an amount of an alcoholic beverage or taken any drugs or medications or any combination thereof that would tend to adversely affect the officer's senses or judgment.

Off-duty officers operating a department-issued vehicle will be armed, and shall carry their department-issued badge, identification, and handcuffs.

### 340.4 DECISION TO INTERVENE

There is no legal requirement for off-duty officers to take law enforcement action. However, should officers decide to intervene, they must evaluate whether the action is necessary or desirable, and should take into consideration the following:

- (a) The tactical disadvantage of being alone and the fact there may be multiple or hidden suspects.
- (b) The inability to communicate with responding units.

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- (c) The lack of equipment, such as handcuffs, OC or baton.
- (d) The lack of cover.
- (e) The potential for increased risk to bystanders if the off-duty officer were to intervene.
- (f) Unfamiliarity with the surroundings.
- (g) The potential for the off-duty officer to be misidentified by other peace officers or members of the public.

Officers should consider waiting for on-duty uniformed officers to arrive, and gather as much accurate intelligence as possible instead of immediately intervening.

#### **340.4.1 INTERVENTION PROCEDURE**

If involvement is reasonably necessary, the officer should attempt to call or have someone else call 9-1-1 to request immediate assistance. The operator should be informed that an off-duty officer is on-scene and should be provided a description of the officer if possible.

Whenever practicable, the officer should loudly and repeatedly identify him/herself as an American Fork Police Department officer until acknowledged. Official identification should also be displayed.

#### **340.4.2 INCIDENTS OF PERSONAL INTEREST**

Officers should refrain from handling incidents of personal interest, (e.g., family or neighbor disputes) and should remain neutral. In such circumstances officers should call the responsible agency to handle the matter.

#### **340.4.3 NON-SWORN RESPONSIBILITIES**

Non-sworn personnel should not become involved in any law enforcement actions while off-duty except to notify the local law enforcement authority and remain at the scene, if safe and practicable.

#### **340.4.4 OTHER CONSIDERATIONS**

When encountering a non-uniformed officer in public, uniformed officers should wait for acknowledgement by the non-uniformed officer in case he/she needs to maintain an undercover capability.

### **340.5 REPORTING**

Any officer, prior to taking any off-duty enforcement action, shall notify and receive approval of an American Fork Police Department Supervisor (or other applicable law enforcement authority if acting outside the jurisdiction of the American Fork Police Department). If prior contact is not reasonably possible, an officer shall notify the applicable local law enforcement agency as soon as reasonably possible (Utah Code § 77-9-3). The Shift Supervisor shall determine whether a report should be filed by the employee.

Officers should cooperate fully with the agency having jurisdiction in providing statements or reports as requested or as appropriate.

## Department Use of Social Media

### 341.1 PURPOSE AND SCOPE

This policy provides guidelines to ensure that any use of social media on behalf of the [Department/Office] is consistent with the [department/office] mission.

This policy does not address all aspects of social media use. Specifically, it does not address:

- Personal use of social media by [department/office] members (see the Employee Speech, Expression and Social Networking Policy).
- Use of social media in personnel processes (see the Recruitment and Selection Policy).
- Use of social media as part of a criminal investigation, other than disseminating information to the public on behalf of this [department/office] (see the Investigation and Prosecution Policy).

#### 341.1.1 DEFINITIONS

Definitions related to this policy include:

**Social media** - Any of a wide array of internet-based tools and platforms that allow for the sharing of information, such as the [department/office] website or social networking services.

### 341.2 POLICY

The American Fork Police Department may use social media as a method of effectively informing the public about [department/office] services, issues, investigations, and other relevant events.

[Department/Office] members shall ensure that the use or access of social media is done in a manner that protects the constitutional rights of all.

### 341.3 AUTHORIZED USERS

Only members authorized by the Chief of Police or the authorized designee may utilize social media on behalf of the [Department/Office]. Authorized members shall use only [department/office]-approved equipment during the normal course of duties to post and monitor [department/office]-related social media, unless they are specifically authorized to do otherwise by their supervisors.

The Chief of Police may develop specific guidelines identifying the type of content that may be posted. Any content that does not strictly conform to the guidelines should be approved by a supervisor prior to posting.

Requests to post information over [department/office] social media by members who are not authorized to post should be made through the member's chain of command.

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#### **341.4 AUTHORIZED CONTENT**

Only content that is appropriate for public release, that supports the [department/office] mission, and that conforms to all [department/office] policies regarding the release of information may be posted.

Examples of appropriate content include:

- (a) Announcements.
- (b) Tips and information related to crime prevention.
- (c) Investigative requests for information.
- (d) Requests that ask the community to engage in projects that are relevant to the [department/office] mission.
- (e) Real-time safety information that is related to in-progress crimes, geographical warnings, or disaster information.
- (f) Traffic information.
- (g) Press releases.
- (h) Recruitment of personnel.

Authorized members shall review all content prior to posting to ensure that the posting does not contain prohibited content.

#### **341.5 PROHIBITED CONTENT**

Content that is prohibited from posting includes but is not limited to:

- (a) Content that is abusive, discriminatory, inflammatory, or sexually explicit.
- (b) Any information that violates individual rights, including confidentiality and/or privacy rights and those provided under state, federal, or local laws.
- (c) Any information that could compromise an ongoing investigation.
- (d) Any information that could tend to compromise or damage the mission, function, reputation, or professionalism of the American Fork Police Department or its members.
- (e) Any information that could compromise the safety and security of [department/office] operations, members of the [Department/Office], victims, suspects, or the public.
- (f) Any content posted for personal use.
- (g) Any content that has not been properly authorized by this policy, or a supervisor.
- (h) Personal information of an officer, or the officer's immediate family member.
  - 1. The Chief of Police or the authorized designee shall provide the officer with a form to request that the information remain private (Utah Code 53-18-102; Utah Code 53-18-103).

Any member who becomes aware of content on this [department/office]'s social media site that they believe is unauthorized or inappropriate should promptly report such content to a supervisor. The supervisor will ensure its removal from public view and investigate the cause of the entry.



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#### **341.6 RETENTION OF RECORDS**

The Support Services Division Commander should establish a method of ensuring that public records generated in the process of social media use are retained in accordance with established records retention schedules.

# Native American Graves Protection and Repatriation

## 342.1 PURPOSE AND SCOPE

This policy is intended to ensure the protection and security of ancient or historic grave sites, including notification of personnel responsible for cultural items, in compliance with the Native American Graves Protection and Repatriation Act (NAGPRA) (25 USC § 3001 et seq.).

### 342.1.1 DEFINITIONS

Definitions related to this policy include (43 CFR 10.2):

**Funerary objects** - Objects that, as part of the death rite or ceremony of a Native American culture, are reasonably believed to have been placed intentionally at the time of death or later with or near individual human remains. Funerary objects are either associated funerary objects or unassociated funerary objects.

Associated funerary objects are any funerary objects related to removed human remains, where the location of the human remains is known. This includes objects that were made exclusively for burial purposes or to contain human remains, regardless of the physical location or existence of any related human remains.

Unassociated funerary objects are any other funerary objects that are identified by a preponderance of the evidence such as:

- Related to human remains but the remains were not removed, or the location of the remains is unknown.
- Related to specific individuals or families.
- Removed from specific burial sites with Native American cultural affiliation.
- Removed from an area where such burial sites are known to have existed, but the site no longer exists.

**Native American human remains** - Any physical part of the body of a Native American individual.

**Objects of cultural patrimony** - Objects having ongoing historical, traditional, or cultural importance that is central to the Native American group or culture itself and, therefore, cannot be appropriated or conveyed by any individual, including members of the Native American group or Native Hawaiian organization. Such objects must have been considered inalienable by the Native American group at the time the object was separated from the group.

**Sacred objects** - Specific ceremonial objects needed by traditional Native American religious leaders for the practice of traditional Native American religions.

## 342.2 POLICY

It is the policy of the American Fork Police Department that the protection of Native American human remains, funerary objects, associated funerary objects, unassociated funerary objects,

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sacred objects, or objects of cultural patrimony is the responsibility of all members. Such protection includes minimizing destruction, contamination, inadvertent disruption, or complicated custody transfer processes.

#### **342.3 COMPLIANCE WITH THE NATIVE AMERICAN GRAVES PROTECTION AND REPATRIATION ACT**

Upon discovery or arrival upon a scene where it reasonably appears that a Native American grave, human remains, funerary objects, associated funerary objects, unassociated funerary objects, sacred objects, or objects of cultural patrimony are exposed or otherwise unsecured, members shall secure the site in the same manner as a crime scene. All activity at the scene other than scene preservation activity must cease (43 CFR 10.5).

No photography or video recording may be permitted by the media or any group or individual who may wish to exhibit the remains.

Without delay, the appropriate agency or group shall be notified to respond and take control of the scene. These include the following (43 CFR 10.5):

- Federal land - Appropriate agency at the U.S. Department of the Interior or U.S. Department of Agriculture
- State land/private land - Antiquities Section of the Utah State Historic Preservation Office (Utah Code 9-8a-304 et seq.)
- Tribal land - Responsible Indian tribal official

#### **342.4 EVIDENCE AND PROPERTY**

If the location has been investigated as a possible homicide scene prior to identification as a NAGPRA site, investigators shall work with other appropriate agencies and individuals to ensure the proper transfer and repatriation of any material collected. Members shall ensure that any remains or artifacts located at the site are expediently processed (43 CFR 10.7).

# Physical Security of Police Facilities

## 343.1 PURPOSE AND SCOPE

The purpose of this policy is to establish the proper protocols and procedures needed to maintain the physical security of the Department facilities.

## 343.2 PUBLIC ACCESS AREA

Members of the public may visit the Department during operating hours by entering the unlocked main entrance on the south side of the Department building, passing the security checkpoint, entering the unlocked reception area, and contacting Department staff through the reception window. All other areas of the Department facility are restricted and may not be accessed by unauthorized persons or members of the general public.

## 343.3 RESTRICTED AREAS

- (a) All entrances to restricted areas of the Department shall be identified with a sign at the entrance indicating that the area is closed to the general public or that only employees may access the entrance.
- (b) All entrances to restricted areas of the Department shall be secured with a closed, locked door at all times.
- (c) Only duly authorized personnel may receive and possess keys to restricted area entrances.

## 343.4 VISITORS TO RESTRICTED AREAS

- (a) Any person not authorized to possess a key to restricted areas is a visitor. Visitors must be able to articulate a specific need or prior authorization to enter a restricted area. Upon hearing the need, reason, or prior authorization, the Department member must verify the need or prior authorization with the appropriate Department member or supervisor before granting entrance. If a Department member grants access, visitors shall abide by the following guidelines:
  - (a) All visitors shall be accompanied by a Department member escort at all times. This means that the visitor must be in full view of the member escort at all times except when the visitor may need to use restroom facilities. In the event that this is not possible (i.e. maintenance personnel in utility closets, etc.) the Department member who granted access to the service or delivery person will be responsible for monitoring and knowing the whereabouts of that person at all times.
  - (b) If not accompanied by a Department member escort at all times, the visitor shall display a Department-approved visitors pass on their outer clothing.
  - (c) Visitors admitted by Department receptionists through the south entrance of the facility shall be required to complete a visitor log. This log shall include the visitor's name, reason for visit, date and time of visit, and the Department member who admitted or escorted the visitor.

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- (b) Department visitor passes shall be issued and collected by the Department member responsible for escorting or admitting the visitor.
- (c) The Department member escorting the visitor is responsible for screening the visitor for weapons. No weapons are allowed in any police facility unless authorized by policy or the Chief of Police.
- (d) Any exception to the above requirements must be authorized by the Chief of Police.

#### **343.5 UNAUTHORIZED ENTRY TO RESTRICTED AREAS**

- (a) Department members shall contact individuals in a restricted area who do not have proper identification or an employee escort and make a determination as to the nature of their business, or bring the matter to the attention of a supervisor or sworn member of the Department.
- (b) Individuals not having any legitimate business in a restricted area shall be immediately escorted out of the restricted area. If resistance or behavior of a threatening or suspicious nature is encountered, sworn personnel shall be notified immediately.

#### **343.6 DETAINED PERSONS IN RESTRICTED AREAS**

- (a) Prior to being brought into a restricted area, any person being detained by Department members must undergo a search (as defined and described in this policy).
- (b) Detained persons who have been brought into a restricted area must be under the direct supervision of a sworn Department member at all times. This means that the in-custody suspect must be in full view of the sworn department member at all times, be under video surveillance at all times, or be held in a locked room or cell. Juvenile detainees shall be detained and supervised in accordance with policy 312: Temporary Custody of Juveniles.

# Community Relations

## 344.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for community relationship-building.

Additional guidance on community relations and outreach is provided in other policies, including the:

- Hate Crimes Policy.
- Limited English Proficiency Services Policy.
- Communications with Persons with Disabilities Policy.
- Patrol Function Policy.
- Suspicious Activity Reporting Policy.

## 344.2 POLICY

It is the policy of the American Fork Police Department to promote positive relationships between department members and the community by treating community members with dignity and respect and engaging them in public safety strategy development and relationship-building activities, and by making relevant information available to the community in a transparent manner.

## 344.3 MEMBER RESPONSIBILITIES

Officers should, as time and circumstances reasonably permit:

- (a) Make casual and consensual contacts with community members to promote positive community relationships (see the Detentions and Photographing Detainees Policy).
- (b) Become reasonably familiar with the schools, businesses and community groups in their assigned jurisdictional areas.
- (c) Work with community members and the department community relations coordinator to identify issues and solve problems related to community relations and public safety.
- (d) Conduct periodic foot patrols of their assigned areas to facilitate interaction with community members. Officers carrying out foot patrols should notify an appropriate supervisor and Dispatch of their status (i.e., on foot patrol) and location before beginning and upon completion of the foot patrol. They should also periodically inform Dispatch of their location and status during the foot patrol.

## 344.4 COMMUNITY RELATIONS COORDINATOR

The Chief of Police or the authorized designee should designate a member of the Department to serve as the community relations coordinator. He/she should report directly to the Chief of Police or the authorized designee and responsibilities may include:

- (a) Obtaining department-approved training related to his/her responsibilities.

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- (b) Responding to requests from department members and the community for assistance in identifying issues and solving problems related to community relations and public safety.
- (c) Organizing surveys to measure the condition of the department's relationship with the community.
- (d) Working with community groups, department members and other community resources to:
  - 1. Identify and solve public safety problems within the community.
  - 2. Organize programs and activities that help build positive relationships between department members and the community and provide community members with an improved understanding of department operations.
- (e) Working with the Patrol Division Commander and Administrative Division Commander to develop patrol deployment plans that allow officers the time to participate in community engagement and problem-solving activities.
- (f) Recognizing department and community members for exceptional work or performance in community relations efforts.
- (g) Assisting with the department's response to events that may affect community relations, such as an incident where the conduct of a department member is called into public question.
- (h) Informing the Chief of Police and others of developments and needs related to the furtherance of the department's community relations goals, as appropriate.

#### **344.5 SURVEYS**

In coordination with their Division Commander, and after receiving authorization from the Chief of Police, the community relations coordinator may arrange for a survey of community members and department members to be conducted periodically to assess the condition of the relationship between the Department and the community. Survey questions may include the following:

- (a) Overall performance of the Department
- (b) Overall competence of department members
- (c) Attitude and behavior of department members
- (d) Level of community trust in the Department
- (e) Safety, security or other concerns

A written summary of the compiled results of the survey should be provided to the Chief of Police.

#### **344.6 COMMUNITY AND YOUTH ACTIVITIES AND PROGRAMS**

The community relations coordinator should organize or assist with programs and activities that create opportunities for department members and community members, especially youths, to interact in a positive setting. Examples of such programs and events include:

- (a) Department-sponsored athletic programs or Citizens Academy.

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- (b) Police-community get-togethers (e.g., cookouts,, charity events, Night out Against Crime).
- (c) Youth programs that promote leadership, life skills mentoring, and cultivating a positive relationship with law enforcement.
- (d) Neighborhood watches and crime prevention programs.

#### **344.7 INFORMATION SHARING**

The community relations coordinator should work with the Public Information Officer to develop methods and procedures for the convenient sharing of information (e.g., major incident notifications, significant changes in department operations, comments, feedback, positive events) between the Department and community members. Examples of information-sharing methods include:

- (a) Community meetings.
- (b) Social media (see the Department Use of Social Media Policy).
- (c) Department website postings.

Information should be regularly refreshed, to inform and engage community members continuously.

#### **344.8 LAW ENFORCEMENT OPERATIONS EDUCATION**

The community relations coordinator should develop methods to educate community members on general law enforcement operations so they may understand the work that officers do to keep the community safe. Examples of educational methods include:

- (a) Development and distribution of informational cards/flyers.
- (b) Department website postings.
- (c) Presentations to driver education classes.
- (d) Instruction in schools.
- (e) Department ride-alongs (see the Ride-Along Program Policy).
- (f) Scenario/Simulation exercises with community member participation.
- (g) Youth internships at the department.

Instructional information could include direction on how community members should interact with the police during enforcement or investigative contacts and how community members can make a complaint to the department regarding alleged misconduct or inappropriate job performance by department members.

#### **344.9 SAFETY AND OTHER CONSIDERATIONS**

Department members responsible for community relations activities should consider the safety of the community participants and, as much as reasonably practicable, not allow them to be present in any location or situation that would jeopardize their safety.



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Department members in charge of community relations events should ensure that participating community members have completed waiver forms before participation, if appropriate. A parent or guardian must complete the waiver form if the participating community member has not reached 18 years of age.

The community relations coordinator should consider that community members might be subject to a criminal history check before approval for participation in certain activities, such as citizen academies.

#### **344.10 COMMUNITY ADVISORY COMMITTEE**

The Chief of Police may establish a committee of volunteers consisting of community members, community leaders and other community stakeholders (e.g., representatives from schools, churches, businesses, social service organizations). The makeup of the committee should reflect the demographics of the community as much as practicable.

The committee may convene regularly to:

- (a) Provide a public forum for gathering information about public safety concerns in the community.
- (b) Work with the Department to develop strategies to solve public safety problems.
- (c) Generate plans for improving the relationship between the department and the community.
- (d) Participate in community outreach to solicit input from community members, including youths from the community.

The Training Officer should arrange for initial and ongoing training for committee members on topics relevant to their responsibilities.

##### **344.10.1 LEGAL CONSIDERATIONS**

The community relations coordinator should work with the City Attorney as appropriate to ensure the committee complies with any legal requirements such as public notices, records maintenance and any other associated obligations or procedures.

#### **344.11 TRANSPARENCY**

The Department may periodically publish information regarding the department. The reports should not contain the names of officers, suspects or case numbers.

#### **344.12 TRAINING**

Subject to available resources, members should receive training related to this policy, including training on topics such as:

- (a) Effective social interaction and communication skills.
- (b) Cultural, racial and ethnic diversity and relations.
- (c) Building community partnerships.
- (d) Community policing and problem-solving principles.

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- (e) Enforcement actions and their effects on community relations.

Where practicable and appropriate, community members, especially those with relevant expertise, should be involved in the training to provide input from a community perspective.

# Interactions with Transgender Individuals

## 345.1 PURPOSE AND SCOPE

This policy is a guideline in providing service to the transgender community.

## 345.2 POLICY

Consistent with the Mission Statement of the American Fork Police Department, all members will safeguard the rights of all people, without consideration of a person's actual or perceived race, color, sex, gender, gender identity/expression, religious creed, sexual orientation, age, national origin, ancestry, handicap or disability. These goals cannot be met unless all persons are treated with the courtesy and dignity inherently due every person as a human being. Therefore, all members will act, speak, and conduct themselves in a professional manner towards an individual, or group of individuals, who identify as transgender, gender non-conforming, or an associated subgroup. Members will not make discourteous or disrespectful remarks regarding another person's actual or perceived gender, gender identity/expression, or sexual orientation.

## 345.3 GENERAL GUIDELINES

During interactions with transgender individuals, members will:

- (a) respectfully treat individuals in a manner appropriate to their gender, or gender identity/expression.
- (b) Use pronouns requested by the individual (i.e. "she, her, hers" for those identifying as female, "he, him, his" for those identifying as male, and "they, them, their" for an individual who is gender non-conforming and/or prefers gender-neutral pronouns).
- (c) If requested, refer to the individual by their preferred or adopted name rather than what is indicated on their government-issued identification.

Members will not

- (a) Stop, detain, or frisk an individual for the sole reason of determining gender or gender identity/expression.
- (b) Use language that a reasonable person would find demeaning or derogatory with regard to an individual's actual or perceived gender, gender identity/expression, or sexual orientation.
- (c) Disclose an individual's gender identity or sexual orientation to other arrestees, members of the public, or other government personnel, absent a proper law enforcement purpose.
- (d) Use a person's gender or gender identity/expression as reasonable suspicion that the individual is or has engaged in the commission of a crime, absent any other articulable facts.

## School Resource Officers

### **346.1 PURPOSE AND SCOPE**

This policy describes the American Fork Police Department School Resource Officer (SRO) program.

### **346.2 POLICY**

The American Fork Police Department is committed to enhancing the safety of students and faculty on campuses located in the department's jurisdiction by forming a partnership with school administrators, faculty members, and students and assigning SROs to serve in public schools inasmuch as resources and circumstances allow.

### **346.3 SCHOOL RESOURCE OFFICER PROGRAM**

The Chief of Police or designee shall appoint SRO(s) to serve in public schools upon agreement with the local school authority. The agreement should address paid services, where applicable.

The goals and objectives of the SRO program include, but are not limited to:

- (a) Assisting with the development and implementation of a school safety plan.
- (b) Protecting the school against external threats to the safety of the students, preventing unauthorized access to school property and securing the school against a natural disaster or other violence.
- (c) Acting as a positive role model for the students, creating respect for law enforcement in the public school system and minimizing criminal activity.
- (d) Identifying students at risk of becoming involved in the criminal justice system and guiding them toward more positive and socially acceptable ways to behave.
- (e) Reducing and deterring criminal activity on or near campus.
- (f) Enhancing communication and understanding between students, their families, district staff, and the department.
- (g) Assisting with the coordination of security measures for school activities such as sports events, dances, and other large gatherings.
- (h) Auditing security measures throughout the school and making recommendations to enhance safety and reduce risk.

### **346.4 SCHOOL RESOURCE OFFICER DUTIES**

#### **346.4.1 GENERAL DUTIES**

The appointed School Resource Officer(s) duties and responsibilities include:

- (a) Responding to calls and conducting the preliminary investigation of criminal offenses that occur on student-occupied property while the SRO is on-duty or during school hours.
- (b) Conducting follow-up investigations of offenses that occur on student-occupied property during school hours.

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- (c) Assisting the Investigations Division with follow-up investigations that originate on student-occupied property or involve a student.
- (d) Teaching law enforcement classes to the students, and providing other education for students, faculty, and administrators as requested and when available regarding safety, crime prevention, bullying, and law enforcement functions.
- (e) Working together with the school administration and staff to improve the social and behavioral skills of students in order to maximize their ability to excel academically and become responsible citizens. Issues to be addressed may include mental and emotional health, substance abuse, violence reduction, social skills, and problem-solving skills.
- (f) Using measures to secure school property as indicated through established protocols of the Department in the event of an emergency situation that requires the activation of emergency response procedures (i.e. critical incident protocols such as "lock down" and "lock out").
- (g) Act as a visible, active law enforcement figure dealing with the school's law enforcement matters at school and at school activities and events.
- (h) Attend and participate in applicable school meetings, and communicate and coordinate with the school principal and other administrators concerning the needs of the school and its students.
- (i) Assisting faculty and administrators in establishing policies that contribute to the safety of school staff and students.
- (j) Participating in student conferences and activities as requested and appropriate.
- (k) Providing youth gang task force intelligence as appropriate.

#### 346.4.2 STUDENT DISCIPLINE

The SRO will not be involved in school discipline unless it pertains to criminal matters or preventing a disruption that would, if ignored, place others at risk of harm. In all other cases, disciplining students for policy violations is a school responsibility.

The SRO and school administrators will coordinate to differentiate between school disciplinary issues (school administrator responsibility) and criminal safety issues (SRO responsibility) and respond appropriately while de-escalating school-based incidents whenever possible.

Examples of student offenses best handled by the SRO include, but are not limited to, the following: gang-related activity; possession of a weapon; possession, use, or distribution of illegal drugs or pornography; criminal activity such as theft or graffiti; sexual or physical assault; hazing; terroristic threats; and other criminal law violations.

Examples of student offenses best handled by school administrators include, but are not limited to, the following: dress code violations; disruptive behavior that is not a threat to others, such as defiance of authority; profanity; possession of inappropriate items; attendance violations; and other minor violations of school policies.

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#### **346.4.3 SEARCH AND SEIZURE**

The SRO may conduct or participate in a search of a student's person, school locker, personal belongings, electronic devices, or vehicle only where there is probable cause to believe that by searching, they will discover evidence that the student has committed or is committing a criminal offense.

The SRO shall not ask school administrators to search a student's person, school locker, personal belongings, electronic devices, or vehicle unless the SRO has developed their own independent probable cause for the search that would justify the SRO conducting the search themselves.

The SRO shall obtain a search warrant whenever state law, federal law, or Department search and seizure policy requires one.

The SRO shall otherwise abide by all guidelines set out in the search and seizure policy of this manual when conducting searches.

#### **346.4.4 STUDENT INTERVIEWS**

SROs shall conduct all student custodial interrogations (as defined in Utah Code 80-6-206) in accordance with the Department's "Interviewing and Interrogating" subsection of the "Temporary Custody of Juveniles" policy. All federal and state law requirements, including having a parent/legal guardian physically present (or providing a waiver of presence), providing the student with all required advisements of their constitutional rights, and obtaining a waiver of those rights (Utah Code 80-6-206) shall be fulfilled.

SROs shall not request that a student administrator interview or interrogate a student regarding a criminal matter (meaning any express questioning or any words or actions that are reasonably likely to elicit an incriminating response) unless the SRO also ensures that all rights and protections set out by state and federal law (including Utah Code 80-6-206) are all fulfilled.

#### **346.4.5 CHAIN OF COMMAND**

Officers shall follow their assigned Department chain of command during investigations of criminal activity.

#### **346.5 SCHOOL RESOURCE OFFICER SELECTION**

The American Fork Police Department considers its SRO positions to be among the most important within the Department because of their high level of impact on individual students as well as the community as a whole. As such, the selection of an SRO shall be made very carefully and deliberately, and shall include the consideration of relevant criteria such as the ability of the candidate to foster an optimal learning environment and learning community, and whether the candidate possesses the traits to ensure that the schools receive the highest level of service and attention. The selection of an SRO will not be made solely based on seniority.

The performance of SROs should be reviewed semi-annually by the SRO's immediate supervisor as set out in the "Evaluation of Employees" policy.

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#### **346.6 TRAINING**

Prior to assignment as an SRO, officers shall complete all state-required SRO training (Utah Code 53G-8-702) as well as any SRO training that may be required by the Department.

School resource officers shall continue ongoing department-approved training that addresses best practices for their position at minimum on an annual basis.

## Indoor Firearms Range

### 347.1 PURPOSE AND SCOPE

The purpose of this policy is to govern the access, use, and care of the American Fork Police Department Firearms Range.

### 347.2 POLICY

American Fork City has constructed and provided an indoor firearms range for the department. This range is expected to serve multiple training purposes including firearms, defensive tactics, de-escalation, and others.

It is the policy of the department for its members to recognize the extraordinary asset and benefit this range provides to the department and, subsequently, the public. Department members are expected to consistently illustrate this recognition through their actions while using the range.

The department's firearms program (including the firearms range) is managed by the rangemaster (also the lead firearms instructor) with administrative support from the firearms administrator, under the direction of the chief of police.

The failure of any department member to strictly abide by the contents of this policy may result in the revocation of that member's ability to use the range and may result in formal discipline.

### 347.3 DEFINITIONS

**Firearms Administrator** - the role of the firearms administrator is to provide administrative support and oversight of the department's firearms program. The patrol lieutenant has been assigned as the firearms administrator.

**Rangemaster** - the rangemaster (also the lead firearms instructor) has overall control and management of the department firearms range with administrative support from the firearms administrator under the direction of the chief of police. The rangemaster is also assigned by the chief of police in collaboration with the firearms administrator.

**Firearms Staff** - the firearms staff (also the firearms team) is comprised of the department's active firearms instructors.

**Non-Sworn Department Member** - any permanent full- or part-time member of the police department (except for crossing guards) who is not a certified law enforcement officer.

**Sworn Department Member** - any full- or part-time (including reserve) member of the police department who is a certified law enforcement officer.

### 347.4 RANGE ACCESS AND SECURITY

The department firearms range is a secure facility of the American Fork Police Department and shall be treated accordingly.



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### *Indoor Firearms Range*

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#### 347.4.1 ACCESS

Department members will have access to the firearms range through their department-issued identification card.

Department members may not grant range access to any non-department party or entity unless the department member remains with that party or entity while there. This does not apply to access given to American Fork City employees who require access for inspection, maintenance, and/or other official city business.

Additionally, other American Fork City employees shall have access to the range at the direction of the chief of police.

#### 347.4.2 SECURITY

Each member who accesses the range for any purpose shall ensure the range is locked and secured by physically checking the exterior door and vehicle access door before leaving the facility.

The range shall house internal Wi-Fi cameras. Any department member may request access to view the range through these cameras. Department members may not share any login information and/or other access credentials with any non-department member unless authorized by the chief of police. It shall be the responsibility of the support services division commander to provide and maintain individual member access to these cameras as requested.

### **347.5 RANGE SAFETY AND HEALTH RULES**

Range safety is of the utmost importance. All department members are expected at all times to follow all safety protocols, procedures, and rules.

#### 347.5.1 THE 4 FUNDAMENTAL RULES OF FIREARMS

Every member shall follow the 4 fundamental rules of firearms safety at all times:

- (a) Treat every firearm as if it is loaded until the condition of the firearm is determined
- (b) Do not point a firearm at anything you are not willing to destroy
- (c) Keep your finger off the trigger until you have decided to fire
- (d) Identify the target and what's behind it before firing

#### 347.5.2 ADDITIONAL SAFETY AND HEALTH RULES

- (a) Before using the range, each member must read and acknowledge this policy via Lexipol.
- (b) Everyone shall wear eye and hearing protection at all times during any live fire while inside the range.
  - 1. Eye protection must meet or exceed consensus standards set by the American National Standards Institute (29 CFR 1910.133; UAC R614-1-4).
- (c) Open-toed shoes and sandals may not be worn in the range.

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### *Indoor Firearms Range*

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- (d) Everyone should avoid touching their face, eyes, and mouth until their hands have been washed after using the range.
- (e) Tobacco products of any kind, including vape devices, are prohibited in the range.
- (f) Open flame of any kind is prohibited in the range unless being used by a member of firearms staff for firearms maintenance.
- (g) Except for water in a sealable container, food and drink of any kind are prohibited in the range unless authorized by a member of the firearms staff.
- (h) Anyone who is under the influence of alcohol, drugs, and/or any other substance is not permitted in the range.
- (i) Except as provided under section 347.7.3, only individuals ages 18 and older shall be allowed in the range during live fire.
- (j) It shall be the responsibility of the firearms staff to ensure the following items are provided and are continually maintained, monitored, supplied, and/or otherwise ready for use
  - i. fire extinguisher
  - ii. trauma bag with first aid and trauma supplies
- (k) No firearms shall be left unattended in the range (including in the storage room) at any point.

#### **347.5.3 WAIVER OF LIABILITY**

Every person who is not an employee of American Fork City shall sign a release of liability before being allowed to engage in live fire on the range, unless otherwise authorized by the chief of police. There will be one waiver for adults and one waiver for individuals between the ages of 8 and 17.

It shall be the responsibility of the rangemaster to make waivers available and to retain signed waivers indefinitely.

#### **347.6 RANGE OPERATION**

##### **347.6.1 AVAILABILITY AND SCHEDULING**

The range may be used for live-fire training each day of the week between 08:00 and 20:00, unless otherwise authorized by the firearms administrator or chief of police.

The rangemaster or assigned firearms staff member shall maintain a calendar for range scheduling purposes. Individual live fire training does not need to be scheduled in advance. However, department training, special events, and other activities should be scheduled in advance on the calendar.

##### **347.6.2 PERMITTED FIREARMS**

Handgun calibers up to and including .44 Magnum may be fired in the range.

Rifle calibers up to and including .308 may be fired in the range.

Shotguns may be fired in the range if using buckshot or slugs.

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Black powder firearms are prohibited from being fired in the range.

If a department member has questions as to whether a certain caliber may be fired in the range, the member should contact a member of the firearms staff.

#### **347.6.3 PERMITTED AMMUNITION**

Only factory ammunition may be fired in the range.

Bi-metal, steel insert, tracer, armor-piercing, aluminum, and birdshot ammunition types are prohibited from being fired in the range.

#### **347.6.4 PERMITTED TARGETS**

Only paper or cardboard targets may be used in the range.

Steel targets are prohibited from being used in the range.

If a member has a question about whether a certain target may be used, the member should contact a member of the firearms staff.

#### **347.6.5 VEHICLES**

The firearms range contains an access point for vehicles.

Vehicles may only be brought into the range and used for live fire training when a firearms instructor is present.

### **347.7 RANGE USE**

#### **347.7.1 USE BY SWORN DEPARTMENT MEMBERS**

The range is available for live fire use by the sworn officers of the department in accordance with the following requirements:

- (a) If a single officer is using the range at any time, the officer must notify the on-duty sergeant or officer in charge (OIC) upon entering the range to train and upon leaving the range after training.
- (b) If two or more officers use the range together for the entirety of the time, notification to an on-duty sergeant or officer in charge (OIC) is not required.

Sworn officers are responsible for supplying their own targets and ammunition if not participating in department training.

#### **347.7.2 USE BY NON-SWORN DEPARTMENT MEMBERS**

The range is available for live fire use by non-sworn department members. However, a non-sworn department member must be accompanied by at least one sworn officer from the department the entire time the range is being used for live fire.

Non-sworn department members are responsible for supplying their own targets and ammunition if not participating in department training.

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#### **347.7.3 USE BY DEPARTMENT MEMBER FAMILY AND FRIENDS**

The range is available for live fire use by family members and friends ages 18 and older of department members. However, a sworn officer from the department must be present at all times.

An immediate family member of a sworn officer between the ages of 8 and 17 may engage in live fire as long as the sworn officer is present and providing age-appropriate supervision.

If a department member intends to bring four or more non-department members, the member must obtain prior authorization from the rangemaster or the firearms administrator.

Family members and friends of an officer are expected to abide by all the protocols, procedures, and rules of this policy. Failure to do so may result in the revocation of that department member's ability to use the range.

Family members and friends of department members are responsible for supplying their own targets and ammunition.

#### **347.7.4 USE BY ANOTHER LAW ENFORCEMENT AGENCY**

Any request made by a law enforcement agency or its officers to use the firearms range must be directed to and approved by the chief of police.

This does not apply if individual members of another law enforcement agency fall under section 347.7.3.

#### **347.7.5 USE AS A CLASSROOM**

Any department member may use the range as a classroom or training location for various types of training (e.g., defensive tactics, de-escalation, less-lethal applications, tactical training, etc.)

The department member needing the range as a classroom shall schedule the range through a member of the firearms staff.

When used as a classroom, firearms may be allowed in the range by sworn officers if they remain holstered.

### **347.8 RANGE MAINTENANCE**

The general maintenance of the range shall ultimately be the responsibility of the rangemaster in accordance with industry standards and the manufacturers' recommendations. However, each member who uses the range shall also have additional responsibilities as noted below.

#### **347.8.1 CLEANLINESS**

The range shall be clean at all times when not in use. Each member who uses the range or who is present while non-department members use the range is ultimately responsible for ensuring the range is left clean.

This includes the following:

- (a) collecting and disposing of all garbage
- (b) leveling the rubber mulch if needed

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- (c) recovering all unspent ammunition and casings
- (d) vacuuming and/or sweeping the range after every use
- (e) mopping the range (if necessary)

The following shall be made available for use:

- shop vacuum with a HEPA filter
- range broom
- landscape rake for rubber mulch
- garbage can with garbage bags
- 5-gallon bucket for casings (brass only)
- mop and mop bucket

#### 347.8.2 ROUND COUNT

The range must undergo certain maintenance upon reaching a certain round count. Subsequently, the number of rounds fired in the range must be tracked.

Each member who uses the range for live fire or who is present while non-department members use the range for live fire shall document the approximate number of rounds fired in each lane on a round-count log that will be made accessible by firearms staff.

#### 347.8.3 DAMAGE

It is expected that components of the firearms range will experience damage at some point (e.g., steel target claw struck by a round, ceiling tile down range struck by a round, etc.)

Each member who causes damage to any component of the range or who observes damage to any component of the range shall immediately notify the rangemaster or firearms administrator so the damage can quickly be addressed. Damage also includes any component that is not functioning as it should. (e.g., lighting, ventilation system, etc.)

# Generative Artificial Intelligence Use

## 348.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for [department/office] use of generative artificial intelligence (GenAI). This policy does not apply to artificial intelligence that is integrated into facial recognition applications, voice recognition applications, biometric access controls, or software that redacts documents or video or similar applications (Utah Code 53-25-902).

Additional guidelines for the use of [department/office] information technology resources are found in the Information Technology Use Policy.

### 348.1.1 DEFINITIONS

Definitions related to this policy include:

**Generative artificial intelligence (GenAI)** - A type of artificial intelligence that is algorithmically trained on one or more large data sets and designed to generate new and unique data (e.g., text, pictures, video) in response to a prompt (generally questions, instructions, images, or video) input by the user (Utah Code 53-25-901).

## 348.2 POLICY

The use of GenAI systems carries unique benefits within a law enforcement agency, providing ways to increase operational efficiency, enhance [department/office] procedures, and improve the overall effectiveness of the American Fork Police Department.

However, the prompts input into GenAI systems can present risks to both individuals and law enforcement agencies by making accessible to the public information such as [department/office] tactics, investigative and training techniques, confidential information (e.g., confidential informants, protected information), active investigations, and security procedures. In addition, without safeguards in place, GenAI can produce unintended discriminatory or biased output as well as content that is inaccurate, misleading, or copyrighted.

It is the policy of the [Department/Office] to develop, implement, and use GenAI ethically and responsibly in a way that minimizes potential risk and harm in accordance with the guidelines set forth below.

Any function carried out by a member of the [Department/Office] using GenAI is subject to the same laws, rules, and policies as if carried out without the use of GenAI. The use of GenAI does not permit any law, rule, or policy to be bypassed or ignored.

## 348.3 RESPONSIBILITIES

### 348.3.1 CHIEF OF POLICE

The Chief of Police or an authorized designee shall approve all GenAI systems, their acceptable uses, and their authorized user groups prior to the use, implementation, or development for any [department/office] functions.

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#### 348.3.2 AI COORDINATOR

The Chief of Police or the authorized designee shall appoint an AI coordinator. The AI coordinator shall report to the Administration Division Commander or the authorized designee.

The responsibilities of the AI coordinator include but are not limited to:

- (a) Evaluating potential GenAI systems and recommending those GenAI systems that appear to be appropriate and trustworthy to the Chief of Police or the authorized designee. The trustworthiness of GenAI systems should be evaluated by balancing the following characteristics:
  - 1. Validity and reliability - The system's apparent ability to meet the intended purpose and fulfill the needs of the [Department/Office] consistently over time.
  - 2. Safety - Any apparent risk to human life, health, property, or the environment that could result from the [department/office]'s use of the system.
  - 3. Security and resiliency - The system's capability to prevent unauthorized access and misuse and its ability to return to normal function should misuse occur.
  - 4. Accountability and transparency - The ability to track and measure the system's use and activity through histories, audit logs, and other processes to provide insight about the system and identify potential sources of error, bias, or vulnerability.
  - 5. Explainability and interpretability - The ability of the user to understand the purpose and impact of the system, how and why the system reached the resulting output, and what the output means for the user.
  - 6. Privacy - The ability of the system to protect confidentiality and meet applicable privacy standards for the types of data intended to be input into the system (e.g., state privacy laws, Criminal Justice Information Services (CJIS), Health Insurance Portability and Accountability Act (HIPAA)).
  - 7. Fairness - The ability of the system to operate in a way that avoids or minimizes bias and discrimination.
- (b) Ensuring appropriate contractual safeguards are in place to manage third-party use of [department/office] data and to restrict the use of input in AI training data sets. If the input of protected information is necessary for the proper use of the GenAI system, an information-exchange agreement in compliance with applicable rules and standards (e.g., CJIS requirements) should be used to outline the roles, responsibilities, and data ownership between the [Department/Office] and third-party vendor.
- (c) Coordinating with others within the [Department/Office] and City, such as the information technology or legal departments, as appropriate to ensure GenAI systems are procured, implemented, and used appropriately.
- (d) Maintaining a list or inventory of [department/office]-approved GenAI systems.
- (e) Developing and maintaining appropriate procedures related to the use of GenAI systems, including procedures for editing and fact-checking output.
- (f) Ensuring any public-facing GenAI systems notify the user that GenAI is being used.

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- (g) Developing and updating training for the authorized users of each [department/office]-approved GenAI system.
- (h) Ensuring access to [department/office] GenAI systems is limited to authorized users and establishing requirements for user credentials such as two-factor authentication and appropriate password parameters.
- (i) Conducting audits at reasonable time intervals for each of the GenAI systems utilized by the [Department/Office] to evaluate the performance and effectiveness of each approved system and to determine if it continues to meet the [department/office]'s needs and expectations of trustworthiness. The coordinator should arrange for audits to be conducted by an external source, as needed.
- (j) Ensuring each GenAI system is updated and undergoes additional training as reasonably appears necessary in an effort to avoid the use of outdated information or technologies.
- (k) Keeping abreast of advancements in GenAI and any GenAI-related legal developments.
- (l) Reviewing this policy and [department/office] practices and proposing updates as needed to the Chief of Police.
- (m) Developing procedures in coordination with the *Brady* information coordinator and the Division Commander over Support Services for the compilation and potential release of any discovery or records related to the use of GenAI systems consistent with *Brady* and the Utah Government Records Access and Management Act.

#### **348.4 USE OF GENERATIVE AI**

The use of [department/office] GenAI systems by [department/office] members shall be limited to official work-related purposes, and members shall only access and use GenAI systems for which they have been authorized and received proper training (Utah Code 53-25-902).

Members shall use AI-generated content as an informational tool and not as a substitution for human judgment or decision-making. Members should not represent AI-generated content as their own original work.

AI-generated content should be considered draft material only and shall be thoroughly reviewed prior to use. Before relying on AI-generated content, members should:

- (a) Obtain independent sources for information provided by GenAI and take reasonable steps to verify that the facts and sources provided by GenAI are correct and reliable.
- (b) Review prompts and output for indications of bias and discrimination and take steps to mitigate its inclusion when reasonably practicable (see the Bias-Based Policing Policy).

##### **348.4.1 PRIVACY CONSIDERATIONS**

Information not otherwise available to the public, including data reasonably likely to compromise an investigation, reveal confidential law enforcement techniques, training, or procedures, or risk the safety of any individual if it were to become publicly accessible, should not be input into a GenAI



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system unless contractual safeguards are in place to prevent such information from becoming publicly accessible. Members should instead use generic unidentifiable inputs, such as "suspect" or "victim," and hypothetical scenarios whenever possible.

Protected information should only be input into GenAI systems that have been approved for such use and comply with applicable privacy laws and standards (see the Protected Information Policy).

#### **348.4.2 DISCLAIMER AND CERTIFICATION**

Any final document or work product created by a member using GenAI shall include a disclaimer that it contains content generated by artificial intelligence and a certification that it has been read and reviewed by the author for accuracy (Utah Code 53-25-902).

#### **348.5 PROHIBITED USE**

Members shall not use GenAI systems to rationalize a law enforcement decision, or as the sole basis of research, interpretation, or analysis of the law or facts related to a law enforcement contact or investigation.

Members shall not create user accounts in their official capacity or input work-related data (including information learned solely in the scope of their employment) into publicly available GenAI systems unless the system has been approved by the Chief of Police or the authorized designee for the intended use.

#### **348.6 TRAINING**

The AI coordinator should ensure that all members authorized to use GenAI have received appropriate initial training that is suitable for their role and responsibilities prior to their use of GenAI and receive periodic refresher training. Training should include but is not limited to the following:

- (a) A review of this policy
- (b) The need for human oversight of GenAI outputs
- (c) The interpretation, review, and verification of GenAI output
- (d) Checking GenAI output for bias or protected information
- (e) Ethical use of GenAI technology
- (f) Data security and privacy concerns

## Service Animals

### 349.1 PURPOSE AND SCOPE

The purpose of this policy is to provide the guidelines necessary to ensure that the rights of individuals who use service animals to assist with disabilities are protected in accordance with Title II of the Americans with Disabilities Act (ADA).

#### 349.1.1 DEFINITIONS

Definitions related to this policy include:

**Service animal** - A dog that is trained to do work or perform tasks for the benefit of an individual with a disability, including a physical, sensory, psychiatric, intellectual, or other mental disability. The work or tasks performed by a service animal must be directly related to the individual's disability (28 CFR 35.104).

Service animal also includes a miniature horse if the horse is trained to do work or perform tasks for people with disabilities, provided the horse is housebroken, is under the handler's control, the facility can accommodate the horse's type, size, and weight, and the horse's presence will not compromise legitimate safety requirements necessary for safe operation of the facility (28 CFR 35.136(i)).

All references to "service animals" in this policy include a dog undergoing training to become a service animal (Utah Code 26B-6-801).

### 349.2 POLICY

It is the policy of the American Fork Police Department to provide equal access to services, programs, and activities of the [Department/Office] to persons with service animals. [Department/Office] members shall protect the rights of persons assisted by service animals in accordance with state and federal law.

### 349.3 IDENTIFICATION AND USE OF SERVICE ANIMALS

Service animals that are assisting individuals with disabilities are permitted in all public facilities and areas where the general public is allowed. [Department/Office] members are expected to treat individuals with service animals with the same courtesy and respect that the American Fork Police Department affords to all members of the public (28 CFR 35.136; Utah Code 26B-6-803).

Some service animals may be readily identifiable. However, many do not have a distinctive symbol, harness, or collar.

Service animals may be used in a number of ways to provide assistance, including:

- Guiding people who are blind or have low vision.
- Alerting people who are deaf or hard of hearing.
- Retrieving or picking up items, opening doors, or flipping switches for people who have limited use of their hands, arms, or legs.

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- Pulling wheelchairs.
- Providing physical support and assisting with stability and balance.
- Doing work or performing tasks for persons with traumatic brain injury, intellectual disabilities, or psychiatric disabilities, such as reminding a person with depression to take medication.
- Alerting a person with anxiety to the onset of panic attacks, providing tactile stimulation to calm a person with post-traumatic stress disorder, assisting people with schizophrenia to distinguish between hallucinations and reality, and helping people with traumatic brain injury to locate misplaced items or follow daily routines.

#### **349.4 INQUIRIES REGARDING SERVICE ANIMALS**

If it is apparent or if a member is aware that an animal is a service animal, the individual generally should not be asked any questions as to the status of the animal. If it is unclear whether an animal meets the definition of a service animal, the member should ask the individual only the following questions (28 CFR 35.136(f)):

- Is the animal required because of a disability?
- What task or service has the service animal been trained to perform?

If the individual explains that the animal is required because of a disability and has been trained to work or perform at least one task, the animal meets the definition of a service animal and no further questions as to the animal's status should be asked. The individual should not be questioned about their disabilities nor should members ask any individual to provide any license, certification, or identification card for the service animal.

#### **349.5 CONTACT WITH SERVICE ANIMALS**

Service animals are not pets. [Department/Office] members should not interfere with a service animal by talking to, petting, or otherwise initiating contact.

#### **349.6 REMOVAL OF SERVICE ANIMALS**

If a service animal is not housebroken, exhibits vicious behavior, poses a direct threat to the health of others, or unreasonably disrupts or interferes with normal business operations, a [department/office] supervisor may direct the handler to remove the animal from the premises. Barking alone is not a threat nor does a direct threat exist if the person takes prompt, effective action to control the service animal (28 CFR 35.136 (b); 28 CFR 35.139).

Each incident must be considered individually, and past incidents alone are not cause for excluding a service animal. Removal of a service animal may not be used as a reason to refuse access to services, programs, and activities to an individual with a disability. Members are expected to provide all services, programs, and activities that are reasonably available to an individual with a disability, with or without a service animal.

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#### **349.7 COMPLAINTS**

When handling calls of a complaint regarding a service animal, members should remain neutral and should be prepared to explain the ADA requirements concerning service animals to the concerned parties. Businesses are required to allow service animals to accompany their handlers into the same areas that other customers or members of the public are allowed (28 CFR 36.302).

Absent a violation of law independent of the ADA, officers should take no enforcement action beyond keeping the peace. Individuals who believe they have been discriminated against as a result of a disability should be referred to the Civil Rights Division of the U.S. Department of Justice (DOJ).

## ADA Compliance

### 350.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for equal access to American Fork Police Department services, programs, and activities for persons with disabilities, in accordance with Title II of the Americans with Disabilities Act (ADA).

This policy also includes guidelines to provide effective communication with persons with disabilities. See the Service Animals Policy for guidance on protecting the rights of individuals who use service animals in accordance with the ADA.

#### 350.1.1 DEFINITIONS

Definitions related to this policy include (28 CFR 35.104):

**ADA coordinator** - The member designated by the Chief of Police to coordinate the [department/office]'s efforts to comply with the ADA (28 CFR 35.107).

**Assistive devices, auxiliary aids, and services** - Tools used by persons with disabilities to facilitate their participation in services, programs, and activities offered by the American Fork Police Department and to facilitate effective communication. They include but are not limited to the use of gestures or visual aids to supplement oral communication; a notepad and pen or pencil to exchange written notes; a computer or typewriter; an assistive listening system or device to amplify sound; a teletypewriter (TTY) or videophones (video relay service or VRS); taped text; a qualified reader; or a qualified interpreter.

**Disability** - A physical or mental impairment that substantially limits a major life activity including hearing, seeing, or speaking, regardless of whether the person uses assistive devices, auxiliary aids, and services. Individuals who wear ordinary eyeglasses or contact lenses are not considered to have a disability (42 USC § 12102; 28 CFR 35.108).

**Facility** - All aspects of [department/office] buildings, structures, sites, complexes, equipment, rolling stock or other conveyances, roads, walkways, parking areas, and other real or personal property (28 CFR 35.108).

**Modification** - Any change, adjustment, alteration, adaptation, or accommodation that renders a [department/office] service, program, or activity suitable for use, enjoyment, or participation by a person with a disability. This may include alteration of existing buildings and facilities.

A modification includes any change or exception to a policy, practice, or procedure that allows a person with a disability to have equal access to services, programs, and activities. It also includes the provision or use of assistive devices, auxiliary aids, and services.

**Qualified interpreter** - A person who is able to interpret effectively, accurately, and impartially, both receptively and expressively, using any necessary specialized vocabulary. Qualified interpreters include oral interpreters, transliterators, sign language interpreters, and intermediary interpreters. Qualified interpreters should have a certification approved by the Utah Division of

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Services for the Deaf and Hard of Hearing Interpreters Certification Board (Utah Code 35A-13-605; UAC R993-300-301 et seq.).

#### **350.2 POLICY**

It is the policy of the American Fork Police Department that persons with disabilities, including victims, witnesses, suspects, and arrestees, have equal access to services, programs, and activities of the [Department/Office].

The [Department/Office] will not discriminate against or deny any individual access to services, programs, or activities based upon the presence or suspected presence of disabilities.

#### **350.3 ADA COORDINATOR RESPONSIBILITIES**

The responsibilities of the ADA coordinator include but are not limited to (28 CFR 35.130):

- (a) Collaborating with the City ADA coordinator regarding the American Fork Police Department's efforts to provide equal access to services, programs, and activities.
  - 1. Maintaining [department/office] compliance with accessibility standards for [department/office] web content and mobile applications as required by 28 CFR 35 Subpart H (28 CFR 35.200).
- (b) Collaborating with the City ADA coordinator to facilitate a process of periodic self-evaluation. The process should include:
  - 1. Inspection of current [department/office] facilities to identify access issues.
  - 2. Review of current [department/office] services, activities, and programs for access issues.
  - 3. Assessment and update, if necessary, of current compliance measures.
  - 4. Identification of recurring areas of complaint for which new methods of modification should be considered.
  - 5. Review of the [department/office]'s emergency programs, services, and activities as they apply to persons with disabilities.
  - 6. Recommendation of a schedule to implement needed improvements.
- (c) Acting as a liaison with local disability advocacy groups or other disability-focused groups regarding access to [department/office] services, programs, and activities.
- (d) Developing procedures that will enable members to access assistive devices, auxiliary aids, and services, and making the procedures available as appropriate.
  - 1. A list of qualified interpreter services with contact and availability information should be maintained and easily accessible to members.
- (e) Developing procedures for the review and processing of requests for modifications that will help members provide persons with disabilities access to [department/office] services, programs, and activities, as appropriate.
- (f) Establishing procedures for the booking process to assist members with managing commonly encountered disabilities such as sight or mobility impairments and intellectual or developmental disabilities.

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- (g) Providing notice to the public regarding the rights and protections afforded by the ADA. This may include posters, published notices, handbooks, manuals, and pamphlets describing [department/office] services, programs, and activities and the availability of assistive devices, auxiliary aids, and services, as well as modifications (28 CFR 35.106).
- (h) Collaborating with other [city/county] departments during the planning process to provide that new construction and any alteration to an existing building or facility are undertaken in compliance with the ADA (28 CFR 35.151).
- (i) Developing, implementing, and publishing appropriate procedures to provide for the prompt and equitable resolution of complaints and inquiries regarding discrimination in access to services, programs, and activities. The complaint procedures should include an appeal process (28 CFR 35.107).
- (j) Verifying that third parties providing [department/office] services, programs, or activities through contract, outsourcing, licensing, or other arrangement have established reasonable policies and procedures to prevent discrimination against and denial of access to persons with disabilities.
- (k) Recommending amendments to this policy as needed.

#### **350.4 REQUESTS**

The goal of any modification should be to allow a person with a disability to participate in a service, program, or activity the same as a person who does not have a disability.

Upon receiving a request for a modification, members should make reasonable efforts to accommodate the request based on the preference of the person with the disability. Members should not ask about the nature and extent of a person's disability but should limit questions to elicit information necessary to determine the need for a modification and the appropriate type of modification.

If the requested modification or an alternative modification can reasonably be made at the time of the request, the member should make the modification. A member who is unable to accommodate a request or unsure about whether a request should be accommodated should contact a supervisor.

The supervisor should review and approve the request, if practicable and appropriate. Otherwise, the supervisor should document the requesting person's contact information and the modification being requested and forward the request to the ADA coordinator for processing as soon as reasonably practicable.

##### **350.4.1 DENIAL OF A REQUEST**

The following should be considered before denying a request for modification:

- (a) Requests for modifications should be approved unless complying with the request would result in (28 CFR 35.150):
  - 1. A substantial alteration of the service, program, or activity.

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2. An undue financial or administrative burden on the [Department/Office]. All resources available for use in the funding and operation of the service, program, or activity at issue should be considered in this determination.
  3. A threat to or the destruction of the historic significance of a historic property.
  4. A direct threat to the health or safety of others (28 CFR 35.139).
- (b) If any of these circumstances are present, the ADA coordinator should work with [department/office] members and the person requesting the modification to determine if an alternative modification is available.
- (c) Where new construction or physical modification of an existing building or facility would be unfeasible or unduly burdensome, the ADA coordinator should work with [department/office] members to determine whether alternative modifications are available. Alternative methods that should be considered include (28 CFR 35.150):
1. Reassigning services, programs, or activities to accessible buildings or facilities.
  2. Utilizing technology, equipment, rolling stock, or other conveyances.
  3. Delivering the services, programs, or activities directly to a person with a disability by way of home visits or meeting the person at an accessible location.
  4. Any other means or methods that would make services, programs, or activities readily accessible.
- (d) If no alternative modification is appropriate, the ADA coordinator shall issue a written statement explaining why a modification of the service, program, or activity will not be made (28 CFR 35.150).

#### 350.4.2 PERSONAL DEVICES AND ASSISTANCE

Although members should make every effort to comply with requests, the provision of personal devices or assistance (e.g., wheelchairs, eyeglasses, hearing aids, personal assistance in eating or using the restroom) to persons with disabilities is not required (28 CFR 35.135).

#### 350.4.3 SURCHARGES

Surcharges shall not be imposed upon persons with disabilities to cover the costs of providing modifications (28 CFR 35.130(f)).

### 350.5 COMMUNICATIONS WITH PERSONS WITH DISABILITIES

Members should remain alert to the possibility of communication problems when engaging with persons with disabilities. When a member knows or suspects an individual requires assistance to effectively communicate, the member should identify the individual's choice of assistive devices, auxiliary aids, and services. The individual's preferred communication method should be honored unless another effective method of communication exists under the circumstances (28 CFR 35.160).

Factors to consider when determining whether an alternative method may be effective include:

- (a) The methods of communication usually used by the individual.



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- (b) The nature, length, and complexity of the communication involved.
- (c) The context of the communication.

In emergency situations involving an imminent threat to the safety or welfare of any person, members may use whatever modification reasonably appears effective under the circumstances. This may include exchanging written notes or using the services of a person who knows sign language but is not a qualified interpreter, even if the person who is deaf or hard of hearing would prefer a qualified sign language interpreter. Once the emergency has ended, the method of communication should be reconsidered. The member should inquire as to the individual's preference and give primary consideration to that preference.

#### 350.5.1 TYPES OF ASSISTANCE AVAILABLE

[Department/Office] members shall not refuse an available type of assistive device, auxiliary aid, or service to a person with a disability who is requesting assistance. The [Department/Office] will not require persons with disabilities to furnish their own assistive device, auxiliary aid, or service as a condition for receiving access to [department/office] services, programs, and activities. The [Department/Office] will make every reasonable effort to provide equal access and timely assistance to persons with disabilities through a variety of assistive devices, auxiliary aids, and services (28 CFR 35.160).

The [Department/Office] will not require that persons with disabilities use [department/office]-provided assistive devices, auxiliary aids, and services. [Department/Office]-provided assistive devices, auxiliary aids, and services may include but are not limited to the means described in this policy.

#### 350.5.2 AUDIO RECORDINGS AND ENLARGED PRINT

The [Department/Office] may develop audio recordings to assist people who are blind or have a visual impairment. If such a recording is not available, members may read aloud from the appropriate form or provide forms with enlarged print.

#### 350.5.3 QUALIFIED INTERPRETERS

A qualified interpreter may be needed in lengthy or complex transactions (e.g., interviewing a victim, witness, suspect, or arrestee) with individuals who normally rely on sign language or speechreading (i.e., lip-reading) to understand what others are saying. The qualified interpreter should not be a person with an interest in the matter. A person providing interpretation services may be required to establish the accuracy and trustworthiness of the interpretation in a legal proceeding.

Qualified interpreters should be:

- (a) Available within a reasonable amount of time.
- (b) Experienced in providing interpretation services related to law enforcement matters in the person's primary language.
- (c) Familiar with the use of text- and video-based communications products and systems.

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- (d) Certified in either American Sign Language (ASL) or Signing Exact English (SEE).
- (e) Able to understand and adhere to the interpreter role without deviating into other roles, such as counselor or legal adviser.
- (f) Knowledgeable of the ethical issues involved when providing interpreter services.

Members should use [department/office]-approved procedures to request a qualified interpreter at the earliest reasonable opportunity or when it is reasonably apparent that an interpreter is needed. The use of a video remote interpreting service should be considered, where appropriate, if a live interpreter is not available. Persons with disabilities shall not be required to provide an interpreter (28 CFR 35.160).

#### 350.5.4 TELECOMMUNICATION SERVICES

In situations where an individual without a disability would have access to a telephone (e.g., during booking or attorney contacts), members must also provide those with communication-related disabilities the opportunity to place calls using an available TTY, TDD, or other voice, text, or video-based communications product or system. Members shall provide additional time, as needed, for effective communication due to the slower nature of assisted communications.

The [Department/Office] will accept all TDD and computer modem calls placed by individuals with communications-related disabilities and received via a telecommunications relay service (28 CFR 35.162).

#### 350.5.5 COMMUNITY VOLUNTEERS

Where qualified interpreters are unavailable to assist members, [department/office]-approved community volunteers who have demonstrated competence in communication services, such as ASL or SEE, may be called upon to provide interpreter services when appropriate. However, [department/office] members must carefully consider the nature of the interaction and the relationship between the individual with the disability and the volunteer to be reasonably satisfied that the volunteer can provide neutral and unbiased assistance.

#### 350.5.6 FAMILY AND FRIENDS

While family or friends may offer to assist with interpretation, members should carefully consider the circumstances before relying on such individuals. The nature of the interaction and relationship between the individual with the disability and the person offering services must be carefully considered to determine whether the family member or friend can provide neutral and unbiased assistance.

Except in an emergency involving an imminent threat to the safety or welfare of any person and no qualified interpreter is reasonably available, members shall not use a minor child as an interpreter (28 CFR 35.160).

#### 350.5.7 FIELD ENFORCEMENT CONSIDERATIONS

Due to the unpredictable and varied nature of field enforcement, the [Department/Office] recognizes that it is impracticable to provide immediate access to a comprehensive supply

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of assistive devices, auxiliary aids, and services to every member of this [department/office]. Members involved in interactions with persons with disabilities that occur in the field should assess each situation to determine if communication assistance is necessary. The length, complexity, and importance of the communication, as well as the individual's preferred method of communication, should be considered when determining what, if any, resources should be used and whether a qualified interpreter or other service is needed.

#### **350.6 CUSTODIAL INTERROGATIONS**

In an effort to ensure that the rights of individuals with disabilities are protected during a custodial interrogation, this [department/office] will provide reasonable modifications before beginning an interrogation, unless exigent circumstances exist or the individual has made a clear indication that the individual understands the process and desires to proceed without receiving a modification. *Miranda* warnings should be provided to a suspect via the individual's preferred method of communication.

Interrogations should be recorded whenever reasonably practicable. See guidance on recording custodial interrogations in the Investigation and Prosecution Policy.

#### **350.7 ARREST**

If an individual with a communication-related disability is arrested, the arresting officer shall use [department/office]-approved procedures to provide a qualified interpreter as soon as reasonably practicable, unless the individual indicates a preference for a different assistive device, auxiliary aid, or service, or the officer reasonably determines another effective method of communication exists under the circumstances.

Individuals who are arrested and are assisted by service animals should be permitted to make arrangements for the care of such animals prior to transport.

#### **350.8 WEBSITE ACCESS**

The ADA coordinator should work with the appropriate parties to develop online content that is readily accessible to persons with disabilities. [Department/Office] web content should be developed in conformance with the most current guidelines issued by the U.S. Department of Justice and federal regulations (28 CFR 35 Subpart H; 28 CFR 35.200).

[Department/Office] website content should also be made available to persons with disabilities in an alternative format upon request, if reasonably practicable.

#### **350.9 DOCUMENTATION**

Whenever any modification has been provided, the member involved should document:

- (a) The type of modification, assistive device, auxiliary aid, or service provided.
- (b) Whether the individual elected to use an assistive device, auxiliary aid, or service provided by the [Department/Office] or another identified source, as applicable.
- (c) Whether the individual's express preference for the modification was not honored and the reason why an alternative method was used.

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The documentation and any written communications exchanged should be maintained consistent with the Records Maintenance and Release Policy.

All written communications exchanged in a criminal case shall be attached to the member's report or placed into evidence.

#### **350.10 COMPLAINTS**

A member who receives a complaint or becomes aware of potential disability discrimination, an ADA violation, or a person's inability to access the [department/office]'s programs, services, or activities should document the complaint and promptly refer the matter to the ADA coordinator (28 CFR 35.107). The [Department/Office] shall assist persons with disabilities who require assistance to file a complaint regarding members of this [department/office]. The [Department/Office] may provide a qualified interpreter or forms in enlarged print, as appropriate.

#### **350.11 TRAINING**

Members should receive periodic training on ADA compliance, to include:

- (a) Awareness and understanding of this policy, related procedures, forms, and available resources.
- (b) Procedures for handling requests for modifications.
- (c) Accessing assistive devices, auxiliary aids, and services needed to accommodate requests for modifications.
- (d) General requirements of the ADA, including modifying policies and practices, communicating with individuals with disabilities, and identifying alternate ways to provide access to programs, services, and activities as appropriate to the member's job duties.

Management staff, even if they do not interact regularly with individuals with disabilities, should receive training as appropriate to understand and reinforce this policy.

The Training Officer should maintain records of all training provided and retain a copy in each member's training file in accordance with the established records retention schedule.

# Vehicle Pursuits

## 351.1 PURPOSE AND SCOPE

This policy provides guidelines for vehicle pursuits with the intent to protect the safety of the public, involved officers, and fleeing suspects (Utah Code 41-6a-212; Utah Administrative Code R728-503).

## 351.2 POLICY

It is the policy of this department to balance the need to apprehend a fleeing suspect with the risks associated with a vehicle pursuit.

## 351.3 DEFINITIONS

Definitions related specifically to this policy include:

**Authorized emergency vehicle:** a law enforcement vehicle, either marked or unmarked, properly equipped with emergency lights and an audible siren, owned and operated by a public agency, and whose operator has been trained in emergency vehicle operations and pursuit tactics.

**Boxing-in:** a low-speed tactic designed to stop a fleeing vehicle by surrounding it with authorized emergency vehicles and then slowing all vehicles to a stop.

**Paralleling:** participating in the pursuit by proceeding in the same direction and maintaining approximately the same speed while traveling on an alternate street or highway that parallels the pursuit route.

**Primary unit:** the authorized emergency vehicle that initiates a pursuit or assumes control of the pursuit as the lead vehicle (first emergency vehicle behind the fleeing vehicle).

**Pursuit Intervention Technique (PIT):** a low-speed tactic designed to impact and apply lateral pressure to the rear quarter panel area of a fleeing vehicle with the intent to cause the vehicle to spin, stall, and come to a complete stop.

**Ramming:** the deliberate act of impacting a fleeing vehicle with another vehicle with the intent to functionally damage or otherwise force the fleeing vehicle to stop.

**Roadblock:** a tactic designed to stop a fleeing vehicle by intentionally placing an emergency vehicle or other immovable object in the path of a fleeing vehicle.

**Secondary unit:** each authorized emergency vehicle assisting the primary unit.

**Supervisor:** for purposes of this policy, a supervisor is an officer with the rank of sergeant or above; or, in the absence of an officer with the rank of sergeant or above, the officer in charge (OIC) until a sergeant or above is summoned and assumes supervision.

**Tire deflation device:** a device (sometimes referred to as "spikes" or "spike strips") designed to be placed on the roadway and puncture the tires of a fleeing vehicle.

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**Unmarked vehicle:** a law enforcement vehicle that is unmarked but equipped with emergency lights and an audible siren, and owned and operated by a public agency

**Vehicle pursuit:** An attempt by one or more law enforcement officers to apprehend a suspect in or on a motor vehicle who, having been given a visual or audible signal to stop, intentionally fails to yield or uses high-speed driving or other evasive tactics (e.g., driving off a highway, turning suddenly, etc.) in an attempt to avoid apprehension.

#### **351.4 GENERAL PURSUIT RULES, REGULATIONS, AND CONSIDERATIONS**

##### **351.4.1 EMERGENCY EQUIPMENT**

Each authorized emergency vehicle's emergency lights and audible siren shall remain activated throughout the unit's participation in a pursuit (Utah Code 41-6a-212).

##### **351.4.2 DISPATCH**

Radio communications during a pursuit should be conducted on the primary channel unless instructed otherwise by a supervisor or dispatcher. If the pursuit leaves the jurisdiction of this department or such is imminent, involved units should, whenever available, switch radio communications to a tactical or emergency channel most accessible by participating agencies

##### **351.4.3 NUMBER OF PURSUING UNITS**

Vehicle pursuits should be limited to two authorized emergency vehicles.

A supervisor may authorize additional units to join a pursuit if it reasonably appears that more units will be required to safely arrest a given number of suspects.

A supervisor may also instruct additional personnel to participate as circumstances dictate (UAC R728-503-5).

##### **351.4.4 PASSENGERS**

An officer shall not initiate or join a pursuit while a passenger who is not a member of the police department is inside the officer's vehicle.

An officer shall not initiate or join a pursuit while an arrestee is inside the officer's vehicle.

##### **351.4.5 PURSUIT INTERVENTIONS**

Pursuit interventions should only be used when it reasonably appears that using the intervention will contain or prevent the pursuit, and the need to immediately stop the fleeing vehicle outweighs the risks of injury or death to the officer and others (UAC R728-503-7).

Pursuit interventions may be construed as a use of force, including deadly force, and are subject to the policies guiding such use. Officers should consider the guidelines for the use of force when deciding how, when, where, and if a pursuit intervention should be employed. Refer to the Use of Force Policy for additional guidance.

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Whenever practicable, an officer should seek approval from a supervisor before employing any pursuit intervention to stop a fleeing vehicle. Officers should not attempt a pursuit intervention unless they have received the appropriate training for the intervention being used.

#### **Boxing-In:**

Boxing-in should only be used when the fleeing vehicle is stopped or traveling at a low speed.

Boxing-in requires the participation of multiple authorized emergency vehicles and must be carefully coordinated with all participants.

#### **Firearms:**

See American Fork PD Policy 300 (Use of Force)

#### **Pursuit Intervention Technique (PIT):**

Before conducting a PIT, officers should consider factors such as:

- (a) Speed of the fleeing vehicle: conducting a PIT while traveling at high speeds increases the risk of the suspect or officer losing control of their vehicle. A PIT should not be conducted at speeds greater than the speed at which the officer has received training.
- (b) Road conditions: because the intention of a PIT is to cause the fleeing vehicle to spin out by reducing the friction between the tires and the roadway, the material of the roadway (e.g., pavement, gravel, dirt, etc.) should be considered and a PIT should not be attempted when road conditions are wet or icy.
- (c) Characteristics of the deployment area: a PIT should not be attempted in areas that are heavily populated with pedestrians, during times of heavy traffic, or at a location where there is a heightened chance of striking a fixed object.
- (d) Characteristics of the fleeing vehicle: a PIT should not be used when the pursued vehicle is a motorcycle or other vehicle with fewer than four wheels, an ATV, a vehicle transporting hazardous materials, or any vehicle in which a child is known to be present. The increased risk of rolling over should be evaluated on vehicles with a high center of gravity.
- (e) Number of pursuit units: a PIT should not be used unless there is a sufficient number of pursuit units available to prevent further movement of the fleeing vehicle after spinning out.

#### **Ramming:**

Ramming shall only be used when deadly force is warranted.

#### **Roadblocks:**

Roadblocks shall only be used when deadly force is warranted, and all other reasonable alternatives have been exhausted or reasonably appear ineffective.

When practicable, roadblocks shall only be created with a supervisor's approval.

When a roadblock is created, law enforcement officers shall ensure all the following:

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- (a) allow for a reasonable stopping distance
- (b) place the roadblock in a position that is reasonably visible
- (c) reasonably ensure the safety of non-involved pedestrians and motorists
- (d) not place themselves or their vehicle in a position to jeopardize their own safety

#### **Tire Deflation Devices:**

Tire deflation devices may be used in a vehicle pursuit.

However, before deployment, officers should consider factors such as:

- (a) Speed of the fleeing vehicle: traveling at high speeds increases the risk the suspect will lose control of the vehicle after driving over or swerving to avoid a tire deflation device.
- (b) Weather and visibility: tire deflation devices should only be deployed when the location, weather, and other conditions allow the deploying officer to clearly see the fleeing vehicle, pursuing units, and other approaching traffic.
- (c) Cover: deployment should occur in a location that provides the deploying officer adequate cover and escape from intentional or unintentional exposure to the approaching vehicles.
- (d) Road conditions: soft or loose material such as dirt or gravel may prevent a tire deflation device from puncturing the vehicle's tire. Deploying the device on loose pavement or icy or wet roads increases the risk of the suspect losing control of the vehicle.
- (e) Characteristics of deployment area: a tire deflation device should not be deployed in areas that are heavily populated with pedestrians, during times of heavy traffic, or at a location where there is a heightened chance of striking a fixed object.
- (f) Characteristics of the fleeing vehicle: except in extraordinary circumstances, a tire deflation device should not be used when the fleeing vehicle is a vehicle with three wheels, an ATV, a vehicle transporting hazardous materials, or any vehicle in which a child is known to be present. A tire deflation device shall only be used on a motorcycle when deadly force is warranted.

Because of the risks to deploying officers, the intent to deploy a tire deflation device and its deployment location should be clearly communicated to dispatch and all involved units.

#### **Vehicles:**

- (a) Unauthorized vehicles: officers operating vehicles not equipped with emergency lights and an audible siren are prohibited from pursuing a vehicle or joining a pursuit.
- (b) Unmarked vehicles & police motorcycles: when involved in a pursuit, unmarked vehicles and police motorcycles should be replaced by marked, 4-wheel authorized emergency vehicles as soon as practicable.

### **351.5 INTERJURISDICTIONAL CONSIDERATIONS**



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#### 351.5.1 ASSUMPTION OF DEPARTMENT PURSUITS BY ANOTHER AGENCY

When a pursuit enters another agency's jurisdiction, the primary unit or the supervisor should determine whether to request the other agency assume the pursuit, taking into consideration the distance traveled, familiarity with the area, and other pertinent facts.

The supervisor should coordinate such assistance with the assuming agency and obtain any information that is necessary for department reports.

Upon relinquishing control of the pursuit, a supervisor may direct the involved officers to proceed to the termination point in order to provide information and assistance for the arrest of the suspect and the reporting of the incident.

Once another agency has agreed to assume the pursuit, pursuing units should relinquish control and discontinue participation unless the continued assistance of the American Fork Police Department is requested by the agency assuming the pursuit.

#### 351.5.2 DEPARTMENT PURSUITS THAT ENTER ANOTHER JURISDICTION

The primary unit or supervisor should ensure that notification is provided to each outside jurisdiction into which the pursuit is reasonably expected to enter, regardless of whether such jurisdiction is expected to assist (UAC R728-503-6).

#### 351.5.3 OUTSIDE AGENCY PURSUITS IN THIS JURISDICTION

Officers from this department should not join a pursuit being conducted by another agency unless specifically requested to do so by that agency and with approval from a department supervisor.

If an officer is requested to join a pursuit, the officer shall conduct a balance test to ensure the need for apprehension outweighs the risks. A request to join a pursuit is not justification in and of itself to pursue.

When a request is made for this department to assist or take over a pursuit that has entered the jurisdiction of the American Fork Police Department, the Shift Sergeant or supervisor should review the request as soon as practicable, taking into consideration:

- (a) Whether the need to apprehend the fleeing suspect outweighs the risks of the pursuit to officers and the public.
- (b) Whether there is adequate staffing to continue the pursuit.
- (c) The available units' capabilities to maintain the pursuit.
- (d) The number of available units and other resources of the pursuing agency.

Assistance to a pursuing agency by officers of this department should terminate at the city limits, provided that the pursuing agency has sufficient assistance from other sources. Ongoing participation from this department should continue only until sufficient assistance is present.

In the event that a pursuit from another agency terminates within this jurisdiction, officers should provide appropriate assistance to the pursuing agency such as scene control, inter-agency

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coordination, completion of supplemental reports, and any other reasonable assistance requested or needed.

#### 351.5.4 OUTSIDE AGENCY REQUESTS FOR PURSUIT INTERVENTIONS

American Fork Police Officers are permitted to deploy tire deflation devices in an outside agency's pursuit when specifically requested to do so by that agency and, when feasible, with approval from a department supervisor.

No other pursuit interventions may be used in an outside agency's pursuit unless approval is first obtained from a department supervisor.

All the guidelines and considerations outlined in this policy for tire deflation devices shall apply to the deployment of tire deflation devices in an outside agency's pursuit.

### **351.6 DECISION TO INITIATE A PURSUIT**

#### 351.6.1 THE BALANCE TEST

The Balance Test is an ongoing evaluation that occurs during the entirety of a pursuit in which the risks of a pursuit are balanced against the need to apprehend a suspect.

Officers shall not initiate, continue, or join a pursuit in which the officer or a supervisor reasonably believes the risks of a pursuit outweigh the need to apprehend a suspect.

Generally, American Fork Police Officers should not initiate a pursuit unless:

- (a) A suspect inside the vehicle is reasonably believed to have committed a forcible felony involving the use or threatened use of force against another person; OR
- (b) Based on the totality of the circumstances known at the time, the officer or a supervisor believes the fleeing suspect's present conduct poses a threat of death or serious bodily injury to the public if not immediately apprehended

Even when one of these conditions exists, a pursuit shall only be initiated or continued when the need for immediate apprehension outweighs the reasonably foreseeable risks created by the pursuit.

#### 351.6.2 CONSIDERATIONS

In conducting a balance test, several considerations exist, including:

- (a) The seriousness of the known or reasonably suspected crime committed by the suspect and the threat to the safety of the public if the suspect remains at large.
- (b) Whether the identity of the suspect is known with enough certainty to enable apprehension at a later time.
- (c) The speed of the vehicles relative to the conditions of the area, such as the population density, amount of vehicular and pedestrian traffic (e.g., school zones, construction zones, etc.), time of day, and road and weather conditions.
- (d) The pursuing officer's driving capabilities, familiarity with the area, and quality of radio communications with everyone involved.

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- (e) The nature of the pursuing unit (e.g., marked vs. unmarked) and its speed and performance capabilities in relation to the fleeing vehicle (e.g., performance motorcycle).
- (f) Whether there are other persons in or on the fleeing vehicle and their relationship to the situation (e.g., passengers, co-offenders, hostages, etc.).
- (g) The availability of other resources such as air support or vehicle locator/deactivation technology.
- (h) The likelihood of a pursuit resulting in apprehension.

#### **351.7 PURSUIT INITIATION**

##### **351.7.1 COMMUNICATIONS**

As soon as practicable, the primary unit (until a secondary unit joins) should notify dispatch of the pursuit, request the channel be cleared for emergency traffic only, and provide appropriate information including:

- (a) The location, direction of travel, and estimated speed of the pursuit.
- (b) The description of the fleeing vehicle, including the license plate number, if known.
- (c) The reason for the pursuit.
- (d) A description of the fleeing vehicle's evasive driving behavior (e.g., rapid lane changes, no headlights, wrong side, etc.).
- (e) Known or suspected weapons, threats of force, violence, injuries, hostages, or other unusual hazards.
- (f) The suspected number of occupants and their identities or descriptions.
- (g) The weather, road, and traffic conditions.
- (h) The need for any additional resources or equipment.

##### **351.7.2 SUPERVISOR NOTIFICATION**

As soon as practicable, the primary unit should ask dispatch to notify the on-duty supervisor if the supervisor is not yet aware of the pursuit.

#### **351.8 PURSUIT OPERATIONS**

##### **351.8.1 RESPONSIBILITIES - PRIMARY UNIT**

The initial pursuing officer should be designated as the primary unit and will be responsible for conducting the pursuit unless that unit is unable to remain reasonably close to the suspect's vehicle. The primary responsibility of the officer initiating the pursuit is the apprehension of the suspect without unreasonable danger to the officer or others.

The primary unit is responsible for broadcasting the progress of the pursuit until a secondary unit joins the pursuit. Once an additional unit joins the pursuit, the primary unit should relinquish

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the responsibility of broadcasting the progress of the pursuit to the secondary or air unit unless circumstances reasonably indicate otherwise.

#### 351.8.2 RESPONSIBILITIES - SECONDARY UNIT

The second officer in the pursuit should be designated as the secondary unit and is responsible for:

- (a) Notifying Dispatch of their entry into the pursuit.
- (b) Broadcasting the progress of the pursuit, updating known or critical information, and providing changes in the pursuit, unless the situation indicates otherwise.
- (c) Identifying the need for and requesting additional resources or equipment as appropriate.
- (d) Serving as backup to the primary unit once the fleeing vehicle has been stopped.

When an air unit becomes present, broadcasting duties may be assumed by the air unit as appropriate.

#### 351.8.3 RESPONSIBILITIES - SUPERVISOR

The sergeant of the officer initiating the pursuit (or the officer in charge (OIC) if the sergeant is not on duty) will be responsible to (UAC R728-503-6):

- (a) Immediately notify the involved units and the dispatcher of supervisory presence and ascertain all reasonably available information in order to continuously assess the situation and risk factors associated with the pursuit.
- (b) Exercise the management and control of the pursuit. However, if practicable, the supervisor shall not be engaged in the pursuit itself.
- (c) Confirm that no more pursuing units than required are involved in the pursuit.
- (d) Direct that the pursuit be terminated if, in the supervisor's judgment, continuing the pursuit is not justified under the guidelines of this policy.
- (e) Assess the emotional state of the officers involved and direct an officer to disengage from the pursuit if it appears they are unable to control their emotions.
- (f) Request additional assistance from air support, canines, or other resources, if available and appropriate.
- (g) Verify that the proper radio channel is being used.
- (h) Oversee the notification and/or coordination of outside agencies if the pursuit leaves or is likely to leave the jurisdiction of this department.
- (i) Continue the management and control of American Fork Police Department units when a pursuit enters another jurisdiction.
- (j) Prepare documentation of the pursuit and conduct a post-pursuit review, as required.

If an officer of the rank of sergeant or above is not involved in, aware of, or monitoring the pursuit, the OIC shall request that dispatch begin making notifications until a ranked officer is notified of and begins monitoring the pursuit. This ranked officer has the final responsibility for the coordination, control, and termination of a vehicle pursuit and shall maintain overall command.

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#### 351.8.4 RESPONSIBILITIES - AIR SUPPORT

When available, air unit assistance should be requested. The air unit may assume broadcasting duties once they have established visual contact with the fleeing vehicle. Ground units should maintain operational control and consider whether continued proximity and/or involvement in the pursuit is warranted.

The air unit should coordinate the activities of resources on the ground, report progress of the pursuit, and provide pursuing units with details of upcoming traffic congestion, road hazards, or other information pertinent to evaluating whether to continue the pursuit.

#### 351.8.5 RESPONSIBILITIES - UNINVOLVED OFFICERS

Officers not directly involved in the pursuit should stay alert to its progress and location, and may proceed safely to intersections ahead of the pursuit to warn cross traffic. When clearing intersections along the pursuit path, officers are authorized to use emergency equipment and should attempt to place their vehicles in locations that provide some safety or an escape route in the event of an unintended collision or a suspect intentionally trying to ram the officer's vehicle.

Other than clearing intersections along the pursuit path, uninvolved officers should avoid operating under emergency conditions (emergency lights and siren) and should remain in their assigned areas unless directed otherwise by a supervisor.

When directed by a supervisor, non-pursuing officers and officers who have dropped out of the pursuit should respond to the pursuit termination point in a non-emergency manner, observing the rules of the road.

Unless paralleling a vehicle traveling the wrong way on a roadway, officers are prohibited from paralleling the pursuit route (UAC R728-503-7).

#### 351.8.6 DRIVING CONSIDERATIONS

The decision to use specific driving tactics requires consideration of the same factors as initiating a pursuit. In addition, officers involved in the pursuit should adhere to the following:

- (a) Pursuing units should space themselves far enough from other involved vehicles to be able to see and avoid hazards and react safely to maneuvers by the fleeing vehicle.
- (b) Pursuing units should exercise caution and slow down as necessary when proceeding through intersections.
- (c) Pursuing units should not follow a fleeing vehicle driving against traffic (wrong way) and should instead:
  - i. Request assistance from available air support.
  - ii. Maintain visual contact with the fleeing vehicle by paralleling it on the correct side of the roadway.
  - iii. Request other units to observe exits available to the fleeing vehicle.

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- (d) Pursuing units should request that Dispatch notify the Utah Department of Public Safety and/or another law enforcement agency if it appears that the pursuit may enter its jurisdiction.
- (e) Pursuing units should not attempt to pass other pursuit units unless the situation indicates otherwise or they are requested to do so. Passing another pursuit unit should only be attempted with a clear understanding of the maneuver.

#### 351.8.7 TRAFFIC LAW

Officers shall drive with due regard for the safety of all persons and property. However, when in pursuit, if there is no unreasonable risk to persons and property, officers may (Utah Code 41-6a-212):

- (a) Proceed past a red or stop signal or stop sign but only after slowing down as may be necessary for safe operation.
- (b) Exceed the speed limit.
- (c) Disregard regulations governing the direction of movement or turning in specified directions.

#### 351.8.8 MEDICAL ASSISTANCE

In the event any person is injured during the course of a pursuit, the involved officer(s) shall immediately provide, or make arrangements for the provision of, medical care.

If a pursuit must be continued to prevent additional injuries or deaths, the pursuing officer(s) shall make arrangements through dispatch to provide for immediate medical care.

### **351.9 PURSUIT TERMINATION OR CONCLUSION**

#### 351.9.1 REASONS FOR TERMINATION

The factors considered when initiating a pursuit should be continually re-evaluated by pursuing units during the pursuit, as the circumstances and conditions change, and as new information becomes available. If at any time the risk of continuing the pursuit outweighs the need to immediately apprehend the suspect, the pursuit shall be terminated.

In addition, a pursuit should be terminated when (UAC R728-503-9):

- (a) A supervisor directs the pursuit to be terminated.
- (b) The location of the fleeing vehicle is no longer known.
- (c) The distance between the pursuing units and the fleeing vehicle is so great that further pursuit would be futile or would continue for an unreasonable time and/or distance.
- (d) The pursuing unit sustains damage or a mechanical failure that makes it unsafe to drive or renders the emergency lighting or audible siren partially or completely inoperable, and there are no additional units readily available to take over the pursuit.

#### 351.9.2 TERMINATING THE PURSUIT

When a pursuit is terminated for any reason, all pursuing units shall:

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- (a) Deactivate all forward-facing emergency lights and audible siren.
- (b) Pull to the side of the road and come to a complete stop if it is safe to do so.
- (c) Verbally acknowledge to dispatch the termination.

Upon termination, the primary unit should communicate to dispatch the:

- (a) Location of the pursuit termination.
- (b) The last known speed and direction of travel of the fleeing vehicle.
- (c) Any other pertinent information that may aid in the location or identification of the fleeing vehicle.

#### **351.9.3 APPREHENSION OF SUSPECTS**

If a pursuit is concluded in a manner that results in the apprehension of suspects, officers should exercise proper self-discipline and sound professional judgment at the conclusion of a pursuit and while apprehending the suspect(s).

Any use of force necessary to apprehend the suspect(s) shall be consistent with the Use of Force Policy.

Unless otherwise directed by a supervisor, an officer other than the primary unit should coordinate efforts to apprehend the suspect(s) following the pursuit.

As circumstances dictate, officers should also exercise sound tactical judgment to prioritize the safety of the public and the involved officers. Some considerations include: cover and concealment, callouts, deployment of less-than-lethal interventions, and others, rather than rushing a vehicle.

### **351.10 POST-PURSUIT RESPONSIBILITIES**

#### **351.10.1 NOTIFICATION**

If, during a vehicle pursuit, an officer with the rank of sergeant or above was unable to be notified of the pursuit, the primary officer of the pursuit shall notify a sergeant, lieutenant, or the Chief of Police as soon as possible.

#### **351.10.2 DEBRIEF**

Participating officers should return to the department as soon as practicable following a pursuit to debrief the pursuit with a supervisor, unless the pursuit was part of an Officer Involved Critical Incident (OICI).

#### **351.10.3 REPORTING**

Unless otherwise authorized by the Chief of police, within 24 hours of the pursuit, the primary officer of the vehicle pursuit shall:

- (a) Complete and submit a Vehicle Pursuit Report (VPR) to the officer's sergeant;
- (b) Complete and submit a Use of Force Report (FACTS) to the officer's sergeant, if applicable; AND

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- (c) Complete and submit a request for radio traffic audio recordings to dispatch using the applicable form.

The applicable sergeant shall review the VPR within 7 calendar days of the pursuit and either:

- (a) Return the VPR to the officer for corrections as needed; OR
- (b) Forward the VPR to the Use of Force/Pursuit (UOFP) Review Board

#### **351.10.4 VEHICLE CONSIDERATIONS, COLLISION, AND DAMAGE**

A department vehicle that was used during a pursuit should be inspected by the officer to whom the vehicle is assigned as soon as practicable to assess for damage or any other condition that may render the vehicle unsafe to operate.

Any collision experienced by a department vehicle during a pursuit shall be immediately reported to the officer's supervisor, investigated by an outside agency, and properly documented in a Vehicle Damage Report (VDR) submitted within 24 hours of the incident, unless otherwise authorized by the Chief of Police.

Any damage sustained to a department vehicle during a pursuit shall be immediately reported to the officer's supervisor and properly documented in a Vehicle Damage Report (VDR) submitted within 24 hours of the incident, unless otherwise authorized by the Chief of Police.

#### **351.11 PURSUIT REVIEWS**

The Use of Force/Pursuit (UOFP) Review Board shall review each pursuit and determine whether the involved and assisting officers complied with department policy.

The UOFP Review Board shall forward its findings for every department pursuit to the Chief of Police, who shall conduct a final review and who shall document and appropriately remedy through agency administrative action any violations of department policy (Utah Code 41-6a-212).

The policy governing the UOFP Review Board's review of pursuits is found in American Fork PD Policy 301.

#### **351.12 PURSUIT TRAINING**

The training sergeant should ensure that members of this department receive initial and annual training on vehicle pursuits relevant to their role (e.g., officers, supervisors, air units, dispatchers) (UAC R728-503-10).

Department training should address the balance test and decision-making.

Subject to available resources, annual training on pursuit driving and the deployment of pursuit intervention tactics should include scenario-based training and behind-the-wheel practice, in addition to classroom instruction.

Annual training shall include a review of case law and the department's policy and procedure for vehicle pursuits to ensure officers are knowledgeable regarding this policy (UAC R728-503-10).



## **Chapter 4 - Patrol Operations**

## Patrol Function

### 400.1 PURPOSE AND SCOPE

The purpose of this policy is to define the functions of the Patrol Division of the department to ensure intra-department cooperation and information sharing.

#### 400.1.1 FUNCTION

Officers will generally patrol in clearly marked vehicles, patrol assigned jurisdictional areas of American Fork, respond to calls for assistance, act as a deterrent to crime, enforce state and local laws and respond to emergencies 24 hours per day seven days per week.

Patrol will generally provide the following services within the limits of available resources:

- (a) Patrol that is directed at the prevention of criminal acts, traffic violations and collisions, the maintenance of public order, and the discovery of hazardous situations or conditions.
- (b) Crime prevention activities such as residential inspections, business inspections, community presentations.
- (c) Calls for service, both routine and emergency in nature.
- (d) Investigation of both criminal and non-criminal acts.
- (e) The apprehension of criminal offenders.
- (f) Community Oriented Policing and problem solving activities such as citizen assists and individual citizen contacts of a positive nature.
- (g) The sharing of information between the Patrol Division and other divisions within the department, as well as other outside governmental agencies.
- (h) The application of resources to specific problems or situations within the community, which may be improved or resolved by Community Oriented Policing and problem solving strategies.
- (i) Traffic direction and control.
- (j) Traffic accident response, investigation, and reporting.

#### 400.1.2 TERRORISM

It is the goal of the American Fork Police Department to make every reasonable effort to accurately and appropriately gather and report any information that may relate to either foreign or domestic terrorism. Officers should advise a supervisor as soon as practicable of any activity believed to be terrorism related and should document such incidents with a written report or Field Interview (FI). The supervisor should ensure that all terrorism related reports and FIs are forwarded to the Investigation Unit Supervisor in a timely fashion.

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#### **400.2 PATROL INFORMATION SHARING PROCEDURES**

The following guidelines are intended to develop and maintain intra-department cooperation and information flow between the various divisions of the American Fork Police Department.

##### **400.2.1 CRIME REPORTS**

A crime report may be completed by any patrol officer who receives criminal information. The report will be processed and forwarded to the appropriate bureau for retention or follow-up investigation.

##### **400.2.2 PATROL BRIEFING**

Patrol supervisors, detective sergeants and special unit sergeants are encouraged to share information as much as possible. All supervisors and/or officers will be provided an opportunity to share information at the daily patrol Briefing as time permits.

##### **400.2.3 SHIFT LOGS**

Each shift supervisor shall ensure that a shift log is completed at the termination of each shift and sent out to the entire department. This shift log serves as an information-sharing tool that relays information between patrol and other components of the agency. It should contain, at a minimum, a brief overview of each case that was dealt with over the course of the shift, and should also contain any other pertinent information related to cases being dealt with over multiple shifts, wanted and missing persons, and any other time-sensitive or critical information.

##### **400.2.4 BULLETIN BOARDS**

A bulletin board will be kept in the Briefing Room and the Investigation Unit for display of suspect information, intelligence reports and photographs. New General Orders will be made available for patrol supervisors and will be discussed at Briefing and shift meetings. A copy of the General Order will be placed on the Briefing Room clipboard.

#### **400.3 CROWDS, EVENTS AND GATHERINGS**

Officers may encounter gatherings of people, including but not limited to, civil demonstrations, civic, social and business events, public displays, parades and sporting events. Officers should monitor such events as time permits in an effort to keep the peace and protect the safety and rights of those present. A patrol supervisor should be notified when it becomes reasonably foreseeable that such an event may require increased monitoring, contact or intervention.

Officers responding to an event or gathering that warrants law enforcement involvement should carefully balance the speech and association rights of those present with applicable public safety concerns before taking enforcement action. Officers are encouraged to contact organizers or responsible persons to seek voluntary compliance that may address relevant public safety/order concerns.

Officers should consider enforcement of applicable state and local laws, when the activity blocks the entrance or egress of a facility or location and when voluntary compliance with the law is not achieved.

# Bias-Based Policing

## 401.1 PURPOSE AND SCOPE

This policy provides guidance to department members that affirms the American Fork Police Department's commitment to policing that is fair and objective (Utah Code 10-3-913; Utah Code 17-22-2; Utah Code 53-1-108).

Nothing in this policy prohibits the use of specified characteristics in law enforcement activities designed to strengthen the department's relationship with its diverse communities (e.g., cultural and ethnicity awareness training, youth programs, community group outreach and partnerships).

### 401.1.1 DEFINITIONS

Definitions related to this policy include:

**Bias-based policing or improper profiling** - An inappropriate reliance on actual or perceived characteristics such as race, ethnicity, national origin (including limited English proficiency), religion, sex, sexual orientation, gender identity or expression, economic status, age, cultural group, disability, or affiliation with any non-criminal group (protected characteristics) as the basis for providing differing law enforcement service or enforcement (Utah Code 53-6-210.5). This includes explicit and implicit biases (i.e., conscious and unconscious beliefs or attitudes towards certain groups).

## 401.2 POLICY

The American Fork Police Department is committed to providing law enforcement services to the community with due regard for the racial, cultural or other differences of those served. It is the policy of this department to provide law enforcement services and to enforce the law equally, fairly, objectively and without discrimination toward any individual or group.

## 401.3 BIAS-BASED POLICING PROHIBITED

Bias-based policing is strictly prohibited (Utah Code 53-6-210.5).

However, nothing in this policy is intended to prohibit an officer from considering protected characteristics in combination with credible, timely, and distinct information connecting a person or people of a specific characteristic to a specific unlawful incident, or to specific unlawful incidents, specific criminal patterns, or specific schemes.

## 401.4 MEMBER RESPONSIBILITIES

Every member of this department shall perform their duties in a fair and objective manner and is responsible for promptly reporting any suspected or known instances of bias-based policing to a supervisor. Members should, when reasonable to do so, intervene to prevent any bias-based actions by another member (Utah Code 53-6-210.5).

### 401.4.1 REASON FOR CONTACT

Officers contacting a person shall be prepared to articulate sufficient reason for the contact, independent of the protected characteristics of the individual.

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To the extent that written documentation would otherwise be completed (e.g., arrest report, Field Interview (FI) card), the involved officer should include those facts giving rise to the contact, as applicable.

Except for required data-collection forms or methods, nothing in this policy shall require any officer to document a contact that would not otherwise require reporting.

#### **401.5 SUPERVISOR RESPONSIBILITIES**

Supervisors should monitor those individuals under their command for compliance with this policy and shall handle any alleged or observed violation of this policy in accordance with the Personnel Complaints Policy.

- (a) Supervisors should discuss any issues with the involved officer and the officer's supervisor in a timely manner.
  - 1. Supervisors should document these discussions in the prescribed manner.
- (b) Supervisors should periodically review Mobile Audio/Video (MAV) recordings, body-worn camera (BWC) media, Mobile Data Terminal (MDT) data, and any other available resource used to document contact between officers and the public to ensure compliance with this policy.
  - 1. Supervisors should document these periodic reviews.
  - 2. Recordings or data that capture a potential instance of bias-based policing should be appropriately retained for administrative investigation purposes.
- (c) Supervisors shall initiate investigations of any actual or alleged violations of this policy (Utah Code 53-6-211).
- (d) Supervisors should take prompt and reasonable steps to address any retaliatory action taken against any member of this [department/office] who discloses information concerning bias-based policing (Utah Code 53-6-210.5).

#### **401.6 ADMINISTRATION**

The Patrol Division Commander should review the efforts of the [Department/Office] to provide fair and objective policing and submit an annual report, including public concerns and complaints, to the Chief of Police. The report should also include a documented review of [department/office] activities with potential for bias. This may include traffic and field contacts, asset forfeiture efforts, citizen complaints, and any corrective measures taken. The annual report should not contain any identifying information about any specific complaint, member of the public, or officer. It should be reviewed by the Chief of Police to identify any changes in training or operations that should be made to improve service.

Supervisors should review the annual report and discuss the results with those they are assigned to supervise.

# Briefing

## 402.1 PURPOSE AND SCOPE

This policy discusses the activity of [briefing] and includes the tasks that should be accomplished during this short period.

## 402.2 PREPARATION OF MATERIALS

The supervisor conducting [briefing] is responsible for preparation of the materials necessary for a constructive [briefing]. Supervisors may delegate this responsibility to a subordinate officer in the supervisor's absence or for training purposes.

## 402.3 POLICY

Briefing is intended to facilitate the accurate flow of information in order to enhance coordination of activities, improve performance and safety, and outline the expected actions of members.

## 402.4 BRIEFING

All divisions and specialized units will conduct regular [briefing] to discuss, disseminate, and exchange information among [department/office] members, work groups, and other organizations. A supervisor generally will conduct [briefing]. However, the supervisor may delegate this responsibility to a subordinate member in the supervisor's absence or for training purposes.

Briefing should include but is not limited to:

- (a) Providing members with information regarding daily activities, with particular attention given to changes in the status of:
  - 1. Wanted persons.
  - 2. Crime patterns.
  - 3. Suspect descriptions.
  - 4. Intelligence reports and photographs.
  - 5. Community issues affecting law enforcement.
  - 6. Major investigations.
- (b) Notifying members of changes in schedules and assignments.
- (c) Reviewing recent incidents for situational awareness and training purposes.
- (d) Providing training on a variety of subjects.
- (e) Conducting periodic personnel inspections.

Supervisors should also ensure that all members are informed about [departmentalDirective]s and any recent policy changes.

### 402.4.1 RETENTION OF BRIEFING TRAINING RECORDS

Briefing training materials and a curriculum or summary shall be forwarded to the Training Officer for inclusion in training records, as appropriate.

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#### **402.5 TRAINING**

Briefing training should incorporate short segments on a variety of subjects or topics and may include:

- (a) Review and discussion of new or updated policies.
- (b) Presentation and discussion of the proper application of existing policy to routine daily activities.
- (c) Presentation and discussion of the proper application of existing policy to unusual activities.
- (d) Review of recent incidents for training purposes.

# Crime and Disaster Scene Integrity

## 403.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance in handling a major crime or disaster.

## 403.2 SCENE RESPONSIBILITY

The first officer at the scene of a crime or major incident is generally responsible for the immediate safety of the public and preservation of the scene. Officers shall also consider officer safety and the safety of those persons entering or exiting the area, including those rendering medical aid to any injured parties. Once an officer has assumed or been assigned to maintain the integrity and security of the crime or disaster scene, the officer shall maintain the crime or disaster scene until he/she is properly relieved by a supervisor or other designated person.

## 403.3 POLICY

It is the policy of the American Fork Police Department to secure crime or disaster scenes so that evidence is preserved, and to identify and mitigate the dangers associated with a major crime or disaster scene for the safety of the community and those required to enter or work near the scene.

## 403.4 SEARCHES

Officers arriving at crime or disaster scenes are often faced with the immediate need to search for and render aid to victims, and to determine if suspects are present and continue to pose a threat. Once officers are satisfied that no additional suspects are present and/or there are no injured persons to be treated, those exigent circumstances will likely no longer exist. Officers should thereafter secure the scene and conduct no further search until additional or alternate authority for the search is obtained, such as consent or a search warrant.

### 403.4.1 CONSENT

When possible, officers should seek written consent to search from authorized individuals. However, in the case of serious crimes or major investigations, it may be prudent to also obtain a search warrant. Consent as an additional authorization may be sought, even in cases where a search warrant has been granted.

## 403.5 FIRST RESPONDER CONSIDERATIONS

The following list generally describes the first responder's function at a crime or disaster scene. This list is not intended to be all-inclusive, is not necessarily in order and may be altered according to the demands of each situation:

- (a) Broadcast emergency information, including requests for additional assistance and resources.
- (b) Provide for the general safety of those within the immediate area by mitigating, reducing or eliminating threats or dangers.
- (c) Locate or identify suspects and determine whether dangerous suspects are still within the area.



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- (d) Provide first aid to injured parties if it can be done safely.
- (e) Evacuate the location safely as required or appropriate.
- (f) Secure the inner perimeter.
- (g) Protect items of apparent evidentiary value.
- (h) Secure an outer perimeter.
- (i) Identify potential witnesses.
- (j) Start a chronological log noting critical times and personnel allowed access.

#### **403.6 EXECUTION OF HEALTH ORDERS**

Any sworn member of the American Fork Police Department may assist in enforcement of orders of restriction issued by the Department of Health and Human Services or local health authority for the purpose of preventing the spread of any contagious, infectious, or communicable disease (Utah Code 26B-7-304; Utah Code 26B-7-306).

# Crisis Response Unit

## 404.1 PURPOSE AND SCOPE

The Crisis Response Unit (CRU) is comprised of two specialized teams: the Crisis Negotiation Team (CNT) and the Special Weapons and Tactics Team (SWAT). The unit has been established to provide specialized support in handling critical field operations where intense negotiations and/or special tactical deployment methods beyond the capacity of field officers appear to be necessary.

### 404.1.1 OPERATIONAL AND ADMINISTRATIVE STRUCTURE

The Policy Manual sections pertaining to the Crisis Response Unit are divided into Administrative and Operational sections. Since situations that necessitate the need for such a police response vary greatly from incident to incident and such events often demand on-the-scene evaluation, the Operational Policy outlined in this manual section serves as a guideline to department personnel allowing for appropriate on scene decision making as required. The Administrative Procedures, however, are more restrictive and few exceptions should be taken.

### 404.1.2 SWAT TEAM DEFINED

A SWAT team is a designated unit of law enforcement officers that is specifically trained and equipped to work as a coordinated team to resolve critical incidents that are so hazardous, complex or unusual that they may exceed the capabilities of first responders or investigative units. These incidents include, but not limited to, hostage taking, barricaded suspects, snipers, terrorist acts and other high-risk incidents. As a matter of department policy, such a unit may also be used to serve high-risk warrants, both search and arrest, where public and officer safety issues warrant the use of such a unit.

## 404.2 LEVELS OF CAPABILITY/TRAINING

### 404.2.1 LEVEL I

A Level I SWAT team is a basic team capable of providing containment and intervention in critical incidents that exceed the training and resources available to line-level officers. This does not include ad hoc teams of officers that are formed around a specific mission, detail or incident (e.g. active shooter response).

### 404.2.2 LEVEL II

A Level II SWAT team is an intermediate level SWAT team capable of providing containment and intervention. Additionally, these teams possess tactical capabilities above the Level I teams. These teams may or may not work together on a daily basis, but are intended to respond to incidents as a team. Level II teams may be provided with supplemental training for tactical capabilities above the Level I team.

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#### 404.2.3 LEVEL III

A Level III SWAT team is an advanced level team whose personnel function as a full-time unit. Level III teams operate in accordance with contemporary best practices. Such units possess both skills and equipment to utilize tactics beyond the capabilities of Level I and Level II teams.

#### **404.3 PROGRAM**

It shall be the policy of the department to maintain a SWAT team and to provide the equipment, manpower and training necessary to maintain a SWAT team. The SWAT team should develop sufficient resources to perform three basic operational functions:

- (a) Command and Control.
- (b) Containment.
- (c) Entry/Apprehension/Rescue.

It is understood that it is difficult to categorize specific capabilities for critical incidents. Training needs may vary based on the experience level of the team personnel, team administrators and potential incident commanders. Nothing in this policy shall prohibit individual teams from responding to a situation that exceeds their training levels due to the exigency of the circumstances. The preservation of innocent human life is paramount.

#### 404.3.1 PROGRAM CONSIDERATIONS

An assessment should be conducted to determine the type and extent of SWAT missions and operations appropriate to this department. The assessment should consider the team's capabilities and limitations and should be reviewed annually by the SWAT Commander or designee.

#### 404.3.2 ORGANIZATIONAL PROCEDURES

This department shall develop a separate written set of organizational procedures which should address, at minimum, the following:

- (a) Locally identified specific missions the team is capable of performing.
- (b) Team organization and function.
- (c) Personnel selection and retention criteria.
- (d) Training and required competencies.
- (e) Procedures for activation and deployment.
- (f) Command and control issues, including a clearly defined command structure.
- (g) Multi-agency response.
- (h) Out-of-jurisdiction response.
- (i) Specialized functions and supporting resources.

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#### 404.3.3 OPERATIONAL PROCEDURES

This department shall develop a separate written set of operational procedures that are in accordance with a SWAT team's level of capability, and that use sound risk reduction practices. The operational procedures should be patterned after the National Tactical Officers Association Suggested SWAT Best Practices. Because such procedures are specific to CRU members and will outline tactical and officer safety issues, they are not included within this policy. The operational procedures should include, at minimum, the following:

- (a) Designated personnel responsible for developing an operational or tactical plan prior to, and/or during SWAT operations (time permitting).
    - 1. All SWAT team members should have an understanding of operational planning.
    - 2. SWAT team training should consider planning for both spontaneous and planned events.
    - 3. SWAT teams should incorporate medical emergency contingency planning as part of the SWAT operational plan.
  - (b) Plans for mission briefings conducted prior to an operation, unless circumstances require immediate deployment.
    - 1. When possible, briefings should include the specialized units and supporting resources.
  - (c) Protocols for a sustained operation, which may include relief, rotation of personnel and augmentation of resources.
  - (d) A generic checklist to be worked through prior to initiating a tactical action. This will provide a means of conducting a threat assessment to determine the appropriate response and resources necessary, including the use of SWAT.
  - (e) The appropriate role for a trained negotiator.
  - (f) A standard method of determining whether a warrant should be regarded as high-risk.
  - (g) A method for deciding how best to serve a high-risk warrant with all reasonably foreseeable alternatives being reviewed in accordance with risk/benefit criteria prior to selecting the method of response.
  - (h) Post-incident scene management including:
    - 1. Documentation of the incident.
    - 2. Transition to investigations and/or other units.
    - 3. Debriefing after every deployment of the SWAT team.
- (a) After-action team debriefing provides evaluation and analysis of critical incidents, and affords the opportunity for individual and team

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assessments. Debriefing also helps to identify training needs and reinforces sound risk management practices.

- (b) Such debriefing should not be conducted until involved officers have had the opportunity to individually complete necessary reports or provide formal statements.
- (c) In order to maintain candor and a meaningful exchange, debriefing will generally not be recorded.
- (d) When appropriate, debriefing should include specialized units and resources.
  - (i) Sound risk management analysis.
  - (j) Standardization of equipment deployed.

#### **404.4 TRAINING NEEDS ASSESSMENT**

The SWAT/CRU Commander shall conduct an annual SWAT training needs assessment to ensure that training is conducted within team capabilities and the department Policy Manual.

##### **404.4.1 INITIAL TRAINING**

SWAT team operators and SWAT supervisors/team leaders should not be deployed until successful completion of a department-approved Basic SWAT Course or its equivalent.

- (a) To avoid unnecessary or redundant training, previous training completed by members may be considered equivalent when the hours and content (topics) meet or exceed department requirements.

##### **404.4.2 UPDATED TRAINING**

Appropriate team training for the specialized SWAT functions and other supporting resources should be completed prior to full deployment of the team.

SWAT team operators and SWAT supervisors/team leaders should complete update or refresher training as certified by POST, or its equivalent, every 24 months.

##### **404.4.3 SUPERVISION AND MANAGEMENT TRAINING**

Command and executive personnel are encouraged to attend training for managing the SWAT function at the organizational level to ensure personnel who provide active oversight at the scene of SWAT operations understand the purpose and capabilities of the teams.

Command personnel who may assume incident command responsibilities should attend SWAT or Critical Incident Commander Course or its equivalent. SWAT command personnel should attend a POST-certified SWAT Commander Course, Tactical Commander Course or its equivalent.

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#### 404.4.4 SWAT ONGOING TRAINING

Training shall be coordinated by the CRU Commander. The CRU Commander may conduct monthly training exercises that include a review and critique of personnel and their performance in the exercise in addition to specialized training. Training shall consist of the following:

- (a) Each SWAT member shall perform a physical fitness test twice each year. A minimum qualifying score must be attained by each team member.
- (b) Any SWAT team member failing to attain the minimum physical fitness qualification score will be notified of the requirement to retest and attain a qualifying score within 30 days. The member required to qualify shall report to a team supervisor and complete the entire physical fitness test. Failure to qualify after a second attempt may result in dismissal from the team.
- (c) Those members who are on vacation, ill or are on light duty status with a doctor's note of approval on the test date, shall be responsible for reporting to a team supervisor and taking the test within 30 days of their return to regular duty. Any member who fails to arrange for and perform the physical fitness test within the 30-day period shall be considered as having failed to attain a qualifying score for that test period.
- (d) Quarterly, each SWAT team member shall perform the mandatory SWAT handgun qualification course. The qualification course shall consist of the SWAT Basic Drill for the handgun. Failure to qualify will require that officer to seek remedial training from a team Firearms Instructor approved by the CRU Commander. Team members who fail to qualify must retest within 30 days. Failure to qualify within 30 days with or without remedial training may result in dismissal from the team.
- (e) Each SWAT team member shall complete the quarterly SWAT qualification course for any specialty weapon issued to, or used by, the team member during SWAT operations. Failure to qualify will require the team member to seek remedial training from the Firearms Instructor who has been approved by the CRU Commander. Team members who fail to qualify on their specialty weapon may not utilize the specialty weapon on SWAT operations until qualified. Team members who fail to qualify must retest within 30 days. Failure to qualify with specialty weapons within 30 days may result in the team member being removed from the team or permanently disqualified from use of that particular specialty weapon.

#### 404.4.5 TRAINING SAFETY

Use of a designated safety officer should be considered for all tactical training.

#### 404.4.6 SCENARIO-BASED TRAINING

SWAT teams should participate in scenario-based training that simulates the tactical operational environment. Such training is an established method of improving performance during an actual deployment.

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#### 404.4.7 TRAINING DOCUMENTATION

Individual and team training shall be documented and records maintained by the Training Unit. Such documentation shall be maintained in each member's individual training file. A separate agency SWAT training file shall be maintained with documentation and records of all team training.

#### **404.5 UNIFORMS, EQUIPMENT AND FIREARMS**

##### 404.5.1 UNIFORMS

SWAT teams from this agency should wear uniforms that clearly identify team members as law enforcement officers. It is recognized that certain tactical conditions may require covert movement. Attire may be selected appropriate to the specific mission.

##### 404.5.2 EQUIPMENT

SWAT teams from this agency should be adequately equipped to meet the specific mission(s) identified by the agency.

##### 404.5.3 FIREARMS

Weapons and equipment used by SWAT, the specialized units and the supporting resources should be agency-issued or approved, including any modifications, additions or attachments.

##### 404.5.4 OPERATIONAL READINESS INSPECTIONS

The CRU Commander shall appoint a CRU supervisor to perform operational readiness inspections of all unit equipment at least quarterly. The result of the inspection will be forwarded to the CRU Commander in writing. The inspection will include personal equipment issued to members of the unit, operational equipment maintained in the CRU facility and equipment maintained or used in CRU vehicles.

#### **404.6 MANAGEMENT/SUPERVISION OF CRISIS RESPONSE UNIT**

The Commander of the CRU shall be selected by the Chief of Police upon recommendation of Staff.

##### 404.6.1 PRIMARY UNIT MANAGER

Under the direction of the Chief of Police, the Crisis Response Unit shall be managed by a lieutenant.

##### 404.6.2 TEAM SUPERVISORS

The Negotiation Team and each Special Weapons and Tactics Team will be supervised by a sergeant.

The team supervisors shall be selected by the Chief of Police upon specific recommendation by Staff and the CRU Commander.

The following represent the supervisor responsibilities for the Crisis Response Unit.

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- (a) The Negotiation Team supervisor's primary responsibility is to supervise the operations of the Negotiation Team, which will include deployment, training, first line participation and other duties as directed by the CRU Commander.
- (b) The SWAT supervisor's primary responsibility is to supervise the operations of the SWAT Team, which will include deployment, training, first line participation and other duties as directed by the CRU Commander.

#### **404.7 CRISIS NEGOTIATION TEAM ADMINISTRATIVE PROCEDURES**

The Crisis Negotiation Team has been established to provide skilled verbal communicators who may be utilized to attempt to de-escalate and effect surrender in critical situations where suspects have taken hostages, barricaded themselves or have suicidal tendencies.

The following procedures serve as directives for the administrative operation of the Crisis Negotiation Team.

##### **404.7.1 SELECTION OF PERSONNEL**

Interested sworn personnel, who are off probation, shall submit a letter of interest to the SWAT Commander. A copy will be forwarded to the CRU Commander and the Crisis Negotiation Team Supervisor. Qualified applicants will then be invited to an oral interview. The oral board will consist of the CRU Commander, the Crisis Negotiation Team supervisor, and a third person to be selected by the two. Interested personnel shall be evaluated by the following criteria:

- (a) Recognized competence and ability as evidenced by performance.
- (b) Demonstrated good judgment and understanding of critical role of negotiator and negotiation process.
- (c) Effective communication skills to ensure success as a negotiator.
- (d) Special skills, training or appropriate education as it pertains to the assignment.
- (e) Commitment to the unit, realizing that the assignment may necessitate unusual working hours, conditions and training obligations.

The oral board shall submit a list of successful applicants to Staff for final selection.

##### **404.7.2 TRAINING OF NEGOTIATORS**

Those officers selected as members of the Negotiation Team should attend the POST-certified (or approved) Basic Negotiators Course prior to an actual crisis situation. Untrained officers may be used in a support or training capacity. Additional training will be coordinated by the team supervisor.

A minimum of one training day per quarter will be required to provide the opportunity for role playing and situational training necessary to maintain proper skills. This will be coordinated by the team supervisor.



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Continual evaluation of a team member's performance and efficiency as it relates to the positive operation of the unit shall be conducted by the team supervisor. Performance and efficiency levels, established by the team supervisor, will be met and maintained by all team members. Any member of the Negotiation Team who performs or functions at a level less than satisfactory shall be subject to dismissal from the unit.

#### **404.8 SWAT TEAM ADMINISTRATIVE PROCEDURES**

The following procedures serve as directives for the administrative operation of the SWAT Team.

##### **404.8.1 SELECTION OF PERSONNEL**

Interested sworn personnel who are off probation shall submit a letter of interest to the SWAT Commander. Those qualifying applicants will then be invited to participate in the testing process. The order of the tests will be given at the discretion of the CRU Commander. The testing process will consist of an oral board, physical agility, SWAT basic handgun and team evaluation.

- (a) Oral board: The oral board will consist of personnel selected by the CRU Commander. Applicants will be evaluated by the following criteria:
  - 1. Recognized competence and ability as evidenced by performance.
  - 2. Demonstrated good judgment and understanding of critical role of SWAT member.
  - 3. Special skills, training or appropriate education as it pertains to this assignment.
  - 4. Commitment to the unit, realizing that the additional assignment may necessitate unusual working hours, conditions and training obligations.
- (b) Physical agility: The physical agility test is designed to determine the physical capabilities of the applicant as they relate to performance of SWAT-related duties. The test and scoring procedure will be established by the CRU Commander. A minimum qualifying score shall be attained by the applicant to be considered for the position.
- (c) SWAT basic handgun: Candidates will be invited to shoot the SWAT Basic Drill for the handgun. A minimum qualifying score of 400 out of a possible score of 500 must be attained to qualify.
- (d) Team evaluation: Current team members will evaluate each candidate on his/her field tactical skills, teamwork, ability to work under stress, communication skills, judgment and any special skills that could benefit the team.
- (e) A list of successful applicants shall be submitted to Staff, by the CRU Commander, for final selection.

##### **404.8.2 TEAM EVALUATION**

Continual evaluation of a team member's performance and efficiency as it relates to the positive operation of the unit shall be conducted by the CRU Commander. The performance and efficiency level, as established by the team supervisor, will be met and maintained by all SWAT Team

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members. Any member of the SWAT Team who performs or functions at a level less than satisfactory shall be subject to dismissal from the team.

#### **404.9 OPERATION GUIDELINES FOR CRISIS RESPONSE UNIT**

The following procedures serve as guidelines for the operational deployment of the Crisis Response Unit. Generally, the SWAT Team and the Crisis Negotiation Team will be activated together. It is recognized, however, that a tactical team may be used in a situation not requiring the physical presence of the Crisis Negotiation Team, such as warrant service operations. This shall be at the discretion of the CRU Commander.

##### **404.9.1 ON-SCENE DETERMINATION**

The supervisor in charge at the scene of a particular event will assess whether the Crisis Response Unit is to respond. Upon final determination by the Shift Supervisor, he/she will notify the CRU Commander.

##### **404.9.2 APPROPRIATE SITUATIONS FOR USE OF CRISIS RESPONSE UNIT**

The following are examples of incidents which may result in the activation of the Crisis Response Unit:

- (a) Barricaded suspects who refuse an order to surrender.
- (b) Incidents where hostages are taken.
- (c) Arrests of dangerous persons.
- (d) Any situation that could enhance the ability to preserve life, maintain social order and ensure the protection of property.

##### **404.9.3 OUTSIDE AGENCY REQUESTS**

Requests by field personnel for assistance from outside agency crisis units must be approved by the Shift Supervisor. Deployment of the American Fork Police Department Crisis Response Unit in response to requests by other agencies must be authorized by a Division Commander.

##### **404.9.4 MULTI-JURISDICTIONAL SWAT OPERATIONS**

The SWAT team, including relevant specialized units and supporting resources, should develop protocols, agreements, MOUs, or working relationships to support multi-jurisdictional or regional responses.

- (a) If it is anticipated that multi-jurisdictional SWAT operations will regularly be conducted; SWAT multi-agency and multi-disciplinary joint training exercises are encouraged.
- (b) Members of the American Fork Police Department SWAT team shall operate under the policies, procedures and command of the American Fork Police Department when working in a multi-agency situation.

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#### 404.9.5 MOBILIZATION OF CRISIS RESPONSE UNIT

The on-scene supervisor shall make a request to the CRU Commander. If unavailable, a team supervisor shall be notified.

The on-scene supervisor should advise the CRU Commander with as much of the following information which is available at the time:

- (a) The number of suspects, known weapons and resources.
- (b) If the suspect is in control of hostages.
- (c) If the suspect is barricaded.
- (d) The type of crime involved.
- (e) If the suspect has threatened or attempted suicide.
- (f) The location of the command post and a safe approach to it.
- (g) The extent of any perimeter and the number of officers involved.
- (h) Any other important facts critical to the immediate situation and whether the suspect has refused an order to surrender.

The CRU Commander or supervisor shall then call selected officers to respond.

#### 404.9.6 FIELD UNIT RESPONSIBILITIES

While waiting for the Crisis Response Unit, field personnel should, if safe, practicable and sufficient resources exist:

- (a) Establish an inner and outer perimeter.
- (b) Establish a command post outside of the inner perimeter.
- (c) Establish an arrest/response team. The team actions may include:
  - 1. Securing any subject or suspect who may surrender.
  - 2. Taking action to mitigate a deadly threat or behavior.
- (d) Evacuate any injured persons or citizens in the zone of danger.
- (e) Attempt to establish preliminary communication with the suspect. Once the CRU has arrived, all negotiations should generally be halted to allow the negotiators and SWAT time to set up.
- (f) Be prepared to brief the CRU Commander on the situation.
- (g) Plan for, and stage, anticipated resources.

#### 404.9.7 ON-SCENE COMMAND RESPONSIBILITIES

Upon arrival of the Crisis Response Unit at the scene, the Incident Commander shall brief the CRU Commander and team supervisors about the situation. Upon review, it will be the Incident Commander's decision, with input from the CRU Commander, whether to deploy the Crisis

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Response Unit. Once the Incident Commander authorizes deployment, the CRU Commander will be responsible for the tactical portion of the operation. The Incident Commander shall continue supervision of the command post operation, outer perimeter security, and support for the Crisis Response Unit. The Incident Commander and the CRU Commander or designee shall maintain communications at all times.

#### 404.9.8 COMMUNICATION WITH CRISIS RESPONSE UNIT PERSONNEL

All of those persons who are non-Crisis Response Unit personnel should refrain from any non-emergency contact or interference with any member of the unit during active negotiations. Operations require the utmost in concentration by involved personnel and, as a result, no one should interrupt or communicate with Crisis Team personnel directly. All non-emergency communications shall be channeled through the Negotiation Team Sergeant or designee.

# Hazardous Material Response

## 405.1 PURPOSE AND SCOPE

Exposure to hazardous materials presents potential harm to department members and the public. This policy outlines the responsibilities of members who respond to these events and the factors that should be considered while on-scene, including the reporting of exposures and supervisor responsibilities.

### 405.1.1 DEFINITIONS

Definitions related to this policy include:

**Hazardous material** - A substance which by its nature, containment and reactivity, has the capability of inflicting harm during exposure; characterized as being toxic, corrosive, flammable, reactive, an irritant or strong sensitizer and thereby posing a threat to health when improperly managed.

## 405.2 POLICY

It is the policy of the American Fork Police Department to respond to hazardous material emergencies with due regard for the safety of the public and those members responding to such incidents.

## 405.3 HAZARDOUS MATERIAL RESPONSE

Members may encounter situations involving suspected hazardous materials, such as at the scene of a traffic collision, chemical spill, or fire. When members come into contact with a suspected hazardous material, they should take certain steps to protect themselves and other persons.

The fire department is the agency trained and equipped to properly respond to and mitigate most incidents involving hazardous materials and biohazards.

Responders should not perform tasks or use equipment without proper training. A responder entering the area may require decontamination before he/she is allowed to leave the scene, and should be evaluated by appropriate technicians and emergency medical services personnel for signs of exposure.

## 405.4 FIRE RESPONSE

Officers responding to a scene that involves a fire or a fire hazard should:

- (a) Make the initial assessment of a fire or fire hazard from a safe distance.
- (b) Notify dispatch, appropriate supervisors, and the appropriate fire department.
- (c) When possible to do so safely, identify potentially combustible materials that may pose an increased fire hazard and take appropriate preventative safety measures to protect life.
- (d) When possible to do so safely, make reasonable efforts to secure the scene, establish a safe perimeter, and evacuate any areas that pose a risk to the safety of others.

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### *Hazardous Material Response*

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- (e) Provide first aid to injured parties if it can be done safely.

#### **405.5 CONSIDERATIONS**

The following steps should be considered at any scene involving suspected hazardous materials:

- (a) Make the initial assessment of a potentially hazardous material from a safe distance.
- (b) Notify Dispatch, appropriate supervisors, the appropriate fire department and hazardous response units.
  - 1. Provide weather conditions, wind direction, a suggested safe approach route and any other information pertinent to responder safety.
- (c) Wear personal protective equipment (PPE), being cognizant that some hazardous material can be inhaled.
- (d) Remain upwind, uphill and at a safe distance, maintaining awareness of weather and environmental conditions, until the material is identified and a process for handling has been determined.
- (e) Attempt to identify the type of hazardous material from a safe distance using optical aids (binoculars or spotting scopes) if they are available. Identification can be determined by:
  - 1. Placards or use of an emergency response guidebook.
  - 2. Driver's statements or shipping documents from the person transporting the material.
  - 3. Information obtained from any involved person with knowledge regarding the hazardous material. Information should include:
    - (a) The type of material.
    - (b) How to secure and contain the material.
    - (c) Any other information to protect the safety of those present, the community and the environment.
- (f) Provide first aid to injured parties if it can be done safely and without contamination.
- (g) Make reasonable efforts to secure the scene to prevent access from unauthorized individuals and to protect and identify any evidence.
- (h) Begin evacuation of the immediate and surrounding areas, dependent on the material. Voluntary evacuation should be considered; mandatory evacuation may be necessary and will depend on the type of material.
- (i) Establish a decontamination area when needed.
- (j) Activate automated community notification systems, if applicable.
- (k) Notify the Utah Department of Environmental Quality, Division of Waste Management and Radiation Control.

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#### **405.6 REPORTING EXPOSURE**

Department members who believe they have been exposed to a hazardous material shall immediately report the exposure to a supervisor. Each exposure shall be documented by the member in an incident report that shall be forwarded via chain of command to the Shift Sergeant as soon as practicable. Should the affected member be unable to document the exposure for any reason, it shall be the responsibility of the notified supervisor to complete the report.

Injury or illness caused or believed to be caused from exposure to hazardous materials shall be reported the same as any other on-duty injury or illness, in addition to a crime report or incident report as applicable.

##### **405.6.1 SUPERVISOR RESPONSIBILITIES**

When a supervisor has been informed that a member has been exposed to a hazardous material, he/she shall ensure that immediate medical treatment is obtained and appropriate action is taken to mitigate the exposure or continued exposure.

To ensure the safety of members, PPE is available from supervisors. PPE not maintained by this department may be available through the appropriate fire department or emergency response team.

# Hostage and Barricade Incidents

## 406.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for situations where officers have legal cause to contact, detain or arrest a person, and the person refuses to submit to the lawful requests of the officers by remaining in a structure or vehicle and/or by taking a hostage.

The scope of this policy is not intended to address all variables that officers encounter during their initial response or when a hostage or barricade situation has developed. This policy does not require or purport to recommend specific strategies or tactics for resolution as each incident is a dynamic and rapidly evolving event.

### 406.1.1 DEFINITIONS

Definitions related to this policy include:

**Barricade situation** - An incident where a person maintains a position of cover or concealment and ignores or resists law enforcement personnel, and it is reasonable to believe the subject is armed with a dangerous or deadly weapon.

**Hostage situation** - An incident where it is reasonable to believe a person is unlawfully held by a hostage-taker as security so that specified terms or conditions will be met.

## 406.2 POLICY

It is the policy of the American Fork Police Department to address hostage and barricade situations with due regard for the preservation of life and balancing the risk of injury, while obtaining the safe release of hostages, apprehending offenders and securing available evidence.

## 406.3 COMMUNICATION

When circumstances permit, initial responding officers should try to establish and maintain lines of communication with a barricaded person or hostage-taker. Officers should attempt to identify any additional subjects, inquire about victims and injuries, seek the release of hostages, gather intelligence information, identify time-sensitive demands or conditions and obtain the suspect's surrender.

When available, department-authorized negotiators should respond to the scene as soon as practicable and assume communication responsibilities. Negotiators are permitted to exercise flexibility in each situation based upon their training, the circumstances presented, suspect actions or demands and the available resources.

### 406.3.1 EMERGENCY COMMUNICATIONS

Should circumstances at the scene permit, a supervisor or negotiator may contact the Attorney General or the District Attorney for approval to intercept any wire, electronic or oral communication and/or to use an eavesdropping device (e.g., camera or audio device) when there is an immediate threat of death or serious bodily injury to any person or to national security. The supervisor or negotiator who has been granted approval shall ensure that an application for an appropriate court



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order approving the interception is sought within 48 hours after the interception begins (Utah Code 77-23a-10(7)).

#### **406.4 FIRST RESPONDER CONSIDERATIONS**

First responding officers should promptly and carefully evaluate all available information to determine whether an incident involves, or may later develop into, a hostage or barricade situation.

The first responding officer should immediately request a supervisor's response as soon as it is determined that a hostage or barricade situation exists. The first responding officer shall assume the duties of the supervisor until relieved by a supervisor or a more qualified responder. The officer shall continually evaluate the situation, including the level of risk to officers, to the persons involved and to bystanders, and the resources currently available.

The handling officer should brief the arriving supervisor of the incident, including information about suspects and victims, the extent of any injuries, additional resources or equipment that may be needed, and current perimeters and evacuation areas.

##### **406.4.1 BARRICADE SITUATION**

Unless circumstances require otherwise, officers handling a barricade situation should attempt to avoid a forceful confrontation in favor of stabilizing the incident by establishing and maintaining lines of communication while awaiting the arrival of specialized personnel and trained negotiators. During the interim the following options, while not all-inclusive or in any particular order, should be considered:

- (a) Ensure injured persons are evacuated from the immediate threat area if it is reasonably safe to do so. Request medical assistance.
- (b) Assign personnel to a contact team to control the subject should he/she attempt to exit the building, structure or vehicle, and attack, use deadly force, attempt to escape or surrender prior to additional resources arriving.
- (c) Request additional personnel, resources and equipment as needed (e.g., canine team, air support).
- (d) Provide responding emergency personnel with a safe arrival route to the location.
- (e) Evacuate non-injured persons in the immediate threat area if it is reasonably safe to do so.
- (f) Attempt or obtain a line of communication and gather as much information on the subject as possible, including weapons, other involved parties, additional hazards or injuries.
- (g) Establish an inner and outer perimeter as circumstances require and resources permit to prevent unauthorized access.

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- (h) Evacuate bystanders, residents and businesses within the inner and then outer perimeter as appropriate. Check for injuries, the presence of other involved subjects, witnesses, evidence or additional information.
- (i) Determine the need for and notify the appropriate persons within and outside the department, such as command officers and the Public Information Officer.
- (j) If necessary and available, establish a tactical or exclusive radio frequency for the incident.
- (k) Establish a command post.

#### 406.4.2 HOSTAGE SITUATION

Officers presented with a hostage situation should attempt to avoid a forceful confrontation in favor of controlling the incident in anticipation of the arrival of specialized personnel and trained hostage negotiators. However, it is understood that hostage situations are dynamic and can require that officers react quickly to developing or changing threats. The following options while not all-inclusive or in any particular order, should be considered:

- (a) Ensure injured persons are evacuated from the immediate threat area if it is reasonably safe to do so. Request medical assistance.
- (b) Assign personnel to a contact team to control the subject should he/she attempt to exit the building, structure or vehicle, and attack, use deadly force, attempt to escape or surrender prior to additional resources arriving.
- (c) Establish a rapid response team in the event it becomes necessary to rapidly enter a building, structure or vehicle, such as when the suspect is using deadly force against any hostages (see the Rapid Response and Deployment Policy).
- (d) Assist hostages or potential hostages to escape if it is reasonably safe to do so. Hostages should be kept separated if practicable pending further interview.
- (e) Request additional personnel, resources and equipment as needed (e.g., canine team, air support).
- (f) Provide responding emergency personnel with a safe arrival route to the location.
- (g) Evacuate non-injured persons in the immediate threat area if it is reasonably safe to do so.
- (h) Coordinate pursuit or surveillance vehicles and control of travel routes.
- (i) Attempt or obtain a line of communication and gather as much information about the suspect as possible, including any weapons, victims and their injuries, additional hazards, other involved parties and any other relevant intelligence information.
- (j) Establish an inner and outer perimeter as resources and circumstances permit to prevent unauthorized access.

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- (k) Evacuate bystanders, residents and businesses within the inner and then outer perimeter as appropriate. Check for injuries, the presence of other involved subjects, witnesses, evidence or additional information.
- (l) Determine the need for and notify the appropriate persons within and outside the department, such as command officers and the Public Information Officer.
- (m) If necessary and available, establish a tactical or exclusive radio frequency for the incident.

#### **406.5 SUPERVISOR RESPONSIBILITIES**

Upon being notified that a hostage or barricade situation exists, the supervisor should immediately respond to the scene, assess the risk level of the situation, establish a proper chain of command and assume the role of Incident Commander until properly relieved. This includes requesting a Crisis Response Unit (CRU) response if appropriate and apprising the CRU Commander of the circumstances. In addition, the following options, listed here in no particular order, should be considered:

- (a) Ensure injured persons are evacuated and treated by medical personnel.
- (b) Ensure the completion of necessary first responder responsibilities or assignments.
- (c) Request crisis negotiators, specialized units, additional personnel, resources or equipment as appropriate.
- (d) Establish a command post location as resources and circumstances permit.
- (e) Designate assistants who can help with intelligence information and documentation of the incident.
- (f) If it is practicable to do so, arrange for video documentation of the operation.
- (g) Consider contacting utility and communication providers when restricting such services (e.g., restricting electric power, gas, telephone service).
- (h) Ensure adequate law enforcement coverage for the remainder of the City during the incident. The supervisor should direct non-essential personnel away from the scene unless they have been summoned by the supervisor or Dispatch.
- (i) Identify a media staging area outside the outer perimeter and have the department PIO or a designated temporary media representative provide media access in accordance with the Media Relations Policy.
- (j) Identify the need for mutual aid and the transition or relief of personnel for incidents of extended duration.
- (k) Debrief personnel and review documentation as appropriate.

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#### **406.6 CRISIS RESPONSE UNIT RESPONSIBILITIES**

It will be the Incident Commander's decision, with input from the CRU Commander, whether to deploy the CRU during a hostage or barricade situation. Once the Incident Commander authorizes deployment, the CRU Commander or the authorized designee will be responsible for the tactical portion of the operation. The Incident Commander shall continue supervision of the command post operation, outer perimeter security and evacuation, media access and support for the CRU. The Incident Commander and the CRU Commander or the authorized designee shall maintain communications at all times.

#### **406.7 REPORTING**

Unless otherwise relieved by a supervisor or Incident Commander, the handling officer at the scene is responsible for completion and/or coordination of incident reports.

# Response to Bomb Calls

## 407.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines to assist members of the American Fork Police Department in their initial response to incidents involving explosives, explosive devices, explosion/bombing incidents or threats of such incidents. Under no circumstances should these guidelines be interpreted as compromising the safety of first responders or the public. When confronted with an incident involving explosives, safety should always be the primary consideration.

## 407.2 POLICY

It is the policy of the American Fork Police Department to place a higher priority on the safety of persons and the public over damage or destruction to public or private property.

## 407.3 RECEIPT OF BOMB THREAT

Department members receiving a bomb threat should obtain as much information from the individual as reasonably possible, including the type, placement and alleged detonation time of the device.

If the bomb threat is received on a recorded line, reasonable steps should be taken to ensure that the recording is preserved in accordance with established department evidence procedures.

The member receiving the bomb threat should ensure that the Shift Supervisor is immediately advised and informed of the details. This will enable the Shift Supervisor to ensure that the appropriate personnel are dispatched and, as appropriate, the threatened location is given an advance warning.

## 407.4 GOVERNMENT FACILITY OR PROPERTY

A bomb threat targeting a government facility may require a different response based on the government agency.

### 407.4.1 AMERICAN FORK POLICE DEPARTMENT FACILITY

If the bomb threat is against the American Fork Police Department facility, the Shift Supervisor will direct and assign officers as required for coordinating a general building search or evacuation of the police department, as he/she deems appropriate.

### 407.4.2 OTHER COUNTY OR MUNICIPAL FACILITY OR PROPERTY

If the bomb threat is against a county or municipal facility within the jurisdiction of the American Fork Police Department that is not the property of this department, the appropriate agency will be promptly informed of the threat. Assistance to the other entity may be provided as the Shift Supervisor deems appropriate.

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#### **407.4.3 FEDERAL BUILDING OR PROPERTY**

If the bomb threat is against a federal building or property, the Federal Protective Service should be immediately notified. The Federal Protective Service provides a uniformed law enforcement response for most facilities, which may include use of its Explosive Detector Dog teams.

If the bomb threat is against a federal government property where the Federal Protective Service is unable to provide a timely response, the appropriate facility's security or command staff should be notified.

Bomb threats against a military installation should be reported to the military police or other military security responsible for the installation.

#### **407.5 PRIVATE FACILITY OR PROPERTY**

When a member of this department receives notification of a bomb threat at a location in the City of American Fork, the member receiving the notification should obtain as much information as reasonably possible from the notifying individual, including:

- (a) The location of the facility.
- (b) The nature of the threat.
- (c) Whether the type and detonation time of the device is known.
- (d) Whether the facility is occupied and, if so, the number of occupants currently on-scene.
- (e) Whether the individual is requesting police assistance at the facility.
- (f) Whether there are any internal facility procedures regarding bomb threats in place, such as:
  - 1. No evacuation of personnel and no search for a device.
  - 2. Search for a device without evacuation of personnel.
  - 3. Evacuation of personnel without a search for a device.
  - 4. Evacuation of personnel and a search for a device.

The member receiving the bomb threat information should ensure that the Shift Supervisor is immediately notified so that he/she can communicate with the person in charge of the threatened facility.

##### **407.5.1 ASSISTANCE**

The Shift Supervisor should be notified when police assistance is requested. The Shift Supervisor will make the decision whether the Department will render assistance and at what level. Information and circumstances that indicate a reasonably apparent, imminent threat to the safety of either the facility or the public may require a more active approach, including police control over the facility.

Should the Shift Supervisor determine that the department will assist or control such an incident, he/she will determine:

- (a) The appropriate level of assistance.

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- (b) The plan for assistance.
- (c) Whether to evacuate and/or search the facility.
- (d) Whether to involve facility staff in the search or evacuation of the building.
  - 1. The person in charge of the facility should be made aware of the possibility of damage to the facility as a result of a search.
  - 2. The safety of all participants is the paramount concern.
- (e) The need for additional resources, including:
  - 1. Notification and response, or standby notice, for fire and emergency medical services.

Even though a facility does not request police assistance to clear the interior of a building, based upon the circumstances and known threat, officers may be sent to the scene to evacuate other areas that could be affected by the type of threat, or for traffic and pedestrian control.

#### **407.6 FOUND DEVICE**

When handling an incident involving a suspected explosive device, the following guidelines, while not all inclusive, should be followed:

- (a) No known or suspected explosive item should be considered safe regardless of its size or apparent packaging.
- (b) The device should not be touched or moved except by the bomb squad or military explosive ordnance disposal team.
- (c) Personnel should not transmit on any equipment that is capable of producing radio frequency energy within the evacuation area around the suspected device. This includes the following:
  - 1. Two-way radios
  - 2. Cell phones
  - 3. Other personal communication devices
- (d) The appropriate bomb squad or military explosive ordnance disposal team should be summoned for assistance.
- (e) The largest perimeter reasonably possible should initially be established around the device based upon available personnel and the anticipated danger zone.
- (f) A safe access route should be provided for support personnel and equipment.
- (g) Search the area for secondary devices as appropriate and based upon available resources.
- (h) Consider evacuation of buildings and personnel near the device or inside the danger zone and the safest exit route.
- (i) Promptly relay available information to the Shift Supervisor including:
  - 1. The time of discovery.

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2. The exact location of the device.
3. A full description of the device (e.g., size, shape, markings, construction).
4. The anticipated danger zone and perimeter.
5. The areas to be evacuated or cleared.

#### **407.7 EXPLOSION/BOMBING INCIDENTS**

When an explosion has occurred, there are multitudes of considerations which may confront the responding officers. As in other catastrophic events, a rapid response may help to minimize injury to victims, minimize contamination of the scene by gathering crowds, or minimize any additional damage from fires or unstable structures.

##### **407.7.1 CONSIDERATIONS**

Officers responding to explosions, whether accidental or a criminal act, should consider the following actions:

- (a) Assess the scope of the incident, including the number of victims and extent of injuries.
- (b) Request additional personnel and resources, as appropriate.
- (c) Assist with first aid.
- (d) Identify and take appropriate precautions to mitigate scene hazards, such as collapsed structures, bloodborne pathogens and hazardous materials.
- (e) Assist with the safe evacuation of victims, if possible.
- (f) Establish an inner perimeter to include entry points and evacuation routes. Search for additional or secondary devices.
- (g) Preserve evidence.
- (h) Establish an outer perimeter and evacuate if necessary.
- (i) Identify witnesses.

##### **407.7.2 NOTIFICATIONS**

When an explosion has occurred, the following people should be notified as appropriate:

- Fire department
- Shift supervisor
- Bomb squad
- Chief of Police
- Additional department personnel, such as investigators and forensic services
- Other law enforcement agencies as appropriate, which may include local, state or federal agencies, such as the FBI and the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF)
- Other government agencies, as appropriate



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#### 407.7.3 CROWD CONTROL

Only authorized members with a legitimate need should be permitted access to the scene. Spectators and other unauthorized individuals should be restricted to a safe distance as is reasonably practicable given the available resources and personnel.

#### 407.7.4 PRESERVATION OF EVIDENCE

As in any other crime scene, steps should immediately be taken to preserve the scene. The Shift Supervisor should assign officers to protect the crime scene area, which could extend over a long distance. Consideration should be given to the fact that evidence may be imbedded in nearby structures or hanging in trees and bushes.

# Involuntary Commitments

## 408.1 PURPOSE AND SCOPE

This policy provides guidelines for when officers may place an individual under involuntary commitment.

## 408.2 POLICY

It is the policy of the American Fork Police Department to protect the public and individuals through legal and appropriate use of the involuntary commitment process.

## 408.3 AUTHORITY

An officer may take a person into protective custody to be temporarily involuntarily committed to a local mental health authority when that officer has probable cause, based on their observation of the individual, to believe (Utah Code 26B-5-331; Utah Code 26B-5-403):

- (a) The person has a mental illness.
- (b) The person poses a substantial danger to themselves or others because of their mental illness and conduct.

### 408.3.1 VOLUNTARY EVALUATION

If an officer encounters an individual who may qualify for an involuntary commitment, the officer may inquire as to whether the person desires to voluntarily be evaluated at an appropriate facility. If the person so desires, the officers should:

- (a) Transport the person to an appropriate facility that is able to conduct the evaluation and admit the person.
- (b) Document the circumstances surrounding the individual's desire to pursue voluntary evaluation and/or admission.

If at any point the person changes their mind regarding voluntary evaluation, officers should proceed with the involuntary commitment, if appropriate.

### 408.3.2 RESTRAINTS

If the patient is violent or potentially violent, the officer will notify the staff of this concern. The staff member in charge will have discretion as to whether soft-restraints will be used. If these restraints are desired, the officer will wait while they are being applied to help provide physical control of the patient, if needed.

### 408.3.3 MENTAL HEALTH DOCUMENTATION

The officer will complete the prescribed form and provide it to the staff member assigned to that patient. The officer will retain a copy of the 24-hour evaluation for inclusion in the case report. The officer shall also provide a verbal summary to an emergency department staff member regarding the circumstances leading to the involuntary commitment.

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#### 408.3.4 SECURING OF WEAPONS

If a receiving and secured facility prohibits weapons or if an extraordinary event occurs in the treatment facility and officers determine a need to secure their firearms, the firearm shall be secured in the appropriate gun locker at the facility or in the police vehicle.

#### 408.3.5 SUBSECTION TITLE

Notwithstanding Section 408.3.6, if an officer has probable cause to believe, based on the officer's experience and de-escalation training, that taking an individual into protective custody or transporting an individual for temporary commitment would increase the risk of substantial danger to the individual or others, an officer may exercise discretion to not take the individual into custody or transport the individual (Utah Code 26B-5-331).

#### **408.4 CONSIDERATIONS AND RESPONSIBILITIES**

Any officer handling a call involving an individual who may qualify for detention for the purpose of an involuntary commitment should consider, as time and circumstances reasonably permit:

- (a) Available information that might assist in determining the cause and nature of the individual's action or stated intentions.
- (b) Community or neighborhood mediation services.
- (c) Conflict resolution and de-escalation techniques.
- (d) Community or other resources that may be readily available to assist with mental health issues.

While these steps are encouraged, nothing in this section is intended to dissuade officers from taking reasonable action to ensure the safety of the officers and others.

Involuntary commitments should be preferred over arrest for people who have mental health issues and are suspected of committing minor crimes or creating other public safety issues.

#### 408.4.1 OFFICER DISCRETION

An officer may exercise discretion to not take an individual into protective custody or transport them for involuntary commitment to a local mental health authority if the officer has probable cause to believe, based on experience and de-escalation training, that doing so would increase the risk of substantial danger to the individual or others (Utah Code 26B-5-331). If such discretion is exercised, the officer shall document the details and circumstances of that decision in their report.

#### **408.5 TRANSPORTATION**

A person taken into custody for a civil commitment should be transported to a facility designated by the local mental health authority as follows (Utah Code 26B-5-331):

- (a) The person should be transported by ambulance if they meet any of the criteria described in Utah Code 53-2d-405 or transportation arrangements have been made by a physician, designated examiner, or mental health officer and the officer's presence is not necessary for public safety.

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1. If the person requires physical medical attention, they should be transported by ambulance to an appropriate medical facility.
- (b) When the person is not transported by ambulance and the designated facility is within the jurisdiction of the American Fork Police Department, the person should be transported by the detaining officer in accordance with the Transporting Persons in Custody Policy.

#### **408.6 DOCUMENTATION**

The officer shall complete an application for commitment, using the form prescribed by the Division of Substance Abuse and Mental Health, provide it to the facility staff member assigned to the individual, and retain a copy of the application for inclusion in the case report (Utah Code 26B-5-331).

The officer should also provide a verbal summary to any evaluating staff member regarding the circumstances leading to the involuntary detention.

#### **408.7 CRIMINAL OFFENSES**

Officers investigating an individual who is suspected of committing a minor criminal offense and who is being taken into custody through an involuntary commitment should resolve the criminal matter by issuing a warning or a citation, as appropriate.

When an individual who may qualify for an involuntary commitment has committed a serious criminal offense that would normally result in an arrest and transfer to a jail facility, the officer should:

- (a) Arrest the individual when there is probable cause to do so.
- (b) Notify the appropriate supervisor of the facts supporting the arrest and the facts that would support the detention.
- (c) Facilitate the individual's transfer to the jail facility.
- (d) Thoroughly document in the related reports the circumstances that indicate the individual may qualify for an involuntary commitment.

In the supervisor's judgment, the individual may instead be transported to the appropriate mental health facility. The supervisor should consider the seriousness of the offense, the treatment options available, the ability of this [department/office] to regain custody of the individual, [department/office] resources (e.g., posting a guard), and other relevant factors in making this decision.

#### **408.8 FIREARMS AND OTHER WEAPONS**

Whenever a person is taken into custody for a civil commitment, the handling officers should seek to determine if the person owns or has access to any firearm or other deadly weapon. Officers should consider whether it is appropriate and consistent with current search and seizure law under the circumstances to seize any such firearms or other dangerous weapons (e.g. safekeeping, evidence, consent).

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Officers are cautioned that a search warrant may be needed before entering a residence or other place to search, unless lawful warrantless entry has already been made (e.g., exigent circumstances, consent). A warrant may also be needed before searching for or seizing weapons.

The handling officer should further advise the person of the procedure for the return of any firearm or other weapon that has been taken into custody.

## Citation Releases

### 409.1 PURPOSE AND SCOPE

The purpose of this policy is to provide members of the American Fork Police Department with guidance on when to release adults who are suspected offenders on a citation for a criminal offense, rather than having the person held in custody for a court appearance or released on bail.

Additional release restrictions may apply to those detained for domestic violence, as outlined in the Domestic Violence Policy.

### 409.2 POLICY

The American Fork Police Department will consider its resources and its mission of protecting the community when exercising any discretion to release suspected offenders on a citation, when authorized to do so.

### 409.3 RELEASE

A suspected offender may be released on issuance of a citation as follows:

- (a) When the person is arrested for a misdemeanor or infraction charge (Utah Code 77-7-18).
- (b) When a warrant has been issued by a magistrate who has included in the order that the person be released on a summons (U. R. Crim. P. Rule 6).

### 409.4 PROHIBITIONS

The release of a suspected offender on a citation is not permitted if prohibited by local court rule.

See the Domestic Violence Policy for release restrictions related to those investigations.

### 409.5 CONSIDERATIONS

In determining whether to cite and release a person when discretion is permitted, officers should consider:

- (a) The type of offense committed.
- (b) The known criminal history of the suspected offender.
- (c) The ability to identify the suspected offender with reasonable certainty.
- (d) Whether there is any record of the individual failing to appear in previous cases or other articulable indications that the individual may not appear in court for this offense.
- (e) The individual's ties to the area, such as residence, employment or family.
- (f) Whether there is reasonable likelihood that criminal conduct by the individual will continue.

### 409.6 STATE PRIVILEGES

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#### 409.6.1 LEGISLATIVE PRIVILEGE

Members of the Legislature shall not be subject to arrest during each general and special session of the Legislature or for 15 days immediately preceding and following each session, except for any felony, treason or breach of the peace. Legislators may be issued a citation and a summons to appear at a date outside of the time of legislative privilege (Utah Constitution Article VI § 8).

#### 409.6.2 VOTER PRIVILEGE

A person who attends an election or who is traveling to and from a voting location shall not be subject to arrest on an election day, except for an act of treason, a felony or a breach of the peace (Utah Constitution Article IV § 3).

## Arrest or Detention of Foreign Nationals

### 410.1 PURPOSE AND SCOPE

This policy provides guidelines to ensure that members of the American Fork Police Department extend appropriate privileges and immunities to foreign diplomatic and consular representatives in accordance with international law.

### 410.2 POLICY

The American Fork Police Department respects international laws related to the special privileges and immunities afforded foreign diplomatic and consular representatives assigned to the United States.

All foreign diplomatic and consular representatives shall be treated with respect and courtesy, regardless of any privileges or immunities afforded them.

### 410.3 CLAIMS OF IMMUNITY

If a member comes into contact with a person where law enforcement action may be warranted and the person claims diplomatic or consular privileges and immunities, the member should, without delay:

- (a) Notify a supervisor.
- (b) Advise the person that his/her claim will be investigated and he/she may be released in accordance with the law upon confirmation of the person's status.
- (c) Request the person's identification card, either issued by the U.S. Department of State (DOS), Office of the Chief of Protocol, or in the case of persons accredited to the United Nations, by the U.S. Mission to the United Nations. These are the only reliable documents for purposes of determining privileges and immunities.
- (d) Contact the DOS Diplomatic Security Command Center at 571-345-3146 or toll free at 866-217-2089, or at another current telephone number and inform the center of the circumstances.
- (e) Verify the immunity status with DOS and follow any instructions regarding further detention, arrest, prosecution and/or release, as indicated by the DOS representative. This may require immediate release, even if a crime has been committed.

Identity or immunity status should not be presumed from the type of license plates displayed on a vehicle. If there is a question as to the status or the legitimate possession of a Diplomat or Consul license plate, a query should be run via the National Law Enforcement Telecommunications System (NLETS), designating "US" as the state.

### 410.4 ENFORCEMENT ACTION

If the DOS is not immediately available for consultation regarding law enforcement action, members shall be aware of the following:



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- (a) Generally, all persons with diplomatic and consular privileges and immunities may be issued a citation or notice to appear. However, the person may not be compelled to sign the citation.
- (b) All persons, even those with a valid privilege or immunity, may be reasonably restrained in exigent circumstances for purposes of self-defense, public safety or the prevention of serious criminal acts.
- (c) An impaired foreign diplomatic or consular representative may be prevented from driving a vehicle, even if the person may not be arrested due to privileges and immunities.
  - 1. Investigations, including the request for field sobriety tests, chemical tests and any other tests regarding impaired driving may proceed but they shall not be compelled.
- (d) The following persons may not be detained or arrested, and any property or vehicle owned by these persons may not be searched or seized:
  - 1. Diplomatic-level staff of missions to international organizations and recognized family members
  - 2. Diplomatic agents and recognized family members
  - 3. Members of administrative and technical staff of a diplomatic mission and recognized family members
  - 4. Career consular officers, unless the person is the subject of a felony warrant
- (e) The following persons may generally be detained and arrested:
  - 1. International organization staff; however, some senior officers are entitled to the same treatment as diplomatic agents.
  - 2. Support staff of missions to international organizations
  - 3. Diplomatic service staff and consular employees; however, special bilateral agreements may exclude employees of certain foreign countries
  - 4. Honorary consular officers

#### **410.5 DOCUMENTATION**

All contacts with persons who have claimed privileges and immunities afforded foreign diplomatic and consular representatives should be thoroughly documented and the related reports forwarded to DOS.

##### **410.5.1 DOCUMENTATION PROCEDURES**

An officer who stops a person holding a driver's license issued by the DOS or otherwise claiming privileges or immunities, for a moving traffic violation or any of the following offenses while operating a vehicle shall document all of the relevant information from the driver's license or identification card (Utah Code 41-6a-1901):

- (a) Automobile homicide
- (b) Manslaughter

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- (c) Negligent homicide
- (d) Aggravated assault
- (e) Reckless endangerment

The Records Section shall forward such information with a copy of the traffic citation, vehicle accident report, or written report of the incident, as applicable, to the Department of Public Safety (DPS) within five working days (Utah Code 41-6a-1901).

#### **410.6 DIPLOMATIC IMMUNITY TABLE**

Reference table on diplomatic immunity:

| Category             | Arrested or                                                 | Enter             | Issued | Subpoenaed                                                         | Prosecuted                                          | Recognized                                      |
|----------------------|-------------------------------------------------------------|-------------------|--------|--------------------------------------------------------------------|-----------------------------------------------------|-------------------------------------------------|
| <b>Diplomatic</b>    | No<br>(note (b))                                            | No                | Yes    | No                                                                 | No                                                  | Same as sponsor (full immunity & inviolability) |
| <b>Member of</b>     | No<br>(note (b))                                            | No                | Yes    | No                                                                 | No                                                  | Same as sponsor (full immunity & inviolability) |
| <b>Service Staff</b> | Yes<br>(note (a))                                           | Yes               | Yes    | Yes                                                                | No for official acts<br>Yes otherwise<br>(note (a)) | No immunity or inviolability<br>(note (a))      |
| <b>Career</b>        | Yes if for a felony and pursuant to a warrant<br>(note (a)) | Yes<br>(note (d)) | Yes    | No for official acts<br>Testimony may not be compelled in any case | No for official acts<br>Yes otherwise<br>(note (a)) | No immunity or inviolability                    |
| <b>Honorable</b>     | Yes                                                         | Yes               | Yes    | No for official acts<br>Yes otherwise                              | No for official acts<br>Yes otherwise<br>(note (a)) | No immunity or inviolability                    |
| <b>Consulate</b>     | Yes<br>(note (a))                                           | Yes               | Yes    | No for official acts<br>Yes otherwise                              | No for official acts<br>Yes otherwise<br>(note (a)) | No immunity or inviolability<br>(note (a))      |
| <b>Int'l Org</b>     | Yes<br>(note (c))                                           | Yes<br>(note (c)) | Yes    | Yes<br>(note (c))                                                  | No for official acts<br>Yes otherwise<br>(note (c)) | No immunity or inviolability                    |

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|                    |                  |     |     |     |                                            |                                                            |
|--------------------|------------------|-----|-----|-----|--------------------------------------------|------------------------------------------------------------|
| <b>Diplomatic-</b> | No<br>(note (b)) | No  | Yes | No  | No                                         | Same as<br>sponsor (full<br>immunity and<br>inviolability) |
| <b>Support</b>     | Yes              | Yes | Yes | Yes | No for official<br>act<br>Yes<br>otherwise | No immunity<br>or inviolability                            |

Notes for diplomatic immunity table:

- (a) This table presents general rules. The employees of certain foreign countries may enjoy higher levels of privileges and immunities on the basis of special bilateral agreements.
- (b) Reasonable constraints, however, may be applied in emergency circumstances involving self-defense, public safety, or in the prevention of serious criminal acts.
- (c) A small number of senior officers are entitled to be treated identically to diplomatic agents.
- (d) Note that consul residences are sometimes located within the official consular premises. In such cases, only the official office space is protected from police entry.

# Rapid Response and Deployment

## 411.1 PURPOSE AND SCOPE

Violence that is committed in schools, workplaces and other locations by individuals or a group of individuals who are determined to target and kill persons and to create mass casualties presents a difficult situation for law enforcement. The purpose of this policy is to identify guidelines and factors that will assist responding officers in situations that call for rapid response and deployment.

## 411.2 POLICY

The American Fork Police Department will endeavor to plan for rapid response to crisis situations, and to coordinate response planning with other emergency services as well as with those that are responsible for operating sites that may be the target of a critical incident.

Nothing in this policy shall preclude the use of reasonable force, deadly or otherwise, by members of the Department in protecting themselves or others from death or serious injury.

## 411.3 FIRST RESPONSE

If there is a reasonable belief that acts or threats by a suspect are placing lives in imminent danger, first responding officers should consider reasonable options to reduce, prevent or eliminate the threat. Officers must decide, often under a multitude of difficult and rapidly evolving circumstances, whether to advance on the suspect, take other actions to deal with the threat or wait for additional resources.

If a suspect is actively engaged in the infliction of serious bodily harm or other life-threatening activity toward others, officers should take immediate action to engage the suspect, if reasonably practicable, while requesting additional assistance.

Officers should remain aware of the possibility that an incident may be part of a coordinated multi-location attack that may require some capacity to respond to other incidents at other locations.

When deciding on a course of action officers should consider:

- (a) Whether to advance on or engage a suspect who is still a possible or perceived threat to others. Any advance or engagement should be based on information known or received at the time.
- (b) Whether to wait for additional resources or personnel. This does not preclude an individual officer from taking immediate action.
- (c) Whether individuals who are under imminent threat can be moved out of danger or evacuated with reasonable safety.
- (d) Whether the suspect can be contained or denied access to victims.
- (e) Whether the officers have the ability to effectively communicate with other personnel or resources.
- (f) Whether planned tactics can be effectively deployed.

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- (g) The availability of rifles, shotguns, shields, breaching tools, control devices and any other appropriate tools, and whether the deployment of these tools will provide a tactical advantage.

In a case of a barricaded suspect with no hostages and no immediate threat to others, officers should consider summoning and waiting for additional assistance (special tactics and/or hostage negotiation team response).

#### **411.4 CONSIDERATIONS**

When dealing with a crisis situation members should:

- (a) Assess the immediate situation and take reasonable steps to maintain operative control of the incident.
- (b) Obtain, explore and analyze sources of intelligence and known information regarding the circumstances, location and suspect involved in the incident.
- (c) Attempt to attain a tactical advantage over the suspect by reducing, preventing or eliminating any known or perceived threat.
- (d) Attempt, if feasible and based upon the suspect's actions and danger to others, a negotiated surrender of the suspect and release of the hostages.

#### **411.5 PLANNING**

The Patrol Division Commander or designee should coordinate critical incident planning. Planning efforts should consider:

- (a) Identification of likely critical incident target sites, such as schools, shopping centers, entertainment and sporting event venues.
- (b) Availability of building plans and venue schematics of likely critical incident target sites.
- (c) Communications interoperability with other law enforcement and emergency service agencies.
- (d) Training opportunities in critical incident target sites, including joint training with site occupants.
- (e) Evacuation routes in critical incident target sites.
- (f) Patrol first-response training.
- (g) Response coordination and resources of emergency medical and fire services.
- (h) Equipment needs.
- (i) Mutual aid agreements with other agencies.
- (j) Coordination with private security providers in critical incident target sites.

#### **411.6 TRAINING**

The Department may include rapid response to critical incidents in the training plan. This training should address:

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- (a) Orientation to likely critical incident target sites, such as schools, shopping centers, entertainment and sporting event venues.
- (b) Communications interoperability with other law enforcement and emergency service agencies.
- (c) Patrol first-response training, including patrol rifle, shotgun, breaching tool and control device training.
- (d) First aid, including gunshot trauma.
- (e) Reality-based scenario training (e.g., active shooter, disgruntled violent worker).

# Immigration Violations

## **412.1 PURPOSE AND SCOPE**

The purpose of this policy is to provide guidelines to members of the American Fork Police Department relating to immigration and interacting with federal immigration officials.

## **412.2 POLICY**

It is the policy of the American Fork Police Department that all members make personal and professional commitments to equal enforcement of the law and equal service to the public. Confidence in this commitment will increase the effectiveness of this [department/office] in protecting and serving the entire community and recognizing the dignity of all persons, regardless of their national origin or immigration status.

In keeping with this commitment, race, color, or national origin will not be considered under this policy except to the extent permitted by the constitutions of the United States and Utah (Utah Code § 76-14-202).

## **412.3 VICTIMS AND WITNESSES**

To encourage crime reporting and cooperation in the investigation of criminal activity, all individuals, regardless of their immigration status, must feel secure that contacting or being addressed by members of law enforcement will not automatically lead to immigration inquiry and/or deportation. While it may be necessary to determine the identity of a victim or witness, members shall treat all individuals equally and not in any way that would violate the United States or Utah constitutions.

## **412.4 DETENTIONS**

An individual who enters into the United States illegally has committed a misdemeanor (8 USC § 1325(a)). Generally, an alien who initially made a legal entry into the United States but has remained beyond what is a legal period of time has committed a federal civil offense.

An officer should not detain any individual, for any length of time, for a civil violation of federal immigration laws or a related civil warrant.

An officer who has a reasonable suspicion that an individual already lawfully contacted or detained has committed a criminal violation of federal immigration law may detain the person for a reasonable period of time in order to contact federal immigration officials to verify whether an immigration violation is a federal civil violation or a criminal violation. If the violation is a criminal violation, the officer may continue to detain the person for a reasonable period of time if requested by federal immigration officials (8 USC § 1357(g)(10)). No individual who is otherwise ready to be released should continue to be detained only because questions about the individual's status are unresolved.

If the officer has facts that establish probable cause to believe that a person already lawfully detained has committed a criminal immigration offense, he/she may continue the detention and

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may request a federal immigration official to respond to the location to take custody of the detained person (8 USC § 1357(g)(10)).

An officer may forgo detentions made solely on the basis of a misdemeanor offense when time limitations, availability of personnel, issues of officer safety, communication capabilities, or the potential to obstruct a separate investigation outweigh the need for the detention.

An officer should notify a supervisor as soon as practicable whenever an individual is being detained for a criminal immigration violation.

#### 412.4.1 INVESTIGATING HUMAN TRAFFICKING OR SMUGGLING

When an officer conducts a lawful traffic stop and reasonably suspects that any person in the vehicle is violating Utah human trafficking or human smuggling laws, the officer shall investigate the suspected violations and inquire into the immigration status of the occupants of the vehicle. An officer may not delay or postpone addressing the original purpose of the stop merely to confirm a person's immigration status (Utah Code 76-14-202).

#### 412.4.2 DETERMINATION OF IMMIGRATION STATUS

Utah Code 76-14-202. Detention or arrest - Determination of immigration status.

1. (a) Except as provided in Subsection (1)(b), (c), or (d), a law enforcement officer who, acting in the enforcement of a state law or local ordinance, conducts a lawful stop, detention, or arrest of an individual as specified in Subsection (1)(a)(i) or (ii), and the individual is unable to provide to the law enforcement officer a document listed in Subsection 76-14-203(1) and the law enforcement officer is otherwise unable to verify the identity of the individual, the law enforcement officer:
  - i. shall request verification of the citizenship or the immigration status of the individual under 8 U.S.C. Sec. 1373(c), except as allowed under Subsection (1)(b), (c), or (d), if the individual is arrested for an alleged offense that is a class A misdemeanor or a felony; and
  - ii. may attempt to verify the immigration status of the individual, except as exempted under Subsection (1)(b), (c), or (d), if the alleged offense is a class B or C misdemeanor, except that if the individual is arrested and booked for a class B or C misdemeanor, the arresting law enforcement officer or the law enforcement agency booking the individual shall attempt to verify the immigration status of the individual.
- (b) In individual cases, the law enforcement officer may forego the verification of immigration status under Subsection (1)(a) if the determination could hinder or obstruct a criminal investigation.
- (c) Subsection (1)(a) does not apply to a law enforcement officer who is acting as a school resource officer for an elementary or secondary school.
- (d) Subsection (1)(a) does not apply to a county or municipality when it has only one law enforcement officer on duty and response support from another law enforcement agency is not available.



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2. When a law enforcement officer makes a lawful stop, detention, or arrest under Subsection (1) of the operator of a vehicle, and while investigating or processing the primary offense, the law enforcement officer makes observations that give the law enforcement officer reasonable suspicion that the operator or any of the passengers in the vehicle are violating Section 76-5-308, 76-5-308.1, 76-5-308.3, 76-5-308.5, 76-5-310, 76-5-310.1, or 76-14-209, which concern smuggling, human trafficking, or transporting illegal aliens, the law enforcement officer shall, to the extent possible within a reasonable period of time:
  - (a) detain the occupants of the vehicle to investigate the suspected violations; and
  - (b) inquire regarding the immigration status of the occupants of the vehicle.
3. When an individual under Subsection (1) is arrested or booked into a jail, juvenile detention facility, or correctional facility, the arresting officer or the booking officer shall ensure that a request for verification of immigration status of the arrested or booked individual is submitted as promptly as is reasonably possible.
4. The law enforcement agency that has custody of an individual verified to be an illegal alien shall request that the United States Department of Homeland Security issue a detainer requesting transfer of the illegal alien into federal custody.
5. A law enforcement officer may not consider race, color, or national origin in implementing this section, except to the extent permitted by the constitutions of the United States and this state.

#### 412.4.3 SUPERVISOR RESPONSIBILITIES

When notified that an officer has detained an individual and established reasonable suspicion or probable cause to believe the person has violated a criminal immigration offense, the supervisor should determine whether it is appropriate to:

- (a) Transfer the person to federal authorities.
- (b) Lawfully arrest the person for a criminal offense or pursuant to a judicial warrant (see the Law Enforcement Authority Policy).

#### 412.5 ARREST NOTIFICATION TO FEDERAL IMMIGRATION OFFICIALS

Generally, an officer should not notify federal immigration officials when booking arrestees at a jail facility. Any required notification will be handled according to jail operation procedures. No individual who is otherwise ready to be released should continue to be detained solely for the purpose of notification.

#### 412.6 FEDERAL REQUESTS FOR ASSISTANCE

Requests by federal immigration officials for assistance from this [department/office] should be directed to a supervisor. The [Department/Office] may provide available support services, such as traffic control or peacekeeping efforts.

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#### **412.7 INFORMATION SHARING**

No member of this [department/office] will prohibit, or in any way restrict, any other member from doing any of the following regarding the citizenship or immigration status, lawful or unlawful, of any individual (8 USC § 1373):

- (a) Sending information to, or requesting or receiving such information from federal immigration officials
- (b) Maintaining such information in [department/office] records
- (c) Exchanging such information with any other federal, state, or local government entity

##### **412.7.1 IMMIGRATION DETAINERS**

No individual should be held based solely on a federal immigration detainer under 8 CFR 287.7 unless the person has been charged with a federal crime or the detainer is accompanied by a warrant, affidavit of probable cause, or removal order. Notification to the federal authority issuing the detainer should be made prior to the release.

#### **412.8 U VISA AND T VISA NONIMMIGRANT STATUS**

Under certain circumstances, federal law allows temporary immigration benefits, known as a U visa, to victims and witnesses of certain qualifying crimes (8 USC § 1101(a)(15)(U)).

Similar immigration protection, known as a T visa, is available for certain qualifying victims of human trafficking (8 USC § 1101(a)(15)(T)).

Any request for assistance in applying for U visa or T visa status should be forwarded in a timely manner to the Chief of Police or designee for review.

##### **412.8.1 U NON-IMMIGRANT STATUS GUIDELINES**

U non-immigrant status requests shall be processed and maintained in a manner consistent with Utah Code 77-38-503 and federal guidelines.

All U non-immigrant status requests shall be immediately forwarded to the Department Program Manager/Analyst, who will ensure that the request is submitted to the appropriate Department member for review. A law incident report shall be created for each request for documentation and tracking purposes, and shall include any relevant details and the outcome of the request. Any Department members assigned to review a status request shall consult with the Chief of Police prior to signing or approving a request.

The Chief of Police or designee should ensure certification requests conducted by this agency are processed within 90 days of request, unless the non-citizen is in removal proceedings, in which case the certification should be processed within 14 days of request (Utah Code 77-38-503).

##### **412.8.2 REPORTING REQUIREMENTS**

Before June 30 of each year, the Chief of Police shall submit a report of the following information to the Commission on Criminal and Juvenile Justice (Utah Code 77-38-503):

- (a) The number of victims that requested U nonimmigrant certifications from the agency

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- (b) The number of U nonimmigrant certifications that were signed
- (c) The number of U nonimmigrant certifications that were denied

#### **412.9 TRAINING**

Senior leadership shall ensure that all appropriate members receive immigration training.

## Emergency Utility Service

### 413.1 PURPOSE AND SCOPE

The City public works department has personnel available to handle emergency calls 24 hours per day. Calls for service during non-business hours are frequently directed to the American Fork Police Department. Requests for such service received by this department should be handled in the following manner.

#### 413.1.1 BROKEN WATER LINES

The City's responsibility ends at the water meter; any break or malfunction in the water system from the water meter to the citizen's residence or business is the customer's responsibility. Public works can only turn off the valve at the meter. The citizen can normally accomplish this.

If a break occurs on the City side of the meter, emergency personnel should be called as soon as practical by Dispatch.

#### 413.1.2 ELECTRICAL LINES

City Public Works does not maintain electrical lines to street light poles. When a power line poses a hazard, an officer should be dispatched to protect against personal injury or property damage that might be caused by power lines. The electric company or public works should be promptly notified, as appropriate.

#### 413.1.3 RESERVOIRS, PUMPS, WELLS

Public works maintains the reservoirs and public water equipment, as well as several underpass and other street drainage pumps. In the event of flooding or equipment malfunctions, emergency personnel should be contacted as soon as possible.

#### 413.1.4 EMERGENCY NUMBERS

A current list of emergency personnel who are to be called for municipal utility emergencies is maintained by Dispatch.

### 413.2 TRAFFIC SIGNAL MAINTENANCE

The City of American Fork contracts with a private maintenance company to furnish maintenance for all traffic signals within the City, other than those maintained by the State of Utah.

#### 413.2.1 OFFICER'S RESPONSIBILITY

Upon observing a damaged or malfunctioning signal, the officer will advise Dispatch of the location and problem with the signal. The dispatcher should make the necessary notification to the proper maintenance agency.

## Field Training Officer Program

### 414.1 PURPOSE AND SCOPE

The Field Training Program is intended to provide a standardized program to facilitate the officer's transition from the academic setting to the actual performance of general law enforcement duties of the American Fork Police Department.

It is the policy of this department to assign all new peace officers to a structured Field Training Program that is designed to prepare the new officer to perform in a patrol assignment, and possessing all skills needed to operate in a safe, productive and professional manner.

### 414.2 FIELD TRAINING OFFICER SELECTION AND TRAINING

The Field Training Officer (FTO) is an experienced officer trained in the art of supervising, training and evaluating entry level and lateral peace officers in the application of their previously acquired knowledge and skills.

#### 414.2.1 SELECTION PROCESS

FTO's will be selected based on the following requirements:

- (a) Possess the knowledge, skills, and abilities to supervise and train others.
- (b) Demonstrated ability as a positive role model.
- (c) Evaluation by supervisors.
- (d) Possess a POST Basic certificate.

#### 414.2.2 TRAINING

An officer selected as a Field Training Officer shall successfully complete a POST-certified 24-hour Field Training Officer's Course prior to being assigned as an FTO.

### 414.3 FIELD TRAINING OFFICER PROGRAM SUPERVISOR

The Field Training Officer Program supervisor will be selected from the rank of sergeant or above by the Patrol Division Commander or designee and shall possess a POST First-Line Supervisory Certificate.

The responsibilities of the FTO Program Supervisor include the following:

- (a) Assignment of trainees to FTOs.
- (b) Conduct FTO meetings.
- (c) Maintain and ensure FTO/Trainee performance evaluations are completed.
- (d) Maintain, update and issue the Field Training Manual to each trainee.
- (e) Monitor individual FTO performance.
- (f) Monitor overall FTO Program.

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- (g) Maintain liaison with FTO Coordinators of other agencies.
- (h) Maintain liaison with academy staff on recruit performance during the academy.
- (i) Develop ongoing training for FTOs.

#### **414.4 TRAINEE DEFINED**

Any entry level or lateral police officer newly appointed to the American Fork Police Department who has successfully completed a POST-approved Basic Academy.

#### **414.5 REQUIRED TRAINING**

Entry level officers shall be required to successfully complete the Field Training Program, consisting of a minimum of 10 weeks.

The training period for lateral officers may be modified depending on the trainee's demonstrated performance and level of experience.

To the extent practical, entry level and lateral officers should be assigned to a variety of Field Training Officers, shifts and geographical areas during their Field Training Program.

##### **414.5.1 FIELD TRAINING MANUAL**

Each new officer will be issued a Field Training Manual at the beginning of his/her Primary Training Phase. This manual is an outline of the subject matter and/or skills necessary to properly function as an officer with the American Fork Police Department. The officer shall become knowledgeable of the subject matter as outlined. He/she shall also become proficient with those skills as set forth in the manual.

The Field Training Manual will specifically cover those policies, procedures, rules and regulations enacted by the American Fork Police Department.

#### **414.6 EVALUATIONS**

Evaluations are an important component of the training process and shall be completed as outlined below.

##### **414.6.1 FIELD TRAINING OFFICER**

The FTO will be responsible for the following:

- (a) Complete and submit a written evaluation on the performance of his/her assigned trainee to the FTO program supervisor on a daily basis.
- (b) Review the Daily Trainee Performance Evaluations with the trainee each day.
- (c) Complete a detailed end-of-phase performance evaluation on his/her assigned trainee at the end of each phase of training.
- (d) Sign off all completed topics contained in the Field Training Manual, noting the method(s) of learning and evaluating the performance of his/her assigned trainee.

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#### 414.6.2 IMMEDIATE SUPERVISOR

The immediate supervisor shall review and approve the Daily Trainee Performance Evaluations and forward them to the Field Training Administrator.

#### 414.6.3 FIELD TRAINING ADMINISTRATOR

The Field Training Administrator will review and approve the Daily Trainee Performance Evaluations submitted by the FTO through his/her immediate supervisor.

#### 414.6.4 TRAINEE

At the completion of the Field Training Program, the trainee shall submit a confidential performance evaluation on each of their FTOs and on the Field Training Program.

#### **414.7 DOCUMENTATION**

All documentation of the Field Training Program will be retained in the officer's training files and will consist of the following:

- (a) Daily Trainee Performance Evaluations.
- (b) End of phase evaluations.
- (c) A Certificate of Completion certifying that the trainee has successfully completed the required number of hours of field training.

## Obtaining Air Support

### 415.1 PURPOSE AND SCOPE

The use of a law enforcement helicopter can be invaluable in certain situations. This policy specifies potential situations where the use of a helicopter may be requested and the responsibilities for making a request.

### 415.2 REQUEST FOR HELICOPTER ASSISTANCE

If a supervisor or officer in charge of an incident determines that the use of a helicopter would be beneficial, a request to obtain helicopter assistance may be made.

#### 415.2.1 REQUEST FOR ASSISTANCE FROM ANOTHER AGENCY

After consideration and approval of the request for a helicopter, the Shift Supervisor, or designee, will call the closest agency having helicopter support available. The Shift Supervisor will apprise that agency of the specific details of the incident prompting the request.

#### 415.2.2 CIRCUMSTANCES UNDER WHICH AID MAY BE REQUESTED

Law enforcement helicopters may be requested under any of the following conditions:

- (a) When the helicopter is activated under existing mutual aid agreements.
- (b) Whenever the safety of law enforcement personnel is in jeopardy and the presence of the helicopters may reduce such hazard.
- (c) When the use of the helicopters will aid in the capture of a suspected fleeing felon whose continued freedom represents an ongoing threat to the community.
- (d) When a helicopter is needed to locate a person who has strayed or is lost and whose continued absence constitutes a serious health or safety hazard.
- (e) Vehicle pursuits.

While it is recognized that the availability of helicopter support will generally provide valuable assistance to ground personnel, the presence of a helicopter will rarely replace the need for officers on the ground.



# Contacts and Temporary Detentions

## 416.1 PURPOSE AND SCOPE

The purpose of this policy is to establish guidelines for temporarily detaining but not arresting persons in the field, conducting field interviews (FI) and pat-down searches, and the taking and disposition of photographs.

### 416.1.1 DEFINITIONS

Definitions related to this policy include:

**Consensual encounter** - When an officer contacts an individual but does not create a detention through words, actions, or other means. In other words, a reasonable individual would believe that his/her contact with the officer is voluntary.

**Field interview (FI)** - The brief detainment of an individual, whether on foot or in a vehicle, based on reasonable suspicion for the purposes of determining the individual's identity and resolving the officer's suspicions.

**Field photographs** - Posed photographs taken of a person during a contact, temporary detention, or arrest in the field. Undercover surveillance photographs of an individual and recordings captured by the normal operation of a Mobile Audio/Video (MAV) system, body-worn camera, or public safety camera when persons are not posed for the purpose of photographing are not considered field photographs.

**Pat-down search** - A type of search used by officers in the field to check an individual for dangerous weapons. It involves a thorough patting-down of clothing to locate any weapons or dangerous items that could pose a danger to the officer, the detainee, or others.

**Reasonable suspicion** - When, under the totality of the circumstances, an officer has articulable facts that criminal activity may be afoot and a particular person is connected with that possible criminal activity.

**Temporary detention** - When an officer intentionally, through words, actions, or physical force, causes an individual to reasonably believe he/she is required to restrict his/her movement without an actual arrest. Temporary detentions also occur when an officer actually restrains a person's freedom of movement.

## 416.2 POLICY

The American Fork Police Department respects the right of the public to be free from unreasonable searches or seizures. Due to an unlimited variety of situations confronting the officer, the decision to temporarily detain a person and complete an FI, pat-down search, or field photograph shall be left to the officer based on the totality of the circumstances, officer safety considerations, and constitutional safeguards.

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#### **416.3 FIELD INTERVIEWS**

Based on observance of suspicious circumstances or upon information from investigation, an officer may initiate the stop of a person, and conduct an FI, when there is articulable, reasonable suspicion to do so. A person, however, shall not be detained longer than is reasonably necessary to resolve the officer's suspicion (Utah Code 77-7-15).

Any stops resulting in a temporary detention shall be documented in a police report. All relevant facts which warranted the temporary detention, as well as the officer's reasoning for conducting the detention, shall be included in the report.

Nothing in this policy is intended to discourage consensual contacts. Frequent casual contact with consenting individuals is encouraged by the American Fork Police Department to strengthen community involvement, community awareness, and problem identification.

##### **416.3.1 INITIATING A FIELD INTERVIEW**

When initiating the stop, the officer should be able to point to specific facts which, when considered with the totality of the circumstances, reasonably warrant the stop. Such facts include but are not limited to an individual's:

- (a) Appearance or demeanor suggesting that the individual is part of a criminal enterprise or is engaged in a criminal act.
- (b) Actions suggesting that the individual is engaged in a criminal activity.
- (c) Presence in an area at an inappropriate hour of the day or night.
- (d) Presence in a particular area is suspicious.
- (e) Carrying of suspicious objects or items.
- (f) Excessive clothes for the climate or clothes bulging in a manner that suggest the individual is carrying a dangerous weapon.
- (g) Location in proximate time and place to an alleged crime.
- (h) Physical description or clothing worn that matches a suspect in a recent crime.
- (i) Prior criminal record or involvement in criminal activity as known by the officer.

#### **416.4 PAT-DOWN SEARCHES**

Once a valid stop has been made, and consistent with the officer's training and experience, an officer may pat a suspect's outer clothing for weapons if the officer has a reasonable, articulable suspicion the suspect may pose a safety risk (Utah Code 77-7-16). The purpose of this limited search is not to discover evidence of a crime, but to allow the officer to pursue the investigation without fear of violence. Circumstances that may establish justification for performing a pat-down search include but are not limited to:

- (a) The type of crime suspected, particularly in crimes of violence where the use or threat of weapons is involved.
- (b) Where more than one suspect must be handled by a single officer.

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- (c) The hour of the day and the location or area where the stop takes place.
- (d) Prior knowledge of the suspect's use of force and/or propensity to carry weapons.
- (e) The actions and demeanor of the suspect.
- (f) Visual indications which suggest that the suspect is carrying a firearm or other dangerous weapon.

Whenever practicable, a pat-down search should not be conducted by a lone officer. A cover officer should be positioned to ensure safety and should not be involved in the search.

#### **416.5 FIELD PHOTOGRAPHS**

All available databases should be searched before photographing any field detainee. If a photograph is not located, or if an existing photograph no longer resembles the detainee, the officer shall carefully consider, among other things, the factors listed below.

##### **416.5.1 FIELD PHOTOGRAPHS TAKEN WITH CONSENT**

Field photographs may be taken when the subject being photographed knowingly and voluntarily gives consent. When taking a consensual photograph, the officer should have the individual read and sign the appropriate form accompanying the photograph.

##### **416.5.2 FIELD PHOTOGRAPHS TAKEN WITHOUT CONSENT**

Field photographs may be taken without consent only if they are taken during a detention that is based upon reasonable suspicion of criminal activity, and the photograph serves a legitimate law enforcement purpose related to the detention. The officer must be able to articulate facts that reasonably indicate that the subject was involved in or was about to become involved in criminal conduct. The subject should not be ordered to remove or lift any clothing for the purpose of taking a photograph.

If, prior to taking a photograph, the officer's reasonable suspicion of criminal activity has been dispelled, the detention must cease and the photograph should not be taken.

All field photographs and related reports shall be submitted to a supervisor and retained in compliance with this policy.

##### **416.5.3 DISPOSITION OF PHOTOGRAPHS**

All detainee photographs must be adequately labeled and submitted to the Shift Sergeant with either an associated FI card or other documentation explaining the nature of the contact. If an individual is photographed as a suspect in a particular crime, the photograph should be submitted as an evidence item in the related case, following standard evidence procedures.

If a photograph is not associated with an investigation where a case number has been issued, the Shift Sergeant should review and forward the photograph to one of the following locations:

- (a) If the photograph and associated FI or documentation are relevant to criminal organization/enterprise enforcement, the Shift Sergeant will forward the photograph and documents to the designated criminal intelligence system supervisor. The

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supervisor will ensure the photograph and supporting documents are retained as prescribed in the Criminal Organizations Policy.

- (b) Photographs that do not qualify for retention in a criminal intelligence system or temporary information file shall be forwarded to the Records Section.

When a photograph is taken in association with a particular case, the investigator may use such photograph in a photo lineup. Thereafter, the individual photograph should be retained as a part of the case file. All other photographs shall be retained in accordance with the established records retention schedule.

#### **416.5.4 SUPERVISOR RESPONSIBILITIES**

While it is recognized that field photographs often become valuable investigative tools, supervisors should monitor such practices in view of the above listed considerations. This is not to imply that supervisor approval is required before each photograph is taken.

Access to, and use of, field photographs shall be strictly limited to law enforcement purposes.

#### **416.5.5 NOTICE REQUIREMENT FOR PHOTOS**

Prior to taking a photograph, the officer shall notify the individual that their image may be used in conjunction with facial recognition technology, if applicable (Utah Code 77-23e-105). See the Facial Recognition Technology Use Policy for additional guidance.

#### **416.6 WITNESS IDENTIFICATION AND INTERVIEWS**

Because potential witnesses to an incident may become unavailable or the integrity of their statements compromised with the passage of time, officers should, when warranted by the seriousness of the case, take reasonable steps to promptly coordinate with an on-scene supervisor and/or criminal investigator to utilize available members for the following:

- (a) Identify all persons present at the scene and in the immediate area.
  - 1. When feasible, a recorded statement should be obtained from those who claim not to have witnessed the incident but who were present at the time it occurred.
  - 2. Any potential witness who is unwilling or unable to remain available for a formal interview should not be detained absent reasonable suspicion to detain or probable cause to arrest. Without detaining the individual for the sole purpose of identification, officers should attempt to identify the witness prior to the witness's departure.
- (b) Witnesses who are willing to provide a formal interview should be asked to meet at a suitable location where criminal investigators may obtain a recorded statement. Such witnesses, if willing, may be transported by [department/office] members.
  - 1. A written, verbal, or recorded statement of consent should be obtained prior to transporting a witness. When the witness is a minor, consent should be obtained from the parent or guardian, if available, prior to transport.

# Criminal Organizations

## 417.1 PURPOSE AND SCOPE

The purpose of this policy is to ensure that the American Fork Police Department appropriately utilizes criminal intelligence systems and temporary information files to support investigations of criminal organizations and enterprises.

### 417.1.1 DEFINITIONS

Definitions related to this policy include:

**Criminal intelligence system** - Any record system that receives, stores, exchanges or disseminates information that has been evaluated and determined to be relevant to the identification of a criminal organization or enterprise, its members or affiliates. This does not include temporary information files.

## 417.2 POLICY

The American Fork Police Department recognizes that certain criminal activities, including but not limited to gang crimes and drug trafficking, often involve some degree of regular coordination and may involve a large number of participants over a broad geographical area.

It is the policy of this [department/office] to collect and share relevant information while respecting the privacy and legal rights of the public.

## 417.3 CRIMINAL INTELLIGENCE SYSTEMS

No [department/office] member may create, submit to, or obtain information from a criminal intelligence system unless the Chief of Police has approved the system for [department/office] use.

Any criminal intelligence system approved for [department/office] use should meet or exceed the standards of 28 CFR 23.20.

A designated supervisor will be responsible for maintaining each criminal intelligence system that has been approved for [department/office] use. The supervisor or the authorized designee should ensure the following:

- (a) Members using any such system are appropriately selected and trained.
- (b) Use of every criminal intelligence system is appropriately reviewed and audited.
- (c) Any system security issues are reasonably addressed.

### 417.3.1 SYSTEM ENTRIES

It is the designated supervisor's responsibility to approve the entry of any information from a report, FI, photo, or other relevant document into an authorized criminal intelligence system. If entries are made based upon information that is not on file with this [department/office], such as open or public source documents or documents that are on file at another agency, the designated supervisor should ensure copies of those documents are retained by the Records Section. Any supporting documentation for an entry shall be retained by the Records Section in accordance

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with the established records retention schedule and for at least as long as the entry is maintained in the system.

The designated supervisor should ensure that any documents retained by the Records Section are appropriately marked as intelligence information. The Records Supervisor may not purge such documents without the approval of the designated supervisor.

#### **417.4 TEMPORARY INFORMATION FILE**

No member may create or keep files on individuals that are separate from the approved criminal intelligence system. However, members may maintain temporary information that is necessary to actively investigate whether a person or group qualifies for entry into the [department/office]-approved criminal intelligence system (CIS) only as provided in this section. Once information qualifies for inclusion, it should be submitted to the supervisor responsible for consideration of CIS entries.

##### **417.4.1 FILE CONTENTS**

A temporary information file may only contain information and documents that, within one year, will have a reasonable likelihood to meet the criteria for entry into an authorized criminal intelligence system.

Information and documents contained in a temporary information file:

- (a) Must only be included upon documented authorization of the responsible [department/office] supervisor.
- (b) Should not be originals that would ordinarily be retained by the Records Section or Property and Evidence Section, but should be copies of, or references to, retained documents, such as copies of reports, field interview (FI) forms, Dispatch records, or booking forms.
- (c) Shall not include opinions. No person, organization, or enterprise shall be labeled as being involved in crime beyond what is already in the document or information.
- (d) May include information collected from publicly available sources or references to documents on file with another government agency. Attribution identifying the source should be retained with the information.

##### **417.4.2 FILE REVIEW AND PURGING**

The contents of a temporary information file shall not be retained longer than one year. At the end of one year, the contents must be purged or entered in an authorized criminal intelligence system, as applicable.

The designated supervisor shall periodically review the temporary information files to verify that the contents meet the criteria for retention. Validation and purging of files is the responsibility of the supervisor.

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#### **417.5 INFORMATION RECOGNITION**

[Department/Office] members should document facts that suggest an individual, organization, or enterprise is involved in criminal activity and should forward that information appropriately. Examples include but are not limited to:

- (a) Gang indicia associated with a person or residence.
- (b) Information related to a drug-trafficking operation.
- (c) Vandalism indicating an animus for a particular group.
- (d) Information related to an illegal gambling operation.

[Department/Office] supervisors who utilize an authorized criminal intelligence system should work with the Training Officer to train members to identify information that may be particularly relevant for inclusion.

#### **417.6 RELEASE OF INFORMATION**

[Department/Office] members shall comply with the rules of an authorized criminal intelligence system regarding inquiries and release of information.

Information from a temporary information file may only be furnished to [department/office] members and other law enforcement agencies on a need-to-know basis and consistent with the Records Maintenance and Release Policy.

When an inquiry is made by the parent or guardian of a juvenile as to whether that juvenile's name is in a temporary information file, such information should be provided by the supervisor responsible for the temporary information file, unless there is good cause to believe that the release of such information might jeopardize an ongoing criminal investigation.

#### **417.7 CRIMINAL STREET GANGS**

The Investigation Unit supervisor should ensure that there are an appropriate number of [department/office] members who can:

- (a) Testify as experts on matters related to criminal street gangs and maintain an above average familiarity with identification of criminal street gangs, criminal street gang members, and patterns of criminal gang activity, as described in Utah Code 76-9-802 et seq. and Utah Code 53-25-601 et seq.
- (b) Coordinate with other agencies in the region regarding criminal street gang crimes and information.
- (c) Train other members to identify gang indicia and investigate criminal street gang-related crimes (Utah Code 53-25-602).

#### **417.8 TRAINING**

The Training Officer should provide training on best practices in the use of each authorized criminal intelligence system to those tasked with investigating criminal organizations and enterprises. Training should include:

- (a) The protection of civil liberties.

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- (b) Participation in a multiagency criminal intelligence system.
- (c) Submission of information into a multiagency criminal intelligence system or the receipt of information from such a system, including any governing federal and state rules and statutes.
- (d) The type of information appropriate for entry into a criminal intelligence system or temporary information file.
- (e) The review and purging of temporary information files.

#### **417.9 GANG LOITERING**

Officers may only order suspected gang members to disperse under Utah Code 76-9-903 (prohibiting gang loitering) in the following instances:

- (a) Supervisor approval is granted, or
- (b) The officer has received department-approved gang enforcement training and has been authorized by a supervisor to enforce this section.

If enforcement action is taken under this section, officers must articulate the reasonable belief that the subjects ordered to disperse are gang members.

A supervisor's approval is required for any arrest for failure to disperse.

Officers may not order anyone to disperse under this section for engaging in constitutionally protected, collective advocacy activities (demonstrations), or merely because the officer or a citizen claims offense from the speech or expression of the individuals involved or has personal animosity for the people involved. The officer must articulate that the people were remaining in one place under circumstances that would cause a reasonable belief that the purpose or effect of the loitering was to enable or facilitate a criminal street gang to:

- Establish control over one or more identifiable areas.
- Intimidate others from entering those areas.
- Conceal illegal activities.

Any officers charged with the enforcement of gang loitering laws must successfully complete appropriate training on identification of gang members and criminal street gangs which is compliant with UT Code § 63G-22 (State Training and Certification Requirements).



## Shift Supervisors

### **418.1 PURPOSE AND SCOPE**

Each patrol shift must be directed by supervisors who are capable of making decisions and communicating in a manner consistent with department policies, procedures, practices, functions and objectives. To accomplish this goal, a Sergeant should head each watch.

### **418.2 DESIGNATION AS ACTING SHIFT SUPERVISOR**

When a Sergeant is unavailable for duty as a Shift Supervisor, in most instances the senior qualified senior officer shall be designated as acting Shift Supervisor or Officer in Charge. This policy does not preclude designating a less senior senior officer as an acting Shift Supervisor or Officer in Charge when operational needs require or training permits.

# Mobile Audio Video

## 419.1 PURPOSE AND SCOPE

The American Fork Police Department has equipped marked law enforcement vehicles with Mobile Audio Video (MAV) recording systems to provide records of events and to assist officers in the performance of their duties. This policy provides guidance on the use of these systems.

### 419.1.1 DEFINITIONS

Definitions related to this policy include:

**Activate** - Any process that causes the MAV system to transmit or store video or audio data in an active mode.

**In-car camera system and MAV system** - Synonymous terms that refer to any system that captures audio and video signals, that is capable of installation in a vehicle, and that includes at minimum, a camera, microphone, recorder, and monitor.

**MAV technician** - Personnel certified or trained in the operational use and repair of MAVs, duplicating methods, and storage and retrieval methods, and who have a working knowledge of video forensics and evidentiary procedures.

**Recorded media** - Audio-video signals recorded or digitally stored on a storage device or portable media.

## 419.2 POLICY

It is the policy of the American Fork Police Department to use mobile audio and video recording technology to more effectively fulfill the mission of the [Department/Office] and to ensure these systems are used securely and efficiently.

## 419.3 OFFICER RESPONSIBILITIES

Prior to going into service, each officer will properly equip themselves to record audio and video in the field. At the end of the shift, each officer will follow the established procedures for providing to the [Department/Office] any recordings or used media and any other related equipment. Each officer should have adequate recording media for the entire duty assignment. In the event an officer works at a remote location and reports in only periodically, additional recording media may be issued. Only American Fork Police Department identified and labeled media with tracking numbers is to be used.

At the start of each shift, officers should test the MAV system's operation in accordance with manufacturer specifications and [department/office] operating procedures and training.

## 419.4 ACTIVATION OF THE MAV

The MAV system is designed to turn on whenever the vehicle's emergency lights are activated. The system remains on until it is turned off manually. The audio portion is independently controlled and should be activated manually by the officer whenever appropriate. When audio is being recorded, the video will also record.

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#### 419.4.1 REQUIRED ACTIVATION OF MAV

This policy is not intended to describe every possible situation in which the MAV system may be used, although there are many situations where its use is appropriate. An officer may activate the system any time the officer believes it would be appropriate or valuable to document an incident.

In some circumstances it is not possible to capture images of the incident due to conditions or the location of the camera. However, the audio portion can be valuable evidence and is subject to the same activation requirements as the MAV. The MAV system should be activated in any of the following situations:

- (a) All field contacts involving actual or potential criminal conduct within video or audio range:
  - 1. Traffic stops (to include but not limited to traffic violations, stranded motorist assistance, and all crime interdiction stops)
  - 2. Priority responses
  - 3. Vehicle pursuits
  - 4. Suspicious vehicles
  - 5. Arrests
  - 6. Vehicle searches
  - 7. Physical or verbal confrontations or use of force
  - 8. Pedestrian checks
  - 9. Driving under the influence (DUI) investigations, including field sobriety tests
  - 10. Consensual encounters
  - 11. Crimes in progress
  - 12. Responding to an in-progress call
- (b) All self-initiated activity in which an officer would normally notify Dispatch
- (c) Any call for service involving a crime where the recorder may aid in the apprehension and/or prosecution of a suspect, including:
  - 1. Domestic violence calls
  - 2. Disturbance of the peace calls
  - 3. Offenses involving violence or weapons
- (d) Any other contact that becomes adversarial after the initial contact, in a situation that would not otherwise require recording
- (e) Any other circumstance where the officer believes that a recording of an incident would be appropriate

Activation of the MAV system is not required when exchanging information with other officers, during breaks or lunch periods, or when not in service or not actively on patrol.

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#### 419.4.2 CESSATION OF RECORDING

Once activated, the MAV system should remain on until the incident has concluded. For purposes of this section, conclusion of an incident has occurred when all arrests have been made, arrestees have been transported and all witnesses and victims have been interviewed. Recording may cease if an officer is simply waiting for a tow truck or a family member to arrive, or in other similar situations.

#### 419.4.3 SURREPTITIOUS RECORDING

No member of this [department/office] may surreptitiously record a conversation of any other member of this [department/office] except with a court order or when lawfully authorized by the Chief of Police or the authorized designee for the purpose of conducting a criminal or administrative investigation.

#### 419.4.4 SUPERVISOR RESPONSIBILITIES

Supervisors should determine if vehicles with non-functioning MAV systems should be placed into service. If these vehicles are placed into service, the appropriate documentation should be made, including notification of the Division Commander.

At reasonable intervals, supervisors should validate that:

- (a) Beginning and end-of-shift recording procedures are followed.
- (b) Logs reflect the proper chain of custody, including:
  - 1. The tracking number of the MAV system media.
  - 2. The date it was issued.
  - 3. The name of the [department/office] member or the vehicle to which the media was issued.
  - 4. The date the media was submitted for retention.
  - 5. The name of the [department/office] member submitting the media.
  - 6. Holds for evidence indication and tagging as required.
- (c) The operation of MAV systems by new employees is assessed and reviewed no less than biweekly.

When an incident arises that requires the immediate retrieval of the recorded media (e.g., serious crime scenes, officer-involved shootings, [department/office]-involved traffic collisions), a supervisor shall respond to the scene and ensure that the appropriate person properly retrieves the recorded media. The media may need to be treated as evidence and should be handled in accordance with current evidence procedures for recorded media.

Supervisors may activate the MAV system remotely to monitor a developing situation, such as a chase, riot, or an event that may threaten public safety, officer safety, or both, when the purpose is to obtain tactical information to assist in managing the event.

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#### **419.5 REVIEW OF MAV RECORDINGS**

All recording media, recorded images, and audio recordings are the property of the [Department/Office]. No Department member shall copy, duplicate, or distribute any Department MAV recording without prior authorization of a supervisor. Dissemination outside of the [Department/Office] is strictly prohibited, except to the extent permitted or required by law.

To prevent damage to, or alteration of, the original recorded media, it shall not be copied, viewed, or otherwise inserted into any device not approved by the [department/office] MAV technician, or forensic media staff. When reasonably possible, a copy of the original media shall be used for viewing (unless otherwise directed by the courts) to preserve the original media.

Recordings may be reviewed in any of the following situations:

- (a) By officers for use when preparing reports or statements
- (b) By a supervisor investigating a specific act of officer conduct
- (c) By a supervisor to conduct documented reviews of their subordinate's MAV media at least annually to evaluate the member's performance, verify compliance with [department/office] procedures, and determine the need for additional training. The review should include a variety of event types when possible. Supervisors should review MAV media with the recording member when it would be beneficial to provide guidance or to conduct one-on-one informal training for the member.
- (d) To assess proper functioning of MAV systems
- (e) By [department/office] investigators who are participating in an official investigation, such as a personnel complaint, administrative inquiry, or a criminal investigation
- (f) By [department/office] personnel who request to review recordings
- (g) By an officer who is captured on or referenced in the video or audio data and reviews and uses such data for any purpose relating to their employment
- (h) By court personnel through proper process or with the permission of the Chief of Police or the authorized designee
- (i) By the media through proper process
- (j) To assess possible training value
- (k) For training purposes. If an involved officer objects to showing a recording, their objection will be submitted to the command staff to determine if the training value outweighs the officer's objection
- (l) As may be directed by the Chief of Police or the authorized designee

Members desiring to view any previously uploaded or archived MAV recording should submit a request in writing to the Shift Sergeant. Approved requests should be forwarded to the MAV technician for processing.

In no event shall any recording be used or shown for the purpose of ridiculing or embarrassing any member.

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#### **419.6 RECORDING MEDIA STORAGE AND INTEGRITY**

Once submitted for storage, all recording media will be labeled and stored in a designated secure area. All recording media that is not booked as evidence will be retained for a minimum of 90 days and disposed of in compliance with the established records retention schedule.

##### **419.6.1 COPIES OF ORIGINAL RECORDING MEDIA**

Original recording media shall not be used for any purpose other than for initial review by a supervisor. No Department member shall copy, duplicate, or distribute any Department MAV recording without the prior authorization of a supervisor. Upon proper request, a copy of the original recording media will be made for use as authorized in this policy.

Original recording media may only be released in response to a court order or upon approval by the Chief of Police or the authorized designee. In the event that an original recording is released to a court, a copy shall be made and placed in storage until the original is returned.

##### **419.6.2 MAV RECORDINGS AS EVIDENCE**

Officers who reasonably believe that a MAV recording is likely to contain evidence relevant to a criminal offense, potential claim against the officer or against the American Fork Police Department should indicate this in an appropriate report. Officers should ensure relevant recordings are preserved.

#### **419.7 SYSTEM OPERATIONAL STANDARDS**

- (a) MAV system vehicle installations should be based on officer safety requirements and the vehicle and device manufacturer's recommendations.
- (b) The MAV system should be configured to minimally record for 30 seconds prior to an event.
- (c) The MAV system may not be configured to record audio data occurring prior to activation.
- (d) Unless the transmitters being used are designed for synchronized use, only one transmitter, usually the primary initiating officer's transmitter, should be activated at a scene to minimize interference or noise from other MAV transmitters.
- (e) Officers using digital transmitters that are synchronized to their individual MAV shall activate both audio and video recordings when responding in a support capacity. This is to obtain additional perspectives of the incident scene.
- (f) With the exception of law enforcement radios or other emergency equipment, other electronic devices should not be used inside MAV-equipped law enforcement vehicles to minimize the possibility of causing electronic or noise interference with the MAV system.
- (g) Officers shall not erase, alter, reuse, modify, or tamper with MAV recordings. Only a supervisor, MAV technician, or other authorized designee may erase and reissue previous recordings and may only do so pursuant to the provisions of this policy.

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#### **419.8 MAV TECHNICIAN RESPONSIBILITIES**

The MAV technician is responsible for:

- (a) Ordering, issuing, retrieving, storing, erasing, and duplicating of all recorded media.
- (b) Collecting all completed media for oversight and verification of wireless downloaded media. Once collected, the MAV technician:
  - 1. Ensures it is stored in a secure location with authorized controlled access.
  - 2. Makes the appropriate entries in the chain of custody log.
- (c) Erasing of media:
  - 1. Pursuant to a court order.
  - 2. In accordance with established records retention policies, including reissuing all other media deemed to be of no evidentiary value.
- (d) Assigning all media an identification number prior to issuance to the field:
  - 1. Maintaining a record of issued media.
- (e) Ensuring that an adequate supply of recording media is available.
- (f) Managing the long-term storage of media that has been deemed to be of evidentiary value in accordance with the [department/office] evidence storage protocols and the established records retention schedule.

#### **419.9 TRAINING**

All members who are authorized to use the MAV system shall successfully complete an approved course of instruction prior to its use.

#### **419.10 ANNUAL PROGRAM REVIEW**

The MAV technician should complete an annual administrative review of the MAV program and provide it to the Chief of Police for review.

# Mobile Data Terminal Use

## **420.1 PURPOSE AND SCOPE**

The purpose of this policy is to establish guidelines for the proper access, use, and application of the Mobile Data Terminal (MDT) system in order to ensure appropriate access to confidential records from local, state, and national law enforcement databases, and to ensure effective electronic communications between [department/office] members and Dispatch. See the CJIS Access, Maintenance, and Security Policy for additional guidance.

## **420.2 POLICY**

American Fork Police Department members using the MDT shall comply with all appropriate federal and state rules and regulations and shall use the MDT in a professional manner, in accordance with this policy.

## **420.3 PRIVACY EXPECTATION**

Members forfeit any expectation of privacy with regard to messages accessed, transmitted, received, or reviewed on any [department/office] technology system (see the Information Technology Use Policy for additional guidance).

## **420.4 RESTRICTED ACCESS AND USE**

MDT use is subject to the Information Technology Use, Protected Information, and CJIS Access, Maintenance, and Security policies.

Members shall not access the MDT system if they have not received prior authorization and the required training. Members shall immediately report unauthorized access or use of the MDT by another member to their supervisor.

Use of the MDT system to access law enforcement databases or transmit messages is restricted to official activities, business-related tasks, and communications that are directly related to the business, administration, or practices of the [Department/Office]. In the event that a member has questions about sending a particular message or accessing a particular database, the member should seek prior approval from their supervisor.

Sending derogatory, defamatory, obscene, disrespectful, sexually suggestive, harassing, or any other inappropriate messages on the MDT system is prohibited and may result in discipline.

It is a violation of this policy to transmit a message or access a law enforcement database under another member's name or to use the password of another member to log in to the MDT system unless directed to do so by a supervisor. Members are required to log off the MDT or secure the MDT when it is unattended. This added security measure will minimize the potential for unauthorized access or misuse.



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#### 420.4.1 USE WHILE DRIVING

Use of the MDT by the vehicle operator should be limited to times when the vehicle is stopped. Information that is required for immediate enforcement, investigative, tactical or safety needs should be transmitted over the radio.

In no case shall an operator attempt to send or review lengthy messages while the vehicle is in motion.

#### 420.5 DOCUMENTATION OF ACTIVITY

Except as otherwise directed by the Shift Sergeant or other [department/office]-established protocol, all calls for service assigned by a dispatcher should be communicated by voice over the police radio and electronically via the MDT unless security or confidentiality prevents such broadcasting.

MDT and voice transmissions are used to document the member's daily activity. To ensure accuracy:

- (a) All contacts or activity shall be documented at the time of the contact.
- (b) Whenever the activity or contact is initiated by voice, it should be documented by a dispatcher.
- (c) Whenever the activity or contact is not initiated by voice, the member shall document it via the MDT.

#### 420.5.1 STATUS CHANGES

All changes in status (e.g., arrival at scene, meal periods, in service) will be transmitted over the police radio or through the MDT system.

Members responding to in-progress calls should advise changes in status over the radio to assist other members responding to the same incident. Other changes in status can be made on the MDT when the vehicle is not in motion.

#### 420.5.2 EMERGENCY ACTIVATION

If there is an emergency activation and the member does not respond to a request for confirmation of the need for emergency assistance or confirms the need, available resources will be sent to assist in locating the member. If the location is known, the nearest available officer should respond in accordance with the Officer Response to Calls Policy.

Members should ensure that the Shift Supervisor is notified of the incident without delay.

Officers not responding to the emergency shall refrain from transmitting on the police radio until a no-further-assistance broadcast is made or if they are also handling an emergency.

#### 420.6 EQUIPMENT CONSIDERATIONS

##### 420.6.1 MALFUNCTIONING MDT

Whenever possible, members will not use vehicles with malfunctioning MDTs. Whenever members must drive a vehicle in which the MDT is not working, they shall notify Dispatch.

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#### 420.6.2 BOMB CALLS

When investigating reports of possible bombs, members should not communicate on their MDTs when in the evacuation area of a suspected explosive device. Radio frequency emitted by the MDT could cause some devices to detonate.

## Portable Audio/Video Recorders

### **421.1 PURPOSE AND SCOPE**

This policy provides guidelines for the use of portable audio/video recording devices by members of this [department/office] while in the performance of their duties. Portable audio/video recording devices include all recording systems whether body-worn, handheld, or integrated into portable equipment (Utah Code 77-7a-102).

This policy does not apply to mobile audio/video recordings, interviews, or interrogations conducted at any American Fork Police Department facility, or to wiretaps or eavesdropping (concealed listening devices).

Additional guidance regarding the use of body-worn cameras during the execution of a warrant is found in the Warrant Service Policy.

### **421.2 POLICY**

The American Fork Police Department may provide members with access to portable recorders, either audio or video or both, for use during the performance of their duties. The use of recorders is intended to enhance the mission of the Department by accurately capturing contacts between members of the Department and the public.

### **421.3 MEMBER PRIVACY EXPECTATION**

All recordings made by members on any department-issued device at any time, and any recording made while acting in an official capacity of this department, regardless of ownership of the device it was made on, shall remain the property of the Department. Members shall have no expectation of privacy or ownership interest in the content of these recordings.

### **421.4 MEMBER RESPONSIBILITIES**

Prior to going into service, each uniformed member will be responsible for making sure that he/she is equipped with a portable recorder issued by the Department, and that the recorder is in good working order. If the recorder is not in working order or the member becomes aware of a malfunction at any time, the member shall promptly report the failure to his/her supervisor and obtain a functioning device as soon as reasonably practicable. Other than the citizen notifications required under Utah Code 77-7a-105, uniformed members are not required to notify citizens of the presence of the camera, but shall wear the body-worn camera so that it is clearly visible to the person being recorded. (Utah Code 77-7a-104; Utah Code 77-7a-105). Cameras are designed to be attached to the employee's uniform, or, if not in uniform, in such a manner that they capture video of activity occurring directly in front of the employee.

Any member assigned to a non-uniformed position shall carry an approved portable recorder at any time the member is on-duty and reasonably believes that he or she is likely to encounter any of the following: a) any enforcement and investigative contacts including stops and field interview situations, b) traffic stops including, but not limited to, traffic violations, stranded motorist assistance and all crime interdiction stops, c) self-initiated activity in which a member would

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### *Portable Audio/Video Recorders*

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normally notify Dispatch, d) any other contact that becomes adversarial after the initial contact in a situation that would not otherwise require recording, e) any use of force, f) any dispatched call for service, g) execution of a warrant. Any exception to this requirement must be approved by the Chief of Police. Unless conducting a lawful recording in an authorized undercover capacity, non-uniformed members shall wear the body-worn camera so that it is clearly visible to the person being recorded.

A portable recorder used to document clandestine investigation activities (such as those conducted by the Street Enforcement Team) is not considered a "body-worn camera" for the purposes of Utah Code 77-7a, and any department member using a portable recorder to document such clandestine investigation activities may, at his or her discretion, turn the portable recorder on or off at any time.

When using a portable recorder, the assigned member shall record his/her name, agency identification number, and the current date and time at the beginning and the end of the shift or other period of use, regardless of whether any activity was recorded. This procedure is not required when the recording device and related software captures the user's unique identification and the date and time of each recording (Utah Code 77-7a-104).

Members should document the existence of a recording in any report or other official record of the contact, including any instance where the recorder malfunctioned or the member deactivated or muted the recording. If the portable recorder was deactivated or muted, the members should include the reason for deactivation or muting in the report (Utah Code 77-7a-104).

#### **421.5 ACTIVATION OF THE PORTABLE RECORDER**

This policy is not intended to describe every possible situation in which the portable recorder should be used, although there are many situations where its use is appropriate. Members should activate the recorder any time the member believes it would be appropriate or valuable to record an incident.

The portable recorder shall be activated in any of the following situations (Utah Code 77-7a-103; Utah Code 77-7a-104):

- (a) All enforcement and investigative contacts including stops and field interview situations
- (b) Traffic stops including, but not limited to, traffic violations, stranded motorist assistance and all crime interdiction stops
- (c) Self-initiated activity in which a member would normally notify
- (d) Any other contact that becomes adversarial after the initial contact in a situation that would not otherwise require recording
- (e) Any use of force
- (f) Dispatched calls for service
- (g) Execution of a warrant

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When a portable recorder has been activated, the officer may not deactivate or mute the portable recorder until the officer's direct participation in the law enforcement encounter is complete, except as provided below in section 421.5.1 (Utah Code 77-7a-104(9))

At no time is a member expected to jeopardize his/her safety in order to activate a portable recorder or change the recording media (Utah Code 77-7a-102). However, the recorder should be activated in situations described above as soon as reasonably possible (Utah Code 77-7a-104).

The Department recognizes that both uniformed and non-uniformed members may unexpectedly find themselves without a portable recorder in circumstances that would normally require activation of a portable recorder. If this occurs, the officer shall explain in his or her incident report why a portable recorder was not available at the time of the incident.

#### 421.5.1 CESSATION OF RECORDING

Once activated, the portable recorder should remain on continuously until the member reasonably believes his/her direct participation in the incident is complete or the situation no longer fits the criteria for activation. Recording may be stopped (Utah Code 77-7a-104):

- (a) To consult with a supervisor or another officer.
- (b) During significant periods of inactivity.
- (c) When speaking with a victim, witness, or person wishing to report or discuss criminal activity if both of the following apply:
  - 1. The subject of the recording requests deactivation.
  - 2. The member believes the value of the information outweighs the value of the potential recording.
- (d) During a conversation with a victim of a sexual offense or domestic violence if:
  - 1. The member is conducting an evidence-based lethality assessment.
  - 2. The victim or the member believes that deactivating the body-worn camera recording will either:
    - (a) Encourage complete and accurate information sharing by the victim, or
    - (b) Is necessary to protect the safety or identity of the victim.
  - 3. The body-worn camera is reactivated as soon as reasonably possible after the evidence-based lethality assessment is complete.

The member should record the request to deactivate the portable recorder. A member should document any instance where he/she should have activated his/her body-worn camera but failed to do so, and the reason for the failure (Utah Code 77-7a-104).

#### 421.5.2 RECORDING IN PRIVATE RESIDENCES

When an officer with a body-worn camera enters a private residence, the officer shall give notice, when reasonable under the circumstances, to the occupants of the residence that a body-worn

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camera is in use either by: a) wearing a body-worn camera in a clearly visible manner, or b) giving an audible notice that the officer is using a body-worn camera.

#### **421.5.3 SURREPTITIOUS USE OF THE PORTABLE RECORDER**

Utah law permits an individual to surreptitiously record any conversation in which one party to the conversation has given his/her permission (Utah Code 77-23a-4).

Members of the Department may surreptitiously record any conversation during the course of a criminal investigation in which the member reasonably believes that such a recording will be lawful and beneficial to the investigation.

Members shall not surreptitiously record another department member without a court order unless lawfully authorized by the Chief of Police or the authorized designee.

#### **421.5.4 EXPLOSIVE DEVICE**

Many portable recorders, including body-worn cameras and audio/video transmitters, emit radio waves that could trigger an explosive device. Therefore, these devices should not be used where an explosive device may be present.

#### **421.6 PROHIBITED USE OF PORTABLE RECORDERS**

Members are prohibited from using department-issued portable recorders and recording media for personal use and are prohibited from making personal copies of recordings created while on-duty or while acting in their official capacity. Members may not alter or delete a recording captured on a portable recorder (Utah Code 77-7a-106).

Members are also prohibited from retaining recordings of activities or information obtained while on-duty whether the recording was created with a department-issued or personally owned recorder. Members shall not duplicate or distribute such recordings, except for authorized legitimate department business purposes. All such recordings shall be retained at the Department (Utah Code 77-7a-106).

Members are prohibited from using personally owned recording devices while on-duty without the express consent of the Shift Supervisor. Any member who uses a personally owned recorder for department-related activities shall comply with the provisions of this policy, including retention and release requirements, and should notify the on-duty supervisor of such use as soon as reasonably practicable.

Recordings shall not be used by any member for the purpose of embarrassment, harassment or ridicule.

#### **421.7 MEMBERS ASSIGNED TO A NARCOTICS UNIT OR ENGAGED IN AN UNDERCOVER OPERATION**

This policy shall apply to members assigned to a narcotics unit or engaged in an undercover operation, with the following exceptions:

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### *Portable Audio/Video Recorders*

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- such members are not required to use their portable recorder to record law enforcement activity if the presence of a portable recorder would compromise an investigation or the safety of any individual; and
- such members are not required to use their portable recorder to record communications with a confidential informant, unless the officer is physically alone with the confidential informant, in which case the communication should be recorded with their portable recorder.

#### **421.8 IDENTIFICATION AND PRESERVATION OF RECORDINGS**

Members should download video from their body-worn cameras at the end of every shift whenever practicable.

To assist with identifying and preserving data and recordings members should tag or mark these in accordance with procedure and document the existence of the recording in any related case report.

Department members shall label each of their own body-worn camera video recordings with a case number, citation number, or, if no case or citation number applies, an identifying title. Members shall classify recordings so that they are retained as evidence when the member reasonably believes that the recording contains evidence relevant to potential criminal, civil or administrative matters. Members also should tag or mark recordings when the member reasonably believes:

- (a) A complainant, victim or witness has requested non-disclosure.
- (b) A complainant, victim or witness has not requested non-disclosure but the disclosure of the recording may endanger the person.
- (c) Disclosure may be an unreasonable violation of someone's privacy.
- (d) Medical or mental health information is contained.
- (e) Disclosure may compromise an under-cover officer or confidential informant.
- (f) Recorded content contains sound or images from a residence (Utah Code 63G-2-302).
- (g) Recorded content contains sound or images from a hospital, health care facility, human service program or the clinic of a health care provider (Utah Code 63G-2-305).

Any time a member reasonably believes a recorded contact may be beneficial in a non-criminal matter (e.g., a hostile contact), the member shall classify the recording so that it is retained as evidence and promptly notify a supervisor of the existence of the recording.

##### **421.8.1 RETENTION REQUIREMENTS**

Video generated by body-worn cameras shall be downloaded and stored in such a manner that chain of custody of the video is properly maintained at all times. Proper protocol for video downloading and storage, as established by the body-worn camera coordinator, shall be followed by all Department members.

All recordings made by portable recorders shall be retained for a period of at least 90 days unless otherwise specified by applicable federal, state and local law (Utah Code 77-7a-107).

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#### 421.8.2 RELEASE OF AUDIO/VIDEO RECORDINGS

Requests for the release of audio/video recordings shall be processed in accordance with the Records Maintenance and Release Policy.

#### 421.9 REVIEW OF RECORDED MEDIA FILES

When preparing written reports, members should review their recordings as a resource (see the Officer-Involved Shootings and Deaths Policy for guidance in those cases). However, members shall not retain personal copies of recordings. Members should not use the fact that a recording was made as a reason to write a less detailed report.

Supervisors are authorized to review relevant recordings any time they are investigating alleged misconduct or reports of meritorious conduct or whenever such recordings would be beneficial in reviewing the member's performance.

Recorded files may also be reviewed:

- (a) Upon approval by a supervisor, by any member of the Department who is participating in an official investigation, such as a personnel complaint, administrative investigation or criminal investigation.
- (b) Pursuant to lawful process or by court personnel who are otherwise authorized to review evidence in a related case.
- (c) By media personnel with permission of the Chief of Police or the authorized designee.
- (d) In compliance with a public records request, if permitted, and in accordance with the Records Maintenance and Release Policy.

All recordings should be reviewed by the Custodian of Records prior to public release (see the Records Maintenance and Release Policy). Recordings that unreasonably violate a person's privacy or sense of dignity should not be publicly released unless disclosure is required by law or order of the court.

#### 421.10 COORDINATOR

The Chief of Police or the authorized designee should designate a coordinator responsible for establishing procedures for (Utah Code 77-7a-102):

- (a) The security, storage and maintenance of data and recordings.
- (b) Accessing data and recordings.
- (c) Logging or auditing access.
- (d) Transferring, downloading, tagging or marking events.

The coordinator should review the Department's body-worn camera program and policies as needed (at least annually), update the program as needed, and request policy changes as appropriate.



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### *Portable Audio/Video Recorders*

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#### **421.11 TRAINING**

Prior to receiving authorization to use a body-worn camera, Department members shall receive training on the use of the camera.

#### **421.12 PUBLIC ACCESS**

Command Staff should ensure that this policy is available to the public in written format as well as published to the department website (Utah Code 77-7a-105).

## Bicycle Patrol Unit

### 422.1 PURPOSE AND SCOPE

The American Fork Police Department has established the Bicycle Patrol Unit (BPU) for the purpose of enhancing patrol efforts in the community. Bicycle patrol has been shown to be an effective way to increase officer visibility in congested areas. The quiet operation of the bicycles also can provide a tactical approach to crimes in progress. The purpose of this policy is to provide guidelines for the safe and effective operation of the patrol bicycle.

### 422.2 POLICY

Patrol bicycles may be used for regular patrol duty, traffic enforcement, parking control or special events. The use of the patrol bicycle will emphasize officers mobility and visibility to the community.

Bicycles may be deployed to any area at all hours of the day or night, according to department needs and as staffing levels allow.

Requests for specific deployment of bicycle patrol officers shall be coordinated through the Bicycle Patrol Unit supervisor or the Shift Supervisor.

### 422.3 SELECTION OF PERSONNEL

Officers who are in good standing with the department and have successfully completed the POST sponsored Patrol Bicycle Course are eligible to participate, with supervisor approval, in police bicycle activities. Interested personnel shall be evaluated by the following criteria:

- (a) Recognized competence and ability as evidenced by performance.
- (b) Special skills or training as it pertains to the assignment.
- (c) Good physical condition.
- (d) Willingness to perform duties using the bicycle as a mode of transportation.

#### 422.3.1 BICYCLE PATROL UNIT SUPERVISOR

The Bicycle Patrol Unit supervisor will be selected from the rank of sergeant by the Patrol Division Commander or designee.

The Bicycle Patrol Unit supervisor shall have responsibility for the following:

- (a) Organizing bicycle patrol training.
- (b) Inspecting and maintaining inventory of patrol bicycles and program equipment.
- (c) Scheduling maintenance and repairs.
- (d) Evaluating performance of bicycle officers.
- (e) Coordinating activities with the Patrol Division.
- (f) Other activities as required to maintain the efficient operation of the Bicycle Patrol Unit.

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### *Bicycle Patrol Unit*

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#### **422.4 TRAINING**

Participants in the program must successfully complete the Utah POST 32-hour basic training course or a department-approved bicycle-training course. Thereafter bicycle patrol officers should receive in-service training to improve skills and refresh safety, health and operational procedures. The initial training shall minimally include the following:

- Bicycle patrol strategies
- Bicycle safety and accident prevention
- Operational tactics using bicycles

#### **422.5 UNIFORMS AND EQUIPMENT**

Officers shall wear the department-approved uniform and safety equipment while operating the department bicycle. Safety equipment includes department-approved helmet, riding gloves, protective eyewear and approved footwear.

The bicycle patrol unit uniform consists of the standard short-sleeve uniform shirt or other department-approved shirt with department badge and patches and department-approved bicycle patrol pants or shorts.

Optional equipment includes a radio head set and microphone. In colder weather a jacket may be worn. Turtleneck shirts or sweaters are permitted when worn under the uniform shirt.

Bicycle patrol officers shall carry the same equipment on the bicycle patrol duty belt as they would on a regular patrol assignment.

Officers will be responsible for obtaining the necessary forms, citation books and other department equipment needed while on bicycle patrol.

#### **422.6 CARE AND USE OF PATROL BICYCLES**

- (a) Officers may be assigned a specially marked and equipped patrol bicycle.
- (b) Bicycles utilized for uniformed bicycle patrol should be primarily black or white with a Police decal affixed to each side of the crossbar or the bike's saddlebag. Every such bicycle shall be equipped with a front-facing reflector, a rear-facing red reflector, and front lights satisfying the requirements of Utah Code 41-6a-1114.
- (c) Officers may use a department-supplied bicycle or use their personal bicycle with approval of a supervisor.
- (d) Bicycle officers shall conduct an inspection of the bicycle and equipment prior to use to ensure proper working order of the equipment. Officers are responsible for the routine care and maintenance of their assigned equipment (e.g., tire pressure, chain lubrication, overall cleaning).
- (e) At the end of a bicycle assignment, the bicycle shall be returned clean and ready for the next tour of duty.

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### *Bicycle Patrol Unit*

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- (f) Bicycles shall be properly secured when not in the officer's immediate possession.

#### **422.7 OFFICER RESPONSIBILITY**

Officers must operate the bicycle in compliance with the Utah Code under normal operation. Officers may operate the bicycle without lighting equipment during hours of darkness when such operation reasonably appears necessary for officer safety and tactical considerations. Officers must use caution and care when operating the bicycle without lighting equipment.

Officers are exempt from the rules of the road under the following conditions:

- (a) In response to an emergency call.
- (b) While engaged in rescue operations.
- (c) In the immediate pursuit of an actual or suspected violator of the law.

## Foot Pursuit

### 423.1 PURPOSE AND SCOPE

This policy provides guidelines to assist officers in making the decision to initiate or continue the pursuit of suspects on foot.

### 423.2 POLICY

It is the policy of the department that officers, when deciding to initiate or continue a foot pursuit, must continuously balance the objective of apprehending the suspect with the risk and potential for injury to department members, the public or the suspect.

Officers are expected to act reasonably, based on the totality of the circumstances.

### 423.3 DECISION TO PURSUE

The safety of department members and the public should be the primary consideration when determining whether a foot pursuit should be initiated or continued. Officers must be mindful that immediate apprehension of a suspect is rarely more important than the safety of the public and department members.

Officers may be justified in initiating a foot pursuit of any individual that the officer reasonably believes is about to engage in, is engaging in or has engaged in criminal activity. The decision to initiate or continue such a foot pursuit, however, must be continuously re-evaluated in light of the circumstances presented at the time.

Mere flight by a person who is not suspected of criminal activity alone shall not serve as justification for engaging in an extended foot pursuit without the development of reasonable suspicion of the individual's involvement in criminal activity or being wanted by law enforcement.

Deciding to initiate or continue a foot pursuit is a decision that an officer must make quickly and under unpredictable and dynamic circumstances. It is recognized that foot pursuits may place department members and the public at significant risk. Therefore, no officer or supervisor shall be criticized or disciplined for deciding not to engage in a foot pursuit because of the perceived risk involved.

If circumstances permit, surveillance and containment are generally the safest tactics for apprehending fleeing persons. In deciding whether to initiate or continue a foot pursuit, an officer should continuously consider reasonable alternatives to pursuit based upon the circumstances and resources available, such as:

- (a) Containment of the area.
- (b) Saturation of the area with law enforcement personnel, including assistance from other agencies.
- (c) A canine search.
- (d) Thermal imaging or other sensing technology.

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### *Foot Pursuit*

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- (e) Air support.
- (f) Apprehension at another time when the identity of the suspect is known or there is information available that would likely allow for later apprehension, and the need to immediately apprehend the suspect does not reasonably appear to outweigh the risk of continuing the foot pursuit.

#### **423.4 GENERAL GUIDELINES**

When reasonably practicable, officers should consider alternatives to engaging in or continuing a foot pursuit when:

- (a) Directed by a supervisor to terminate the foot pursuit; such an order shall be considered mandatory.
- (b) The officer is acting alone.
- (c) Two or more officers become separated, lose visual contact with one another or obstacles separate them to the degree that they cannot immediately assist each other should a confrontation take place. In such circumstances it is generally recommended that a single officer keep the suspect in sight from a safe distance and coordinate the containment effort.
- (d) The officer is unsure of his/her location and direction of travel.
- (e) The officer is pursuing multiple suspects and it is not reasonable to believe that the officer would be able to control the suspect should a confrontation occur.
- (f) The physical condition of the officer renders him/her incapable of controlling the suspect if apprehended.
- (g) The officer loses radio contact with Dispatch or with backup officers.
- (h) The suspect enters a building, structure, confined space, wooded or otherwise isolated area and there are insufficient officers to provide backup and containment. The primary officer should consider discontinuing the pursuit and coordinate containment, pending the arrival of sufficient resources.
- (i) The officer becomes aware of unanticipated or unforeseen circumstances that unreasonably increase the risk to officers or the public.
- (j) The officer reasonably believes that the danger to the pursuing officers or public outweighs the objective of immediate apprehension.
- (k) The officer loses possession of his/her firearm or other essential equipment.
- (l) The officer or a third party is injured during the pursuit, requiring immediate assistance and there are no other emergency personnel able to render assistance.
- (m) The suspect's location is no longer known.

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### *Foot Pursuit*

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- (n) The identity of the suspect is established or other information exists that will allow for the suspect's apprehension at a later time and it reasonably appears that there is no immediate threat to department personnel or the public if the suspect is not immediately apprehended.
- (o) The officer's ability to safely continue the pursuit is impaired by inclement weather, darkness, or other conditions.

#### **423.5 RESPONSIBILITIES IN FOOT PURSUITS**

##### **423.5.1 INITIATING OFFICER RESPONSIBILITIES**

Unless relieved by another officer or a supervisor, the initiating officer shall be responsible for coordinating the progress the pursuit. When acting alone and when practicable the initiating officer should not attempt to overtake and confront the suspect but should attempt to keep the suspect in sight until sufficient officers are present to safely apprehend the suspect.

Early communication of available information from the involved officers is essential so that adequate resources can be coordinated and deployed to bring a foot pursuit to a safe conclusion. Officers initiating a foot pursuit should broadcast the following information as soon as it becomes practicable and available:

- (a) Location and direction of travel
- (b) Call sign identifier
- (c) Reason for the foot pursuit, such as the crime classification
- (d) Number of suspects and description, to include name if known
- (e) Whether the suspect is known or believed to be armed with a dangerous weapon

Officers should be mindful that radio transmissions made while running may be difficult to understand and may need to be repeated.

Absent extenuating circumstances any officer unable to promptly and effectively broadcast this information should terminate the pursuit. If the foot pursuit is discontinued for any reason, immediate efforts for containment should be established and alternatives considered based upon the circumstances and available resources.

When a foot pursuit terminates, the officer will notify communications with his/her location, the status of the pursuit termination (e.g., suspect in custody, lost sight of suspect) and direct further actions as reasonably appear necessary, to include requesting medical aid as needed for officers, suspects or members of the public.

##### **423.5.2 ASSISTING OFFICER RESPONSIBILITIES**

Whenever any officer announces that he/she is engaged in a foot pursuit all other officers should minimize non-essential radio traffic in order to permit the involved officers maximum access to the radio frequency.

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#### **423.5.3 SUPERVISOR RESPONSIBILITIES**

Upon becoming aware of a foot pursuit, the supervisor shall make every reasonable effort to ascertain sufficient information necessary to direct responding resources and to take command, control and coordination of the foot pursuit. The supervisor should respond to the area whenever possible; the supervisor does not, however, need to be physically present to exercise control over the pursuit. The supervisor shall continuously assess the situation in order to ensure the foot pursuit is conducted within established department guidelines.

The supervisor shall terminate the foot pursuit at any time he/she concludes that the danger to pursuing officers or the public outweighs the objective of immediate apprehension of the suspect.

Upon the apprehension of the suspect the supervisor shall promptly proceed to the termination point to direct the post-pursuit activity.

#### **423.6 REPORTING REQUIREMENTS**

The initiating officer shall complete appropriate crime/arrest reports documenting, at minimum:

- (a) Date and time of the foot pursuit.
- (b) Initial reason and circumstances surrounding the foot pursuit.
- (c) Course and approximate distance of the foot pursuit.
- (d) Alleged offenses.
- (e) Involved vehicles and officers.
- (f) Whether a suspect was apprehended as well as the means and methods used.
  - 1. Any use of force shall be reported and documented in compliance with the Use of Force Policy.
- (g) Arrestee information, if applicable.
- (h) Any injuries and/or medical treatment.
- (i) Any property or equipment damage.
- (j) Name of the supervisor at the scene or who handled the incident.

Assisting officers taking an active role in the apprehension of the suspect shall complete supplemental reports as necessary or as directed.

The supervisor reviewing the report will make a preliminary determination that the pursuit appears to be in compliance with this policy or that additional review and/or follow-up is warranted.

In any case in which a suspect is not apprehended and there is insufficient information to warrant further investigation, a supervisor may authorize that the initiating officer need not complete a formal report.



## Homeless Persons

### **424.1 PURPOSE AND SCOPE**

The purpose of this policy is to ensure that personnel understand the needs and rights of the homeless and to establish procedures to guide officers during all contacts with the homeless, whether consensual or for enforcement purposes. The American Fork Police Department recognizes that members of the homeless community are often in need of special protection and services. The American Fork Police Department will address these needs in balance with the overall missions of this department. Therefore, officers will consider the following when serving the homeless community.

#### **424.1.1 POLICY**

It is the policy of the American Fork Police Department to provide law enforcement services to all members of the community while protecting the rights, dignity and private property of the homeless. Homelessness is not a crime and members of this department will not use homelessness solely as a basis for detention or law enforcement action.

### **424.2 HOMELESS COMMUNITY LIAISON**

The Chief of Police will designate a member of this department to act as the Homeless Liaison Officer. The responsibilities of the Homeless Liaison Officer include the following:

- (a) Maintain and make available to all department employees a list of assistance programs and other resources that are available to the homeless.
- (b) Meet with Social Services and representatives of other organizations that render assistance to the homeless.
- (c) Maintain a list of those areas within and near this jurisdiction that are used as frequent homeless encampments.
- (d) Remain abreast of laws dealing with the removal and/or destruction of the personal property of the homeless. This will include the following:
  - 1. Proper posting of notices of trespass and clean-up operations.
  - 2. Proper retention of property after clean-up, to include procedures for owners to reclaim their property in accordance with the Property and Evidence Policy and other established procedures.
- (e) Be present during any clean-up operation conducted by this department involving the removal of personal property of the homeless to ensure the rights of the homeless are not violated.
- (f) Develop training to assist officers in understanding current legal and social issues relating to the homeless.

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### *Homeless Persons*

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#### **424.3 FIELD CONTACTS**

Officers are encouraged to contact the homeless for purposes of rendering aid, support and for community-oriented policing purposes. Nothing in this policy is meant to dissuade an officer from taking reasonable enforcement action when facts support a reasonable suspicion of criminal activity. However, when encountering a homeless person who has committed a non-violent misdemeanor and continued freedom is not likely to result in a continuation of the offense or a breach of the peace officers are encouraged to consider long-term solutions to problems that may relate to the homeless, such as shelter referrals and counseling in lieu of physical arrest.

Officers should provide homeless persons with resource and assistance information whenever it is reasonably apparent such services may be appropriate.

##### **424.3.1 OTHER CONSIDERATIONS**

Homeless members of the community will receive the same level and quality of service provided to other members of the community. The fact that a victim or witness is homeless can, however, require special considerations for a successful investigation and prosecution. Officers should consider the following when handling investigations involving homeless victims, witnesses or suspects:

- (a) Document alternate contact information. This may include obtaining addresses and phone numbers of relatives and friends.
- (b) Document places the homeless person may frequent.
- (c) Provide homeless victims with victim/witness resources when appropriate.
- (d) Obtain statements from all available witnesses in the event a homeless victim is unavailable for a court appearance.
- (e) Consider whether the person may be a dependent adult or elder and if so proceed in accordance with the Adult Abuse Policy.
- (f) Arrange for transportation for investigation related matters, such as medical exams and court appearances.
- (g) Consider whether a crime should be reported and submitted for prosecution even when a homeless victim indicates he/she does not desire prosecution.

#### **424.4 PERSONAL PROPERTY**

The personal property of homeless persons must not be treated differently than the property of other members of the public. Officers should use reasonable care when handling, collecting and retaining the personal property of homeless persons and should not destroy or discard the personal property of a homeless person.

When a homeless person is arrested, or otherwise removed from a public place, officers should make reasonable accommodations to permit the person to lawfully secure his/her personal property. Otherwise, the personal property should be collected for safekeeping. If the arrestee has more personal property than can reasonably be collected and transported by the officer, a

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supervisor should be consulted. The property should be photographed and measures should be taken to remove or secure the property. It will be the supervisor's responsibility to coordinate the removal and safekeeping of the property.

Officers should not conduct or assist in clean-up operations of belongings that reasonably appear to be the property of homeless persons without the prior authorization of a supervisor or the department Homeless Liaison Officer. When practicable, requests by the public for clean-up operations of a homeless encampment should be referred to the Homeless Liaison Officer.

Officers who encounter unattended encampments, bedding or other personal property in public areas that reasonably appears to belong to a homeless person should not remove or destroy such property and should inform the department Homeless Liaison Officer if such property appears to involve a trespass, blight to the community or is the subject of a complaint. It will be the responsibility of the Homeless Liaison Officer to address the matter in a timely fashion.

#### **424.5 MENTAL ILLNESSES AND MENTAL IMPAIRMENTS**

Some homeless persons may suffer from a mental illness or a mental impairment. Officers shall not detain a homeless person under a mental illness commitment unless facts and circumstances warrant such a detention (see the Civil Commitments Policy).

When a mental illness hold is not warranted, the contacting officer should provide the homeless person with contact information for mental health assistance as appropriate. In these circumstances, officers may provide transportation to a mental health specialist if requested by the person and approved by a supervisor.

#### **424.6 ECOLOGICAL ISSUES**

Sometimes homeless encampments can impact the ecology and natural resources of the community and may involve criminal offenses beyond mere littering. Officers are encouraged to notify other appropriate agencies or departments when a significant impact to the environment has or is likely to occur. Significant impacts to the environment may warrant a crime report, investigation, supporting photographs and supervisor notification.

## Public Recording of Law Enforcement Activity

### 425.1 PURPOSE AND SCOPE

This policy provides guidelines for handling situations in which members of the public photograph or audio/video record law enforcement actions and other public activities that involve members of this department. In addition, this policy provides guidelines for situations where the recordings may be evidence.

### 425.2 POLICY

The American Fork Police Department recognizes the right of persons to lawfully record members of this department who are performing their official duties. Members of this department will not prohibit or intentionally interfere with such lawful recordings. Any recordings that are deemed to be evidence of a crime or relevant to an investigation will only be collected or seized lawfully.

Officers should exercise restraint and should not resort to highly discretionary arrests for offenses such as interference, failure to comply or disorderly conduct as a means of preventing someone from exercising the right to record members performing their official duties.

### 425.3 RECORDING LAW ENFORCEMENT ACTIVITY

Members of the public who wish to record law enforcement activities are limited only in certain aspects.

- (a) Recordings may be made from any public place or any private property where the individual has the legal right to be present.
- (b) Beyond the act of photographing or recording, individuals may not interfere with the law enforcement activity. Examples of interference include, but are not limited to:
  - 1. Tampering with a witness or suspect.
  - 2. Inciting others to violate the law.
  - 3. Being so close to the activity as to present a clear safety hazard to the officers.
  - 4. Being so close to the activity as to interfere with an officer's effective communication with a suspect or witness.
- (c) The individual may not present an undue safety risk to the officer, him/herself or others.
- (d) Recording the actions of an officer does not by itself constitute a crime of interference, willful resistance, disorderly conduct or obstruction of justice (Utah Code 76-8-305).

### 425.4 OFFICER RESPONSE

Officers should promptly request that a supervisor respond to the scene whenever it appears that anyone recording activities may be interfering with an investigation or it is believed that the recording may be evidence. If practicable, officers should wait for the supervisor to arrive before taking enforcement action or seizing any cameras or recording media.

Whenever practicable, officers or supervisors should give clear and concise warnings to individuals who are conducting themselves in a manner that would cause their recording or

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behavior to be unlawful. Accompanying the warnings should be clear directions on what an individual can do to be compliant; directions should be specific enough to allow compliance. For example, rather than directing an individual to clear the area, an officer could advise the person that he/she may continue observing and recording from the sidewalk across the street.

If an arrest or other significant enforcement activity is taken as the result of a recording that interferes with law enforcement activity, officers shall document in a report the nature and extent of the interference or other unlawful behavior and the warnings that were issued.

#### **425.5 SUPERVISOR RESPONSIBILITIES**

A supervisor should respond to the scene when requested or any time the circumstances indicate a likelihood of interference or other unlawful behavior.

The supervisor should review the situation with the officer and:

- (a) Request any additional assistance as needed to ensure a safe environment.
- (b) Take a lead role in communicating with individuals who are observing or recording regarding any appropriate limitations on their location or behavior. When practical, the encounter should be recorded.
- (c) When practicable, allow adequate time for individuals to respond to requests for a change of location or behavior.
- (d) Ensure that any enforcement, seizure or other actions are consistent with this policy and constitutional and state law.
- (e) Explain alternatives for individuals who wish to express concern about the conduct of department members, such as how and where to file a complaint.

#### **425.6 SEIZING RECORDINGS AS EVIDENCE**

Officers should not seize recording devices or media unless (42 USC § 2000aa):

- (a) There is probable cause to believe the person recording has committed or is committing a crime to which the recording relates, and the recording is reasonably necessary for prosecution of the person.
  - 1. Absent exigency or consent, a warrant should be sought before seizing or viewing such recordings. Reasonable steps may be taken to prevent erasure of the recording.
- (b) There is reason to believe that the immediate seizure of such recordings is necessary to prevent serious bodily injury or death of any person.
- (c) The person consents.
  - 1. To ensure that the consent is voluntary, the request should not be made in a threatening or coercive manner.
  - 2. If the original recording is provided, a copy of the recording should be provided to the recording party, if practicable. The recording party should be permitted to be present while the copy is being made, if feasible. Another way to obtain the

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evidence is to transmit a copy of the recording from a device to a department-owned device.

Recording devices and media that are seized will be submitted within the guidelines of the Property and Evidence Policy.

# Suspicious Activity Reporting

## 426.1 PURPOSE AND SCOPE

This policy provides guidelines for reporting and investigating suspicious and criminal activity.

### 426.1.1 DEFINITIONS

Definitions related to this policy include:

**Involved party** - An individual who has been observed engaging in suspicious activity, as defined in this policy, when no definitive criminal activity can be identified, thus precluding the person's identification as a suspect.

**Suspicious activity** - Any reported or observed activity that a member reasonably believes may have a nexus to any criminal act or attempted criminal act, or to foreign or domestic terrorism. Actual or perceived characteristics such as race, ethnicity, national origin, religion, sex, sexual orientation, gender identity or expression, economic status, age, cultural group, or disability should not be considered as factors that create suspicion (although these factors may be used as specific suspect descriptions). Examples of suspicious activity may include but are not limited to:

- Suspected pre-operational surveillance or intelligence gathering (e.g., photographing security features, asking questions about sensitive security-related subjects).
- Tests of security measures and response to incidents (e.g., "dry run," creating false alarms, attempts to enter secure areas without authorization).
- Suspicious purchases (e.g., purchasing large quantities of otherwise legal items, such as fertilizer, that could be used to create an explosive or other dangerous device).
- An individual in possession of such things as a hoax explosive or dispersal device, sensitive materials (e.g., passwords, access codes, classified government information), or coded or ciphered literature or correspondence.

**Suspicious Activity Report (SAR)** - An incident report used to document suspicious activity.

## 426.2 POLICY

The American Fork Police Department recognizes the need to protect the public from criminal conduct and acts of terrorism and shall lawfully collect, maintain and disseminate information regarding suspicious activities, while safeguarding civil liberties and privacy protections.

## 426.3 RESPONSIBILITIES

The Investigation Division Commander and authorized designees will manage SAR activities. Authorized designees should include supervisors who are responsible for department participation in criminal intelligence systems as outlined in the Criminal Organizations Policy.

The responsibilities of the Investigation Division Commander include, but are not limited to:

- (a) Remaining familiar with those databases available to the Department that would facilitate the purpose of this policy.

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- (b) Maintaining adequate training in the area of intelligence gathering to ensure no information is being maintained that would violate the law or civil rights of any individual.
- (c) Ensuring a process is available that would allow members to report relevant information. The process should be designed to promote efficient and quick reporting, and should not be cumbersome, duplicative or complicated.
- (d) Ensuring that members are made aware of the purpose and value of documenting information regarding suspicious activity, as well as the databases and other information resources that are available to the Department.
- (e) Ensuring that SAR information is appropriately disseminated to members in accordance with their job responsibilities.
- (f) Coordinating investigative follow-up, if appropriate.
- (g) Coordinating with any appropriate agency or fusion center.
- (h) Ensuring that, as resources are available, the Department conducts outreach that is designed to encourage members of the community to report suspicious activity and that outlines what they should look for and how they should report it (e.g., website, public service announcements).

#### **426.4 REPORTING AND INVESTIGATION**

Any department member receiving information regarding suspicious activity should take any necessary immediate and appropriate action, including a request for tactical response or immediate notification of specialized entities, when applicable. Any non-sworn member who receives such information should ensure that it is passed on to an officer in a timely manner.

If the suspicious activity is not directly related to a reportable crime, the member should prepare a SAR and include information about involved parties and the circumstances of the incident. If, during any investigation, an officer becomes aware of suspicious activity that is unrelated to the current investigation, the information should be documented separately in a SAR and not included in the original incident report. The report number of the original incident should be included in the SAR as a cross reference. A SAR should be processed as any other incident report.

#### **426.5 HANDLING INFORMATION**

The Records Section will forward copies of SARs, in a timely manner, to the following:

- Investigation Unit supervisor
- Crime Analysis Unit
- Other authorized designees



# First Amendment Assemblies

## 427.1 PURPOSE AND SCOPE

This policy provides guidance for responding to public assemblies or demonstrations.

## 427.2 POLICY

The American Fork Police Department respects the rights of people to peaceably assemble. It is the policy of this department not to unreasonably interfere with, harass, intimidate or discriminate against persons engaged in the lawful exercise of their rights, while also preserving the peace, protecting life and preventing the destruction of property.

## 427.3 GENERAL CONSIDERATIONS

Individuals or groups present on the public way, such as public facilities, streets or walkways, generally have the right to assemble, rally, demonstrate, protest or otherwise express their views and opinions through varying forms of communication, including the distribution of printed matter. These rights may be limited by laws or ordinances regulating such matters as the obstruction of individual or vehicle access or egress, trespass, noise, picketing, distribution of handbills and leafleting, and loitering. However, officers shall not take action or fail to take action based on the opinions being expressed.

Participant behavior during a demonstration or other public assembly can vary. This may include, but is not limited to:

- Lawful, constitutionally protected actions and speech.
- Civil disobedience (typically involving minor criminal acts).
- Rioting.

All of these behaviors may be present during the same event. Therefore, it is imperative that law enforcement actions are measured and appropriate for the behaviors officers may encounter. This is particularly critical if force is being used. Adaptable strategies and tactics are essential. The purpose of a law enforcement presence at the scene of public assemblies and demonstrations should be to preserve the peace, to protect life and prevent the destruction of property.

Officers should not:

- (a) Engage in assembly or demonstration-related discussion with participants.
- (b) Harass, confront or intimidate participants.
- (c) Seize the cameras, cell phones or materials of participants or observers unless an officer is placing a person under lawful arrest.

Supervisors should continually observe department members under their commands to ensure that members' interaction with participants and their response to crowd dynamics is appropriate.

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#### 427.3.1 PHOTOGRAPHS AND VIDEO RECORDINGS

Photographs and video recording, when appropriate, can serve a number of purposes, including support of criminal prosecutions by documenting criminal acts; assistance in evaluating department performance; serving as training material; recording the use of dispersal orders; and facilitating a response to allegations of improper law enforcement conduct.

Photographs and videos will not be used or retained for the sole purpose of collecting or maintaining information about the political, religious or social views of associations, or the activities of any individual, group, association, organization, corporation, business or partnership, unless such information directly relates to an investigation of criminal activities and there is reasonable suspicion that the subject of the information is involved in criminal conduct.

#### 427.4 UNPLANNED EVENTS

When responding to an unplanned or spontaneous public gathering, the first responding officer should conduct an assessment of conditions, including, but not limited to, the following:

- Location
- Number of participants
- Apparent purpose of the event
- Leadership (whether it is apparent and/or whether it is effective)
- Any initial indicators of unlawful or disruptive activity
- Indicators that lawful use of public facilities, streets or walkways will be impacted
- Ability and/or need to continue monitoring the incident

Initial assessment information should be promptly communicated to Dispatch, and the assignment of a supervisor should be requested. Additional resources should be requested as appropriate. The responding supervisor shall assume command of the incident until command is expressly assumed by another, and the assumption of command is communicated to the involved members. A clearly defined command structure that is consistent with the Incident Command System (ICS) should be established as resources are deployed.

#### 427.5 PLANNED EVENT PREPARATION

For planned events, comprehensive, incident-specific operational plans should be developed. The ICS may be considered for such events.

#### 427.5.1 INFORMATION GATHERING AND ASSESSMENT

In order to properly assess the potential impact of a public assembly or demonstration on public safety and order, relevant information should be collected and vetted. This may include:

- Information obtained from outreach to group organizers or leaders.
- Information about past and potential unlawful conduct associated with the event or similar events.

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- The potential time, duration, scope, and type of planned activities.
- Any other information related to the goal of providing a balanced response to criminal activity and the protection of public safety interests.

Information should be obtained in a transparent manner, and the sources documented. Relevant information should be communicated to the appropriate parties in a timely manner.

Information will be obtained in a lawful manner and will not be based solely on the purpose or content of the assembly or demonstration, or actual or perceived characteristics such as race, ethnicity, national origin, religion, sex, sexual orientation, gender identity or expression, economic status, age, cultural group, or disability of the participants (or any other characteristic that is unrelated to criminal conduct or the identification of a criminal subject).

#### 427.5.2 OPERATIONAL PLANS

An operational planning team with responsibility for event planning and management should be established. The planning team should develop an operational plan for the event.

The operational plan will minimally provide for:

- (a) Command assignments, chain of command structure, roles and responsibilities.
- (b) Staffing and resource allocation.
- (c) Management of criminal investigations.
- (d) Designation of uniform of the day and related safety equipment (e.g., helmets, shields).
- (e) Deployment of specialized resources.
- (f) Event communications and interoperability in a multijurisdictional event.
- (g) Liaison with demonstration leaders and external agencies.
- (h) Liaison with City government and legal staff.
- (i) Media relations.
- (j) Logistics: food, fuel, replacement equipment, duty hours, relief and transportation.
- (k) Traffic management plans.
- (l) First aid and emergency medical service provider availability.
- (m) Prisoner transport and detention.
- (n) Review of policies regarding public assemblies and use of force in crowd control.
- (o) Parameters for declaring an unlawful assembly.
- (p) Arrest protocol, including management of mass arrests.
- (q) Protocol for recording information flow and decisions.
- (r) Rules of engagement, including rules of conduct, protocols for field force extraction and arrests, and any authorization required for the use of force.
- (s) Protocol for handling complaints during the event.

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- (t) Parameters for the use of body-worn cameras and other portable recording devices.

#### 427.5.3 MUTUAL AID AND EXTERNAL RESOURCES

The magnitude and anticipated duration of an event may necessitate interagency cooperation and coordination. The assigned Incident Commander should ensure that any required memorandums of understanding or other agreements are properly executed, and that any anticipated mutual aid is requested and facilitated (see the Outside Agency Assistance Policy).

#### 427.6 UNLAWFUL ASSEMBLY DISPERSAL ORDERS

If a public gathering or demonstration remains peaceful and nonviolent, and there is no reasonably imminent threat to persons or property, the Incident Commander should generally authorize continued monitoring of the event.

Should the Incident Commander make a determination that public safety is presently or is about to be jeopardized, the Incident Commander or the authorized designee should attempt to verbally persuade event organizers or participants to disperse of their own accord. Warnings and advisements may be communicated through established communications links with leaders and/or participants or to the group.

When initial attempts at verbal persuasion are unsuccessful, the Incident Commander or the authorized designee should make a clear standardized announcement to the gathering that the event is an unlawful assembly, and should order the dispersal of the participants. The announcement should be communicated by whatever methods are reasonably available to ensure that the content of the message is clear and that it has been heard by the participants. The announcement should be amplified, made in different languages as appropriate, made from multiple locations in the affected area, and documented by audio and video. The announcement should provide information about what law enforcement actions will take place if illegal behavior continues and should identify routes for egress. A reasonable time to disperse should be allowed following a dispersal order.

#### 427.7 USE OF FORCE

Use of force is governed by current [department/office] policy and applicable law (see the Use of Force, Handcuffing and Restraints, Control Devices and Techniques, and Conducted Energy Device policies).

Individuals refusing to comply with lawful orders (e.g., nonviolent refusal to disperse) should be given a clear verbal warning and a reasonable opportunity to comply. If an individual refuses to comply with lawful orders, the Incident Commander shall evaluate the type of resistance and adopt a reasonable response in order to accomplish the law enforcement mission (such as dispersal or arrest of those acting in violation of the law). Control devices and conducted energy devices should be considered only when the participants' conduct reasonably appears to present the potential to harm officers, themselves or others, or will result in substantial property loss or damage (see the Control Devices and Techniques and the Conducted Energy Device policies).

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Force or control devices, including oleoresin capsaicin (OC), should be directed toward individuals and not toward groups or crowds, unless specific individuals cannot reasonably be targeted due to extreme circumstances, such as a riotous crowd.

Any use of force by a member of this [department/office] shall be documented promptly, completely, and accurately in an appropriate report. The type of report required may depend on the nature of the incident.

#### **427.8 ARRESTS**

The American Fork Police Department should respond to unlawful behavior in a manner that is consistent with the operational plan. If practicable, warnings or advisements should be communicated prior to arrest.

Mass arrests should be employed only when alternate tactics and strategies have been, or reasonably appear likely to be, unsuccessful. Mass arrests shall only be undertaken upon the order of the Incident Commander or the authorized designee. There must be probable cause for each arrest.

If employed, mass arrest protocols should fully integrate:

- (a) Reasonable measures to address the safety of officers and arrestees.
- (b) Dedicated arrest, booking and report writing teams.
- (c) Timely access to medical care.
- (d) Timely access to legal resources.
- (e) Timely processing of arrestees.
- (f) Full accountability for arrestees and evidence.
- (g) Coordination and cooperation with the prosecuting authority, jail and courts (see the Citation Releases Policy).

#### **427.9 MEDIA RELATIONS**

The Public Information Officer or Incident Command may use all available avenues of communication, including press releases, briefings, press conferences and social media to maintain open channels of communication with media representatives and the public about the status and progress of the event, taking all opportunities to reassure the public about the professional management of the event (see the Media Relations Policy).

#### **427.10 DEMOBILIZATION**

When appropriate, the Incident Commander or the authorized designee should implement a phased and orderly withdrawal of law enforcement resources. All relieved personnel should promptly complete any required reports, including use of force reports, and account for all issued equipment and vehicles to their supervisors prior to returning to normal operational duties.

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#### **427.11 POST EVENT**

The Incident Commander should designate a member to assemble full documentation of the event, to include the following:

- (a) Operational plan
- (b) Any incident logs
- (c) Any assignment logs
- (d) Vehicle, fuel, equipment and supply records
- (e) Incident, arrest, use of force, injury and property damage reports
- (f) Photographs, audio/video recordings, Dispatch records/tapes
- (g) Media accounts (print and broadcast media)

##### **427.11.1 AFTER-ACTION REPORTING**

The Incident Commander should work with City legal counsel, as appropriate, to prepare a comprehensive after-action report of the event, explaining all incidents where force was used including the following:

- (a) Date, time and description of the event
- (b) Actions taken and outcomes (e.g., injuries, property damage, arrests)
- (c) Problems identified
- (d) Significant events
- (e) Recommendations for improvement; opportunities for training should be documented in a generic manner, without identifying individuals or specific incidents, facts or circumstances.

#### **427.12 TRAINING**

Department members should receive periodic training regarding this policy, as well as the dynamics of crowd control and incident management. The department should, when practicable, train with its external and mutual aid partners.

## Civil Disputes

### 428.1 PURPOSE AND SCOPE

This policy provides members of the American Fork Police Department with guidance for addressing conflicts between persons when no criminal investigation or enforcement action is warranted (e.g., civil matters), with the goal of minimizing any potential for violence or criminal acts.

The Domestic Violence Policy will address specific legal mandates related to domestic violence court orders. References in this policy to “court orders” apply to any order of a court that does not require arrest or enforcement by the terms of the order or by Utah law.

### 428.2 POLICY

The American Fork Police Department recognizes that a law enforcement presence at a civil dispute can play an important role in the peace and safety of the community. Subject to available resources, members of this [department/office] will assist at the scene of civil disputes with the primary goal of safeguarding persons and property, preventing criminal activity, and maintaining the peace. When handling civil disputes, members will remain impartial, maintain a calm presence, give consideration to all sides, and refrain from giving legal or inappropriate advice.

### 428.3 GENERAL CONSIDERATIONS

When appropriate, members handling a civil dispute should encourage the involved parties to seek the assistance of resolution services or take the matter to the civil courts. Members must not become personally involved in disputes and shall at all times remain impartial.

While not intended to be an exhaustive list, members should give considerations to the following when handling civil disputes:

- (a) Civil disputes tend to be confrontational and members should be alert that they can escalate to violence very quickly. De-escalation techniques should be used when appropriate.
- (b) Members should not dismiss alleged or observed criminal violations as a civil matter and should initiate the appropriate investigation and report when criminal activity is apparent.
- (c) Members shall not provide legal advice, however, when appropriate, members should inform the parties when they are at risk of violating criminal laws.
- (d) Members are reminded that they shall not enter a residence or other non-public location without legal authority including valid consent.
- (e) Members should not take an unreasonable amount of time assisting in these matters and generally should contact a supervisor if it appears that peacekeeping efforts longer than 30 minutes are warranted.

### 428.4 COURT ORDERS

Disputes involving court orders can be complex. Where no mandate exists for an officer to make an arrest for a violation of a court order, the matter should be addressed by documenting any apparent

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court order violation in a report. If there appears to be a more immediate need for enforcement action, the investigating officer should consult a supervisor prior to making any arrest.

If a person appears to be violating the terms of a court order but is disputing the validity of the order or its applicability, the investigating officer should document the following:

- (a) The person's knowledge of the court order or whether proof of service exists.
- (b) Any specific reason or rationale the involved person offers for not complying with the terms of the order.

A copy of the court order should be attached to the report when available. The report should be forwarded to the appropriate prosecutor. The report should also be forwarded to the court issuing the order with a notice that the report was also forwarded to the prosecutor for review.

#### **428.4.1 STANDBY REQUESTS**

Officers responding to a call for standby assistance to retrieve property should meet the person requesting assistance at a neutral location to discuss the process. The person should be advised that items that are disputed will not be allowed to be removed. The member may advise the person to seek private legal advice as to the distribution of disputed property.

Members should accompany the person to the location of the property. Members should ask if the other party will allow removal of the property or whether the other party would remove the property.

If the other party is uncooperative, the person requesting standby assistance should be instructed to seek private legal advice and obtain a court order to obtain the items. Officers should not order the other party to allow entry or the removal of any items. If there is a restraining or similar order against the person requesting standby assistance, that person should be asked to leave the scene or they may be subject to arrest for violation of the order.

If the other party is not present at the location, the member will not allow entry into the location or the removal of property from the location.

#### **428.5 VEHICLES AND PERSONAL PROPERTY**

Officers may be faced with disputes regarding possession or ownership of vehicles or other personal property. Officers may review documents provided by parties or available databases (e.g., vehicle registration), but should be aware that legal possession of vehicles or personal property can be complex. Generally, officers should not take any enforcement action unless a crime is apparent. The people and the vehicle or personal property involved should be identified and the incident documented.

#### **428.6 REAL PROPERTY**

Disputes over possession or occupancy of real property (e.g., land, homes, apartments) should generally be handled through a person seeking a court order.



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#### 428.6.1 LONG-TERM GUEST ISSUES

For disputes related to a long-term guest, as defined by Utah Code 76-6-206.4, who has received notice to vacate a residence by an owner, tenant, or other person with apparent authority to act for the owner or tenant, officers must provide the guest with a reasonable time to collect personal belongings prior to escorting the individual from the residence. A long-term guest should not be escorted from the residence if a separate owner or tenant has granted the guest express permission to remain in the residence and the permission has not been revoked or rendered void (Utah Code 76-6-206.4).

#### 428.6.2 REMOVAL OF TRESPASSER FROM REAL PROPERTY

If a property owner or property owner's authorized agent requests the immediate removal of a trespasser from real property located within the jurisdiction of the American Fork Police Department, the [department/office] will take reasonable steps to initiate action when appropriate in accordance with Utah Code 78B-6-817. If the trespasser is homeless or will be homeless following the removal, provisions of the Homeless Persons Policy should be followed to the extent practicable.

# Crisis Intervention Incidents

## 429.1 PURPOSE AND SCOPE

This policy provides guidelines for interacting with those who may be experiencing a mental health or emotional crisis. Interaction with such individuals has the potential for miscommunication and violence. It often requires an officer to make difficult judgments about a person's mental state and intent in order to effectively and legally interact with the individual.

### 429.1.1 DEFINITIONS

Definitions related to this policy include:

**Person in crisis** - A person whose level of distress or mental health symptoms have exceeded the person's internal ability to manage his/her behavior or emotions. A crisis can be precipitated by any number of things, including an increase in the symptoms of mental illness despite treatment compliance; non-compliance with treatment, including a failure to take prescribed medications appropriately; or any other circumstance or event that causes the person to engage in erratic, disruptive or dangerous behavior that may be accompanied by impaired judgment.

## 429.2 POLICY

The American Fork Police Department is committed to providing a consistently high level of service to all members of the community and recognizes that some persons in crisis may benefit from police intervention, while others may be better served by being passively monitored or, in some cases, simply left alone by law enforcement officers. The department will collaborate, where feasible, with mental health professionals to develop an overall intervention strategy to guide its members' interactions with those experiencing a mental health crisis. This is to ensure equitable and safe treatment of all involved.

## 429.3 SIGNS

Members should be alert to any of the following possible signs of mental health issues or crises:

- (a) A known history of mental illness
- (b) Threats of or attempted suicide
- (c) Loss of memory
- (d) Incoherence, disorientation or slow response
- (e) Delusions, hallucinations, perceptions unrelated to reality or grandiose ideas
- (f) Depression, pronounced feelings of hopelessness or uselessness, extreme sadness or guilt
- (g) Social withdrawal
- (h) Manic or impulsive behavior, extreme agitation, lack of control
- (i) Lack of fear
- (j) Anxiety, aggression, rigidity, inflexibility or paranoia

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### *Crisis Intervention Incidents*

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Members should be aware that this list is not exhaustive. The presence or absence of any of these should not be treated as proof of the presence or absence of a mental health issue or crisis.

#### **429.4 COORDINATION WITH MENTAL HEALTH PROFESSIONALS**

The Chief of Police should designate an appropriate Division Commander to collaborate with mental health professionals to develop an education and response protocol. It should include a list of community resources, to guide department interaction with those who may be suffering from mental illness or who appear to be in a mental health crisis.

#### **429.5 FIRST RESPONDERS**

Safety is a priority for first responders. It is important to recognize that individuals under the influence of alcohol, drugs or both may exhibit symptoms that are similar to those of a person in a mental health crisis. These individuals may still present a serious threat to officers; such a threat should be addressed with reasonable tactics. Nothing in this policy shall be construed to limit an officer's authority to use reasonable force when interacting with a person in crisis.

Officers are reminded that mental health issues, mental health crises and unusual behavior alone are not criminal offenses. Individuals may benefit from treatment as opposed to incarceration.

An officer responding to a call involving a person in crisis should:

- (a) Promptly assess the situation independent of reported information and make a preliminary determination regarding whether a mental health crisis may be a factor.
- (b) Request available backup officers and specialized resources as deemed necessary and, if it is reasonably believed that the person is in a crisis situation, use conflict resolution and de-escalation techniques to stabilize the incident as appropriate.
- (c) If feasible, and without compromising safety, turn off flashing lights, bright lights or sirens.
- (d) Attempt to determine if weapons are present or available.
- (e) Take into account the person's mental and emotional state and potential inability to understand commands or to appreciate the consequences of his/her action or inaction, as perceived by the officer.
- (f) Secure the scene and clear the immediate area as necessary.
- (g) Employ tactics to preserve the safety of all participants.
- (h) Determine the nature of any crime.
- (i) Request a supervisor, as warranted.
- (j) Evaluate any available information that might assist in determining cause or motivation for the person's actions or stated intentions.
- (k) If circumstances reasonably permit, consider and employ alternatives to force.

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#### **429.6 DE-ESCALATION**

Officers should consider that taking no action or passively monitoring the situation may be the most reasonable response to a mental health crisis. This is particularly true if the person in crisis has not committed any crime and poses no danger to anyone else. If an individual has threatened suicide but has committed no crime and poses no danger to anyone else, it is the policy of the American Fork Police Department that phone contact with such an individual may be initiated, but direct contact should be avoided. If direct contact is made with such an individual, the main priority of an officer should be to de-escalate the situation if possible and to provide the person in crisis with the appropriate resources to deal with their situation.

Once it is determined that a situation is a mental health crisis and immediate safety concerns have been addressed, responding members should be aware of the following considerations and should generally:

- Evaluate safety conditions.
- Introduce themselves and attempt to obtain the person's name.
- Be patient, polite, calm, courteous and avoid overreacting.
- Speak and move slowly and in a non-threatening manner.
- Moderate the level of direct eye contact.
- Remove distractions or disruptive people from the area.
- Demonstrate active listening skills (e.g., summarize the person's verbal communication).
- Provide for sufficient avenues of retreat or escape should the situation become volatile.

Responding officers generally should not:

- Use stances or tactics that can be interpreted as aggressive.
- Allow others to interrupt or engage the person.
- Corner a person who is not believed to be armed, violent or suicidal.
- Argue, speak with a raised voice or use threats to obtain compliance.

#### **429.7 INCIDENT ORIENTATION**

When responding to an incident that may involve mental illness or a mental health crisis, the officer should request that the dispatcher provide critical information as it becomes available. This includes:

- (a) Whether the person relies on drugs or medication, or may have failed to take his/her medication.
- (b) Whether there have been prior incidents, suicide threats/attempts, and whether there has been previous police response.
- (c) Contact information for a treating physician or mental health professional.

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Additional resources and a supervisor should be requested as warranted.

#### **429.8 SUPERVISOR RESPONSIBILITIES**

A supervisor should respond to the scene of any interaction with a person in crisis. Responding supervisors should:

- (a) Attempt to secure appropriate and sufficient resources.
- (b) Closely monitor any use of force, including the use of restraints, and ensure that those subjected to the use of force are provided with timely access to medical care (see the Handcuffing and Restraints Policy).
- (c) Consider strategic disengagement. Absent an imminent threat to the public and, as circumstances dictate, this may include removing or reducing law enforcement resources or engaging in passive monitoring.
- (d) Ensure that all reports are completed and that incident documentation uses appropriate terminology and language.
- (e) Conduct an after-action tactical and operational debriefing, and prepare an after-action evaluation of the incident to be forwarded to the Division Commander.
- (f) Evaluate whether a critical incident stress management debriefing for involved members is warranted.

#### **429.9 INCIDENT REPORTING**

Members engaging in any oral or written communication associated with a mental health crisis should be mindful of the sensitive nature of such communications and should exercise appropriate discretion when referring to or describing persons and circumstances.

Members having contact with a person in crisis should keep related information confidential, except to the extent that revealing information is necessary to conform to department reporting procedures or other official mental health or medical proceedings.

##### **429.9.1 DIVERSION**

Individuals who are not being arrested but qualify for civil commitment should be processed in accordance with the Civil Commitments Policy.

#### **429.10 NON-SWORN INTERACTION WITH PEOPLE IN CRISIS**

Non-sworn members may be required to interact with persons in crisis in an administrative capacity, such as dispatching, records request, and animal control issues.

- (a) Members should treat all individuals equally and with dignity and respect.
- (b) If a member believes that he/she is interacting with a person in crisis, he/she should proceed patiently and in a calm manner.
- (c) Members should be aware and understand that the person may make unusual or bizarre claims or requests.

If a person's behavior makes the member feel unsafe, if the person is or becomes disruptive or violent, or if the person acts in such a manner as to cause the member to believe that the person

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may be harmful to him/herself or others, an officer should be promptly summoned to provide assistance.

#### **429.11 EVALUATION**

The Division Commander designated to coordinate the crisis intervention strategy for this department should ensure that a thorough review and analysis of the department response to these incidents is conducted annually. The report will not include identifying information pertaining to any involved individuals, officers or incidents and will be submitted to the Chief of Police through the chain of command.

#### **429.12 TRAINING**

In coordination with the mental health community and appropriate stakeholders, the department will develop and provide comprehensive education and training to all department members to enable them to effectively interact with persons in crisis.

# Medical Aid and Response

## 430.1 PURPOSE AND SCOPE

This policy recognizes that members often encounter persons in need of medical aid and establishes a law enforcement response to such situations.

## 430.2 POLICY

It is the policy of the American Fork Police Department that all officers and other designated members be trained to provide emergency medical aid and to facilitate an emergency medical response.

## 430.3 FIRST RESPONDING MEMBER RESPONSIBILITIES

Whenever practicable, members should take appropriate steps to provide initial medical aid (e.g., first aid, CPR, use of an automated external defibrillator (AED)) in accordance with their training and current certification levels. This should be done for those in need of immediate care and only when the member can safely do so.

Prior to initiating medical aid, the member should contact Dispatch and request response by Emergency Medical Services (EMS) as the member deems appropriate.

Members should follow universal precautions when providing medical aid, such as wearing gloves and avoiding contact with bodily fluids, consistent with the Communicable Diseases Policy. Members should use a barrier or bag device to perform rescue breathing.

When requesting EMS, the member should provide Dispatch with information for relay to EMS personnel in order to enable an appropriate response, including:

- (a) The location where EMS is needed.
- (b) The nature of the incident.
- (c) Any known scene hazards.
- (d) Information on the person in need of EMS, such as:
  - 1. Signs and symptoms as observed by the member.
  - 2. Changes in apparent condition.
  - 3. Number of patients, sex, and age, if known.
  - 4. Whether the person is conscious, breathing, and alert, or is believed to have consumed drugs or alcohol.
  - 5. Whether the person is showing signs of extreme agitation or is engaging in violent irrational behavior accompanied by profuse sweating, extraordinary strength beyond their physical characteristics, and imperviousness to pain.

Members should stabilize the scene whenever practicable while awaiting the arrival of EMS.

Members should not direct EMS personnel whether to transport the person for treatment.

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#### **430.4 TRANSPORTING ILL AND INJURED PERSONS**

Except in exceptional cases where alternatives are not reasonably available, members should not transport persons who are not in custody and who are unconscious, who have serious injuries, or who may be seriously ill. EMS personnel should be called to handle patient transportation.

For guidelines regarding transporting ill or injured persons who are in custody, see the Transporting Persons in Custody Policy.

Members should not provide emergency escort for medical transport or civilian vehicles.

#### **430.5 PERSONS REFUSING EMS CARE**

If a person who is not in custody refuses EMS care or refuses to be transported to a medical facility, an officer shall not force that person to receive care or be transported. However, members may assist EMS personnel when EMS personnel determine the person lacks mental capacity to understand the consequences of refusing medical care or to make an informed decision and the lack of immediate medical attention may result in serious bodily injury or the death of the person.

In cases where mental illness may be a factor, the officer should consider proceeding with temporary custody pursuant to a civil commitment in accordance with the Civil Commitments Policy.

If an officer believes that a person who is in custody requires EMS care and the person refuses, he/she should encourage the person to receive medical treatment. The officer may also consider contacting a family member to help persuade the person to agree to treatment or who may be able to authorize treatment for the person.

If the person who is in custody still refuses, the officer will require the person to be transported to the nearest medical facility. In such cases, the officer should consult with a supervisor prior to the transport.

Members shall not sign refusal-for-treatment forms or forms accepting financial responsibility for treatment.

#### **430.6 MEDICAL ATTENTION RELATED TO USE OF FORCE**

Specific guidelines for medical attention for injuries sustained from a use of force may be found in the Use of Force, Handcuffing and Restraints, Control Devices and Techniques, and Conducted Energy Device policies.

#### **430.7 AIR AMBULANCE**

Generally, when on-scene, EMS personnel will be responsible for determining whether an air ambulance response should be requested. An air ambulance may be appropriate when there are victims with life-threatening injuries or who require specialized treatment (e.g., gunshot wounds, burns, obstetrical cases), and distance or other known delays will affect the EMS response.

The Patrol Division Commander should develop guidelines for air ambulance landings or enter into local operating agreements for the use of air ambulances, as applicable. In creating those guidelines, the Department should identify:



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- Responsibility and authority for designating a landing zone and determining the size of the landing zone.
- Responsibility for securing the area and maintaining that security once the landing zone is identified.
- Consideration of the air ambulance provider's minimum standards for proximity to vertical obstructions and surface composition (e.g., dirt, gravel, pavement, concrete, grass).
- Consideration of the air ambulance provider's minimum standards for horizontal clearance from structures, fences, power poles, antennas or roadways.
- Responsibility for notifying the appropriate highway or transportation agencies if a roadway is selected as a landing zone.
- Procedures for ground personnel to communicate with flight personnel during the operation.

One department member at the scene should be designated as the air ambulance communications contact. Headlights, spotlights and flashlights should not be aimed upward at the air ambulance. Members should direct vehicle and pedestrian traffic away from the landing zone.

Members should follow these cautions when near an air ambulance:

- Never approach the aircraft until signaled by the flight crew.
- Always approach the aircraft from the front.
- Avoid the aircraft's tail rotor area.
- Wear eye protection during landing and take-off.
- Do not carry or hold items, such as IV bags, above the head.
- Ensure that no one smokes near the aircraft.

#### **430.8 AUTOMATED EXTERNAL DEFIBRILLATOR (AED) USE**

A member should use an AED only after the member has received appropriate training (Utah Code 53-2d-806).

##### **430.8.1 AED USER RESPONSIBILITY**

Members who are issued AEDs should check the AED at the beginning of the shift to ensure it is properly charged and functioning. Any AED that is not functioning properly shall be taken out of service and given to the Training Officer who is responsible for ensuring appropriate maintenance.

Following use of an AED, the device shall be cleaned and/or decontaminated as required. The electrodes and/or pads will be replaced as recommended by the AED manufacturer.

Any member who uses an AED should contact Dispatch as soon as possible and request response by EMS.

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#### 430.8.2 AED REPORTING

Any member using an AED will complete an incident report detailing its use.

#### 430.8.3 AED TRAINING AND MAINTENANCE

The Training Officer should ensure appropriate training, that includes training in CPR and AED use, is provided to members authorized to use an AED (Utah Code 53-2d-806).

The Training Officer is responsible for ensuring AED devices are appropriately maintained and will retain records of all maintenance in accordance with the established records retention schedule.

### **430.9 ADMINISTRATION OF OPIOID OVERDOSE MEDICATION**

Members may administer opioid overdose medication in accordance with protocol specified by the health care provider who prescribed the overdose medication for use by the member. With approval of the on-duty supervisor, members may also provide the opioid overdose medication to a person who is experiencing an opiate-related drug overdose event or to a family member, friend, or other individual who is in a position to assist such individual (Utah Code 26B-4-509).

#### 430.9.1 OPIOID OVERDOSE MEDICATION USER RESPONSIBILITIES

Members who are qualified to administer opioid overdose medication, such as naloxone, should handle, store and administer the medication consistent with their training. Members should check the medication and associated administration equipment at the beginning of their shift to ensure they are serviceable and not expired. Any expired medication or unserviceable administration equipment should be removed from service.

Any member who administers an opioid overdose medication shall contact Dispatch as soon as possible, request response by EMS, and notify the Shift Supervisor.

#### 430.9.2 OPIOID OVERDOSE MEDICATION REPORTING

Any member administering opioid overdose medication should detail its use in an appropriate report.

The Training Officer will ensure that the Records Supervisor is provided enough information to meet applicable state reporting requirements.

#### 430.9.3 OPIOID OVERDOSE MEDICATION TRAINING

The Training Officer should ensure training is provided to members authorized to administer opioid overdose medication. The training should include the written instructions provided by the dispensing health care provider on (Utah Code 26B-4-509):

- (a) How to recognize an opiate-related drug overdose event.
- (b) How to administer an opiate antagonist.
- (c) How to ensure that an individual to whom the medication has been administered receives additional medical care and a medical evaluation, as soon as possible.

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#### **430.10 SICK OR INJURED ARRESTEE**

If an arrestee appears ill or injured, or claims illness or injury, the arrestee should be medically cleared prior to booking. If the officer has reason to believe the arrestee is feigning injury or illness, the officer should contact a supervisor, who will determine whether medical clearance will be obtained prior to booking.

If the jail or detention facility refuses to accept custody of an arrestee based on medical screening, the officer should note the name of the facility person refusing to accept custody and the reason for refusal, and should notify a supervisor to determine the appropriate action.

Arrestees who appear to have a serious medical issue should be transported by ambulance to an appropriate medical facility.

Nothing in this section should delay an officer from requesting EMS when an arrestee reasonably appears to be exhibiting symptoms that appear to be life threatening, including breathing problems or an altered level of consciousness, or is claiming an illness or injury that reasonably warrants an EMS response in accordance with the officer's training.

##### **430.10.1 HOSPITAL SECURITY AND CONTROL**

Officers who transport persons in custody to medical facilities for treatment should provide security and control during examination and treatment consistent with [department/office] protocols. Any such transport should be conducted in accordance with the Transporting Persons in Custody Policy.

The Patrol Division Commander should develop protocols related to the following:

- (a) Providing security and control during an examination or treatment, including:
  - 1. Monitoring the person in custody (e.g., guarding against escape, suicide, and assault of others)
  - 2. Removal of restraints, if necessary and appropriate (see the Handcuffing and Restraints Policy)
- (b) Responsibility for continuing security and control if the person in custody is admitted to the hospital
  - 1. This should include transferring custody of the person to an appropriate agency.

#### **430.11 FIRST-AID TRAINING**

The Training Officer should ensure officers receive periodic first-aid training appropriate for their position.

#### **430.12 FIRST AID TRAINING**

Subject to available resources, Command Staff should ensure officers receive periodic first aid training appropriate for their position.

## Automated License Plate Readers (ALPRs)

### 431.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance for the capture, storage, and use of digital data obtained through the use of the automated license plate reader (ALPR) technology (Utah Code 41-6a-2003).

### 431.2 POLICY

The policy of the American Fork Police Department is to utilize ALPR technology to capture and store digital license plate data and images while recognizing the established privacy rights of the public.

All data and images gathered by the ALPR are for the official use of this [department/office]. Because such data may contain confidential information, it is not open to public review.

### 431.3 ADMINISTRATION

The ALPR technology, also known as license plate recognition (LPR), allows for the automated detection of license plates. It is used by the American Fork Police Department to convert data associated with vehicle license plates for official law enforcement purposes, including identifying stolen or wanted vehicles, stolen license plates, and missing persons. It may also be used to gather information related to active warrants, homeland security, electronic surveillance, suspect interdiction, and stolen property recovery.

All installation and maintenance of ALPR equipment, as well as ALPR data retention and access shall be managed by the Administration Division Commander. The Administration Division Commander will assign personnel under the Administration Division Commander's command to administer the day-to-day operation of the ALPR equipment and data.

#### 431.3.1 SPECIAL USE PERMITS

The Administration Division Commander or the authorized designee shall obtain required special use permits before installation of stationary ALPR equipment when applicable (Utah Code 41-6a-2003; Utah Code 72-1-212).

### 431.4 OPERATIONS

Use of an ALPR is restricted to the purposes outlined below. [Department/Office] personnel shall not use or allow others to use the equipment or database records for any unauthorized purpose.

- (a) An ALPR shall only be used for official and legitimate law enforcement business (Utah Code 41-6a-2003).
- (b) Particular consideration should be given to using ALPR-equipped vehicles to canvass areas around homicides, shootings, and other major incidents that qualify for use of an ALPR. Partial license plates reported during major crimes should be entered into the ALPR system in an attempt to identify suspect vehicles.

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- (c) No member of this [department/office] shall operate ALPR equipment or access ALPR data without first completing [department/office]-approved training.
- (d) If practicable, the officer should verify an ALPR response through the appropriate law enforcement database before taking enforcement action that is based solely upon an ALPR alert.
- (e) No ALPR operator may access confidential [department/office], state, or federal data unless otherwise authorized to do so.

#### 431.4.1 LIMITATIONS ON USE

ALPR data shall only be used for the following official law enforcement business (Utah Code 41-6a-2003):

- (a) As part of an active criminal investigation as defined by Utah Code 41-6a-2002
- (b) To apprehend an individual with an outstanding warrant
- (c) To locate a missing or endangered person
- (d) To locate a stolen vehicle

An ALPR system may be used to access the Utah Criminal Justice Information System to verify vehicle registration or insurance information, confirm vehicle identification, or identify a stolen vehicle (Utah Code 41-6a-2003).

#### **431.5 DATA COLLECTION AND RETENTION**

All data and images gathered by an ALPR are for the official use of the American Fork Police Department and because such data may contain confidential information, it is not open to public review. ALPR information gathered and retained by this [department/office] may be used and shared with prosecutors or others only as permitted by law (Utah Code 41-6a-2004).

The Administration Division Commander is responsible for ensuring systems and processes are in place for the proper collection and retention of ALPR data. Data will be transferred from vehicles to the designated storage in accordance with [department/office] procedures.

The Administration Division Commander or the authorized designee shall take steps to have all ALPR data that is not reasonably related to official law enforcement business purged in an unrecoverable manner as soon as practicable. In no event shall this data be maintained longer than nine months unless it is subject to a warrant, preservation request, or disclosure order (Utah Code 41-6a-2004). Data that will not be purged should be downloaded from the server onto portable media and booked into evidence.

#### 431.5.1 NON-GOVERNMENTAL AGENCY ALPR

ALPR data captured by a non-governmental entity device may only be obtained pursuant to a warrant or a court order (Utah Code 41-6a-2005).

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#### **431.6 ACCOUNTABILITY**

All data will be closely safeguarded and protected by both procedural and technological means. The American Fork Police Department will observe the following safeguards regarding access to and use of stored data:

- (a) All ALPR data downloaded to the mobile workstation and server shall be accessible only through a login/password-protected system capable of documenting all access of information by name, date, and time.
- (b) Members approved to access ALPR data under these guidelines are permitted to access the data for legitimate law enforcement purposes only, such as when the data relate to a specific criminal investigation or [department/office]-related civil or administrative action.
- (c) The number of ALPR data searches conducted by members as well as the crime type and incident numbers associated with each search shall be recorded and preserved for at least five years (Utah Code 41-6a-2005).
- (d) ALPR system audits should be conducted on a regular basis.

#### **431.7 RELEASING ALPR DATA**

The ALPR data may be shared only with other law enforcement or prosecutorial agencies for official law enforcement purposes or as otherwise permitted by law, using the following procedures:

- (a) The agency makes a written request for the ALPR data that includes:
  - 1. The name of the agency.
  - 2. The name of the person requesting.
  - 3. The intended purpose of obtaining the information.
- (b) The request is forwarded to the Support Services Division for review.
- (c) The Support Services Division consults with the Administrative Division Commander or designee before fulfilling the request.
- (d) The approved request is retained on file.

Requests for ALPR data by non-law enforcement or non-prosecutorial agencies will be processed as provided in the Records Maintenance and Release Policy.

#### **431.8 PUBLIC ACCESS**

This policy and any special use permits obtained for stationary ALPRs shall be published on the City website or on the Utah Public Notice Website if the [Department/Office] does not have access to a City website (Utah Code 41-6a-2003; Utah Code 72-1-212).

## Ride-Along Requests

### 432.1 PURPOSE AND SCOPE

The American Fork Police Department does not administer a formal ride-along program. However, under certain circumstances, and as authorized by the Chief of Police, certain individuals may be permitted to participate in ride-alongs. This policy provides the approval process and requirements for such instances.

### 432.2 ELIGIBILITY AND APPLICATION

The opportunity to participate in a ride-along may be considered upon request for residents and family members of department employees. All applicants must complete and submit a Ride-Along Waiver Form. Information requested will include a valid ID or Utah Driver License, address and telephone number. If the participant is under 18 years of age, a parent/guardian must be present and must complete and sign the Ride-Along Waiver Form on behalf of the minor. All applicants are subject to a criminal history check. The criminal history check may include a local records check and a state records check through the Bureau of Criminal Investigation (BCI) prior to their approval as a ride-along with a law enforcement officer.

The Shift Supervisor may authorize requests to participate in a ride-along made by family members of a department employee.

Only the Chief of Police or designee may authorize ride-along requests made by individuals other than family members of department employees. The department will attempt to accommodate interested persons whenever possible, but any applicant may be denied or disqualified at any time and without cause. If the ride-along is denied, a representative of the department will contact the applicant and advise of the denial.

The following factors may be considered in disqualifying an applicant and are not limited to:

- Being under 15-years of age
- Prior criminal history
- Pending criminal action
- Pending lawsuit against the department
- Denial by any supervisor

### 432.3 SCHEDULING

After the a ride-along has been authorized, the appropriate Shift Supervisor shall make the proper scheduling arrangements, notify the patrol officer to whom the ride-along individual will be assigned, and notify the individual participating in the ride-along of the date and time of the ride-along. The Shift Supervisor shall be responsible for ensuring that the Ride-Along Waiver Form is properly completed, signed, and filed.

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#### **432.4 PROGRAM REQUIREMENTS**

An effort will be made to ensure that no more than one citizen will participate in a ride-along during any given time period. Normally, no more than one ride-along will be allowed in the officer's vehicle at a given time.

#### **432.5 SUITABLE ATTIRE**

Any person approved to ride-along is required to be suitably dressed in collared shirt, blouse or jacket, slacks and shoes. Sandals, T-shirts, tank tops, shorts and ripped or torn blue jeans are not permitted. Hats and ball caps will not be worn in the police vehicle. The Shift Sergeant or field supervisor may refuse a ride along to anyone not properly dressed.

#### **432.6 PEACE OFFICER RIDE-ALONGS**

Off-duty members of the Department or any other law enforcement agency will not be permitted to ride-along with on-duty officers without the expressed consent of the Shift Supervisor. In the event that such a ride-along is permitted, the off-duty employee shall not be considered on-duty and shall not represent themselves as a peace officer or participate in any law enforcement activity except as emergency circumstances may require.

#### **432.7 OFFICER'S RESPONSIBILITY**

The officer shall advise the dispatcher that a ride-along is present in the vehicle before going into service. Officers shall consider the safety of the ride-along at all times. Officers should use sound discretion when encountering a potentially dangerous situation, and if feasible, let the participant out of the vehicle in a well-lighted place of safety. The dispatcher will be advised of the situation and as soon as practical have another police vehicle respond to pick up the participant at that location. The ride-along may be continued or terminated at this time.

#### **432.8 CONTROL OF RIDE-ALONG**

The assigned employee shall maintain control over the ride-along at all times and instruct him/her in the conditions that necessarily limit their participation. These instructions should include:

- (a) The ride-along will follow the directions of the officer.
- (b) The ride-along will not become involved in any investigation, handling of evidence, discussions with victims or suspects or handling any police equipment.
- (c) The ride-along may terminate the ride at any time. If the ride-along interferes with the performance of the officer's duties, the officer may terminate the ride-along and return the observer to his/her home or to the station.
- (d) Ride-alongs may be allowed to continue riding during the transportation and booking process provided this does not jeopardize their safety.
- (e) Officers will not allow any ride-alongs to be present in any residence or situation that would jeopardize their safety or cause undue stress or embarrassment to a victim or any other citizen.



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- (f) Under no circumstance shall a civilian ride-along be permitted to enter a private residence with an officer without the expressed consent of the resident or other authorized person.

## Aircraft Accidents

### 433.1 PURPOSE AND SCOPE

The purpose of this policy is to provide department members with guidelines for handling aircraft accidents.

This policy does not supersede, and is supplementary to, applicable portions of the Crime and Disaster Scene Integrity, Emergency Management Plan and Hazardous Material Response policies.

#### 433.1.1 DEFINITIONS

Definitions related to this policy include:

**Aircraft** - Any fixed wing aircraft, rotorcraft, balloon, blimp/dirigible or glider that is capable of carrying a person or any unmanned aerial vehicle other than those intended for non-commercial recreational use.

### 433.2 POLICY

It is the policy of the American Fork Police Department to provide an appropriate emergency response to aircraft accidents. This includes emergency medical care and scene management.

### 433.3 ARRIVAL AT SCENE

Officers or other authorized members tasked with initial scene management should establish an inner and outer perimeter to:

- (a) Protect persons and property.
- (b) Prevent any disturbance or further damage to the wreckage or debris, except to preserve life or rescue the injured.
- (c) Preserve ground scars and marks made by the aircraft.
- (d) Manage the admission and access of public safety and medical personnel to the extent necessary to preserve life or to stabilize hazardous materials.
- (e) Maintain a record of persons who enter the accident site.
- (f) Consider implementation of an Incident Command System (ICS).

### 433.4 INJURIES AND CASUALTIES

Members should address emergency medical issues and provide care as a first priority.

Those tasked with the supervision of the scene should coordinate with the National Transportation Safety Board (NTSB) before the removal of bodies. If that is not possible, the scene supervisor should ensure documentation of what was disturbed, including switch/control positions and instrument/gauge readings.

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#### **433.5 NOTIFICATIONS**

When an aircraft accident is reported to this department, the responding supervisor shall ensure notification is or has been made to NTSB, the Federal Aviation Administration (FAA), and when applicable, the appropriate branch of the military.

Supervisors shall ensure other notifications are made once an aircraft accident has been reported. The notifications will vary depending on the type of accident, extent of injuries or damage, and the type of aircraft involved. When an aircraft accident has occurred, it is generally necessary to notify the following:

- (a) Fire department
- (b) Appropriate airport tower
- (c) Emergency medical services (EMS)

#### **433.6 CONTROLLING ACCESS AND SCENE AUTHORITY**

Prior to NTSB arrival, scene access should be limited to authorized personnel from the:

- (a) FAA.
- (b) Fire department, EMS or other assisting law enforcement agencies.
- (c) Medical Examiner.
- (d) Air Carrier/Operators investigative teams with NTSB approval.
- (e) Appropriate branch of the military, when applicable.
- (f) Other emergency services agencies (e.g., hazardous materials teams, biohazard decontamination teams, fuel recovery specialists, explosive ordnance disposal specialists).

The NTSB has primary responsibility for investigating accidents involving civil aircraft. In the case of a military aircraft accident, the appropriate branch of the military will have primary investigation responsibility.

After the NTSB or military representative arrives on-scene, the efforts of this department will shift to a support role for those agencies.

If NTSB or a military representative determines that an aircraft or accident does not qualify under its jurisdiction, the on-scene department supervisor should ensure the accident is still appropriately investigated and documented.

#### **433.7 DANGEROUS MATERIALS**

Members should be aware of potentially dangerous materials that might be present. These may include, but are not limited to:

- (a) Fuel, chemicals, explosives, biological or radioactive materials and bombs or other ordnance.
- (b) Pressure vessels, compressed gas bottles, accumulators and tires.
- (c) Fluids, batteries, flares and igniters.

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### *Aircraft Accidents*

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- (d) Evacuation chutes, ballistic parachute systems and composite materials.

#### **433.8 DOCUMENTATION**

All aircraft accidents occurring within the City of American Fork shall be documented. At a minimum the documentation should include the date, time and location of the incident; any witness statements, if taken; the names of AFPD members deployed to assist; other City resources that were utilized; and cross reference information to other investigating agencies. Suspected criminal activity should be documented on the appropriate crime report.

##### **433.8.1 WRECKAGE**

When reasonably safe, members should:

- (a) Obtain the aircraft registration number (N number) and note the type of aircraft.
- (b) Attempt to ascertain the number of casualties.
- (c) Obtain photographs or video of the overall wreckage, including the cockpit and damage, starting at the initial point of impact, if possible, and any ground scars or marks made by the aircraft.
  - 1. Military aircraft may contain classified equipment and therefore shall not be photographed unless authorized by a military commanding officer (18 USC § 795).
- (d) Secure, if requested by the lead authority, any electronic data or video recorders from the aircraft that became dislodged or cell phones or other recording devices that are part of the wreckage.
- (e) Acquire copies of any recordings from security cameras that may have captured the incident.

##### **433.8.2 WITNESSES**

Members tasked with contacting witnesses should obtain:

- (a) The location of the witness at the time of his/her observation relative to the accident site.
- (b) A detailed description of what was observed or heard.
- (c) Any photographs or recordings of the accident witnesses may be willing to voluntarily surrender.
- (d) The names of all persons reporting the accident, even if not yet interviewed.
- (e) Any audio recordings of reports to 9-1-1 regarding the accident and dispatch records.

#### **433.9 MEDIA RELATIONS**

The Public Information Officer (PIO) should coordinate a response to the media, including access issues, road closures, detours and any safety information that is pertinent to the surrounding community. Any release of information regarding details of the accident itself should be coordinated with the NTSB or other authority who may have assumed responsibility for the investigation.

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Depending on the type of aircraft, the airline or the military may be responsible for family notifications and the release of victims' names. The PIO should coordinate with other involved entities before the release of information.

## **Chapter 5 - Traffic Operations**

# Traffic

## 500.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for improving public safety through education and enforcement of traffic-related laws.

## 500.2 POLICY

It is the policy of the American Fork Police Department to educate the public on traffic-related issues and to enforce traffic laws. The efforts of the [Department/Office] will be driven by such factors as the location and/or number of traffic collisions, citizen complaints, traffic volume, traffic conditions, and other traffic-related needs. The ultimate goal of traffic law enforcement and education is to increase public safety.

## 500.3 DEPLOYMENT

Enforcement efforts may include techniques such as geographic/temporal assignment of [department/office] members and equipment, the establishment of preventive patrols to deal with specific categories of unlawful driving, and a variety of educational activities. These activities should incorporate methods that are suitable to the situation; timed to events, seasons, past traffic problems, or locations; and, whenever practicable, preceded by enforcement activities.

Several factors will be considered in the development of deployment schedules for [department/office] members. State and local data on traffic collisions are a valuable resource. Factors for analysis include but are not limited to:

- Location.
- Time.
- Day.
- Violation factors.
- Requests from the public.
- Construction zones.
- School zones.
- Special events.

[Department/Office] members assigned to uniformed patrol or traffic enforcement functions will emphasize the enforcement of violations that contribute to traffic collisions, and also will consider the hours and locations where traffic collisions tend to occur. Members will take directed enforcement action on request and random enforcement action when appropriate. Members shall maintain high visibility while working general enforcement, especially in areas where traffic collisions frequently occur.

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#### **500.4 ENFORCEMENT**

Traffic enforcement will be consistent with applicable laws and take into account the degree and severity of the violation committed. This [department/office] does not establish ticket quotas. The number of arrests or citations issued by any member shall not be used as the sole criterion for evaluating member overall performance. Several methods are effective in the reduction of traffic collisions.

##### **500.4.1 WARNINGS**

Warnings are a non-punitive option that may be considered by the member when circumstances warrant, such as when a minor violation was inadvertent.

##### **500.4.2 CITATIONS**

Citations may be issued when an officer believes it is appropriate, including at the scene of a traffic accident for accident-causing violations. It is essential that officers fully explain the rights and requirements imposed on motorists upon issuance of a citation for a traffic violation. Officers should provide the following information at a minimum:

- (a) Explanation of the violation or charge.
- (b) Court appearance procedure including the optional or mandatory appearance by the motorist.
- (c) Notice of whether the motorist can enter a plea and pay the fine by mail or at the court.

##### **500.4.3 PHYSICAL ARREST**

Physical arrest can be made on a number of criminal traffic offenses outlined in Utah Code Title 41. These physical arrest cases usually deal with, but are not limited to:

- (a) Vehicular manslaughter.
- (b) Felony and misdemeanor driving under the influence of alcohol/drugs.
- (c) Felony or misdemeanor hit-and-run.
- (d) Any other misdemeanor at the discretion of the officer, such as reckless driving with extenuating circumstances.

#### **500.5 SUSPENDED OR REVOKED DRIVER'S LICENSES**

If an officer contacts a traffic violator for driving on a suspended or revoked license, the officer may issue a traffic citation pursuant to Utah Code 53-3-227.

#### **500.6 RADAR/LIDAR OPERATION AND MAINTENANCE**

Department members are responsible for keeping their own Radar/Lidar training and certification up to date.

All Radars/Lidars will be maintained, calibrated, and operated in accordance with those procedures set out in training and certification as well as the manufacturer's manuals kept on file by the Department.



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#### **500.7 TRAFFIC DIRECTION AND CONTROL**

No Department member shall engage in traffic direction and control without first receiving department-approved training or instruction on how to safely conduct themselves during such activities. High-visibility vests shall be worn at all times while directing traffic as indicated in the High Visibility Vest section of this policy.

#### **500.8 HIGH-VISIBILITY VESTS**

The Department has provided American National Standards Institute (ANSI) Class II high-visibility vests to increase the visibility of department members who may be exposed to hazards presented by passing traffic, maneuvering or operating vehicles, machinery and equipment (23 CFR 655.601).

Although intended primarily for use while performing traffic related assignments, high-visibility vests should be worn at any time increased visibility would improve the safety or efficiency of the member.

##### **500.8.1 REQUIRED USE**

Except when working in a potentially adversarial or confrontational role, such as during vehicle stops, high-visibility vests should be worn at any time it is anticipated that an employee will be exposed to the hazards of approaching traffic or construction and recovery equipment. Examples of when high-visibility vests should be worn include traffic control duties, accident investigations, lane closures and while at disaster scenes, or anytime high visibility is desirable. When emergency conditions preclude the immediate donning of the vest, officers should retrieve and wear the vest as soon as conditions reasonably permit. Use of the vests shall also be mandatory when directed by a supervisor.

Vests maintained in the investigation units may be used any time a plainclothes officer might benefit from being readily identified as a member of law enforcement.

##### **500.8.2 CARE AND STORAGE**

High-visibility vests shall be maintained in the trunk of each patrol and investigation vehicle, in the side box of each police motorcycle, and in the gear bag of each patrol bicycle. Each vest should be stored inside a resealable plastic bag to protect and maintain the vest in a serviceable condition. Before going into service, each employee shall ensure that a serviceable high-visibility vest is properly stored.

A supply of high-visibility vests will be maintained and made available for replacement of damaged or unserviceable vests. The Patrol Division Commander should be promptly notified whenever the supply of vests needs replenishing.

#### **500.9 SPEEDING IN A SCHOOL ZONE COMPLAINT PROCEDURE**

It is the responsibility of the Division Commander or designee to establish a report form and a procedure for school crossing guards to report speed violations to the American Fork Police Department. The reporting forms shall be made available to school crossing guards and to school

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administrative offices. (Utah Code 41-6a-604 and Utah Code 41-6a-604.5). The report form shall include the following:

- (a) Date, time and location of the violation.
- (b) Vehicle license plate number and state.
- (c) Vehicle description.
- (d) Description of the vehicle operator.
- (e) Description of the incident.
- (f) Contact information of the school crossing guard.
- (g) The signature of the school crossing guard who witnessed the offense attesting to the accuracy of the report.

Reports should be submitted to the American Fork Police Department no more than two business days after the alleged violation occurred.

#### **500.9.1 NOTIFICATION OF VIOLATION TO VIOLATOR/VEHICLE OWNER**

It will be the Division Commander or designee's responsibility to establish a system in which notification letters are sent to the last known registered owner of the vehicle that was reported speeding. The letter should contain the following (Utah Code 41-6a-604.5(1)(a)):

- (a) Applicable information on the school crossing guard's report stating that the vehicle was observed speeding in a reduced-speed school zone in violation of state law.
- (b) Complete explanation of the applicable provisions of Utah Code 41-6a-604.
- (c) An explanation that the notification letter is not a peace officer citation but is an effort to call attention to the seriousness of the incident.

The Division Commander is responsible for ensuring all other mandates of Utah Code 41-6a-604.5 are met or that further investigation, if warranted, is conducted.

#### **500.10 POLICE ESCORTS**

Police escorts may be provided by the department. Some possible reasons for a police escort include, but are not limited to:

- funerals and processions
- dignitary protection and operations
- community and special events

The Chief of Police must approve all police escorts before they occur.

#### **500.11 TRAFFIC CHECKPOINTS**

The Chief of Police or designee may authorize the use of administrative checkpoints such as sobriety and traffic safety checkpoints. Prior to the implementation of any such checkpoint, the

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Chief of Police or designee shall comply with every requirement outlined in Utah Code 77-23-104, including the preparation and authorization of a written checkpoint plan which is submitted to a magistrate for approval.

#### **500.12 TRAFFIC DIRECTION AND CONTROL**

Only those [department/office] members who have received [department/office]-approved training in traffic direction and control techniques shall conduct traffic direction and control activities.

#### **500.13 SPEED-MEASURING DEVICES**

The Supervisory Sergeant is responsible for developing and maintaining procedures for using speed-measuring devices, including but not limited to:

- Operational procedures.
- Equipment specifications, care, upkeep, maintenance, and calibration.
- Operator training and certification.

#### **500.14 HAZARDOUS ROAD CONDITIONS**

Hazardous road conditions due to weather, road damage, or other emergencies should be addressed as soon as practicable.

- (a) A member who locates or is assigned to investigate a hazardous road condition should use temporary traffic control devices, if necessary, to identify the hazard, isolate it, and limit the public's ability to come into contact with or access the area.
- (b) A member who locates or is assigned to investigate a hazardous condition should assess the condition and request through Dispatch that notifications be made to appropriate authorities responsible for correcting the hazard. The dispatcher should document the condition and all notifications that are made.
- (c) If a member needs assistance with isolating a hazard, the member may request additional members to the location.
- (d) If there are any questions regarding the proper isolation of a roadway hazard, members should contact their supervisor.
- (e) A member should only leave the location under one of the following circumstances:
  - 1. The hazardous condition has been corrected.
  - 2. The member is relieved by an appropriate authority who will conduct the repair, and traffic direction and control services are no longer needed.
  - 3. The member is properly relieved by another member.
  - 4. When authorized by a supervisor.

# Traffic Collision Reporting

## 501.1 PURPOSE AND SCOPE

The American Fork Police Department prepares traffic collision reports in compliance with Utah Code, Title 41, Chapter 6a, Part 4.

## 501.2 RESPONSIBILITY

The Administrative Sergeant will be responsible for distribution of the Collision Investigation Manual. The Administrative Sergeant will receive all changes in the state manual and ensure conformity with this policy.

## 501.3 TRAFFIC COLLISION RESPONSE AND INVESTIGATION

Officers responding to investigate and report traffic collisions should handle injuries, fire hazards, and hazardous materials as directed by the Medical Aid and Response and Hazardous Materials Response policies.

Officers shall conduct all traffic accident investigations in accordance with their department-approved training. Investigations shall be pursued and completed in a timely and effective manner.

## 501.4 TRAFFIC COLLISION REPORTING

All traffic collision reports taken by members of the department shall be forwarded to data entry in the Records Management System.

## 501.5 REPORTING SITUATIONS

### 501.5.1 TRAFFIC COLLISIONS INVOLVING CITY VEHICLES

Traffic collision investigation reports shall be taken when a City-owned vehicle is involved in a traffic collision upon a roadway or highway wherein any damage or injury results. A general information report may be taken in lieu of a traffic collision report at the direction of a supervisor when the collision occurs on private property or does not involve another vehicle. Whenever there is damage to a City vehicle, a Memorandum including the pertinent facts and details of the accident and vehicle damages shall be completed and forwarded to the appropriate Division Commander.

Photographs of the collision scene and vehicle damage shall be taken at the discretion of the traffic investigator or any supervisor.

### 501.5.2 TRAFFIC COLLISIONS WITH POLICE DEPARTMENT EMPLOYEES

When an employee of the department, either on- or off-duty, is involved in a traffic collision within the jurisdiction of the American Fork Police Department, the Shift Supervisor or Officer in Charge shall request an outside law enforcement agency for assistance.

### 501.5.3 TRAFFIC COLLISIONS WITH OTHER CITY EMPLOYEES OR OFFICIALS

The Shift Supervisor may request assistance from the Utah Highway Patrol or other neighboring agency for the investigation of any traffic collision involving any City official or employee where a serious injury or fatality has occurred.

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### *Traffic Collision Reporting*

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#### 501.5.4 TRAFFIC COLLISIONS ON PRIVATE PROPERTY

In compliance with Utah Code 41-6a-402, traffic collision reports shall be taken for traffic collisions occurring on private property when the accident results in injury to or death of any person, or total property damage to the apparent extent of \$2,500 or more. An incident report may be taken at the discretion of any supervisor.

#### 501.5.5 TRAFFIC COLLISIONS ON ROADWAYS OR HIGHWAYS

Traffic collision reports shall be taken when they occur on a roadway or highway within the jurisdiction of this department under any of the following circumstances:

- (a) When there is a death or injury to any persons involved in the collision.
- (b) When there is an identifiable violation of Utah Code.
- (c) When total property damage to the apparent extent of \$2,500 or more has occurred.
- (d) When a report is requested by any involved driver.

#### 501.5.6 TRAFFIC COLLISIONS INVOLVING LIVESTOCK

An officer investigating a collision shall indicate in the report whether the accident occurred on a highway designated as a livestock highway, in accordance with Utah Code 72-3-112, when the collision resulted in the injury or death of livestock (Utah Code 41-6a-404).

An officer investigating such a collision shall make reasonable efforts as soon as practicable to (Utah Code 41-6a-408):

- (a) Locate and inform the owner of the livestock of the incident.
- (b) Make arrangements with the owner of the livestock to provide a copy of the collision report or advise the owner where a copy can be obtained.

#### 501.5.7 TRAFFIC COLLISIONS INVOLVING SERIOUS INJURY OR DEATH

In compliance with Utah Code 41-6a-202, an officer who issues a citation to a person for a moving traffic violation which results in a collision causing serious bodily injury or death shall note that fact on the citation.

## Vehicle Towing

### 502.1 PURPOSE AND SCOPE

This policy provides guidance related to vehicle towing.

### 502.2 POLICY

The American Fork Police Department will tow vehicles when appropriate and in accordance with the law.

### 502.3 REMOVAL OF VEHICLES DUE TO HAZARD

When a vehicle should be towed because it presents a hazard, the owner or operator should arrange for the towing. [Department/Office] members may assist by communicating requests through Dispatch to expedite the process.

If the owner or operator is unable to arrange for towing and the vehicle presents a hazard, the vehicle may be towed at the direction of the [department/office] member (Utah Code 41-6a-1405).

Vehicles that are not the property of the City should not be driven by [department/office] members unless it is necessary to move the vehicle a short distance to eliminate a hazard, prevent the obstruction of a fire hydrant, or comply with posted signs.

#### 502.3.1 REMOVAL OF VEHICLE INVOLVED IN AN ACCIDENT

When a vehicle has been involved in an accident and must be removed from the scene, the officer may provide the driver the opportunity to select a towing company (if safety considerations and circumstances allow) and relay the request to the dispatcher. If the driver has no preference as to which towing company to use, a towing company will be selected from the rotational list maintained by Dispatch. the requested tow company must respond within 20 minutes of request.

An officer may, without the consent of the owner, remove a vehicle that has been involved in an accident if the vehicle has been damaged or spilled within the right-of-way or any portion of a roadway on the state highway system, is blocking a roadway, or is otherwise endangering public safety (Utah Code 41-6a-401.9).

#### 502.3.2 REMOVAL OF ABANDONED VEHICLES

A vehicle is considered abandoned and may be removed by an officer if it has been left unattended more than 48 hours on a highway or more than seven days on public or private property without the property owner's consent (Utah Code 41-6a-1408).

### 502.4 ARREST SCENES

Whenever the owner or operator of a vehicle is arrested, the arresting officer shall exercise reasonable discretion in determining whether the vehicle should be towed. The officer should provide reasonable safekeeping by either leaving the vehicle secured and lawfully parked at the scene or, when appropriate, by having the vehicle towed, such as when the vehicle presents a traffic hazard or the vehicle would be in jeopardy of theft or damage if left at the scene (Utah Code 41-6a-1405).

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### *Vehicle Towing*

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Officers are not required to investigate whether alternatives to towing a vehicle exist after an arrest. However, the officer may consider any reasonable alternatives to towing that may exist. When considering whether to leave a vehicle at the scene, officers should take into consideration public safety, whether the vehicle is legally parked, where the vehicle is parked (i.e. private property vs public roadway), the preferences of the private property owner (if applicable), and the reasonable safety of the vehicle and its contents.

Officers should not tow a vehicle if the person responsible for the vehicle is available and willing to provide for the custody and/or removal of the vehicle.

#### **502.4.1 IMPOUND FOR LACK OF PROOF OF SECURITY**

If the operator of a vehicle involved in a collision cannot provide proof of security as required by Utah Code 41-12a-301, the vehicle shall be impounded after the officer confirms that the security is not in effect through a query of the Uninsured Motorist Identification Database (Utah Code 41-1a-1101).

#### **502.4.2 IMPOUND FOR ROAD RAGE EVENT**

When an officer has probable cause to believe the operator of a vehicle has engaged in a road rage event and the operator has been arrested in conjunction with that event, the officer shall impound the vehicle unless the registered owner is someone other than the operator and is present to take possession of the vehicle (Utah Code 41-1a-1101).

### **502.5 VEHICLES RELATED TO CRIMINAL INVESTIGATIONS**

Officers should tow vehicles that are needed for the furtherance of an investigation or prosecution of a case, or that are otherwise appropriate for seizure as evidence. Officers should make reasonable efforts to return a recovered stolen vehicle to its owner rather than have it towed, so long as the vehicle is not needed for evidence.

### **502.6 REPORTING AND RECORDKEEPING**

Any officer that removes a vehicle is required to either 1) submit an online state vehicle impound form under the circumstances described below under "Vehicle Impound Report", or if the vehicle impound form is not required, 2) provide the tow truck operator with the specific information set out in "Information to Tow Truck Driver" below.

#### **502.6.1 VEHICLE IMPOUND REPORT**

If an officer removes a vehicle associated with a DUI/metabolite violation, alcohol restricted violation, suspended license violation, ignition interlock violation, speed contest or exhibition violation, stolen vehicle, defaced or altered VIN, expired registration, revoked/suspended registration, no Utah registration, failure to remain at the scene, evading, no insurance, road rage incident, or suspended license violation for any of the specific violations listed in Utah Code 53-3-227(3)(a)(i)-(vii) and 53-3-227(3)(a)(x), the officer shall complete and submit the online state vehicle impound form as soon as possible (no later than noon of the next business day after the date of removal (Utah Code 41-6a-1406(4))).

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#### 502.6.2 INFORMATION TO TOW TRUCK DRIVER

When an officer has a vehicle removed for any reason not listed above in the section titled "Vehicle Impound Report", the officer shall provide the tow truck operator with their name and badge number, the name and originating agency identifier of the [Department/Office], and the [department/office] case number (Utah Code 41-6a-1406(5)).

#### 502.7 TOWING SERVICES

Members shall not show preference among towing services that have been authorized for use by the [Department/Office]. A rotation or other system established by the [Department/Office] for tow services should be followed.

#### 502.8 VEHICLE INVENTORY

The contents of all vehicles towed at the request of [department/office] members shall be inventoried and listed on the inventory report. When reasonably practicable, photographs may be taken to assist in the inventory.

- (a) An inventory of personal property and the contents of open containers will be conducted throughout the passenger and engine compartments of the vehicle including but not limited to any unlocked glove box, other accessible areas under or within the dashboard area, any pockets in the doors or in the back of the front seat, in any console between the seats, under any floor mats, and under the seats.
- (b) In addition to the passenger and engine compartments as described above, an inventory of personal property and the contents of open containers will also be conducted in any other type of unlocked compartments that are a part of the vehicle, including unlocked vehicle trunks and unlocked car top containers.
- (c) Any locked compartments including but not limited to locked glove compartments, locked vehicle trunks, locked hatchbacks, and locked car-top containers should be inventoried, provided the keys are available and released with the vehicle to the third-party towing company or an unlocking mechanism for such compartment is available within the vehicle.
- (d) Closed and/or locked containers should also be opened and inventories wherever possible; such as containers include but are not limited to wallets, purses, coin purses, fanny packs, personal organizers, briefcases or other closed containers designed for carrying money, small valuables, or hazardous materials.

Members should ask the occupants whether the vehicle contains any valuables or hazardous materials. Responses should be noted in the inventory report. If the occupant acknowledges that any closed container contains valuables or a hazardous material, the container shall be opened and inventoried. When practicable and appropriate, such items should be removed from the vehicle and given to the owner, or booked into property for safekeeping.

Any cash, jewelry, or other small valuables located during the inventory process will be held for safekeeping, in accordance with the Property and Evidence Policy. A copy of the property receipt form should be given to the person in control of the vehicle or, if that person is not present, left in the vehicle.



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### *Vehicle Towing*

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A copy of the vehicle inventory will be given to the tow truck operator.

These inventory procedures are for the purpose of protecting the vehicle owner's property, providing for the safety of [department/office] members, and protecting the [Department/Office] against fraudulent claims of lost, stolen, or damaged property.

Towing a vehicle in order to perform an inventory should not be used as a pretext for an evidence search. Nothing in this policy prevents the towing of a vehicle that would occur for reasons independent of any suspicion that the vehicle may contain evidence if it is otherwise justified by law or this policy.

#### **502.9 SECURITY OF VEHICLES AND RETRIEVAL OF PROPERTY**

If the search of a vehicle leaves the vehicle or any property contained therein vulnerable to unauthorized entry, theft, or damage, the [department/office] member conducting the search shall take such steps as are reasonably necessary to secure or protect the vehicle or property from such hazards.

Unless it would cause an unreasonable delay in the completion of a vehicle impound/storage or create an issue of officer safety, reasonable accommodations should be made to permit the owner, operator, or occupant to retrieve small items of value or personal need (e.g. cash, jewelry, cell phone, prescriptions) that are not considered evidence or contraband.

Members who become aware that a vehicle may have been towed by the [Department/Office] in error should promptly advise a supervisor. Supervisors should approve, when appropriate, the release of the vehicle without requiring the owner or the owner's agent to request a hearing to contest the tow.

#### **502.10 STORAGE OF VEHICLES**

A vehicle being impounded shall be stored at a state impound yard. A vehicle being removed but not impounded shall be stored at a state impound yard unless the registered owner has requested a different location and made payment to the tow truck operator at the time of removal (Utah Code 41-6a-1406).

## Impaired Driving

### 503.1 PURPOSE AND SCOPE

This policy provides guidance to those department members who play a role in the detection and investigation of driving under the influence (DUI).

### 503.2 POLICY

The American Fork Police Department is committed to the safety of the roadways and the community and will pursue fair but aggressive enforcement of Utah's impaired driving laws.

### 503.3 INVESTIGATIONS

Officers should not enforce DUI laws to the exclusion of their other duties unless specifically assigned to DUI enforcement. All officers are expected to enforce these laws with due diligence.

Command Staff should ensure that the Department utilizes report forms with appropriate checklists to assist investigating officers in documenting relevant information and maximizing efficiency. Any DUI investigation will be documented using these forms. Information documented elsewhere on the form does not need to be duplicated in the report narrative. Information that should be documented includes, at a minimum:

- (a) The field sobriety tests (FSTs) administered and the results.
- (b) The officer's observations that indicate impairment on the part of the individual, and the officer's health-related inquiries that may help to identify any serious health concerns (e.g., diabetic shock).
- (c) Sources of additional information (e.g., reporting party, witnesses) and their observations.
- (d) Information about any audio and/or video recording of the individual's driving or subsequent actions.
- (e) The location and time frame of the individual's vehicle operation and how this was determined.
- (f) Any prior related convictions in Utah or another jurisdiction.

### 503.4 FIELD TESTS

The Division Commander should identify the primary field sobriety tests (FSTs) and any approved alternate tests for officers to use when investigating violations of DUI laws.

### 503.5 CHEMICAL TESTS

A person implies consent under Utah law to a chemical test or tests, and to providing the associated chemical sample, under any of the following (Utah Code 41-6a-520):

- (a) The officer has reasonable grounds to believe that the person was operating or in actual physical control of a motor vehicle while:

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### *Impaired Driving*

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1. Having a prohibited blood or breath alcohol content level as defined by Utah Code 41-6a-502 (DUI) or Utah Code 41-6a-530 (Alcohol Restricted Drivers).
  2. Under the influence of alcohol, any drug or combination of alcohol and any drug.
  3. Having any measurable controlled substance or metabolite of a controlled substance in the person's body.
- (b) The officer has stopped a person under the age of 21 and has reasonable grounds to believe that the person was operating or in actual physical control of a vehicle or motorboat with a measurable blood, breath or urine alcohol concentration in the person's body (Utah Code 53-3-231).

If a person withdraws this implied consent, the officer should consider implied consent revoked and proceed as though the person has refused to provide a chemical sample.

#### 503.5.1 BREATH SAMPLES

The Administrative Sergeant should ensure that all devices used for the collection and analysis of breath samples are properly serviced and tested and that a record of such service and testing is properly maintained.

Officers obtaining a breath sample should monitor the device for any sign of malfunction. Any anomalies or equipment failures should be noted in the appropriate report and promptly reported to a supervisor.

#### 503.5.2 BLOOD SAMPLES

Only persons authorized by law to draw blood shall collect blood samples (Utah Code 41-6a-523; Utah Code 77-23-213). The blood draw should be witnessed by the assigned officer. No officer, even if properly certified, should perform this task.

Officers should inform an arrestee that if he/she chooses to provide a blood sample, a separate sample can be collected for alternate testing. Unless medical personnel object, two samples should be collected and retained as evidence, so long as only one puncture is required.

The blood sample shall be packaged, marked, handled, stored, and transported as required by the testing facility.

If an arrestee cannot submit to a blood draw because he/she has a bleeding disorder or has taken medication that inhibits coagulation, he/she shall not be required to take a blood test. Such inability to take a blood test should not be considered a refusal. However, that arrestee may be required to complete another available and viable test.

#### 503.5.3 URINE SAMPLES

If a urine test will be performed, the arrestee should be promptly transported to the appropriate testing site. The officer shall follow any directions accompanying the urine evidence collection kit.

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Urine samples shall be collected and witnessed by an officer or jail staff member of the same sex as the person giving the sample. The arrestee tested should be allowed sufficient privacy to maintain his/her dignity, to the extent possible, while still ensuring the accuracy of the sample.

The sample shall be marked with the person's name, offense, American Fork Police Department case number and the name of the witnessing officer. The sample may be refrigerated pending transportation for testing, and should be handled, stored, and transported as required by the testing facility.

#### **503.5.4 STATUTORY NOTIFICATIONS**

An officer requesting that a person submit to a chemical test shall provide the person with a mandatory warning pursuant to Utah Code 41-6a-520.

#### **503.6 REFUSALS**

When an arrestee refuses to provide a chemical sample, officers should:

- (a) Advise the arrestee of the requirement to provide a sample (Utah Code 41-6a-520).
- (b) Audio- and/or video-record the admonishment and the response when it is practicable.
- (c) Document the refusal in the appropriate report.

##### **503.6.1 STATUTORY NOTIFICATIONS UPON REFUSAL**

Upon refusal to submit to a chemical test as required by law, officers shall personally serve the notice of the Driver License Division's (DLD) intention to revoke the person's driving privilege or license upon the person (Utah Code 41-6a-520).

##### **503.6.2 BLOOD SAMPLE WITHOUT CONSENT**

A blood sample may be obtained from a person who refuses a chemical test when a search warrant has been obtained.

##### **503.6.3 FORCED BLOOD SAMPLE**

If an arrestee indicates by word or action that he/she will physically resist a blood draw, the officer should request a supervisor to respond.

The responding supervisor should:

- (a) Evaluate whether using force to obtain a blood sample is appropriate under the circumstances.
- (b) Ensure that all attempts to obtain a blood sample through force cease if the person agrees to, and completes, a viable form of testing in a timely manner.
- (c) Advise the person of his/her duty to provide a sample (even if this advisement was previously done by another officer), and attempt to persuade the individual to submit to such a sample without physical resistance. This dialogue should be recorded on audio and/or video when practicable.
- (d) Ensure that the blood sample is taken in a medically approved manner.

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- (e) Ensure that the forced blood draw is recorded on audio and/or video when practicable.
- (f) Monitor and ensure that the type and level of force applied appears reasonable under the circumstances. After a warrant is obtained, force which reasonably appears necessary to overcome the resistance to the blood draw may be permitted.
- (g) Ensure the use of force and methods used to accomplish the collection of the blood sample are documented in the related report.

If a supervisor is unavailable, officers are expected to use sound judgment and perform as a responding supervisor, as set forth above.

### **503.7 ARREST AND INVESTIGATION**

#### **503.7.1 ARREST AUTHORITY**

An officer may make a warrantless arrest of a person that the officer has probable cause to believe has violated the DUI laws of this state, whether or not the offense occurred in the officer's presence (Utah Code 41-6a-508).

#### **503.7.2 OFFICER RESPONSIBILITIES**

An officer serving a person with a notice of the DLD intention to revoke the person's driving privilege or license shall also (Utah Code 41-6a-520):

- (a) Provide the person with basic information regarding how to obtain a hearing before DLD.
- (b) Forward a report to DLD within 10 days of giving the notice to the person that the officer had reasonable grounds to believe the arrested person was DUI and that the person refused to submit to a chemical test as required by law.

#### **503.7.3 VEHICLE IMPOUNDMENT**

An officer who arrests a person for DUI shall seize and impound the vehicle the person was driving at the time of the arrest. If operable, the vehicle may be released upon request to the registered owner of the vehicle if the person is able to present proof of ownership, a valid driver license and that the person would not be in violation of the DUI laws of this state if permitted to operate the vehicle (Utah Code 41-6a-527).

#### **503.7.4 SELECTION OF CHEMICAL TEST**

The investigating officer shall determine which chemical test or tests to administer to a person and how many tests will be administered. In the event that an officer requests that the person submit to more than one test, refusal by the person to take one or more of the requested tests, even if the person has already submitted to one test, is nonetheless considered a refusal under state DUI laws (Utah Code 41-6a-520).

#### **503.7.5 ADDITIONAL TESTING**

A person may have qualified medical personnel administer an additional test, at the person's own expense. The additional test shall be administered subsequently to that which is administered at the direction of the officer (Utah Code 41-6a-520).

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#### **503.8 REPORTING**

The Records Supervisor shall ensure that the department complies with all reporting requirements pursuant to Utah Code 53-10-206.

#### **503.9 RECORDS SECTION RESPONSIBILITIES**

The Records Supervisor will ensure that all case-related records are transmitted according to current records procedures and as required by the prosecuting attorney's office.

#### **503.10 ADMINISTRATIVE HEARINGS**

The Records Supervisor will ensure that all appropriate reports and documents related to administrative license suspensions are reviewed and forwarded to DLD.

## Traffic Citations

### **504.1 PURPOSE AND SCOPE**

This policy outlines the responsibility for traffic citations, the procedure for dismissal, correction and voiding of traffic citations.

### **504.2 RESPONSIBILITIES**

The Administrative Sergeant shall be responsible for the development and design of all department traffic citations in compliance with state law and the Judicial Council.

### **504.3 ISSUANCE AND PROCESSING OF CITATIONS**

Unless otherwise mandated by law, traffic citations may be issued at the discretion of the officer. After a traffic citation is issued, it will be forwarded to the Records Division, which will be responsible for its official filing.

### **504.4 DISMISSAL OF TRAFFIC CITATIONS**

Employees of the Department do not have the authority to dismiss a citation once it has been issued. Only the court has the authority to dismiss a citation that has been issued (Utah Code 77-7-26). Any request from a recipient to dismiss a citation shall be referred to a supervisor. Upon a review of the circumstances involving the issuance of the traffic citation, the supervisor may request the Patrol Division Commander to recommend dismissal of the traffic citation. If approved, the citation will be forwarded to the appropriate court with a request for dismissal. All recipients of traffic citations whose request for the dismissal of a traffic citation has been denied shall be referred to the appropriate court.

Should an officer determine during a court proceeding that a traffic citation should be dismissed in the interest of justice or where prosecution is deemed inappropriate the officer may request the court to dismiss the citation. Upon dismissal of the traffic citation by the court, the officer shall notify his/her immediate supervisor of the circumstances surrounding the dismissal and shall complete any paperwork as directed or required. The citation dismissal shall then be forwarded to the Patrol Division Commander for review.

### **504.5 VOIDING TRAFFIC CITATIONS**

Voiding a traffic citation may occur when a traffic citation has not been completed or where it is completed but not issued. A citation that has been issued may not be voided.

### **504.6 CORRECTION OF TRAFFIC CITATIONS**

When a traffic citation is issued and in need of correction, the officer issuing the citation shall submit a written request for a specific correction to his or her immediate supervisor and the Records Division. The officer shall also be responsible to make any necessary notification of changes to the person who received the citation. If the citation has already been issued to the court, the Records Division shall make the necessary notifications to the court and/or prosecutor.

## Disabled Vehicles

### 505.1 PURPOSE AND SCOPE

All law enforcement agencies having responsibility for traffic enforcement should develop and adopt a written policy to provide assistance to motorists in disabled vehicles within the department's primary jurisdiction.

### 505.2 OFFICER RESPONSIBILITY

When an on-duty officer observes a disabled vehicle on the roadway, the officer should make a reasonable effort to provide assistance. If that officer is assigned to a call of higher priority, the dispatcher should be advised of the location of the disabled vehicle and the need for assistance. The dispatcher should then assign another officer to respond for assistance as soon as practical.

An officer may remove a vehicle that has been involved in a collision (or property from within the vehicle) without the consent of the owner if it is blocking a roadway or is otherwise endangering public safety (Utah Code 41-6a-401.9).

### 505.3 EXTENT OF ASSISTANCE

In most cases, a disabled motorist will require assistance. After arrangements for assistance are made, continued involvement by department personnel will be contingent on the time of day, the location, the availability of department resources and the vulnerability of the disabled motorist.

#### 505.3.1 MECHANICAL REPAIRS

Department personnel shall not make mechanical repairs to a disabled vehicle. The use of push bumpers to relocate vehicles to a position of safety is not considered a mechanical repair.

#### 505.3.2 RELOCATION OF DISABLED VEHICLES

The relocation of disabled vehicles by members of this department by pushing or pulling a vehicle should only occur when the conditions reasonably indicate that immediate movement is necessary to reduce a hazard presented by the disabled vehicle.

#### 505.3.3 RELOCATION OF MOTORIST

The relocation of a motorist with a disabled vehicle should only occur with the person's consent and should be suggested when conditions reasonably indicate that immediate movement is necessary to mitigate a potential hazard. The department member may stay with the disabled motorist or transport him/her to a safe area to await pickup.



# Abandoned Vehicles

## 506.1 PURPOSE AND SCOPE

This policy provides procedures for the removal, recording and storage of abandoned vehicles that are left unattended on a highway for a period in excess of 48 hours or on public or private property for a period in excess of seven days under the authority of Utah Code 41-6a-1408.

## 506.2 REMOVAL OF VEHICLES

Vehicles in violation of Utah Code 41-6a-1408 and by order of an officer of the Department shall be removed, at the owner's expense, by a tow truck motor carrier that meets the standards as described in Utah Code 72-9-601 et seq. Generally, AFPD officers will not be involved in removing abandoned vehicles from private property. If called upon, officers may check if a vehicle is stolen, but may not supply ownership information to the private property owner.

### 506.2.1 RECORDING OF VEHICLES IMPOUNDED

A Vehicle Impound Report Form shall be completed and sent to the Motor Vehicle Division before noon of the next business day after the date of the removal. A copy of this form shall also be forwarded to the Records Section. In accordance with Utah Code 41-6a-1406, the form shall include:

- The operator's name, if known.
- A description of the vehicle.
- The vehicle identification number.
- The license number, or other identification number issued by a state agency.
- The date, time, and place of impoundment.
- The reason for removal or impoundment.
- The name of the tow truck motor carrier who removed the vehicle.
- The location where the vehicle is stored.

### 506.2.2 VEHICLE STORAGE

Any vehicle in violation shall be stored at a state impound yard by the authorized tow truck motor carrier and a Vehicle Impound Report Form shall be completed by the officer authorizing the storage of the vehicle and the tow truck motor carrier (Utah Code 41-6a-1406).

## Traffic Collisions

### 507.1 PURPOSE AND SCOPE

This policy provides guidelines for responding to and investigating traffic collisions.

### 507.2 POLICY

It is the policy of the American Fork Police Department to respond to traffic collisions and render or summon aid to injured victims as needed. The [Department/Office] will investigate and prepare reports according to the established minimum reporting requirements with the goal of reducing the occurrence of collisions by attempting to identify the cause of the collision and through enforcing applicable laws. Unless restricted by law, traffic collision reports will be made available to the public upon request.

### 507.3 RESPONSE

Upon arriving at the scene, the responding member should assess the need for additional resources and summon assistance as appropriate. Generally, the member initially dispatched to the scene will be responsible for the investigation and report, if required, unless responsibility is reassigned by a supervisor.

A supervisor should be called to the scene when the incident:

- (a) Is within the jurisdiction of this [department/office] and there is:
  - 1. A life-threatening injury.
  - 2. A fatality.
  - 3. A City vehicle involved.
  - 4. A City official or employee involved.
  - 5. Involvement of an on- or off-duty member of this [department/office].
- (b) Is within another jurisdiction and there is:
  - 1. A City of American Fork vehicle involved.
  - 2. Involvement of an on-duty member of this [department/office].

#### 507.3.1 MEMBER RESPONSIBILITIES

Upon arriving at the scene, the responding member should consider and appropriately address:

- (a) Traffic direction and control.
- (b) Proper placement of emergency vehicles, cones, roadway flares, or other devices if available to provide protection for members, the public, and the scene.
- (c) First aid for any injured parties if it can be done safely (see the Medical Aid and Response Policy).
- (d) The potential for involvement of hazardous materials (see the Hazardous Material Response Policy).

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- (e) The need for additional support as necessary (e.g., traffic control, emergency medical services, fire department, hazardous materials response, tow vehicles).
  - 1. The fire department shall be immediately summoned for any fire hazard or hazardous materials at the scene of a collision. Members should take all reasonable measures to protect collision victims and themselves from fire injury.
- (f) Clearance and cleanup of the roadway.

#### **507.4 NOTIFICATION**

If a traffic collision involves a life-threatening injury or fatality, the responding officer shall notify the shift supervisor. The shift supervisor will ensure that further supervisory notification is made in accordance with the Major Incident Notification Policy, including notification to the Investigations Division. An Investigations Division supervisor shall assign a traffic accident investigator as appropriate.

##### **507.4.1 NOTIFICATION OF FAMILY**

In the event of a life-threatening injury or fatality, the supervisor responsible for the incident should ensure notification of the victim's immediate family. Notification should be made as soon as practicable following positive identification of the victim.

The identity of any person seriously injured or deceased in a traffic collision should not be released until notification is made to the victim's immediate family.

#### **507.5 INVESTIGATION**

When a traffic collision meets minimum reporting requirements the investigation should include, at a minimum:

- (a) Identification and interview of all involved parties.
- (b) Identification and interview of any witnesses.
- (c) A determination of whether a violation of law has occurred and the appropriate enforcement action.
- (d) Identification and protection of items of apparent evidentiary value.
- (e) Documentation of the incident as necessary (e.g., statements, measurements, photographs, collection of evidence, reporting) on the appropriate forms.

##### **507.5.1 INVESTIGATION BY OUTSIDE LAW ENFORCEMENT AGENCY**

The on-duty shift supervisor should request that an outside law enforcement agency investigate and complete a traffic collision investigation when a traffic collision occurs within the jurisdiction of the American Fork Police Department and involves:

- (a) An on- or off-duty member of the [Department/Office] or a member of their immediate family.
- (b) An on- or off-duty official or employee of the City of American Fork or a member of their immediate family.
- (c) A Department vehicle of any kind.

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If the collision occurred outside the jurisdiction of the American Fork Police Department, the collision investigation and report should be completed by the agency having jurisdiction.

#### **507.6 MINIMUM REPORTING REQUIREMENTS**

A collision report shall be taken when (Utah Code 41-6a-402):

- (a) A fatality, any injury (including complaint of pain), driving under the influence, or hit-and-run is involved.
- (b) An on-duty member of the City of American Fork is involved.
- (c) The collision results in any damage to any City-owned or leased vehicle.
- (d) The collision involves any other public agency driver or vehicle.
- (e) There is damage to public property.
- (f) There is damage to any vehicle to the extent that towing is required.
- (g) Prosecution or follow-up investigation is contemplated.
- (h) Directed by a supervisor.
- (i) A report is requested by any involved driver.
- (j) There is total property damage that appears to exceed \$2,500.

##### **507.6.1 PRIVATE PROPERTY**

Traffic collision reports shall be taken for traffic collisions occurring on private property when the collision results in injury to or death of any person or total property damage appears to exceed \$2,500 (Utah Code 41-6a-402). An incident report may also be taken at the discretion of any supervisor.

##### **507.6.2 REPORTING OF DEPARTMENT VEHICLE COLLISIONS**

Whenever a Department vehicle is involved in a traffic collision, or there is damage to a City vehicle, the Department member responsible for the vehicle shall promptly notify their immediate supervisor. The Department member responsible for the vehicle shall also submit a memorandum describing the collision and property damage in detail to their supervisor and their Division Commander as soon as is practicable following the incident.

The officer taking the traffic collision report or a supervisor at the scene should determine what photographs should be taken of the scene and the vehicle damage. A general information report may be taken in lieu of a traffic collision report at the direction of a supervisor when the incident occurs entirely on private property or does not involve another vehicle.

##### **507.6.3 INJURED ANIMALS**

[Department/Office] members should refer to the Animal Control Policy when a traffic collision involves the disposition of an injured animal.

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#### 507.6.4 TRAFFIC COLLISIONS INVOLVING LIVESTOCK

An officer investigating a collision shall indicate in the report whether the collision occurred on a highway designated as a livestock highway, in accordance with Utah Code 72-3-112, when the collision resulted in the injury or death of livestock (Utah Code 41-6a-404).

An officer investigating such a collision shall make reasonable efforts as soon as practicable to (Utah Code 41-6a-408):

- (a) Locate and inform the owner of the livestock of the incident.
- (b) Make arrangements with the owner of the livestock to provide a copy of the collision report or advise the owner where a copy can be obtained.

#### 507.7 ENFORCEMENT ACTION

After a thorough investigation in which physical evidence or independent witness statements indicate that a violation of a traffic law contributed to the collision, authorized members should issue a citation or arrest the offending driver, as appropriate.

More serious violations, such as driving under the influence of drugs or alcohol, vehicular manslaughter, or other felonies, shall be enforced. If a driver who is subject to enforcement action is admitted to a hospital, a supervisor shall be contacted to determine the best enforcement option.

#### 507.7.1 TRAFFIC COLLISIONS INVOLVING SERIOUS INJURY OR DEATH

An officer who issues a citation to a person for a moving traffic violation that results in a collision causing serious bodily injury or death shall note that fact on the citation (Utah Code 41-6a-202).

#### 507.8 REPORTS

Members shall utilize forms approved by the Utah Department of Transportation (UDOT) as required for the reporting of traffic collisions. All such reports shall be forwarded to a supervisor for approval.

#### 507.8.1 REPORT MODIFICATION

A change or modification of a written report that alters a material fact in the report may be made only by the member who prepared the report, and only prior to its final approval by their supervisor.. Once a report has been approved by the member's supervisor, corrections shall only be made by way of a written supplemental report. A written supplemental report may be made by any authorized member.

## **Chapter 6 - Investigation Operations**

# Investigation and Prosecution

## 600.1 PURPOSE AND SCOPE

The purpose of this policy is to set guidelines and requirements pertaining to the handling and disposition of criminal investigations.

## 600.2 POLICY

It is the policy of the American Fork Police Department to investigate crimes thoroughly and with due diligence, and to evaluate and prepare criminal cases for appropriate clearance or submission to a prosecutor.

## 600.3 INITIAL INVESTIGATION

An on-call detective shall be available 24 hours per day, 7 days per week to respond for crime scene investigations as necessary.

### 600.3.1 OFFICER RESPONSIBILITIES

An officer responsible for an initial investigation shall complete no less than the following:

- (a) Make a preliminary determination of whether a crime has been committed by completing, at a minimum:
  - 1. An initial statement from any witnesses or complainants.
  - 2. A cursory examination for evidence.
- (b) If information indicates a crime has occurred, the officer shall:
  - 1. Preserve the scene and any evidence as required to complete the initial and follow-up investigation.
  - 2. Determine if additional investigative resources (e.g., investigators or scene processing) are necessary and request assistance as required.
  - 3. If assistance is warranted, or if the incident is not routine, notify a supervisor or the Shift Sergeant.
  - 4. Make reasonable attempts to locate, identify and interview all available victims, complainants, witnesses and suspects.
  - 5. Collect any evidence.
  - 6. Take any appropriate law enforcement action.
  - 7. Complete and submit the appropriate reports and documentation.
- (c) If the preliminary determination is that no crime occurred, determine what other action may be necessary, what other resources may be available, and advise the informant or complainant of this information.

### 600.3.2 NON-SWORN MEMBER RESPONSIBILITIES

A non-sworn member assigned to any preliminary investigation is responsible for all investigative steps, except making any attempt to locate, contact or interview a suspect face-to-face or take

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any enforcement action. Should an initial investigation indicate that those steps are required, the assistance of an officer shall be requested.

#### **600.3.3 CRIME SCENE PROCESSING**

The [Department/Office] has access to crime scene investigators on a 24-hour basis to process crime scenes. The Shift Sergeant or the authorized designee shall notify the appropriate members or agency when investigative or processing assistance is needed.

#### **600.4 CUSTODIAL INTERROGATION REQUIREMENTS**

Suspects who are in custody and subjected to an interrogation shall be given the *Miranda* warning, unless an exception applies. Interview or interrogation of a juvenile shall be in accordance with the Temporary Custody of Juveniles Policy.

##### **600.4.1 AUDIO/VIDEO RECORDINGS**

Any custodial interrogation of an individual who is suspected of having committed any violent felony offense as defined in Utah Code 76-3-203.5(1)(c)(i) should be recorded (audio or video with audio as available) in its entirety. Regardless of where the interrogation occurs, every reasonable effort should be made to secure functional recording equipment to accomplish such recordings.

Consideration should also be given to recording a custodial interrogation, or any investigative interview, for any other offense when it is reasonable to believe it would be appropriate and beneficial to the investigation and is otherwise allowed by law.

No recording of a custodial interrogation should be destroyed or altered without written authorization from the prosecuting attorney and the Investigation Unit supervisor. Copies of recorded interrogations or interviews may be made in the same or a different format as the original recording, provided the copies are true, accurate, and complete and are made only for authorized and legitimate law enforcement purposes.

Recordings should not take the place of a thorough report and investigative interviews. Written statements from suspects should continue to be obtained when applicable.

#### **600.5 DISCONTINUATION OF INVESTIGATIONS**

The investigation of a criminal case or efforts to seek prosecution should only be discontinued if one of the following applies:

- (a) All reasonable investigative efforts have been exhausted, no reasonable belief that the person who committed the crime can be identified, and the incident has been documented appropriately.
- (b) The perpetrator of a misdemeanor has been identified and a warning is the most appropriate disposition.
  - 1. In these cases, the investigator shall document that the person was warned and why prosecution was not sought.
  - 2. Warnings shall not be given for felony offenses or other offenses identified in this policy or by law that require an arrest or submission of a case to a prosecutor.



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- (c) The case has been submitted to the appropriate prosecutor but no charges have been filed. Further investigation is not reasonable nor has the prosecutor requested further investigation.
- (d) The case has been submitted to the appropriate prosecutor, charges have been filed, and further investigation is not reasonable, warranted or requested, and there is no need to take the suspect into custody.
- (e) Suspects have been arrested, there are no other suspects, and further investigation is either not warranted or requested.
- (f) Investigation has proven that a crime was not committed (see the Sexual Assault Investigations Policy for special considerations in these cases).

The Domestic Violence, Child Abuse, Sexual Assault Investigations and Adult Abuse policies may also require an arrest or submittal of a case to a prosecutor.

#### **600.6 COMPUTERS AND DIGITAL EVIDENCE**

The collection, preservation, transportation and storage of computers, cell phones and other digital devices may require specialized handling to preserve the value of the related evidence. If it is anticipated that computers or similar equipment will be seized, officers should request that computer forensic examiners assist with seizing computers and related evidence. If a forensic examiner is unavailable, officers should take reasonable steps to prepare for such seizure and use the resources that are available.

#### **600.7 INVESTIGATIVE USE OF SOCIAL MEDIA AND INTERNET SOURCES**

Use of social media and any other internet source to access information for the purpose of criminal investigation shall comply with applicable laws and policies regarding privacy, civil rights, and civil liberties. Information gathered via the internet should only be accessed by members while on-duty and for purposes related to the mission of this [department/office]. If a member encounters information relevant to a criminal investigation while off-duty or while using the member's own equipment, the member should note the dates, times, and locations of the information and report the discovery to the member's supervisor as soon as practicable. The member, or others who have been assigned to do so, should attempt to replicate the finding when on-duty and using [department/office] equipment.

Information obtained via the internet should not be archived or stored in any manner other than [department/office]-established record keeping systems (see the Records Maintenance and Release and Criminal Organizations policies).

##### **600.7.1 ACCESS RESTRICTIONS**

Information that can be accessed from any [department/office] computer, without the need of an account, password, email address, alias, or other identifier (unrestricted websites), may be accessed and used for legitimate investigative purposes without supervisory approval.

Accessing information from any internet source that requires the use or creation of an account, password, email address, alias, or other identifier, or the use of nongovernment IP addresses,

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requires supervisor approval prior to access. The supervisor will review the justification for accessing the information and consult with legal counsel as necessary to identify any policy or legal restrictions. Any such access and the supervisor approval shall be documented in the related investigative report.

Accessing information that requires the use of a third party's account or online identifier requires supervisor approval and the consent of the third party. The consent must be voluntary and shall be documented in the related investigative report.

Information gathered from any internet source should be evaluated for its validity, authenticity, accuracy, and reliability. Corroborative evidence should be sought and documented in the related investigative report.

Any information collected in furtherance of an investigation through an internet source should be documented in the related report. Documentation should include the source of information and the dates and times that the information was gathered.

#### **600.7.2 INTERCEPTING ELECTRONIC COMMUNICATION**

Intercepting social media communications in real time may be subject to federal and state wiretap laws. Officers should seek legal counsel before any such interception.

#### **600.8 MODIFICATION OF CHARGES FILED**

Members are not authorized to recommend to the prosecutor or to any other official of the court that charges on a pending case be amended or dismissed without the authorization of a Division Commander or the Chief of Police. Any authorized request to modify the charges or to recommend dismissal of charges shall be made to the prosecutor.

#### **600.9 IDENTITY THEFT**

A report should be taken any time a person living within the jurisdiction of the [Department/Office] reports that the person has been a victim of identity theft. This includes:

- (a) Taking a report, even if the location of the crime is outside the jurisdiction of this [department/office] or has not been determined.
- (b) Providing the victim with the appropriate information, as set forth in the Victim and Witness Assistance Policy. [Department/Office] members should encourage the individual to review the material and should assist with any questions.

A report should also be taken if a person living outside [department/office] jurisdiction reports an identity theft that may have been committed or facilitated within this jurisdiction (e.g., use of a post office box in American Fork to facilitate the crime).

A member investigating a case of identity theft should ensure that the case is referred to the appropriate agency if it is determined that this [department/office] should not be the investigating agency (e.g., an identity theft ring working from out of state). The victim should be advised that the case is being transferred to the agency of jurisdiction. The appropriate entries should be made

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into any databases that have been authorized for [department/office] use and are specific to this type of investigation.

# Sexual Assault Investigations

## 601.1 PURPOSE AND SCOPE

The purpose of this policy is to establish guidelines for the investigation of sexual assaults (Utah Code 53-25-201). These guidelines will address some of the unique aspects of such cases and the effects that these crimes have on the victims.

Mandatory notifications requirements are addressed in the Child Abuse and Adult Abuse policies.

### 601.1.1 DEFINITIONS

Definitions related to this policy include:

**Restricted sexual assault kit** - A sexual assault kit collected from a victim who is at least 18 years old and at the time of collection declines to have the kit processed or to have the examination form shared with any entity outside of the collection facility (Utah Code 53-10-902).

**Sexual assault** - Any crime or attempted crime of a sexual nature, to include but not limited to offenses defined in Utah Code, Title 76, Chapter 5, Part 4 (Sexual Offenses).

**Sexual assault kit** - A package of items that is used by medical personnel to gather and preserve biological and physical evidence following an allegation of a sexual offense (Utah Code 53-10-902).

**Sexual Assault Response Team (SART)** - A multidisciplinary team generally comprised of advocates; law enforcement officers; forensic medical examiners, including sexual assault forensic examiners (SAFEs) or sexual assault nurse examiners (SANEs) if possible; forensic laboratory personnel and prosecutors. The team is designed to coordinate a broad response to sexual assault victims.

## 601.2 POLICY

It is the policy of the American Fork Police Department that its members, when responding to reports of sexual assaults, will strive to minimize the trauma experienced by the victims, and will aggressively investigate sexual assaults, pursue expeditious apprehension and conviction of perpetrators, and protect the safety of the victims and the community.

## 601.3 QUALIFIED INVESTIGATORS

Qualified investigators should be available for assignment of sexual assault investigations. These investigators should:

- (a) Have specialized training in, and be familiar with, interview techniques and the medical and legal issues that are specific to sexual assault investigations.
- (b) Conduct follow-up interviews and investigation.
- (c) Present appropriate cases of alleged sexual assault to the prosecutor for review.
- (d) Coordinate with other enforcement agencies, social service agencies and medical personnel as needed.

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- (e) Provide referrals to therapy services, victim advocates and support for the victim.
- (f) Participate in or coordinate with the SART or other multidisciplinary investigative teams as applicable.

#### **601.4 REPORTING**

In all reported or suspected cases of sexual assault, a report should be written and assigned for follow-up investigation. This includes incidents in which the allegations appear unfounded or unsubstantiated.

##### **601.4.1 VICTIM CONFIDENTIALITY**

Officers investigating or receiving a report of an alleged sex offense may keep the identity of the victim and the report confidential if any of the following circumstances are present (Utah Code 63G-2-302; Utah Code 63G-2-305):

- (a) The report would reveal the victim's medical history, diagnosis, condition, treatment, evaluation or similar medical data.
  - 1. Medical records may also include statements relative to medical history, diagnosis, condition, treatment and evaluation.
- (b) The disclosure of the report would jeopardize the life or safety of an individual.
- (c) The disclosure of the report could be expected to interfere with the investigation.

#### **601.5 RELEASING INFORMATION TO THE PUBLIC**

In cases where the perpetrator is not known to the victim, and especially if there are multiple crimes where more than one appear to be related, consideration should be given to releasing information to the public whenever there is a reasonable likelihood that doing so may result in developing helpful investigative leads. The Investigation Unit supervisor should weigh the risk of alerting the suspect to the investigation with the need to protect the victim and the public, and to prevent more crimes.

#### **601.6 TRAINING**

Subject to available resources, periodic training should be provided to:

- (a) Members who are first responders. Training should include:
  - 1. Initial response to sexual assaults.
  - 2. Legal issues.
  - 3. Victim advocacy.
  - 4. Victim's response to trauma.
- (b) Qualified investigators, who should receive advanced training on additional topics. Advanced training should include:
  - 1. Interviewing sexual assault victims.
  - 2. SART or multidisciplinary response team

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3. Medical and legal aspects of sexual assault investigations.
4. Serial crimes investigations.
5. Use of community and other federal and state investigative resources, such as the Violent Criminal Apprehension Program (VICAP).
6. Techniques for communicating with victims to minimize trauma.

#### **601.7 VICTIM INTERVIEWS**

The primary considerations in sexual assault investigations, which begin with the initial call to Dispatch, should be the health and safety of the victim, the preservation of evidence, and preliminary interviews to determine if a crime has been committed and to attempt to identify the suspect.

An in-depth follow-up interview should not be conducted until after the medical and forensic examinations are completed and the personal needs of the victim have been met (e.g., change of clothes, bathing). The follow-up interview may be delayed to the following day based upon the circumstances. Whenever practicable, the follow-up interview should be conducted by a qualified investigator.

No opinion of whether the case is unfounded should be included in a report.

Victims should not be asked or required to take a polygraph examination (34 USC § 10451).

Victims should be apprised of applicable victim's rights provisions, as outlined in the Victim and Witness Assistance Policy.

##### **601.7.1 NOTIFICATION UPON ARREST OR ISSUANCE OF A CITATION**

When an officer arrests or issues a citation to a person 18 years of age or older for a qualifying sexual offense, the officer shall provide the individual with the written notice required by Utah Code 78B-7-802. Victims shall be provided notice in accordance with the Victim and Witness Assistance Policy.

##### **601.7.2 MEMBER RESPONSIBILITIES**

A victim, or victim's designee, should be informed of applicable victim's rights, including the rights for victims of sexual offenses (Utah Code 77-37-3). Investigating members shall, in a timely manner, provide the victim or the victim's designee with the information required by Utah Code 77-37-3 (e.g., DNA profile obtained, CODIS matches), including, if requested, any significant changes in the information. A victim, or victim's designee, should also be informed as to available sexual assault support services as appropriate.

#### **601.8 DISPOSITION OF CASES**

If the assigned investigator has reason to believe the case is without merit, the case may be classified as unfounded only upon review and approval of the Investigation Unit supervisor.

Classification of a sexual assault case as unfounded requires the Investigation Unit supervisor to determine that the facts have significant irregularities with reported information and that the

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incident could not have happened as it was reported. When a victim has recanted his/her original statement, there must be corroborating evidence that the allegations were false or baseless (i.e., no crime occurred) before the case should be determined as unfounded.

#### **601.9 COLLECTION AND TESTING OF BIOLOGICAL EVIDENCE**

When the facts of the case indicate that collection of biological evidence is warranted, it should be collected regardless of how much time has elapsed since the reported assault.

If a drug-facilitated sexual assault is suspected, urine and blood samples should be collected from the victim as soon as practicable.

Subject to the requirements set forth in this policy, biological evidence from all sexual assault cases, including cases where the suspect is known by the victim, should be submitted for testing.

Victims who choose not to assist with an investigation, do not desire that the matter be investigated or wish to remain anonymous may still consent to the collection of evidence under their control. In these circumstances, the evidence should be collected and stored appropriately.

##### **601.9.1 DNA TEST RESULTS**

Members investigating sexual assault cases should ensure that a victim, or their designee, is notified of any DNA test results as soon as reasonably practicable (Utah Code 77-37-3).

Members should deliver biological testing results to a victim in a manner that minimizes victim trauma, especially in cases where there has been a significant delay in getting biological testing results (e.g., delays in testing the evidence or delayed DNA databank hits). Members should make reasonable efforts to assist the victim by providing available information on local assistance programs and organizations as provided in the Victim and Witness Assistance Policy.

Members investigating sexual assaults cases should ensure that DNA results are entered into databases when appropriate and as soon as practicable.

##### **601.9.2 COLLECTION AND TESTING REQUIREMENTS**

Members investigating sexual assaults or handling related evidence are required to:

- (a) Notify the victim, or the victim's designee, if evidence will not be analyzed in a case involving an unknown perpetrator (Utah Code 77-37-3).
- (b) Take possession of sexual assault kits as soon as possible and within one business day after receiving notice from a collecting facility (Utah Code 53-10-904; Utah Code 53-10-907).
  - 1. The member taking possession of the kit shall ensure that the required information is entered into the statewide sexual assault kit tracking system within five days of receiving the kit from a collection facility.
- (c) Transfer the kit to the appropriate law enforcement agency within 10 days in cases where the incident occurred in another jurisdiction (Utah Code 53-10-904).
- (d) Submit the kit to the Utah Bureau of Forensic Services within 30 days of obtaining possession of the kit except for cases involving restricted kits (restricted kits may not

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be submitted to the Utah Bureau of Forensic Services unless the status is changed to unrestricted) (Utah Code 53-10-904).

1. If available, a suspect standard or a consensual partner elimination standard shall be submitted with the sexual assault kit.
2. If not obtained until later, the standards shall be submitted as soon as possible but no later than 30 days after the [Department/Office] obtained possession of the kit.
3. If the victim informs the American Fork Police Department that the victim wants to have the kit processed and agrees to release of the sexual assault examination form with the kit, the kit may no longer be classified as restricted and shall be submitted to the Utah Bureau of Forensic Services as soon as possible, but no later than 30 days after the victim chooses to unrestrict the kit (Utah Code 53-10-904).

All sexual assault kit retention periods and victim notification requirements set out in state law must be followed. Additional guidance regarding evidence retention and destruction is found in the Property and Evidence Policy.

#### **601.10 CASE REVIEW**

The Investigation Unit supervisor should ensure case dispositions are reviewed on a periodic basis using an identified group that is independent of the investigation process.

#### **601.11 PUBLIC ACCESS**

This policy shall be published on the [Department/Office] website for public access (Utah Code 53-25-201).



# Asset Forfeiture

## 602.1 PURPOSE AND SCOPE

This policy describes the authority and procedure for the seizure, forfeiture and liquidation of property associated with specified designated offenses.

### 602.1.1 DEFINITIONS

Definitions related to this policy include:

**Contraband** - Any item that is unlawful to produce or possess under state or federal law, including controlled substances possessed, transferred, or distributed in violation of the Utah Controlled Substances Act and computers used to commit crimes involving child sexual abuse material or identity theft (Utah Code 77-11a-101).

**Forfeiture** - The process by which legal ownership of an asset is transferred to a government or other authority.

**Forfeiture specialist** - The [department/office] member assigned by the Chief of Police who is responsible for reviewing all forfeiture cases and for acting as the liaison between the [Department/Office] and the assigned attorney, and who shall receive and maintain all state-required trainings and certifications required by state law.

**Property subject to forfeiture** - Seized property that has been used to facilitate the commission of a federal or state offense and seized proceeds when authorized under Utah Code 77-11b-102 (Utah Code 77-11a-101).

**Seizure** - The act of law enforcement officials taking property, cash, or assets that have been used in connection with or acquired by specified illegal activities.

## 602.2 POLICY

The American Fork Police Department recognizes that appropriately applied forfeiture laws are helpful to enforce the law, deter crime and reduce the economic incentive of crime. However, the potential for revenue should never compromise the effective investigation of criminal offenses, officer safety or any person's due process rights.

It is the policy of the American Fork Police Department that all members, including those assigned to internal or external law enforcement task force operations, shall comply with all state and federal laws pertaining to forfeiture.

## 602.3 ASSET SEIZURE

Property and contraband may be seized for forfeiture as provided in this policy.

### 602.3.1 PROPERTY AND CONTRABAND SUBJECT TO SEIZURE

- (a) Property and contraband that may be seized upon review and approval of a supervisor and in coordination with the forfeiture specialist includes (Utah Code 77-11a-201):

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1. Property subject to forfeiture that has been identified in a court order or is the subject of a prior judgment.
2. Property and contraband subject to forfeiture that is seized upon the authority of a search or administrative warrant.
- (b) Property and contraband subject to forfeiture can be lawfully seized without a court order when the seizure is incident to arrest or when there is probable cause to believe:
  1. It is directly or indirectly dangerous to health or safety.
  2. It is evidence of an offense.
  3. It has been used or was intended to be used to commit an offense.
  4. It constitutes the proceeds of an offense.

Whenever practicable, obtaining a court order for seizure prior to making a seizure is the preferred method.

A large amount of money standing alone is insufficient to establish the probable cause required to make a seizure.

#### 602.3.2 PROPERTY NOT SUBJECT TO SEIZURE

Property that should not be seized for forfeiture includes (Utah Code 77-11b-102):

- (a) Property that does not meet the forfeiture counsel's current minimum forfeiture guidelines.
- (b) A motor vehicle used in a violation of driving under the influence of alcohol and/or drugs (Utah Code 41-6a-502); driving with any measurable controlled substance in the body (Utah Code 41-6a-517); negligently operating a vehicle resulting in injury (Utah Code 76-5-102.1); automobile homicide (Utah Code 76-5-207); or a local DUI ordinance may not be forfeited unless any of the following apply:
  1. The operator of the vehicle has previously been convicted of a specified offense committed after May 12, 2009.
  2. The operator of the vehicle was driving on a denied, suspended, revoked, or disqualified license and the denial, suspension, revocation, or disqualification was imposed based upon specified violations.
- (c) Property used to facilitate specific crimes related to pornography or material harmful to children (Utah Code 76-5c-202; Utah Code 76-5c-204; Utah Code 76-5c-205; Utah Code 76-5c-305) if the seizure would constitute a prior restraint or interference with a person's rights under the First Amendment to the U.S. Constitution or the Utah Constitution.
- (d) Property seized incident to an arrest solely for possession of a controlled substance or controlled substance analog under Utah Code 58-37-8(2)(a)(i).
- (e) Firearms belonging to an individual charged with possessing a firearm in a secure area of an airport if the individual may otherwise lawfully possess the firearm (Utah Code 24-4-102).

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#### **602.4 PROCESSING SEIZED PROPERTY FOR FORFEITURE**

When property subject to this policy is seized, the officer making the seizure should ensure compliance with the following (Utah Code 77-11a-203):

- (a) Complete the applicable seizure forms and present the appropriate copy to the person from whom the property is seized. If property is seized from more than one person, a separate copy must be provided to each person, specifying the items seized. When property is seized and no one claims an interest in the property, the officer must leave the copy in the place where the property was found, if it is reasonable to do so.
- (b) Complete and submit a report and original seizure forms within 24 hours of the seizure, if practicable.
- (c) Forward the original seizure forms and related reports to the forfeiture specialist within two days of seizure.

The officer will book seized property as evidence with the notation in the comment section of the property form, "Seized Subject to Forfeiture." Property seized subject to forfeiture should be booked on a separate property form. No other evidence from the case should be booked on this form.

Photographs should be taken of items seized, particularly cash, jewelry, and other valuable items.

Officers who suspect property may be subject to seizure but are not able to seize the property (e.g., the property is located elsewhere, the whereabouts of the property is unknown, it is real estate, bank accounts, non-tangible assets) should document and forward the information in the appropriate report to the forfeiture specialist.

#### **602.5 MAINTAINING SEIZED PROPERTY**

The Property and Evidence Section supervisor is responsible for ensuring compliance with the following:

- (a) All property received for forfeiture is reasonably secured and properly stored to prevent waste and preserve its condition (Utah Code 77-11a-204).
- (b) All property received for forfeiture is checked to determine if the property has been stolen.
- (c) Cash and other negotiable instruments are deposited into a restricted interest-bearing account designated solely for property subject to forfeiture within 30 days of seizure (Utah Code 77-11a-204).
- (d) All property received for forfeiture is retained until forfeiture is finalized or the property is returned to the claimant or the person with an ownership interest.
- (e) Property received for forfeiture is not used by the [Department/Office] unless the forfeiture action has been completed.
- (f) Associated documentation complies with Utah Code 77-11a-203.

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#### 602.5.1 IDENTIFICATION AND TRACKING OF SEIZED PROPERTY

The Property and Evidence Section supervisor shall identify and track all seized property in the same manner as booked evidence (see the Property and Evidence Policy).

#### 602.6 FORFEITURE REVIEWER

The Chief of Police will appoint a forfeiture specialist. Prior to assuming duties, or as soon as practicable thereafter, the forfeiture specialist shall attend a course approved by the [Department/Office] on asset forfeiture (Utah Code 77-11b-105), shall obtain the state asset specialist certification, and shall maintain a current certification thereafter.

The responsibilities of the forfeiture specialist include:

- (a) Remaining familiar with forfeiture laws, and the forfeiture policies of the forfeiture counsel.
- (b) Serving as the liaison between the [Department/Office] and the forfeiture counsel and ensuring prompt legal review of all seizures.
- (c) Making reasonable efforts to obtain annual training that includes best practices in pursuing, seizing, and tracking forfeitures.
- (d) Deciding whether the forfeiture is more appropriately made under state or federal forfeiture laws (Utah Code 77-11a-205). The forfeiture specialist should contact federal authorities when appropriate.
- (e) Ensuring that responsibilities are clearly established whenever multiple agencies are cooperating in a forfeiture case.
- (f) Ensuring that seizure forms are available and appropriate for [department/office] use. These should include notice forms, a receipt form, and a checklist that provides relevant guidance to officers. The forms should be available in languages appropriate for the region and should contain spaces for:
  - 1. Names and contact information for all relevant persons and law enforcement officers involved.
  - 2. Information as to how ownership or other property interests may have been determined (e.g., verbal claims of ownership, titles, public records).
  - 3. A space for the signature of the person from whom property is being seized.
  - 4. A tear-off portion or copy, which should be given to the person from whom property is being seized, that includes the legal authority for the seizure, information regarding the process to contest the seizure, and a detailed description of the items seized.
  - 5. Any other information that may be needed to comply with Utah Code 77-11a-203.
- (g) Ensuring that those who may be involved in asset forfeiture receive training in the proper use of the seizure forms and the forfeiture process. The training should be developed in consultation with the appropriate legal counsel and may be accomplished through traditional classroom education, electronic media, Daily Training Bulletins

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(DTBs), or General Orders. The training should cover this policy and address any relevant statutory changes and court decisions.

- (h) Reviewing each asset forfeiture case to ensure that:
  - 1. Written documentation of the seizure and the items seized is in the case file.
  - 2. Independent legal review of the circumstances and propriety of the seizure is made in a timely manner (Utah Code 77-11b-201).
  - 3. The notice of intent to seek forfeiture has been given in a timely manner to those who hold an interest in the seized property (Utah Code 77-11b-201).
    - (a) Prior to serving the notice, a search of public records shall be completed to identify the name and address of each interest holder of the property (Utah Code 77-11b-201).
  - 4. Property is promptly released to those entitled to its return (Utah Code 77-11a-301; Utah Code 77-11a-304; Utah Code 77-11b-203).
  - 5. All changes to forfeiture status are forwarded to any supervisor who initiates a forfeiture case.
  - 6. Any cash received is delivered to the Property and Evidence Section supervisor to be deposited.
  - 7. Assistance with the resolution of ownership claims and the release of property to those entitled is provided.
  - 8. Current minimum forfeiture thresholds are communicated appropriately to officers.
  - 9. A copy of the property receipt is kept in the case file and, if the property is transferred to another agency, a copy of the receipt is provided along with the property (Utah Code 77-11a-203).
  - 10. Any records of a related interview of a child are retained pursuant to Utah Code 53-13-110.5.
  - 11. The request for a forfeiture action has been presented to the forfeiture attorney as provided in Utah Code 77-11b-201.
- (i) Ensuring that the [Department/Office] disposes of property as provided by law following any forfeiture (Utah Code 77-11b-401).
- (j) Ensuring this policy and any related policies are periodically reviewed and updated to reflect current federal and state statutes and case law.

Forfeiture proceeds should be maintained in a separate fund or account subject to appropriate accounting control, with regular reviews or audits of all deposits and expenditures.

Forfeiture reporting and expenditures should be completed in the manner prescribed by the law and City financial directives (Utah Code 77-11b-404).

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A written plan should be available that enables the Chief of Police to address any extended absence of the forfeiture reviewer, thereby ensuring that contact information for other law enforcement officers and attorneys who may assist in these matters is available.

#### **602.7 DISPOSITION OF FORFEITED PROPERTY**

No property seized shall be transferred, sold, or auctioned to an employee of this [department/office] (Utah Code 77-11a-204).

No member of this [department/office] may use property that has been seized for forfeiture until the forfeiture action has been completed and the Chief of Police has given written authorization to retain the property for official use. No [department/office] member involved in the decision to seize property should be involved in any decision regarding the disposition of the property.

Any property, money, or other items of value received by this [department/office] pursuant to a federal forfeiture shall be used in compliance with federal laws and regulations relating to equitable sharing (Utah Code 77-11a-205). Such property may be used to fund crime prevention and law enforcement activities described in Utah Code 77-11b-403(10). State law prohibits the use of property or money received to be used for such things as salaries, benefits, any expenses not related to law enforcement, and other purposes specified in Utah Code 77-11b-403(11).

Money received as a result of a federal forfeiture may only be used as approved by the City council (Utah Code 77-11a-205).

#### **602.8 LIMITATION ON FEES FOR HOLDING SEIZED PROPERTY**

The [Department/Office] will not charge a person contesting a forfeiture any fee or cost for holding seized property as the result of any civil or criminal forfeiture in which a judgment is entered in favor of the person, or where a forfeiture proceeding is voluntarily dismissed by the prosecuting attorney (Utah Code 77-11b-306).

# Informants

## 603.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for the use of informants.

### 603.1.1 DEFINITIONS

Definitions related to this policy include:

**Informant** - A person who covertly interacts with other individuals or suspects at the direction of, request of, or by agreement with the American Fork Police Department for law enforcement purposes. This also includes a person agreeing to supply information to the American Fork Police Department for a benefit (e.g., a quid pro quo in the form of a reduced criminal penalty, money).

## 603.2 POLICY

The American Fork Police Department recognizes the value of informants to law enforcement efforts and will strive to protect the integrity of the informant process. It is the policy of this department that all funds related to informant payments will be routinely audited and that payments to informants will be made according to the criteria outlined in this policy.

## 603.3 USE OF INFORMANTS

### 603.3.1 JUVENILE INFORMANTS

The use of juvenile informants under the age of 13-years is prohibited.

In all cases, a juvenile 13 years of age or older may only be used as an informant with the written consent of each of the following:

- (a) The juvenile's parents or legal guardians
- (b) The juvenile's attorney, if any
- (c) The court in which the juvenile's case is being handled, if applicable
- (d) The Chief of Police or the authorized designee

### 603.3.2 INITIAL APPROVAL

Before using an individual as an informant, an officer must receive approval from his/her supervisor. The officer shall compile sufficient information through a background investigation and experience with the informant in order to determine the suitability of the individual, including age, maturity and risk of physical harm, as well as any indicators of his/her reliability and credibility. When considering an individual to be engaged as an informant, the department member should include the following in his/her investigation: check the subject for warrants and AP&P restrictions; check informant in RISS/DICE; debrief the informant and verify all information; corroborate information through independent investigation; determine the informant's motive; and consult with the prosecuting attorney when working with a defendant informant.

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Members of this department should not guarantee absolute safety or confidentiality to an informant.

#### **603.3.3 INFORMANT AGREEMENTS**

All informants are required to sign and abide by the provisions of the designated department informant agreement. The officer using the informant shall discuss each of the provisions of the agreement with the informant.

Details of the agreement are to be approved in writing by a supervisor before being finalized with the informant.

#### **603.4 INFORMANT INTEGRITY**

To maintain the integrity of the informant process, the following must be adhered to:

- (a) The identity of an informant acting in a confidential capacity shall not be withheld from the Chief of Police, Division Commander, Investigations Supervisor, or their authorized designees.
  - 1. Identities of informants acting in a confidential capacity shall otherwise be kept confidential.
- (b) Criminal activity by informants shall not be condoned.
- (c) Informants shall be told they are not acting as police officers, employees or agents of the American Fork Police Department, and that they shall not represent themselves as such.
- (d) The relationship between department members and informants shall always be ethical and professional.
  - 1. Members shall not become intimately involved with an informant.
  - 2. Social contact shall be avoided unless it is necessary to conduct an official investigation, and only with prior approval of the Narcotics/Vice Unit supervisor.
  - 3. Members shall neither solicit nor accept gratuities or engage in any private business transaction with an informant.
- (e) Officers shall not meet with informants in a private place unless accompanied by at least one additional officer or with prior approval of the Narcotics/Vice Unit supervisor.
  - 1. Officers may meet informants alone in an occupied public place, such as a restaurant.
- (f) When contacting informants for the purpose of making payments, officers shall arrange for the presence of another officer.
- (g) In all instances when department funds are paid to informants, a voucher shall be completed in advance, itemizing the expenses.
- (h) Since the decision rests with the appropriate prosecutor, officers shall not promise that the informant will receive any form of leniency or immunity from criminal prosecution.



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#### **603.4.1 UNSUITABLE INFORMANTS**

The suitability of any informant should be considered before engaging him/her in any way in a covert or other investigative process. Members who become aware that an informant may be unsuitable will notify the supervisor, who will initiate a review to determine suitability. Until a determination has been made by a supervisor, the informant should not be used by any member. The supervisor shall determine whether the informant should be used by the Department and, if so, what conditions will be placed on his/her participation or any information the informant provides. The supervisor shall document the decision and conditions in file notes and mark the file "unsuitable" when appropriate.

Considerations for determining whether an informant is unsuitable include, but are not limited to, the following:

- (a) The informant has provided untruthful or unreliable information in the past.
- (b) The informant behaves in a way that may endanger the safety of an officer.
- (c) The informant reveals to suspects the identity of an officer or the existence of an investigation.
- (d) The informant appears to be using his/her affiliation with this department to further criminal objectives.
- (e) The informant creates officer-safety issues by providing information to multiple law enforcement agencies simultaneously, without prior notification and approval of each agency.
- (f) The informant engages in any other behavior that could jeopardize the safety of officers or the integrity of a criminal investigation.
- (g) The informant commits criminal acts subsequent to entering into an informant agreement.

#### **603.5 INFORMANT FILES**

Informant files shall be utilized as a source of background information about the informant, to enable review and evaluation of information provided by the informant, and to minimize incidents that could be used to question the integrity of department members or the reliability of the informant.

Informant files shall be maintained in a secure area. The Investigations Supervisor or the authorized designee shall be responsible for maintaining informant files. Access to the informant files shall be restricted to the Chief of Police, Division Commander, Investigations Supervisor, or their authorized designees.

The Investigation Division Commander should arrange for an audit using a representative sample of randomly selected informant files on a periodic basis, but no less than one time per year. If the Investigations Supervisor is replaced, the files will be audited before the new supervisor takes over management of the files. The purpose of the audit is to ensure compliance with file content and updating provisions of this policy.

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#### **603.5.1 FILE SYSTEM PROCEDURE**

A separate file shall be maintained on each informant and shall be coded with an assigned informant control number. An informant history shall be prepared to correspond to each informant file and include the following information:

- (a) Name and aliases
- (b) Date of birth
- (c) Physical description: sex, race, height, weight, hair color, eye color, scars, tattoos or other distinguishing features
- (d) Photograph
- (e) Current home address and telephone numbers
- (f) Current employers, positions, addresses and telephone numbers
- (g) Vehicles owned and registration information
- (h) Places frequented
- (i) Briefs of information provided by the informant and his/her subsequent reliability
  - 1. If an informant is determined to be unsuitable, the informant's file is to be marked "unsuitable" and notations included detailing the issues that caused this classification
- (j) Name of officer initiating use of the informant
- (k) Signed informant agreement
- (l) Update on active or inactive status of informant

#### **603.6 INFORMANT PAYMENTS**

No informant will be told in advance or given an exact amount or percentage for his/her service. The amount of funds to be paid to any informant will be evaluated against the following criteria:

- The extent of the informant's personal involvement in the case
- The significance, value or effect on crime
- The value of assets seized
- The quantity of the drugs or other contraband seized
- The informant's previous criminal activity
- The level of risk taken by the informant

The Narcotics/Vice Unit supervisor will discuss the above factors with the Patrol Division Commander and recommend the type and level of payment subject to approval by the Chief of Police.

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#### 603.6.1 PAYMENT PROCESS

Approved payments to an informant should be in cash using the following process:

- (a) Payments of \$500 and under may be paid in cash from a Narcotics/Vice Unit buy/expense fund.
  - 1. The Narcotics/Vice Unit supervisor shall sign the voucher for cash payouts from the buy/expense fund.
- (b) Payments exceeding \$500 shall be made by issuance of a check, payable to the officer who will be delivering the payment.
  - 1. The check shall list the case numbers related to and supporting the payment.
  - 2. A written statement of the informant's involvement in the case shall be placed in the informant's file.
  - 3. The statement shall be signed by the informant verifying the statement as a true summary of his/her actions in the case.
  - 4. Authorization signatures from the Chief of Police and the City Administrator are required for disbursement of the funds.
- (c) To complete the payment process for any amount, the officer delivering the payment shall complete a cash transfer form.
  - 1. The cash transfer form shall include the following:
    - (a) Date
    - (b) Payment amount
    - (c) American Fork Police Department case number
    - (d) A statement that the informant is receiving funds in payment for information voluntarily rendered.
  - 2. The cash transfer form shall be signed by the informant.
  - 3. The cash transfer form will be kept in the informant's file.

#### 603.6.2 REPORTING OF PAYMENTS

Each informant receiving a cash payment shall be advised of his/her responsibility to report the cash to the Internal Revenue Service (IRS) as income. If funds distributed exceed \$600 in any reporting year, the informant should be provided IRS Form 1099 (26 CFR 1.6041-1). If such documentation or reporting may reveal the identity of the informant and by doing so jeopardize any investigation, the safety of officers or the safety of the informant (26 CFR 1.6041-3), then IRS Form 1099 should not be issued.

In such cases, the informant shall be provided a letter identifying the amount he/she must report on a tax return as "other income" and shall be required to provide a signed acknowledgement of receipt of the letter. The completed acknowledgement form and a copy of the letter shall be retained in the informant's file.

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#### 603.6.3 AUDIT OF PAYMENTS

The Investigations Division Commander or the authorized designee shall be responsible for compliance with any audit requirements associated with grant provisions and applicable state and federal law.

At least once every six months, the Chief of Police or the authorized designee should conduct an audit of all informant funds for the purpose of accountability and security of the funds. The funds and related documents (e.g., buy/expense fund records, cash transfer forms, invoices, receipts and logs) will assist with the audit process.

## Eyewitness Identification

### 604.1 PURPOSE AND SCOPE

This policy sets forth guidelines to be used when members of this department employ eyewitness identification techniques.

#### 604.1.1 DEFINITIONS

Definitions related to the policy include:

**Eyewitness identification process** - Any field identification, live lineup or photographic identification.

**Field identification** - A live presentation of a single individual to a witness following the commission of a criminal offense for the purpose of identifying or eliminating the person as the suspect.

**Live lineup** - A live presentation of individuals to a witness for the purpose of identifying or eliminating an individual as the suspect.

**Photographic lineup** - Presentation of photographs to a witness for the purpose of identifying or eliminating an individual as the suspect.

### 604.2 POLICY

This department will strive to use eyewitness identification techniques, when appropriate, to enhance the investigative process and will emphasize identifying persons responsible for crime and exonerating the innocent.

### 604.3 INTERPRETIVE SERVICES

Members should make a reasonable effort to arrange for an interpreter before proceeding with eyewitness identification if communication with a witness is impeded due to language or hearing barriers.

Before the interpreter is permitted to discuss any matter with the witness, the investigating member should explain the identification process to the interpreter. Once it is determined that the interpreter comprehends the process and can explain it to the witness, the eyewitness identification may proceed as provided for within this policy.

### 604.4 EYEWITNESS IDENTIFICATION PROCESS AND FORM

The Investigation Unit supervisor shall be responsible for the development and maintenance of an eyewitness identification process for use by members when they are conducting eyewitness identifications.

The process should include appropriate forms or reports that provide:

- (a) The date, time and location of the eyewitness identification procedure.
- (b) The name and identifying information of the witness.

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- (c) The name of the person administering the identification procedure.
- (d) If applicable, the names of all of the individuals present during the identification procedure.
- (e) An instruction to the witness that it is as important to exclude innocent persons as it is to identify a perpetrator.
- (f) An instruction to the witness that the perpetrator may or may not be among those presented and that the witness is not obligated to make an identification.
- (g) If the identification process is a photographic or live lineup, an instruction to the witness that the perpetrator may not appear exactly as he/she did on the date of the incident.
- (h) An instruction to the witness that the investigation will continue regardless of whether identification is made by the witness.
- (i) A signature line where the witness acknowledges that he/she understands the identification procedures and instructions.
- (j) A statement from the witness in the witness's own words describing how certain he/she is of the identification or non-identification. This statement should be taken at the time of the identification procedure.

The process and related forms should be reviewed at least annually and modified when necessary.

#### **604.5 EYEWITNESS IDENTIFICATION**

Members are cautioned not to, in any way, influence a witness as to whether any subject or photo presented in a lineup is in any way connected to the case. Members should avoid mentioning that:

- The individual was apprehended near the crime scene.
- The evidence points to the individual as the suspect.
- Other witnesses have identified, or failed to identify, the individual as the suspect.

In order to avoid undue influence, witnesses should view suspects or a lineup individually and outside the presence of other witnesses. Witnesses should be instructed to avoid discussing details of the incident or of the identification process with other witnesses.

Whenever feasible, the eyewitness identification procedure should be audio and/or video recorded and the recording should be retained according to current evidence procedures.

##### **604.5.1 PHOTOGRAPHIC LINEUP AND LIVE LINEUP CONSIDERATIONS**

When practicable, the member presenting the lineup should not be involved in the investigation of the case or know the identity of the suspect. In no case should the member presenting a lineup to a witness know which photograph or person in the lineup is being viewed by the witness. Techniques to achieve this include randomly numbering photographs, shuffling folders or using a computer program to order the persons in the lineup.

Individuals in the lineup should reasonably match the description of the perpetrator provided by the witness and should bear similar characteristics to avoid causing any person to unreasonably

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stand out. In cases involving multiple suspects, a separate lineup should be conducted for each suspect. The suspects should be placed in a different order within each lineup.

The member presenting the lineup should do so sequentially (i.e., show the witness one person at a time) and not simultaneously. The witness should view all persons in the lineup.

A live lineup should only be used before criminal proceedings have been initiated against the suspect. If there is any question as to whether any criminal proceedings have begun, the investigating member should contact the appropriate prosecuting attorney before proceeding.

#### 604.5.2 FIELD IDENTIFICATION CONSIDERATIONS

Field identifications, also known as field elimination show-ups or one-on-one identifications, may be helpful in certain cases, where exigent circumstances make it impracticable to conduct a photo or live lineup identifications. A field elimination show-up or one-on-one identification should not be used when independent probable cause exists to arrest a suspect. In such cases a live or photo lineup is the preferred course of action if eyewitness identification is contemplated.

When initiating a field identification, the officer should observe the following guidelines:

- (a) Obtain a complete description of the suspect from the witness.
- (b) Assess whether a witness should be included in a field identification process by considering:
  - 1. The length of time the witness observed the suspect.
  - 2. The distance between the witness and the suspect.
  - 3. Whether the witness could view the suspect's face.
  - 4. The quality of the lighting when the suspect was observed by the witness.
  - 5. Whether there were distracting noises or activity during the observation.
  - 6. Any other circumstances affecting the witness's opportunity to observe the suspect.
  - 7. The length of time that has elapsed since the witness observed the suspect.
- (c) If safe and practicable, the person who is the subject of the show-up should not be handcuffed or in a patrol vehicle.
- (d) When feasible, members should bring the witness to the location of the subject of the show-up, rather than bring the subject of the show-up to the witness.
- (e) The person who is the subject of the show-up should not be shown to the same witness more than once.
- (f) In cases involving multiple suspects, witnesses should only be permitted to view the subjects of the show-up one at a time.

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- (g) The person who is the subject of the show-up should not be required to put on clothing worn by the suspect, to speak words uttered by the suspect or to perform other actions mimicking those of the suspect.
- (h) If a witness positively identifies a subject of a show-up as the suspect, members should not conduct any further field identifications with other witnesses for that suspect. In such instances members should document the contact information for any additional witnesses for follow up, if necessary.

#### **604.6 DOCUMENTATION**

A thorough description of the eyewitness process and the results of any eyewitness identification should be documented in the case report.

If a photographic lineup is utilized, a copy of the photographic lineup presented to the witness should be included in the case report. In addition, the order in which the photographs were presented to the witness should be documented in the case report.



# Brady Material Disclosure

## 605.1 PURPOSE AND SCOPE

This policy establishes guidelines for identifying and releasing potentially exculpatory or impeachment information (so-called “*Brady* information”) to a prosecuting attorney.

### 605.1.1 DEFINITIONS

Definitions related to this policy include:

**Brady information** - potential impeachment information that a prosecutor has disclosed or may disclose to a defendant being prosecuted for a criminal offense relating to conduct of a peace officer who was involved in the arrest or investigation of the defendant (Utah Code 53-25-1001).

## 605.2 POLICY

The American Fork Police Department will conduct fair and impartial criminal investigations and will provide the prosecution with both incriminating and exculpatory evidence, as well as information that may adversely affect the credibility of a witness. In addition to reporting all evidence of guilt, the American Fork Police Department will assist the prosecution by complying with its obligation to disclose information that is both favorable and material to the defense. The [Department/Office] will identify and disclose to the prosecution potentially exculpatory information, as provided in this policy.

## 605.3 DISCLOSURE OF INVESTIGATIVE INFORMATION

Officers must include in their investigative reports adequate investigative information and reference to all material evidence and facts that are reasonably believed to be either incriminating or exculpatory to any individual in the case. If an officer learns of potentially incriminating or exculpatory information any time after submission of a case, the officer or the handling investigator must prepare and submit a supplemental report documenting such information as soon as practicable. Supplemental reports shall be promptly processed and transmitted to the prosecutor’s office after supervisory review and approval.

If information is believed to be privileged or confidential (e.g., confidential informant, protected personnel files, attorney-client information, attorney work product), the officer should discuss the matter with a supervisor to determine the appropriate manner in which to proceed.

Evidence or facts are considered material if there is a reasonable probability that they would affect the outcome of a criminal proceeding or trial. Determining whether evidence or facts are material often requires legal or even judicial review. If an officer is unsure whether evidence or facts are material, the officer should address the issue with a supervisor.

Supervisors who are uncertain about whether evidence or facts are material should address the issue in a written memo to the Chief of Police submitted via their chain of command for review. A copy of the memo should be retained in the Department case file.

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#### **605.4 DISCLOSURE OF PERSONNEL INFORMATION**

If a member of this [department/office] is a material witness in a criminal case, a person or persons designated by the Chief of Police shall examine the personnel file and/or internal affairs file of the officer to determine whether they contain *Brady* information. If *Brady* information is located, the following procedure shall apply:

- (a) In the event that a motion has not already been filed by the criminal defendant or other party, the prosecuting attorney and [department/office] member shall be notified of the potential presence of *Brady* material in the member's personnel file.
- (b) The prosecuting attorney or [department/office] counsel should be requested to file a motion in order to initiate an in-camera review by the court (Utah Code 63G-2-202(7)).
  - 1. If no motion is filed, the supervisor should work with counsel to determine whether the records should be disclosed to the prosecutor.
- (c) The Custodian of Records shall accompany all relevant personnel files during any in-camera inspection to address any issues or questions raised by the court.
- (d) If the court determines that there is relevant *Brady* material contained in the files, only that material ordered released will be copied and released to the parties filing the motion.
  - 1. Prior to the release of any materials pursuant to this process, the Custodian of Records should request a protective order from the court limiting the use of such materials to the involved case and requiring the return of all copies upon completion of the case.
- (e) If a court has determined that relevant *Brady* information is contained in the member's file in any case, the prosecutor should be notified of that fact in all future cases involving that member.

The person or persons designated by the Chief of Police should periodically examine the personnel files and/or internal affairs files of all officers who may be material witnesses in criminal cases to determine whether they contain *Brady* information. The obligation to provide *Brady* information is ongoing. If any new *Brady* information is identified, the prosecuting attorney should be notified.

#### **605.5 INVESTIGATING AND REPORTING BRADY ISSUES**

If the [Department/Office] receives information from any source that a member may have issues of credibility or dishonesty or has been engaged in an act of moral turpitude or criminal conduct (including any act that would trigger a *Brady* disclosure requirement), the Chief of Police shall be notified, and the information shall be investigated, processed, and, if substantiated, reported to the county attorney in accordance with the Personnel Complaints Policy (Utah Code 53-25-1003).

##### **605.5.1 GROUNDS FOR DISCIPLINARY ACTION**

Placement on a prosecuting agency's *Brady* identification system shall not be the sole reason for disciplinary action to be taken against an officer, including demotion, suspension, termination, or any other disciplinary action. However, the underlying facts that were the basis for placement, or

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the failure to disclose such placement to another prosecuting agency when required by law, may lead to disciplinary action against the officer in accordance with the Personnel Complaints Policy (Utah Code 53-25-1003).

#### **605.6 TRAINING**

[Department/Office] personnel should receive periodic training on the requirements of this policy.

#### **605.7 SUBPOENA PROCESSING**

The individual processing subpoenas (or the supervisor of the subpoenaed member) shall check the subpoenaed member's name against the current list of those who are known to have *Brady* information in their files or background, and shall alert the coordinator if a person on the list is subpoenaed.

##### **605.7.1 DISCLOSURE TO PROSECUTING AGENCY**

As soon as practicable after receiving a subpoena to testify in court by a prosecuting agency, an officer who has been placed onto a *Brady* identification system of a different prosecuting agency shall disclose that placement to the prosecuting agency that issued the subpoena (Utah Code 53-25-1003).

## Pawn Shop Holds

### 606.1 PURPOSE AND SCOPE

Property with evidentiary value is often found at pawn shops and secondhand businesses. Utah law allows the American Fork Police Department to seize or place a hold on such property. This policy provides guidance on placing such holds.

### 606.2 POLICY

The American Fork Police Department will place a hold on an item that has evidentiary value and is in the possession of a pawn or secondhand business only as allowed by Utah law and when the item is necessary to an open investigation.

### 606.3 PROCEDURE

A member of the Department may require a pawnbroker or secondhand business to place a 90-day hold on an item in the possession of the pawnbroker or secondhand business if the item is necessary to an open investigation. The hold may be extended for an additional 90 days if warranted. Subsequent extensions must be approved by a court order (Utah Code 13-32a-109).

An officer may seize the held item when exigent circumstances exist or when necessary during the course of a criminal investigation. Items may also be seized (Utah Code 13-32a-109.5; Utah Code 13-32a-115(2)):

- (a) When seizure is necessary to permit the fingerprinting or chemical testing of the item.
- (b) If the item contains unique or sensitive personal identifying information.

A written hold or seizure notice shall be provided and shall include (Utah Code 13-32a-109.5):

- An active case number.
- The date of the hold or seizure request and the property to be held or seized.
- Notice to the pawnbroker or secondhand business of contact information to allow tracking of the property when the prosecuting agency takes over the case.
- If the property is seized, the reason the property is necessary during the course of a criminal investigation.

If the pawnbroker or secondhand business is located outside of the jurisdiction of this department, a copy of the hold notice shall be sent to the local law enforcement agency having jurisdiction (Utah Code 13-32a-109). An extension of the hold must be communicated in writing to the pawnbroker or secondhand business prior to the expiration of the initial 90-day hold (Utah Code 13-32a-109).

Whenever the officer has reason to believe that property subject to a hold is in the possession of a pawnbroker or secondhand business, the officer should notify the person who reported the property as lost or stolen, as well as any agency taking a report, of all of the following:

- The name, address, and telephone number of the pawnbroker or secondhand business that reported the acquisition of the property or where the property is located.

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- The length of any holding period.

#### **606.4 TERMINATION OF HOLD**

The evidence supervisor should maintain a file copy of all hold notices and should review the file at least every 30 days for pending expirations. When the need for the hold or seizure of an item is terminated and no original victim was located, the Department shall, within 15 business days after the termination (Utah Code 13-32a-109(7)):

- (a) Notify the pawnbroker or secondhand business in writing that the hold or seizure has been terminated.
- (b) Return the item to the pawnbroker or secondhand business, or advise the pawnbroker or secondhand business, either in writing or electronically, of the specific alternative disposition of the item.

If an original victim was located, the release of the property shall only be made with the consent of the appropriate prosecutor and with notices made according to Utah Code 13-32a-109(8).

If this Department receives a registered or certified letter from the pawnbroker or secondhand business informing the Department that the holding period has expired, the Department shall respond within 30 days in the manner prescribed by law (Utah Code 13-32a-109(9)).

#### **606.5 TRAINING**

The Command Staff should ensure that members with access to the Utah Division of Consumer Protection's central database for pawnbrokers and secondhand business (Utah Code 13-32a-105) receive annual training related to property held by pawn shops and secondhand businesses (Utah Code 13-32a-112.1).

# Unmanned Aerial System

## 607.1 PURPOSE AND SCOPE

The purpose of this policy is to establish guidelines for the use of an unmanned aerial system (UAS) and for the storage, retrieval, and dissemination of images and data captured by the UAS.

### 607.1.1 DEFINITIONS

Definitions related to this policy include:

**Unmanned aerial system (UAS)** - An unmanned aircraft of any type that is capable of sustaining flight, whether preprogrammed or remotely controlled (commonly referred to as an unmanned aerial vehicle (UAV)), and all of the supporting or attached systems designed for gathering information through imaging, recording, or any other means.

## 607.2 POLICY

A UAS may be utilized to enhance the department's mission of protecting lives and property when other means and resources are not available or are less effective. Any use of a UAS will be in strict accordance with constitutional and privacy rights, State law, and Federal Aviation Administration (FAA) regulations.

## 607.3 PRIVACY

The use of the UAS potentially involves privacy considerations. Absent a warrant or exigent circumstances, operators and observers shall not intentionally record or transmit images of any location where a person would have a reasonable expectation of privacy (e.g., residence, yard, enclosure). Operators and observers shall take reasonable precautions to avoid inadvertently recording or transmitting images of areas where there is a reasonable expectation of privacy. Reasonable precautions can include, for example, deactivating or turning imaging devices away from such areas or persons during UAS operations.

## 607.4 PROGRAM COORDINATOR

The Chief of Police will appoint a program coordinator who will be responsible for the management of the UAS program. The program coordinator will ensure that policies and procedures conform to current laws, regulations, and best practices and will have the following additional responsibilities:

- Coordinating the FAA Certificate of Waiver or Authorization (COA) application process and ensuring that the COA is current, and/or coordinating compliance with FAA Part 107 Remote Pilot Certificate, as appropriate for [department/office] operations.
- Ensuring that all authorized operators and required observers have completed all required FAA and [department/office]-approved training in the operation, applicable laws, policies, and procedures regarding use of the UAS.
- Developing uniform protocols for submission and evaluation of requests to deploy a UAS, including urgent requests made during ongoing or emerging incidents. Deployment of a UAS shall require written authorization of the Chief of Police or the authorized designee, depending on the type of mission.

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- Coordinating the completion of the FAA Emergency Operation Request Form in emergency situations, as applicable (e.g., natural disasters, search and rescue, emergency situations to safeguard human life).
- Developing protocols for conducting criminal investigations involving a UAS, including documentation of time spent monitoring a subject.
- Implementing a system for public notification of UAS deployment.
- Developing operational protocols governing the deployment and operation of a UAS including but not limited to safety oversight, use of visual observers, establishment of lost link procedures, and secure communication with air traffic control facilities.
- Developing a protocol for fully documenting all missions.
- Developing UAS inspection, maintenance, and record-keeping protocol to ensure continuing airworthiness of a UAS, up to and including its overhaul or life limits.
- Developing protocols to ensure that all data intended to be used as evidence are accessed, maintained, stored, and retrieved in a manner that ensures its integrity as evidence, including strict adherence to chain of custody requirements. Electronic trails, including encryption, authenticity certificates, and date and time stamping, shall be used as appropriate to preserve individual rights and to ensure the authenticity and maintenance of a secure evidentiary chain of custody.
- Facilitating law enforcement access to images and data captured by its UAS.
- Developing protocols that ensure retention and purge periods are maintained in accordance with established records retention schedules.
- Recommending program enhancements, particularly regarding safety and information security.
- Ensuring that established protocols are followed by monitoring and providing periodic reports on the program to the Chief of Police.
- Ensuring that data collected on a person, object, structure, or area that is not a target, as defined by Utah Code 72-10-801, is not used, copied, or disclosed except as allowed by law (Utah Code 72-10-803).
- Maintaining familiarity with FAA regulatory standards, state laws and regulations, and local ordinances regarding the operations of a UAS.

#### **607.5 USE OF UAS**

Only authorized operators who have completed the required training shall be permitted to operate the UAS.

Use of vision enhancement technology (e.g., thermal and other imaging equipment not generally available to the public) is permissible in viewing areas only where there is no protectable privacy interest or when in compliance with a search warrant or court order. In all other instances, legal counsel should be consulted.

UAS operations should only be conducted consistent with FAA regulations.

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Members shall not obtain, receive, or use data acquired through an UAS unless the data was obtained pursuant to a search warrant, obtained under a valid warrant exception, or used to locate a lost or missing person in an area where no person would have a reasonable expectation of privacy (Utah Code 72-10-802).

#### 607.5.1 DATA COLLECTED BY PRIVATE CITIZEN

The American Fork Police Department may not accept or review data captured by a privately-owned UAS unless one of the following conditions exists (Utah Code 72-10-802):

- (a) The person delivering the UAS data informs the [Department/Office] that the data appear to pertain to the commission of a crime.
- (b) The receiving member, in good faith, believes that the data pertain to an imminent or ongoing emergency that involves the danger of death or serious bodily injury to another person and that the disclosure of the data will permit the [Department/Office] to assist in responding to the emergency.

#### 607.5.2 DOCUMENTATION

The following information must be documented in any related report or other record of the law enforcement encounter when the UAS is operated by a member of the American Fork Police Department, or when the [Department/Office] obtains or receives data pursuant to Utah Code 72-10-802 (Utah Code 72-10-804):

- (a) The presence and use of the UAS
- (b) Any data acquired
- (c) If applicable, the private citizen from whom the data was received

#### 607.5.3 TEMPORARY FLIGHT RESTRICTION DUE TO WILDLAND FIRES

A department UAS shall not be used in an area under a temporary flight restriction as a result of a wildland fire without the permission of, and in accordance with the restrictions established by, the official in command of the fire response (Utah Code 65A-3-2.5).

### 607.6 PROHIBITED USE

The UAS video surveillance equipment shall not be used:

- To conduct random surveillance activities.
- To target a person based solely on actual or perceived characteristics such as race, ethnicity, national origin, religion, sex, sexual orientation, gender identity, or expression, economic status, age, cultural group, or disability.
- To harass, intimidate, or discriminate against any individual or group.
- To conduct personal business of any type.

The UAS shall not be weaponized (Utah Code 72-10-902).

The Department shall not purchase or operate an unmanned aircraft system for the inspection of critical infrastructure (as defined in Utah Code 76-6-106.3) if the unmanned aircraft system was



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manufactured or assembled by a "covered foreign entity" unless certain operational requirements are met (Utah Code 72-10-1202).

#### **607.7 RETENTION OF UAS DATA**

The Records Section supervisor shall ensure that data collected by the UAS is deleted as soon as reasonably possible subject to applicable retention schedules under the Utah Government Records Access and Management Act (GRAMA) or a federal, state, or local law (Utah Code 72-10-802; Utah Code 72-10-803).

# Operations Planning and Deconfliction

## 608.1 PURPOSE AND SCOPE

This policy provides guidelines for planning, deconfliction and execution of high-risk operations, such as search warrants, sting operations and arrest warrant service. The policy also covers the risk mitigation process that should be a part of these activities.

### 608.1.1 DEFINITIONS

Definitions related to this policy include:

**Deconfliction** - A centralized process that allows for the collection of operations and case information and that provides alerts to enhance safety and avoid duplication or confliction of operations.

**Reportable incident** - When law enforcement officers use forcible entry to serve a search warrant, or when a special unit that is specifically trained and equipped to respond to critical, high-risk situations within either the department or an assisting department is deployed (Utah Code 77-7-8.5).

## 608.2 POLICY

It is the policy of the American Fork Police Department to properly plan and execute large scale and high-risk operations. Proper planning and execution enable effective coordination of such operations. The AFPD will participate in a regional deconfliction system that is designed to enhance the safety of officers and the public, to decrease the risk of compromising investigations and prevent the duplication of efforts.

## 608.3 RISK ASSESSMENT AND OPERATIONS OVERSIGHT

The Chief of Police will designate a member of this department to oversee the following responsibilities as described.

The designee will develop and maintain a risk assessment form for use in assessing, planning and coordinating high-risk operations. The form also should provide a process for supervisors to identify operations that have a lower level of risk.

The designee will review risk assessment forms with operations supervisors to determine whether a particular incident qualifies as high risk, and will also have the responsibility of directing high-risk operations.

### 608.3.1 REPORTING REQUIREMENTS

A report shall be prepared for all reportable incidents in the format developed by the Commission on Criminal and Juvenile Justice (CCJJ), as required by Utah Code 77-7-8.5. This report including all reportable incidents which occurred in the prior year shall be submitted to the Chief of Police by February 1st of each year (see the Warrant Service Policy).

Reportable incidents include SWAT deployments for situations other than warrant service, such as hostage or barricaded subjects. This information should be obtained from the SWAT Commander.

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The Chief of Police shall review and approve the report and ensure that it is forwarded to the CCJJ and the designated recipient for the City no later than April 30th.

#### **608.4 RISK ASSESSMENT**

##### **608.4.1 RISK ASSESSMENT FORM PREPARATION**

Officers assigned as operational leads for any operation that qualifies, or may qualify as a high-risk operation, such as search warrant service, shall complete a risk assessment form.

When preparing the form, the officer should check and submit information to all relevant and reasonable intelligence resources, including regional intelligence and criminal justice databases, target deconfliction systems, firearms records, commercial databases, property records and resources for information about the target person and any others who may be present.

The officer should also gather available information that includes, but is not limited to:

- (a) Photographs, including aerial photographs, if available, of the target location, neighboring yards and obstacles.
- (b) Geographical maps of the target location.
- (c) Diagrams of any property and the interiors of buildings that are involved.
- (d) The target person (e.g., history of weapon possession or use, known mental illness, known drug use, threats against police, gang affiliation, criminal history).
- (e) Others who may be present at the target location (e.g., other criminals, innocent third parties, children, animals). Obstacles associated with the target location (e.g., fortification, booby traps, reinforced doors or windows, surveillance cameras, lookouts, the number and type of buildings, geographic and physical barriers, the number and type of weapons likely to be present, information that suggests the presence of explosives, chemicals or other hazardous materials, the potential for multiple dwellings or living spaces, availability of keys or door combinations).
- (f) Other environmental factors (e.g., nearby venues, such as schools and day care centers, proximity of adjacent homes or other occupied buildings, anticipated pedestrian and vehicle traffic at the time of service).
- (g) Other available options that may minimize the risk to officers and others (e.g., making an off-site arrest or detention of the target person).

##### **608.4.2 RISK ASSESSMENT REVIEW**

Officers will present the risk assessment form and other relevant documents, such as copies of search warrants, affidavits and arrest warrants, to the Chief of Police and designee.

The Chief of Police and designee shall confer to determine, based on the assessment, the operation's level of risk. Supervisors should take reasonable actions if there is a change in circumstances that elevates the risk associated with the operation.

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#### **608.4.3 HIGH-RISK OPERATIONS**

High-risk operations involve circumstances that present higher risks than are commonly faced by officers on a daily basis and would require the steps to mitigate risk detailed in this policy.

If the Chief of Police's designee and the supervisor concur that the operation is a high-risk operation, the Chief of Police's designee should proceed as follows:

- (a) Determine what resources will be needed at the location or placed on standby, such as:
  - (a) SWAT
  - (b) Extra personnel
  - (c) Outside agency assistance
  - (d) Special equipment
  - (e) Medical personnel
  - (f) Persons trained in negotiation
  - (g) Additional surveillance or information
  - (h) Canines
- (b) Contact the appropriate department members, or other agencies as warranted, to begin preparation.
- (c) Direct, or delegate the direction of, the actual operation.
- (d) Ensure that all legal documents, such as search warrants, are complete, with any modifications that may be necessary to support the operation.

#### **608.4.4 OTHER OPERATIONS**

Operations with a lower level of risk must be categorized as such by the Chief of Police's designee and the lead officer's supervisor during risk assessment review. Operations that have a lower level of risk may be directed by the supervisor.

The risk assessment form should guide how the operation is categorized. Examples of what might be deemed an operation with a lower level of risk include:

- (a) A search warrant for an unfortified residence where the occupants have been identified and pose no identifiable risk, and the suspect of the investigation is not reasonably predicted to be at the location (e.g., suspect already in custody or lives elsewhere).
- (b) A search warrant for records and no actual search by officers is required.
- (c) The circumstances reveal no particularized risk of violence or confrontation with multiple suspects or others, and there is no reason to suspect that the subject anticipates the operation.

#### **608.5 DECONFLICTION**

The officer who is the operation lead shall ensure the investigative target and location have been entered in the regional target deconfliction system to determine if there is conflicting activity by

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other agencies involving the same individual, group or location. This should occur as early in the process as practical, but no later than two hours prior to the commencement of the operation. The officer should also enter updated information when it is received. If any conflict is discovered, the supervisor will contact the involved jurisdiction and resolve the potential conflict before proceeding with the operation.

#### **608.6 OPERATION PLAN**

The Chief of Police's authorized designee shall supervise operations that are categorized as high-risk. The designee should ensure that a written plan is developed. The plan should address such issues as:

- (a) Operation goals, objectives and strategies.
- (b) Information from the risk assessment form, by attaching a completed copy in the operation plan.
  - 1. The volume or complexity of the information may indicate that the plan includes a synopsis of the information contained on the risk assessment form to ensure clarity and highlighting of critical information.
- (c) Participants and their roles:
  - 1. An adequate number of uniformed officers are included in the operation team to ensure the operation is recognized as a legitimate law enforcement operation.
  - 2. How all participants will be identified as law enforcement.
- (d) Whether deconfliction submissions are current and that all target individuals, groups and locations have been deconflicted to the extent reasonably practicable.
- (e) Identification of communications channels and call-signs.
- (f) Use of force issues.
- (g) Contingencies for handling medical emergencies (e.g., services available at the location, closest hospital, closest trauma center).
- (h) Plans for detaining people who are not under arrest.
- (i) Contingencies for handling children, dependent adults, animals and other people who might be at the location. This should be done in accordance with the Child and Dependent Adult Safety and the Animal Control policies.
- (j) Documentation of actions and responsibilities for collection, review and approval of reports.

#### **608.6.1 OPERATION PLAN RETENTION**

Since the operation plan contains intelligence information and descriptions of police tactics, it shall not be filed with the police report package. It shall be stored separately and retained in accordance with the established records retention schedule.

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#### **608.7 OPERATION BRIEFING**

A briefing should be held prior to the commencement of the operation to allow all participants to understand the operation, see and identify each other, identify roles and responsibilities, and to ask questions or seek clarification as needed. Anyone who is not present at the briefing should not be present at the location of the operation without specific supervisory approval.

- (a) The briefing should include a verbal review of the plan's elements, using visual aids, to enhance the participants' understanding of the plan.
- (b) All participants should be provided a copy of the plan and search warrant, if applicable. If a search warrant is being served, participating personnel should be directed to read the search warrant and initial a copy that is retained with the operation plan. Any items to be seized should be identified at the briefing.
- (c) The Chief of Police's designee or supervisor at the briefing shall ensure that all participants are visually identifiable as law enforcement officers.
  - 1. Exceptions may be specifically identified because of a specialized function, such as officers who are conducting surveillance or working undercover. However, those members exempted from visual identification should be able to transition to a visible law enforcement indicator at the time of enforcement actions, such as entries or arrests.
- (d) The briefing should include details of the communications plan.
  - 1. The briefing should include a communications check to ensure that all participants are able to communicate with the available equipment on the designated radio channel.

#### **608.8 SWAT PARTICIPATION**

If the Chief of Police's designee determines that SWAT participation is appropriate, the Chief of Police's designee and the SWAT supervisor shall work together to develop a written plan. The SWAT supervisor shall assume operational control until the individuals at the scene are appropriately detained and it is safe to begin a search. When this occurs, the SWAT supervisor shall transfer control of the scene to the handling supervisor. This transfer should be communicated to the officers present.

#### **608.9 MEDIA ACCESS**

No advance information regarding the operation shall be released without the approval of the Chief of Police. Any media inquiries or press release after the fact shall be handled in accordance with the Media Relations Policy.

#### **608.10 DEBRIEFING**

As soon as reasonably practicable, the operation should be debriefed. The debriefing should include as many participants as possible. This debrief may be separate from any SWAT debriefing.

#### **608.11 TRAINING**

Officers and SWAT team members who participate in these types of operations should receive periodic training on this policy, including, but not limited to, the following:

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- Legal issues
- Deconfliction practices
- Warrant preparation
- Warrant service
- Operations plan preparation
- Reporting requirements

## Warrant Service

### 609.1 PURPOSE AND SCOPE

This policy establishes guidelines for the planning and serving of arrest and search warrants by members of this department. It is understood that this policy cannot address every variable or circumstance that can arise in the service of a search or arrest warrant, as these tasks can involve rapidly evolving and unique circumstances.

This policy is intended to be used in conjunction with the Operations Planning and Deconfliction Policy, which has additional guidance on planning and serving high-risk warrants.

This policy is not intended to address the service of search warrants on locations or property already secured or routine field warrant arrests by patrol officers.

#### 609.1.1 DEFINITIONS

Definitions related to this policy include:

**Reportable incident** - An incident where forcible entry is used or a special unit specifically trained and equipped to respond to critical, high-risk situations is deployed in the service of a search warrant (Utah Code 77-7-8.5).

### 609.2 POLICY

It is the policy of the American Fork Police Department to balance the safety needs of the public, the safety of department members, privacy interests and other relevant factors when making decisions related to the service of search and arrest warrants.

### 609.3 RISK ASSESSMENT AND OPERATIONS COORDINATION

The Chief of Police's designee (see the Operations Planning and Deconfliction Policy) shall review all risk assessment forms with the involved supervisor to determine the risk level of the warrant service.

The Chief of Police's designee will also have the responsibility to coordinate service of those warrants that are categorized as high risk. Deconfliction, risk assessment, operational planning, briefing and debriefing should follow guidelines in the Operations Planning and Deconfliction Policy.

#### 609.3.1 REPORTING REQUIREMENTS

The Chief of Police's designee shall prepare a report on all reportable incidents in the format developed by the Commission on Criminal and Juvenile Justice (CCJJ), as required by Utah Code 77-7-8.5. The Chief of Police's designee shall ensure that reports on all reportable incidents in the prior year are submitted to the Chief of Police by February 1 of each year (see the Operations Planning and Deconfliction Policy for additional reporting requirements).

The Chief of Police shall review and approve the report and ensure that it is forwarded to the CCJJ and the designated recipient for the City no later than April 30.



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#### 609.3.2 MODEL GUIDELINES OF THE UTAH PEACE OFFICER STANDARDS AND TRAINING COUNCIL

The Chief of Police's designee shall be familiar with any model guidelines and procedures recommended by the Utah Peace Officer Standards and Training Council regarding warrants and ensure members follow the guidelines and procedures (Utah Code 77-23-210).

#### **609.4 SEARCH WARRANTS**

Officers should receive authorization from a supervisor before preparing a search warrant application. Once authorization is received, the officer will prepare the affidavit and search warrant, consulting with the applicable prosecuting attorney as needed. He/she will also complete the risk assessment form and submit it, along with the warrant affidavit, to the appropriate supervisor and the Chief of Police's designee for review and classification of risk (see the Operations Planning and Deconfliction Policy). The need for a risk assessment may be waived at the discretion of the supervisor.

##### 609.4.1 SUPERVISORY REVIEW OF APPLICATIONS

In the case of an application for a knock-and-announce search warrant or a no-knock search warrant, a supervisor shall review the complete search warrant application to (Utah Code 77-7-8; Utah Code 77-7-8.1):

- (a) Evaluate whether the totality of the circumstances described justify the basis for the application.
- (b) Ensure reasonable intelligence gathering efforts have been made.
- (c) Ensure a risk assessment has been completed regarding the persons and buildings to be searched.

#### **609.5 ARREST WARRANTS**

If an officer reasonably believes that serving an arrest warrant may pose a higher risk than commonly faced on a daily basis, the officer should complete the risk assessment form and submit it to the Chief of Police and Chief of Police's designee for review and classification of risk (see the Operations Planning and Deconfliction Policy).

If the warrant is classified as high risk, service will be coordinated by the Chief of Police's designee. If the warrant is not classified as high risk, the supervisor should weigh the risk of entry into a residence to make an arrest against other alternatives, such as arresting the person outside the residence where circumstances may pose a lower risk.

#### **609.6 WARRANT PREPARATION**

An officer who prepares a warrant shall ensure the documentation in support of the warrant contains as applicable:

- (a) Probable cause to support the search or arrest, including relevant dates and times to demonstrate timeliness and facts to support any request for nighttime or no-knock warrant execution (Utah Code 77-7-8.1).
- (b) A clear explanation of the affiant's training, experience, and relevant education.

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- (c) Adequately supported opinions, when relevant, that are not left to unsubstantiated conclusions.
- (d) A nexus between the place to be searched and the persons or items central to the investigation. The facts supporting this nexus should be clear and current. For example, the affidavit shall explain why there is probable cause to believe that a particular person is currently residing at a particular location or that the items sought are present at a particular location.
- (e) Full disclosure of known or suspected residents at the target location and any indication of separate living spaces at the target location. For example, it should be disclosed that several people may be renting bedrooms at a single location, even if the exact location of the rooms is not known.
- (f) A specific description of the location to be searched, including photographs of the location, if reasonably available.
- (g) A sufficient description of the items to be seized.
- (h) Full disclosure of any exculpatory information relevant to the warrant application (refer to the *Brady* Material Disclosure Policy).

#### **609.7 WARRANT SERVICE CONSIDERATIONS**

The member responsible for directing the warrant service should ensure the following as applicable:

- (a) When practicable and when doing so does not cause unreasonable risk, video or photographic documentation is made of the condition of the location prior to execution of a search warrant. The images should include the surrounding area and persons present.
- (b) The warrant service is audio- and video-recorded when practicable and reasonable to do so.
  - 1. Members executing a warrant shall wear a body-worn camera unless exigent circumstances make the use of such camera impracticable (Utah Code 77-23-210).
- (c) Evidence is handled and collected only by those members who are designated to do so. All other members involved in the service of the warrant should alert one of the designated members to the presence of potential evidence and not touch or disturb the items.
- (d) Reasonable efforts are made during the search to maintain or restore the condition of the location.
- (e) Persons who are detained as part of the search warrant service are handled appropriately under the circumstances.
- (f) Reasonable care provisions are made for children and dependent adults (see the Child and Dependent Adult Safety Policy).
- (g) A list is made of all items seized and a copy of the list is left with the person in charge of the premises if present or otherwise left in a conspicuous place.

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- (h) A copy of the search warrant is left at the location.
- (i) The condition of the property is documented with video recording or photographs after the search.
- (j) If the use of an imaging surveillance device is requested, the application must include a description of the capabilities of the device and the measures that the officers will take to avoid the device being used in a manner beyond the scope of the warrant (Utah Code 77-23d-103).
- (k) Absent exigent circumstances, officers serving a search warrant shall wear a uniform or other clothing that clearly identifies them as law enforcement, including a badge and law enforcement label (Utah Code 77-23-210; Utah Code 77-7-8; Utah Code 77-7-8.1).

#### 609.7.1 NO-KNOCK ENTRIES

Officers may execute a warrant without notice of the authority and purpose only if (Utah Code 77-23-210; Utah Code 77-7-6; Utah Code 77-7-8; Utah Code 77-7-8.1):

- (a) A no-knock warrant has been issued.
- (b) There is reasonable suspicion to believe that the notice will endanger the life or safety of the officer or another person.
- (c) There is probable cause to believe that evidence may be easily or quickly destroyed.
- (d) There is reason to believe that the notice will enable the escape of a person to be arrested.
- (e) The person to be arrested is engaged in the commission or attempted commission of an offense or has been pursued immediately after the commission of an offense or an escape.

#### 609.8 DETENTIONS DURING WARRANT SERVICE

Officers must be sensitive to the safety risks of all persons involved with the service of a warrant. Depending on circumstances and facts present, it may be appropriate to control the movements of any or all persons present at a warrant service, who may not be the subject of a warrant or suspected in the case. However, officers must be mindful that only reasonable force may be used and weapons should be displayed no longer than the officer reasonably believes is necessary (see the Use of Force Policy).

As soon as it can be determined that an individual is not subject to the scope of a warrant and that no further reasonable suspicion or safety concerns exist to justify further detention, the person should be promptly released.

Officers should, when and to the extent reasonable, accommodate the privacy and personal needs of the people who have been detained.

#### 609.9 ACTIONS AFTER WARRANT SERVICE

The supervisor shall ensure that all affidavits, warrants, receipts and returns, regardless of any associated cases, are filed with the issuing judge or magistrate as soon as reasonably possible, but in any event no later than any date specified on the warrant.

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#### 609.9.1 NOTIFICATIONS REGARDING USE OF IMAGING SURVEILLANCE DEVICE

When an imaging surveillance device is used during the service of a warrant, notification shall be made to the person who owns or otherwise resides at the location specified in the warrant within 14 days unless a court-ordered extension has been granted (Utah Code 77-23d-104).

#### **609.10 OUTSIDE AGENCIES AND CROSS-JURISDICTIONAL WARRANTS**

The Chief of Police's designee will ensure that cooperative efforts with other agencies in the service of warrants conform to existing mutual aid agreements or other memorandums of understanding and will work cooperatively to mitigate risks including, but not limited to, the following:

- Identity of team members
- Roles and responsibilities
- Familiarity with equipment
- Rules of engagement
- Asset forfeiture procedures

Any outside agency requesting assistance in the service of a warrant within this jurisdiction should be referred to the Chief of Police's designee. The designee should review and confirm the warrant, including the warrant location, and should discuss the service with the appropriate supervisor from the other agency. The designee should ensure that members of the American Fork Police Department are utilized appropriately. Any concerns regarding the requested use of American Fork Police Department members should be brought to the attention of the Chief of Police or the authorized designee. The actual service of the warrant will remain the responsibility of the agency requesting assistance.

If the Chief of Police's designee is unavailable, the Shift Sergeant should assume this role.

If officers intend to serve a warrant outside American Fork Police Department jurisdiction, the Chief of Police's authorized designee should provide reasonable advance notice to the applicable agency, request assistance as needed, and work cooperatively on operational planning and the mitigation of risks detailed in this policy.

Officers will remain subject to the policies of the American Fork Police Department when assisting outside agencies or serving a warrant outside the American Fork Police Department jurisdiction.

#### **609.11 TRAINING**

Officers should receive periodic training on this policy and associated topics, such as legal issues, warrant preparation, warrant service and reporting requirements.

#### **609.12 MEDIA ACCESS**

No advance information regarding warrant service operations shall be released without the approval of the Chief of Police. Any media inquiries or press release after the fact shall be handled in accordance with the Media Relations Policy.

# Investigative Genetic Genealogy

## 611.1 PURPOSE AND SCOPE

This policy provides guidance for the use of investigative genetic genealogy (IGG) to generate investigative leads.

### 611.1.1 DEFINITIONS

Definitions related to this policy include:

**Combined DNA Index System (CODIS)** - An FBI computer software program that operates deoxyribonucleic acid (DNA) profile databases for law enforcement use.

**DNA typing laboratory** - A laboratory that analyzes biological samples, including extracted DNA, in order to provide various DNA profile types. State or local crime labs are generally not equipped to provide single nucleotide polymorphisms (SNP) DNA profiles; therefore, the use of private DNA typing laboratories is often necessary for IGG.

**Extracted DNA** - The DNA isolated from a biological sample remaining after previous DNA testing has been completed.

**Genetic genealogist** - A genealogist who uses DNA testing with traditional genealogical research methods to assist law enforcement or private clients in identifying biological relatives of an individual.

**Genetic genealogy site** - A database of DNA profiles voluntarily submitted by public consumers for the purpose of identifying genetic relatives. The availability of genetic genealogy sites for law enforcement use varies depending on their terms of service.

**Investigative genetic genealogy (IGG)** - The process of obtaining a SNP DNA profile from a biological sample collected during an investigation; uploading the profile to a genetic genealogy site for comparison to the consumer profiles in the site's database to identify genetic relatives; and using the identified genetic relationships, as well as traditional genealogy research, to generate investigative leads.

**Short tandem repeat (STR) DNA profile** - The results of DNA typing in a format that can be processed through CODIS and state DNA databases. This is the type of DNA used in conventional non-IGG law enforcement investigations.

**Single nucleotide polymorphism (SNP) DNA profile** - The results of DNA typing in a format that enables an unknown DNA sample to be compared to the DNA profiles maintained by a genetic genealogy site. This is the DNA type used in IGG.

## 611.2 POLICY

The American Fork Police Department's use of IGG will be in coordination with prosecutors, the [Medical Examiner/JOP], and other appropriate resources only in qualifying cases after reasonable conventional investigative methods have been pursued. Members will take reasonable steps to

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maintain the integrity of the IGG process and safeguard the privacy rights of individuals whose DNA profiles are analyzed.

#### **611.3 CRITERIA FOR IGG USE**

Before using IGG, the lead investigator should coordinate with the supervisor to determine whether the case meets the following requirements (Utah Code 53-10-403.7):

- (a) Biological evidence collected as part of the underlying investigation (or extracted DNA from the biological evidence) of a qualifying case is available for additional testing and is reasonably believed to be attributable to:
  - 1. The perpetrator of an unsolved violent felony.
  - 2. Unidentified human remains.
  - 3. A missing or unknown individual.
- (b) All reasonable conventional investigative methods have been utilized and all reasonable investigative leads have been pursued (e.g., relevant case information entered in the National Missing and Unidentified Persons System (NamUs) and the Violent Criminal Apprehension Program (ViCAP) national database).
- (c) An STR DNA profile has been developed from the biological evidence collected in the case and, absent unusual circumstances, has been uploaded to CODIS and any applicable state DNA database for comparison with negative results.

#### **611.4 COORDINATION**

Once a preliminary determination has been made that a case may qualify for the use of IGG, the lead investigating member should consult with the appropriate prosecutor to address current and prospective legal issues and determine if a search warrant is required.

In the case of unidentified human remains, the lead investigator should also consult with the [MedicalExaminer/JOP].

##### **611.4.1 CONSULTATION WITH PROSECUTOR AND BUREAU OF FORENSIC SERVICE**

The lead investigating member shall consult with the prosecuting attorney and the Bureau of Forensic Services to determine whether IGG is appropriate and necessary before proceeding with IGG. The [Department/Office] and the prosecuting agency shall agree to investigate relevant leads resulting from IGG (Utah Code 53-10-403.7).

#### **611.5 SUBMISSION OF SAMPLE**

The biological evidence or extracted DNA should be submitted to a DNA typing laboratory approved by the [Department/Office] in order to obtain a SNP DNA profile.

Once a SNP DNA profile has been obtained from the biological evidence or extracted DNA, the lead investigating member should arrange for it to be compared to the SNP DNA profiles contained in one or more genetic genealogy sites to identify possible genetic relatives. The lead investigator should work with a qualified genetic genealogist as needed during this process.

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When submitting a SNP DNA profile for comparison, the lead investigator or the authorized designee (e.g., assigned genetic genealogist) shall notify the genetic genealogy site that the request for comparison is from a law enforcement agency and confirm that the site's terms of service permit IGG for the type of case being investigated (Utah Code 53-10-403.7). The use of the SNP DNA profile and any subsequent comparison shall be limited to the original underlying investigation.

If at any time during the IGG process the case no longer meets the criteria for IGG use, the lead investigator should promptly notify the DNA typing laboratory, genetic genealogy site, and/or genetic genealogist to cease any further analysis and to return all evidence, data, and materials to the [Department/Office].

#### **611.5.1 ADDITIONAL REQUIREMENTS FOR SUBMISSION**

The lead investigator shall take steps to restrict IGG to genetic genealogy sites that provide appropriate notice to their users of possible law enforcement use, allow users to opt-out of having their data accessible to law enforcement, and have policies to prevent third-party access to the data concerning a victim, crime scene, or suspect (Utah Code 53-10-403.7).

#### **611.6 ANALYSIS OF IGG DATA**

Once results of a comparison are received from a genetic genealogy site, the information should be evaluated by a genetic genealogist, who will assist the lead investigator in identifying potential investigative leads.

The lead investigator should promptly and diligently pursue each viable lead identified through the IGG process using traditional investigative methods, as appropriate, to:

- (a) Eliminate an individual as a potential suspect in the case.
- (b) Link an individual to the case as a potential suspect.
- (c) Identify human remains.

#### **611.7 COLLECTION OF THIRD-PARTY DNA SAMPLE**

If it is determined that a third-party DNA sample (i.e., from a person not likely to be a suspect in the investigation) should be collected and analyzed for IGG, consent from the third party should be obtained prior to collection (Utah Code 53-10-403.7).

If there is a reasonable belief that the integrity of the investigation would be compromised by seeking consent from the third party prior to collection, the lead investigator should consult with the prosecutor regarding applicable laws and procedures in both the jurisdiction of the investigation and the jurisdiction where the collection will occur, if different (Utah Code 53-10-403.7).

The use of a third-party DNA sample shall be limited to the original underlying investigation.

#### **611.8 POST-IDENTIFICATION**

Members shall not rely solely on IGG identification of a potential suspect for probable cause to make an arrest or obtain an arrest warrant. Unless there is sufficient evidence independent of the

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IGG data to support an arrest, a potential suspect identified through IGG should not be arrested until the suspect's identity is confirmed (Utah Code 53-10-403.7).

Members shall not rely solely on IGG to identify human remains unless there is sufficient evidence independent of the IGG data to declare the identification or confirmation testing has been completed.

Confirmatory DNA testing should be conducted by collecting a known DNA sample from the potential suspect or, in the case of unidentified human remains, from a close biological relative. This known DNA sample should be submitted for comparison to the original unknown STR DNA profile through conventional methods (e.g., in CODIS).

The lead investigator should consult with the prosecutor to determine the appropriate method of obtaining a known DNA sample.

Once the identity of a suspect or the identity of unidentified human remains has been confirmed through conventional DNA testing, the lead investigator should:

- (a) Consult with the prosecutor to evaluate the entire investigative file for consideration of criminal charges or further investigation.
- (b) If applicable, consult with the [Medical Examiner/JOP] for an amendment to a certificate of death.

#### **611.9 PRIVACY CONSIDERATIONS**

Members should make reasonable efforts to respect and protect the privacy of non-suspect genetic relatives identified through the IGG process. The names and identifying information of any non-suspect genetic relatives should not be included in official reports, probable cause declarations, or affidavits for search warrants and should not be disclosed unless otherwise required by law or court order.

The lead investigator should formally request that the SNP DNA profile be removed from all genetic genealogy sites upon identity confirmation and should retain a copy of the request for [department/office] records (Utah Code 53-10-403.7). The lead investigator should request that all case-related records and data provided to, or generated by, a genetic genealogist during the IGG process be returned to the [Department/Office].

#### **611.10 RETENTION OF DNA SAMPLES AND RELATED RECORDS**

Genetic information, including any derivative profiles and genetic genealogy site user information, should be retained for the minimum period established by law and destroyed once permitted by Utah law (Utah Code 53-10-403.7). The lead investigator should coordinate with the property and evidence technician and provide adequate notice to the appropriate prosecutor's office before destroying any profiles or data obtained from the IGG process.

See the Property and Evidence Policy for guidelines regarding biological evidence, including DNA samples.



# Facial Recognition Technology Use

## 612.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance for the use of facial recognition technology (FRT) by the [Department/Office] to assist in the development of investigative leads. This policy also provides guidance for FRT data access, use, and retention.

This policy does not apply to the use of FRT in user identification applications for personal electronic devices, access control systems, or automated video redaction software.

### 612.1.1 DEFINITIONS

Definitions related to this policy include:

**Biometric surveillance information** - Information obtained through the digital monitoring of an area that is analyzed using FRT to determine an individual's identity or location based on their physical attributes or manner. (Utah Code § 77-23d-102).

**Facial recognition technology (FRT)** - A software application, electronic system, or a third-party service that uses biometric algorithms to compare facial features of a probe image with the features of images contained within an image database.

**Government image database** – A database maintained by the [Department/Office] or another government entity of images captured during interactions with the [Department/Office] or government entity. This does not include publicly available information (Utah Code 77-23e-102).

**Probe image** - A search image submitted to FRT for comparison with images contained within an image database.

## 612.2 POLICY

It is the policy of the American Fork Police Department to limit FRT use to developing investigative leads for legitimate law enforcement purposes while recognizing and protecting established constitutional and privacy rights.

## 612.3 CHIEF OF POLICE RESPONSIBILITIES

The Chief of Police or the authorized designee shall approve any FRT system or service prior to its implementation and use by the [Department/Office].

## 612.4 FRT COORDINATOR

The Chief of Police or the authorized designee shall appoint an FRT coordinator. The responsibilities of the FRT coordinator include:

- (a) Establishing procedures for [department/office] FRT use that conform to applicable laws, regulations, and best practices. Procedures should include:
  - 1. A process for submitting and assessing officer requests to use FRT.
  - 2. Requirements related to processing and reviewing results generated from the use of FRT.

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3. Requirements for complying with Utah Code 77-23e-105 prior to implementing new FRT systems (i.e., posting proper notice, accepting and reviewing public comments, posting final decisions).
- (b) Establishing procedures for collecting, processing, and storing FRT data.
  1. Procedures should include the management of biometric surveillance information (Utah Code 77-23d-106).
- (c) Establishing procedures for access and security controls for [department/office] FRT systems, services, and data.
  1. Access levels should be no higher than necessary to accomplish organizational tasks, missions, or functions.
- (d) Establishing procedures for submitting images to [department/office] image databases. The procedures should include:
  1. When and under what circumstances members are required to submit images.
  2. Restrictions related to the use of images voluntarily provided to the [Department/Office] by members of the public.
- (e) Administering data quality assurance measures (e.g., probe image suitability, quality, integrity).
- (f) Conducting periodic audits of [department/office] FRT use.
  1. The audit should include a review of FRT use, documentation of those uses, and confirmation of data purging, where appropriate.
  2. The audit should include a review of the use of biometric surveillance information (Utah Code 77-23d-106).
- (g) Confirming that authorized users have completed [department/office]-approved FRT and forensic image comparison training prior to using FRT.
- (h) Coordinating with the Training Officer to develop, identify, and update FRT training for officers who utilize the FRT system.
- (i) Establishing and implementing a schedule for routine maintenance, upgrades, enhancements, testing, and refreshes of FRT for proper performance purposes.
- (j) Establishing procedures for reporting errors, malfunctions, or deficiencies of FRT systems, services, or data.
- (k) Coordinating with the information systems technology supervisor, [department/office] counsel, and appropriate administrators to develop information-sharing procedures with outside agencies in accordance with state and federal law.
- (l) Evaluating systems to verify that, in accordance with industry standards, FRT used on a government image database managed by the [Department/Office] is secure, produced by a company that is currently in business, and makes comparisons using an algorithm that compares only facial biometric data (Utah Code 77-23e-103).
- (m) Ensuring this policy is posted and publicly available on the [department/office] website or the Utah Public Notice Website, as applicable (Utah Code 77-23d-106).

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#### **612.5 AUTHORIZED USES OF FRT**

FRT may be used as a tool to develop investigative leads for legitimate law enforcement purposes to assist in the identification of the following:

- (a) Unknown suspects where attempts at identification through other means have been exhausted or ineffective
- (b) Potential victims, as appropriate (e.g., human trafficking, child sexual abuse material)
- (c) Deceased individuals
- (d) Individuals who are incapacitated or do not know their identities
- (e) Individuals who are lawfully detained and whose identities are in question (e.g., no identification or false identification provided)
- (f) Suspects in unsolved crimes
- (g) Missing or endangered persons
- (h) Unknown individuals pursuant to any other legitimate law enforcement purpose

##### **612.5.1 AUTHORIZED USES OF FRT ON GOVERNMENT IMAGE DATABASE**

FRT shall only be used on a government image database for the following purposes (Utah Code 77-23e-103):

- (a) Investigating a felony, a violent crime, or a threat to human life
- (b) Identifying an individual who is:
  - 1. Deceased.
  - 2. Incapacitated.
  - 3. At risk and otherwise unable to provide their identity.

#### **612.6 REQUEST FOR AUTHORIZATION**

An officer seeking authorization to conduct or request an FRT search shall submit a request to the appropriate supervisor consistent with [department/office] procedures.

The request should, at a minimum, include the following:

- (a) The nature of the investigation
- (b) The reason an officer believes that FRT use is necessary
- (c) An explanation of how FRT may assist with the development of investigative leads
- (d) A case identification number

#### **612.7 FRT SEARCHES**

Following supervisor approval, the officer should proceed as follows:

- (a) An officer seeking to have a probe image compared to images contained in a government image database shall submit the probe image and a written FRT request to a member of this [department/office] who is trained and authorized to conduct FRT

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searches or to the government entity that maintains the database, as appropriate (Utah Code 77-23e-103).

- (b) An officer seeking to have a probe image compared to images contained in a database maintained by the Department of Public Safety shall submit the probe image and FRT request through the Utah Criminal Justice Information System (Utah Code 77-23e-104).
- (c) For all other FRT use, an officer should submit a probe image for comparison consistent with [department/office] procedures.
- (d) Officers shall only submit lawfully obtained probe images.

Only members authorized by the [Department/Office] may conduct FRT searches. Before proceeding with official law enforcement action based on FRT results, the results should be thoroughly reviewed by a member trained in FRT.

#### 612.7.1 FRT SEARCH OF GOVERNMENT DATABASE

An FRT search on a government image database maintained by the [Department/Office] shall only be conducted upon receipt of a written request from an officer of this [department/office] or from another law enforcement agency. The request shall include (Utah Code 77-23e-103):

- (a) The authorized purpose for which the request is made.
- (b) The case identification number.
- (c) If applicable, a statement of the specific crime being investigated and a factual narrative to support that there is a fair probability that the individual who is the subject of the request is connected to the crime.

Before providing results to the requesting officer or entity, the results should be verified and reviewed according to Utah Code 77-23e-103. No search results other than a probable match agreed upon by at least two authorized members shall be provided in response to a request for FRT (Utah Code 77-23e-103).

#### 612.7.2 USES AND LIMITATIONS OF FRT SEARCH RESULTS

Information resulting from an FRT search shall be considered an investigative lead only and not a positive identification of any person or utilized solely as the basis for engaging in any law enforcement action. Image comparisons generated from FRT use do not represent definitive confirmation of an identity match or non-match. Any positive identification and connection of a person to an investigation shall be determined through additional investigative means and resources.

#### 612.7.3 FRT SEARCH DOCUMENTATION

The investigating officer shall document all FRT searches in the appropriate [department/office] report, including any arrest report where FRT was used as an investigative tool. Documentation shall include:

- (a) The requesting officer's name and position.

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- (b) Confirmation that the search was pre-approved pursuant to [department/office] procedures.
- (c) The purpose of the search.
- (d) The search parameters, if any.
- (e) The date and time of the search.
- (f) A list of any image databases searched.
- (g) The results of the search, including the number of investigative leads produced and, where applicable, the matching score of each.
  - 1. This includes information received indicating an FRT search produced no results (Utah Code 77-23e-103).
- (h) The additional means used to identify any person (e.g., visual comparison of images by a trained investigator, other subsequent investigation).
- (i) A description of how the facial recognition comparison was used in the investigation (Utah Code 77-23e-103).

#### **612.8 PRIVACY CONSIDERATIONS**

The [Department/Office] shall adhere to all applicable federal and state laws regarding privacy concerns related to FRT use. Officers shall take reasonable precautions to avoid inadvertently recording or capturing images where there is a reasonable expectation of privacy.

##### **612.8.1 NOTICE OF POTENTIAL FRT USE**

When capturing an image of an individual during an interaction with the [department/office], the individual shall be notified that their image may be used in conjunction with FRT (Utah Code 77-23e-105).

##### **612.8.2 BIOMETRIC SURVEILLANCE INFORMATION**

Biometric surveillance information shall only be obtained as follows (Utah Code 77-23d-106):

- (a) In accordance with a search warrant.
- (b) On authorized property, as defined by Utah Code 77-23d-102.
- (c) In accordance with a judicially recognized exception to warrant requirements.
- (d) When there is a documented reasonable articulable suspicion that a specific individual has threatened to commit a violent felony toward a person, group of people, or place, or to commit an offense of threat of violence under Utah Code 76-5-107.

#### **612.9 PROHIBITED USES**

FRT shall not be used in a manner that targets individuals or groups solely based on actual or perceived characteristics such as race, ethnicity, national origin, religion, sex, sexual orientation, gender identity or expression, age, disability, or any other classification or status protected by law.

In addition, FRT shall not be used:

- (a) For the arrest of individuals based solely on FRT results.

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- (b) For any purpose that violates the U.S. Constitution or laws of the United States, including the protections of the First, Fourth, and 14th Amendments.
- (c) For any non-law enforcement purpose.
- (d) As the sole basis for identification to establish probable cause in a criminal investigation.
- (e) To harass or intimidate any individual or group.
- (f) In any other manner that would violate applicable law, regulation, or policy.
- (g) On a government image database to investigate civil immigration violations (Utah Code 77-23e-103).

No officer shall request that a third-party use FRT to obtain results that would not be permitted under this policy.

#### **612.10 RELEASE OF FRT DATA**

Data related to FRT use on a government image database is not subject to the Government Records Access and Management Act and shall not be disclosed except as required by law or court order (Utah Code 77-23e-106).

All other FRT data should only be released to the public in accordance with federal and state public record laws. Requests for the release of FRT data shall be processed in accordance with the Records Maintenance and Release Policy.

#### **612.11 RETENTION OF FRT DATA**

FRT data shall be retained in accordance with the established records retention schedule.

Unmatched probe images shall be purged in accordance with the established records retention schedule.

#### **612.12 DOCUMENTATION**

Members conducting FRT searches on a government image database maintained by the [Department/Office] should document FRT data in a way that facilitates statistical reporting required by Utah Code 77-23e-106 (see the Records Section Policy).

#### **612.13 TRAINING**

Officers whose duties may require the use of FRT should receive initial training and periodic refresher training on this policy and related procedures and should demonstrate their knowledge and understanding. Training should include but is not limited to the following (Utah Code 77-23e-102):

- (a) Capabilities and limitations of FRT
- (b) FRT system functions and interpretation of results
- (c) Data security and privacy concerns
- (d) Documentation and reporting requirements (e.g., FRT results, general statistics, collection of FRT data, FRT requests)

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- (e) Digital media handling and protections
- (f) Common terminology (e.g., human face recognition, automated face recognition, holistic face processing, unfamiliar face matching)
- (g) Principles of comparison
- (h) Cognitive bias, confirmation bias, implicit bias, and automation bias
- (i) Applicable policy, procedure, and federal and state law requirements

An officer who uses mobile facial recognition shall receive additional training appropriate to that application of the technology.

The FRT coordinator shall maintain a record of each authorized officer's training and acknowledgement of this policy.

## **Chapter 7 - Equipment**



# Department-Owned and Personal Property

## 700.1 PURPOSE AND SCOPE

This policy provides members guidance as to authorized personal use of public property to avoid unintentional violations of Utah Code Section 76-8-402. Department employees are expected to properly care for department property assigned or entrusted to them. Employees may also suffer occasional loss or damage to personal or department property while performing their assigned duty. Certain procedures are required depending on the loss and ownership of the item.

## 700.2 PERSONAL USE OF DEPARTMENT PROPERTY

Department members are authorized to use department property issued to them for personal use, subject to any specific restrictions found throughout this policy manual.

Department members shall not use department property for any illegal purpose.

Department members shall not use any Department photos or videos for personal use, including posting to social media or for personal advertisements.

Department members shall use department property issued to them in accordance with the following guidelines:

- Department property should be used in a manner that does not damage the property or incur additional, unauthorized charges related to the property use;
- Department property should be used in a manner that does not cost more than incidental amounts, which may vary according to historic use, custom, and what is considered normal personal use of employer property in the community;
- Department property should be used in a manner that does not interfere with use of the property as intended for public use; and
- Department property should not be used in a manner that reflects poorly upon the Department.

If the Chief of Police finds that policy, directives, or orders were not clear as to whether a use of property was authorized or not, he or she may, at his or her discretion, issue a warning in lieu of finding that an officer has violated this policy.

## 700.3 CARE OF DEPARTMENTAL PROPERTY

Employees shall be responsible for the safekeeping, serviceable condition, proper care, use and replacement of department property assigned or entrusted to them. An employee's intentional or negligent abuse or misuse of department property may lead to discipline including, but not limited to the cost of repair or replacement.

- (a) Employees shall promptly report through their chain of command any loss, damage to or unserviceable condition of any department-issued property or equipment assigned for their use.

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- (b) The use of damaged or unserviceable department property should be discontinued as soon as practical and replaced with comparable department property as soon as available and following notice to a supervisor.
- (c) Except when otherwise directed by competent authority or required by exigent circumstances, department property shall only be used by those to whom it was assigned. Use should be limited to official purposes except as otherwise authorized by policy and in the capacity for which it was designed.
- (d) Department property shall not be thrown away, sold, traded, donated, destroyed or otherwise disposed of without proper authority.
- (e) In the event that any department property becomes damaged or unserviceable, no employee shall attempt to repair the property without prior approval of a supervisor.

#### **700.4 FILING CLAIMS FOR PERSONAL PROPERTY**

Claims for reimbursement for damage or loss of personal property may be made via a memorandum to the officer's supervisor. The supervisor may require a separate written report of the loss or damage.

The supervisor shall direct a memo to the appropriate Division Commander, which shall include the results of his/her investigation and whether the employee followed proper procedures. The supervisor's report shall address whether reasonable care was taken to prevent the loss or damage.

Upon review by Staff and a finding that no misconduct or negligence was involved, repair or replacement may be recommended by the Chief of Police who will then forward the claim to the Finance Department.

The department will not replace or repair luxurious or overly expensive items (jewelry, exotic equipment) that are not reasonably required as a part of work.

Damages or losses sustained as a result of a suspect's actions should be documented in the officer's report to facilitate restitution via sentencing or court order in the suspect's prosecution and conviction.

##### **700.4.1 REPORTING REQUIREMENT**

A verbal report shall be made to the employee's immediate supervisor as soon as circumstances permit.

A written report shall be submitted before the employee goes off-duty or within the time frame directed by the supervisor to whom the verbal report is made.

#### **700.5 LOSS OR DAMAGE OF PROPERTY OF ANOTHER**

Officers and other employees intentionally or unintentionally may cause damage to the real or personal property of another while performing their duties. Any employee who damages or causes to be damaged any real or personal property of another while performing any law enforcement functions, regardless of jurisdiction, shall report it as provided below.

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- (a) A verbal report shall be made to the employee's immediate supervisor as soon as circumstances permit.
- (b) A written report shall be submitted before the employee goes off-duty or within the time frame directed by the supervisor to whom the verbal report is made.

#### **700.5.1 DAMAGE BY PERSON OF ANOTHER AGENCY**

If employees of another jurisdiction cause damage to real or personal property belonging to the City, it shall be the responsibility of the employee present or the employee responsible for the property to make a verbal report to his/her immediate supervisor as soon as circumstances permit. The employee shall submit a written report before going off-duty or as otherwise directed by the supervisor.

These written reports, accompanied by the supervisor's written report, shall promptly be forwarded to the appropriate Division Commander.

#### **700.6 MANAGEMENT OF DEPARTMENT PROPERTY**

Department property that is assigned out to Department members may be tracked using a written or electronic inventory system. All property inventory databases or lists should be updated regularly.

## Personal Communication Devices

### 701.1 PURPOSE AND SCOPE

The purpose of this policy is to establish guidelines for the use of mobile telephones and communication devices, whether issued or funded by the [Department/Office] or personally owned, while on-duty or when used for authorized work-related purposes.

This policy generically refers to all such devices as Personal Communication Devices (PCDs) but is intended to include all mobile telephones, personal digital assistants (PDAs), wireless-capable tablets, and similar wireless two-way communications and/or portable internet-access devices. PCD use includes but is not limited to placing and receiving calls, text messaging, blogging and microblogging, emailing, using video or camera features, playing games, and accessing sites or services on the internet.

### 701.2 POLICY

The American Fork Police Department allows members to utilize [department/office]-issued or funded PCDs and to possess personally owned PCDs in the workplace, subject to certain limitations. Any PCD used while on- or off-duty for business-related purposes, or reasonably associated with work-related misconduct, will be subject to monitoring and inspection consistent with applicable law and this policy.

Additionally, the use of a PCD either on-duty or after duty hours for business-related purposes, or reasonably associated with work-related misconduct, may subject the member and the member's PCD records to civil or criminal discovery or disclosure under applicable public records laws.

Members who have questions regarding the application of this policy or the guidelines contained herein are encouraged to seek clarification from supervisory staff.

### 701.3 PRIVACY EXPECTATION

Members forfeit any expectation of privacy with regard to any communication accessed, transmitted, received, or reviewed on any PCD issued or funded by the [Department/Office] and shall have no expectation of privacy in their location should the device be equipped with location-detection capabilities. This includes records of all keystrokes or web-browsing history made on the PCD. The fact that access to a database, service, or website requires a username or password will not create an expectation of privacy if it is accessed through [department/office] PCDs or networks (see the Information Technology Use Policy for additional guidance).

Members have no expectation of privacy regarding any communications while using a personally owned PCD for [department/office]-related business or when the use reasonably implicates work-related misconduct.

### 701.4 DEPARTMENT/OFFICE-ISSUED PCD

Depending on a member's assignment and the needs of the position, the [Department/Office] may, at its discretion, issue or fund a PCD for the member's use to facilitate on-duty performance.. Such devices and the associated telephone number, if any, shall remain the sole property of the

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[Department/Office] and shall be subject to inspection or monitoring (including all related records and content) at any time without notice and without cause.

#### **701.5 PERSONALLY OWNED PCD**

Members may carry a personally owned PCD while on-duty, subject to the following conditions and limitations:

- (a) Permission to carry a personally owned PCD may be revoked if it is used contrary to provisions of this policy.
- (b) The [Department/Office] accepts no responsibility for loss of or damage to a personally owned PCD.
- (c) The PCD and any associated services shall be purchased, used, and maintained solely at the member's expense.
- (d) The device should not be used for work-related purposes except in exigent circumstances (e.g., unavailability of radio communications) or as otherwise authorized by [department/office] procedures.
  - 1. Use of a personally owned PCD for work-related business constitutes consent for the [Department/Office] to access the PCD to inspect and copy the work-related data (e.g., for litigation purposes, public records retention and release obligations, internal investigations).
  - 2. Use of and data within a personally owned PCD may be discoverable in cases when there is reason to believe it is associated with work-related misconduct.
  - 3. Searches of a personally owned PCD by the [Department/Office] should be limited to those matters reasonably associated with the work-related business or work-related misconduct.
- (e) The device shall not be utilized to record or disclose any [department/office] business-related information, including photographs, video, or the recording or transmittal of any information or material obtained or made accessible as a result of employment or appointment with the [Department/Office], without the express authorization of the Chief of Police or the authorized designee.
- (f) If the PCD is carried on-duty, members will provide the [Department/Office] with the telephone number of the device.
- (g) All work-related documents, emails, photographs, recordings, and other public records created or received on a member's personally owned PCD should be transferred to the American Fork Police Department and deleted from the member's PCD (as well as any other devices or file storage, including cloud accounts) as soon as reasonably practicable but no later than the end of the member's shift.

Except with prior express authorization from their supervisors, members are not obligated or required to carry, access, monitor, or respond to electronic communications using a personally owned PCD while off-duty.

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#### **701.6 USE OF PCD**

The following protocols shall apply to all PCDs that are carried while on-duty or used to conduct [department/office] business:

- (a) Members may use a PCD to communicate with other personnel in situations where the use of radio communications is either impracticable or not feasible. PCDs should not be used as a substitute for, as a way to avoid, or in lieu of regular radio communications.
- (b) Members are prohibited from taking pictures, audio or video recordings, or making copies of any such picture or recording media unless it is directly related to official [department/office] business. Disclosure of any such information to any third party through any means requires express authorization of the Chief of Police or the authorized designee.
- (c) Using PCDs to harass, threaten, coerce, or otherwise engage in inappropriate conduct with any third party is prohibited. Any member having knowledge of such conduct shall promptly notify a supervisor.

##### **701.6.1 UCJIS ACCESS**

Members may use Department-issued PCDs (mobile devices) to access UCJIS, and are authorized to connect such devices to Department networks, if necessary, to accomplish such access. Members using a Department-issued PCD (mobile device) to access UCJIS shall abide by the following protocols.

- Any PCD (mobile device) used to access UCJIS shall be secured so that it is only accessible to its assigned owner through a passcode or other authentication method (face recognition, fingerprint recognition, etcetera). PCD (mobile device) passcodes shall not be shared with anyone else.
- While logged in and accessing UCJIS, members shall maintain immediate possession and control of the PCD (mobile device) at all times. Once they have finished accessing the required information, they shall log out of UCJIS immediately.
- While logged in and accessing UCJIS, member shall ensure that their screen is not visible to unauthorized persons.
- UCJIS information access on a PCD (mobile device) shall not be shared visually or verbally with unauthorized persons.
- Members shall ensure that the password used to access UCJIS is not shared with anyone else.

#### **701.7 SUPERVISOR RESPONSIBILITIES**

The responsibilities of supervisors include but are not limited to:

- (a) Ensuring that members under their command are provided appropriate training on the use of PCDs consistent with this policy.
- (b) Monitoring, to the extent practicable, PCD use in the workplace and taking prompt corrective action if a member is observed or reported to be improperly using a PCD.

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1. An investigation into improper conduct should be promptly initiated when circumstances warrant.
2. Before conducting any administrative search of a member's personally owned device, supervisors should consult with the Chief of Police or the authorized designee.

#### **701.8 USE WHILE DRIVING**

The use of a PCD while driving can adversely affect safety, cause unnecessary distractions, and present a negative image to the public. Officers operating emergency vehicles should restrict the use of these devices to matters of an urgent nature and should, where practicable, stop the vehicle at an appropriate location to use the PCD.

Except in an emergency, members who are operating non-emergency vehicles shall not use a PCD while driving unless the device is specifically designed and configured to allow hands-free use (Utah Code 41-6a-1716). Hands-free use should be restricted to business-related calls or calls of an urgent nature.

#### **701.9 OFFICIAL USE**

Members are reminded that PCDs are not secure devices and conversations may be intercepted or overheard. Caution should be exercised while utilizing PCDs to ensure that sensitive information is not inadvertently transmitted. As soon as reasonably possible, members shall conduct sensitive or private communications on a land-based or other [department/office] communications network.

# Vehicle Maintenance

## 702.1 PURPOSE AND SCOPE

The purpose of this policy is to outline the responsibilities of department members relating to the continued care, appearance, and maintenance of department-owned vehicles.

## 702.2 POLICY

It is the policy of the department for its members to understand and remember the principle that the department's fleet represents one of the largest investments maintained by American Fork City and the American Fork Police Department. Department members shall continually act in a way that demonstrates a high level of respect and appreciation for this principle and for the department's fleet.

Members to whom vehicles are assigned are solely responsible for the cleanliness (exterior and interior), condition, and overall maintenance of their assigned vehicle as outlined in this policy.

## 702.3 GENERAL VEHICLE MAINTENANCE

The following section contains general policies related to maintenance and repair of department-owned vehicles.

### 702.3.1 PERIODIC VEHICLE MAINTENANCE - ASSIGNED VEHICLES

Department-owned vehicles shall be periodically maintained according to manufacture recommendations or as otherwise directed by the department's fleet manager.

It is the sole responsibility of the department member to which a department-owned vehicle is assigned to ensure this periodic maintenance occurs according to schedule. It is also the department member's responsibility to ensure that his or her vehicle's fluid levels, tire pressure, and tire wear are monitored regularly and maintained at safe and appropriate levels.

A member's continued inability or unwillingness to periodically maintain his or her assigned vehicle as outlined above is grounds for the suspension and/or revocation of the member's Take-Home Authorization and may result in a member not being assigned a new vehicle.

### 702.3.2 PERIODIC VEHICLE MAINTENANCE - UNASSIGNED VEHICLES

The periodic maintenance of department-owned vehicles that are unassigned is the responsibility of the department's fleet manager. The fleet manager shall also be responsible to ensure that fluid levels, tire pressure, and tire wear are monitored regularly and maintained at safe and appropriate levels for department-owned vehicles that are unassigned.

### 702.3.3 DAILY INSPECTION

Department members to which a department-owned vehicle is assigned shall conduct an inspection of the vehicle at least one time during each working day. This inspection should include at a minimum:

- (a) visual inspection of the vehicle exterior for any damage



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- (b) visual inspection of the vehicle's factory lights (e.g., brake lights, headlights, blinkers, reverse lights, etc.)
- (c) visual inspection of the vehicle's emergency lighting components (e.g., lightbar, alley lights, take-downs, directional lighting, etc.)
- (d) functional inspection of the vehicle's equipment (e.g., gun racks, in-car camera, inverter, in-car radio, etc.)
- (e) audible inspection of the vehicle's siren or other audible warning devices
- (f) inventory inspection of the minimum equipment inventory outlined in 702.5

Any issues with any of these components shall be promptly reported to the member's supervisor and the fleet manager.

#### 702.3.4 VEHICLE CLEANLINESS

The interior of department-owned vehicles shall be kept reasonably clean at all times. The department will provide access to vehicle cleaning equipment and supplies to assist with this.

The exterior of department-owned vehicles shall be kept reasonably clean at all times (weather-permitting.) The responsibility to keep a vehicle's exterior washed and clean is the sole responsibility of the member to which the vehicle is assigned.

A member's continued inability or unwillingness to keep his or her vehicle reasonably clean as outlined above is grounds for the suspension and/or revocation of the member's Take-Home Authorization and may result in a member not being assigned a new vehicle.

#### 702.3.5 VEHICLE REFUELING

Unless prior authorization is obtained by a department member's supervisor, department-owned vehicles shall be refueled at fuel sites owned and operated by the Utah State Fuel Network.

Department members of the special enforcement team (SET) or the Utah County Major Crimes Task Force (MCTF) should strive to refuel at the above-listed fuel sites. However, members of these two teams may refuel without prior supervisor authorization at commercial fuel sites if unforeseen circumstances arise related to their work responsibilities.

Department-owned motorcycles should be refueled with ethanol-free fuel at a commercial gas station using the motor's assigned fuel card.

#### 702.3.6 VEHICLE REPAIR

At times, a department-owned vehicle may require repairs to be made. The fleet manager or a division commander should authorize all repairs with the exception of periodic vehicle maintenance repair or replacement (e.g., oil changes, tire repair, windshield wipers, new tires, etc.)

If repairs or vehicle work are required, it shall be the responsibility of the department member to which the vehicle is assigned to facilitate the transport of the vehicle to and from a needed location. If the member has to transport the vehicle for repairs or vehicle work while off-duty, the member shall be compensated.

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If repairs or vehicle work are required for unassigned vehicles, it shall be the responsibility of the fleet manager to facilitate the transport of the vehicle to and from a needed location.

All firearms, electronic control devices (ECD), and kinetic impact devices shall be removed from any department-owned vehicle if the vehicle is being left for repairs, vehicle work, or periodic maintenance.

#### **702.4 DEFECTIVE AND DAMAGED VEHICLES**

A department-owned vehicle shall be removed from service for repair when the vehicle becomes inoperable or experiences any damage or condition that renders it unsafe to operate.

The department member to which the vehicle is assigned, or the department member that was operating the vehicle when the above-outlined damage or condition occurred or was first observed, shall notify his or her immediate supervisor and the fleet manager as soon as practicable.

##### **702.4.1 SEVERE VEHICLE USE**

At times, department-owned vehicles might be operated under severe conditions which include operations for which they are not specifically designed or that exceed the manufacturer's parameters.

Some of these severe conditions may include driving on a rough roadway, off-road driving, unusually hard or extended braking, vehicle pursuits, prolonged high-speed operation, and others.

A department-owned vehicle that is operated under severe conditions should be inspected by the department member that was operating it as soon as practicable to assess for damage or any other condition which may render the vehicle unsafe to operate.

#### **702.5 VEHICLE EQUIPMENT**

Certain items shall be maintained in department-owned vehicles for emergency purposes and in order to perform routine duties.

##### **702.5.1 PATROL VEHICLES**

The following items constitute the minimum equipment that shall be present in each patrol vehicle.

- 8 traffic cones
- 1 roll of crime scene tape
- 1 blood-borne pathogen kit
- 1 biohazard waste disposal bag
- 1 lockout kit
- 1 can of spray paint

##### **702.5.2 UNMARKED AND UNDERCOVER VEHICLES**

The following items constitute the minimum equipment that shall be present in each unmarked or undercover vehicle:

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- 8 traffic cones (except for undercover vehicles)
- 1 roll of crime scene tape
- 1 blood-borne pathogen kit
- 1 biohazard waste disposal bag
- 1 lockout kit (except for undercover vehicles)
- 1 can of spray paint

#### **702.6 SUPERVISOR RESPONSIBILITIES**

Once a month, department supervisors shall conduct a rapid vehicle inspection for each department member that he or she supervises. This rapid inspection will include the following:

- cleanliness check
- tire tread check
- oil change sticker check
- odometer check

During each quarter of the year, or during each 12-week patrol rotation for patrol, department supervisors shall conduct a detailed vehicle inspection for each department member that he or she supervises.

Both these inspections shall be documented on a vehicle inspection form provided by the department. These inspection forms shall then be forwarded or otherwise made available to the department's fleet manager.

It is the responsibility of each supervisor in the department to ensure that those he or she leads are continually striving to follow this policy.

## Vehicle Use

### 703.1 PURPOSE AND SCOPE

The purpose of this policy is to establish a system of accountability to ensure American Fork Police Department vehicles are used appropriately. This policy provides guidelines for on- and off-duty use of department vehicles and shall not be construed to create or imply any contractual obligation by the City of American Fork to provide assigned take-home vehicles.

Additional guidelines for member responsibilities when transporting persons in custody may be found in the Transporting Persons in Custody Policy.

### 703.2 POLICY

The American Fork Police Department may provide department-owned vehicles for use by its members to carry out work-related duties and responsibilities. The department may also assign department-owned vehicles and/or take-home privileges to department members based on a determination of operational efficiency, economic impact on the department, requirements for specialized response, and other considerations.

It is the policy of the department for its members to understand and remember the principle that the department's fleet represents one of the largest investments maintained by American Fork City and the American Fork Police Department. Department members shall continually act in a way that demonstrates a high level of respect and appreciation for this principle and for the department's fleet.

The department's overall fleet program rests within the administrative division of the department. The administrative division commander shall act as the fleet program administrator and the administrative officer shall act as the fleet program manager.

### 703.3 DEFINITIONS

**Assigned Vehicle:** an assigned vehicle is a department-owned vehicle that is assigned to a single member of the department.

**Fleet Manager:** the fleet program manager is assigned by the Chief of Police or designee. The fleet manager assists in overseeing the department's overall fleet operations.

**Mobile Data Terminal System:** a mobile data terminal system is the department's law enforcement database (e.g. Spillman) accessible through a computer or device.

**Vehicle - Marked:** a marked vehicle is any department-owned vehicle that is readily identifiable as a law enforcement or police vehicle through decals, conspicuous lighting, and others. This is regardless of lighting placement such as an interior or exterior lightbar, for example.

The department's traffic vehicles (which contain subdued decals) are considered to be marked vehicles.

The department's motorcycles are considered to be marked vehicles.

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**Vehicle - Support:** a support vehicle is any department-owned vehicle used by the department that does not contain emergency lighting or other emergency equipment. A support vehicle does not contain any features that would potentially render it identifiable as a law enforcement or police vehicle.

The animal control vehicle is considered a support vehicle.

**Vehicle - Unmarked:** an unmarked vehicle is any department-owned vehicle that does not contain decals or conspicuous features that render it readily identifiable as a law enforcement or police vehicle. However, no efforts have been made to fully conceal vehicle lighting components, interior equipment, and others.

**Vehicle - Undercover:** an undercover vehicle is any department-owned vehicle that does not contain decals or conspicuous features that render it readily identifiable as a law enforcement or police vehicle. Additionally, efforts have been made to conceal any and all vehicle lighting components, interior equipment, and others.

#### **703.4 DEPARTMENT OWNED VEHICLES**

The following sections contains general policies related to all department-owned vehicles.

##### **703.4.1 ADMINISTRATIVE SEARCHES**

All department vehicles are subject to inspection and/or search at any time by a supervisor without notice and without cause. No department member to whom a department-owned vehicle is assigned or by whom a department-owned vehicle is being operated shall be entitled to any expectation of privacy with respect to the vehicle or its contents.

##### **703.4.2 AUTHORIZED PASSENGERS**

Department members shall exercise sound judgment in deciding whether to transport non-department members in a department-owned vehicle. Some factors to consider in making this decision include safety, distance traveled, necessity, and others.

Unless emergent circumstances exist, department members shall comply with American Fork Police Department Policy 1011.2 (Wearing of Safety Restraints) when transporting non-department individuals in a department-owned vehicle.

##### **703.4.3 TRANSPORTING INDIVIDUALS**

The interior of any department-owned vehicle that has been used to transport any person other than a member of the department shall be inspected prior to placing another person in the vehicle and again after the person is removed. This is to ensure that unauthorized or personal items have not been left in the vehicle.

When transporting any suspect, prisoner, or arrestee inside a department-owned vehicle, the transporting member shall search all areas of the vehicle that are accessible to the individual before and after that individual is transported.

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#### 703.4.4 UNATTENDED VEHICLES

Unattended vehicles shall be locked and secured at all times.

No key should be left in the vehicle except when the vehicle is left idling out of necessity (e.g., continued activation of emergency lights, canine safety, equipment charging, etc.)

Department-owned vehicles shall not be left unattended and idling in the parking lot of the police department unless the vehicle is a canine vehicle and a canine is inside.

When a vehicle is left unattended, all weapons, department identification, portable radios, and other equipment should be secured.

#### 703.4.5 VEHICLE ACCESSORIES AND/OR MODIFICATIONS

No modifications, additions, or removal of any equipment or installed accessories in any department-owned vehicle may be made without permission from the department's fleet manager.

#### 703.4.6 VEHICLE KEYS

Department members that are assigned a department-owned vehicle will be issued a copy of the vehicle keys. Members shall not duplicate keys. The loss of a key shall be promptly reported to the member's immediate supervisor.

### **703.5 VEHICLE ASSIGNMENT AND TAKE-HOME AUTHORIZATION**

Department-owned vehicles may be assigned to individual department members at the discretion of the Chief of Police or authorized designee. This is different than Take-Home Authorization.

Take-Home Authorization may be granted to individual department members at the discretion of the Chief of Police or authorized designee. This authorization is attached to individual department members rather than to a vehicle.

The assignment of a department-owned vehicle and Take-Home Authorization granted to a department member are a benefit provided by the department. The department may adjust, change, suspend, and/or rescind vehicle assignments and/or Take-Home Authorization according to its sole discretion.

At the department's request, such as during a critical incident or during a fleet shortage, a member shall make an assigned vehicle available to the department as soon as practicable.

Vehicle assignment should be based on the nature of the member's duties, expected availability, job description, essential functions, and employment or appointment status.

Vehicles may be temporarily reassigned or utilized by other department members at the discretion of a division commander or the fleet manager.

A sergeant is also authorized to make short-term vehicle adjustments during the course of his or her shift for members of his or her team.

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#### **703.6 OPERATION OF DEPARTMENT-OWNED VEHICLES**

The following sections contain general policies related to the operation of all department-owned vehicles.

##### **703.6.1 ALCOHOL & MEDICATION**

Department members who have any level of alcohol in their system are prohibited from operating any department-owned vehicle.

Department members who have consumed any medication (including legally prescribed or over-the-counter medication) that has the potential to affect the member's ability to safely operate a vehicle may not operate a department-owned vehicle.

##### **703.6.2 ATTIRE & APPEARANCE**

When operating any department-owned vehicle while off-duty, members may dress in a manner appropriate for their intended activity (e.g., workout clothes for the gym, etc.) Regardless of the intended activity, department members should maintain an attire and appearance that will not reflect negatively upon the department should he or she be viewed by members of the public.

##### **703.6.3 OFF-DUTY ENFORCEMENT ACTION**

When operating a department-owned vehicle while off-duty or while operating a department-owned vehicle outside the jurisdiction of the American Fork Police Department, an officer should not initiate enforcement actions except in those circumstances where an articulable threat to life or safety exists, or where the potential for serious property damage exists.

Officers may render public assistance when deemed prudent (e.g., to a stranded motorist or disabled vehicle blocking traffic. etc.)

##### **703.6.4 PARKING**

Except when responding to an emergency or when exigent circumstances exist, department members shall obey all parking laws and regulations at all times.

##### **703.6.5 TRAVEL AUTHORIZATION**

Absent exigent circumstances, if a department-owned vehicle will be driven outside of Salt Lake, Utah, or Juab Counties, prior authorization shall be obtained from a Division Commander, and the Chief of Police shall be notified by the authorizing Division Commander.

Absent exigent circumstances, if a department-owned vehicle will be driven outside of the State of Utah, prior authorization must be obtained from the Chief of Police.

For purposes of this section, an executed Travel Authorization Packet constitutes authorization as described above.

##### **703.6.6 USE OF TOLL ROADS**

Law enforcement vehicles are not routinely exempted from incurring toll road charges. Although few toll roads exist in the State of Utah, it is possible a department member may come across a toll road in another state pursuant to training or other department-related business.

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Department members are encouraged to plan ahead and select travel routes that avoid the use of toll roads unless doing so would incur a greater expense than simply paying the toll (e.g., fuel costs.)

To avoid unnecessary toll road charges, all members operating a department-owned vehicle upon a toll road shall pay the appropriate toll charge. Members may submit a request for reimbursement from the department for any toll fees incurred during the course of official travel or business.

#### **703.7 VEHICLE MAINTENANCE**

Members to whom vehicles are assigned are solely responsible for the cleanliness (exterior and interior), condition, and overall maintenance of their assigned vehicle as outlined in American Fork Police Department Policy 702.

A member's continued inability or unwillingness to keep his or her assigned vehicle reasonably clean, in excellent working condition, and maintained in a timely manner is grounds for the suspension and/or revocation of the member's Take-Home Authorization.

#### **703.8 VEHICLE DAMAGE & TRAFFIC COLLISIONS**

When any department member is involved in a traffic collision or otherwise incurs damage, the involved member shall immediately notify the member's supervisor, or another supervisor if the member's supervisor is unavailable. Any collision report shall be filed with the agency having jurisdiction (see American Fork Police Department Policy 501 Traffic Collision Reporting.)

When a collision involves a department-owned vehicle or when a member of this department is an involved driver in a collision that occurs within the jurisdiction of the American Fork Police Department, the notified supervisor should request the response of an outside agency to investigate the collision.

Damage to any department vehicle that was not caused by a traffic collision shall be immediately reported to the member's supervisor, or another supervisor if the member's supervisor is unavailable. The member shall then complete a written explanation of the damage and send it to his or her supervisor. The supervisor will then review the incident to assess for any vehicle misuse or abuse.

##### **703.8.1 TRAFFIC COLLISION REVIEW**

All traffic collisions involving a department-owned vehicle and/or an on-duty member of the department shall be administratively reviewed by the Vehicle Pursuit Review Board (as outlined in American Fork Police Department Policy 307.9) within 30 days of the collision. The board shall determine whether the conduct of the department member involved in the collision complied with existing traffic law and department policy.

The board shall then forward their documented review and findings to the Administrative Division Commander. The Administrative Division Commander and the Chief of Police shall make a final determination as to any further outcomes regarding the department member and/or the incident.



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#### **703.9 SUPERVISOR RESPONSIBILITIES**

Supervisors have multiple responsibilities relating to department-owned vehicles. These are outlined in American Fork Police Department Policy 702 (Vehicle Maintenance.)

# Cash Handling, Security and Management

## 704.1 PURPOSE AND SCOPE

This policy provides guidelines to ensure department members handle cash appropriately in the performance of their duties.

This policy does not address cash-handling issues specific to the Property and Evidence and Informants policies.

## 704.2 POLICY

It is the policy of the American Fork Police Department to properly handle and document cash transactions and to maintain accurate records of cash transactions in order to protect the integrity of department operations and ensure the public trust.

## 704.3 PETTY CASH FUNDS

The Chief of Police shall designate a person as the fund manager responsible for maintaining and managing the petty cash fund.

Each petty cash fund requires the creation and maintenance of an accurate and current transaction ledger and the filing of invoices, receipts, cash transfer forms and expense reports by the fund manager.

## 704.4 PETTY CASH TRANSACTIONS

The fund manager shall document all transactions on the ledger and any other appropriate forms. Each person participating in the transaction shall sign or otherwise validate the ledger, attesting to the accuracy of the entry. Transactions should include the filing of an appropriate receipt, invoice or cash transfer form. Transactions that are not documented by a receipt, invoice or cash transfer form require an expense report.

## 704.5 PETTY CASH AUDITS

The fund manager shall perform an audit no less than once every 12 months. This audit requires that the fund manager review the transaction ledger and verify the accuracy of the accounting. The fund manager shall sign or otherwise validate the ledger attesting to the accuracy of all documentation and fund accounting. A discrepancy in the audit requires documentation by those performing the audit and an immediate reporting of the discrepancy to the Chief of Police.

Transference of fund management to another member shall require a separate petty cash audit.

## 704.6 ROUTINE CASH HANDLING

Those who handle cash as part of their property or Narcotics/Vice Unit supervisor duties shall discharge those duties in accordance with the Property and Evidence and Informants policies.

Members who routinely accept payment for department services shall discharge those duties in accordance with the procedures established for those tasks.

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#### **704.7 OTHER CASH HANDLING**

Members of the Department who, within the course of their duties, are in possession of cash that is not their property or that is outside their defined cash-handling responsibilities shall, as soon as practicable, verify the amount, summon another member to verify their accounting, and process the cash for safekeeping or as evidence or found property, in accordance with the Property and Evidence Policy.

Cash in excess of \$1,000 requires immediate notification of a supervisor, special handling, verification and accounting by the supervisor. Each member involved in this process shall complete an appropriate report or record entry.

## **Chapter 8 - Support Services**

# Property and Evidence

## 800.1 PURPOSE AND SCOPE

This policy provides for the proper collection, storage and security of evidence and other property. Additionally, this policy provides for the protection of the chain of evidence and those persons authorized to remove and/or destroy property.

## 800.2 DEFINITIONS

Definitions related to this policy include:

**Cohabitant** - A person who is 18 years old or older, who resides in the same residence as the owner cohabitant, and is any of the following (Utah Code 53-5a-501):

- Living as if a spouse of the owner cohabitant
- Related by blood or marriage to the owner cohabitant
- Has one or more children in common with the owner cohabitant
- Has an interest in the safety and well-being of the owner cohabitant

**Evidence** - Includes items taken or recovered in the course of an investigation that may be used in the prosecution of a case. This includes photographs and latent fingerprints.

**Found Property** - Includes property found by an employee or citizen that has no apparent evidentiary value, and where the owner cannot be readily identified or contacted.

**Owner cohabitant** - A cohabitant who is 18 years old or older and owns a firearm (Utah Code 53-5c-102).

**Property** - Includes all items of evidence, items taken for safekeeping, and found property.

**Safekeeping** - Includes the following types of property:

- Property obtained by the [Department/Office] for safekeeping such as a firearm
- Personal property of an arrestee not taken as evidence
- Property taken for safekeeping under authority of a law

## 800.3 PROPERTY HANDLING

Any employee who first comes into possession of any property, shall retain such property in his/her possession until it is properly tagged and placed in the designated property locker or storage room along with a Property Form. Care shall be taken to maintain the chain of custody for all evidence.

Where ownership can be established as to found property with no apparent evidentiary value, such property may be released to the owner without the need for booking. The Property Form must be completed to document the release of property not booked and the owner shall sign the form acknowledging receipt of the item(s).

The officer shall document the disposition of all property in his or her report.

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#### 800.3.1 PROPERTY BOOKING PROCEDURE

All property must be booked prior to the employee going off-duty unless otherwise approved by a supervisor. Employees booking property should observe the following guidelines:

- (a) Complete the Property Sheet describing each item of property separately, listing all serial numbers, owner's name, finder's name and other identifying information or markings.
- (b) Mark each item of evidence with the booking employee's initials and the date booked using the appropriate method so as not to deface or damage the value of the property.
- (c) Place the case number in the upper right hand corner of the bag or package in which the evidence is contained.
- (d) The original Property Sheet shall be submitted with the evidence to the Evidence Technician, or placed together with the property in the temporary property locker. A copy shall be submitted with the case report.
- (e) When the property is too large to be placed in a locker, the item may be retained in another secure area. Submit the completed property record into a numbered locker indicating the location of the property.

#### 800.3.2 NARCOTICS AND DANGEROUS DRUGS

All narcotics and dangerous drugs shall be booked separately attaching a separate copy of the property report. Paraphernalia as defined by Utah Code 58-37a-3 shall also be booked separately from the drugs with a separate copy of the property report attached.

#### 800.3.3 EXPLOSIVES

Officers who encounter a suspected explosive device shall promptly notify their immediate supervisor or the Shift Supervisor. The bomb squad will be called to handle explosive-related incidents and will be responsible for the handling, storage, sampling and disposal of all suspected explosives.

Explosives will not be retained in the police facility. Only fireworks that are considered stable and safe and road flares or similar signaling devices may be booked into property. All such items shall be stored in proper containers and in an area designated for the storage of flammable materials. The property and evidence technician is responsible for transporting to the fire department, on a regular basis, any fireworks or signaling devices that are not retained as evidence.

#### 800.3.4 EXCEPTIONAL HANDLING

Certain property items require a separate process. The following items shall be processed in the described manner:

- (a) Bodily fluids such as blood or semen stains shall be air dried prior to booking.
- (b) License plates found not to be stolen or connected with a known crime should be booked as lost property.

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- (c) All bicycles and bicycle frames require a Property Sheet. Property tags will be securely attached to each bicycle or bicycle frame, and the property shall be placed in the bicycle storage.
- (d) All cash shall be counted in the presence of a supervisor and the envelope initialed by the booking officer and the supervisor. The Shift Sergeant shall be contacted for cash in excess of \$1,000 for special handling procedures. After counting and verifying the amount, a Currency Receipt must be filled out and signed by booking officer and Verifying Officer and attached to the outside of the sealed evidence package containing the money. All moneys booked into evidence must be packaged separately from other property booked in the case.

City property, unless connected to a known criminal case, should be released directly to the appropriate City department. No formal booking is required. In cases where no responsible person can be located, the property should be booked for safekeeping in the normal manner.

#### 800.3.5 FIREARMS SAFE HARBOR ACT

Officers shall accept a firearm for safekeeping from any cohabitant or owner cohabitant who requests it, and who believes that the owner cohabitant or another cohabitant with access to the firearm is an immediate threat to the cohabitant, the owner cohabitant, or any other individual (Utah Code 53-5a-502).

The officer receiving the firearm shall:

- (a) Record the owner cohabitant's name, address, and telephone number.
- (b) Record the firearm's serial number and the make and model of each firearm received.
- (c) Record the date that the firearm was accepted for safekeeping.
- (d) If the firearm was received from a cohabitant, require that the cohabitant sign a document attesting that the cohabitant resides in a home with the owner cohabitant.

An owner cohabitant committing the firearm shall not be asked or required to provide the name of, or any other information about, the cohabitant who poses the threat.

If a firearm received under the Act is determined to be illegal to possess or to own, the property and evidence technician shall confiscate and book the firearm according to current procedures, notify the person who requested that the firearm be taken for safekeeping of its confiscation, and dispose of the firearm in accordance with Utah Code 77-11a-403 (Utah Code 53-5a-503).

The property and evidence technician shall hold a firearm accepted pursuant to this policy for an initial period of 60 days, renewable for an additional 60 days upon request of the cohabitant or owner cohabitant. At the expiration of this time the firearm shall be returned to the owner cohabitant subject to the following (Utah Code 53-5a-502; Utah Code 53-5a-503):

- If, prior to the expiration of the 60-day period, the owner cohabitant requests return of the firearm in person, it shall be returned after the evidence technician has had sufficient time to verify that the owner cohabitant is indeed the owner of the firearm and that the owner cohabitant may lawfully possess the firearm.

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- If an owner other than the owner cohabitant requests return of the firearm, it may be returned to such owner after the expiration of the 60-day period after it has been verified that the owner may lawfully possess the firearm, and if the owner requesting the firearm provides identification and signs a document attesting to having ownership in the firearm or pursuant to a court order.
- If an owner is subject to a jail release agreement or jail release order arising out of a class A misdemeanor or felony domestic violence offense for which the owner was arrested and jailed and for which a court has determined probable cause exists, the firearm may not be returned until 60 days after the expiration of the jail release agreement or jail release order.
- The firearm may not be returned to the owner cohabitant if the owner cohabitant is a restricted person under Utah Code 76-11-302 or Utah Code 76-11-303 or otherwise prohibited from possessing a firearm under state or federal law.

If more than one year has passed since the firearm was committed and the owner cohabitant cannot be located, the [Department/Office] should dispose of the firearm in accordance with Utah Code 77-11a-403 (Utah Code 53-5a-503).

The property and evidence technician shall destroy any record created exclusively to document the safekeeping of the firearm as soon as practicable but no later than five days after releasing the firearm to the owner, or otherwise disposing of the firearm under the Utah Firearms Safe Harbor Act (Utah Code 53-5a-502).

#### **800.4 PACKAGING OF PROPERTY**

Certain items require special consideration and shall be booked separately as follows:

- (a) Narcotics and dangerous drugs.
- (b) Firearms (ensure they are unloaded and booked separately from ammunition).
- (c) Property with more than one known owner.
- (d) Paraphernalia as described in Utah Code 58-37a-3.
- (e) Fireworks.
- (f) Contraband.

##### **800.4.1 PACKAGING CONTAINER**

Employees shall package all property, except narcotics and dangerous drugs, in a suitable container available for its size. Knife boxes should be used to package knives, and syringe tubes should be used to package syringes and needles.

A property tag shall be securely attached to the outside of all items or group of items packaged together.

##### **800.4.2 PACKAGING NARCOTICS**

The officer seizing narcotics and dangerous drugs shall retain such property in their possession until it is properly weighed, packaged, tagged and placed in evidence, accompanied by a copy



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of the property report. Prior to packaging, and if the quantity allows, a presumptive test should be made on all suspected narcotics. If conducted, the results of this test shall be included in the officer's report.

Narcotics and dangerous drugs shall be packaged in an envelope of appropriate size available in the report room. The booking officer shall initial the sealed envelope and the initials covered with cellophane tape. Narcotics and dangerous drugs shall not be packaged with other property.

#### **800.5 RECORDING OF PROPERTY**

The property and evidence technician receiving custody of evidence or property shall record his/her signature, the date and time the property was received and where the property will be stored on the property control card.

A property number shall be obtained for each item or group of items. This number shall be recorded on the property tag and the property sheet.

Any changes in the location of property held by the American Fork Police Department shall be noted in the Property Logbook.

#### **800.6 PROPERTY CONTROL**

Each time the property and evidence technician releases property to another person, he/she shall enter this information on the evidence release receipt,. Officers desiring property for court shall contact the property and evidence technician at least one day prior to the court date.

##### **800.6.1 RESPONSIBILITY OF OTHER PERSONNEL**

Every time property is released or received, an appropriate entry on the evidence package shall be completed to maintain the chain of possession.

Request for analysis of items other than narcotics or drugs shall be completed on the appropriate forms and submitted to the property and evidence technician. This request may be filled out any time after booking of the property or evidence.

##### **800.6.2 TRANSFER OF EVIDENCE TO CRIME LABORATORY**

The transporting employee will check the evidence out of property, indicating the date and time on the property control card and the request for laboratory analysis.

The property and evidence technician releasing the evidence must complete the required information on the property sheet and the evidence. Upon delivering the item involved, the officer will record the delivery time on the property sheet, and indicate the locker in which the item was placed or the employee to whom it was delivered. The original copy of the lab receipt will remain with the evidence and the copy will be retained by the property and evidence technician.

##### **800.6.3 STATUS OF PROPERTY**

Each person receiving property will make the appropriate entry to document the chain of evidence. Temporary release of property to officers for investigative purposes, or for court, shall be noted on the property control card, stating the date, time and to whom released.

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The property and evidence technician shall obtain the signature of the person to whom property is released, and the reason for release. Any employee receiving property shall be responsible for such property until it is properly returned to property or properly released to another authorized person or entity.

The return of the property should be recorded on the property sheet, indicating date, time and the person who returned the property.

#### 800.6.4 RELEASE OF PROPERTY

The Investigation Unit shall authorize the release of all property coming into the care and custody of the [Department/Office].

Release of property shall be made upon receipt of an authorized property release form, listing the name and address of the person to whom the property is to be released. The property release form shall be signed by the authorizing supervisor or investigator and must conform to the items listed on the property control card or must specify the specific items to be released. Release of all property shall be documented on the property control card.

Firearms or ammunition should only be released upon presentation of valid identification and authorized documents showing that the individual may legally possess the item.

All reasonable attempts shall be made to identify the rightful owner of found property and items held for safekeeping (Utah Code 77-11d-104). A property and evidence technician shall release such property when the owner presents proper identification, and an authorized property release form has been received. The signature of the person receiving the property and the final disposition of the property shall be recorded on the property control card.

Found property and property held for safekeeping shall be held for a minimum of 90 days. If the owner of any unclaimed property cannot be determined or notified, or if the owner has been notified and fails to appear and claim the property, the agency shall (Utah Code 77-11d-105):

- (a) Publish at least one notice (giving a general description of the property and the date of intended disposition) of the intent to dispose of the unclaimed property on the state Public Legal Notice website.
- (b) Post a similar notice in a public place designated for notice within the law enforcement agency.
- (c) Post a similar notice on the City public website of the American Fork Police Department.

If no claim is made for the property, the property may be returned to the person who brought the property to the [Department/Office] or disposed of according to Utah Code 77-11d-105. The final disposition of the property shall be fully documented on the property control card.

If any item listed on a property control card has not been released, the property control card will remain with the Property and Evidence Section. When all property listed on the card has been released, the card shall be forwarded to the Records Section for filing with the case, and the release of all items shall be documented in the property log.

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#### 800.6.5 DISPUTED CLAIMS TO PROPERTY

Occasionally more than one party may claim an interest in property being held by the [Department/Office], and the legal rights of the parties cannot be clearly established. Such property shall not be released until one party has obtained a valid court order or other undisputed right to the involved property.

All parties should be advised that their claims are civil and in extreme situations, legal counsel for the [Department/Office] may wish to file an interpleader to resolve the disputed claim.

#### 800.6.6 CONTROL OF NARCOTICS AND DANGEROUS DRUGS

The property and evidence technician will be responsible for the storage, control and destruction of all narcotics and dangerous drugs coming into the custody of the department, including paraphernalia as described in Utah Code 58-37a-3.

#### 800.7 DISPOSITION OF PROPERTY

All property not held for evidence in a pending criminal investigation or proceeding, and held for six months or longer where the owner has not been located or fails to claim the property, may be disposed of in compliance with existing laws upon receipt of an authorized release form for disposal. The property and evidence technician shall request a disposition or status on all property which has been held in excess of 120 days and for which no disposition has been received from a supervisor or detective.

##### 800.7.1 EXCEPTIONAL DISPOSITIONS

The following types of property shall be destroyed or disposed of in the manner, and at the time prescribed by law, unless a different disposition is ordered by a court of competent jurisdiction:

- Weapons declared by law to be nuisances
- Animals, birds, and related equipment that have been ordered forfeited by the court
- Counterfeiting equipment
- Gaming devices
- Obscene matter ordered to be destroyed by the court
- Altered vehicles or component parts
- Narcotics (Utah Code 58-37-2 et seq.)
- Unclaimed, stolen or embezzled property
- Destructive devices

##### 800.7.2 UNCLAIMED MONEY

If found or seized money is no longer required as evidence and remains unclaimed after nine days of being posted, as described in Release of Property, the [Department/Office] shall notify the person who turned the money over to the [Department/Office]. Any person employed by a

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law enforcement agency who finds or seizes money may not claim or receive the money (Utah Code 77-11d-105).

#### 800.7.3 BIOLOGICAL EVIDENCE

The property and evidence technician shall ensure that no biological evidence held by this [department/office] is destroyed without adequate notification to the following persons, when applicable:

- (a) The defendant
- (b) The defendant's attorney
- (c) The appropriate prosecutor and Attorney General
- (d) Any sexual assault victim
- (e) The Investigation Division Commander

Biological evidence shall be retained for a minimum period established by law (Utah Code 77-11c-201; Utah Code 77-11c-301; Utah Code 77-11c-401; Utah Code 53-10-904; Utah Code 53-10-905) or the expiration of any sentence imposed related to the evidence, whichever time period is greater. Following the retention period, notifications should be made by certified mail and should inform the recipient that the evidence will be destroyed after a date specified in the notice, unless a motion seeking an order to retain the sample is filed and served on this [department/office] within 90 days of the date of the notification. A record of all certified mail receipts shall be retained in the appropriate file. Any objection to, or motion regarding, the destruction of the biological evidence should be retained in the appropriate file and a copy forwarded to the Investigation Division Commander.

Biological evidence related to a homicide shall be retained indefinitely and may only be destroyed with the written approval of the Chief of Police and the head of the applicable prosecutor's office.

Biological evidence from an unsolved sexual offense should not be disposed of prior to expiration of the statute of limitations. Even after expiration of the applicable statute of limitations, the Investigation Division Commander should be consulted and the sexual assault victim should be notified.

#### 800.7.4 PROPERTY NO LONGER NEEDED AS EVIDENCE

When a prosecuting attorney notifies the [Department/Office] that evidence may be returned to the rightful owner, the property and evidence technician shall attempt to notify the rightful owner that the property is available for return. Prior to the release of the property, the owner shall provide (Utah Code 77-11a-301):

- (a) Documentation establishing ownership of the property.
- (b) Documentation that the owner may lawfully possess the property.

Before returning a seized firearm to an owner, the property and evidence technician shall confirm through the Bureau of Criminal Identification, that the owner is eligible to lawfully possess and receive a firearm (Utah Code 24-3-103).

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When the property is returned, a receipt listing the detail of the property shall be signed by the owner and retained by the [Department/Office]. A copy of the receipt shall be provided to the owner (Utah Code 77-11a-301).

If the [Department/Office] is unable to locate the rightful owner or the rightful owner is unable to lawfully possess the property, the [Department/Office] may dispose of the property as provided by Utah Code 77-11a-402.

If a court orders extraction and return of personal digital data from a computer determined to be contraband, the [Department/Office] shall determine reasonable cost to provide the data, which shall be paid by the owner at the time the request is made (Utah Code 77-11a-301).

The [Department/Office] shall dispose of confiscated or unclaimed firearms as provided by Utah Code 77-11a-403.

#### **800.7.5 SEXUAL ASSAULT KITS**

Written notification shall be provided to a victim of the intent to destroy or dispose of a sexual assault kit evidence or other crime scene evidence from an unsolved sexual assault case within 60 days prior to the destruction or disposal (Utah Code 77-37-3).

#### **800.8 INSPECTIONS OF THE EVIDENCE ROOM**

- (a) On a monthly basis, the supervisor of the evidence custodian shall make an inspection of the evidence storage facilities and practices to ensure adherence to appropriate policies and procedures.
- (b) Unannounced inspections of evidence storage areas shall be conducted annually as directed by the Chief of Police.
- (c) An annual audit of evidence held by the [Department/Office] shall be conducted by a Division Commander (as appointed by the Chief of Police) not charged with custody of property.
- (d) Whenever a change is made in personnel who have access to the Evidence Room, an inventory of all evidence/property shall be made by an individual(s) not associated with the property room or its functions to ensure that records are correct and all evidence and property is accounted for.

#### **800.9 ADMITTANCE TO EVIDENCE ROOM**

Admittance to the Evidence Room should be restricted to the evidence custodian(s), the evidence supervisor, and others specifically designated by the Chief of Police. All other individuals entering the Evidence Room require escort and an Evidence Room access log entry shall be made indicating:

- (a) Date and time of entry and exit.
- (b) Name of individual(s) entering the Evidence Room.
- (c) Reason for entry.
- (d) Name of the escort.

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#### **800.10 EVIDENCE ROOM SECURITY AND CONTROLS**

The Evidence Supervisor shall ensure that a secure Evidence Room is established and maintained, and shall establish and maintain an effective system for the secure and proper recording, storage, classification, retrieval, transfer, and disposition of all evidentiary, recovered, and found property.

The Evidence Room shall incorporate special security and control measures to safeguard all money, firearms, controlled substances, and high value items within the protective custody of the American Fork Police Department.

Secure facilities or lockers shall be provided for the storage of in-custody property or evidence during after-hours.

## Records Section

### 801.1 PURPOSE AND SCOPE

This policy establishes the guidelines for the operational functions of the American Fork Police Department Records Section. The policy addresses department file access and internal requests for reports and documents.

### 801.2 POLICY

It is the policy of the American Fork Police Department to maintain [department/office] records securely, professionally, and efficiently.

### 801.3 FILE ACCESS AND SECURITY

The security of files in the Records Section must be a high priority and shall be maintained as mandated by state or federal law. All reports including, but not limited to, initial, supplemental, follow-up, evidence, and any other reports related to a police department case, including field interview (FI) cards, criminal history records, and publically accessible logs, shall be maintained in a secure area within the Department or designated by the Department and accessible only to authorized personnel.

The Records Section may also maintain a secure file for reports or other documents deemed by the Chief of Police as sensitive or otherwise requiring extraordinary access restrictions.

### 801.4 RESPONSIBILITIES

#### 801.4.1 RECORDS SUPERVISOR

The Chief of Police shall appoint and delegate certain responsibilities to a Records Supervisor. The Records Supervisor shall be directly responsible to the Administration Division Commander or the authorized designee.

The responsibilities of the Records Supervisor include but are not limited to:

- (a) Overseeing the efficient and effective operation of the Records Section.
- (b) Scheduling and maintaining Records Section time records.
- (c) Supervising, training, and evaluating Records Section staff.
- (d) Maintaining and updating a Records Section procedure manual.
- (e) Ensuring compliance with established policies and procedures.
- (f) Supervising the access, use, and release of protected information (see the Protected Information Policy).
- (g) Establishing security and access protocols for case reports designated as sensitive, where additional restrictions to access have been implemented. Sensitive reports may include but are not limited to:
  - 1. Homicides
  - 2. Cases involving [department/office] members or public officials

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3. Any case where restricted access is prudent

#### 801.4.2 RECORDS SECTION

The responsibilities of the Records Section include but are not limited to:

- (a) Maintaining a records management system for case reports.
  1. The records management system should include a process for numbering, identifying, tracking, and retrieving case reports.
- (b) Entering case report information into the records management system.
  1. Modification of case reports shall only be made when authorized by a supervisor.
- (c) Providing members of the department with access to case reports when needed for investigation or court proceedings.
- (d) Collecting and maintaining accurate data regarding the department's officer suicides, officers killed and assaulted, crime incidents, and deaths in custody.
- (e) Maintaining compliance with federal, state, and local regulations regarding reporting requirements of crime statistics and law enforcement activity. This includes but is not limited to the submission of:
  1. A monthly crime report and use of force data to the Bureau of Criminal Identification (BCI) (Utah Code 53-10-205).
  2. An annual report to BCI on cases involving the attempted purchase of a firearm by prohibited individuals due to a domestic violence conviction (Utah Code 53-5a-504).
  3. An annual report to the Utah Department of Public Safety (DPS) regarding driving under the influence (DUI) crash and arrest data (Utah Code 53-25-104; Utah Code 53-10-118).
  4. Annual reports to the State Commission on Criminal and Juvenile Justice regarding:
    - (a) Sexual assault investigations (Utah Code 53-25-202).
    - (b) Reverse-location warrants (Utah Code 53-25-301).
    - (c) Genetic genealogy database usage (Utah Code 53-25-401).
    - (d) Firearms lawfully seized from restricted persons (Utah Code 53-25-501).
    - (e) Offenses involving lost, stolen, or untraceable firearms (Utah Code 53-25-502).
    - (f) Lethality assessments and domestic violence cases (Utah Code 63M-7-220).
    - (g) Deployment of tactical groups and forcible entry search warrants (Utah Code 77-7-8.5). This data should be compiled in cooperation with the operations director (see the Warrant Service and Operations Planning and Deconfliction policies).



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- (h) Civil and criminal forfeiture matters disposed of in the previous year (Utah Code 77-11b-404). This data should be compiled in cooperation with the department's asset forfeiture reviewer (see the Asset Forfeiture Policy).
- 5. An annual report to the Government Operations Interim Committee regarding certain statistical facial recognition comparison data, if applicable (Utah Code 77-23E-106) (see the Facial Recognition Technology Use Policy).
- 6. Data to the following federal databases:
  - (a) FBI's Law Enforcement suicide Data Collection.
  - (b) FBI's National use of Force Data Collection.
  - (c) FBI's Law Enforcement Officers Killed and Assaulted Data Collection.
  - (d) Office of Justice Program's Deaths in Custody Reporting Act Data Collection.
- (f) Maintaining compliance with federal, state, and local regulations regarding criminal history reports and auditing.
- (g) Identifying missing case reports and notifying the responsible member's supervisor.
- (h) Receiving forms from individuals requesting to be added or to be removed from a voluntary firearm restriction list and electronically transmitting the forms to BCI (Utah Code 53-5a-504).
- (i) Submitting and updating information on cold cases to DPS for inclusion in the cold case database (Utah Code 53-10-115; UAC R722-920-1 et seq.).
- (j) Coordinating with DPS to facilitate the sharing of information from the department's records management system with the statewide criminal intelligence system (Utah Code 53-25-105).
- (k) Establishing a process for receiving invisible condition alert program forms, entering the information into the department's records management system or CAD system, and removing the information when required (Utah Code 53-27-102).
- (l) Promptly notifying DPS of any report, complaint, or arrest for an offense that, if convicted, requires registration on the Sex, Kidnap, and Child Abuse Offender Registry (Utah Code 53-29-302).

#### **801.5 CONFIDENTIALITY**

American Fork Police Department employees, including Records Staff, have access to information that may be confidential or sensitive in nature. Department members shall not access, view or distribute, or allow anyone else to access, view or distribute any record, file or report, whether hard copy or electronic file format, or any other confidential, protected, or sensitive information except in accordance with department policy and procedure and with a legitimate law enforcement or business purpose or as otherwise permissible by law.

## Records Maintenance and Release

### 803.1 PURPOSE AND SCOPE

This policy provides guidance on the maintenance and release of department records. Protected information is separately covered in the Protected Information Policy.

### 803.2 POLICY

The American Fork Police Department is committed to providing public access to records in a manner that is consistent with the Utah Government Records Access and Management Act (GRAMA) (Utah Code 63G-2-101 et seq.).

### 803.3 RESPONSIBILITIES

The Records Division shall oversee the creation and maintenance of Department records, and Support Services Division shall oversee the dissemination of public records under Utah's Government Records Access and Management Act (GRAMA). The Division Commander over Support Services shall designate GRAMA specialists to process the Department's requests for records.

Responsibilities of the Division Commander over Records include:

- (a) Managing the records management system for the Department, including the retention, archiving, and destruction of department public records.
  - (a) This includes performing the duties specified under the Government Data Privacy Act (Utah Code 63A-19-401).
  - (b) This includes the maintenance and destruction of imaging surveillance data as required by Utah Code 77-23d-105.
- (b) Maintaining and updating the department records retention schedule including:
  - (a) Identifying the minimum length of time the Department must keep records.
  - (b) Identifying the division responsible for the original record.

Responsibilities of the Division Commander over Support Services include:

- (a) Establishing rules regarding the processing of subpoenas for the production of records.
- (b) Ensuring a current schedule of fees for public records as allowed by law is available (Utah Code 63G-2-203).
- (c) Forwarding requests to the appropriate agency when a requester seeks records that are not in the possession of the Department (Utah Code 63G-2-204).
- (d) Performing the duties specified for governmental entities under GRAMA (Utah Code 63G-2-307)
- (e) Identifying records or portions of records that are confidential under state or federal law and not open for inspection or copying. This includes filing a statement with the state archivist explaining the reasons a record series that is designated as private or

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controlled under GRAMA is being collected or used by the Department (Utah Code 63G-2-601).

- (f) Establishing rules regarding the inspection and copying of department public records as reasonably necessary for the protection of such records.

#### **803.4 PROCESSING REQUESTS FOR PUBLIC RECORDS**

Any department member who receives a request for any record shall route the request to a designated GRAMA specialist. No record shall be released without the authorization of a GRAMA specialist, the Division Commander over Support Services, or the Chief of Police. No record involving a homicide or other high-profile incident shall be released to the public without the authorization of the Division Commander over Support Services or the Chief of Police.

No record from an open case, case under investigation, or a case currently being prosecuted shall be released without first consulting the Investigations Division Commander unless otherwise authorized by the Chief of Police.

##### **803.4.1 REQUESTS FOR RECORDS**

The processing of requests for any record is subject to the following:

- (a) The [Department/Office] is not required to create records that do not exist.
- (b) When a record contains material with release restrictions and material that is not subject to release restrictions, the restricted material shall be redacted and the unrestricted material released.
  - (a) A copy of the redacted release should be maintained for proof of what was actually released and as a place to document the reasons for the redactions. If the record is audio/video, a copy of the redacted audio/video release should be maintained in the [department/office]-approved media storage system and a notation should be made in the case file to document the release and the reasons for the redacted portions.
- (c) Requests for records must be in writing and contain the requester's name, physical address, phone number, email address (if the requestor has an email address and wishes to receive records via that address) and a description of the record requested (Utah Code 63G-2-204).
- (d) A GRAMA specialist shall review each request for records within 10 business days unless the person has requested an expedited response. Expedited requests must be reviewed within five business days (Utah Code 63G-2-204).
- (e) Unless the GRAMA specialist is prohibited by law from releasing the requested record; extraordinary circumstances exist, as defined in Utah Code 63G-2-204; or the request is submitted by or on behalf of a person confined in a jail or other correctional facility, the record shall be released (Utah Code 63G-2-201).
  - 1. If the existence of extraordinary circumstances precludes approval or denial of the request within the time permitted under law, additional time may be granted.
  - 2. Requests made by or on behalf of a person in jail or another correctional facility for a record that contains a specific reference to the individual so confined may

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be released up to five times per calendar year. This restriction does not apply to requests submitted by an attorney of the individual (Utah Code 63G-2-201).

- (f) If a GRAMA specialist denies a request, a notice of denial shall be sent to the requester. The notice shall contain a description of the record denied, the legal basis upon which the GRAMA specialist relied in denying the request, and information related to the appeal process available to the requester (Utah Code 63G-2-205).

#### **803.4.2 APPEALS**

The denial of a request for records or a fee waiver by a GRAMA specialist may be appealed to the Chief of Police (Utah Code 63G-2-401). Upon receipt of a notice to appeal, the Chief of Police must review and make a determination within 10 business days (or five business days if the requester or interested party demonstrates that an expedited decision benefits the public). If a determination is not made within the specified time frame, the appeal shall be considered denied.

If the Chief of Police affirms the denial, notice shall be sent to the requester informing them of (Utah Code 63G-2-401):

- (a) The right to appeal the denial to the City Administrator;
- (b) The time limits for filing such appeal; and
- (c) The contact information of the City Administrator.

#### **803.5 RELEASE RESTRICTIONS**

Examples of release restrictions include:

- (a) Any personal identifying information, including an individual's Social Security and driver identification numbers; address and telephone number; and medical or disability information that is contained in any driver license record, motor vehicle record or any [department/office] record, including traffic accident reports, are restricted except as authorized by the [Department/Office], and only when such use or disclosure is permitted or required by law to carry out a legitimate law enforcement purpose (18 USC § 2721; 18 USC § 2722; Utah Code 53-3-109; Utah Code 41-6a-404).
- (b) Victim information that may be protected by statutes (Utah Code 77-37-4).
- (c) Personnel records (Utah Code 63G-2-302; Utah Code 63G-2-303).
  - 1. Specific personnel information related to undercover officers or investigative personnel is exempt from disclosure if release could reasonably impair the effectiveness of investigations or endanger any individual's safety (Utah Code 63G-2-301).
- (d) Properly classified records that contain medical, psychiatric, or psychological data about a person if release would be detrimental to the person's mental health or safety, or would violate normal professional practice and medical ethics (Utah Code 63G-2-304).
- (e) Records created exclusively in anticipation of potential litigation involving this [department/office] (Utah Code 63G-2-305).
- (f) Automated license plate reader (ALPR) data (Utah Code 41-6a-2004).

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- (g) Imaging surveillance data (Utah Code 77-23d-105).
- (h) Certain types of reports involving but not limited to child abuse and neglect (Utah Code 80-2-1005).
- (i) Certain audio and video recordings created by a body-worn camera that recorded sound or images:
  - 1. Inside a home or residence (Utah Code 63G-2-302; Utah Code 77-7a-107).
  - 2. Inside a hospital or health care facility, inside a clinic of a health care provider, or inside a human service program (Utah Code 63G-2-305).
- (j) Certain data collected by an unmanned aerial system (Utah Code 72-10-803).
- (k) Any other information that may be appropriately denied by:
  - 1. Utah Code 63G-2-302 (private records).
  - 2. Utah Code 63G-2-303 (private information of government employees).
  - 3. Utah Code 63G-2-304 (controlled records).
  - 4. Utah Code 63G-2-305 (protected records).

#### **803.6 SUBPOENAS AND DISCOVERY REQUESTS**

Any member who receives a subpoena duces tecum or discovery request for records should promptly contact a supervisor and a GRAMA specialist for review and processing. While a subpoena duces tecum may ultimately be subject to compliance, it is not an order from the court that will automatically require the release of the requested information.

Generally, discovery requests and subpoenas from criminal defendants and their authorized representatives (including attorneys) should be referred to the Prosecuting Attorney, City Attorney or the courts.

All questions regarding compliance with any subpoena duces tecum or discovery request should be promptly referred to legal counsel for the Department so that a timely response can be prepared.

#### **803.7 RELEASED RECORDS TO BE MARKED**

Each page of any written record released pursuant to this policy should be stamped in a colored ink or otherwise marked to indicate the department name and to whom the record was released.

Whenever possible, each audio/video recording released should include the department name and to whom the record was released.

#### **803.8 EXPUNGEMENT**

Expungement orders received by the [Department/Office] shall be reviewed for appropriate action by the Division Commander over Records or their designee. The Division Commander over Records shall ensure such records are expunged as ordered by the court. Records may include but are not limited to a record of arrest, investigation, detention, or conviction. Once expunged, members shall respond to any inquiry as though the record did not exist.

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The Division Commander over Records shall provide written confirmation that all records have been expunged by the [Department/Office] to the individual receiving the expungement if requested (Utah Code 77-40a-401).

Upon receiving an order for vacatur, the Division Commander over Records shall comply with the provisions of Utah Code 77-40a-402.

#### **803.9 TRAINING**

All GRAMA specialists shall, on an annual basis, successfully complete an online records management training and certification course provided by the Utah Department of Administrative Services' Division of Archives and Records Service (Utah Code 63G-2-108).

#### **803.10 RELEASE OF RECORDINGS RELATED TO CRITICAL INCIDENTS**

Video and audio recordings of incidents made by officers of this [department/office] that resulted in death or serious bodily injury of an individual or during which an officer fired a weapon shall be released upon receipt of a proper public records request.

The Division Commander over Support Services should coordinate as appropriate with the Chief of Police or the prosecuting agency to determine which recordings may qualify for disclosure when a request for a recording is received (Utah Code 77-7a-107).

#### **803.11 DATA SECURITY**

Members who become aware that any [department/office] system containing personal information may have been breached should notify the Division Commander over Records as soon as practicable.

If a data breach occurs, the Utah Cyber Center and Attorney General should be notified, and an internal incident report should be prepared, when required by Utah Code 63A-19-405. Notice should be provided to individuals affected by the data breach when appropriate pursuant to Utah Code 63A-19-406.

## Protected Information

### 804.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for the access, transmission, release, and security of protected information by members of the American Fork Police Department. This policy addresses the protected information that is used in the day-to-day operation of the [Department/Office] and not the public records information covered in the Records Maintenance and Release Policy.

#### 804.1.1 DEFINITIONS

Definitions related to this policy include:

**Protected information** - Any information or data that is collected, stored or accessed by members of the American Fork Police Department and is subject to any access or release restrictions imposed by law, regulation, order or use agreement. This includes all information contained in federal, state or local law enforcement databases that is not accessible to the public.

### 804.2 POLICY

Members of the American Fork Police Department will adhere to all applicable laws, orders, regulations, use agreements and training related to the access, use, dissemination and release of protected information.

### 804.3 RESPONSIBILITIES

The Division Commander over the Records Division shall coordinate the use of protected information or select a designee who shall coordinate such use.

The responsibilities of this position include, but are not limited to:

- (a) Ensuring member compliance with this policy and with requirements applicable to protected information, including requirements for the National Crime Information Center (NCIC) system, National Law Enforcement Telecommunications System (NLETS), Department of Motor Vehicle (DMV) records and the Utah Criminal Justice Information System (UCJIS).
- (b) Developing, disseminating and maintaining procedures that adopt or comply with the U.S. Department of Justice's current Criminal Justice Information Services (CJIS) Security Policy.
- (c) Developing, disseminating and maintaining any other procedures necessary to comply with any other requirements for the access, use, dissemination, release and security of protected information.
- (d) Developing procedures to ensure training and certification requirements are met.
- (e) Resolving specific questions that arise regarding authorized recipients of protected information.
- (f) Ensuring security practices and procedures are in place to comply with requirements applicable to protected information.

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#### **804.4 ACCESS TO PROTECTED INFORMATION**

Protected information shall not be accessed in violation of any law, order, regulation, user agreement, American Fork Police Department policy or training. Only those members who have completed applicable training and met any applicable requirements, such as a background check, may access protected information, and only when the member has a legitimate work-related reason for such access.

Any Department member who obtains access to an intimate image (as defined in state law) in the course of a criminal action is expressly prohibited displaying, duplicating, copying or sharing the intimate image unless it is done solely for the purpose of the adjudication, defense, prosecution or investigation of a criminal matter involving the intimate image as required by state law.

Unauthorized access to any protected information, including access for other than a legitimate work-related purpose, is prohibited and may subject a member to administrative action pursuant to the Personnel Complaints Policy and/or criminal prosecution.

##### **804.4.1 PENALTIES FOR MISUSE OF RECORDS**

Misuse of access to criminal history record information is a class B misdemeanor (Utah Code 53-10-108).

Divulging the content of any criminal record to anyone other than authorized personnel is a violation of the Standards of Conduct Policy.

Employees who obtain, or attempt to obtain, information from the department files other than that to which they are entitled in accordance with their official duties are in violation of the Standards of Conduct Policy.

#### **804.5 RELEASE OR DISSEMINATION OF PROTECTED INFORMATION**

Protected information may be released only to authorized recipients who have both a right to know and a need to know (Utah Code 53-10-108).

A member who is asked to release protected information that should not be released should refer the requesting person to a supervisor or to the Records Supervisor for information regarding a formal request.

Unless otherwise ordered or when an investigation would be jeopardized, protected information maintained by the [Department/Office] may generally be shared with authorized persons from other law enforcement agencies who are assisting in the investigation or conducting a related investigation. Any such information should be released through the Records Section to ensure proper documentation of the release (see the Records Maintenance and Release Policy).

Protected information, such as Criminal Justice Information (CJI), which includes Criminal History Record Information (CHRI), should generally not be transmitted by radio, cellular telephone, or any other type of wireless transmission to members in the field or in vehicles through any computer or electronic device, except in cases where there is an immediate need for the information to further



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an investigation or where circumstances reasonably indicate that the immediate safety of officers, other [department/office] members or the public is at risk.

Nothing in this policy is intended to prohibit broadcasting warrant information.

#### **804.6 SECURITY OF PROTECTED INFORMATION**

The Chief of Police will select a member of the [Department/Office] to oversee the security of protected information.

The responsibilities of this position include but are not limited to (see the CJIS Access, Maintenance, and Security Policy for additional guidance):

- (a) Developing and maintaining security practices, procedures, and training.
- (b) Ensuring federal and state compliance with the CJIS Security Policy and the requirements of any state or local criminal history records systems.
- (c) Establishing procedures to provide for the preparation, prevention, detection, analysis, and containment of security incidents, including computer attacks.
- (d) Tracking, documenting, and reporting all breach of security incidents to the Chief of Police and appropriate authorities (Utah Code 63A-19-405; Utah Code 63A-19-406).
- (e) Developing procedures and ensuring compliance with the Government Data Privacy Act (Utah Code 63A-19-401 et seq.).

##### **804.6.1 MEMBER RESPONSIBILITIES**

Members accessing or receiving protected information shall ensure the information is not accessed or received by persons who are not authorized to access or receive it. This includes leaving protected information, such as documents or computer databases, accessible to others when it is reasonably foreseeable that unauthorized access may occur (e.g., on an unattended table or desk; in or on an unattended vehicle; in an unlocked desk drawer or file cabinet; on an unattended computer terminal).

##### **804.6.2 INTIMATE IMAGES**

Any member who obtains access to an intimate image (as defined in Utah Code 76-5b-203) in the course of a criminal action shall not display, duplicate, copy, or share the intimate image unless the member is doing so solely for the purpose of the adjudication, defense, prosecution, or investigation of a criminal matter involving the intimate image as required by state law (Utah Code 76-5b-203.5). Any such disclosure of an intimate image requires supervisory approval.

#### **804.7 TRAINING**

All members authorized to access or release protected information shall complete a training program that complies with any protected information system requirements and identifies authorized access and use of protected information, as well as its proper handling and dissemination.

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#### 804.7.1 DATA PRIVACY TRAINING

All members with access to personal data retained by the [Department/Office] shall complete data privacy training within 30 days of beginning employment and annually thereafter (Utah Code 63A-19-401.2).

# Computers and Digital Evidence

## 805.1 PURPOSE AND SCOPE

This policy establishes procedures for the seizure and storage of computers, personal communications devices (PCDs) digital cameras, digital recorders and other electronic devices that are capable of storing digital information; and for the preservation and storage of digital evidence. All evidence seized and/or processed pursuant to this policy shall be done so in compliance with clearly established Fourth Amendment and search and seizure provisions.

## 805.2 SEIZING COMPUTERS AND RELATED EVIDENCE

Computer equipment requires specialized training and handling to preserve its value as evidence. Officers should be aware of the potential to destroy information through careless or improper handling, and therefore they should utilize the most knowledgeable available resources. When possible, this includes enlisting the help of a computer forensics examiner, who will make an exact copy, or mirror image, of the computer's hard drive; the original will be stored as evidence. This eliminates the possibility of altering or destroying any evidence on the original. The examiner will then search the copy of the hard drive for evidence.

When seizing a computer and accessories the following steps should be taken:

- (a) Photograph each item, front and back, specifically including cable connections to other items. Look for a phone line or cable to a modem for Internet access.
- (b) Do not overlook the possibility of the presence of physical evidence on and around the hardware relevant to the particular investigation such as fingerprints, biological or trace evidence and/or documents.
- (c) If the computer is off, do not turn it on.
- (d) If the computer is on, do not shut it down normally and do not click on anything or examine any files.
  - 1. Photograph the screen, if possible, and note any programs or windows that appear to be open and running.
  - 2. Disconnect the power cable from the back of the computer box or if a portable notebook style, disconnect any power cable from the case and remove the battery.
- (e) Label each item with case number, evidence sheet number, and item number.
- (f) Handle and transport the computer and storage media (e.g., tape, discs, memory cards, flash memory, external drives) with care so that potential evidence is not lost.
- (g) Lodge all computer items in the Property Room. Do not store computers where normal room temperature and humidity is not maintained.
- (h) At minimum, officers should document the following in related reports:

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1. Where the computer was located and whether it was in operation.
  2. Who was using it at the time.
  3. Who claimed ownership.
  4. If it can be determined, how it was being used.
- (i) In most cases when a computer is involved in criminal acts and is in the possession of the suspect, the computer itself and all storage devices (hard drives, tape drives and disk drives) should be seized along with all media. Accessories (printers, monitors, mouse, scanner, keyboard, cables, software and manuals) should not be seized unless as a precursor to forfeiture.

#### **805.2.1 BUSINESS OR NETWORKED COMPUTERS**

If the computer belongs to a business or is part of a network, it may not be feasible to seize the entire computer. Cases involving networks require specialized handling. Officers should contact a certified forensic computer examiner for instructions or a response to the scene. It may be possible to perform an on-site inspection, or to image the hard drive only of the involved computer. This should only be done by someone specifically trained in processing computers for evidence.

#### **805.2.2 FORENSIC EXAMINATION OF COMPUTERS**

If an examination of the contents of the computer's hard drive, storage discs or any other storage media is required, an exact duplicate of the hard drive or disk will be made using a forensic computer and a forensic software program by someone trained in the examination of computer storage devices. The officer will then forward the following items to a computer forensic examiner:

- (a) Copy of report(s) detailing how the computer was used in criminal activities. Also include the Evidence/Property sheet.
- (b) Copy of a consent to search form signed by the computer owner or the person in possession of the computer, or a copy of a search warrant authorizing the search of the computer hard drive for evidence relating to the investigation.
- (c) A listing of the items to search for (e.g., photographs, financial records, e-mail, documents).
- (d) An exact duplicate of the hard drive or disk will be made using a forensic computer and a forensic software program by someone trained in the examination of computer storage devices for evidence.

#### **805.3 SEIZING DIGITAL STORAGE MEDIA**

Digital storage media including hard drives, CDs, DVDs, tapes, memory cards or flash memory devices should be seized and stored in a manner that will protect them from damage.

- (a) If the media has a write-protection tab or switch, it should be activated.
- (b) If the department member intends for the storage media to be submitted to a computer forensic examiner by the Evidence Technician, the member should not review, access or open the original digital files prior to booking the storage media into evidence.

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However, if information is needed for immediate investigation, the department member may copy the contents of the storage media prior to booking, and access the copies for investigative purposes thereafter.

- (c) Many kinds of storage media can be erased or damaged by magnetic fields. Keep all media away from magnetic devices, electric motors, radio transmitters or other sources of magnetic fields.
- (d) Do not leave storage media where it would be subject to excessive heat, such as in a parked vehicle on a hot day.
- (e) Use plastic cases designed to protect the media, or other protective packaging, to prevent damage.

#### **805.4 SEIZING PCDS**

Personal communication devices such as cell phones, PDAs or other hand-held devices connected to any communication network must be handled with care to preserve evidence that may be on the device, which includes messages, stored data and/or images.

- (a) Do not turn the device on or off. The device should be placed in "airplane mode" or placed in a solid metal container such as a paint can or in a Faraday shielding bag to prevent the device from sending or receiving information from its host network.
- (b) When seizing the devices, also seize the charging units so that the devices can be charged as needed. Whenever possible, seized PCDs should be kept charged to avoid complete battery depletion and potential data loss.

#### **805.5 DIGITAL EVIDENCE RECORDED BY OFFICERS**

Officers handling and submitting recorded and digitally stored evidence from digital cameras and audio or video recorders will comply with these procedures to ensure the integrity and admissibility of such evidence.

##### **805.5.1 COLLECTION OF DIGITAL EVIDENCE**

Once relevant evidence is recorded it shall not be erased, deleted or altered in any way prior to submission or attachment to the case file in the Department records management system. The original photographs, video files, and audio files taken as evidence will not be altered in any way.

##### **805.5.2 SUBMISSION OF DIGITAL MEDIA**

The following are required procedures for the submission of digital media created by cameras or other recorders, including cellphones.

- (a) Any digital media evidence (e.g. video, audio, photographs, etc.) delivered to or generated by a department member with a cellphone or any other recording device shall be uploaded to the related case file in the Department's records management system or booked into evidence as soon as possible. Once the Department member verifies that the files have been successfully uploaded to the records management system or booked into evidence, and once the Department member no longer needs the files for investigation of the case, they shall ensure that any copies of the files still remaining outside of the uploaded/booked copies are permanently deleted from any

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other computers, drives, devices, or accounts to which the files were saved as soon as possible.

- (b) Any digital media evidence delivered to or generated by a department member containing nude or partially nude images shall be saved in a hard-copy format (e.g. DVD, thumb drive, hard drive) and booked into evidence as soon as possible. Such files shall not be uploaded to the Department records management system, and after booking the evidence, any remaining copies of the files still remaining outside of the booked copies shall be permanently deleted from any computers, drives, devices, or accounts to which the files were saved as soon as possible.
- (c) Any exceptions to this policy (e.g. copies of evidentiary files retained for training purposes) must be approved by the Chief of Police, the Investigations Division Commander, or the Support Services Division Commander.

#### 805.5.3 PRESERVATION OF DIGITAL EVIDENCE

- (a) Original digital media shall remain in evidence and shall remain unaltered.
- (b) Digital images that are enhanced to provide a better quality photograph for identification and investigative purposes must only be made from a copy of the original media.
- (c) If any enhancement is done to the copy of the original, it shall be noted in the corresponding incident report.

## Animal Control

### 806.1 PURPOSE AND SCOPE

The purpose of this policy is to establish guidelines for interacting with animals and responding to calls for service that involve animals.

### 806.2 ANIMAL CONTROL RESPONSIBILITIES

Animal control services are generally the primary responsibility of the Animal Control Officer(s) (ACO) and include the following:

- (a) Animal-related matters during periods when the ACO is available.
- (b) Ongoing or persistent animal nuisance complaints. Such complaints may be scheduled, if reasonable, for handling during periods that the ACO is available for investigation and resolution.
- (c) Follow-up on animal-related calls, such as locating owners of injured animals.

### 806.3 MEMBER RESPONSIBILITY

Non-ACO members who respond to or assist with animal-related calls for service should evaluate the situation to determine appropriate actions to control the situation. If the ACO is available and will be arriving to handle the call, any non-ACO responding member generally should not attempt to capture and pick up any animal, but should keep the animal under observation until the arrival of the ACO.

Members may consider acting before the arrival of the ACO when:

- (a) There is a threat to the public safety.
- (b) An animal has bitten someone. Members should take measures to confine the animal and prevent further injury.
- (c) An animal is creating a traffic hazard.
- (d) An animal is seriously injured.

During hours when the ACO is off-duty, or if the ACO is otherwise unavailable, animal-related calls for service will be handled by the appropriate on-duty officer.

### 806.4 DECEASED ANIMALS

When a member becomes aware of a deceased animal, all reasonable attempts should be made to preliminarily determine if the death of the animal is related to criminal activity.

Deceased animals on public property should be removed and properly disposed of by the ACO. Officers will remove and properly dispose of deceased animals when the ACO is not on-duty or is otherwise unavailable. Deceased animals shall be placed in the designated freezer.

Members should not climb onto or under any privately owned structure for the purpose of removing a deceased animal.

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#### **806.5 INJURED ANIMALS**

When a member becomes aware of an injured domesticated animal, all reasonable attempts shall be made to contact the owner or responsible handler. If an owner or responsible handler cannot be located, the animal should be taken to a designated animal care facility.

Each incident shall be documented, at a minimum, to include the name of the reporting party and the animal care facility and/or person to whom the animal was released.

##### **806.5.1 INJURED WILDLIFE**

Members encountering injured wildlife should contact the Utah Division of Wildlife Resources or one of the Division's authorized wildlife rehabilitators.

#### **806.6 POST-ARREST PROCEDURES**

The arresting officer should make a reasonable effort to ensure that animals or pets under a person's care will be provided with adequate care when that person is arrested. This is only required when there is no person to provide care and the arrestee is expected to be in custody for a time period longer than would reasonably allow him/her to properly care for the animals.

Relatives or neighbors may be contacted, with the owner's consent, to care for the animals. If no persons can be found or the owner does not consent, the appropriate animal control authority should be notified.

#### **806.7 POLICY**

It is the policy of the American Fork Police Department to be responsive to the needs of the community regarding animal-related issues. This includes enforcing local, state and federal laws relating to animals and appropriately resolving or referring animal-related problems, as outlined in this policy.

#### **806.8 ANIMAL CRUELTY COMPLAINTS**

Laws relating to the cruelty to animals should be enforced, including but not limited to Utah Code 76-9-301 et seq.

- (a) Officers shall conduct a preliminary investigation on all reports of animal cruelty and forward the information to the ACO for follow-up. Department members shall not hesitate to take any immediate actions deemed necessary.
- (b) Legal steps should be taken to protect an animal that is in need of immediate care or protection from acts of cruelty.

#### **806.9 STRAY DOGS**

If the dog has a license or can otherwise be identified, the owner should be contacted, if possible. If the owner is contacted, the dog should be released to the owner and a citation may be issued, if appropriate. If a dog is taken into custody, it shall be transported to the appropriate shelter. Members shall provide reasonable treatment to animals in their care (e.g., food, water, shelter). When an animal is taken into custody, the responding Department member shall ensure that the ACO Log is completely filled out.



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Once a dog has been taken into custody, all releases should be handled by the Animal Shelter.

#### **806.10 ANIMAL BITE REPORTS**

Members investigating an animal bite should obtain as much information as possible for follow-up with the appropriate health or animal authorities. Officers shall instruct the owner of a biting animal, if contacted, to keep the animal confined on the property until contacted by the ACO. If the animal is a stray, then every effort shall be made to capture and impound the animal immediately. Members should attempt to identify and notify the owner of the final disposition of the animal.

#### **806.11 PUBLIC NUISANCE CALLS RELATING TO ANIMALS**

Members should diligently address calls related to nuisance animals (e.g., barking dogs), as such calls may involve significant quality of life issues. Members shall obtain and forward to the ACO as much information as possible regarding the nature of the complaint, complaining person, owner information, location of problem, as well as any actions taken, citation(s) issued and related report numbers.

#### **806.12 DESTRUCTION OF ANIMALS**

When it is necessary to use a firearm to euthanize a badly injured animal or stop an animal that poses an imminent threat to human safety, the Firearms Policy shall be followed. A badly injured animal shall only be euthanized with the approval of the Shift Supervisor.

When handling dead or injured animals, Department members shall attempt to identify and notify the owner of the final disposition of the animal.

Each incident shall be documented, at a minimum, to include the name of the reporting party, veterinary hospital and/or person to whom the animal was released. If the ACO is off-duty, the information will be forwarded for follow-up.

#### **806.13 DANGEROUS ANIMALS**

In the event responding members cannot fulfill a request for service because an animal is difficult or dangerous to handle, the Shift Sergeant will be contacted to determine available resources, including requesting the assistance of animal control services from an allied agency. Any requests for assistance from other agencies must be approved by the Shift Supervisor.

# Communications Operations

## 807.1 PURPOSE AND SCOPE

The basic function of the communications system is to satisfy the immediate information needs of the law enforcement agency in the course of its normal daily activities and during emergencies. The latter situation places the greatest demands upon the communications system and tests the capability of the system to fulfill its functions. Measures and standards of performance are necessary to assess the effectiveness with which any department, large or small, uses available information technology in fulfillment of its missions.

### 807.1.1 FCC COMPLIANCE

American Fork Police Department radio operations shall be conducted in accordance with Federal Communications Commission (FCC) procedures and guidelines.

## 807.2 COMMUNICATIONS OPERATIONS

Through a contracted dispatch center, this department provides 24-hour telephone service to the public for information or assistance that may be needed in emergencies. The ability of citizens to telephone quickly and easily for emergency service is critical. This department provides access to the 911 system for a single emergency telephone number. The dispatch center will possess the capability for recording and immediate playback of all radio transmission and all incoming telephone calls.

In the event that a misdirected emergency call comes in to the general Department phone number during open office hours, it will be promptly routed to the 911 system.

This department has two-way radio capability providing continuous communication between Dispatch and officers.

## 807.3 RADIO COMMUNICATIONS

Operations are more efficient and officer safety is enhanced when dispatchers, supervisors and fellow officers know the status of officers, their locations and the nature of cases.

### 807.3.1 OFFICER IDENTIFICATION

Identification systems are based on factors such as beat assignment and officer identification numbers. Employees should use the entire call sign when initiating communication with the dispatcher. The use of the call sign allows for a brief pause so that the dispatcher can acknowledge the appropriate vehicle. Employees initiating communication with other agencies shall use their entire call sign. This requirement does not apply to continuing conversation between the mobile vehicle and dispatcher once the mobile vehicle has been properly identified.

## 807.4 RECORDING AND PLAYBACK

Dispatch shall have the capability for recording and playback of all radio communications and incoming telephone calls. Recording equipment shall allow for immediate playback at Dispatch positions to allow for dispatcher review of information.

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#### **807.5 ALTERNATE POWER SOURCE**

The [Department/Office] shall have an alternate source of electrical power that is sufficient to ensure the continued operation of the emergency communication equipment if the primary power source fails.

## Police Social Worker

### 808.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for the deployment and use of a Police Social Worker employed by the American Fork Police Department. This policy specifically addresses the jurisdiction, essential duties and responsibilities, response guidelines, and referral procedures for a Police Social Worker.

### 808.2 POLICY

The department recognizes that many individuals that come into contact with the police have social service needs. It is the policy of the American Fork Police Department to assist with meeting the social service needs of its community members, as appropriate, through a Police Social Worker employed by the Department. The Police Social Worker may also consult with department personnel for crisis intervention, as needed.

### 808.3 CHARACTERISTICS AND FUNCTIONS

The Police Social Worker is a professionally-trained social worker who works in conjunction with staff members and sworn officers in providing social service assistance to community members.

The Police Social Worker is assigned to the patrol division and reports to the patrol division commander. As a non-sworn employee, the Police Social Worker does not have the powers of a peace officer and, therefore, has no powers of arrest.

The Police Social Worker is available to the community as a source of assistance, information, and/or referral. Due to the fact effective social service intervention and prevention generally require more than just police intervention, the Police Social Worker facilitates a coordinated and comprehensive community response in a co-responder model and provides access to a variety of agencies, organizations, and services.

The Police Social Worker primarily works to address severe personal and family problems which are often caused by mental illness, substance abuse, or co-occurring disorders, and which are often signaled by recurring calls for police service. The Police Social Worker works to assess a community member's needs for referral to other mental health services or other social services, as needed. The Police Social Worker also assists with on-scene crisis intervention as authorized by the patrol division commander.

On-duty hours for the Police Social Worker shall be determined by the patrol division commander based on the needs of the department. If an incident requiring crisis intervention occurs during on-duty hours, the Police Social Worker may be authorized by the patrol division commander or on-duty patrol supervisor to report to a scene. The Police Social Worker may also be authorized to cover pre-scheduled "on-call" periods; during which time, the Police Social Worker may be available for call-out in response to individuals in crisis. When not in the office during on-duty hours, the Police Social Worker shall be available by phone or text message.

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When the Police Social Worker is not on duty and a crisis situation arises, the Police Social Worker, if available, may be called out by the on-duty supervisor. A determination will be made by the on-duty supervisor and the Police Social Worker as to the type of intervention needed (e.g., referral to an appropriate agency; phone counseling; reporting to the scene or to the station, and others.) Instances requiring this type of intervention might include when an individual is having an extreme psychiatric emergency and is in need of immediate supportive or referral service.

#### **808.4 DUTIES AND RESPONSIBILITIES**

- (a) A Police Social Worker is not a sworn peace officer and will not take any type of law enforcement action. A Police Social Worker is considered a secondary responder rather than a first responder.
- (b) A Police Social Worker provides support to individuals experiencing exigent or emergent needs which may require outside agency referrals, including:
  - 1. Individuals requiring referral for psychiatric assistance or evaluation due to mental illness
  - 2. Individuals that have threatened and/or attempted, or are threatening and/or are attempting self-harm
  - 3. Family members of individuals that have successfully self-harmed
  - 4. Family members of a deceased individual
  - 5. Individuals requiring referral for alcohol and/or substance abuse
- (c) The Police Social Worker shall review all police reports and, with the assistance of the patrol division commander or designee, shall determine individuals that may benefit from or that may require social service intervention.
- (d) Cooperation between the Police Social Worker and an investigating officer shall be maintained. Any written reports shall indicate that both are assigned to allow for effective case assignment for follow-up and/or investigation.
- (e) The Police Social Worker will contact the primary officer should further information be required for follow-up or in order to contact individuals and/or applicable organizations. The Police Social Worker shall be cognizant of the goals of any investigative efforts and should consult with any assigned personnel as needed should an investigation be potentially affected or impacted by social service provision or individual contact.
- (f) The Police Social Worker may also work with victim advocates employed by the Department, and any other victim advocates as authorized by the patrol division commander.

#### **808.5 RESPONSE GUIDELINES**

With regard to scene response and on-scene presence, a Police Social Worker:

- (a) may not be assigned as the primary unit unless the call is initiated by the Police Social Worker and does not require any law enforcement action.
- (b) may not interview any individual under the influence of any substance without a sworn officer present.

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- (c) may not interview any individual if weapons are known to be present until after the scene has been secured by an officer.
- (d) may not transport any individual under the influence of any substance.
- (e) may not transport any individual the Police Social Worker and/or officer reasonably believes may become violent or aggressive.

#### **808.6 REQUEST FOR ASSISTANCE PROCEDURES**

- (a) An officer may initiate a formal request for assistance from a Police Social Worker by phone, e-mail, or in person. The officer should provide at a minimum:
  - 1. All available information concerning the person who needs the intervention.
  - 2. The nature of the request and any pertinent background information that is essential to the Police Social Worker.
- (b) An officer may initiate a request for assistance that is in progress or actually occurring by radio or phone.
- (c) An officer initiating a formal request for assistance from a Police Social Worker shall complete a basic police report through Spillman which will be made available to the Police Social Worker.
- (d) In the event of a psychiatric emergency, officers should contact the Police Social Worker who, if available, will help to facilitate placement in an appropriate facility. Specific procedures for handling these types of emergencies are outlined in the Department's policy on Crisis Intervention (Policy 429.)
- (e) For domestic violence incidents which result in the need for emergency shelter or placement, the Police Social Worker should refer the victim to the victim advocates employed by the Department with placement.
- (f) The Police Social Worker will work with the crisis response networks already established in Utah County, which may include:
  - 1. Wasatch Behavioral Health
  - 2. Provo Behavioral Hospital
  - 3. Utah State Developmental Center
  - 4. Crisis Intervention Team (CIT) members from other agencies
  - 5. Intermountain Healthcare, Steward Health Care, and Mountainstar Healthcare organization

#### **808.7 JURISDICTION**

The jurisdiction of the Police Social Worker will include the geographic areas of American Fork City and Cedar Hills City. The Police Social Worker may also assist with incidents occurring within the jurisdictions of the Lone Peak Police Department and Pleasant Grove Police Department, as needed and as resources permit.

## **Chapter 9 - Custody**

# Temporary Custody of Adults

## 900.1 PURPOSE AND SCOPE

This policy provides guidelines to address the health and safety of adults taken into temporary custody by members of the American Fork Police Department for processing prior to being released or transferred to a housing or other type of facility.

Temporary custody of juveniles is addressed in the Temporary Custody of Juveniles Policy. Juveniles will not be permitted where adults in custody are being held.

Custodial searches are addressed in the Custodial Searches Policy.

### 900.1.1 DEFINITIONS

Definitions related to this policy include:

**Holding cell/cell** - Any locked enclosure for the custody of an adult or any other enclosure that prevents the occupants from being directly visually monitored at all times by a member of the Department.

**Safety checks** - Direct, visual observation by a member of this department performed at random intervals, within time frames prescribed in this policy, to provide for the health and welfare of adults in temporary custody.

**Temporary custody** - The time period an adult is in custody at the American Fork Police Department prior to being released or transported to a housing or other type of facility.

## 900.2 POLICY

The American Fork Police Department is committed to releasing adults from temporary custody as soon as reasonably practicable, and to keeping adults safe while in temporary custody at the Department. Adults should be in temporary custody only for as long as reasonably necessary for investigation, processing, transfer or release.

## 900.3 PRISONER SUPERVISION AND CLASSIFICATION

### 900.3.1 INDIVIDUALS WHO SHOULD NOT BE IN TEMPORARY CUSTODY

Individuals who exhibit certain behaviors or conditions should not be in temporary custody at the American Fork Police Department, but should be transported to a jail facility, a medical facility or other type of facility as appropriate. These include:

- (a) Any individual who is unconscious or has been unconscious while being taken into custody or while being transported.
- (b) Any individual who has a medical condition, including pregnancy, or who may require medical attention, supervision or medication while in temporary custody.
- (c) Any individual who is seriously injured.
- (d) Individuals who are a suspected suicide risk (see the Civil Commitments Policy).



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1. If the officer taking custody of an individual believes that he/she may be a suicide risk, the officer shall ensure continuous direct supervision until evaluation, release or a transfer to an appropriate facility is completed.
- (e) Individuals who are obviously in crisis, as defined in the Crisis Intervention Incidents Policy.
- (f) Individuals who are under the influence of alcohol, a controlled substance or any substance to the degree that may require medical attention, or who have ingested any substance that poses a significant risk to their health, whether or not they appear intoxicated.
- (g) Any individual who has exhibited extremely violent or continuously violent behavior.
- (h) Any individual who has claimed, is known to be afflicted with, or displays symptoms of any communicable disease that poses an unreasonable exposure risk.
- (i) Any individual with a prosthetic or orthopedic device where removal of the device would be injurious to his/her health or safety.

Officers taking custody of a person who exhibits any of the above conditions should notify a supervisor of the situation. These individuals should not be in temporary custody at the Department unless they have been evaluated by a qualified medical or mental health professional, as appropriate for the circumstances.

#### 900.3.2 SUPERVISION IN TEMPORARY CUSTODY

An authorized department member capable of supervising shall be present at all times when an individual is held in temporary custody. The member responsible for supervising should not have other duties that could unreasonably conflict with his/her supervision. If the person in custody is deaf or hard of hearing or cannot speak, accommodations shall be made to provide this ability.

When practicable, at least one female department member should be present when a female adult is in temporary custody.

Absent exigent circumstances, such as a medical emergency or a violent subject, members should not enter the cell of a person of the opposite sex unless a another Department member is also present..

No individual in custody shall be permitted to supervise, control or exert any authority over other individuals in custody.

#### 900.3.3 ENTRY RESTRICTIONS

Entry into any location where a person is held in custody should be restricted to:

- (a) Authorized members entering for official business purposes.
- (b) Emergency medical personnel when necessary.
- (c) Any other person authorized by the shift supervisor.

When practicable, more than one authorized member should be present for entry into a location where a person is held in custody for security purposes and to witness interactions.

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#### **900.4 INITIATING TEMPORARY CUSTODY**

The officer responsible for an individual in temporary custody should evaluate the person for any apparent chronic illness, disability, vermin infestation, possible communicable disease or any other potential risk to the health or safety of the individual or others. The officer should inquire as to the current health of the individual in custody and any medications taken or required by the individual in custody. The officer should also observe and note the individual's behavior, including state of consciousness and mental status, as well as any body deformities, trauma markings, bruises, lesions, jaundice, or difficulty of movement. The officer should also specifically ask if the individual is contemplating suicide and evaluate him/her for obvious signs or indications of suicidal intent.

If the person in custody is being received from an outside agency, positive identification shall be made of the person or officer presenting the person in custody, including verification of the person's authority to make commitment. The receiving officer should ask the arresting officer if there is any statement, indication or evidence surrounding the individual's arrest and transportation that would reasonably indicate the individual is at risk for suicide or critical medical care. If there is any suspicion that the individual may be suicidal, he/she shall be transported to the City jail or the appropriate mental health facility.

The officer should promptly notify the Shift Sergeant of any conditions that may warrant immediate medical attention or other appropriate action. The Shift Sergeant shall determine whether the individual will be placed in a cell, immediately released or transported to jail or other facility.

##### **900.4.1 SCREENING AND PLACEMENT**

The officer responsible for an individual in custody shall:

- (a) Advise the Shift Sergeant of any significant risks presented by the individual (e.g., suicide risk, health risk, violence).
- (b) Evaluate the following issues against the stated risks in (a) to determine the need for placing the individual in a single cell:
  1. Consider whether the individual may be at a high risk of being sexually abused based on all available known information (28 CFR 115.141), or whether the person is facing any other identified risk.
  2. Provide any individual identified as being at a high risk for sexual or other victimization with heightened protection. This may include (28 CFR 115.113; 28 CFR 115.141):
    - (a) Continuous, direct sight and sound supervision.
    - (b) Single-cell placement in a cell that is actively monitored on video by a member who is available to immediately intervene.
  3. Ensure individuals are separated according to severity of the crime (e.g., felony or misdemeanor).
  4. Ensure individuals are separated based upon their sex, as defined by Utah Code 68-3-12.5, by sight and sound when in cells (Utah Code 63G-31-201).

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5. Ensure restrained individuals are not placed in cells with unrestrained individuals.
- (c) Ensure that those confined under civil process or for civil causes are kept separate from those who are in temporary custody pending criminal charges.
- (d) Ensure separation, as appropriate, based on other factors, such as age, criminal sophistication, assaultive/non-assaultive behavior, mental state, disabilities, and sexual orientation.

#### 900.4.2 CONSULAR NOTIFICATION

Consular notification may be mandatory when certain foreign nationals are arrested. The Patrol Division Commander will ensure that the U.S. Department of State's list of countries and jurisdictions that require mandatory notification is readily available to department members. There should also be a published list of foreign embassy and consulate telephone and fax numbers, as well as standardized notification forms that can be transmitted and then retained for documentation. Prominently displayed signs informing foreign nationals of their rights related to consular notification should also be posted in areas used for the temporary custody of adults.

Department members assigned to process a foreign national shall:

- (a) Inform the individual, without delay, that he/she may have his/her consular officers notified of the arrest or detention and may communicate with them.
  1. This notification should be documented.
- (b) Determine whether the foreign national's country is on the U.S. Department of State's mandatory notification list.
  1. If the country is on the mandatory notification list, then:
    - (a) Notify the country's nearest embassy or consulate of the arrest or detention by fax or telephone.
    - (b) Tell the individual that this notification has been made and inform him/her without delay that he/she may communicate with consular officers.
    - (c) Forward any communication from the individual to his/her consular officers without delay.
    - (d) Document all notifications to the embassy or consulate and retain the faxed notification and any fax confirmation for the individual's file.
  2. If the country is not on the mandatory notification list and the individual requests that his/her consular officers be notified, then:
    - (a) Notify the country's nearest embassy or consulate of the arrest or detention by fax or telephone.
    - (b) Forward any communication from the individual to his/her consular officers without delay.

#### 900.5 SAFETY, HEALTH AND OTHER PROVISIONS

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#### 900.5.1 TEMPORARY CUSTODY LOGS

Any time an individual is in temporary custody at the American Fork Police Department, the custody shall be promptly and properly documented in an incident report, including:

- (a) Identifying information about the individual, including their name.
- (b) Date and time of arrival at the [Department/Office].
- (c) Arrest information, including any charges for which the individual is in temporary custody and any case number.
- (d) Time of all safety checks.
- (e) Any medical and other screening requested and completed, including:
  - 1. Current health of the individual in temporary custody.
  - 2. Behavior, involving state of consciousness and mental status.
  - 3. Medications taken.
  - 4. Body deformities, trauma markings, bruises, lesions, jaundice, and ease of movement.
- (f) Any emergency situations or unusual incidents.
- (g) Any other information that may be required by other authorities, such as compliance inspectors.
- (h) Date and time of release from the American Fork Police Department.
- (i) Property inventory and disposition (see the Custodial Searches Policy).

The Shift Sergeant should make periodic checks to ensure all safety and security checks are made on time.

#### 900.5.2 MEDICAL CARE

First-aid equipment and basic medical supplies should be available to department members. The holding facility first aid kit should be subjected to regular inspections and replenished as needed. At least one member who has current certification in basic first aid and CPR should be on-duty at all times.

Should a person in custody be injured or become ill, appropriate medical assistance should be sought. A supervisor should meet with those providing medical aid at the facility to allow access to the person. Members shall comply with the opinion of medical personnel as to whether an individual in temporary custody should be transported to the hospital. If the person is transported while still in custody, he/she will be accompanied by an officer.

Those who require medication while in temporary custody should not be at the American Fork Police Department. They should be released or transferred to another facility as appropriate.

Any in-custody suspect who requires attention at a medical facility but cannot be released a medical facility without law enforcement supervision to due to the seriousness of the underlying offense, circumstances of the arrest, or a security risk posed by the suspect shall be transferred

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to a medical facility under the continuous supervision and control of an accompanying officer. The accompanying officer shall immediately notify their supervisor, who shall immediately notify the patrol division commander. The division commander shall issue orders as to how to maintain custody of the suspect during their time at the medical facility.

#### 900.5.3 ORTHOPEDIC OR PROSTHETIC APPLIANCE

Subject to safety and security concerns, individuals shall be permitted to retain an orthopedic or prosthetic appliance. However, if the appliance presents a risk of bodily harm to any person or is a risk to the security of the facility, the appliance may be removed from the individual unless its removal would be injurious to his/her health or safety.

Whenever a prosthetic or orthopedic appliance is removed, the Shift Sergeant shall be promptly apprised of the reason. It shall be promptly returned when it reasonably appears that any risk no longer exists.

#### 900.5.4 FIREARMS AND OTHER SECURITY MEASURES

Firearms shall not be permitted in secure areas where individuals are in custody or are processed. They should be properly secured outside of the secure area. An exception may occur only during emergencies, upon approval of a supervisor.

Individuals in custody shall not be given access to culinary equipment, tools, or other objects that could be modified for use as a weapon.

All perimeter doors to secure areas shall be kept locked at all times, except during routine cleaning, when no individuals in custody are present or in the event of an emergency, such as an evacuation.

The Department shall provide a system in the holding facility designed to alert a designated control point in the event of an emergency.

#### 900.5.5 TELEPHONE CALLS AND VISITATION

Every individual in temporary custody should be allowed to make a reasonable number of completed telephone calls as soon as possible after arrival.

- (a) Telephone calls may be limited to local calls, except that long-distance calls may be made by the individual at his/her own expense.
  - 1. The Department should pay the cost of any long-distance calls related to arranging for the care of a child or dependent adult (see the Child and Dependent Adult Safety Policy).
- (b) The individual should be given sufficient time to contact whomever he/she desires and to make any necessary arrangements, including child or dependent adult care, or transportation upon release.
  - 1. Telephone calls are not intended to be lengthy conversations. The member assigned to monitor or process the individual may use his/her judgment in determining the duration of the calls.

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- (c) Calls between an individual in temporary custody and his/her attorney shall be deemed confidential and shall not be monitored, eavesdropped upon or recorded.
- (d) Outside of attorney visitation, no visitation shall occur absent exigent circumstances and prior approval by a supervisor with the rank of Division Commander or greater.

#### 900.5.6 TEMPORARY CUSTODY REQUIREMENTS

Members monitoring or processing anyone in temporary custody shall ensure:

- (a) Safety checks and significant incidents/activities are noted on the log.
- (b) Individuals in custody are informed that they will be monitored at all times, except when using the toilet.
  - 1. There shall be no viewing devices, such as peep holes or mirrors, of which the individual is not aware.
  - 2. This does not apply to surreptitious and legally obtained recorded interrogations.
- (c) There is reasonable access to toilets and wash basins.
- (d) There is reasonable access to a drinking fountain or water.
- (e) There are reasonable opportunities to stand and stretch, particularly if handcuffed or otherwise restrained.
- (f) There is privacy during attorney visits.
- (g) Those in temporary custody are generally permitted to remain in their personal clothing unless it is taken as evidence or is otherwise unsuitable or inadequate for continued wear while in custody.
- (h) Clean blankets are provided as reasonably necessary to ensure the comfort of an individual.
  - 1. The supervisor should ensure that there is an adequate supply of clean blankets.
- (i) Adequate shelter, heat, light and ventilation are provided without compromising security or enabling escape.
- (j) Adequate furnishings are available, including suitable chairs or benches.

#### 900.5.7 RELIGIOUS ACCOMMODATION

Subject to available resources, safety and security, the religious beliefs and needs of all individuals in custody should be reasonably accommodated. Requests for religious accommodation should generally be granted unless there is a compelling security or safety reason and denying the request is the least restrictive means available to ensure security or safety. The responsible supervisor should be advised any time a request for religious accommodation is denied.

Those who request to wear headscarves or simple head coverings for religious reasons should generally be accommodated absent unusual circumstances. Head coverings shall be searched before being worn.

Individuals wearing headscarves or other approved coverings shall not be required to remove them while in the presence of or while visible to the opposite sex if they so desire. Religious garments

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that substantially cover the individual's head and face may be temporarily removed during the taking of any photographs.

#### **900.5.8 MAXIMUM CAPACITY**

In the event that the Department's temporary holding facility reaches maximum capacity, the jail, and, as needed, neighboring agencies may be contacted to arrange for the holding of additional persons in custody.

#### **900.5.9 FIRE SAFETY**

The temporary holding facility shall have an automatic fire alarm, a heat and smoke detection system, and fire equipment approved in writing by state or local fire officials. The fire detection devices and alarm system should be inspected as required by fire code.

The temporary holding facility shall have a posted emergency evacuation plan and designated and signed emergency exits directing evacuation of persons to hazard-free areas.

#### **900.5.10 MEDICATION**

Members are not authorized to distribute prescription or over-the-counter medication to individuals in temporary custody. If it is not practicable to release or transfer an individual in temporary custody who needs medication, the Shift Sergeant should be contacted for further direction.

Medication removed from an individual in temporary custody shall be stored as property and released in accordance with the Custodial Searches Policy.

#### **900.5.11 EMERGENCY ALARMS**

Members should have reasonable access to emergency alarms (i.e., duress/panic alarms) in all temporary detention and cell areas either as part of an installed system or as a function on members' portable radios.

Members entering a temporary detention or cell area not equipped with an installed emergency alarm system shall carry portable radios when a person in temporary custody is present.

### **900.6 USE OF RESTRAINT DEVICES**

Individuals in custody may be handcuffed in accordance with the Handcuffing and Restraints Policy. If an individual is to be secured to an immovable object, it will be designed and intended for such use. Unless an individual presents a heightened risk, handcuffs should generally be removed when the person is in a cell.

The use of restraints, other than handcuffs or leg irons, generally should not be used for individuals in temporary custody at the American Fork Police Department unless the person presents a heightened risk, and only in compliance with the Handcuffing and Restraints Policy.

Individuals in restraints shall be kept away from other unrestrained individuals in custody and monitored to protect them from abuse.

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#### 900.6.1 PREGNANT ADULTS

Women who are known to be pregnant should be restrained in accordance with the Handcuffing and Restraints Policy.

#### 900.6.2 IMMOVABLE OBJECTS

If an individual in temporary custody is secured to an immovable object, the object should be designed and intended for such use.

Individuals may only be secured to an immovable object on a temporary basis.

### **900.7 PERSONAL PROPERTY**

The personal property of an individual in temporary custody should be removed, inventoried and processed as provided in the Custodial Searches Policy, unless the individual requests a different disposition. For example, an individual may request property (i.e., cash, car or house keys, medications) be released to another person. A request for the release of property to another person must be made in writing. Legally possessed medications belonging to the individual in custody should be processed and stored the same as other personal property. Such medications will be released upon verification from the individual's health care provider that the medications are legally possessed. If an individual in custody claims to need medication that has been taken from them while in temporary custody at the Department, Department members shall not administer the medication; rather, medical personnel shall be summoned to determine whether the medication will be administered. Personal property taken from individuals in custody shall be stored securely. Release of the property requires the recipient's signature on the appropriate form.

Upon release of an individual from temporary custody, his/her items of personal property shall be compared with the inventory, and he/she shall sign a receipt for the property's return. If the individual is transferred to another facility or court, the member transporting the individual is required to obtain the receiving person's signature as notice of receipt. The Department shall maintain a copy of the property receipt.

The Shift Sergeant shall be notified whenever an individual alleges that there is a shortage or discrepancy regarding his/her property. The Shift Sergeant shall attempt to prove or disprove the claim.

### **900.8 HOLDING CELLS**

A thorough inspection of a cell shall be conducted before placing an individual into the cell to ensure there are no weapons or contraband and that the cell is clean and sanitary. An inspection also should be conducted when the individual is released. Any damage noted to the cell should be photographed and documented.

The following requirements shall apply:

- (a) The individual shall be searched (see the Custodial Searches Policy), and anything that could create a security or suicide risk, such as contraband, hazardous items, belts, shoes or shoelaces, and jackets, shall be removed.



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- (b) The individual shall constantly be monitored by an audio/video system during the entire custody.
  - 1. Audio/video equipment shall be controlled to reduce any unnecessary invasion of the individual's personal privacy.
- (c) The individual shall have constant auditory access to [department/office] members.
  - 1. An audio system that enables the individual to alert a dispatcher or an officer in the event of emergency shall remain on at all times when an individual is in a cell.
  - 2. In the event the audio system is inoperative or non-operational, a member shall be assigned to monitor the individual.
- (d) The individual's initial placement into and removal from a locked enclosure shall be logged.
- (e) Safety checks by [department/office] members shall occur no less than every 15 minutes.
  - 1. Safety checks should be at varying times.
  - 2. All safety checks shall be logged.
  - 3. The safety check should involve questioning the individual as to their well-being.
  - 4. Individuals who are sleeping or apparently sleeping should be awakened.
  - 5. Requests or concerns of the individual should be logged.
- (f) Clean blankets are provided as reasonably necessary to ensure the comfort of an individual.
  - 1. The supervisor should ensure that there is an adequate supply of clean blankets.
- (g) A documented face-to-face count of the detainee population shall be conducted at least once every eight hours.

#### 900.8.1 CELL EQUIPMENT CONTROL

Culinary devices (e.g., utensils, plates, glassware) should not be permitted in cells where individuals are in custody. Meals, if provided, should be consumable without culinary devices.

If repairs are necessary to any part of the cell area:

- (a) Individuals in temporary custody shall not be present in the immediate area of such work.
- (b) Maintenance employees or contract workers shall not enter the cell area without authorization from a supervisor.
- (c) A member shall monitor the use of any tools and equipment in the area for the duration of the work.
- (d) The supervising member shall ensure that workers have removed all tools and equipment and conduct a documented security inspection of the cell area upon completion of the work.

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#### 900.8.2 RECEIVING ITEMS

Individuals in temporary custody shall not receive personal items, mail, or packages while being detained in a cell.

#### 900.8.3 VISITORS

Visitation of individuals in temporary custody should not be permitted.

The Shift Sergeant may authorize an attorney to visit with an individual in temporary custody for the purpose of private consultation, subject to the following:

- (a) The visiting attorney's name and address shall be recorded.
- (b) The visiting attorney and any belongings should be searched before the visit.
- (c) Visits should take place in an authorized interview room or temporary detention area.
  - 1. The visitation shall be monitored from outside the room or area, and audio recording equipment shall be turned off during the visit.

#### 900.8.4 EXCEEDING CAPACITY

In the event of a mass arrest, individuals should be placed in an appropriate holding cell, handcuffed to a fixed object approved for such use, kept secure in a transport vehicle, or otherwise secured as directed by the Shift Sergeant. Areas used for temporary custody under these circumstances shall be inspected for weapons, objects that may be used as weapons, and contraband before and after use.

Temporary overcrowding of a holding cell is permitted under these circumstances until such time as the overcrowding situation can be reasonably relieved, through the transfer or release of persons being held. An officer shall be assigned to a cell area for the purpose of maintaining security whenever there is an overcrowding situation.

If releasing a sufficient number of detainees to relieve the temporary overcrowding situation is not practicable, the Shift Sergeant shall request the use of neighboring law enforcement agencies' holding facilities with the use of [department/office] members to maintain security and control, if requested by the other agency.

#### **900.9 SUICIDE ATTEMPT, DEATH OR SERIOUS INJURY**

The Patrol Division Commander will ensure procedures are in place to address any suicide attempt, death or serious injury of any individual in temporary custody at the American Fork Police Department. The procedures should include the following:

- (a) Immediate request for emergency medical assistance if appropriate
- (b) Immediate notification of the Shift Sergeant, Chief of Police and Investigation Division Commander
- (c) Notification of the spouse, next of kin or other appropriate person
- (d) Notification of the appropriate prosecutor
- (e) Notification of the City Attorney

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- (f) Notification of the Medical Examiner
- (g) Evidence preservation

At the discretion of the Chief of Police, the department may request that any or all of the above events be investigated by an outside agency.

#### **900.10 RELEASE AND/OR TRANSFER**

When an individual is released or transferred from custody, the member releasing the individual should ensure the following:

- (a) All proper reports, forms and logs have been completed prior to release.
- (b) A check has been made to ensure that the individual is not reported as missing and does not have outstanding warrants.
- (c) It has been confirmed that the correct individual is being released or transported.
- (d) All property, except evidence, contraband or dangerous weapons, has been returned to, or sent with, the individual.
- (e) All pertinent documentation accompanies the individual being transported to another facility (e.g., copies of booking forms, medical records, an itemized list of his/her property, warrant copies).
- (f) The individual is not permitted in any nonpublic areas of the American Fork Police Department unless escorted by a member of the Department.
- (g) Any known threat or danger the individual may pose (e.g., escape risk, suicide potential, medical condition) is documented, and the documentation transported with the individual if he/she is being sent to another facility.
  - 1. The department member transporting the individual shall ensure such risks are communicated to intake personnel at the other facility.
- (h) Generally, persons of the opposite sex, or adults and juveniles, should not be transported in the same vehicle unless they are physically separated by a solid barrier. If segregating individuals is not practicable, officers should be alert to inappropriate physical or verbal contact and take appropriate action as necessary.
- (i) Whenever practicable, transfers between facilities or other entities, such as a hospital, should be accomplished with a custodial escort of the same sex as the person being transferred to assist with his/her personal needs as is reasonable.

##### **900.10.1 ESCAPE DURING TRANSPORT**

The Patrol Division Commander will ensure procedures are in place to address any escape of an individual during transport by the American Fork Police Department. The procedures should include:

- (a) Actions to be taken by the officers conducting the transport.
- (b) Supervisor responsibilities.
- (c) Re-capture planning.

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- (d) Persons to be notified of the escape.
- (e) Written reports by the officers conducting the transport.

#### **900.11 ESCAPE**

In the event that a person being transported or otherwise in custody escapes, the officer responsible shall immediately notify his/her supervisor and, as directed by the supervisor, take the steps necessary to regain custody of the individual. Such steps may include:

- (a) Calling for backup to assist in establishing a perimeter and initiating a search
- (b) Calling for canine assistance as needed
- (c) Calling for air support as needed

Any escape that occurs, even if temporary, shall be documented appropriately in a report.

#### **900.12 TRAINING**

Department members should be trained and familiar with this policy and any supplemental procedures, including the use of Department fire suppression equipment and other equipment as needed.

##### **900.12.1 ADDITIONAL TRAINING REQUIREMENTS**

[Department/Office] members shall be trained in the operations of the holding facility, including fire suppression and equipment provided for use by the [Department/Office].

#### **900.13 ASSIGNED ADMINISTRATOR**

The Patrol Division Commander will ensure any reasonably necessary supplemental procedures are in place to address the following issues:

- (a) General security
- (b) Key control
- (c) Sanitation and maintenance
- (d) Emergency medical treatment
  - 1. A first aid kit shall be available in all facilities.
  - 2. First aid kits shall be inspected periodically and replenished when necessary.
- (e) Escapes
- (f) Evacuation plans
  - 1. The facility shall have a written and posted emergency evacuation plan and designated and signed emergency exit(s) directing evacuation of persons to hazard-free areas.
- (g) Fire- and life-safety
  - 1. Temporary detention areas and cells shall have an automatic fire alarm and heat and smoke detection system, and fire equipment approved in writing by state or local fire officials.

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- 2. Fire equipment (i.e., extinguishers) and fire detection devices shall be inspected and tested as required by applicable fire codes.
- (h) Disaster plans
- (i) Building and safety code compliance

#### **900.14 RECEIVING DETAINEES FROM AN OUTSIDE AGENCY**

If a member of an outside agency presents an individual to be held in temporary custody at the [Department/Office], the person presenting the individual shall be positively identified. If unknown, the person presenting the individual in custody should be required to produce appropriate identification and their legal authority to make the commitment.

# Custodial Searches

## 901.1 PURPOSE AND SCOPE

This policy provides guidance regarding searches of individuals in custody. Such searches are necessary to eliminate the introduction of contraband, intoxicants, or weapons into the American Fork Police Department facility. Such items can pose a serious risk to the safety and security of [department/office] members, individuals in custody, contractors, and the public.

Guidance for custody searches when transporting a person in custody may be found in the Transporting Persons in Custody Policy.

Nothing in this policy is intended to prohibit the otherwise lawful collection of evidence from an individual in custody.

### 901.1.1 DEFINITIONS

Definitions related to this policy include:

**Custody search** - An in-custody search of an individual and of his/her property, shoes and clothing, including pockets, cuffs and folds on the clothing, to remove all weapons, dangerous items and contraband.

**Physical body cavity search** - A search that includes a visual inspection and may include a physical intrusion into a body cavity. Body cavity means the stomach or rectal cavity of an individual, and the vagina of a female person.

**Strip search** - A search that requires an individual to remove or rearrange some or all of his/her clothing to permit a visual inspection of the underclothing, breasts, buttocks, anus or outer genitalia. This includes monitoring an individual who is changing clothes, where his/her underclothing, buttocks, genitalia or female breasts are visible.

## 901.2 POLICY

All searches shall be conducted with concern for safety, dignity, courtesy, respect for privacy and hygiene, and in compliance with policy and law to protect the rights of those who are subject to any search.

Searches shall not be used for intimidation, harassment, punishment or retaliation.

## 901.3 STRIP SEARCHES

No individual in temporary custody at any American Fork Police Department facility shall be subjected to a strip search unless there is reasonable suspicion based upon specific and articulable facts to believe the individual has a health condition requiring immediate medical attention or is concealing a weapon or contraband. If an individual in custody gives consent to a strip search, a search warrant is generally not required. However, members should obtain a search warrant for individuals refusing to consent to a strip search, unless postponing the strip search to wait for a warrant would pose a risk to the safety of officers or others. Factors to be considered in determining reasonable suspicion include but are not limited to:

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- (a) The detection of an object during a custody search that may be a weapon or contraband and cannot be safely retrieved without a strip search.
- (b) Circumstances of a current arrest that specifically indicate the individual may be concealing a weapon or contraband.
  - 1. A felony arrest charge or being under the influence of a controlled substance should not suffice as reasonable suspicion absent other facts.
- (c) Custody history (e.g., past possession of contraband while in custody, assaults on department members, escape attempts).
- (d) The individual's actions or demeanor.
- (e) Criminal history (i.e., level of experience in a custody setting).

No transgender or intersex individual shall be searched or examined for the sole purpose of determining the individual's genital status. If the individual's genital status is unknown, it may be determined during conversations with the person, by reviewing medical records, or as a result of a broader medical examination conducted in private by a medical practitioner (28 CFR 115.115).

#### 901.3.1 STRIP SEARCH PROCEDURES

Strip searches at American Fork Police Department facilities shall be conducted as follows (28 CFR 115.115):

- (a) Written authorization from the Shift Sergeant shall be obtained prior to the strip search.
- (b) All members involved with the strip search shall be of the same sex as the individual being searched, unless the search is conducted by a medical practitioner.
- (c) All strip searches shall be conducted in a professional manner under sanitary conditions and in a secure area of privacy so that it cannot be observed by those not participating in the search. The search shall not be reproduced through a visual or sound recording.
- (d) Whenever possible, a second member of the same sex should also be present during the search, for security and as a witness to the finding of evidence.
- (e) Members conducting a strip search shall not touch the breasts, buttocks or genitalia of the individual being searched.
- (f) The primary member conducting the search shall prepare a written report to include:
  - 1. The facts that led to the decision to perform a strip search.
  - 2. The reasons less intrusive methods of searching were not used or were insufficient.
  - 3. The written authorization for the search, obtained from the Shift Sergeant.
  - 4. The name of the individual who was searched.
  - 5. The name and sex of the members who conducted the search.
  - 6. The name, sex and role of any person present during the search.
  - 7. The time and date of the search.

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8. The place at which the search was conducted.
  9. A list of the items, if any, that were recovered.
  10. The facts upon which the member based his/her belief that the individual was concealing a weapon or contraband.
- (g) No member should view an individual's private underclothing, buttocks, genitalia or female breasts while that individual is showering, performing bodily functions or changing clothes, unless he/she otherwise qualifies for a strip search. However, if serious hygiene or health issues make it reasonably necessary to assist the individual with a shower or a change of clothes, a supervisor should be contacted to ensure reasonable steps are taken to obtain the individual's consent and/or otherwise protect his/her privacy and dignity.

#### **901.3.2 SPECIAL CIRCUMSTANCE FIELD STRIP SEARCHES**

A strip search may be conducted in the field only with Shift Sergeant authorization and only in exceptional circumstances, such as when:

- (a) There is probable cause to believe that the individual is concealing a weapon or other dangerous item that cannot be recovered by a more limited search.
- (b) There is probable cause to believe that the individual is concealing controlled substances or evidence that cannot be recovered by a more limited search, and there is no reasonable alternative to ensure the individual cannot destroy or ingest the substance during transportation.

These special-circumstance field strip searches shall only be authorized and conducted under the same restrictions as the strip search procedures in this policy, except that the Shift Sergeant authorization does not need to be in writing.

#### **901.4 PHYSICAL BODY CAVITY SEARCH**

Physical body cavity searches shall be subject to the following (Utah Code 77-7-17.5):

- (a) No individual shall be subjected to a physical body cavity search without written approval of the Shift Sergeant and only upon a search warrant or approval of legal counsel. A copy of any search warrant and the results of the physical body cavity search shall be included with the related reports and made available, upon request, to the individual or authorized representative (except for those portions of the warrant ordered sealed by a court).
- (b) Only a physician may conduct a physical body cavity search.
- (c) Except for the physician conducting the search, persons present must be of the same sex as the individual being searched. Only the necessary [department/office] members needed to maintain the safety and security of the medical personnel shall be present.
- (d) Privacy requirements, including restricted touching of body parts and sanitary condition requirements, are the same as required for a strip search.
- (e) All such searches shall be documented, including (Utah Code 77-7-17.5):



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1. The facts that led to the decision to perform a physical body cavity search of the individual.
  2. The reasons less intrusive methods of searching were not used or were insufficient.
  3. The Shift Sergeant's approval.
  4. A copy of the search warrant.
  5. The time, date, and location of the search.
  6. The medical personnel present.
  7. The names, sex, and roles of any [department/office] members present.
  8. Any contraband or weapons discovered by the search.
  9. The procedures followed in performing the search and a description of the body areas searched.
- (f) A copy of the written authorization shall be retained and made available to the individual who was searched or other authorized representative upon request.

#### **901.5 GENDER IDENTITY OR EXPRESSION CONSIDERATIONS**

If an individual who is subject to a strip search or physical body cavity search has a gender identity or expression that differs from their sex assigned at birth, the search should be conducted by members of the same gender identity or expression as the individual, unless the individual requests otherwise.

#### **901.6 JUVENILES**

No juvenile should be subjected to a strip search or a physical body cavity search at the [Department/Office].

The Chief of Police or the authorized designee should establish procedures for the following:

- (a) Safely transporting a juvenile who is suspected of concealing a weapon or contraband, or who may be experiencing a medical issue related to such concealment, to a medical facility or juvenile detention facility as appropriate in the given circumstances.
  1. Procedures should include keeping a juvenile suspected of concealing a weapon under constant and direct supervision until custody is transferred to the receiving facility.
- (b) Providing officers with information identifying appropriate medical and juvenile detention facilities to which a juvenile should be transported for a strip or body cavity search.

Nothing in this section is intended to prevent an officer from rendering medical aid to a juvenile in emergency circumstances (see the Medical Aid and Response Policy for additional guidance).

## Prison Rape Elimination

### 902.1 PURPOSE AND SCOPE

This policy provides guidance for complying with the Prison Rape Elimination Act of 2003 (PREA) and the implementing regulation that establishes standards (PREA Rule) to prevent, detect and respond to sexual abuse, harassment and retaliation against prisoners in the American Fork Police Department Temporary Holding Facilities (28 CFR 115.111).

#### 902.1.1 DEFINITIONS

Definitions related to this policy include:

**Intersex** - A person whose sexual or reproductive anatomy or chromosomal pattern does not seem to fit typical definitions of male or female. Intersex medical conditions are sometimes referred to as disorders of sex development (28 CFR 115.5).

**Sexual abuse** - Any of the following acts, if the prisoner does not consent, is coerced into such act by overt or implied threats of violence or is unable to consent or refuse:

- Contact between the penis and the vulva or the penis and the anus, including penetration, however slight
- Contact between the mouth and the penis, vulva or anus
- Penetration of the anal or genital opening of another person, however slight, by a hand, finger, object or other instrument
- Any other intentional touching, either directly or through the clothing, of the genitalia, anus, groin, breast, inner thigh or the buttocks of another person, excluding contact incidental to a physical altercation (28 CFR 115.6)

Sexual abuse also includes abuse by a staff member, contractor or volunteer as follows, with or without consent of the prisoner or resident:

- Contact between the penis and the vulva or the penis and the anus, including penetration, however slight
- Contact between the mouth and the penis, vulva or anus
- Contact between the mouth and any body part where the staff member, contractor or volunteer has the intent to abuse, arouse or gratify sexual desire
- Penetration of the anal or genital opening, however slight, by a hand, finger, object or other instrument, that is unrelated to official duties, or where the staff member, contractor or volunteer has the intent to abuse, arouse or gratify sexual desire
- Any other intentional contact, either directly or through the clothing, of or with the genitalia, anus, groin, breast, inner thigh or the buttocks, that is unrelated to official duties, or where the staff member, contractor or volunteer has the intent to abuse, arouse or gratify sexual desire

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- Any attempt, threat or request by a staff member, contractor or volunteer to engage in the activities described above
- Any display by a staff member, contractor or volunteer of his/her uncovered genitalia, buttocks or breast in the presence of a prisoner or resident
- Voyeurism by a staff member, contractor or volunteer (28 CFR 115.6)

**Sexual harassment** - Repeated and unwelcome sexual advances; requests for sexual favors; verbal comments, gestures or actions of a derogatory or offensive sexual nature by one prisoner or resident that are directed toward another; repeated verbal comments or gestures of a sexual nature to a prisoner or resident by a staff member, contractor or volunteer, including demeaning references to gender, sexually suggestive or derogatory comments about body or clothing, or obscene language or gestures (28 CFR 115.6).

**Transgender** - A person whose gender identity (i.e., internal sense of feeling male or female) is different from the person's assigned sex at birth (28 CFR 115.5).

#### **902.2 POLICY**

The American Fork Police Department has zero tolerance toward all forms of sexual abuse and sexual harassment (28 CFR 115.111). The department will not tolerate retaliation against any person who reports sexual abuse or sexual harassment or who cooperates with a sexual abuse or sexual harassment investigation.

The American Fork Police Department will take immediate action to protect prisoners who are reasonably believed to be subject to a substantial risk of imminent sexual abuse (28 CFR 115.162).

#### **902.3 PREA COORDINATOR**

The Chief of Police shall appoint an upper-level manager with sufficient time and authority to develop, implement and oversee department efforts to comply with PREA standards in the American Fork Police Department Temporary Holding Facilities (28 CFR 115.111). The PREA Coordinator's responsibilities shall include:

- (a) Developing and maintaining procedures to comply with the PREA Rule.
- (b) Ensuring that any contract for the confinement of American Fork Police Department prisoners includes the requirement to adopt and comply with applicable PREA and the PREA Rule, including the obligation to provide incident-based and aggregated data, as required in 28 CFR 115.187 (28 CFR 115.112).
- (c) Developing a staffing plan to provide adequate levels of staffing and video monitoring, where applicable, in order to protect prisoners from sexual abuse (28 CFR 115.113). This includes documenting deviations and the reasons for deviations from the staffing plan, as well as reviewing the staffing plan a minimum of once per year.
- (d) Developing methods for staff to privately report sexual abuse and sexual harassment of prisoners (28 CFR 115.151).

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- (e) Developing a written plan to coordinate response among staff first responders, medical and mental health practitioners, investigators and department leadership to an incident of sexual abuse (28 CFR 115.165).
- (f) Ensuring a protocol is developed for investigating allegations of sexual abuse in the Temporary Holding Facility. The protocol shall include (28 CFR 115.121; 28 CFR 115.122):
  - 1. Evidence collection practices that maximize the potential for obtaining usable physical evidence based on the most recent edition of the U.S. Department of Justice's (DOJ) Office on Violence Against Women publication, "A National Protocol for Sexual Assault Medical Forensic Examinations, Adults/Adolescents" or a similarly comprehensive and authoritative protocol.
  - 2. A process to ensure a criminal or administrative investigation is completed on all allegations of sexual abuse or sexual harassment.
  - 3. A process to document all referrals to other law enforcement agencies.
  - 4. Access to forensic medical examinations, without financial cost, for all victims of sexual abuse where appropriate. Such examinations shall be performed by Sexual Assault Forensic Examiners (SAFEs) or Sexual Assault Nurse Examiners (SANEs) where possible. If SAFEs or SANEs cannot be made available, the examination can be performed by other qualified medical practitioners. The efforts to provide SAFEs or SANEs shall be documented.
  - 5. In accordance with security needs, provisions to permit, to the extent available, prisoner access to victim advocacy services if the prisoner is transported for a forensic examination to an outside hospital that offers such services.
- (g) Ensuring that prisoners with limited English proficiency and disabilities have an equal opportunity to understand and benefit from efforts to prevent, detect and respond to sexual abuse and sexual harassment. This includes, as appropriate, access to interpreters and written materials in formats or through methods that provide effective communication to those with disabilities (e.g., limited reading skills, intellectual, hearing or vision disabilities) (28 CFR 115.116).
  - 1. The agency shall not rely on other prisoners for assistance except in limited circumstances where an extended delay in obtaining an interpreter could compromise the prisoner's safety, the performance of first-response duties under this policy, or the investigation of a prisoner's allegations of sexual abuse, harassment or retaliation.
- (h) Publishing on the department's website:
  - 1. Information on how to report sexual abuse and sexual harassment on behalf of a prisoner (28 CFR 115.154).

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2. A protocol describing the responsibilities of the department and any other investigating agency that will be responsible for conducting sexual abuse or sexual harassment investigations (28 CFR 115.122).
- (i) Establishing a process that includes the use of a standardized form and set of definitions to ensure accurate, uniform data is collected for every allegation of sexual abuse at facilities under this agency's direct control (28 CFR 115.187).
  1. The data collected shall include, at a minimum, the data necessary to answer all questions from the most recent version of the Survey of Sexual Violence, conducted by DOJ, or any subsequent form developed by DOJ and designated for lockups.
  2. The data shall be aggregated at least annually.
- (j) Ensuring audits are conducted pursuant to 28 CFR 115.401 through 28 CFR 115.405 for all Temporary Holding Facilities used to house prisoners overnight (28 CFR 115.193).
- (k) Ensuring contractors or others who work in the Temporary Holding Facility are informed of the agency's zero-tolerance policy regarding sexual abuse and sexual harassment (28 CFR 115.132).

#### **902.4 REPORTING SEXUAL ABUSE AND HARASSMENT**

Prisoners may make reports verbally, in writing, privately or anonymously of any of the following (28 CFR 115.151):

- Sexual abuse
- Sexual harassment
- Retaliation by other prisoners or staff for reporting sexual abuse or sexual harassment
- Staff neglect or violation of responsibilities that may have contributed to sexual abuse or sexual harassment

During intake the department shall notify all prisoners of the zero-tolerance policy regarding sexual abuse and sexual harassment, and of at least one way to report abuse or harassment to a public or private entity that is not part of the department and that is able to receive and immediately forward prisoner reports of sexual abuse and sexual harassment to agency officials. This allows the prisoner to remain anonymous (28 CFR 115.132; 28 CFR 115.151).

##### **902.4.1 MEMBER RESPONSIBILITIES**

Department members shall accept reports from prisoners and third parties and shall promptly document all reports (28 CFR 115.151).

All members shall report immediately to the Shift Supervisor any knowledge, suspicion or information regarding:

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- (a) An incident of sexual abuse or sexual harassment that occurs in the Temporary Holding Facility.
- (b) Retaliation against prisoners or the member who reports any such incident.
- (c) Any neglect or violation of responsibilities on the part of any department member that may have contributed to an incident or retaliation (28 CFR 115.161).

No member shall reveal any information related to a sexual abuse report to anyone other than to the extent necessary to make treatment and investigation decisions.

#### **902.4.2 SHIFT SUPERVISOR RESPONSIBILITIES**

The Shift Supervisor shall report to the department's designated investigators all allegations of sexual abuse, harassment, retaliation, neglect or violations leading to sexual abuse, harassment or retaliation. This includes third-party and anonymous reports (28 CFR 115.161).

If the alleged victim is under the age of 18 or considered a vulnerable adult, the Shift Supervisor shall also report the allegation as required under mandatory reporting laws and department policy.

Upon receiving an allegation that a prisoner was sexually abused while confined at another facility, the Shift Supervisor shall notify the head of the facility or the appropriate office of the agency where the alleged abuse occurred. The notification shall be made as soon as possible but no later than 72 hours after receiving the allegation. The Shift Supervisor shall document such notification (28 CFR 115.163).

If an alleged prisoner victim is transferred from the Temporary Holding Facility to a jail, prison or medical facility, the department shall, as permitted by law, inform the receiving facility of the incident and the prisoner's potential need for medical or social services, unless the prisoner requests otherwise (28 CFR 115.165).

#### **902.5 INVESTIGATIONS**

The department shall promptly, thoroughly and objectively investigate all allegations, including third-party and anonymous reports, of sexual abuse or sexual harassment. Only investigators who have received department-approved special training shall conduct sexual abuse investigations (28 CFR 115.171).

##### **902.5.1 FIRST RESPONDERS**

The first officer to respond to a report of sexual abuse or sexual assault shall (28 CFR 115.164):

- (a) Separate the parties.
- (b) Establish a crime scene to preserve and protect any evidence. Identify and secure witnesses until steps can be taken to collect any evidence.
- (c) If the abuse occurred within a time period that still allows for the collection of physical evidence, request that the alleged victim not take any actions that could destroy physical evidence, including, as appropriate, washing, brushing teeth, changing clothes, urinating, defecating, smoking, drinking or eating.

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- (d) If the abuse occurred within a time period that still allows for the collection of physical evidence, ensure that the alleged abuser does not take any actions that could destroy physical evidence, including, as appropriate, washing, brushing teeth, changing clothes, urinating, defecating, smoking, drinking or eating.

If the first responder is not an officer the responder shall request that the alleged victim not take any actions that could destroy physical evidence and should then notify a law enforcement staff member (28 CFR 115.164).

#### 902.5.2 INVESTIGATOR RESPONSIBILITIES

Investigators shall (28 CFR 115.171):

- (a) Gather and preserve direct and circumstantial evidence, including any available physical and biological evidence and any available electronic monitoring data.
- (b) Interview alleged victims, suspects and witnesses.
- (c) Review any prior complaints and reports of sexual abuse involving the suspect.
- (d) Conduct compelled interviews only after consulting with prosecutors as to whether compelled interviews may be an obstacle for subsequent criminal prosecution.
- (e) Assess the credibility of the alleged victim, suspect or witness on an individual basis and not by the person's status as a prisoner or a member of the American Fork Police Department.
- (f) Document in written reports a description of physical, testimonial, documentary and other evidence, the reasoning behind any credibility assessments, and investigative facts and findings.
- (g) Refer allegations of conduct that may be criminal to the prosecutor's office for possible prosecution, including any time there is probable cause to believe a prisoner sexually abused another prisoner in the Temporary Holding Facility (28 CFR 115.178).
- (h) Cooperate with outside investigators and remain informed about the progress of any outside investigation.

#### 902.5.3 ADMINISTRATIVE INVESTIGATIONS

Administrative investigations shall include an effort to determine whether staff actions or failures to act contributed to the abuse. The departure of the alleged abuser or victim from the employment or control of this department shall not be used as a basis for terminating an investigation (28 CFR 115.171).

#### 902.5.4 SEXUAL ASSAULT AND ABUSE VICTIMS

No prisoner who alleges sexual abuse shall be required to submit to a polygraph examination or other truth-telling device as a condition for proceeding with the investigation of such an allegation (28 CFR 115.171(e)).

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Prisoner victims of sexual abuse shall receive timely, unimpeded access to emergency medical treatment. Treatment services shall be provided to the victim without financial cost and regardless of whether the victim names the abuser or cooperates with any investigation arising out of the incident (28 CFR 115.182).

#### **902.5.5 CONCLUSIONS AND FINDINGS**

All completed investigations shall be forwarded to the Chief of Police, or if the allegations may reasonably involve the Chief of Police, to the City Administrator. The Chief of Police or City Administrator shall review the investigation and determine whether any allegations of sexual abuse or sexual harassment have been substantiated by a preponderance of the evidence (28 CFR 115.172).

All personnel shall be subject to disciplinary sanctions up to and including termination for violating this policy. Termination shall be the presumptive disciplinary sanction for department members who have engaged in sexual abuse. All discipline shall be commensurate with the nature and circumstances of the acts committed, the member's disciplinary history and the sanctions imposed for comparable offenses by other members with similar histories (28 CFR 115.176).

All terminations for violations of this policy, or resignations by members who would have been terminated if not for their resignation, shall be criminally investigated unless the activity was clearly not criminal and reported to any relevant licensing body (28 CFR 115.176).

Any contractor or volunteer who engages in sexual abuse shall be prohibited from contact with prisoners and reported to any relevant licensing bodies (28 CFR 115.177). The Chief of Police shall take appropriate remedial measures and consider whether to prohibit further contact with prisoners by a contractor or volunteer.

#### **902.6 RETALIATION PROHIBITED**

All prisoners and members who report sexual abuse or sexual harassment or who cooperate with sexual abuse or sexual harassment investigations shall be protected from retaliation (28 CFR 115.167). If any other individual who cooperates with an investigation expresses a fear of retaliation, appropriate measures shall be taken to protect that individual.

The Shift Supervisor or the authorized designee shall employ multiple protection measures, such as housing changes or transfers for prisoner victims or abusers, removal of alleged abusers from contact with victims, and emotional support services for prisoners or members who fear retaliation for reporting sexual abuse or sexual harassment or for cooperating with investigations.

The Shift Supervisor or the authorized designee shall identify a staff member to monitor the conduct and treatment of prisoners or members who have reported sexual abuse and of prisoners who were reported to have suffered sexual abuse. The staff member shall act promptly to remedy any such retaliation. In the case of prisoners, such monitoring shall also include periodic status checks.

#### **902.7 REVIEWS AND AUDITS**



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#### 902.7.1 INCIDENT REVIEWS

An incident review shall be conducted at the conclusion of every sexual abuse investigation, unless the allegation has been determined to be unfounded. The review should occur within 30 days of the conclusion of the investigation. The review team shall include upper-level management officials and seek input from line supervisors and investigators (28 CFR 115.186).

The review shall (28 CFR 115.186):

- (a) Consider whether the allegation or investigation indicates a need to change policy or practice to better prevent, detect or respond to sexual abuse.
- (b) Consider whether the incident or allegation was motivated by race; ethnicity; gender identity; lesbian, gay, bisexual, transgender or intersex identification, status or perceived status; gang affiliation; or was motivated or otherwise caused by other group dynamics at the facility.
- (c) Examine the area in the facility where the incident allegedly occurred to assess whether physical barriers in the area may enable abuse.
- (d) Assess the adequacy of staffing levels in that area during different shifts.
- (e) Assess whether monitoring technology should be deployed or augmented to supplement supervision by staff.

The review team shall prepare a report of its findings, including any determinations made pursuant to this section and any recommendations for improvement. The report shall be submitted to the Chief of Police and the PREA Coordinator. The Chief of Police or the authorized designee shall implement the recommendations for improvement or shall document the reasons for not doing so (28 CFR 115.186).

#### 902.7.2 DATA REVIEWS

The facility shall conduct an annual review of collected and aggregated incident-based sexual abuse data. The review should include, as needed, data from incident-based documents, including reports, investigation files and sexual abuse incident reviews (28 CFR 115.187).

The purpose of these reviews is to assess and improve the effectiveness of sexual abuse prevention, detection and response policies, practices and training. An annual report shall be prepared that includes (28 CFR 115.188):

- (a) Identification of any potential problem areas.
- (b) Identification of any corrective actions taken.
- (c) Recommendations for any additional corrective actions.
- (d) A comparison of the current year's data and corrective actions with those from prior years.
- (e) An assessment of the department's progress in addressing sexual abuse.

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The report shall be approved by the Chief of Police and made readily available to the public through the department website or, if it does not have one, through other means. Material may be redacted from the reports when publication would present a clear and specific threat to the safety and security of the Temporary Holding Facility. However, the nature of the redacted material shall be indicated.

All aggregated sexual abuse data from American Fork Police Department facilities and private facilities with which it contracts shall be made readily available to the public at least annually through the department website or, if it does not have one, through other means. Before making aggregated sexual abuse data publicly available, all personal identifiers shall be removed (28 CFR 115.189).

#### **902.8 RECORDS**

The department shall retain all written reports from administrative and criminal investigations pursuant to this policy for as long as the alleged abuser is held or employed by the department, plus five years (28 CFR 115.171).

All other data collected pursuant to this policy shall be securely retained for at least 10 years after the date of the initial collection unless federal, state or local law requires otherwise (28 CFR 115.189).

#### **902.9 TRAINING**

All employees, volunteers and contractors who may have contact with prisoners shall receive department-approved training on the prevention and detection of sexual abuse and sexual harassment within this facility. The Training Officer shall be responsible for developing and administering this training as appropriate, covering at a minimum (28 CFR 115.131):

- The department's zero-tolerance policy and prisoners' right to be free from sexual abuse and sexual harassment, and from retaliation for reporting sexual abuse or harassment.
- The dynamics of sexual abuse and harassment in confinement settings, including which prisoners are most vulnerable.
- The right of prisoners and staff members to be free from sexual abuse and sexual harassment, and from retaliation for reporting sexual abuse or harassment.
- Detecting and responding to signs of threatened and actual abuse.
- Communicating effectively and professionally with all prisoners.
- Compliance with relevant laws related to mandatory reporting of sexual abuse to outside authorities.

Investigators assigned to sexual abuse investigations shall also receive training in conducting such investigations in confinement settings. Training should include (28 CFR 115.134):

- Techniques for interviewing sexual abuse victims.

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- Proper use of *Miranda* and *Garrity* warnings.
- Sexual abuse evidence collection in confinement settings.
- Criteria and evidence required to substantiate a case for administrative action or prosecution referral.

The Training Officer shall maintain documentation that employees, volunteers, contractors and investigators have completed required training and that they understand the training. This understanding shall be documented through individual signature or electronic verification.

## **Chapter 10 - Personnel**

# Recruitment and Selection

## 1000.1 PURPOSE AND SCOPE

This policy provides a framework for employee recruiting efforts and identifying job-related standards for the selection process. This policy supplements the rules that govern employment practices for the American Fork Police Department and that are promulgated and maintained by the Personnel Department.

## 1000.2 POLICY

In accordance with applicable federal, state, and local law, the American Fork Police Department provides equal opportunities for applicants and employees regardless of actual or perceived race, ethnicity, national origin, religion, sex, sexual orientation, gender identity or expression, age, disability, pregnancy, genetic information, veteran status, marital status, and any other classification or status protected by law. The [Department/Office] does not show partiality or grant any special status to any applicant, employee, or group of employees unless otherwise required by law.

The [Department/Office] will recruit and hire only those individuals who demonstrate a commitment to service and who possess the traits and characteristics that reflect personal integrity and high ethical standards.

## 1000.3 EMPLOYMENT STANDARDS

All candidates shall meet the minimum standards required by state law (Utah Code 53-6-203; Utah Code 53-6-302). Candidates will be evaluated based on merit, ability, competence, and experience, in accordance with the high standards of integrity and ethics valued by the [Department/Office] and the community. The Department will also prioritize hiring personnel who are representative of the communities they are sworn to serve.

Validated, job-related, and nondiscriminatory employment standards shall be established for each job classification and shall minimally identify the training, abilities, knowledge, and skills required to perform the position's essential duties in a satisfactory manner. Each standard should include performance indicators for candidate evaluation. The Personnel Department should maintain validated standards for all positions.

### 1000.3.1 STANDARDS FOR OFFICERS

Candidates shall meet the minimum standards established by the Utah Peace Officer Standards and Training (POST) Council (Utah Code 53-6-203):

- (a) Citizen of the United States, United States national, or lawful permanent resident who has legal authorization to work in the United States and has been in the United States legally for at least five years immediately preceding the day on which the application is made
- (b) At least 21 years old
- (c) High school graduate or possess an equivalent achievement

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- (d) Not have been convicted of a crime for which the candidate could be punished by imprisonment
- (e) Demonstrate good moral character as determined through a background investigation. A candidate shall be considered to be of good moral character if they have not engaged in conduct that would violate Utah Code 53-6-211(1)
- (f) Be free of any physical, emotional, or mental condition that might adversely affect the performance of the candidate's duties as a peace officer
- (g) Criminal background check of local, state, and national criminal history files
- (h) Not prohibited from possessing a firearm under state or federal law
- (i) Meet all other standards required by POST

Before hiring a candidate who is working, or has previously worked, for another law enforcement agency, the Department shall comply with the verification and background check requirements of Utah Code 53-14-102.

In addition to the standards established by POST, the [Department/Office] may establish additional standards concerning peace officer candidates (Utah Code 53-6-207).

#### **1000.4 SELECTION PROCESS**

The [Department/Office] shall actively strive to identify a diverse group of candidates who have in some manner distinguished themselves as being outstanding prospects. Minimally, the [Department/Office] shall employ a comprehensive screening, background investigation, and selection process that assesses cognitive and physical abilities. This process may include review and verification of the following:

- (a) A comprehensive application for employment (including previous employment, references, current and prior addresses, education, military record)
- (b) Driving record
- (c) Personal and professional reference checks
- (d) Employment eligibility, including U.S. Citizenship and Immigration Services (USCIS) Employment Eligibility Verification Form I-9 and acceptable identity and employment authorization documents. This required documentation should not be requested until a candidate is hired. This does not prohibit obtaining documents required for other purposes.
- (e) Information obtained from public internet sites
  1. This review should include the identification of any activity that promotes or supports unlawful violence or unlawful bias against persons based on protected characteristics (e.g., race, ethnicity, national origin, religion, gender, gender identity, sexual orientation, disability).
- (f) Financial history consistent with the Fair Credit Reporting Act (FCRA) (15 USC § 1681 et seq.)
- (g) Local, state, and federal criminal history record checks

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- (h) Polygraph, Eyedetector, or voice stress analyzer (VSA) examination (when legally permissible)
- (i) Medical and psychological examination (may only be given after a conditional offer of employment)
- (j) Review board or selection committee assessment
- (k) Relevant national and state decertification records, if available

#### 1000.4.1 VETERAN AND SERVICE MEMBER PREFERENCE

The [Department/Office] will provide preference eligibility for veterans and service member applicants as required by Utah Code 71A-2-102.

### **1000.5 BACKGROUND INVESTIGATION**

Every candidate shall undergo a thorough background investigation to verify their personal integrity and high ethical standards, and to identify any past behavior that may be indicative of the candidate's unsuitability to perform duties relevant to the operation of the American Fork Police Department (Utah Code 53-14-102).

In addition to the requirements of Utah Code 53-14-103, the background investigation shall include but not be limited to the following:

- (a) Verification of qualifying credentials
- (b) Criminal history report
- (c) Verification of personal and professional references
- (d) Education verification
- (e) Employment history verification
- (f) A review of relevant national or state decertification records, including the National Decertification Index operated by the International Association of Directors of Law Enforcement Standards and Training (IADLEST)
- (g) Consistent with the First Amendment and all applicable laws, a check of publicly available internet and information-sharing sites to identify activity that promotes or supports unlawful violence or unlawful bias against persons based on race, ethnicity, national origin, religion, gender, gender identity, sexual orientation, or disability

#### 1000.5.1 NOTICES

Background investigators shall ensure that investigations are conducted and notices provided in accordance with the requirements of the FCRA (15 USC § 1681d).

#### 1000.5.2 REVIEW OF SOCIAL MEDIA SITES

Due to the potential for accessing unsubstantiated, private, or protected information, the Administration Division Commander shall not require candidates to provide passwords, account information, or access to password-protected social media accounts (Utah Code 34-48-201).

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The Administration Division Commander should consider utilizing the services of an appropriately trained and experienced third party to conduct open source, internet-based searches and/or review information from social media sites to ensure that:

- (a) The legal rights of candidates are protected.
- (b) Material and information to be considered are verified, accurate and validated.
- (c) The [Department/Office] fully complies with applicable privacy protections and local, state and federal law.

Regardless of whether a third party is used, the Administration Division Commander should ensure that potentially impermissible information is not available to any person involved in the candidate selection process.

#### **1000.5.3 DOCUMENTING AND REPORTING**

The background investigator shall summarize the results of the background investigation in a report that includes sufficient information to allow the reviewing authority to decide whether to extend a conditional offer of employment. The report shall not include any information that is prohibited from use in making employment decisions. The report and all supporting documentation shall be included in the candidate's background investigation file.

#### **1000.5.4 RECORDS RETENTION**

The background report and all supporting documentation shall be maintained in accordance with the established records retention schedule.

#### **1000.6 DISQUALIFICATION GUIDELINES**

As a general rule, performance indicators and candidate information and records shall be evaluated by considering the candidate as a whole, and taking into consideration the following:

- Age at the time the behavior occurred
- Passage of time
- Patterns of past behavior
- Severity of behavior
- Probable consequences if past behavior is repeated or made public
- Likelihood of recurrence
- Relevance of past behavior to public safety employment
- Aggravating and mitigating factors
- Other relevant considerations

A candidate's qualifications will be assessed on a case-by-case basis, using a totality-of-the-circumstances framework.



# Evaluation of Employees

## **1001.1 PURPOSE AND SCOPE**

The Department's employee performance evaluation system is designed to record work performance for both the Department and the employee, providing recognition for good work and developing a guide for improvement.

## **1001.2 POLICY**

The American Fork Police Department utilizes a performance evaluation report to measure performance and to use as a factor in making personnel decisions that relate to merit increases, promotion, reassignment, discipline, demotion, and termination. The evaluation report is intended to serve as a guide for work planning and review by the supervisor and employee. It gives supervisors a way to create an objective history of work performance based on job standards.

The Department evaluates employees in a non-discriminatory manner based upon job-related factors specific to the employee's position, without regard to actual or perceived race, ethnicity, national origin, religion, sex, sexual orientation, gender identity or expression, age, disability, pregnancy, genetic information, veteran status, marital status, and any other classification or status protected by law.

## **1001.3 EVALUATION PROCESS**

Evaluation reports will cover a specific period of time and should be based on documented performance during that period. Evaluation reports will be completed by each employee's immediate supervisor. Other supervisors directly familiar with the employee's performance during the rating period should be consulted by the immediate supervisor for their input.

All sworn and non-sworn supervisory personnel shall attend an approved supervisory course that includes training on the completion of performance evaluations prior to conducting any performance evaluations.

Each supervisor should discuss the tasks of the position, standards of performance expected and the evaluation criteria with each employee at the beginning of the rating period. Supervisors should document this discussion in the prescribed manner.

Assessment of an employee's job performance is an ongoing process. Continued coaching and feedback provides supervisors and employees with opportunities to correct performance issues as they arise.

Non-probationary employees demonstrating substandard performance shall be notified in writing of such performance as soon as possible in order to have an opportunity to remediate the issues. Such notification should occur at the earliest opportunity, with the goal being a minimum of 90 days written notice prior to the end of the evaluation period.

Employees who disagree with their evaluation and who desire to provide a formal response or a rebuttal may do so in writing in the prescribed format and time period.

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#### 1001.3.1 RESERVE OFFICER EVALUATIONS

Reserve officer evaluations are covered in the Reserve Officers Policy.

#### 1001.4 FULL-TIME PROBATIONARY PERSONNEL

Non-sworn personnel are on probation for 12 months before being eligible for certification as permanent employees. An evaluation is completed monthly for all full-time non-sworn personnel during the probationary period.

Sworn personnel are on probation for 12 months before being eligible for certification as permanent employees. After completing FTO training, probationary officers are evaluated on a weekly basis during the remainder of their probationary period.

Either the probationary employee or the Department may end the employment relationship at will at any time during the probationary period, with or without cause or advance notice or without any right to due process, explanation or appeal in connection with said termination.

#### 1001.5 FULL-TIME PERMANENT STATUS PERSONNEL

Permanent employees are subject to three types of performance evaluations:

**Regular** - An Employee Performance Evaluation shall be completed once each year by the employee's immediate supervisor on the anniversary of the employee's date of hire, except for employees who have been promoted, in which case an Employee Performance Evaluation shall be completed on the anniversary of the employee's date of last promotion.

**Transfer** - If an employee is transferred from one assignment to another in the middle of an evaluation period and less than six months have transpired since the transfer, then an evaluation shall be completed by the current supervisor with input from the previous supervisor.

**Special** - A special evaluation may be completed any time the rater and the rater's supervisor feel one is necessary due to employee performance that is deemed less than standard, and when follow-up action is planned (action plan, remedial training, retraining). The Performance Evaluation Form and the attached documentation shall be submitted as one package.

##### 1001.5.1 RATINGS

When completing the Employee Performance Evaluation, the rater will place a check mark in the column that best describes the employee's performance. The definition of each rating category is as follows:

**Outstanding** - Is actual performance well beyond that required for the position. It is exceptional performance, definitely superior or extraordinary.

**Exceeds Standards** - Represents performance that is better than expected of a fully competent employee. It is superior to what is expected, but is not of such rare nature to warrant outstanding.

**Meets Standards** - Is the performance of a fully competent employee. It means satisfactory performance that meets the standards required of the position.

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**Needs Improvement** - Is a level of performance less than that expected of a fully competent employee and less than standards required of the position. A Needs Improvement rating must be thoroughly discussed with the employee.

**Unsatisfactory** - Performance is inferior to the standards required of the position. It is very inadequate or undesirable performance that cannot be tolerated.

Space for written comments is provided at the end of the evaluation in the rater comments section. This section allows the rater to document the employee's strengths, weaknesses, and to make suggestions for improvement. Any rating other than "Meets Standards" shall have a comment entered in the rater comments section.

#### **1001.6 EVALUATION REVIEW**

After the supervisor has completed the preliminary evaluation, the performance evaluation is forwarded to and discussed with the rater's Division Commander and/or designees. The Division Commander and/or designees shall review the evaluation for fairness, impartiality, uniformity and consistency. The Division Commander and/or designees shall evaluate the supervisor on the quality of ratings given.

#### **1001.7 EVALUATION INTERVIEW**

After the supervisor's preliminary evaluation has been reviewed by Division Commander and/or designees, arrangements shall be made for a private discussion of the evaluation with the employee. The supervisor should discuss the results of the just completed rating period and clarify any questions the employee may have. If the employee has valid and reasonable protests of any of the ratings, the supervisor may make appropriate changes to the evaluation. Areas needing improvement and goals for reaching the expected level of performance should be identified and discussed. The supervisor should also provide relevant counseling regarding advancement, specialty positions and training opportunities. The supervisor and employee will sign and date the evaluation.

##### **1001.7.1 DISCRIMINATORY HARASSMENT FORM**

At the time of each employee's annual evaluation, the reviewing supervisor shall require the employee to read the City harassment and discrimination policies. Following such policy review, the supervisor shall provide the employee a form to be completed and returned by the employee certifying the following:

- (a) That the employee understands the harassment and discrimination policies.
- (b) Whether any questions the employee has have been sufficiently addressed.
- (c) That the employee knows how and where to report harassment policy violations.
- (d) Whether the employee has been the subject of, or witness to, any conduct that violates the discrimination or harassment policy which has not been previously reported.

The completed form should be returned to the supervisor (or other authorized individual if the employee is uncomfortable returning the form to the presenting supervisor) within one week.

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The employee's completed answers shall be attached to the evaluation. If the employee has expressed any questions or concerns, the receiving supervisor or other authorized individual shall insure that appropriate follow up action is taken.

#### **1001.8 EVALUATION DISTRIBUTION**

The original performance evaluation shall be maintained in the employee's personnel file in the office of the Chief of Police for the tenure of the employee's employment. A copy will be given to the employee and a copy will be forwarded to City Personnel Department.

# Specialty Assignment, Transfer, and Promotion

## 1002.1 PURPOSE AND SCOPE

The purpose of this policy is to clarify the differences between specialty assignments, transfers, and promotions. It is also to establish a general process for the application, testing and selection of department members for specialty assignments, transfers, and promotions.

## 1002.2 DEFINITIONS

The following definitions pertain to this policy:

**Specialty Assignment:** a designation, certification, and/or group of responsibilities a department member holds or does in addition to or in conjunction with his or her primary job assignment. This may include, but is not limited to:

- N.O.V.A.
- Patrol Bicycle
- Utah County Special Victims Task Force (SVU)
- Motors
- Traffic Accident Investigation
- S.W.A.T. / Tactical Response
- Designated Marksman
- Instructorships
- Unmanned Aircraft System (UAS) Drone) Pilot
- Officer Involved Incident (OII) Protocol Team

**Transfer:** a position that constitutes a department member's primary job assignment. This may include, but is not limited to:

- Patrol Officer
- Traffic Officer
- K-9 Officer
- School Resource Officer (SRO)
- Detective (Investigations, S.E.T., or Utah County Major Crimes)
- Administrative Officer
- Code Enforcement Officer
- Patrol Sergeant
- Investigations Sergeant
- Training / Officer Development Sergeant

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**Promotion:** promotion constitutes moving from one formal rank to another. These ranks include:

- Officer/Detective
- Sergeant
- Lieutenant
- Chief of Police

The designations of Advanced Officer, Officer II, and Officer III are not considered formal ranks.

#### **1002.3 POLICY**

The American Fork Police Department determines specialty assignments, transfers, and promotions in a non-discriminatory manner based upon job-related factors and candidate skills and qualifications. Specialty assignments, transfers, and promotions are made by the Chief of Police.

#### **1002.4 SPECIALTY ASSIGNMENT - SELECTION**

When a specialty assignment becomes available, the Chief of Police or authorized designee will move to fill the vacancy in one of two ways:

- (a) The Chief of Police or authorized designee may select an individual for a particular specialty assignment without a selection process
- (b) The Chief of Police or authorized designee may open the specialty assignment for selection

If the specialty assignment is opened for selection, the Chief of Police may designate a department member to develop and oversee the selection process for that position. This will include a formal, agency-wide announcement with information and requirements for application. The process may also include, but is not limited to, letters of interest, oral board interviews, specialty-specific testing, work performance review, and others. All qualified individuals will be allowed to apply and compete for positions.

Once this process is concluded, a final recommendation for selection will be provided to the Chief of Police by the member overseeing the selection process.

The Chief of Police will review the recommendation and will either accept or reject it. The authority to make a final selection decision ultimately rests with the Chief of Police.

#### **1002.5 TRANSFER - SELECTION**

When an opportunity for transfer becomes available, the Chief of Police or authorized designee will move to fill the vacancy in one of two ways:

- (a) The Chief of Police or authorized designee may select an individual for a particular transfer without a selection process
- (b) The Chief of Police or authorized designee may open transfer for selection

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### *Specialty Assignment, Transfer, and Promotion*

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If the transfer is opened for selection, the Chief of Police will designate a division commander to develop and oversee the selection process for that position. This will include a formal, agency-wide announcement with information and requirements for application. The process may also include, but is not limited to, letters of interest, oral board interviews, specialty-specific testing, work performance review, and others. All qualified individuals will be allowed to apply and compete for positions.

Once this process is concluded, a final recommendation for selection will be provided to the Chief of Police by the division commander overseeing the selection process.

The Chief of Police will review the recommendation and will either accept or reject it. The authority to make a final selection decision rests with the Chief of Police.

#### **1002.6 PROMOTION**

The department will make every effort to implement a fair, transparent, non-discriminatory, and unbiased promotional selection process with the goal of promoting the best possible leadership to meet the current needs of the department.

The authority and responsibility to administer a promotional selection process ultimately rest with the Chief of Police, although he or she may delegate promotional process responsibilities and tasks.

With the exception of the Chief of Police, there are no appointed positions in the police department.

##### **1002.6.1 FORMAL ANNOUNCEMENT**

An opportunity for promotion will be formally announced in writing to all members of the department. All qualified department members who meet the minimum requirements are eligible to apply.

The announcement will include the following:

- A description of the position to be filled including general responsibilities and expectations
- The minimum requirements for application
- A description of the process that will be used for testing, evaluation, and selection
- A schedule of all components of the testing process
- Instructions for how to apply

##### **1002.6.2 PROMOTION**

Once testing is complete and a selection is made, all participants will be notified by the Chief of Police or designee. A formal written announcement will then be sent to all department members.

A newly-promoted department member will undergo a probationary period of 180 days from the day of the promotion.

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### *Specialty Assignment, Transfer, and Promotion*

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All newly-promoted department members must complete department-approved supervisory and management training within 12 months of promotion.



## Grievances

### 1003.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidelines for the American Fork Police Department grievance system. The grievance system is intended to facilitate communication and promptly and equitably address employee grievances in the workplace.

#### 1003.1.1 GRIEVANCE DEFINED

A grievance is a difference of opinion or dispute involving the meaning, interpretation, or application of any of the following:

- This Policy Manual
- Rules and regulations governing personnel practices or working conditions
- Workplace issues that do not amount to misconduct under the Personnel Complaints Policy, such as fraud, waste, abuse of authority, gross mismanagement, or any inappropriate conduct or practices, including violations that may pose a threat to the health, safety, or well-being of members

Specifically outside the category of grievances are complaints related to allegations of discrimination or harassment, which are subject to the Discriminatory Harassment Policy. Also outside the category of grievances are personnel complaints regarding any allegation of misconduct or improper job performance against any [department/office] employee that, if true, would constitute a violation of [department/office] policy or federal, state, or local law, as set forth in the Personnel Complaints Policy.

### 1003.2 AUTHORITY

The Chief of Police or designee will be responsible for the coordination of grievance procedures.

### 1003.3 POLICY

It is the policy of the American Fork Police Department to provide a just and equitable system for the prompt handling of employee grievances without discrimination, coercion, restraint, or retaliation against any employee who submits or is otherwise involved in a grievance.

### 1003.4 PROCESS

Grievances may be brought by an individual employee or by an employee group representative. Employees may have representation at their own expense during the grievance process. The Chief of Police or the authorized designee is responsible for coordinating the grievance process.

If an employee believes that they have a grievance as defined above, that employee shall:

- (a) Attempt to resolve the issue through informal discussion with the employee's immediate supervisor.
- (b) If after a reasonable amount of time, generally seven days, the grievance cannot be settled by the immediate supervisor, the employee may request an interview with the Division Commander of the affected division.

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### *Grievances*

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- (c) If a successful resolution is not found with the Division Commander, the employee may request a meeting with the Chief of Police.
- (d) If the employee and the Chief of Police are unable to arrive at a mutual solution, the employee shall proceed as follows within 30 days of meeting with the Chief of Police:
  - 1. Submit a written statement of the grievance to the Chief of Police and provide a copy to the employee's immediate supervisor. Include the following information in the written statement:
    - (a) The basis for the grievance (i.e., the facts of the case).
    - (b) The allegation of any specific wrongful act and the harm done.
      - 1. The allegation should include time and date of occurrence.
    - (c) The specific policies, rules, or regulations at issue.
    - (d) The remedy or goal being sought by the grievance.
- (e) The supervisor shall provide the employee with a signed acknowledgment of the grievance that shall include the date and time of receipt.
- (f) The Chief of Police and the City Administrator should review the grievance and respond to the employee within 14 calendar days.
  - 1. The response will be in writing, and will affirm or deny the allegations.
  - 2. The response shall include any remedies, if appropriate.
  - 3. The decision of the City Administrator is considered final.

#### **1003.5 GRIEVANCE RECORDS**

At the conclusion of the grievance process, all documents pertaining to the process shall be forwarded to the Administration for inclusion into a secure file for all written grievances.

#### **1003.6 POLICY OR TRAINING IMPLICATIONS**

If an employee who participates in the grievance review process identifies any issue that may warrant an immediate revision to this Policy Manual, a procedural change, or an immediate training need, the employee should promptly notify the Chief of Police in a memorandum.

#### **1003.7 GRIEVANCE AUDITS**

The Support Services Division Commander shall perform an annual audit of all grievances filed the previous calendar year to evaluate whether any change in policy, procedure, or training may be appropriate to avoid future grievances. The Support Services Division Commander shall record these findings in a confidential memorandum to the Chief of Police without including any identifying information about any individual grievance.

# Reporting of Employee Convictions

## 1004.1 PURPOSE AND SCOPE

Convictions of certain offenses may restrict or prohibit an employee's ability to properly perform official duties. Therefore, all employees shall be required to promptly notify the Department Director of any past and current criminal convictions.

## 1004.2 DOMESTIC VIOLENCE CONVICTIONS AND RESTRAINING ORDERS

Federal law prohibits individuals convicted of certain offenses and individuals subject to certain court orders from lawfully possessing a firearm. Such convictions and court orders often involve allegations of the use or attempted use of force or threatened use of a weapon on any individual in a domestic relationship (e.g., spouse, cohabitant, parent, child) (18 USC § 922; Utah Code 76-10-503).

All members are responsible for ensuring that they have not been disqualified from possessing a firearm by any such conviction or court order and shall promptly report any such conviction or court order to a supervisor, as provided in this policy.

Any person applying for or holding a concealed firearm permit and who is convicted of any offense involving domestic violence may have the permit refused, revoked or suspended (Utah Code 53-5-704(2)(a)(vi)).

## 1004.3 OTHER CRIMINAL CONVICTIONS

Utah Code 53-6-203(1)(d) prohibits any person convicted of a felony from being a peace officer in the State of Utah. This prohibition applies regardless of whether the guilt was established by way of a verdict, guilty or nolo contendere plea.

Moreover, while legal restrictions may or may not be imposed by statute or by the courts upon conviction of any criminal offense, criminal conduct by members of the department may be inherently in conflict with law enforcement duties and the public trust.

## 1004.4 REPORTING PROCEDURE

All members of this department and all retired officers with an identification card issued by the department shall promptly notify their immediate supervisor (or the Chief of Police in the case of retired officers) in writing of any past or current criminal arrest or conviction, regardless of whether the matter is currently on appeal and regardless of the penalty or sentence, if any.

All members and all retired officers with an identification card issued by the department shall further promptly notify their immediate supervisor (or the Chief of Police in the case of retired officers) in writing if the member or retiree becomes the subject of a domestic violence restraining order or similar court order.

Any member whose criminal conviction unduly restricts or prohibits that member from fully and properly performing his/her duties may be disciplined including, but not limited to, being placed on administrative leave, reassignment and/or termination.

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### *Reporting of Employee Convictions*

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Any member failing to provide prompt written notice pursuant to this policy shall be subject to discipline.

## Drug- and Alcohol-Free Workplace

### 1005.1 PURPOSE AND SCOPE

The purpose of this policy is to establish clear and uniform guidelines regarding drugs and alcohol in the workplace.

### 1005.2 POLICY

It is the policy of this department to provide a drug- and alcohol-free workplace for all members.

### 1005.3 GENERAL GUIDELINES

Alcohol and drug use in the workplace or on department time can endanger the health and safety of department members and the public. Such use shall not be tolerated (41 USC § 8103).

Members who have consumed an amount of an alcoholic beverage or taken any medication, or combination thereof, that would tend to adversely affect their mental or physical abilities shall not report for duty. Affected members shall notify the Shift Supervisor or appropriate supervisor as soon as the member is aware that he/she will not be able to report to work. If the member is unable to make the notification, every effort should be made to have a representative contact the supervisor in a timely manner. If the member is adversely affected while on-duty, he/she shall be immediately removed and released from work (see Work Restrictions in this policy).

#### 1005.3.1 USE OF MEDICATIONS

Members should avoid taking any medications that will impair their ability to safely and completely perform their duties. Any member who is medically required or has a need to take any such medication shall report that need to his/her immediate supervisor prior to commencing any on-duty status.

No member shall be permitted to work or drive a vehicle owned or leased by the department while taking any medication that has the potential to impair his/her abilities, without a written release from his/her physician.

#### 1005.3.2 MEDICAL CANNABIS

Possession, use, or being under the influence of medical cannabis on-duty is prohibited and may lead to disciplinary action.

### 1005.4 MEMBER RESPONSIBILITIES

Members shall report for work in an appropriate mental and physical condition. Members are prohibited from purchasing, manufacturing, distributing, dispensing, possessing or using controlled substances or alcohol on department premises or on department time (41 USC § 8103). The lawful possession or use of prescribed medications or over-the-counter remedies is excluded from this prohibition.

Members who are authorized to consume alcohol as part of a special assignment shall not do so to the extent of impairing on-duty performance.

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### *Drug- and Alcohol-Free Workplace*

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Members shall notify a supervisor immediately if they observe behavior or other evidence that they believe demonstrates that a fellow member poses a risk to the health and safety of the member or others due to drug or alcohol use.

Members are required to notify their immediate supervisors of any criminal drug statute conviction for a violation occurring in the workplace no later than five days after such conviction (41 USC § 8103).

#### **1005.5 EMPLOYEE ASSISTANCE PROGRAM**

There may be available a voluntary employee assistance program to assist those who wish to seek help for alcohol and drug problems (41 USC § 8103). Insurance coverage that provides treatment for drug and alcohol abuse also may be available. Employees should contact the Personnel Department, their insurance providers or the employee assistance program for additional information. It is the responsibility of each employee to seek assistance before alcohol or drug problems lead to performance problems.

#### **1005.6 WORK RESTRICTIONS**

If a member informs a supervisor that he/she has consumed any alcohol, drug or medication that could interfere with a safe and efficient job performance, the member may be required to obtain clearance from his/her physician before continuing to work.

If the supervisor reasonably believes, based on objective facts, that a member is impaired by the consumption of alcohol or other drugs, the supervisor shall prevent the member from continuing work and shall ensure that he/she is safely transported away from the department.

#### **1005.7 REQUESTING SCREENING TESTS**

A supervisor may require an employee to submit to a screening test under any of the following circumstances:

- (a) The supervisor reasonably believes, based upon objective facts, that the employee is under the influence of alcohol or drugs that are impairing his/her ability to perform duties safely and efficiently.
- (b) The employee discharges a firearm, other than by accident, in the performance of his/her duties (excluding training or authorized euthanizing of an animal).
- (c) The employee discharges a firearm issued by the Department while off-duty, resulting in injury, death, or substantial property damage.
- (d) The employee drives a motor vehicle in the performance of his/her duties and becomes involved in an incident that results in bodily injury, death, or substantial damage to property.

##### **1005.7.1 SUPERVISOR RESPONSIBILITY**

The supervisor shall prepare a written record documenting the specific facts that led to the decision to require the test, and shall inform the employee in writing of the following:

- (a) The test will be given to detect either alcohol or drugs, or both.

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### *Drug- and Alcohol-Free Workplace*

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- (b) The result of the test is not admissible in any criminal proceeding against the employee.
- (c) The employee may refuse the test, but refusal may result in dismissal or other disciplinary action.

#### 1005.7.2 DISCIPLINE

An employee may be subject to disciplinary action if he/she:

- (a) Fails or refuses to submit to a screening test.
- (b) After taking a screening test that indicates the presence of a controlled substance, fails to provide proof, within 72 hours after being requested, that he/she took the controlled substance as directed, pursuant to a current and lawful prescription issued in his/her name.

#### **1005.8 COMPLIANCE WITH THE DRUG-FREE WORKPLACE ACT**

No later than 30 days following notice of any drug statute conviction for a violation occurring in the workplace involving a member, the department will take appropriate disciplinary action, up to and including dismissal, and/or requiring the member to satisfactorily participate in a drug abuse assistance or rehabilitation program (41 USC § 8104).

#### **1005.9 CONFIDENTIALITY**

The Department recognizes the confidentiality and privacy due to its members. Disclosure of any information relating to substance abuse treatment, except on a need-to-know basis, shall only be with the express written consent of the member involved or pursuant to lawful process.

The written results of any screening tests and all documents generated by the employee assistance program are considered confidential medical records and shall be forwarded to the City HR Department.

#### **1005.10 RANDOM DRUG SCREENING TESTS**

All department members are subject to unannounced, mandatory, and random drug screening tests to detect the presence of controlled substances. All testing shall be conducted in accordance with City Drug and Alcohol Policy.

#### **1005.11 CONFIDENTIALITY**

The written results of any screening test may be provided to the employee but will be considered to be a confidential medical record, and shall be maintained separate from the employee's other personnel files.

#### **1005.12 DRUG FREE AWARENESS PROGRAM**

The Department will maintain an ongoing drug-free awareness program to inform employees about the dangers of drug abuse, any available drug counseling, rehabilitation, and employee assistance programs, and penalties that may be imposed for violations occurring in the workplace.

## Holiday and Vacation Hours

### **1006.1 PURPOSE AND SCOPE**

It is the purpose of this policy to establish guidelines for members in the use of the "holiday hours" the city extends to the members to observe designated holidays, as well as the use of vacation hours accrued by members. It is the intent of this policy to ensure the member receives the opportunity to observe the designated holiday. The policy also mandates the proper compensation for the member, who is assigned to critical service staffing areas (patrol), and has to work his/her regular shift on a designated holiday.

### **1006.2 HOLIDAY OBSERVANCE**

All members will be off-duty on recognized legal holidays, as determined and observed by American Fork City. The only exception will be those patrol officers and their immediate supervisors that are regularly scheduled to work on the day the holiday falls on. Those members are considered essential to public safety and will need to be in-service for the community. Any one-time adjustment to this policy will need prior authorization from the Division Commander or Chief of Police. Police members will not be authorized to "elect" to work on a designated holiday and then force the city to compensate them with time and half pay. A member may, with prior permission from the Division Commander or Chief of Police, elect to work a holiday and then use the holiday hours at a later date for personal leave (comp time).

### **1006.3 WORKING DESIGNATED HOLIDAYS**

Those officers required to work on a designated holiday, either by minimum staffing standards or direction from their supervisor, will be paid for the hours actually worked and also receive the designated amount of "holiday time" hours as determined by the City Administration.

### **1006.4 RESTRICTIONS ON VACATION HOURS USE**

There are two times of the year in which department members are restricted as to the use of their accumulated vacation hours:

- (a) Department members shall not be permitted to take more than 80 cumulative hours of vacation time during the month of December.
- (b) Department members shall not be permitted to take any vacation time during the week on which the City's "Steel Days" falls.

Any exception to this policy must be authorized by the Chief of Police at least 45 days in advance.



## Sick Leave

### 1007.1 PURPOSE AND SCOPE

Employees of the department have a sick leave benefit that may provide continued compensation during times of absence due to personal illness or family illness. An employee shall accrue sick leave with pay in proportion to the time paid each pay period. Sick leave shall accrue without limit.

Sick leave may be granted for the following:

- (a) Preventive health and dental care
- (b) Maternity
- (c) Paternity
- (d) Adoption care
- (e) Illness, injury or temporary disability of the following:
  - 1. The employee
  - 2. The employee's spouse
  - 3. The employee's children or parents living in the employee's home

Employees may also be entitled to additional paid or unpaid leave for certain family and medical reasons as provided for in the Family and Medical Leave Act (FMLA) (29 CFR 825).

### 1007.2 EMPLOYEE RESPONSIBILITIES

Sick leave is not considered vacation and, abuse of sick leave may result in discipline and/or denial of sick leave benefits. Employees on sick leave shall not engage in other employment or self-employment, or participate in any sport, hobby, recreational or other activity which may impede recovery from the injury or illness.

#### 1007.2.1 NOTIFICATION

Employees are encouraged to notify the Shift Supervisor or appropriate supervisor as soon as they are aware that they will not be able to report to work. At a minimum, employees shall make such notification no less than two hours before the start of their scheduled shift. If an employee is unable to contact the supervisor in the case of an emergency, every effort should be made to have a representative contact the supervisor.

When the necessity for leave is foreseeable, such as an expected birth or planned medical treatment, the employee shall, whenever possible, provide the department with no less than 30-days notice of the intent to take leave.

### 1007.3 EXTENDED ILLNESS

Employees absent from duty on sick leave in excess of three successive work days shall produce administratively acceptable evidence. If there is reason to believe that an employee is abusing

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### *Sick Leave*

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sick leave, a supervisor may require an employee to produce evidence regardless of the number of sick hours used.

#### **1007.4 SUPERVISOR RESPONSIBILITY**

Supervisors should monitor sick leave usage and regularly review the attendance of employees under their command to ensure that the use of sick leave is consistent with this policy. Supervisors should address sick-leave use in the employee's performance evaluation when it has negatively affected the employee's performance or ability to complete assigned duties, and when unusual amounts of sick leave by the employee has had a negative impact on department operations. When appropriate, supervisors should counsel employees regarding the excessive use of sick leave and should consider referring the employee to the Employee Assistance Program.

# Communicable Diseases

## 1008.1 PURPOSE AND SCOPE

This policy provides general guidelines to assist in minimizing the risk of department members contracting and/or spreading communicable diseases.

### 1008.1.1 DEFINITIONS

Definitions related to this policy include:

**Communicable disease** - A human disease caused by microorganisms that are present in and transmissible through human blood, bodily fluid, tissue, or by breathing or coughing. These diseases commonly include, but are not limited to, hepatitis B virus (HBV), HIV and tuberculosis.

**Exposure** - When an eye, mouth, mucous membrane or non-intact skin comes into contact with blood or other potentially infectious materials, or when these substances are injected or infused under the skin; when an individual is exposed to a person who has a disease that can be passed through the air by talking, sneezing or coughing (e.g., tuberculosis), or the individual is in an area that was occupied by such a person. Exposure only includes those instances that occur due to a member's position at the American Fork Police Department. (See the exposure control plan for further details to assist in identifying whether an exposure has occurred.)

## 1008.2 POLICY

The American Fork Police Department is committed to providing a safe work environment for its members. Members should be aware that they are ultimately responsible for their own health and safety.

## 1008.3 EXPOSURE CONTROL OFFICER

The Chief of Police will assign a person as the Exposure Control Officer (ECO). The ECO shall develop an exposure control plan that includes:

- (a) Exposure prevention and decontamination procedures.
- (b) Procedures for when and how to obtain medical attention in the event of an exposure or suspected exposure.
- (c) The provision that [department/office] members will have no-cost access to the appropriate personal protective equipment (PPE) (e.g., gloves, face masks, eye protection, pocket masks) for each member's position and risk of exposure.
- (d) Evaluation of persons in custody for any exposure risk and measures to separate them.
- (e) Compliance with all relevant laws or regulations related to communicable diseases, including:
  - 1. The mandates of the Utah Occupational Safety and Health Act (Utah Code 34A-6-102 et seq.; UAC R614-1-1 et seq.).

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### *Communicable Diseases*

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2. Reporting known or suspected cases of communicable diseases to the local health department (Utah Code 26B-7-206; UAC R386-702-4).
3. Responding to requests and notifications regarding exposures covered under the Ryan White law (42 USC § 300ff-133; 42 USC § 300ff-136).
4. Exposure control mandates in 29 CFR 1910.1030 (UAC R614-1-4).

The ECO should also act as the liaison with the Utah Occupational Safety and Health Division (UOSH) and may request voluntary compliance inspections. The ECO should annually review and update the exposure control plan and review implementation of the plan.

#### **1008.4 EXPOSURE PREVENTION AND MITIGATION**

##### **1008.4.1 GENERAL PRECAUTIONS**

All members are expected to use good judgment and follow training and procedures related to mitigating the risks associated with communicable disease. This includes, but is not limited to (29 CFR 1910.1030; UAC R614-1-4):

- (a) Stocking disposable gloves, antiseptic hand cleanser, CPR masks or other specialized equipment in the work area or department vehicles, as applicable.
- (b) Wearing department-approved disposable gloves when contact with blood, other potentially infectious materials, mucous membranes and non-intact skin can be reasonably anticipated.
- (c) Washing hands immediately or as soon as feasible after removal of gloves or other PPE.
- (d) Treating all human blood and bodily fluids/tissue as if it is known to be infectious for a communicable disease.
- (e) Using an appropriate barrier device when providing CPR.
- (f) Using a face mask or shield if it is reasonable to anticipate an exposure to an airborne transmissible disease.
- (g) Decontaminating non-disposable equipment (e.g., flashlight, control devices, clothing and portable radio) as soon as possible if the equipment is a potential source of exposure.
  1. Clothing that has been contaminated by blood or other potentially infectious materials shall be removed immediately or as soon as feasible and stored/decontaminated appropriately.
- (h) Handling all sharps and items that cut or puncture (e.g., needles, broken glass, razors, knives) cautiously and using puncture-resistant containers for their storage and/or transportation.
- (i) Avoiding eating, drinking, smoking, applying cosmetics or lip balm, or handling contact lenses where there is a reasonable likelihood of exposure.
- (j) Disposing of biohazardous waste appropriately or labeling biohazardous material properly when it is stored.

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### *Communicable Diseases*

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#### 1008.4.2 IMMUNIZATIONS

Members who could be exposed to HBV due to their positions may receive the HBV vaccine and any routine booster at no cost (29 CFR 1910.1030; UAC R614-1-4).

Members shall also be screened for tuberculosis pursuant to the guidelines established by UOSH (UAC R388-804).

#### **1008.5 POST EXPOSURE**

##### 1008.5.1 INITIAL POST-EXPOSURE STEPS

Members who experience an exposure or suspected exposure shall (29 CFR 1910.1030; UAC R614-1-4):

- (a) Begin decontamination procedures immediately (e.g., wash hands and any other skin with soap and water, flush mucous membranes with water).
- (b) Obtain medical attention as appropriate.
- (c) Notify a supervisor as soon as practicable.

##### 1008.5.2 REPORTING REQUIREMENTS

The supervisor on-duty shall investigate every exposure or suspected exposure that occurs as soon as possible following the incident. The supervisor shall ensure the appropriate workers compensation report is completed and forwarded to their Division Commander, the Chief of Police, and City HR. The report should include documentation of the following (29 CFR 1910.1030; UAC R614-1-4):

- (a) Name of the member exposed
- (b) Date and time of the incident
- (c) Location of the incident
- (d) Potentially infectious materials involved and the source of exposure (e.g., identification of the person who may have been the source)
- (e) Work being done during exposure
- (f) How the incident occurred or was caused
- (g) PPE in use at the time of the incident
- (h) Actions taken post-event (e.g., clean-up, notifications)

The supervisor shall advise the member that disclosing the identity and/or infectious status of a source to the public or to anyone who is not involved in the follow-up process is prohibited. The supervisor should complete the incident documentation in conjunction with other reporting requirements that may apply (see the Occupational Disease and Work-Related Injury and Death Reporting Policy).

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#### 1008.5.3 MEDICAL CONSULTATION, EVALUATION AND TREATMENT

Department members shall have the opportunity to have a confidential medical evaluation immediately after an exposure and follow-up evaluations as necessary (29 CFR 1910.1030; UAC R614-1-4).

The ECO should request a written opinion/evaluation from the treating medical professional that contains only the following information:

- (a) Whether the member has been informed of the results of the evaluation.
- (b) Whether the member has been notified of any medical conditions resulting from exposure to blood or other potentially infectious materials which require further evaluation or treatment.

No other information should be requested or accepted by the ECO.

#### 1008.5.4 COUNSELING

The Department shall provide the member the opportunity for counseling and consultation regarding the exposure (29 CFR 1910.1030; UAC R614-1-4).

#### 1008.5.5 SOURCE TESTING

Testing a person for communicable diseases when that person was the source of an exposure should be done when it is desired by the exposed member or when it is otherwise appropriate. Source testing is the responsibility of the exposed member's supervisor.

Source testing may be achieved by:

- (a) Obtaining consent from the individual.
- (b) Seeking a court order or warrant pursuant to Utah Code 78B-8-402.

Since there is the potential for overlap between the different manners in which source testing may occur, the exposed member's supervisor is responsible for coordinating the testing to prevent unnecessary or duplicate testing.

The exposed member's supervisor should seek the consent of the individual for testing and consult the City Attorney to discuss other options when no statute exists for compelling the source of an exposure to undergo testing if the person refuses.

#### 1008.6 CONFIDENTIALITY OF REPORTS

Medical information shall remain in confidential files and shall not be disclosed to anyone without the member's written consent (except as required by law) (29 CFR 1910.1030; UAC R614-1-4; Utah Code 26B-7-217). Test results from persons who may have been the source of an exposure are to be kept confidential as well.

#### 1008.7 TRAINING

All members shall participate in training regarding communicable diseases commensurate with the requirements of their position. The training (29 CFR 1910.1030; UAC R614-1-4):

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### *Communicable Diseases*

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- (a) Shall be provided at the time of initial assignment to tasks where an occupational exposure may take place and at least annually after the initial training.
- (b) Shall be provided whenever the member is assigned new tasks or procedures affecting his/her potential exposure to communicable disease.
- (c) Should provide guidance on what constitutes an exposure, what steps can be taken to avoid an exposure and what steps should be taken if a suspected exposure occurs.

## Smoking and Tobacco Use

### **1009.1 PURPOSE AND SCOPE**

This policy establishes limitations on smoking and the use of tobacco products by members and others while on-duty or while in American Fork Police Department facilities or vehicles.

For the purposes of this policy, smoking and tobacco use includes, but is not limited to, any tobacco product, such as cigarettes, cigars, pipe tobacco, snuff, tobacco pouches and chewing tobacco, as well as any device intended to simulate smoking, such as an electronic cigarette or personal vaporizer.

### **1009.2 POLICY**

The American Fork Police Department recognizes that tobacco use is a health risk and can be offensive to others. Smoking and tobacco use also presents an unprofessional image for the [Department/Office] and its members. Therefore smoking and tobacco use is prohibited by members and visitors in all [department/office] facilities, buildings, and vehicles, and as is further outlined in this policy (Utah Code 26B-7-503).

### **1009.3 SMOKING AND TOBACCO USE**

Smoking and tobacco use by members is prohibited anytime members are in public view representing the American Fork Police Department.

It shall be the responsibility of each member to ensure that no person under his/her supervision smokes or uses any tobacco product inside City facilities, buildings and vehicles.

### **1009.4 ADDITIONAL PROHIBITIONS**

No person shall smoke tobacco products within 25 feet of any entranceway, exit, or operable window of any public building (including any department facility), all enclosed indoor places of public access, or in any buildings where restrictions on use of tobacco products are posted or provided by other means, whether the person is present for training, enforcement, or any other purpose (UAC R392-510-8).



# Personnel Complaints

## 1010.1 PURPOSE AND SCOPE

This policy provides guidelines for the reporting, investigation and disposition of complaints regarding the conduct of members of the American Fork Police Department. This policy shall not apply to any questioning, counseling, instruction, informal verbal admonishment or other routine or unplanned contact of a member in the normal course of duty, by a supervisor or any other member, nor shall this policy apply to a criminal investigation. Any process afforded to Department members in this policy shall not apply to probationary or part-time employees.

## 1010.2 POLICY

The American Fork Police Department takes seriously all complaints regarding the service provided by the Department and the conduct of its members.

The Department will accept and address all complaints of misconduct in accordance with this policy and applicable federal, state and local law, municipal and county rules and the requirements of any memorandum of understanding or collective bargaining agreement. This includes complaints alleging improper profiling or bias by officers.

It is also the policy of this department to ensure that the community can report misconduct without concern for reprisal or retaliation.

## 1010.3 PERSONNEL COMPLAINTS

Personnel complaints include any allegation of misconduct or improper job performance that, if true, would constitute a violation of [department/office] policy or of federal, state, or local law, policy, or rule. Personnel complaints may be generated internally or by the public.

Inquiries about conduct or performance that, if true, would not violate [department/office] policy or federal, state, or local law, policy, or rule may be handled informally by a supervisor and shall not be considered a personnel complaint. Such inquiries generally include clarification regarding policy, procedures, or the response to specific incidents by the [Department/Office].

### 1010.3.1 COMPLAINT CLASSIFICATIONS

Personnel complaints shall be classified in one of the following categories:

**Informal** - A matter in which the Shift Supervisor is satisfied that appropriate action has been taken by a supervisor of rank greater than the accused member.

**Formal** - A matter in which a supervisor determines that further action is warranted. Such complaints may be investigated by a supervisor of rank greater than the accused member or referred to the Internal Affairs Unit, depending on the seriousness and complexity of the investigation.

**Incomplete** - A matter in which the complaining party either refuses to cooperate or becomes unavailable after diligent follow-up investigation. At the discretion of the assigned supervisor or

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the Internal Affairs Unit, such matters may be further investigated depending on the seriousness of the complaint and the availability of sufficient information.

#### 1010.3.2 SOURCES OF COMPLAINTS

The following applies to the source of complaints:

- (a) Individuals from the public may make complaints in any form, including in writing, by email, in person or by telephone.
- (b) Any department member becoming aware of alleged misconduct shall immediately notify their Division Commander or the Chief of Police as indicated in the "Documentation and Notification" section of this policy.
- (c) Supervisors shall initiate a complaint based upon observed misconduct or receipt from any source alleging misconduct that, if true, could result in disciplinary action.
- (d) Anonymous and third-party complaints should be accepted and investigated to the extent that sufficient information is provided.
- (e) Tort claims and lawsuits may generate a personnel complaint.

#### 1010.4 AVAILABILITY AND ACCEPTANCE OF COMPLAINTS

##### 1010.4.1 COMPLAINT FORMS

Personnel complaint forms will be made available to members of the public upon request and be accessible through the Department website.

Personnel complaint forms in languages other than English may also be provided, as determined necessary or practicable.

##### 1010.4.2 ACCEPTANCE

All complaints will be courteously accepted by any [department/office] member and promptly given to the appropriate supervisor. Although written complaints are preferred, a complaint may also be filed orally, either in person or by telephone. Such complaints will be directed to a supervisor. If a supervisor is not immediately available to take an oral complaint, the receiving member shall obtain contact information sufficient for the supervisor to contact the complainant. The supervisor, upon contact with the complainant, shall complete and submit a complaint form as appropriate.

Although not required, complainants should be encouraged to file complaints in person so that proper identification, signatures, photographs, or physical evidence may be obtained as necessary.

#### 1010.5 DOCUMENTATION AND NOTIFICATION

Upon receiving a personnel complaint, the Department member receiving the complaint shall immediately provide written notification to their Division Commander (or if a Division Commander is unavailable, directly to the Chief of Police) which briefly outlines the nature and status of the complaint. Upon receiving notification of a complaint, the Division Commander shall immediately notify the Chief of Police. Such notifications shall all be made no later than the end of the shift in which the complaint is received. Supervisors responsible for investigating a complaint shall ensure

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that all formal and informal complaints are documented on a complaint form. The supervisor shall ensure that the nature of the complaint is defined as clearly as possible, and that an attached complaint log is filled out with sufficient detail to record clearly the complaint classification, any department actions taken to address the complaint, and the complaint status or resolution. All complaints shall be resolved within 7 days of receipt unless otherwise approved by the Chief of Police or designee. When the complaint has been resolved, the complaint form and log shall be submitted to the Chief of Police or designee and retained in the complaint file.

All complaints and inquiries should also be documented in a log that records and tracks complaints. The log shall include the nature of the complaint and the actions taken to address the complaint. On an annual basis, the department should audit the log and send an audit report to the Chief of Police or the authorized designee.

#### **1010.6 ADMINISTRATIVE SEARCHES**

Assigned lockers, storage spaces and other areas, including desks, offices and vehicles, may be searched as part of an administrative investigation upon a reasonable suspicion of misconduct.

Such areas may also be searched any time by a supervisor for non-investigative purposes, such as obtaining a needed report, radio or other document or equipment.

#### **1010.7 ADMINISTRATIVE LEAVE**

When a complaint of misconduct is of a serious nature, or when circumstances indicate that allowing the accused to continue to work would adversely affect the mission of the [Department/Office], the Chief of Police or the authorized designee may temporarily assign an accused employee to administrative leave. Any employee placed on administrative leave:

- (a) May be required to relinquish any [department/office] badge, identification, assigned weapons, and any other [department/office] equipment.
- (b) Shall be required to continue to comply with all policies and lawful orders of a supervisor.
- (c) May be temporarily reassigned to a different shift, generally a normal business-hours shift, during the investigation. The employee may be required to remain available for contact at all times during such shift, and will report as ordered.

#### **1010.8 CRIMINAL INVESTIGATION**

Where a member is accused of potential criminal conduct, a separate supervisor or investigator shall be assigned to investigate the criminal allegations apart from any administrative investigation. Any separate administrative investigation may parallel a criminal investigation.

No Department member who becomes suspected of or a witness to criminal activity in the performance of their law enforcement duties shall be interviewed by any person or agency outside of the Department attempting to conduct a criminal investigation without the prior notification and authorization of the Chief of police.

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The Chief of Police shall be notified as soon as practicable when a member is accused of criminal conduct. The Chief of Police may request a criminal investigation by an outside law enforcement agency.

A member accused of criminal conduct shall be provided with all rights afforded to a civilian. The member should not be administratively ordered to provide any information in the criminal investigation.

The American Fork Police Department may release information concerning the arrest or detention of any member, including an officer, that has not led to a conviction. No disciplinary action should be taken until an independent administrative investigation is conducted.

#### **1010.9 POST-ADMINISTRATIVE INVESTIGATION PROCEDURES**

Upon completion of a formal investigation, an investigation report should be forwarded to the Chief of Police through the chain of command. Each level of command should review the report and include their comments in writing before forwarding the report. The Chief of Police may accept or modify any classification or recommendation for disciplinary action.

##### **1010.9.1 DIVISION COMMANDER RESPONSIBILITIES**

Upon receipt of any completed personnel investigation, the Division Commander of the involved member shall review the entire investigative file, the member's personnel file and any other relevant materials.

The Division Commander may make recommendations regarding the disposition of any allegations and the amount of discipline, if any, to be imposed.

Prior to forwarding recommendations to the Chief of Police, the Division Commander may return the entire investigation to the assigned investigator or supervisor for further investigation or action.

When forwarding any written recommendation to the Chief of Police, the Division Commander shall include all relevant materials supporting the recommendation. Actual copies of a member's existing personnel file need not be provided and may be incorporated by reference.

##### **1010.9.2 CHIEF OF POLICE RESPONSIBILITIES**

Upon receipt of any written recommendation for disciplinary action, the Chief of Police shall review the recommendation and all accompanying materials. The Chief of Police may modify any recommendation and/or may return the file to the Division Commander for further investigation or action.

Once the Chief of Police is satisfied that no further investigation or action is required by staff, the Chief of Police shall determine the amount of discipline, if any that should be imposed. In the event disciplinary action is proposed, the Chief of Police shall provide the member with a written notice and an opportunity to respond orally or in writing to the Chief of Police within five days of receiving the notice. Upon a showing of good cause by the member, the Chief of Police may grant a reasonable extension of time for the member to respond. If the member elects to respond

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orally, the presentation shall be recorded by the Department. Upon request, the member shall be provided with a copy of the recording.

Upon request, the member shall be given access to the materials considered by the Chief of Police in recommending the proposed discipline, unless such access would pose a safety risk to any person or would interfere with or compromise an ongoing investigation.

Once the member has completed his/her response or if the member has elected to waive any such response, the Chief of Police shall consider all information received in regard to the recommended discipline. The Chief of Police shall render a timely written decision to the member and specify the grounds and reasons for discipline and the effective date of the discipline. Once the Chief of Police has issued a written decision, the discipline shall become effective.

#### **1010.9.3 NOTICE OF FINAL DISPOSITION TO THE COMPLAINANT**

The Chief of Police or the authorized designee should ensure that the complainant is notified of the disposition (i.e., sustained, not sustained, exonerated, unfounded) of the complaint.

#### **1010.10 RETENTION OF PERSONNEL INVESTIGATION FILES**

All personnel complaints shall be maintained in accordance with the established records retention schedule and as described in the Personnel Records Policy.

#### **1010.11 RESIGNATIONS/RETIREMENTS PRIOR TO DISCIPLINE**

In the event that a member tenders a written resignation or notice of retirement prior to the imposition of discipline, it shall be noted in the file. The tender of a resignation or retirement by itself shall not serve as grounds for the termination of any pending investigation or discipline.

#### **1010.12 COLLECTION OF DATA REGARDING OFFICER MISCONDUCT**

The Chief of Police shall designate a department member tasked with collecting and maintaining accurate data regarding officer misconduct.

#### **1010.13 ADMINISTRATIVE INVESTIGATIONS**

Allegations of misconduct will be administratively investigated as follows.

##### **1010.13.1 SUPERVISOR RESPONSIBILITIES**

In general, the primary responsibility for the investigation of a personnel complaint shall rest with the member's immediate supervisor, unless the supervisor is the complainant, or the supervisor is the ultimate decision-maker regarding disciplinary action or has any personal involvement regarding the alleged misconduct. The Chief of Police or the authorized designee may direct that another supervisor investigate any complaint.

A supervisor who becomes aware of alleged misconduct shall take reasonable steps to prevent aggravation of the situation.

The Chief of Police or any other supervisor who is made aware of an allegation against a certified peace officer or dispatcher employed by the American Fork Police Department shall conduct an administrative or internal investigation and report substantiated allegations to the Division of Peace

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Officer Standards and Training (POST) within 30 days (Utah Code 53-6-211; Utah Code 53-6-309; UAC R728-409-18).

If an officer or dispatcher who is the subject of the investigation resigns, retires, or otherwise separates from the agency before the conclusion of the investigation, the Chief of Police shall report the allegations and any investigation results to POST (Utah Code 53-6-211; Utah Code 53-6-309; UAC R728-409-18).

The Chief of Police shall notify POST within 30 days after the officer's termination date if the date occurs during an open internal investigation for an alleged violation of Utah Code 53-6-211(1) (Utah Code 53-6-209).

If the American Fork Police Department receives credible allegations and opens an internal investigation within two years after the day of an officer's termination date, the Chief of Police shall provide notice 30 days after the day of opening the investigation and an estimated date of completion to POST. If the allegations involve violations of Utah Code 53-6-211(1), whether or not they result in an internal investigation, the Chief of Police shall notify POST (Utah Code 53-6-209).

The responsibilities of supervisors include but are not limited to:

- (a) Ensuring that upon receiving or initiating any formal complaint, a complaint form is completed.
  - 1. The original complaint form will be directed to the Shift Sergeant of the accused member, via the chain of command, who will take appropriate action and/or determine who will have responsibility for the investigation.
  - 2. In circumstances where the integrity of the investigation could be jeopardized by reducing the complaint to writing or where the confidentiality of a complainant is at issue, a supervisor shall orally report the matter to the member's Division Commander or the Chief of Police, who will initiate appropriate action.
- (b) Responding to all complainants in a courteous and professional manner.
- (c) Resolving those personnel complaints that can be resolved immediately.
  - 1. Follow-up contact with the complainant should be made within 24 hours of the [Department/Office] receiving the complaint.
  - 2. If the matter is resolved and no further action is required, the supervisor will note the resolution on a complaint form and forward the form to the Shift Sergeant.
- (d) Ensuring that upon receipt of a complaint involving allegations of a potentially serious nature, the Shift Sergeant and Chief of Police are notified via the chain of command as soon as practicable.
- (e) Promptly contacting the Personnel Department and the Shift Sergeant for direction regarding the supervisor's role in addressing a complaint that relates to sexual, racial, ethnic, or other forms of prohibited harassment or discrimination.
- (f) Forwarding unresolved personnel complaints to the Shift Sergeant, who will determine whether to contact the complainant or assign the complaint for investigation.

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- (g) Informing the complainant of the investigator's name and the complaint number within three days after assignment.
- (h) Investigating a complaint as follows:
  - 1. Making reasonable efforts to obtain names, addresses, and telephone numbers of witnesses.
  - 2. When appropriate, ensuring immediate medical attention is provided and photographs of alleged injuries and accessible uninjured areas are taken.
- (i) Ensuring that the procedural rights of the accused member are followed.
- (j) Ensuring interviews of the complainant are generally conducted during reasonable hours.

#### 1010.13.2 ADMINISTRATIVE INVESTIGATION PROCEDURES

No Department member who becomes suspected of or a witness to wrongdoing in the performance of law enforcement duties shall be interviewed by an person or agency outside of the Department attempting to conduct an administrative investigation without the prior notification and authorization of the Chief of Police.

Whether conducted by a supervisor or a member of the Internal Affairs Unit, the following applies to employees:

- (a) Interviews of an accused employee shall be conducted during reasonable hours and preferably when the employee is on-duty. If the employee is off-duty, he/she shall be compensated.
- (b) Unless waived by the employee, interviews of an accused employee shall be at the American Fork Police Department or other reasonable and appropriate place.
- (c) No more than two interviewers should ask questions of an accused employee.
- (d) Prior to any interview, an employee should be informed of the nature of the investigation.
- (e) All interviews should be for a reasonable period and the employee's personal needs should be accommodated.
- (f) No employee should be subjected to offensive or threatening language, nor shall any promises, rewards or other inducements be used to obtain answers.
- (g) Any employee refusing to answer questions directly related to the investigation may be ordered to answer questions administratively and may be subject to discipline for failing to do so.
  - 1. An employee should be given an order to answer questions in an administrative investigation that might incriminate the member in a criminal matter only after the employee has been given a *Garrity* advisement and after the investigator has consulted with the prosecuting agency. Administrative investigators should consider the impact that compelling a statement from the employee may have on any related criminal investigation and should take reasonable steps to avoid creating any foreseeable conflicts between the two related investigations. This

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may include conferring with the person in charge of the criminal investigation (e.g., discussion of processes, timing, implications).

2. No information or evidence administratively coerced from an employee may be provided to anyone involved in conducting the criminal investigation or to any prosecutor.
- (h) The interviewer should record all interviews of employees and witnesses. The employee may also record the interview. If the employee has been previously interviewed, a copy of that recorded interview shall be provided to the employee prior to any subsequent interview.
- (i) All employees subjected to interviews that could result in discipline have the right to have an uninvolved representative present during the interview. However, in order to maintain the integrity of each individual's statement, involved employees shall not consult or meet with a representative or attorney collectively or in groups prior to being interviewed.
- (j) All employees shall provide complete and truthful responses to questions posed during interviews.
- (k) The polygraph examination, voice stress testing, eye detect testing, and other credible credibility testing protocols are valuable investigative aids as used in conjunction with, but not as a substitute for thorough investigation. These tests may be employed in the course of administrative/internal affairs investigations to verify, corroborate, or refute statements and to obtain additional investigative leads, among other authorized purposes.

#### 1010.13.3 ADMINISTRATIVE INVESTIGATION FORMAT

Formal investigations of personnel complaints shall be thorough, complete and essentially follow this format:

**Introduction** - Include the identity of the members, the identity of the assigned investigators, the initial date and source of the complaint.

**Synopsis** - Provide a brief summary of the facts giving rise to the investigation.

**Summary** - List the allegations separately, including applicable policy sections, with a brief summary of the evidence relevant to each allegation. A separate recommended finding should be provided for each allegation.

**Evidence** - Each allegation should be set forth with the details of the evidence applicable to each allegation provided, including comprehensive summaries of member and witness statements. Other evidence related to each allegation should also be detailed in this section.

**Conclusion** - A recommendation regarding further action or disposition should be provided.

**Exhibits** - A separate list of exhibits (e.g., recordings, photos, documents) should be attached to the report.



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#### 1010.13.4 DISPOSITIONS

Each personnel complaint shall be classified with one of the following dispositions:

**Unfounded** - When the investigation discloses that the alleged acts did not occur or did not involve [department/office] members. Complaints that are determined to be frivolous will fall within the classification of unfounded.

**Exonerated** - When the investigation discloses that the alleged act occurred but that the act was justified, lawful and/or proper.

**Not sustained** - When the investigation discloses that there is insufficient evidence to sustain the complaint or fully exonerate the member.

**Sustained** - When the investigation discloses sufficient evidence to establish that the act occurred and that it constituted misconduct.

If an investigation discloses misconduct or improper job performance that was not alleged in the original complaint, the investigator shall take appropriate action with regard to any additional allegations.

#### 1010.13.5 COMPLETION OF INVESTIGATIONS

Every investigator or supervisor assigned to investigate a personnel complaint or other alleged misconduct shall proceed with due diligence in an effort to complete the investigation within one year from the date of discovery by an individual authorized to initiate an investigation.

#### 1010.14 POST-DISCIPLINE APPEAL RIGHTS

Any non-probationary or non-part-time employee that is discharged, transferred to another position with less pay, or suspended without pay for more than two days may, within 10 days from the issuance by the Chief of Police of the order of discharge, transfer, or suspension, appeal to an appeal board or a hearing officer if one has been established. However, if the Department has established an internal grievance procedure, the employee must exhaust all available grievance remedies before making such an appeal (Utah Code 10-3-1106).

The employee may appear in person and may have counsel and a public hearing. The findings and decision of the appeal board or hearing officer shall be final.

Any final action or order of the appeal board or hearing officer may be appealed to the Court of Appeals within 30 days of the issuance of the final action or order of the appeal board or hearing officer.

#### 1010.15 NOTICE OF SUSTAINED MISCONDUCT INVOLVING BRADY MATERIAL

If an allegation of misconduct involving *Brady* material is sustained, the Chief of Police or the authorized designee shall report the findings of the investigation to the county attorney or Utah Attorney General as applicable (Utah Code 53-25-1003).

## Seat Belts

### 1011.1 PURPOSE AND SCOPE

This policy establishes guidelines for the use of seat belts and child restraints. This policy will apply to all members operating or riding in department vehicles.

#### 1011.1.1 DEFINITIONS

Definitions related to this policy include:

**Child restraint system** - An infant or child passenger restraint system that meets Federal Motor Vehicle Safety Standards (FMVSS) and Regulations set forth in 49 CFR 571.213 (Utah Code 41-6a-1601).

### 1011.2 WEARING OF SAFETY RESTRAINTS

All members shall wear properly adjusted safety restraints when operating or riding in a seat equipped with restraints, in any vehicle owned, leased or rented by this department, while on- or off-duty, or in any privately owned vehicle while on-duty. The member driving such a vehicle shall ensure that all other occupants, including non-members of the Department, are properly restrained (Utah Code 41-6a-1803).

Exceptions to the requirement to wear safety restraints may be made only in exceptional situations where, due to unusual circumstances, wearing a seat belt would endanger the department member or the public. Members must be prepared to justify any deviation from this requirement.

### 1011.3 TRANSPORTING CHILDREN

A child younger than 8 years of age shall be secured using a child restraint system in the manner prescribed by the manufacturer of the system unless an exemption exists due to the child's height (Utah Code 41-6a-1803).

Rear seat passengers in a cage-equipped vehicle may have reduced clearance, which requires careful seating and positioning of seat belts. Due to this reduced clearance, and if permitted by law, children and any child restraint system may be secured in the front seat of such vehicles provided this positioning meets federal safety standards and the vehicle and child restraint system manufacturer's design and use recommendations. In the event that a child is transported in the front seat of a vehicle, the seat should be pushed back as far as possible and the passenger-side airbag should be deactivated. If this is not possible, members should arrange alternate transportation when feasible.

### 1011.4 TRANSPORTING SUSPECTS, PRISONERS OR ARRESTEES

Suspects, prisoners and arrestees should be in a seated position and secured in the rear seat of any department vehicle with a prisoner restraint system or, when a prisoner restraint system is not available, by seat belts provided by the vehicle manufacturer. The prisoner restraint system is not intended to be a substitute for handcuffs or other appendage restraints.

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Prisoners in leg restraints shall be transported in accordance with the Handcuffing and Restraints Policy.

#### **1011.5 INOPERABLE SEAT BELTS**

Department vehicles shall not be operated when the seat belt in the driver's position is inoperable. Persons shall not be transported in a seat in which the seat belt is inoperable.

Department vehicle seat belts shall not be modified, removed, deactivated or altered in any way, except by the vehicle maintenance and repair staff, who shall do so only with the express authorization of the Chief of Police.

Members who discover an inoperable restraint system shall report the defect to the appropriate supervisor. Prompt action will be taken to replace or repair the system.

#### **1011.6 POLICY**

It is the policy of the American Fork Police Department that members use safety and child restraint systems to reduce the possibility of death or injury in a motor vehicle collision.

#### **1011.7 VEHICLES MANUFACTURED WITHOUT SEAT BELTS**

Vehicles manufactured and certified for use without seat belts or other restraint systems are subject to the manufacturer's operator requirements for safe use.

#### **1011.8 VEHICLE AIRBAGS**

In all vehicles equipped with airbag restraint systems, the system will not be tampered with or deactivated, except when transporting children as written elsewhere in this policy. All equipment installed in vehicles equipped with airbags will be installed as per the vehicle manufacturer specifications to avoid the danger of interfering with the effective deployment of the airbag device.

## Body Armor

### 1012.1 PURPOSE AND SCOPE

The purpose of this policy is to provide law enforcement officers with guidelines for the proper use of body armor.

### 1012.2 POLICY

It is the policy of the American Fork Police Department to maximize officer safety through the use of body armor in combination with prescribed safety procedures. While body armor provides a significant level of protection, it is not a substitute for the observance of officer safety procedures.

### 1012.3 PROCURING BODY ARMOR

All officers of the American Fork Police Department are required to have and use effective and functional body armor as dictated by this policy. The body armor should meet or exceed the standards of the National Institute of Justice.

It is the responsibility of each officer to purchase their own body armor with personal funds or the funds generated by their monthly clothing allowance check. It is further the officer's responsibility to replace the body armor using personal funds or the clothing allowance funds, as needed.

If federal grant funds are available for the complete or partial purchase of body armor, the department may assist the officer in purchasing new or replacement body armor through grant administration or application process.

#### 1012.3.1 USE OF SOFT BODY ARMOR

Body armor is required to be used in accordance with manufacturer guidelines, (including following manufacturer recommendations for body armor replacement schedules and not wearing body armor past its recommended replacement date) and subject to the following:

- (a) Officers shall only wear agency-approved body armor.
- (b) Officers shall wear body armor anytime they are in a situation where they could reasonably be expected to take enforcement action.
- (c) Officers may be excused from wearing body armor when they are functioning primarily in an administrative or support capacity and could not reasonably be expected to take enforcement action.
- (d) Body armor shall be worn when an officer is working in uniform or taking part in [department/office] range training.
- (e) An officer may be excused from wearing body armor when they are involved in undercover or plainclothes work that their supervisor determines could be compromised by wearing body armor, or when a supervisor determines that other circumstances make it inappropriate to mandate wearing body armor.

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#### 1012.3.2 INSPECTIONS OF BODY ARMOR

Each Department member is responsible for inspecting, maintaining, and replacing his or her own body armor. Supervisors may, at their discretion, conduct periodic inspections of body armor for fit, cleanliness and signs of damage, abuse and wear.

#### 1012.3.3 CARE AND MAINTENANCE OF SOFT BODY ARMOR

Soft body armor should never be stored for any period of time in an area where environmental conditions (e.g., temperature, light, humidity) are not reasonably controlled (e.g., normal ambient room temperature/humidity conditions), such as in automobiles or automobile trunks.

Soft body armor should be cared for and cleaned pursuant to the manufacturer's care instructions provided with the soft body armor. The instructions can be found on labels located on the external surface of each ballistic panel. The carrier should also have a label that contains care instructions. Failure to follow these instructions may damage the ballistic performance capabilities of the armor. If care instructions for the soft body armor cannot be located, contact the manufacturer to request care instructions.

Soft body armor should not be exposed to any cleaning agents or methods not specifically recommended by the manufacturer, as noted on the armor panel label.

#### 1012.4 FIREARMS INSTRUCTOR RESPONSIBILITIES

The Firearms Instructor should:

- (a) Monitor technological advances in the body armor industry for any appropriate changes to department-approved body armor.
- (b) Assess weapons and ammunition currently in use and the suitability of approved body armor to protect against those threats.
- (c) Provide training that educates officers about the safety benefits of wearing body armor.

## Personnel Records

### 1013.1 PURPOSE AND SCOPE

This policy governs maintenance and access to personnel records. Personnel records include any file maintained under an individual member's name.

### 1013.2 DEPARTMENT FILE

The department file shall be maintained as a record of a person's employment/appointment with this department. The department file may contain:

- (a) Personal data, including photographs, marital status, names of family members, educational and employment history or similar information.
- (b) Election of employee benefits.
- (c) Personnel action reports reflecting assignments, promotions and other changes in employment/appointment status. These should be permanently retained.
- (d) Original performance evaluations. These should be permanently maintained.
- (e) Discipline records, including copies of sustained personnel complaints.
- (f) Commendations and awards.
- (g) Any other information, the disclosure of which would constitute an unwarranted invasion of personal privacy.

### 1013.3 DIVISION FILE

Division files may be separately maintained internally by a member's supervisor for the purpose of completing timely performance evaluations. The Division file may contain supervisor comments, notes, notices to correct and other materials that are intended to serve as a foundation for the completion of timely performance evaluations.

### 1013.4 TRAINING FILE

An individual training file shall be maintained for each member. Training files will contain records of all training; original or photocopies of available certificates, transcripts, diplomas and other documentation; and education and firearms qualifications. Training records may also be created and stored remotely, either manually or automatically (e.g., Daily Training Bulletin (DTB) records).

- (a) The involved member is responsible for providing the evidence of completed training/education in a timely manner.
- (b) Copies of such training records are to be placed in the member's training file.

### 1013.5 MEMBER ACCESS TO HIS/HER OWN PERSONNEL RECORDS

Any member may request access to his/her own personnel records during the normal business hours of those responsible for maintaining such files. Any member seeking the removal of any item from his/her personnel records shall file a written request to the Chief of Police through the chain of command. The Department shall remove any such item if appropriate, or within 30 days

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provide the member with a written explanation of why the contested item will not be removed. If the contested item is not removed from the file, the member's request and the written response from the Department shall be retained with the contested item in the member's corresponding personnel record.

Members may be restricted from accessing files containing any of the following information:

- (a) An ongoing internal affairs investigation to the extent that it could jeopardize or compromise the investigation pending final disposition or notice to the member of the intent to discipline.
- (b) Confidential portions of internal affairs files that have not been sustained against the member.
- (c) Criminal investigations involving the member.
- (d) Letters of reference concerning employment/appointment, licensing or issuance of permits regarding the member.
- (e) Any portion of a test document, except the cumulative total test score for either a section of the test document or for the entire test document.
- (f) Materials used by the Department for staff management planning, including judgments or recommendations concerning future salary increases and other wage treatments, management bonus plans, promotions and job assignments or other comments or ratings used for department planning purposes.
- (g) Information of a personal nature about a person other than the member if disclosure of the information would constitute a clearly unwarranted invasion of the other person's privacy.
- (h) Records relevant to any other pending claim between the Department and the member that may be discovered in a judicial proceeding.

#### **1013.6 RETENTION AND PURGING**

Unless provided otherwise in this policy, personnel records shall be maintained in accordance with the established records retention schedule.

- (a) During the preparation of each member's performance evaluation, all personnel complaints and disciplinary actions should be reviewed to determine the relevancy, if any, to progressive discipline, training and career development. Each supervisor responsible for completing the member's performance evaluation should determine whether any prior sustained disciplinary file should be retained beyond the required period for reasons other than pending litigation or other ongoing legal proceedings.
- (b) If a supervisor determines that records of prior discipline should be retained beyond the required period, approval for such retention should be obtained through the chain of command from the Chief of Police.
- (c) If, in the opinion of the Chief of Police, a personnel complaint or disciplinary action maintained beyond the required retention period is no longer relevant, all records of such matter may be destroyed in accordance with the established records retention schedule.

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#### **1013.7 REQUESTS FOR INFORMATION**

Accurate information regarding salary ranges within the department (including salary differential between ranks and salary levels for personnel with special skills or designations), the Department's compensatory time policy, overtime policy, and benefits will be made available to members upon request to the Chief of Police or designee.

#### **1013.8 POLICY**

It is the policy of this department to maintain personnel records and preserve the confidentiality of personnel records pursuant to the Constitution and the laws of Utah (Utah Code 63G-2-302 et seq.).

#### **1013.9 MEDICAL FILE**

A medical file shall be maintained separately from all other personnel records and shall contain all documents relating to the member's medical condition and history, including but not limited to:

- (a) Materials relating to a medical leave of absence, including leave under the Family and Medical Leave Act (FMLA).
- (b) Documents relating to workers' compensation claims or the receipt of short- or long-term disability benefits.
- (c) Fitness-for-duty examinations, psychological and physical examinations, follow-up inquiries and related documents.
- (d) Medical release forms, doctor's slips and attendance records that reveal a member's medical condition.
- (e) Any other documents or materials that reveal the member's medical history or medical condition, including past, present or future anticipated mental, psychological or physical limitations.

#### **1013.10 INTERNAL AFFAIRS FILE**

Internal affairs files shall be maintained under the exclusive control of the Internal Affairs Unit in conjunction with the office of the Chief of Police. Access to these files may only be approved by the Chief of Police or the Internal Affairs Unit supervisor.

These files shall contain the complete investigation of all formal complaints of member misconduct, regardless of disposition. Investigations of complaints that result in the following findings shall not be placed in the member's department file but will be maintained in the internal affairs file:

- (a) Not sustained
- (b) Unfounded
- (c) Exonerated

#### **1013.11 SECURITY**

Personnel records should be maintained in a secured location and locked either in a cabinet or access-controlled room. Personnel records maintained in an electronic format should have adequate password protection.



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### *Personnel Records*

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Personnel records are subject to disclosure only as provided in this policy, the Records Maintenance and Release Policy or according to applicable discovery procedures.

Nothing in this policy is intended to preclude review of personnel records by the City Administrator, City Attorney or other attorneys or representatives of the City in connection with official business.

#### 1013.11.1 REQUESTS FOR DISCLOSURE

Any member receiving a request for a personnel record shall promptly notify the Records Officer or other person charged with the maintenance of such records.

Upon receipt of any such request, the responsible person shall notify the affected member as soon as practicable that such a request has been made.

The responsible person shall further ensure that an appropriate response to the request is made in a timely manner, consistent with applicable law. In many cases, this may require assistance of available legal counsel.

All requests for disclosure that result in access to a member's personnel records shall be logged in the corresponding file.

#### 1013.11.2 RELEASE OF PERSONNEL INFORMATION

Information such as the member's medical information, or the home address, telephone number and Social Security number of the member or of the member's family, that is contained in a personnel record is confidential and may not be released (Utah Code 63G-2-302; Utah Code 63G-2-303; Utah Code 63G-2-304).

The Department may release any factual information concerning a disciplinary investigation if the member who is the subject of the investigation (or the member's representative) publicly makes a statement that is published in the media and that the member (or representative) knows to be false. The disclosure of such information, if any, shall be limited to facts that refute any such false statement.

# Request for Change of Assignment

## 1014.1 PURPOSE AND SCOPE

It is the policy of this department that all requests for change of assignment are considered equally. To facilitate the selection process, the following procedure is established whereby all such requests will be reviewed on an equal basis as assignments are made.

## 1014.2 REQUEST FOR CHANGE OF ASSIGNMENT

Personnel wishing a change of assignment are to complete a Memorandum to the Division Commander requesting a change in assignment. The Memorandum should then be forwarded through the chain of command to their Division Commander.

### 1014.2.1 PURPOSE OF MEMORANDUM

The Memorandum is designed to aid employees in listing their qualifications for specific assignments. All relevant experience, education and training should be included when completing the Memorandum.

All assignments an employee is interested in should be listed on the Memorandum.

The Request for Change of Assignment Memorandum will remain in effect until the end of the calendar year in which it was submitted. Effective January 1 of each year, employees who are still interested in new positions will need to complete and submit a new Request for Change of Assignment Memorandum.

## 1014.3 SUPERVISOR'S COMMENTARY

The officer's immediate supervisor shall make appropriate comments in the space provided on the Memorandum before forwarding it to the Division Commander of the employee involved. In the case of patrol officers, the Shift Supervisor must comment on the request with a recommendation before forwarding the request to the Division Commander. If the Shift Supervisor does not receive the Request for Change of Assignment Memorandum, the Division Commander will initial the form and return it to the employee without consideration.

# Employee Commendations

## **1015.1 PURPOSE AND SCOPE**

Special recognition may be in order whenever an employee performs his/her duties in an exemplary manner. This procedure provides general guidelines for the commending of exceptional employee performance.

## **1015.2 WHO MAY MAKE COMMENDATIONS**

A written commendation may be made by any supervisor regarding any other employee of the department, provided the reporting person is superior in rank or is the person-in-charge of the individual being commended. Additionally, investigating officers may commend uniformed officers for exceptional assistance in investigative functions, with approval from the investigator's supervisor. Any employee may recommend a commendation to the supervisor of the employee subject to commendation.

## **1015.3 COMMENDABLE ACTIONS**

A meritorious or commendable act by an employee of the department may include, but is not limited to, the following:

- Superior handling of a difficult situation by any employee of the department.
- Conspicuous bravery or outstanding performance by any employee of the department.
- Any action or performance that is above and beyond the typical duties of an employee.

## Fitness for Duty

### 1016.1 PURPOSE AND SCOPE

Monitoring members' fitness for duty is essential for the safety and welfare of the members of the [Department/Office] and the community. The purpose of this policy is to ensure that all members of this [department/office] remain fit for duty and able to perform their job functions.

### 1016.2 POLICY

The American Fork Police Department strives to provide a safe and productive work environment and ensure that all members of this [department/office] can safely and effectively perform the essential functions of their jobs. Under limited circumstances, the [Department/Office] may require a professional evaluation of a member's physical and/or mental capabilities to determine the member's ability to perform essential functions.

### 1016.3 MEMBER RESPONSIBILITIES

It is the responsibility of each member of this [department/office] to maintain the physical capability and psychological stability sufficient to safely and effectively perform essential duties of their position.

During working hours, all members are required to be alert, attentive, and capable of performing their assigned responsibilities.

Any member who feels unable to perform their duties shall promptly notify a supervisor. In the event that a member believes that another [department/office] member is unable to perform their duties, such observations and/or belief shall be promptly reported to a supervisor.

### 1016.4 SUPERVISOR RESPONSIBILITIES

- (a) A supervisor observing an employee or receiving a report of an employee who is perceived to be unable to safely perform their duties due to a physical or mental condition shall take prompt and appropriate action in an effort to resolve the situation.
- (b) Whenever feasible, the supervisor should attempt to ascertain the reason or source of the problem, and in all cases a preliminary evaluation should be made in an effort to determine the level of inability of the employee to perform their duties.
- (c) In the event the employee appears to be in need of immediate medical or psychiatric treatment, all reasonable efforts should be made to provide such care.
- (d) In conjunction with the Shift Sergeant or employee's available Division Commander, a determination should be made whether the employee should be temporarily relieved from their duties.
- (e) The Chief of Police and any other supervisor who is made aware that an officer may have a physical or mental disability affecting the officer's ability to perform their duties shall investigate the allegation (Utah Code 53-6-211).
- (f) The Chief of Police or a designee shall ensure that any allegation that an officer has a physical or mental disability affecting the officer's ability to perform their duties is

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reported to Utah Peace Officer Standards and Training (POST) within 30 days if the allegation is substantiated (UAC R728-409-18). This applies even in those instances where an employee resigns or is terminated (Utah Code 53-6-211).

- (g) The Chief of Police shall be promptly notified in the event that any employee is relieved from duty.

#### **1016.5 NON-WORK-RELATED CONDITIONS**

Any employee suffering from a non-work-related condition which warrants a temporary relief from duty may be required to use sick leave or other paid time off (PTO) in order to obtain medical treatment or other care.

#### **1016.6 WORK-RELATED CONDITIONS**

Any employee suffering from a work-related condition which warrants a temporary relief from duty shall be required to comply with personnel rules and guidelines for processing such claims.

Upon the recommendation of the Shift Supervisor or unit supervisor and concurrence of a Division Commander, any employee whose actions or use of force in an official capacity result in death or serious injury to another may be temporarily removed from regularly assigned duties and/or placed on paid administrative leave for the well being of the employee and until such time as the following may be completed:

- (a) A preliminary determination that the employee's conduct appears to be in compliance with related policies.
- (b) The employee has had the opportunity to receive necessary counseling and/or psychological clearance to return to full duty.

#### **1016.7 FITNESS FOR DUTY EVALUATIONS**

Fitness for duty medical evaluations may be performed under any of the following circumstances:

- (a) Return to work from injury or illness.
- (b) When a supervisor determines there is a direct threat to the health or safety of the employee or others.
- (c) In conjunction with corrective action, performance or conduct issues or discipline.
- (d) When it is a bona fide occupational qualification for selection, retention or promotion.

#### **1016.8 REQUIRED EXAMINATIONS**

Any physical, medical, or psychological examinations required by the [Department/Office] shall be provided at no cost to the [department/office] member.

#### **1016.9 LIMITATION ON HOURS WORKED**

##### **1016.9.1 LIMITATIONS**

Absent emergency operations or authorization from a division commander of the chief of police, department members shall not work more than:

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- 18 hours in a one-day (24 hours) period
- 32 hours in any two-day (48 hours) period
- 84 hours in any seven-day (168 hours) period

Limitations on the number of hours worked apply to any work for which a member will receive any form of compensation from the department.

Department members shall not volunteer time without first obtaining written authorization from a supervisor.

A member's failure to follow these limitations may result in discipline.

#### **1016.9.2 SUPERVISOR RESPONSIBILITIES**

Supervisors are responsible for monitoring the number of their members' actual working hours.

Unless authorized by his/her immediate supervisor, members should generally have a minimum of eight hours off between shifts.

Supervisors should give consideration to reasonable rest periods and are authorized to deny overtime or relieve any member of a current overtime shift who has exceeded the above limitations.

#### **1016.10 APPEALS**

An employee who is separated from paid employment or receives a reduction in salary resulting from a fitness for duty exam shall be entitled to an administrative appeal as outlined in the Personnel Complaints Policy.

## Meal Periods and Breaks

### **1017.1 PURPOSE AND SCOPE**

This policy regarding meals and breaks, insofar as possible, shall conform to the policy governing all City employees that has been established by the City Administrator.

#### **1017.1.1 MEAL PERIODS**

On-duty patrol officers shall remain on-duty and subject to call during meal breaks.

On-duty patrol officers shall take their breaks within the City limits unless on assignment outside of the City or with the approval of a supervisor.

#### **1017.1.2 BREAKS**

Each employee is entitled to a 15-minute break, near the mid-point, for each four-hour work period (UAC R477-8-3). Only one 15-minute break shall be taken during each 4-hours of duty. On-duty patrol officers shall monitor their radio while on break.

## Lactation Breaks

### 1018.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance regarding reasonable accommodations for lactating members.

### 1018.2 POLICY

It is the policy of the American Fork Police Department to provide, in compliance with federal and state law, reasonable accommodations for lactating members. This includes break time and appropriate facilities to accommodate any member desiring to express breast milk for the member's nursing child for up to one year after the child's birth (29 USC § 218d; 42 USC § 2000gg-1; 29 CFR 1636.3; Utah Code 34-49-203).

### 1018.3 LACTATION BREAK TIME

A rest period should be permitted each time the member requires a lactation break (29 USC § 218d; 42 USC § 2000gg-1; 29 CFR 1636.3; Utah Code 34-49-202). In general, lactation breaks that cumulatively total 30 minutes or less during any four-hour work period or major portion of a four-hour work period would be considered reasonable. However, individual circumstances may require more or less time.

Lactation breaks, if feasible, should be taken at the same time as the member's regularly scheduled rest or meal periods.

While a reasonable effort will be made to provide additional time beyond authorized breaks, any such time exceeding regularly scheduled and paid break time will be unpaid.

Members desiring to take a lactation break shall notify the dispatcher or a supervisor prior to taking such a break. Such breaks may be reasonably delayed if they would seriously disrupt [department/office] operations.

Once a lactation break has been approved, the break should not be interrupted except for emergency or exigent circumstances.

#### 1018.3.1 PRESENCE OF CHILDREN

The [Department/Office] is not required to allow the child of the member to be present at the [Department/Office] for purposes of accommodating breastfeeding (Utah Code 34A-5-106).

### 1018.4 PRIVATE LOCATION

The [Department/Office] will make reasonable efforts to accommodate members with the use of an appropriate room or other location to express milk in private. Such room or place should be in proximity to the member's work area and shall be other than a bathroom or toilet stall. The location must have an electrical outlet and be shielded from view, free from intrusion from coworkers and the public, and otherwise satisfy the requirements of federal and state law (29 USC § 218d; 42 USC § 2000gg-1; 29 CFR 1636.3; Utah Code 34-49-202).



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Members occupying such private areas shall either secure the door or otherwise make it clear to others that the area is occupied with a need for privacy. All other members should avoid interrupting a member during an authorized break, except to announce an emergency or other urgent circumstance.

Authorized lactation breaks for members assigned to the field may be taken at the nearest appropriate private area.

#### **1018.5 STORAGE OF EXPRESSED MILK**

The [Department/Office] will provide access to a clean and well-maintained refrigerator, freezer, or other suitable container for the temporary storage of breast milk (Utah Code 34-49-202).

Any member storing expressed milk in any authorized refrigerated area within the [Department/Office] shall clearly label it as such and shall remove it when the member's shift ends.

## Payroll Records

### 1019.1 PURPOSE AND SCOPE

This policy provides the guidelines for completing and submitting payroll records of department members who are eligible for the payment of wages.

### 1019.2 POLICY

The American Fork Police Department and its members shall maintain timely and accurate payroll records.

### 1019.3 PAYROLL RECORD CONSIDERATIONS

#### 1019.3.1 ACCOUNTING FOR TIME WORKS

Department members are to record the actual time worked in any status.

When accounting for less than a full hour, time worked shall be rounded up to the nearest quarter of an hour as outlined below:

- 1 to 15 minutes worked - indicate 0.25 hours on timecard
- 16 to 30 minutes worked - indicate 0.5 hours on timecard
- 31 to 45 minutes worked - indicate 0.75 hours on timecard
- 46 to 60 minutes worked - indicate 1.0 hour on timecard

#### 1019.3.2 DEPARTMENT TIMECARD

Department members shall use the official department timecard.

#### 1019.3.3 VARIATION IN TIME REPORTS

Where two or more members are assigned to the same activity, case, or court trial, and the amount of time for which payment is requested varies from that reported by the other member, the pertinent supervisor may require each member to include the reason for the variation on the overtime payment request.

### 1019.4 RESPONSIBILITIES

#### 1019.4.1 MEMBER RESPONSIBILITIES

Department members are responsible for the accurate completion and timely submission of their payroll records for the payment of wages. These records include timecards, DUI reimbursement sheets, and records of a similar type.

Absent exigent circumstances, all department members shall submit any required payroll records to their immediate supervisor by 08:00 on the first workday of the week following the end of the pay period.

Members who fail to submit payroll records as described in this section may be subject to discipline.

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#### 1019.4.2 SUPERVISOR RESPONSIBILITIES

Supervisors have the responsibility of thoroughly reviewing payroll records to ensure:

- they were submitted in a timely manner as described above;
- they are complete and accurate;
- the employee obtained prior written authorization for any overtime; and
- overtime hours worked are consistent with American Fork PD Policy 1016 Fitness for Duty

Supervisors shall review and submit any required payroll records to the department timecard coordinator by 08:30 on the first workday of the week following the end of the pay period.

Supervisors who fail to review and submit payroll records as described in this section may be subject to discipline.

#### 1019.5 RECORDS

The department shall ensure that accurate and timely payroll records are maintained as required by 29 CFR 516.2 for a minimum of three years (29 CFR 516.5).

# Overtime Compensation Requests

## 1020.1 PURPOSE AND SCOPE

It is the policy of the department to compensate non-exempt salaried employees who work authorized overtime through:

- payment of wages;
- compensatory (comp) time pursuant to Utah Administrative Code R477-8-5; or
- shift adjustment time (SAT)

To qualify for any of these, the employee must make a request to his/her supervisor prior to incurring the overtime, or as described in section 1020.2.1.

## 1020.2 OVERTIME COMPENSATION TYPES

Short periods (one hour or less) worked after the end of a normal workday may be handled unofficially between the supervisor and the employee by flexing a subsequent shift schedule to compensate for the time worked rather than by submitting requests for overtime payment.

### 1020.2.1 PAYMENT OF WAGES

Non-exempt, non-sworn department members will be paid 1.5 times their regular hourly rate of pay for all hours actually worked in excess of 40 hours within a 7-day workweek.

Non-exempt, sworn department members will be paid 1.5 times their regular hourly rate of pay for all hours actually worked in excess of 86 hours within a 14-day work period per Fair Labor Standards Act (FLSA) guidelines.

### 1020.2.2 COMPENSATORY TIME

Unless authorized by the Chief of Police, department members are not permitted to accrue compensatory time.

If authorized by the Chief of Police, the department may provide compensatory time off in lieu of actual pay for non-exempt department members.

As used in this policy, compensatory time is accrued time, the balance of which is permitted to be carried over from one pay period to the next.

Compensatory time accrual is as follows:

- For all non-exempt department members, compensatory time will be accrued at the regular hourly rate of 1 hour for every hour worked during regular, non-overtime hours worked.
- For non-exempt, non-sworn department members, compensatory time will be accrued at 1.5 times their regular hourly rate of pay for all hours actually worked in excess of 40 hours within a 7-day workweek.

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- For non-exempt, sworn department members, compensatory time will be accrued at 1.5 times their regular hourly rate of pay for all hours actually worked in excess of 86 hours within a 14-day work period per Fair Labor Standards Act (FLSA) guidelines.

Compensatory time accrued by a department member shall be used within the fiscal year in which it is earned. However, compensatory time accrued within the last 30 days of a fiscal year may be used within the first 30 days of the next fiscal year.

The employee's immediate supervisor will schedule when the employee's compensatory time will be used. Written employee requests to use their accumulated compensatory time during specific dates and times must be approved by his/her immediate supervisor.

An employee must be permitted to use compensatory time on the date requested unless doing so would "unduly disrupt" the operations of the department.

#### **1020.2.3 SHIFT ADJUSTMENT TIME**

The department may provide shift adjustment time (SAT) in lieu of actual pay for non-exempt department members.

As used in this policy, shift adjustment time is accrued time, the balance of which may not be carried over from one pay period to the next, but must be used in the same pay period in which it is accrued.

Shift adjustment time accrual is as follows:

- For all non-exempt department members, shift adjustment time will be accrued at the regular hourly rate of 1 hour for every hour worked during regular, non-overtime hours worked.
- For non-exempt, non-sworn department members, shift adjustment time will be accrued at 1.5 times their regular hourly rate of pay for all hours actually worked in excess of 40 hours within a 7-day workweek.
- For non-exempt, sworn department members, shift adjustment time will be accrued at 1.5 times their regular hourly rate of pay for all hours actually worked in excess of 86 hours within a 14-day work period per Fair Labor Standards Act (FLSA) guidelines.

### **1020.3 REQUEST FOR OVERTIME COMPENSATION**

#### **1020.3.1 EMPLOYEE RESPONSIBILITIES**

Absent exigent or extenuating circumstances, all department members shall receive written authorization from their immediate supervisor prior to working any overtime. Written authorization may include a text message, e-mail, formal letter, or other written correspondence.

If exigent or extenuating circumstances prevent the member from receiving written authorization from his/her immediate supervisor prior to working overtime, the member shall continue to seek such written authorization from their supervisor, or from a division commander, until the member is able to contact his/her immediate supervisor.

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Department members serving as full-time investigators on the special enforcement team (SET) or the Utah County Major Crimes Task Force do not need to receive written authorization from their immediate supervisor prior to working overtime if the overtime is:

- the overtime is being reimbursed by the Utah County Major Crimes Task Force; and
- the overtime is directly related to their official duties in these assignments.

However, they must abide by the remainder of this policy as well as the limitations set forth in American Fork PD Policy 1016 Fitness for Duty.

Department members who are in an official on-call status do not need to receive written authorization from their immediate supervisor prior to working overtime if the overtime is directly related to work for which the member is on call.

To request overtime compensation, a member shall submit the request to his/her immediate supervisor as part of his/her regularly submitted timecard. This request shall include the member's name, date, overtime worked, justification, and the signature of the member.

The following may result in discipline:

- Failure to obtain written authorization from an immediate supervisor prior to working overtime
- Failure to submit a timely request for overtime compensation as described in American Fork PD Policy Manual: 1019.4.1 Employee Responsibilities

#### 1020.3.2 SUPERVISOR RESPONSIBILITIES

Department supervisors have the responsibility of thoroughly reviewing overtime requests to ensure that:

- they are complete and accurate;
- the employee obtained prior written authorization; and
- overtime hours worked are consistent with American Fork PD Policy Manual 1016.9 Limitations on Hours Worked

A supervisor's failure to comply with these responsibilities may result in discipline.

# Outside Employment

## 1021.1 PURPOSE AND SCOPE

In order to avoid actual or perceived conflicts of interest for department employees engaging in outside employment, all employees shall obtain written approval from the Chief of Police prior to engaging in any outside employment. Approval of outside employment shall be at the discretion of the Chief of Police in accordance with the provisions of this policy and Utah Code 53-13-114.

### 1021.1.1 DEFINITIONS

**Outside Employment** - Any employee of this department who receives wages, compensation or other consideration of value from another employer, organization or individual not affiliated directly with this department for services, product(s) or benefits rendered. For purposes of this section, the definition of outside employment includes those employees who are self-employed and not affiliated directly with this department for services, product(s) or benefits rendered.

**Outside Overtime** - Any employee of this department who performs duties or services on behalf of an outside organization, company or individual within this jurisdiction. Such outside overtime shall be requested and scheduled directly through this department so that this department may be reimbursed for the cost of wages and benefits.

## 1021.2 OBTAINING APPROVAL

No employee of the department may engage in any outside employment without first obtaining prior written approval of the Chief of Police. Failure to obtain prior written approval for outside employment or engaging in outside employment prohibited by this policy may lead to disciplinary action.

In order to obtain approval for outside employment, the employee must complete an Outside Employment Application. The application will then be forwarded to the Chief of Police for consideration.

If approved, the employee will be provided with a copy of the approved permit. Unless otherwise indicated in writing on the approved permit, a permit will be valid until rescinded. Any employee seeking to renew a permit shall submit a new Outside Employment Application in a timely manner.

Any employee seeking approval of outside employment, whose request has been denied, shall be provided with a written reason for the denial of the application at the time of the denial.

### 1021.2.1 APPEAL OF DENIAL OF OUTSIDE EMPLOYMENT

If an employee's Outside Employment Application is denied or withdrawn by the department, the employee may file a written notice of appeal to the Chief of Police within 10 days of the date of denial.

If the employee's appeal is denied, the employee may file a grievance.

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#### 1021.2.2 REVOCATION/SUSPENSION OF OUTSIDE EMPLOYMENT PERMITS

Any outside employment permit may be revoked or suspended under the following circumstances:

- (a) Should an employee's performance at this department decline to a point where it is evaluated by a supervisor as needing improvement to reach an overall level of competency, the Chief of Police may, at his/her discretion, revoke any previously approved outside employment permit(s). That revocation will stand until the employee's performance has been reestablished at a satisfactory level and his/her supervisor recommends reinstatement of the outside employment permit.
- (b) Suspension or revocation of a previously approved outside employment permit may be included as a term or condition of sustained discipline.
- (c) If, at any time during the term of a valid outside employment permit, an employee's conduct or outside employment conflicts with the provisions of department policy, the permit may be suspended or revoked.
- (d) When an employee is unable to perform at a full-duty capacity due to an injury or other condition, any previously approved outside employment permit may be subjected to similar restrictions as those applicable to the employee's full time duties until the employee has returned to a full duty status.

#### 1021.3 PROHIBITED OUTSIDE EMPLOYMENT

Consistent with the provisions of UAC R477-9-2, the Department expressly reserves the right to deny any Outside Employment Application submitted by an employee seeking to engage in any activity which:

- (a) Interferes with an employee's efficiency performance.
- (b) Conflicts with the interests of the Department or the State of Utah.
- (c) Gives reason for criticism or suspicion of conflicting interests or duties.

##### 1021.3.1 OUTSIDE SECURITY AND PEACE OFFICER EMPLOYMENT

Due to the potential conflict of interest no member of this department will generally be permitted to engage in any outside or secondary employment as a private security guard, private investigator or other similar private security position.

Any private organization, entity or individual seeking special services for security or traffic control from members of this department must submit a written request to the Chief of Police in advance of the desired service. Such outside overtime may be assigned, monitored and paid through the department.

Any exception to the preceding two paragraphs must be approved by the Chief of Police.

- (a) The applicant will be required to enter into an indemnification agreement prior to approval.



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- (b) The applicant will further be required to provide for the compensation and full benefits of all employees requested for such outside security services.
- (c) Should such a request be approved, any employee working outside overtime shall be subject to the following conditions:
  - 1. The officer(s) shall wear the department uniform/identification.
  - 2. The officer(s) shall be subject to the rules and regulations of the department.
  - 3. No officer may engage in such outside employment during or at the site of a strike, lockout, picket or other physical demonstration of a labor dispute.
  - 4. Compensation for such approved outside security services shall be pursuant to normal overtime procedures.
  - 5. Outside security services shall not be subject to the collective bargaining process.
  - 6. No officer may engage in outside employment as a peace officer for any other public agency without prior written authorization of the Chief of Police.

#### 1021.3.2 OUTSIDE OVERTIME ARREST AND REPORTING PROCEDURE

Any employee making an arrest or taking other official police action while working in an approved outside overtime assignment shall be required to complete all related reports in a timely manner pursuant to department policy. Time spent on the completion of such reports shall be considered incidental to the outside overtime assignment.

#### 1021.3.3 SPECIAL RESTRICTIONS

Except for emergency situations or with prior authorization from the Division Commander, officers assigned to undercover or covert operations shall not be eligible to work overtime or other assignments in a uniformed or other capacity which might reasonably disclose the officer's law enforcement status.

#### 1021.4 DEPARTMENT RESOURCES

Employees are prohibited from using any department equipment or resources in the course of or for the benefit of any outside employment unless approved by the Chief of Police. This shall include the prohibition of access to official records or databases of the department or other agencies through the use of the employee's position with this department.

##### 1021.4.1 REVIEW OF FINANCIAL RECORDS

Employees approved for outside employment expressly agree that their personal financial records may be requested and reviewed/audited for potential conflict of interest. Prior to providing written approval for an outside employment position, the Department may request that an officer provide his/her personal financial records for review/audit in order to determine whether a conflict of interest exists. Failure of the employee to provide the requested personal financial records could result in denial of the off-duty work permit. If, after approving a request for an outside employment

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position, the Department becomes concerned that a conflict of interest exists based on a financial reason, the Department may request that the employee provide his/her personal financial records for review/audit. If the employee elects not to provide the requested records, his/her off-duty work permit may be revoked pursuant to the Revocation/Suspension of Outside Employment Status subsection of this policy.

#### **1021.5 CHANGES IN OUTSIDE EMPLOYMENT STATUS**

If an employee terminates his/her outside employment during the period of a valid permit, the employee shall promptly submit written notification of such termination to the Chief of Police through channels. Any subsequent request for renewal or continued outside employment must thereafter be processed and approved through normal procedures set forth in this policy.

Employees shall also promptly submit in writing to the Chief of Police any material changes in outside employment including any change in the number of hours, type of duties or demands of any approved outside employment. Employees who are uncertain whether a change in outside employment is material are advised to report the change.

#### **1021.6 OUTSIDE EMPLOYMENT WHILE ON DISABILITY**

Department members engaged in outside employment who are placed on disability leave or modified/light-duty shall inform their immediate supervisor in writing within five days regarding whether they intend to continue to engage in such outside employment while on such leave or light-duty status. The immediate supervisor shall review the duties of the outside employment along with any related doctor's orders, and make a recommendation to the Chief of Police whether such outside employment should continue.

In the event the Chief of Police determines that the outside employment should be discontinued or if the employee fails to promptly notify his/her supervisor of his/her intentions regarding the work permit, a notice of revocation of the employee's permit will be forwarded to the involved employee, and a copy attached to the original work permit.

Criteria for revoking the outside employment permit include, but are not limited to, the following:

- (a) The outside employment is medically detrimental to the total recovery of the disabled employee, as indicated by the City's professional medical advisors.
- (b) The outside employment performed requires the same or similar physical ability as would be required of an on-duty employee.
- (c) The employee's failure to make timely notice of their intentions to their supervisor.

When the disabled employee returns to full duty with the American Fork Police Department, a request (in writing) may be made to the Chief of Police to restore the permit.

# Occupational Disease and Work-Related Injury and Death Reporting

## 1022.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance regarding the timely reporting of occupational diseases and work-related injuries and deaths.

### 1022.1.1 DEFINITIONS

Definitions related to this policy include:

**Work-related injury or occupational disease** - An accidental injury or occupational disease that arises out of and in the course of employment with the American Fork Police Department. The disease must be medically caused or aggravated by that employment. An occupational disease may include a physical, mental or emotional disease related to mental stress that arises out of and in the course of employment (Utah Code 34A-3-103; Utah Code 34A-3-106; UAC R612-100-2).

## 1022.2 POLICY

The American Fork Police Department will address occupational diseases and work-related injuries and deaths appropriately, and will comply with applicable state workers' compensation requirements and benefit protection contract requirements set out in state law (Utah Code 49-14-602; Utah Code 34A-2-407; UAC R612-200-1).

## 1022.3 INJURY NOT REQUIRING MEDICAL ATTENTION

Those injuries and illnesses not requiring medical attention shall be reported in a Memorandum to the Division Commander and Chief of Police. This Memorandum shall be completed and signed by a supervisor.

This Memorandum shall be signed by the affected employee, indicating that he/she desired no medical attention at the time of the Memorandum. By signing this Memorandum, the employee will not preclude his/her ability to seek medical attention later.

### 1022.3.1 MEMBER RESPONSIBILITIES

Any member sustaining any occupational disease or work-related injury shall report such event as soon as practicable, but within 24 hours, to a supervisor, and shall seek medical care when appropriate.

### 1022.3.2 SUPERVISOR RESPONSIBILITIES

A supervisor learning of any occupational disease or work-related injury should ensure the member receives medical care as appropriate, and shall promptly refer the employee to the City Personnel Department for documentation and treatment. Any related Citywide disease- or injury-reporting protocol shall also be followed.

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### *Occupational Disease and Work-Related Injury and Death Reporting*

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A Supervisor's Memorandum of Injury shall be completed for every instance of work-related injury or illness. The Memorandum shall be forwarded to the supervisor's Division Commander and ultimately the Chief of Police through the chain of command.

Copies of any reports documenting the accident or injury should be forwarded to the Division Commander as soon as they are completed.

Supervisors shall determine whether the Major Incident Notification and Illness and Injury Prevention policies apply and take additional action as required.

#### **1022.3.3 DIVISION COMMANDER RESPONSIBILITIES**

The Division Commander who receives a report of an occupational disease or a work-related injury or death should review the report for accuracy and determine what additional action should be taken. The report shall then be forwarded to the Chief of Police, and any documentation required by the City Personnel Department shall be forwarded to the City Personnel Department.

#### **1022.3.4 CHIEF OF POLICE RESPONSIBILITIES**

The Chief of Police shall review and forward copies of the report to the Personnel Department. Copies of the report and related documents retained by the Department shall be filed in the member's confidential medical file.

#### **1022.4 OTHER DISEASE OR INJURY**

Cases of on-duty disease, injury, or death that do not qualify for workers' compensation reporting shall be referred to the City's Personnel Department.

#### **1022.5 SETTLEMENT OFFERS**

When a member sustains an occupational disease or work-related injury that is caused by another person and is subsequently contacted by that person, his/her agent, insurance company or attorney and offered a settlement, the member shall take no action other than to submit a written report of this contact to his/her supervisor as soon as possible.

##### **1022.5.1 NO SETTLEMENT WITHOUT PRIOR APPROVAL**

No less than 10 days prior to accepting and finalizing the settlement of any third-party claim arising out of or related to an occupational disease or work-related injury, the member shall provide the Chief of Police with written notice of the proposed terms of such settlement. In no case shall the member accept a settlement without first providing written notice to the Chief of Police. The purpose of such notice is to permit the City to determine whether the offered settlement will affect any claim the City may have regarding payment for damage to equipment or reimbursement for wages against the person who caused the disease or injury, and to protect the City's right of subrogation, while ensuring that the member's right to receive compensation is not affected.

# Personal Appearance Standards

## 1023.1 PURPOSE AND SCOPE

In order to project uniformity and neutrality toward the public and other members of the department, it is the policy of the department that employees shall maintain their personal hygiene and appearance to project a professional image appropriate for this department and for their assignment.

## 1023.2 GROOMING STANDARDS

Unless otherwise stated and because deviations from these standards could present officer safety issues, the following appearance standards shall apply to all employees, except those whose current assignment would deem them not appropriate, and where the Chief of Police has granted exception.

### 1023.2.1 HAIR

Hairstyles of all members shall be neat and conservative in appearance and style. No faddish styles or designs, including unnatural or obvious hair coloring, will be allowed.

For male sworn members, hair must not extend below the top edge of the uniform collar while assuming a normal stance.

For female sworn members, hair must be no longer than the horizontal level of the bottom of the duty belt when the employee is standing erect. It can be worn up or in a tightly wrapped braid or ponytail.

### 1023.2.2 SIDEBURNS

Sideburns shall not extend below the bottom of the outer ear opening (the top of the earlobes) and shall be trimmed and neat.

### 1023.2.3 FACIAL HAIR

Facial hair may be worn in the form of a mustache, beard or goatee. Beard or goatee length will not exceed 1/2 inch in length and will be well trimmed around the mouth, neck, and cheeks. No faddish designs, to include but not limited to, "soul patches", "mutton chops", "Fu Manchu", or "neck beards", will be allowed. The on-duty supervisor will inspect beards for compliance and any recommendations by the supervisor will be addressed immediately. Officers found not in compliance more than three times may be prohibited from wearing facial hair.

Due to the nature of their position and duties, certain Department members may not be permitted to wear facial hair at the direction and discretion of the Chief of Police.

### 1023.2.4 FINGERNAILS

Fingernails extending beyond the tip of the finger can pose a safety hazard to officers or others. For this reason, fingernails shall be trimmed so that no point of the nail extends beyond the tip of the finger.

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### *Personal Appearance Standards*

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#### **1023.2.5 JEWELRY**

No jewelry or personal ornaments shall be worn by officers on any part of the uniform or equipment, except those authorized within this policy. For the purpose of this policy, jewelry refers to rings, earrings, necklaces, bracelets, wristwatches, and tie tacks or tie bars. Jewelry shall present a professional image and may not create a safety concern for the department member or others. Jewelry that depicts racial, sexual, discriminatory, gang-related, or obscene language is not allowed.

- (a) Necklaces shall not be visible above the shirt collar.
- (b) Earrings shall be small and worn only in or on the earlobe. Any earring that could be grasped or pulled in an altercation and thus create a safety concern (such as loop earrings) are not permitted.
- (c) One ring or ring set may be worn on each hand of the department member. No rings should be of the type that would cut or pose an unreasonable safety risk to the member or others during a physical altercation, if the member is assigned to a position where that may occur.
- (d) One small bracelet, including a bracelet identifying a medical condition, may be worn on one arm.
- (e) Wristwatches may be worn, but shall be conservative and present a professional image.
- (f) Tie tacks or tie bars worn with civilian attire may be worn, and shall be conservative and present a professional image.

#### **1023.3 TATTOOS**

While on-duty or representing the American Fork Police Department in any official capacity, members should make every reasonable effort to conceal tattoos or other body art. At no time while the member is on-duty or representing the Department in any official capacity shall any offensive tattoo or body art be visible. Examples of offensive tattoos include but are not limited to those that exhibit or advocate discrimination; those that exhibit gang, supremacist, or extremist group affiliation; and those that depict or promote drug use, sexually explicit acts, or other obscene material. Officers shall consult with the Chief of Police prior to obtaining any tattoo that would be visible while the officer is in uniform.

#### **1023.4 BODY PIERCING OR ALTERATION**

Body piercing or alteration to any area of the body visible in any authorized uniform or attire that is a deviation from normal anatomical features and which is not medically required is prohibited. Such body alteration includes, but is not limited to:

- (a) Tongue splitting or piercing.
- (b) The complete or transdermal implantation of any material other than hair replacement.
- (c) Abnormal shaping of the ears, eyes, nose or teeth.
- (d) Branding or scarification.

# Uniform Regulations

## 1024.1 PURPOSE AND SCOPE

The uniform policy of the American Fork Police Department is established to ensure that uniformed officers will be readily identifiable to the public through the proper use and wearing of department uniforms. Employees should also refer to the following associated policies:

- Department-Owned and Personal Property
- Body Armor
- Grooming Standards

The Uniform and Equipment Specifications manual is maintained and periodically updated by the Chief of Police or designee. That manual should be consulted regarding authorized equipment and uniform specifications.

The American Fork Police Department will provide a monthly clothing allowance to assist officers in the purchase of uniforms.

## 1024.2 WEARING AND CONDITION OF UNIFORM AND EQUIPMENT

Police employees wear the uniform to be identified as the law enforcement authority in society. The uniform also serves an equally important purpose which is to identify the wearer as a source of assistance in an emergency, crisis or other time of need.

- (a) Uniform and equipment shall be maintained in a serviceable condition and shall be ready at all times for immediate use. Uniforms shall be neat, clean and appear professionally pressed.
- (b) All peace officers of the department shall possess and maintain at all times a serviceable uniform and the necessary equipment to perform uniformed field duty.
- (c) Personnel shall wear only the uniform specified for their rank and assignment.
- (d) The uniform is to be worn in compliance with the specifications set forth in the department's uniform specifications which are maintained separately from this policy.
- (e) All supervisors will perform periodic inspections of their personnel to ensure conformance to these regulations.
- (f) Civilian attire shall not be worn in combination with any distinguishable part of the uniform.
- (g) Uniforms are only to be worn while on-duty, while in transit to or from work, for court or at other official department functions or events.
- (h) Employees are not to purchase or drink alcoholic beverages while wearing any part of the department uniform including the uniform pants.
- (i) Mirrored sunglasses will not be worn with any department uniform.

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- (j) Visible jewelry, other than those items listed below, shall not be worn with the uniform unless specifically authorized by the Chief of Police or designee.
  - 1. Wrist watch.
  - 2. Wedding ring(s), class ring or other ring of tasteful design. A maximum of one ring/set may be worn on each hand.
  - 3. Medical alert bracelet.
  - 4. Military bracelet.

#### **1024.2.1 DEPARTMENT-ISSUED IDENTIFICATION**

The Department issues each employee an official Department identification card bearing the employee's name, identifying information and photo likeness. All employees shall be in possession of their Department-issued identification card at all times while on-duty or when carrying a concealed weapon.

- (a) Whenever on-duty or acting in an official capacity representing the Department, employees shall display their Department-issued identification in a courteous manner to any person upon request and as soon as practical.
- (b) Officers working specialized assignments may be excused from the possession and display requirements when directed by their Division Commander.

#### **1024.3 UNIFORM CLASSES**

##### **1024.3.1 CLASS A UNIFORM**

The Class A uniform is to be worn on special occasions, such as funerals, graduations, ceremonies or as directed. The Class A uniform is required for all sworn personnel. The Class A uniform includes:

- (a) Approved white long-sleeve shirt with tie.
- (b) Approved coat with silver pea buttons, blue shoulder strap, shoulder patches, and blue braids on cuff denoting rank.
- (c) Approved four-pocket dress pants.
- (d) Award ribbons or medals awarded by the Department shall be worn in accordance with the guidelines set out in the "Awards" policy.
- (e) Polished shoes.
- (f) Hat - to be worn at the direction of the Chief of Police.

Boots with pointed toes are not permitted.



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#### 1024.3.2 CLASS B & C UNIFORMS

All officers will possess and maintain a serviceable Class B or C uniform at all times. A Class B or C uniform is to be worn by patrol officers at all times while on-duty unless otherwise directed by a supervisor.

The Class B uniform will include the following:

- (a) An approved long- or short-sleeve shirt may be worn with the collar open. No tie is required.
- (b) An approved black crew-neck tee-shirt must be worn with the uniform.
- (c) All shirt buttons must remain buttoned except for the last button at the neck.
- (d) An approved pair of four or six-pocket pants.
- (e) Shoes for the Class B uniform may be as described in the Class A uniform.
- (f) Approved all black unpolished shoes may be worn.
- (g) Boots with pointed toes are not permitted.
- (h) A Department-approved baseball cap with the Department's name, acronym, or symbol may be worn with the bill facing forward. At no time shall the bill be worn to the side or rear unless exigent circumstances (such as when deploying a rifle) reasonably warrant it.

The Class C Uniform will consist of the same garments and equipment as the Class B uniform with the following exceptions:

- a. Instead of a metal badge, a badge patch will be worn on the shirt.
- b. Instead of a metal name plate, an embroidered name will be worn on the shirt.

#### 1024.3.3 TRAINING UNIFORM

Officers in training shall wear business casual attire or a Department-approved training uniform. Shorts, sandals, and t-shirts are not to be worn in training unless otherwise approved by a supervisor.

#### 1024.3.4 CANINE TEAM UNIFORM

Canine officers shall wear a Class C Uniform at all times while on-duty unless otherwise directed by a supervisor.

#### 1024.3.5 SPECIALIZED UNIT UNIFORMS

The Chief of Police may authorize special uniforms to be worn by officers in specialized units, such as SWAT, Bicycle Patrol, Motor Officers and other specialized assignments.

#### 1024.3.6 FOUL WEATHER GEAR

The Uniform and Equipment Specifications lists the authorized uniform jacket and rain gear.

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#### 1024.3.7 UNIFORM SHORTS

American Fork Police Department members assigned to patrol may wear patrol uniform shorts with the following conditions:

- Shorts must be blue in color or the same material as the patrol uniform short sleeve shirt. Examples of patrol shorts are the First Tactical patrol shorts or the UF Pro P-40 tactical.
- Shorts must only be worn with a short sleeve patrol uniform shirt. Shoes must be black in color, no boots. Socks must be black and not be higher than ankle high.
- Shorts may be worn between the dates of May 1st and September 31st.
- Shorts may not be worn during special events, city events, or celebrations, unless specifically authorized by the event commander.

#### 1024.4 INSIGNIA AND PATCHES

- (a) Shoulder Patches - The authorized shoulder patch supplied by the department shall be machine stitched to the sleeves of all uniform shirts and jackets, 3/4-inch below the shoulder seam of the shirt, and should be bisected by the crease in the sleeve.
- (b) Service stars will be worn centered over the officer's nameplate.
- (c) The regulation nameplate, or an authorized sewn-on cloth nameplate, shall be worn at all times while in uniform. The nameplate shall display the employee's last name or last name with first initial. The nameplate shall be worn and placed above the right pocket located in the middle, bisected by the pressed shirt seam, with equal distance from both sides of the nameplate to the outer edge of the pocket.
- (d) Assignment Insignias - Assignment insignias (SWAT, FTO) may be worn as designated by the Chief of Police.
- (e) Badge - The department-issued badge or an authorized sewn-on cloth replica must be worn and visible at all times while in uniform.
- (f) Rank Insignia - The designated insignia indicating the employee's rank must be worn at all times while in uniform. The Chief of Police may authorize exceptions.

##### 1024.4.1 MOURNING BADGE

Uniformed employees shall wear a black mourning band across the uniform badge whenever a law enforcement officer is killed in the line of duty. The following mourning periods will be observed:

- (a) An officer of the Department - From the time of death until midnight on the 14th day after the death.
- (b) An officer from this or an adjacent county - From the time of death until midnight on the day of the funeral.
- (c) Funeral attendee - While attending the funeral of an out-of-region fallen officer.
- (d) National Peace Officers Memorial Day (May 15) - From 0001 hours until 2359 hours.

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- (e) As directed by the Chief of Police.

#### **1024.5 CIVILIAN ATTIRE**

There are assignments within the department that do not require the wearing of a uniform because recognition and authority are not essential to their function. There are also assignments in which the wearing of civilian attire is necessary.

- (a) All employees shall wear clothing that fits properly, is clean and free of stains, and not damaged or excessively worn.
- (b) All male administrative, investigative and support personnel who elect to wear civilian clothing to work shall wear button-style shirts with a collar, ties, and slacks or suits that are moderate in style or an approved administrative uniform.
- (c) All female administrative, investigative and support personnel who elect to wear civilian clothes to work shall wear dresses, slacks, shirts, blouses or suits that are moderate in style.
- (d) The following items shall not be worn on-duty:
  - 1. T-shirt alone.
  - 2. Open-toed sandals or thongs.
  - 3. Swimsuit, tube tops or halter-tops.
  - 4. Spandex-type pants or see-through clothing.
  - 5. Distasteful printed slogans, buttons or pins.
- (e) Variations from this order are allowed at the discretion of the Chief of Police or designee when the employee's assignment or current task is not conducive to the wearing of such clothing.
- (f) No item of civilian attire may be worn on-duty that would adversely affect the reputation of the American Fork Police Department or the morale of the employees.
- (g) When wearing civilian attire on-duty, any normally visible items which would identify the employee as a police officer shall not be made visible, including a firearm and badge. Any exception will be made at the direction of the Chief of Police.

#### **1024.6 POLITICAL ACTIVITIES, ENDORSEMENTS, AND ADVERTISEMENTS**

Unless specifically authorized by the Chief of Police, American Fork Police Department employees may not wear any part of the uniform, be photographed wearing any part of the uniform, utilize a Department badge, patch or other official insignia, or cause to be posted, published or displayed, the image of another employee, or identify himself/herself as an employee of the American Fork Police Department to do any of the following:

- (a) Endorse, support, oppose or contradict any political campaign or initiative.
- (b) Endorse, support, oppose or contradict any social issue, cause or religion.

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- (c) Endorse, support or oppose any product, service, company or other commercial entity.
- (d) Appear in any commercial, social or non-profit publication, or any motion picture, film, video, public broadcast or any Web site.

#### **1024.7 OPTIONAL EQUIPMENT - MAINTENANCE AND REPLACEMENT**

- (a) Any of the items listed in the Uniform and Equipment Specifications as optional shall be purchased totally at the expense of the employee. No part of the purchase cost shall be offset by the Department for the cost of providing the Department-issued item.
- (b) Maintenance of optional items shall be the financial responsibility of the purchasing employee. For example, repairs due to normal wear and tear.
- (c) Replacement of items listed in this order as optional shall be done as follows:
  - 1. When the item is no longer functional because of normal wear and tear, the employee bears the full cost of replacement.
  - 2. When the item is no longer functional because of damage in the course of the employee's duties, it shall be replaced following the procedures for the replacement of damaged personal property outlined in the Department-Owned and Personal Property Policy.

#### **1024.8 UNAUTHORIZED UNIFORMS, EQUIPMENT AND ACCESSORIES**

American Fork Police Department employees may not wear any uniform item, accessory or attachment unless specifically authorized in the Uniform and Equipment Specifications or by the Chief of Police or designee.

American Fork Police Department employees may not use or carry any safety item, tool or other piece of equipment unless specifically authorized in the Uniform and Equipment Specifications or by the Chief of Police or designee.

#### **1024.9 NON-SWORN USE OF UNIFORMS**

If non-sworn personnel wear a uniform, it shall be clearly distinguishable from that of a regular officer.

# Nepotism and Conflicting Relationships

## 1025.1 PURPOSE AND SCOPE

The purpose of this policy is to ensure equal opportunity and effective employment practices by avoiding actual or perceived favoritism, discrimination or other actual or potential conflicts of interest by or between members of the Department. These employment practices include: recruiting, testing, hiring, compensation, assignment, use of facilities, access to training opportunities, supervision, performance appraisal, discipline and workplace safety and security.

### 1025.1.1 DEFINITIONS

Definitions related to this policy include:

**Appointee** - An employee whose salary, wages, pay, or compensation is paid from public funds (Utah Code 52-3-1).

**Business relationship** - Serving as an employee, independent contractor, compensated consultant, owner, board member, shareholder, or investor in an outside business, company, partnership, corporation, venture, or other transaction where the Department employee's annual interest, compensation, investment, or obligation is greater than \$250.

**Conflict of interest** - Any actual, perceived, or potential conflict of interest in which it reasonably appears that a Department employee's action, inaction, or decisions are or may be influenced by the employee's personal or business relationship.

**Household member** - A person who resides in the same residence as the public officer (Utah Code 52-3-1).

**Nepotism** - The practice of showing favoritism to relatives in appointment, employment, promotion, or advancement by any public official in a position to influence these personnel decisions.

**Personal relationship** - Includes marriage, cohabitation, dating, or any other intimate relationship beyond mere friendship.

**Public officer** - An employee who holds a position that is compensated by public funds.

**Relative** - An employee's father, mother, husband, wife, son, daughter, sister, brother, grandfather, grandmother, uncle, aunt, nephew, niece, grandson, granddaughter, first cousin, mother-in-law, father-in-law, brother-in-law, sister-in-law, son-in-law, or daughter-in-law (Utah Code 52-3-1).

**Subordinate** - An employee who is subject to the temporary or ongoing direct or indirect authority of a supervisor.

**Supervisor** - An employee who has temporary or ongoing direct or indirect authority over the actions, decisions, evaluation, and/or performance of a subordinate employee.

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### *Nepotism and Conflicting Relationships*

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#### **1025.2 RESTRICTED DUTIES AND ASSIGNMENTS**

The Department will not prohibit all personal or business relationships between employees. However, in order to avoid nepotism or other inappropriate conflicts, the following reasonable restrictions shall apply.

- (a) A public officer may not employ, appoint, vote for, or recommend the appointment of an appointee when the appointee will be directly supervised by a relative or a household member, unless the appointment occurs in compliance with the requirements of Utah Code 52-3-1.
- (b) Employees are prohibited from directly supervising, occupying a position in the line of supervision, or being directly supervised by any other employee who is a relative, household member, or with whom they are involved in a personal or business relationship unless the supervision occurs in compliance with the requirements of Utah Code 52-3-1.
  - 1. If circumstances require that such a supervisor/subordinate relationship exists temporarily, the supervisor shall make every reasonable effort to defer matters pertaining to the involved employee to an uninvolved supervisor.
  - 2. When personnel and circumstances permit, the Department will attempt to make every reasonable effort to avoid placing employees in such supervisor/subordinate situations. The Department, however, reserves the right to transfer or reassign any employee to another position within the same classification in order to avoid conflicts with any provision of this policy.
- (c) Employees are prohibited from participating in, contributing to, or recommending promotions, assignments, performance evaluations, transfers, or other personnel decisions affecting an employee who is a relative, household member, or with whom they are involved in a personal or business relationship.
- (d) Whenever possible, FTOs and other trainers will not be assigned to train relatives or household members. FTOs and other trainers are prohibited from entering into or maintaining personal or business relationships with any employee they are assigned to train until such time as the training has been successfully completed and the employee is off probation.
- (e) To avoid actual or perceived conflicts of interest, members of the Department shall refrain from developing or maintaining personal or financial relationships with victims, witnesses or other individuals during the course of, or as a direct result of, any official contact.
- (f) Except as required in the performance of official duties or in the case of immediate relatives, employees shall not develop or maintain personal or financial relationships with any individuals they know or reasonably should know are under criminal investigation, are convicted felons, parolees, fugitives, or registered sex offenders, or anyone who engages in serious violations of state or federal laws.

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### *Nepotism and Conflicting Relationships*

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#### 1025.2.1 EMPLOYEE RESPONSIBILITY

Prior to entering into any personal or business relationship or other circumstance which the employee knows or reasonably should know could create a conflict of interest or other violation of this policy, the employee shall promptly notify his/her uninvolvement, next highest level of supervisor.

Whenever any employee is placed in circumstances that would require the employee to take enforcement action or provide official information or services to any relative or individual with whom the employee is involved in a personal or business relationship, the employee shall promptly notify his/her uninvolvement, immediate supervisor.

In the event that no uninvolvement supervisor is immediately available, the employee shall promptly notify dispatch to have another uninvolvement employee either relieve the involved employee or minimally remain present to witness the action.

#### 1025.2.2 SUPERVISOR'S RESPONSIBILITY

Upon being notified of, or otherwise becoming aware of any circumstance that could result in or constitute an actual or potential violation of this policy, a supervisor shall take all reasonable steps to promptly mitigate or avoid such violations whenever possible. Supervisors shall also promptly notify the Chief of Police of such actual or potential violations, through the chain of command.

## Department Badges

### 1026.1 PURPOSE AND SCOPE

The American Fork Police Department badge and uniform patch as well as the likeness of these items and the name of the American Fork Police Department are property of the department and their use shall be restricted as set forth in this policy.

### 1026.2 STANDARD

The uniform badge shall be issued to department members as a symbol of authority. The use and display of department badges shall be in strict compliance with this policy. Only authorized badges issued by this department shall be displayed, carried or worn by members while on-duty or otherwise acting in an official or authorized capacity.

#### 1026.2.1 FLAT BADGE

Sworn officers, with the approval of the Chief of Police may purchase, at his/her own expense, a flat badge capable of being carried in a wallet. The use of the flat badge is subject to the same policies as the uniform badge.

- (a) An officer may sell, exchange or transfer the flat badge to another officer within the American Fork Police Department with the approval of the Chief of Police.
- (b) Should the flat badge become lost, damaged or otherwise removed from the officer's control, he/she shall make the proper notifications as outlined in the Department-Owned and Personal Property Policy.
- (c) An honorably retired officer may keep his/her flat badge upon retirement.
- (d) The purchase, carrying or display of a flat badge is not authorized for non-sworn personnel.

#### 1026.2.2 NON-SWORN PERSONNEL

Badges and department identification cards issued to non-sworn personnel shall be clearly marked to reflect the position of the employee (e.g. Parking Control, Dispatcher).

- (a) Non-sworn personnel shall not display any department badge except as a part of his/her uniform and while on-duty or otherwise acting in an official and authorized capacity.
- (b) Non-sworn personnel shall not display any department badge or represent him/herself, on- or off-duty, in such a manner which would cause a reasonable person to believe that he/she is a sworn peace officer.

#### 1026.2.3 RETIREE UNIFORM BADGE

Upon honorable retirement employees may purchase his/her assigned duty badge for display purposes. It is intended that the duty badge be used only as private memorabilia, as other uses of the badge may be unlawful or in violation of this policy.



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### *Department Badges*

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#### **1026.3 UNAUTHORIZED USE**

Except as required for on-duty use by current employees, no badge designed for carry or display in a wallet, badge case or similar holder shall be issued to anyone other than a current or honorably retired peace officer.

Department badges are issued to all sworn employees and non-sworn uniformed employees for official use only. The department badge, shoulder patch or the likeness thereof, or the department name shall not be used for personal or private reasons including, but not limited to, letters, memoranda and electronic communications such as electronic mail, or Web sites and Web pages.

The use of the badge, uniform patch and department name for all material (printed matter, products or other items) developed for department use shall be subject to approval by the Chief of Police.

Employees shall not loan his/her department badge or identification card to others and shall not permit the badge or identification card to be reproduced or duplicated.

## Temporary Modified-Duty Assignments

### 1027.1 PURPOSE AND SCOPE

This policy establishes procedures for providing temporary modified-duty assignments. This policy is not intended to affect the rights or benefits of employees under federal or state law, City rules, or current collective bargaining agreements. For example, nothing in this policy affects the obligation of the [Department/Office] to engage in a good faith, interactive process to consider reasonable accommodations for any employee with a temporary or permanent disability or limitation that is protected under federal or state law.

### 1027.2 POLICY

Subject to operational considerations, the American Fork Police Department may identify temporary modified-duty assignments for employees who have an injury or medical condition resulting in temporary work limitations or restrictions. A temporary assignment allows the employee to work, while providing the Department with a productive employee during the temporary period.

### 1027.3 GENERAL CONSIDERATIONS

Priority consideration for temporary modified-duty assignments will be given to employees with work-related injuries or illnesses that are temporary in nature. Employees having disabilities covered under the Americans with Disabilities Act (ADA) or the Utah Antidiscrimination Act (Utah Code 34A-5-101 et seq.) shall be treated equally, without regard to any preference for a work-related injury.

No position in the American Fork Police Department shall be created or maintained as a temporary modified-duty assignment.

Temporary modified-duty assignments are a management prerogative and not an employee right. The availability of temporary modified-duty assignments will be determined on a case-by-case basis, consistent with the operational needs of the [Department/Office]. Temporary modified-duty assignments are subject to continuous reassessment, with consideration given to operational needs and the employee's ability to perform in a modified-duty assignment.

The Chief of Police or the authorized designee may restrict employees working in temporary modified-duty assignments from wearing a uniform, displaying a badge, carrying a firearm, operating an emergency vehicle, or engaging in outside employment, or may otherwise limit them in employing their peace officer powers.

Temporary modified-duty assignments shall generally not exceed a cumulative total of 1,040 hours in any one-year period.

### 1027.4 PROCEDURE

Employees may request a temporary modified-duty assignment for short-term injuries or illnesses.

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### *Temporary Modified-Duty Assignments*

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Employees seeking a temporary modified-duty assignment should submit a written request to their Division Commanders or the authorized designees. The request should, as applicable, include a certification from the treating medical professional containing:

- (a) An assessment of the nature and probable duration of the illness or injury.
- (b) The prognosis for recovery.
- (c) The nature and scope of limitations and/or work restrictions.
- (d) A statement regarding any required workplace accommodations, mobility aids or medical devices.
- (e) A statement that the employee can safely perform the duties of the temporary modified-duty assignment.

The Division Commander will make a recommendation through the chain of command to the Chief of Police regarding temporary modified-duty assignments that may be available based on the needs of the Department and the limitations of the employee. The Chief of Police or the authorized designee shall confer with the Personnel Department or the City Attorney as appropriate.

#### 1027.4.1 ASSIGNMENT TO MODIFIED DUTY

At the direction of the Division Commander or other assigning supervisor, employees assigned to modified duty shall work the scheduled shift of the unit to which they are assigned or the shift, hours and duties specified in the modified assignment until re-assigned to another modified assignment, cleared for full duty or removed/excluded from assignment to modified duties. The Division Commander or other assigning supervisor has the discretion of re-assigning modified duty schedules to suit department needs.

The employee and supervisors should be informed in writing of the schedule, modified duty assignment, supervisor and limitations and/or restrictions as directed by the treating physician or the department.

#### 1027.4.2 ACCOUNTABILITY

Supervisors of the regular and modified duty assignments for the employee shall coordinate efforts to ensure proper time accountability.

While on duty, employees on modified duty are responsible for coordinating required doctor visits and physical therapy in advance with their supervisor and must properly account for the time.

Employees shall immediately notify their supervisor if there is a change in their condition, which causes their physician to modify their duty assignment in any fashion and shall submit a status report for each visit to the treating physician. A duty status report shall be provided by employees assigned to light duty to their supervisor no less than every 30 days the employee is on modified duty.

Supervisors of employees on modified duty shall keep the Division Commander appraised of the employee's status and ability to perform the modified duty assignment. Extensions require approval by the Chief of Police. When it is determined that an employee is no longer to perform a

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modified duty assignment, the supervisor of the modified duty assignment shall notify the Division Commander. All training and certification necessary for return to regular duty shall be reviewed and updated as necessary.

#### **1027.4.3 MEDICAL EXAMINATIONS**

The department may request a medical examination by a physician retained by the department prior to the employee's return to work and/or release to full duty. The department may also request a medical examination by a physician retained by the department to determine if it is appropriate for the employee to work a modified duty assignment. Such medical examinations shall be at the expense of the department.

Employees shall return to their regularly assigned duties when they have recovered from their illness, injury or condition and the treating physician provides the department with a signed clearance for full duty indicating that they are capable of performing the basic and essential job functions of his/her assignment.

#### **1027.5 ACCOUNTABILITY**

Written notification of assignments, work schedules and any restrictions should be provided to employees assigned to temporary modified-duty assignments and their supervisors. Those assignments and schedules may be adjusted to accommodate department operations and the employee's medical appointments, as mutually agreed upon with the Division Commander.

##### **1027.5.1 EMPLOYEE RESPONSIBILITIES**

The responsibilities of employees assigned to temporary modified duty shall include, but not be limited to:

- (a) Communicating and coordinating any required medical and physical therapy appointments in advance with their supervisors.
- (b) Promptly notifying their supervisors of any change in restrictions or limitations after each appointment with their treating medical professionals.
- (c) Communicating a status update to their supervisors no less than once every 30 days while assigned to temporary modified duty.
- (d) Submitting a written status report to the Division Commander that contains a status update and anticipated date of return to full-duty when a temporary modified-duty assignment extends beyond 60 days.

##### **1027.5.2 SUPERVISOR RESPONSIBILITIES**

The employee's immediate supervisor shall monitor and manage the work schedule of those assigned to temporary modified duty.

The responsibilities of supervisors shall include, but not be limited to:

- (a) Periodically apprising the Division Commander of the status and performance of employees assigned to temporary modified duty.

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- (b) Notifying the Division Commander and ensuring that the required documentation facilitating a return to full duty is received from the employee.
- (c) Ensuring that employees returning to full duty have completed any required training and certification.

#### **1027.6 MEDICAL EXAMINATIONS**

Prior to returning to full-duty status, employees may be required to provide certification from their treating medical professionals stating that they are medically cleared to perform the essential functions of their jobs without restrictions or limitations.

The Department may require a fitness-for-duty examination prior to returning an employee to full-duty status, in accordance with the Fitness for Duty Policy.

#### **1027.7 PREGNANCY**

If an employee is temporarily unable to perform regular duties due to a pregnancy, childbirth, or a related medical condition, the employee will be treated the same as any other temporarily disabled employee (42 USC § 2000e(k)). A pregnant employee shall not be involuntarily transferred to a temporary modified-duty assignment.

If notified by an employee or the employee's representative regarding limitations related to pregnancy, childbirth, or related medical conditions, the [Department/Office] should make reasonable efforts to provide an accommodation for the employee in accordance with federal and state law. The accommodation should be provided without unnecessary delay, as appropriate (42 USC § 2000gg-1; 29 CFR 1636.3; 29 CFR 1636.4; Utah Code 34A-5-106(1)(g)).

##### **1027.7.1 NOTIFICATION**

Pregnant employees should notify their immediate supervisors as soon as practicable and provide a statement from their medical providers identifying any pregnancy-related job restrictions or limitations. If at any point during the pregnancy it becomes necessary for the employee to take a leave of absence, such leave shall be granted in accordance with the City's personnel rules and regulations regarding family and medical care leave.

#### **1027.8 PROBATIONARY EMPLOYEES**

Probationary employees who are assigned to a temporary modified-duty assignment may have their probation extended by a period of time equal to their assignment to temporary modified duty.

#### **1027.9 MAINTENANCE OF CERTIFICATION AND TRAINING**

Employees assigned to temporary modified duty shall maintain all certification, training and qualifications appropriate to both their regular and temporary duties, provided that the certification, training or qualifications are not in conflict with any medical limitations or restrictions. Employees who are assigned to temporary modified duty shall inform their supervisors of any inability to maintain any certification, training or qualifications.

# Employee Speech, Expression and Social Networking

## 1028.1 PURPOSE AND SCOPE

This policy is intended to address issues associated with employee use of social networking sites and to provide guidelines for the regulation and balancing of employee speech and expression with the needs of the department.

Nothing in this policy is intended to prohibit or infringe upon any communication, speech or expression that is protected or privileged under law. This includes speech and expression protected under state or federal constitutions as well as labor or other applicable laws. For example, this policy does not limit an employee from speaking as a private citizen, including acting as an authorized member of a recognized bargaining unit or officer associations, about matters of public concern, such as misconduct or corruption.

Employees are encouraged to consult with their supervisor regarding any questions arising from the application or potential application of this policy.

### 1028.1.1 APPLICABILITY

This policy applies to all forms of communication including but not limited to film, video, print media, public or private speech, use of all Internet services, including the World Wide Web, e-mail, file transfer, remote computer access, news services, social networking, social media, instant messaging, blogs, forums, video and other file-sharing sites.

## 1028.2 POLICY

Public employees occupy a trusted position in the community, and thus, their statements have the potential to contravene the policies and performance of this department. Due to the nature of the work and influence associated with the law enforcement profession, it is necessary that employees of this department be subject to certain reasonable limitations on their speech and expression. To achieve its mission and efficiently provide service to the public, the American Fork Police Department will carefully balance the individual employee's rights against the department's needs and interests when exercising a reasonable degree of control over its employees' speech and expression.

## 1028.3 SAFETY

Employees should consider carefully the implications of their speech or any other form of expression when using the Internet. Speech and expression that may negatively affect the safety of the American Fork Police Department employees, such as posting personal information in a public forum, can result in compromising an employee's home address or family ties. Employees should therefore not disseminate or post any information on any forum or medium that could reasonably be anticipated to compromise the safety of any employee, an employee's family or associates. Examples of the type of information that could reasonably be expected to compromise safety include:

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### *Employee Speech, Expression and Social Networking*

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- Disclosing a photograph and name or address of an officer who is working undercover.
- Disclosing the address of a fellow officer.
- Otherwise disclosing where another officer can be located off-duty.

#### **1028.4 PROHIBITED SPEECH, EXPRESSION AND CONDUCT**

To meet the department's safety, performance and public-trust needs, the following are prohibited unless the speech is otherwise protected (for example, an employee speaking as a private citizen, including acting as an authorized member of a recognized bargaining unit or officer associations, on a matter of public concern):

- (a) Speech or expression made pursuant to an official duty that tends to compromise or damage the mission, function, reputation or professionalism of the American Fork Police Department or its employees.
- (b) Speech or expression that, while not made pursuant to an official duty, is significantly linked to, or related to, the American Fork Police Department and tends to compromise or damage the mission, function, reputation or professionalism of the American Fork Police Department or its employees. Examples may include:
  1. Statements that indicate disregard for the law or the state or U.S. Constitutions.
  2. Expression that demonstrates support for criminal activity.
  3. Participating in sexually explicit photographs or videos for compensation or distribution.
- (c) Speech or expression that could reasonably be foreseen as having a negative impact on the credibility of the employee as a witness. For example, posting statements or expressions to a website that glorify or endorse dishonesty, unlawful discrimination or illegal behavior.
- (d) Speech or expression of any form that could reasonably be foreseen as having a negative impact on the safety of the employees of the Department. For example, a statement on a blog that provides specific details as to how and when prisoner transportations are made could reasonably be foreseen as potentially jeopardizing employees by informing criminals of details that could facilitate an escape or attempted escape.
- (e) Speech or expression that is contrary to the canons of the Law Enforcement Code of Ethics as adopted by the American Fork Police Department.
- (f) Use or disclosure, through whatever means, of any information, photograph, video or other recording obtained or accessible as a result of employment with the department for financial or personal gain, or any disclosure of such materials without the express authorization of the Chief of Police or the authorized designee (Utah Code 67-16-4).
- (g) Accessing websites for non-authorized purposes, or use of any personal communication device, game device or media device, whether personally or department-owned, for personal purposes while on-duty, except in the following circumstances:

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1. When brief personal communication may be warranted by the circumstances (e.g., inform family of extended hours).
2. During authorized breaks, such usage should be limited as much as practicable to areas out of sight and sound of the public and shall not be disruptive to the work environment.

Employees must take reasonable and prompt action to remove any content, including content posted by others, that is in violation of this policy from any web page or website maintained by the employee (e.g., social or personal website).

#### **1028.4.1 UNAUTHORIZED ENDORSEMENTS AND ADVERTISEMENTS**

While employees are not restricted from engaging in the following activities as private citizens or as authorized members of a recognized bargaining unit or officer associations, employees may not represent the American Fork Police Department or identify themselves in any way that could be reasonably perceived as representing the American Fork Police Department in order to do any of the following, unless specifically authorized by the Chief of Police (Utah Code 20A-11-1206):

- (a) Endorse, support, oppose or contradict any political campaign or initiative.
- (b) Endorse, support, oppose or contradict any social issue, cause or religion.
- (c) Endorse, support or oppose any product, service, company or other commercial entity.
- (d) Appear in any commercial, social or nonprofit publication or any motion picture, film, video, public broadcast or any website.
- (e) Use the email of American Fork Police Department for any political purpose (Utah Code 20A-11-1205).

Additionally, when it can reasonably be construed that an employee, acting in his/her individual capacity or through an outside group or organization (e.g. bargaining group), is affiliated with this department, the employee shall give a specific disclaiming statement that any such speech or expression is not representative of the American Fork Police Department.

Employees retain their right to vote as they choose, to support candidates of their choice and to express their opinions as private citizens, including as authorized members of a recognized bargaining unit or officer associations, on political subjects and candidates at all times while off-duty. However, employees may not use their official authority or influence to interfere with or affect the result of an election or a nomination for office. Employees are also prohibited from directly or indirectly using their official authority to coerce, command or advise another employee to pay, lend or contribute anything of value to a party, committee, organization, agency or person for political purposes (5 USC § 1502).

#### **1028.5 PRIVACY EXPECTATION**

Employees forfeit any expectation of privacy with regard to e-mails, texts or anything published or maintained through file-sharing software or any Internet site (e.g., Facebook, MySpace) that is accessed, transmitted, received or reviewed on any department technology system.



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The department reserves the right to access, audit and disclose for whatever reason any message, including attachments, and any information accessed, transmitted, received or reviewed over any technology that is issued or maintained by the department, including the department e-mail system, computer network or any information placed into storage on any department system or device. This includes records of all key strokes or web-browsing history made at any department computer or over any department network. The fact that access to a database, service or website requires a user name or password will not create an expectation of privacy if it is accessed through department computers or networks.

#### **1028.6 CONSIDERATIONS**

In determining whether to grant authorization of any speech or conduct that is prohibited under this policy, the factors that the Chief of Police or authorized designee should consider include:

- (a) Whether the speech or conduct would negatively affect the efficiency of delivering public services.
- (b) Whether the speech or conduct would be contrary to the good order of the department or the efficiency or morale of its members.
- (c) Whether the speech or conduct would reflect unfavorably upon the department.
- (d) Whether the speech or conduct would negatively affect the member's appearance of impartiality in the performance of his/her duties.
- (e) Whether similar speech or conduct has been previously authorized.
- (f) Whether the speech or conduct may be protected and outweighs any interest of the department.

#### **1028.7 TRAINING**

Subject to available resources, the department should provide training regarding employee speech and the use of social networking to all members of the department.

## Performance History Audits

### 1029.1 PURPOSE AND SCOPE

Performance History Audits are collections of data designed to assist supervisors evaluating the performance of their employees. Performance History Audits can help identify commendable performance as well as early recognition of training needs and other potential issues. While it is understood that the statistical compilation of data may be helpful to supervisors, it cannot account for, and must be carefully balanced with the many variables in law enforcement such as:

- An officer's ability to detect crime.
- An officer's work ethic.
- An officer's work assignment and shift.
- An officer's physical abilities, stature, etc.
- Randomness of events.

### 1029.2 RESPONSIBILITIES

The Command Staff should designate a department member responsible for collecting performance indicators and other relevant data to generate and provide a quarterly and annual Performance History Audit Report for each officer to the appropriate Division Commander.

The Division Commander should also forward a copy of each Performance History Audit Report to the Office of the City Attorney for review and retention as attorney work product and confidential personnel information.

### 1029.3 PERFORMANCE INDICATORS

Performance indicators represent the categories of employee performance activity that the Chief of Police of American Fork Police Department has determined may be relevant data for the generation and analysis of Performance History Audits. Performance indicators may include but are not limited to:

- (a) The frequency and findings of use of force incidents.
- (b) Frequency of involvement and conduct during vehicle pursuits.
- (c) Frequency and findings of citizen complaints.
- (d) Number of commendations, compliments and awards (citizen and Department).
- (e) Claims and civil suits related to the employee's actions or alleged actions.
- (f) Canine bite incidents.
- (g) Frequency and reasons for District Attorney case rejections.
- (h) Intentional or accidental firearm discharges (regardless of injury).
- (i) Vehicle collisions.

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### *Performance History Audits*

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- (j) Missed court appearances.
- (k) Documented counseling memos.

#### **1029.4 COMPILATION OF DATA**

Secure systems and other confidential methods will be utilized to compile and track information regarding performance indicators for each officer in order to prepare Performance History Audit Reports.

#### **1029.5 DATA ANALYSIS AND ACTION**

Each Performance History Audit Report shall be provided to the supervisor responsible for the officer included in the report. Upon receipt, the supervisor will review each Performance History Audit Report and assess any potential trends or other issues which may warrant informal counseling, additional training or a recommendation for other action, including discipline. Supervisors should also use quarterly and annual Performance History Audit Reports to inform their annual employee evaluation.

If a supervisor determines that an officer's performance warrants action beyond informal counseling, the supervisor shall advise the Division Commander of such recommendation. If the Division Commander concurs with the recommendation of the supervisor, he/she shall take steps to initiate the appropriate action.

If discipline or other adverse action is initiated against an officer as a result of a Performance History Audit, the officer shall be entitled to all rights and processes set forth in the Personnel Complaints Policy.

#### **1029.6 CONFIDENTIALITY OF DATA**

Information, data and copies of material compiled to develop Performance History Audit Reports shall be considered confidential as part of the employee's personnel file and will not be subject to discovery or release except as provided by law. Access to the data in the system will be governed under the same process as access to an officer's personnel file as outlined in the Department Peace Officer Personnel Files Policy 1026.

#### **1029.7 RETENTION AND PURGING**

Except as incorporated in separate training or disciplinary records, all performance indicators and Performance History Audit Reports shall be purged from the Internal Affairs Unit and all other locations within the Department one year from the date generated. The City Attorney however, shall retain a copy of Performance History Audit Reports for an additional one year period as attorney work product.

## Illness and Injury Prevention

### 1030.1 PURPOSE AND SCOPE

The purpose of this policy is to establish an ongoing and effective plan to reduce the incidence of illness and injury for members of the American Fork Police Department, in accordance with the requirements of the Utah Occupational Safety and Health Act (Utah OSHA) (Utah Code 34A-6-201).

This policy specifically applies to illness and injury that results in lost time or that requires medical treatment beyond first aid. Although this policy provides the essential guidelines for a plan that reduces illness and injury, it may be supplemented by procedures outside the Policy Manual.

This policy does not supersede, but supplements any related Citywide safety efforts.

### 1030.2 POLICY

The American Fork Police Department is committed to providing a safe environment for its members and visitors and to minimizing the incidence of work-related illness and injuries. The Department will establish and maintain an Illness and Injury Prevention program and will provide tools, training and safeguards designed to reduce the potential for accidents, illness and injuries. It is the intent of the Department to comply with all laws and regulations related to occupational safety.

### 1030.3 ILLNESS AND INJURY PREVENTION PLAN

The Division Commander is responsible for developing an illness and injury prevention plan that shall include:

- (a) Workplace safety and health training programs.
- (b) Regularly scheduled safety meetings.
- (c) Posted or distributed safety information.
- (d) A system for members to inform management about workplace hazards.
- (e) Establishment of a safety and health committee that will:
  - 1. Meet regularly.
  - 2. Prepare a written record of safety and health committee meetings.
  - 3. Review the results of periodic scheduled inspections.
  - 4. Review investigations of accidents and exposures.
  - 5. Make suggestions to command staff for the prevention of future incidents.
  - 6. Review investigations of alleged hazardous conditions.
  - 7. Submit recommendations to assist in the evaluation of member safety suggestions.
  - 8. Assess the effectiveness of efforts made by the Department to meet relevant standards.

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### *Illness and Injury Prevention*

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- (f) Establishment of a process to ensure illnesses and injuries are reported as required under UAC R614-1-5.

#### **1030.4 ADMINISTRATION DIVISION COMMANDER RESPONSIBILITIES**

The responsibilities of the Administration Division Commander include but are not limited to:

- (a) Managing and implementing a plan to reduce the incidence of member illness and injury.
- (b) Ensuring that a system of communication is in place that facilitates a continuous flow of safety and health information between supervisors and members. This system shall include:
  - 1. New member orientation that includes a discussion of safety and health policies and procedures.
  - 2. Regular member review of the illness and injury prevention plan.
- (c) Ensuring that all safety and health policies and procedures are clearly communicated and understood by all members.
- (d) Taking reasonable steps to ensure that all members comply with safety rules in order to maintain a safe work environment. This includes but is not limited to:
  - 1. Informing members of the illness and injury prevention guidelines.
  - 2. Recognizing members who perform safe work practices.
  - 3. Ensuring that the member evaluation process includes member safety performance.
  - 4. Ensuring department compliance to meet standards regarding the following:
    - (a) Communicable diseases (Utah Code 34A-6-102; UAC R614-1-4)
    - (b) Personal Protective Equipment (PPE) (see the Personal Protective Equipment Policy) (29 CFR 1910.132; Utah Code 34A-6-102; UAC R614-1-2; UAC R614-1-4)
    - (c) General safety requirements (UAC R614-1-5)
    - (d) Investigations of work-related injuries and occupational diseases and any sudden or unusual occurrence or change of conditions that pose a risk to members (UAC R614-1-5)
    - (e) Emergency Action Plan (29 CFR 1910.38; UAC R614-1-4)
    - (f) Walking-Working Surfaces (29 CFR 1910.21 et seq.; UAC R614-1-4)
    - (g) Personal Fall Protection Systems (29 CFR 1910.140; UAC R614-1-4)
- (e) Making available a form to document inspections, unsafe conditions or work practices, and actions taken to correct unsafe conditions and work practices.
- (f) Making available a form to document individual incidents or accidents.

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### *Illness and Injury Prevention*

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- (g) Making available a form to document the safety and health training of each member. This form will include the member's name or other identifier, training dates, type of training and training providers.
- (h) Conducting and documenting a regular review of the illness and injury plan.

#### **1030.5 SUPERVISOR RESPONSIBILITIES**

Supervisor responsibilities include but are not limited to:

- (a) Ensuring member compliance with illness and injury prevention guidelines and answering questions from members about this policy.
- (b) Training, counseling, instructing, or making informal verbal admonishments any time safety performance is deficient. Supervisors may also initiate discipline when it is reasonable and appropriate under the Standards of Conduct Policy.
- (c) Establishing and maintaining communication with members on health and safety issues. This is essential for an injury-free, productive workplace.
- (d) Notifying the Administration Division Commander when:
  - (a) New substances, processes, procedures, or equipment that present potential new hazards are introduced into the work environment.
  - (b) New, previously unidentified hazards are recognized.
  - (c) Occupational illnesses and injuries occur.
  - (d) New and/or permanent or intermittent members are hired or reassigned to processes, operations, or tasks for which a hazard evaluation has not been previously conducted.
  - (e) Workplace conditions warrant an inspection.

#### **1030.6 HAZARDS**

All members should report and/or take reasonable steps to correct unsafe or unhealthy work conditions, practices or procedures in a timely manner. Members should make their reports to a supervisor (as a general rule, their own supervisors).

Supervisors should make reasonable efforts to correct unsafe or unhealthy work conditions in a timely manner, based on the severity of the hazard. These hazards should be corrected when observed or discovered, when it is reasonable to do so. When a hazard exists that cannot be immediately abated without endangering members or property, supervisors should protect or remove all exposed members from the area or item, except those necessary to correct the existing condition.

Members who are necessary to correct the hazardous condition shall be provided with the necessary protection.

All significant actions taken and dates they are completed shall be documented in a memorandum. This memorandum should be forwarded to the Division Commander via the chain of command.

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The Division Commander will take appropriate action to ensure the illness and injury prevention plan addresses potential hazards upon such notification.

#### **1030.7 ACCIDENT AND INJURY INVESTIGATIONS**

Any member sustaining any work-related illness or injury, as well as any member who is involved in any accident or hazardous substance exposure while on-duty shall report such event as soon as practicable to a supervisor. Members observing or learning of a potentially hazardous condition are to promptly report the condition to their immediate supervisors.

A supervisor receiving such a report should personally investigate the incident or ensure that an investigation is conducted. Investigative procedures for workplace accidents and hazardous substance exposures should include:

- (a) A visit to the accident scene as soon as possible.
- (b) An interview of the injured member and witnesses.
- (c) An examination of the workplace for factors associated with the accident/exposure.
- (d) Determination of the cause of the accident/exposure.
- (e) Corrective action to prevent the accident/exposure from reoccurring.
- (f) Documentation of the findings and corrective actions taken.

Additionally, the supervisor should proceed with the steps to report an on-duty injury, as required under the Occupational Disease and Work-Related Injury and Death Reporting Policy, in conjunction with this investigation to avoid duplication and ensure timely reporting.

#### **1030.8 TRAINING**

The Division Commander should ensure that all members, including supervisors, receive training on general and job-specific workplace safety and health practices. Training shall be provided:

- (a) To supervisors to familiarize them with the safety and health hazards to which members under their immediate direction and control may be exposed.
- (b) To all members with respect to hazards specific to each member's job assignment.
- (c) To all members given new job assignments for which training has not previously been provided.
- (d) Whenever new substances, processes, procedures or equipment are introduced to the workplace and represent a new hazard.
- (e) Whenever the Department is made aware of a new or previously unrecognized hazard.

##### **1030.8.1 TRAINING TOPICS**

The Division Commander shall ensure that training includes:

- (a) Reporting unsafe conditions, work practices and injuries, and informing a supervisor when additional instruction is needed.
- (b) Use of appropriate clothing, including gloves and footwear.

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### *Illness and Injury Prevention*

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- (c) Use of respiratory equipment.
- (d) Availability of toilet, hand-washing and drinking-water facilities.
- (e) Provisions for medical services and first aid.
- (f) Handling of bloodborne pathogens and other biological hazards.
- (g) Prevention of heat and cold stress.
- (h) Identification and handling of hazardous materials, including chemical hazards to which members could be exposed, and review of resources for identifying and mitigating hazards (e.g., hazard labels, Safety Data Sheets (SDS)).
- (i) Mitigation of physical hazards, such as heat and cold stress, noise, and ionizing and non-ionizing radiation.
- (j) Identification and mitigation of ergonomic hazards, including working on ladders or in a stooped posture for prolonged periods.
- (k) Back exercises/stretchers and proper lifting techniques.
- (l) Avoidance of slips and falls.
- (m) Good housekeeping and fire prevention.
- (n) Other job-specific safety concerns.

#### **1030.9 RECORDS**

Records and training documentation relating to illness and injury prevention will be maintained in accordance with the established records retention schedule.



## Requests for Employment References

### **1031.1 PURPOSE AND SCOPE**

This policy provides guidelines and information instructing how department members should respond when they receive a request for an employment reference regarding a current or former department member.

### **1031.2 POLICY**

If any department member receives a request for an employment reference regarding any current or former department member, the department member receiving the request shall inform the requesting party that only the City Human Resources Office is authorized to release any reference information. Under no circumstances shall department members release employment reference information or opinions of any kind.

### **1031.3 CITY RESPONSE TO EMPLOYMENT REFERENCE REQUESTS**

The City Human Resources Office may respond to all reference inquiries regarding present or former department members. Generally, responses to such inquiries will confirm only dates of employment, wage rates, and position(s) held.

### **1031.4 PENALTIES**

The department reserves the right to discipline and deny indemnity and defense to any department member who provides reference information and opinions to third parties in violation of this policy, whether or not claims of liability against the City, this department, and/or its member(s) are asserted.

## Awards

### 1032.1 PURPOSE AND SCOPE

The purpose of this policy is to establish an employee recognition program and to establish criteria for department awards.

### 1032.2 POLICY

The American Fork Police Department will administer an awards program to recognize the service and sacrifice of its members.

### 1032.3 AWARD CATEGORIES

#### 1032.3.1 COMMENDATION AWARDS

The Commendation Awards recognized by the department are:

- (a) Medal of Honor
- (b) Police Star (Medal of Valor)
- (c) Purple Heart
- (d) Combat Cross
- (e) Lifesaving
- (f) Distinguished Service
- (g) Police Commendation
- (h) Meritorious Conduct

#### 1032.3.2 TRAINING/SERVICE AWARDS

The Training/Service Awards recognized by the department are:

- (a) SWAT
- (b) Honor Guard
- (c) Bike Patrol
- (d) FTO (Field Training Officer)
- (e) CIT (Crisis Intervention Team)
- (f) Motors
- (g) Dive Team
- (h) Negotiator
- (i) Advanced Officer
- (j) DRE (Drug Recognition Expert)
- (k) Instructor
- (l) NOVA

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### Awards

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- (m) Sniper
- (n) Top Gun MARKSMANSHIP AWARD
- (o) Military Service
- (p) Education (with separate devices indicating level achieved)
- (q) K-9
- (r) Promotion (four levels, from Sergeant to Chief)
- (s) Accident Investigator
- (t) Master Officer
- (u) Officer of the Year
- (v) Civilian Employee
- (w) Traffic Unit
- (x) Mobile Field Force
- (y) SRO
- (z) Firearms Instructor

#### **1032.4 NOMINATION PROCEDURE**

- (a) Nomination of employees or others for awards will be initiated by completion of the American Fork Police Department Recommendation of Award form. Any documentation supporting the recommendation such as police reports should be attached to the form. Completed award forms will be submitted through the chain of command to the Chief of Police. The Chief of Police will forward all completed Recommendation of Awards to the Awards Committee.
- (b) The nomination period will run from January 1st to December 31st of each calendar year. Nominations for the previous calendar year will be accepted through January 31st.
- (c) Nominations for personnel of the American Fork Police Department may be submitted by anyone.
- (d) Nominations for personnel outside of this agency may be for commendation only and must be submitted by American Fork Police Department personnel.

#### **1032.5 AWARDS COMMITTEE**

- (a) Members of the Awards Committee will be appointed by the Chief of Police or designee and will represent a cross section of the department. The term of service for a member will be at the discretion of the Chief of Police or designee.
- (b) The Chairman of the Committee will be responsible for maintaining the records of all nominations. The Committee will meet as needed or directed by the Chief of Police to review nominations. The purpose of the Committee shall be to determine if a nominee for an award is being nominated for the appropriate award, and if the member is eligible

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to receive the award. The Committee will not approve any awards, but forward their recommendations to the Chief of Police who will have the final approval authority.

#### 1032.6 COMMENDATION AWARDS CRITERIA

- (a) **Medal of Honor:** The Medal of Honor is the department's highest award and shall be awarded only in exceptional cases when a hazardous duty is performed by a law enforcement officer. The hazardous duty shall involve an obvious life threatening situation and the act must be of such a nature that it is beyond that expected in the line of duty. The criteria for awarding the Medal of Honor shall include:
  - 1. Outstanding bravery beyond that expected in the line of duty;
  - 2. Actions for which failure to take such action would not justify censure;
  - 3. Actions for which the risk of life actually existed and the member had sufficient time to evaluate it;
  - 4. Actions for which the objective is of sufficient importance to justify the risk; and
  - 5. The member accomplishes the objective or is prevented from doing so by incurring a disabling injury or death.
- (b) **Police Star (Medal of Valor):** The Medal of Valor is awarded for outstanding service and conspicuous bravery in the line of duty. This award shall be considered when the circumstances do not fall within the provisions required for a Medal of Honor. The criteria for awarding a Medal of Valor shall include:
  - 1. The member manifests outstanding bravery in the performance of duty under circumstances not within the provisions required for a Medal of Honor;
  - 2. The member risks loss of life with knowledge of the danger involved, or where a reasonable person would assume his life or safety was in great danger;
  - 3. The member's objective is of a sufficient importance to justify the risk; and
  - 4. The member accomplishes the objective or is prevented from doing so by circumstances beyond his or her control.
- (c) **Purple Heart:** This medal is awarded to a law enforcement officer who, in the line of duty, sustained wounds or injuries inflicted intentionally by an armed offender or adversary and which results in a severe puncture wound, laceration, fracture or contusion; or is seriously injured by an unarmed offender or other adversary.
- (d) **Combat Cross:** The Combat Cross is awarded to a law enforcement officer who in the line of duty performs:
  - 1. Act(s) of bravery during the performance of duties;
  - 2. Service with distinction under extraordinary circumstances during a major emergency or special operation;
  - 3. Other exceptional service to the department.
- (e) **Lifesaving:** The Lifesaving Medal is awarded to officers who perform a lifesaving act under the following extraordinary circumstances:

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- (a) The officer took direct, immediate, and positive action to preserve the life of another human being who was in danger of dying;
- (b) The action taken did prevent the loss of a human life.
- (c) The circumstances of the act were such that any delay in providing assistance would, in all probability, have resulted in the person's death.
- (d) This award shall not duplicate any other department award, with the exception of the Police Commendation, Medal of Honor, or Medal of Valor given to the same officer for the same incident.
- (f) Distinguished Service: For a member's unparalleled desire and dedication to serve the public above and beyond that which is expected and expressed by one's monumental service over an extended period of time or career.
- (g) Police Commendation: Awarded to officers for an act of such distinctive gallantry or achievement as to have brought great credit to the officer and to the department.
- (h) Meritorious Service: for a member's unparalleled desire and dedication to serve the public above and beyond that which is expected and expressed by one's monumental service. This award may be given for a single act or episode of noteworthiness when accompanied by documentation specifying an act of exceptional dedication to duty.

#### 1032.7 TRAINING/SERVICE AWARDS

Service medals are awarded for selected collateral assignments to support service to, and professionalism within, the department. Eligibility for the Service award is determined by either the satisfactory completion of an identified assignment, the satisfactory completion of the required specialized training, or at least one completed, satisfactory operation within the specialized assignment.

Awards will follow the guidelines below. Service stars will be located and centered 1/8 inch above the ribbons rack.

- (a) Education Awards: Education awards are made to encourage and support the continuing education of department personnel. Law enforcement officers become eligible for education awards upon satisfactory completion of a specific degree program from an accredited institution, as evidenced by an awarded diploma.
- (b) Subsequent Awards: Officers receiving subsequent awards for a previously awarded ribbon will add a bronze star device to the ribbon for each subsequent award, up to three, at which point three bronze stars will be replaced with a silver star (indicating a fifth award). Additional stars will be bronze stars until a tenth award which will be two silver stars.

#### 1032.8 DISPLAY OF AWARDS

- (a) Ribbons will be worn centered 1/8 inch above the name plate, which will be located 1/8 inch centered above the right breast pocket of the Class A uniform. When more than one ribbon is worn, ribbons will be placed on a ribbon rack to present a neat and

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uniform appearance. Officers may elect which ribbons they choose to wear, up to a total of 15 (5 rows of 3 across).

- (b) Only ribbons approved by this department shall be worn on the uniforms.
- (c) Awards given previously in a career will be reviewed by the Awards Committee if they are not of the same construction as current department awards. A substitution award of commensurate value will be given to be worn on the uniform.
- (d) Unit citations will be located on the bottom row of the ribbon rack.
- (e) Ribbons will be in order from left to right.
- (f) Ribbons awarded by this Department will be made of metal and have a width of 1 3/8 " and a height of 3/8".
- (g) No other awards (i.e. motor wings, asp pins, etc.) other than issued ribbons shall be worn on the Class A uniform without authorization from the Chief of Police.

#### **1032.9 CHANGES OR ADDITION OF AWARDS**

Any member of this department wishing to suggest additional awards not covered in this policy may make a written recommendation in memorandum format to the Chief of Police. The Chief of Police will forward all recommendations to the Awards Committee for consideration and review. The Awards Committee will then forward their recommendation to the Chief of Police for the final decision.

## Line-of-Duty Deaths

### 1033.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance to members of the American Fork Police Department in the event of the death of a member occurring in the line of duty and to direct the [Department/Office] in providing proper support for the member's survivors.

The Chief of Police may also apply some or all of this policy for a non-line-of-duty member death, or in situations where members are injured in the line of duty and the injuries are life-threatening.

#### 1033.1.1 DEFINITIONS

Definitions related to this policy include:

**Line-of-duty death** - The death of an officer during the course of performing law enforcement-related functions while on- or off-duty, or a non-sworn member during the course of performing assigned duties.

For an officer, a line-of-duty death includes death that is the direct and proximate result of a personal injury sustained in the line of duty (34 USC § 10281).

**Survivors** - Immediate family members of the deceased member, which can include spouse, children, parents, other next of kin, or significant others. The determination of who should be considered a survivor for purposes of this policy should be made on a case-by-case basis given the individual's relationship with the member and whether the individual was previously designated by the deceased member.

### 1033.2 POLICY

It is the policy of the American Fork Police Department to make appropriate notifications and to provide assistance and support to survivors and coworkers of a member who dies in the line of duty.

It is also the policy of this department to respect the requests of the survivors when they conflict with these guidelines, as appropriate.

### 1033.3 INITIAL ACTIONS BY COMMAND STAFF

- (a) Upon learning of a line-of-duty death, the deceased member's supervisor should provide all reasonably available information to the Shift Supervisor and Dispatch.
  - 1. Communication of information concerning the member and the incident should be restricted to secure networks to avoid interception by the media or others (see the Public Information Officer section of this policy).
- (b) The Shift Supervisor should ensure that notifications are made in accordance with the Officer-Involved Shootings and Deaths and Major Incident Notification policies as applicable.

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- (c) If the member has been transported to the hospital, the Shift Supervisor or the designee should respond to the hospital to assume temporary responsibilities as the Hospital Liaison.
- (d) The Chief of Police or the authorized designee should assign members to handle survivor notifications and assign members to the roles of Hospital Liaison (to relieve the temporary Hospital Liaison) and the Department Liaison as soon as practicable (see the Notifying Survivors section and the Department Liaison and Hospital Liaison subsections in this policy).

#### **1033.4 NOTIFYING SURVIVORS**

Survivors should be notified as soon as possible in order to avoid the survivors hearing about the incident in other ways.

The Chief of Police or the authorized designee should review the deceased member's emergency contact information and make accommodations to respect the member's wishes and instructions specific to notifying survivors. However, notification should not be excessively delayed because of attempts to assemble a notification team in accordance with the member's wishes.

The Chief of Police, Shift Sergeant, or the authorized designee should select at least two members to conduct notification of survivors, one of which may be the [Department/Office] chaplain.

Notifying members should:

- (a) Make notifications in a direct and compassionate manner, communicating as many facts of the incident as possible, including the current location of the member. Information that is not verified should not be provided until an investigation has been completed.
- (b) Determine the method of notifying surviving children by consulting with other survivors and taking into account factors such as the child's age, maturity, and current location (e.g., small children at home, children in school).
- (c) Plan for concerns such as known health concerns of survivors or language barriers.
- (d) Offer to transport survivors to the hospital, if appropriate. Survivors should be transported in [department/office] vehicles. Notifying members shall inform the Hospital Liaison over a secure network that the survivors are on their way to the hospital. Notifying members should remain at the hospital while the survivors are present.
- (e) When survivors are not at their residences or known places of employment, actively seek information and follow leads from neighbors, other law enforcement, postal authorities, and other sources of information in order to accomplish notification in as timely a fashion as possible. Notifying members shall not disclose the reason for their contact other than a family emergency.
- (f) If making notification at a survivor's workplace, ask a workplace supervisor for the use of a quiet, private room to meet with the survivor. Members shall not inform the workplace supervisor of the purpose of their visit other than to indicate that it is a family emergency.



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- (g) Offer to call other survivors, friends, or clergy to support the survivors and to avoid leaving survivors alone after notification.
- (h) Assist the survivors with meeting child care or other immediate needs.
- (i) Provide other assistance to survivors and take reasonable measures to accommodate their needs, wishes, and desires. Care should be taken not to make promises or commitments to survivors that cannot be met.
- (j) Inform the survivors of the name and phone number of the Survivor Support Liaison (see the Survivor Support Liaison section of this policy), if known, and the [Department/Office] Liaison.
- (k) Provide their contact information to the survivors before departing.
- (l) Document the survivors' names and contact information, as well as the time and location of notification. This information should be forwarded to the [Department/Office] Liaison.
- (m) Inform the Chief of Police or the authorized designee once survivor notifications have been made so that other American Fork Police Department members may be apprised that survivor notifications are complete.

#### 1033.4.1 OUT-OF-AREA NOTIFICATIONS

The Department Liaison should request assistance from law enforcement agencies in appropriate jurisdictions for in-person notification to survivors who are out of the area.

- (a) The Department Liaison should contact the appropriate jurisdiction using a secure network and provide the assisting agency with the name and telephone number of the department member that the survivors can call for more information following the notification by the assisting agency.
- (b) The Department Liaison may assist in making transportation arrangements for the member's survivors, but will not obligate the Department to pay travel expenses without the authorization of the Chief of Police.

#### 1033.5 NOTIFYING [DEPARTMENT/OFFICE] MEMBERS

Supervisors or members designated by the Chief of Police are responsible for notifying [department/office] members of the line-of-duty death as soon as possible after the survivor notification is made. Notifications and related information should be communicated in person or using secure networks and should not be transmitted over the radio.

Notifications should be made in person and as promptly as possible to all members on-duty at the time of the incident. Members reporting for subsequent shifts within a short amount of time should be notified in person at the beginning of their shifts. Members reporting for duty from their residences should be instructed to contact their supervisors as soon as practicable. Those members who are working later shifts or are on days off should be notified by phone as soon as practicable.

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Members having a close bond with the deceased member should be notified of the incident in person. Supervisors should consider assistance (e.g., peer support, modifying work schedules, approving sick leave) for members who are especially affected by the incident.

Supervisors should direct members not to disclose any information outside the [Department/Office] regarding the deceased member or the incident.

#### **1033.6 LIAISONS AND COORDINATORS**

The Chief of Police or the authorized designee should select members to serve as liaisons and coordinators to handle responsibilities related to a line-of-duty death, including but not limited to:

- (a) [Department/Office] Liaison.
- (b) Hospital Liaison.
- (c) Survivor Support Liaison.
- (d) Wellness Support Liaison.
- (e) Funeral Liaison.
- (f) Mutual aid coordinator.
- (g) Benefits Liaison.
- (h) Finance coordinator.

Liaisons and coordinators will be directed by the [Department/Office] Liaison and should be given sufficient duty time to complete their assignments.

Members may be assigned responsibilities of more than one liaison or coordinator position depending on available [department/office] resources. The [Department/Office] Liaison may assign separate liaisons and coordinators to accommodate multiple family units, if needed. The [Department/Office] should consider seeking assistance from surrounding law enforcement agencies to fill liaison and coordinator positions, as appropriate.

##### **1033.6.1 DEPARTMENT/OFFICE LIAISON**

The [Department/Office] Liaison should be a Division Commander or of sufficient rank to effectively coordinate [department/office] resources, and should serve as a facilitator between the deceased member's survivors and the [Department/Office]. The [Department/Office] Liaison reports directly to the Chief of Police. The [Department/Office] Liaison's responsibilities include but are not limited to:

- (a) Directing the other liaisons and coordinators in fulfilling survivors' needs and requests. Consideration should be given to organizing the effort using the National Incident Management System.
- (b) Establishing contact with survivors within 24 hours of the incident and providing them contact information.
- (c) Advising survivors of the other liaison and coordinator positions and their roles and responsibilities.

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- (d) Identifying locations that will accommodate a law enforcement funeral and presenting the options to the appropriate survivors, who will select the location.
- (e) Coordinating all official law enforcement notifications and arrangements.
- (f) Making necessary contacts for authorization to display flags at half-staff.
- (g) Reminding [department/office] members of appropriate information-sharing restrictions regarding the release of information that could undermine future legal proceedings.
- (h) Coordinating security checks of the member's residence as necessary and reasonable.
- (i) Serving as a liaison with visiting law enforcement agencies during memorial and funeral services.

#### 1033.6.2 HOSPITAL LIAISON

The Hospital Liaison should work with hospital personnel to:

- (a) Establish a command post or incident command system, as appropriate, to facilitate management of the situation and its impact on hospital operations (e.g., influx of people, parking).
- (b) Arrange for appropriate and separate waiting areas for:
  - 1. The survivors and others whose presence is requested by the survivors.
  - 2. [Department/Office] members and friends of the deceased member.
  - 3. Media personnel.
- (c) Ensure, as practicable, that any suspects who are in the hospital and their families or friends are not in proximity to the member's survivors or American Fork Police Department members (except for members who may be guarding a suspect).
- (d) Arrange for survivors to receive timely updates regarding the member before information is released to others.
- (e) Arrange for survivors to have private time with the member, if requested.
  - 1. The Hospital Liaison or hospital personnel may need to explain the condition of the member to the survivors to prepare them accordingly.
  - 2. The Hospital Liaison should accompany the survivors into the room, if requested.
- (f) Stay with survivors and provide them with other assistance as needed at the hospital.
- (g) If applicable, explain to the survivors why an autopsy may be needed.
- (h) Make arrangements for hospital bills to be directed to the [Department/Office], that the survivors are not asked to sign as guarantor of payment for any hospital treatment, and that the member's residence address, insurance information, and next of kin are not included on hospital paperwork.

Other responsibilities of the Hospital Liaison include but are not limited to:

- Arranging transportation for the survivors back to their residence.

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- Working with investigators to gather and preserve the deceased member's equipment and other items that may be of evidentiary value.
- Documenting their actions at the conclusion of duties.

#### 1033.6.3 SURVIVOR SUPPORT LIAISON

The Survivor Support Liaison should work with the [Department/Office] Liaison to fulfill the immediate needs and requests of the survivors of any member who has died in the line of duty, and serve as the long-term [department/office] contact for survivors.

The Survivor Support Liaison should be selected by the deceased member's Division Commander. The following should be considered when selecting the Survivor Support Liaison:

- The liaison should be an individual the survivors know and with whom they are comfortable working.
- The selection may be made from names recommended by the deceased member's supervisor and/or coworkers. The deceased member's partner or close friends may not be the best selections for this assignment because the emotional connection to the member or survivors may impair their ability to conduct adequate liaison duties.
- The liaison must be willing to assume the assignment with an understanding of the emotional and time demands involved.

The responsibilities of the Survivor Support Liaison include but are not limited to:

- (a) Arranging for transportation of survivors to hospitals, places of worship, funeral homes, and other locations, as appropriate.
- (b) Communicating with the [Department/Office] Liaison regarding appropriate security measures for the family residence, as needed.
- (c) If requested by the survivors, providing assistance with instituting methods of screening telephone calls made to their residence after the incident.
- (d) Providing assistance with travel and lodging arrangements for out-of-town survivors.
- (e) Returning the deceased member's personal effects from the [Department/Office] and the hospital to the survivors. The following should be considered when returning the personal effects:
  1. Items should not be delivered to the survivors until they are ready to receive the items.
  2. Items not retained as evidence should be delivered in a clean, unmarked box.
  3. All clothing not retained as evidence should be cleaned and made presentable (e.g., items should be free of blood or other signs of the incident).
  4. The return of some personal effects may be delayed due to ongoing investigations.
- (f) Assisting with the return of [department/office]-issued equipment that may be at the deceased member's residence.

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1. Unless there are safety concerns, the return of the equipment should take place after the funeral at a time and in a manner considerate of the survivors' wishes.
- (g) Working with the Wellness Support Liaison for survivors to have access to available counseling services.
- (h) Coordinating with the [department/office]'s Public Information Officer (PIO) to brief the survivors on pending press releases related to the incident and to assist the survivors with media relations in accordance with their wishes (see the Public Information Officer section of this policy).
- (i) Briefing survivors on investigative processes related to the line-of-duty death, such as criminal, internal, and administrative investigations.
- (j) Informing survivors of any related criminal proceedings and accompanying them to such proceedings.
- (k) Introducing survivors to prosecutors, victim's assistance personnel, and other involved personnel as appropriate.
- (l) Maintaining long-term contact with survivors and taking measures to sustain a supportive relationship (e.g., follow-up visits, phone calls, cards on special occasions, special support during holidays).
- (m) Inviting survivors to [department/office] activities, memorial services (e.g., as applicable, the Annual Candlelight Vigil at the National Law Enforcement Officers Memorial), or other functions as appropriate.

Survivor Support Liaisons providing services after an incident resulting in multiple members being killed should coordinate with and support each other through conference calls or meetings as necessary.

The [Department/Office] recognizes that the duties of a Survivor Support Liaison will often affect regular assignments over many years, and is committed to supporting members in the assignment.

If needed, the Survivor Support Liaison should be issued a personal communication device (PCD) owned by the [Department/Office] to facilitate communications necessary to the assignment. The [department/office]-issued PCD shall be used in accordance with the Personal Communication Devices Policy.

#### 1033.6.4 WELLNESS SUPPORT LIAISON

The Wellness Support Liaison should work with the [department/office] wellness coordinator or the authorized designee and other liaisons and coordinators to make wellness support and counseling services available to members and survivors who are impacted by a line-of-duty death. The responsibilities of the Wellness Support Liaison include but are not limited to:

- (a) Identifying members who are likely to be significantly affected by the incident and may have an increased need for wellness support and counseling services, including:
  1. Members involved in the incident.
  2. Members who witnessed the incident.

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3. Members who worked closely with the deceased member but were not involved in the incident.
- (b) Making arrangements for members who were involved in or witnessed the incident to be relieved of [department/office] responsibilities until they can receive wellness support.
- (c) Making wellness support and counseling resources (e.g., peer support, Critical Incident Stress Debriefing) available to members as soon as reasonably practicable following the line-of-duty death.
- (d) Coordinating with the Survivor Support Liaison to inform survivors of available wellness support and counseling services and assisting with arrangements as needed.
- (e) Following up with members and the Survivor Support Liaison in the months following the incident to determine if additional wellness support or counseling services are needed.

#### 1033.6.5 FUNERAL LIAISON

The Funeral Liaison should work with the [Department/Office] Liaison, Survivor Support Liaison, and survivors to coordinate funeral arrangements to the extent the survivors wish. The Funeral Liaison's responsibilities include but are not limited to:

- (a) Assisting survivors in working with the funeral director regarding funeral arrangements and briefing them on law enforcement funeral procedures.
- (b) Completing funeral notification to other law enforcement agencies.
- (c) Coordinating the funeral activities of the [Department/Office], including but not limited to the following:
  1. Honor Guard
    - (a) Casket watch
    - (b) Color guard
    - (c) Pallbearers
    - (d) Bell/rifle salute
  2. Bagpipers/bugler
  3. Uniform for burial
  4. Flag presentation
  5. Last radio call
- (d) Briefing the Chief of Police and command staff concerning funeral arrangements.
- (e) Assigning an officer to remain at the family home during the viewing and funeral.
- (f) Arranging for transportation of the survivors to and from the funeral home and interment site using [department/office] vehicles and drivers.

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- (g) Addressing event-related logistical matters (e.g., parking, visitor overflow, public assembly areas).

#### 1033.6.6 MUTUAL AID COORDINATOR

The mutual aid coordinator should work with the [Department/Office] Liaison and the Funeral Liaison to request and coordinate any assistance from outside law enforcement agencies needed for, but not limited to:

- (a) Traffic control during the deceased member's funeral.
- (b) Area coverage so that as many American Fork Police Department members can attend funeral services as possible.

The mutual aid coordinator should perform duties in accordance with the Outside Agency Assistance Policy.

Where practicable, the Chief of Police should appoint a mutual aid coordinator to identify external resources in advance of any need (e.g., regional honor guard teams, county- or state-wide resources).

#### 1033.6.7 BENEFITS LIAISON

The Benefits Liaison should provide survivors with information concerning available benefits and will assist them in applying for benefits. Responsibilities of the Benefits Liaison include but are not limited to:

- (a) Confirming the filing of workers' compensation claims and related paperwork (see the Occupational Disease and Work-Related Injury and Death Reporting Policy).
- (b) Researching and assisting survivors with application for federal government survivor benefits, such as those offered through the following:
  - 1. Public Safety Officers' Benefits Program, including financial assistance available through the Public Safety Officers' Educational Assistance (PSOEA) Program, as applicable (34 USC § 10281 et seq.).
  - 2. Social Security Administration.
  - 3. Department of Veterans Affairs.
- (c) Researching and assisting survivors with application for state and local government survivor benefits.
  - 1. Death benefits available under Title 49, Utah State Retirement and Insurance Benefit Act
  - 2. Health coverage benefits (Utah Code 53-17-201)
  - 3. Death benefit assistance (Utah Code 53-17-501)
  - 4. Educational benefits (Utah Code 53B-8c-103)
- (d) Researching and assisting survivors with application for other survivor benefits such as:
  - 1. Private foundation survivor benefits programs.

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2. Survivor scholarship programs.
- (e) Researching and informing survivors of support programs sponsored by police associations and other organizations.
- (f) Documenting and informing survivors of inquiries and interest regarding public donations to the survivors.
  1. If requested, working with the finance coordinator to assist survivors with establishing a process for the receipt of public donations.
- (g) Providing survivors with a summary of the nature and amount of benefits applied for, including the name of a contact person at each benefit office. Printed copies of the summary and benefit application documentation should be provided to affected survivors.
- (h) Maintaining contact with the survivors and assisting with subsequent benefit questions and processes as needed.

#### **1033.6.8 FINANCE COORDINATOR**

The finance coordinator should work with the Chief of Police and the Department Liaison to manage financial matters related to the line-of-duty death. The finance coordinator's responsibilities include, but are not limited to:

- (a) Establishing methods for purchasing and monitoring costs related to the incident.
- (b) Providing information on finance-related issues, such as:
  1. Paying survivors' travel costs if authorized.
  2. Transportation costs for the deceased.
  3. Funeral and memorial costs.
  4. Related funding or accounting questions and issues.
- (c) Working with the Benefits Liaison to establish a process for the receipt of public donations to the deceased member's survivors.
- (d) Providing accounting and cost information as needed.

#### **1033.7 PUBLIC INFORMATION OFFICER**

In the event of a line-of-duty death, the [department/office]'s PIO should be the [department/office]'s contact point for the media. As such, the PIO should coordinate with the [Department/Office] Liaison to:

- (a) Collect and maintain the most current incident information and determine what information should be released.
- (b) Instruct [department/office] members to direct any media inquiries to the PIO.
- (c) Prepare necessary press releases.
  1. Coordinate with other entities having media roles (e.g., outside agencies involved in the investigation or incident).



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2. Disseminate important public information, such as information on how the public can show support for the [department/office] and deceased member's survivors.
- (d) Arrange for community and media briefings by the Chief of Police or the authorized designee as appropriate.
- (e) Respond, or coordinate the response, to media inquiries.
- (f) If requested, assist the member's survivors with media inquiries.
1. Brief the survivors on handling sensitive issues such as the types of questions that reasonably could jeopardize future legal proceedings.
- (g) Release information regarding memorial services and funeral arrangements to [department/office] members, other agencies, and the media as appropriate.
- (h) If desired by the survivors, arrange for the recording of memorial and funeral services via photos and/or video.

The identity of deceased members should be withheld until the member's survivors have been notified. If the media have obtained identifying information for the deceased member prior to survivor notification, the PIO should request that the media withhold the information from release until proper notification can be made to survivors. The PIO should notify media when survivor notifications have been made.

#### **1033.8 INVESTIGATION OF THE INCIDENT**

The Chief of Police should make necessary assignments to conduct thorough investigations of any line-of-duty death and may choose to use the investigation process outlined in the Officer-Involved Shootings and Deaths Policy.

Investigators from other agencies may be assigned to work on any criminal investigation related to line-of-duty deaths. Partners, close friends, or personnel who worked closely with the deceased member should not have any investigative responsibilities because such relationships may impair the objectivity required for an impartial investigation of the incident.

Involved [department/office] members should be kept informed of the progress of the investigations and provide investigators with any information that may be pertinent to the investigations.

#### **1033.9 LINE-OF-DUTY DEATH OF A LAW ENFORCEMENT ANIMAL**

The Chief of Police may authorize appropriate memorial and funeral services for law enforcement animals killed in the line of duty.

#### **1033.10 NON-LINE-OF-DUTY DEATH**

The Chief of Police may authorize certain support services for the death of a member not occurring in the line of duty.

# Employee Discipline

## **1034.1 PURPOSE AND SCOPE**

This policy is intended to provide Department personnel with guidelines regarding employee discipline as well as specifying the role of command staff in the disciplinary process and the authority of each level relative to disciplinary action. Regarding probationary employees, either the probationary employee or the Department may end the employment relationship at will at any time during the probationary period, with or without cause or advance notice or without any right to due process, explanation or appeal in connection with the termination.

## **1034.2 POLICY**

In keeping with City policy, the Department provides and enforces a system of progressive discipline for employees. Progressive discipline, however, may be bypassed at the discretion of the Chief of Police for severe violations.

## **1034.3 PRE-DISCIPLINARY ACTIONS**

Supervisors should make every effort to discuss expectations and provide performance improvement opportunities for employees before beginning the progressive disciplinary process. Such efforts may include employee counseling and training. Any informal actions of a disciplinary nature occurring before the progressive disciplinary process begins should not become part of the employee's official personnel record.

## **1034.4 PRE-DISCIPLINE EMPLOYEE RESPONSE**

The pre-discipline process is intended to provide the accused employee with an opportunity to present a written or oral response to the Chief of Police after having had an opportunity to review the supporting materials and prior to the imposition of any recommended discipline. The employee shall consider the following:

- (a) The response is not intended to be an adversarial or formal hearing.
- (b) Although the employee may be represented by an uninvolved representative or legal counsel, the response is not designed to accommodate the presentation of testimony or witnesses.
- (c) The employee may suggest that further investigation could be conducted or the employee may offer any additional information or mitigating factors for the Chief of Police to consider.
- (d) In the event that the Chief of Police elects to cause further investigation to be conducted, the employee shall be provided with the results prior to the imposition of any discipline.
- (e) The employee may thereafter have the opportunity to further respond orally or in writing to the Chief of Police on the limited issues of information raised in any subsequent materials.

This pre-disciplinary process shall not apply to probationary or part-time employees.

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#### **1034.5 PROGRESSIVE DISCIPLINE**

Discipline may be initiated for any lawful cause. As set out in City policy, progressive discipline consists of the following: 1) verbal warning, 2) written reprimand, 3) suspension, 4) demotion, 5) transfer, 6) termination. Each step shall be taken in accordance with the guidelines set out in City policy.

##### **1034.5.1 VERBAL WARNING**

A verbal warning is the first step in the progressive disciplinary process. Supervisors with a rank of Sergeant or higher may make verbal warnings at their own discretion. All verbal warnings shall be made in accordance with City policy, including proper documentation and filing.

##### **1034.5.2 WRITTEN REPRIMAND**

A written reprimand is the second step in the progressive disciplinary process. Written reprimands must be approved by a supervisor with rank of Division Commander or higher prior to issuance. All written reprimands must be made in accordance with City policy.

##### **1034.5.3 SUSPENSION, DEMOTION, TRANSFER, AND TERMINATION**

Suspension, demotion, transfer, and termination are the third through sixth steps, respectively, in the progressive disciplinary process. These steps require the consent or approval of the Chief of Police and City Administrator, and shall be made in accordance with the guidelines set out in City policy. Depending upon the severity of the violation, the Chief of Police, at his or her discretion, may bypass any of these disciplinary steps as needed.

#### **1034.6 POST DISCIPLINE ACTIONS**

A non-probationary, non-part-time employee discharged, transferred to another position with less pay or suspended without pay for more than two days may, within 10 days from the issuance by the Chief of Police of the order of discharge, transfer, or suspension, appeal to an appeal board or a hearing officer if one has been established. However, if the Department has established an internal grievance procedure, the employee must exhaust all available grievance remedies before making such appeal (Utah Code 10-3-1106).

The employee may appear in person and may have counsel and a public hearing. The findings and decision of the appeal board or hearing officer shall be final.

In the event that a discrepancy arises between Department and City policy regarding employee discipline, the Chief of Police and City Administrator will resolve the conflict.

## Advanced Officer Designation

### 1035.1 PURPOSE

It is the purpose of this policy to establish an Advanced Officer designation for police officers of the American Fork Police Department who have shown, through knowledge and achievement, that they have excelled in performing the duties of a police officer. The designation is intended to reward the officer for the expertise and professionalism they have acquired during their tenure with the American Fork Police Department, as well as provide supervisory experience to prepare the officer for possible future promotional opportunities.

### 1035.2 POLICY

Police Officers who have met the requirements as outlined in this policy may receive the designation of Advanced Officer. The successful recipient of the Advanced Officer designation will receive either an increase in their hourly wage or an increase via a line item addition to their paycheck (subject to City discretion and approval) and be awarded a patch identifying them as an Advanced Officer of the American Fork Police Department. The designation of advanced officer will not carry with it any rank as it is not achieved through a competitive or promotional process. However, Advanced Officers will be expected to accept additional duties supervising programs or activities and fulfilling the role of trainer and any other duties as assigned by the Chief of Police, Division Commander, or Sergeant.

### 1035.3 REQUIREMENTS

The following are the requirements to test for Advanced Officer:

1. Three years of continuous service as a Law Enforcement Officer in a patrol capacity, with at least two years of service with the American Fork Police Department. 50% service credit will be granted for prior military police service in a patrol capacity.
2. Average or above-average score on the last departmental performance evaluation.
3. Must have attended and graduated from CIT Academy and have received CIT certification.
4. Must demonstrate proficiency in creating law enforcement documentation such as police reports, probable cause statements, and shift logs.
5. Not on probation.

### 1035.4 TESTING PROCESS

The successful Advanced Officer applicant will complete the following battery of tests with an overall score of 80% or greater.

1. Legal Exam of State, County, and City laws and ordinances – written exam.
2. American Fork Police Department Policy Manual, Directives, and General Orders – written exam.
3. Successful processing of a crime scene, while timed, where all pertinent evidence is protected, processed, properly recovered, and packaged. The crime scene scenario

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will also require the applicant to successfully administer the activities occurring at the crime scene (i.e. scene protection, witness gathering, notifications, etc.) to demonstrate a mastery of investigative and administrative skills. Scenario may also include the applicant demonstrating his ability to properly prepare a search warrant for a magistrate's signature or electronic approval.

4. Testing of leadership and supervisory skills needed for the Advanced Officer designation.
5. Read and complete testing on three specific books as directed by the Chief of Police or designee.

#### **1035.5 FREQUENCY OF TESTING**

The Advanced Officer test will administered two times per year (January and July) unless otherwise indicated by the Chief of Police.

Advanced Officer applicants wishing to test must notify their supervisor at least 30 days in advance to the testing date. Supervisors are responsible to promptly notify the testing coordinator of all officers wishing to test.

In the event an applicant fails to achieve the 80% standard for the testing process, the applicant may be given one opportunity to re-take the Advanced Officer test within 30 days. If the officer fails to achieve the 80% standard upon retaking test, then the officer must wait until the test is administered to the next group of candidates to test again. If an officer wishes to retake the test with the next group of candidates in this manner, he or she must still meet all requirements for consideration at the time the test is retaken.

#### **1035.6 ADVANCED OFFICER PATCH/BAND**

An officer who has successfully completed the testing process and has earned the designation of Advanced Officer will be awarded a medal, ribbon, or band as determined by the Chief of Police or designee.

## Anti-Retaliation

### 1036.1 PURPOSE AND SCOPE

This policy prohibits retaliation against members who identify workplace issues, such as fraud, waste, abuse of authority, gross mismanagement, or any inappropriate conduct or practices, including violations that may pose a threat to the health, safety, or well-being of members (Utah Code 53-6-210.5).

This policy does not prohibit actions taken for nondiscriminatory or non-retaliatory reasons, such as discipline for cause (Utah Code 53-6-210.5).

These guidelines are intended to supplement and not limit members' access to other applicable remedies. Nothing in this policy shall diminish the rights or remedies of a member pursuant to any applicable federal law, provision of the U.S. Constitution, law, ordinance, or collective bargaining agreement.

### 1036.2 POLICY

The American Fork Police Department has a zero tolerance for retaliation and is committed to taking reasonable steps to protect from retaliation members who, in good faith, engage in permitted behavior or who report or participate in the reporting or investigation of workplace issues. All complaints of retaliation will be taken seriously and will be promptly and appropriately investigated.

### 1036.3 RETALIATION PROHIBITED

No member may retaliate against any person for engaging in lawful or otherwise permitted behavior; for opposing a practice believed to be unlawful, unethical, discriminatory or retaliatory; for reporting or making a complaint under this policy; or for participating in any investigation related to a complaint under this or any other policy.

Retaliation includes any adverse action or conduct, including but not limited to:

- Refusing to hire or denying a promotion.
- Extending the probationary period.
- Unjustified reassignment of duties or change of work schedule.
- Real or implied threats or other forms of intimidation to dissuade the reporting of wrongdoing or filing of a complaint, or as a consequence of having reported or participated in protected activity.
- Taking unwarranted disciplinary action.
- Spreading rumors about the person filing the complaint or about the alleged wrongdoing.
- Shunning or unreasonably avoiding a person because he/she has engaged in protected activity.

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#### **1036.4 COMPLAINTS OF RETALIATION**

Any member who feels he/she has been retaliated against in violation of this policy should promptly report the matter to any supervisor, command staff member, Chief of Police or the City Personnel Director.

Members shall act in good faith, not engage in unwarranted reporting of trivial or minor deviations or transgressions, and make reasonable efforts to verify facts before making any complaint in order to avoid baseless allegations. Members shall not report or state an intention to report information or an allegation knowing it to be false, with willful or reckless disregard for the truth or falsity of the information or otherwise act in bad faith.

Investigations are generally more effective when the identity of the reporting member is known, thereby allowing investigators to obtain additional information from the reporting member. However, complaints may be made anonymously. All reasonable efforts shall be made to protect the reporting member's identity. However, confidential information may be disclosed to the extent required by law or to the degree necessary to conduct an adequate investigation and make a determination regarding a complaint. In some situations, the investigative process may not be complete unless the source of the information and a statement by the member is part of the investigative process.

#### **1036.5 SUPERVISOR RESPONSIBILITIES**

Supervisors are expected to remain familiar with this policy and ensure that members under their command are aware of its provisions.

The responsibilities of supervisors include but are not limited to:

- (a) Ensuring complaints of retaliation are investigated as provided in the Personnel Complaints Policy.
- (b) Receiving all complaints in a fair and impartial manner.
- (c) Documenting the complaint and any steps taken to resolve the problem.
- (d) Acknowledging receipt of the complaint, notifying the Chief of Police via the chain of command and explaining to the member how the complaint will be handled.
- (e) Taking appropriate and reasonable steps to mitigate any further violations of this policy.
- (f) Monitoring the work environment to ensure that any member making a complaint is not subjected to further retaliation.
- (g) Periodic follow-up with the complainant to ensure that retaliation is not continuing.
- (h) Not interfering with or denying the right of a member to make any complaint.
- (i) Taking reasonable steps to accommodate requests for assignment or schedule changes made by a member who may be the target of retaliation if it would likely mitigate the potential for further violations of this policy.

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#### **1036.6 COMMAND STAFF RESPONSIBILITIES**

The Chief of Police should communicate to all supervisors the prohibition against retaliation.

Command staff shall treat all complaints as serious matters and shall ensure that prompt actions take place, including but not limited to:

- (a) Communicating to all members the prohibition against retaliation.
- (b) The timely review of complaint investigations.
- (c) Remediation of any inappropriate conduct or condition and instituting measures to eliminate or minimize the likelihood of recurrence.
- (d) The timely communication of the outcome to the complainant.

#### **1036.7 WHISTLE-BLOWING**

The Utah Protection of Public Employees Act protects an employee who (Utah Code 67-21-1 et seq.):

- (a) Communicates in good faith the waste or misuse of public funds, property, or manpower.
- (b) Communicates in good faith a suspected violation of a state or federal law, rule, or regulation.
- (c) Objects to or refuses to carry out a directive that the member reasonably believes violates state or federal law.

Members who believe they have been the subject of retaliation for engaging in such protected behaviors should promptly report it to a supervisor. Supervisors should promptly report the information to the Chief of Police or designee and refer the complaint for investigation pursuant to the Personnel Complaints Policy.

##### **1036.7.1 NOTICE OF EMPLOYEE PROTECTIONS AND OBLIGATIONS**

The Department shall post a notice and use appropriate means to keep employees informed of their protections and obligations under the Utah Protection of Public Employees Act. The Department shall provide the employee with a copy of the Act (Utah Code 67-21-9):

- (a) When the employee is hired.
- (b) Upon a request by the employee.
- (c) When the employee files a grievance under the Utah Protection of Public Employees Act.

#### **1036.8 RECORDS RETENTION AND RELEASE**

The documentation of investigations should be maintained in accordance with the established records retention schedules.

#### **1036.9 TRAINING**

The policy should be reviewed with each new member.

All members should receive periodic refresher training on the requirements of this policy.



## Peer Support

### 1037.1 PURPOSE AND SCOPE

This section sets out the policies guidelines, and procedures to be followed by the American Fork Police Department Peer Support Program.

### 1037.2 POLICY

It is the policy of the American Fork Police Department to place the highest priority on the general well-being of department employees. The Department intends to provide support for American Fork Police Department employees involved in highly stressful situations encountered in the course of their duties, provide emotional and tangible peer support in times of professional and personal need, and anticipate potential future needs of the Department and its employees. This will be accomplished through the use of a Peer Support Program in conjunction with the Critical Incident Stress Management (CISM) process and any EAP program that may be available.

The Peer Support Team is comprised of Department employees who have been specifically trained to assist in dealing with these types of situations. However, these employees are not counselors or therapists. The Peer Support Program is not an element of the Employee Assistance Program (EAP), nor is it a substitute for professional help.

### 1037.3 SERVICES

The Peer Support Team offers assistance and appropriate support resources to employees when personal or professional problems negatively affect their work performance, family unit, or self. The Program is designed to assist Department members dealing with stress or emotional difficulties in their lives, whether that stress originates from work-related incidents or from personal circumstances. Peer Support Team members are trained to be effective listeners and provide feedback to employees, clarify issues, and assist employees in identifying options and resources for problem resolution. The highest priorities for the team are to maintain confidentiality, advocate for the affected individual and their families, and to respect the feelings of the individuals involved.

The Peer Support Team is available 24 hours per day, 7 days per week to all Police Department employees. A list of Peer Support Team Members will be made available to all Department members. Any Department employee who desires to speak to a Team Member may communicate directly with a Team Member, without the knowledge or approval of a supervisor. Contact can be made via direct communication with any of the Peer Support Team Members, through their City issued cell phone or email address.

Department members may seek out assistance from the Peer Support Program for for any reason. Examples include, but are not limited to:

- Officer involved shooting or similar critical incident
- Response to a traumatic event
- Injury at work

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- Family loss
- Approaching retirement

#### **1037.4 PEER SUPPORT TEAM OPERATIONS**

##### **1037.4.1 PEER SUPPORT TEAM STRUCTURE AND RESPONSIBILITIES**

The Peer Support Team will be overseen by a Program Coordinator, who will be selected by the Chief of Police or Designee. The Program Coordinator will oversee the efforts of the Peer Support Team Members, who will also be selected by the Chief of Police or Designee from the Department personnel at large. The Program Coordinator will report directly to the Chief of Police or Designee regarding the activities of the Peer Support Team.

Program Coordinator duties may include:

- Ensuring that Peer Support Team Members receive proper training and instruction, including ongoing training or certifications as needed;
- Coordinating a Team response to critical incidents;
- Providing guidance at debriefings as needed;
- Assist in selection of Peer Support Team Members as requested by the Chief of Police;
- Coordinating outreach efforts to members of the Department;
- Coordinating the availability of Team Members so that the Team is available 7 days per week, 24 hours per day to Department members.

Peer Support Team Members will make themselves available to:

- Be contacted regarding peer support and, if necessary, respond at any hour to assist an employee in need;
- Listen to another Department member's feelings after a critical incident or crisis situation, and continue to be available for additional follow-up support as needed;
- Convey trust and anonymity and assure confidentiality within the policy to employees who seek assistance from the Peer Support Program;
- Assist with Critical Incident Stress Management (CISM) debriefings;
- Provide information on other resources that may be available (which may include employee assistance program or any other professional support system);
- Provide Peer Support orientation to new Department members;
- Attend assigned Peer Support Team trainings and meetings;
- Maintain contact with the Program Coordinator regarding program activities.

##### **1037.4.2 TRAINING**

All Peer Team Support Team Members, including the Program Coordinator, are required to complete a peer support training program approved by the Peace Officer Standards and Training

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Division and the Department prior to providing peer support services as required by Utah Code 78B-5-903.

The Program Coordinator will help facilitate continual training in assistance techniques, stress management, etc. Training classes for Team Members will be provided annually, or Team Members will be notified of applicable training opportunities they can utilize. Each Team Member is required to attend at least one Peer Support related training class annually. Special circumstances that prohibit attendance will be addressed with the program coordinator.

#### 1037.4.3 CONFIDENTIALITY

Communications made during individual interactions conducted by a Peer Support Team Member who is acting in the Member's capacity as a Peer Support Team Member are considered by the Department to be confidential, with the following exceptions:

- The information received by a Peer Support Team Member is indicative of actual or suspected child abuse, or actual or suspected child neglect;
- The person receiving peer support is a danger to the person's self or others;
- The communication to a peer support team member establishes reasonable cause for the peer support team member to believe that the person receiving peer support services is mentally or emotionally unfit for duty;
- The communication to the peer support team member provides evidence that the person who is receiving the peer support services has committed a crime, plans to commit a crime, or intends to conceal a crime.

Peer Support Team members should be aware that they may not refuse to disclose what would normally be confidential information if the Team Member was a witness or a party to the incident that prompted the delivery of the peer support services.

Peer Support Team members will make no written record of the details of support sessions. Employees who seek assistance from the Peer Support Program should be made aware that Peer Support Team members will maintain confidentiality by not disclosing any information received in Peer Support sessions, except as outlined in this section. Compromising a confidence will be considered a violation of this policy. Members of the Peer Support Team who violate the confidentiality of an employee contact may be subject to disciplinary action and removal from the team. Accusations of a breach of confidentiality by a Peer Support Team member will be communicated as soon as practical to the Chief of Police or Designee.

In cases where an employee discloses any information to a Peer Support Team Member qualifying for exemption from confidentiality as outlined above (child abuse or neglect, danger to self or others, mentally or emotionally unfit for duty, or the commission or concealment of a crime), the Peer Support Team Member will contact the local law enforcement agency, and/or will take appropriate law enforcement action. IMMEDIATE notification will be made to the Chief of Police or designee by the involved Peer Support Team Member upon such an incident.

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#### 1037.4.4 PEER SUPPORT DURING AN INVESTIGATION

Peer Support Team Members assisting a Department employee who is the subject of any investigation should adhere to the following:

- Peer Support services will be provided to an involved employee from a viewpoint that they are the victim;
- Peer Support Team Members will not interfere with ongoing investigations, nor will they take an active role in the investigation;
- Peer Support Team Members can assist the involved employee in navigating the investigative process;
- Peer Support Team Members will work in conjunction with investigators to make sure that every effort is put forth to not add undue stress to the involved employee;
- Peer Support assistance and follow-up is provided at the involved employee's discretion and can be waived or terminated at any time the involved employee wishes.

#### 1037.4.5 PEER SUPPORT TEAM MEMBER PARTICIPATION

Peer Support Team membership is a voluntary collateral assignment and may be withdrawn by the Chief of Police or designee at any time.

Team Members who fail to fulfill any of the outlined responsibilities may be withdrawn from the program.

A Team Member may withdraw from the program at any time by giving written notification to the Program Coordinator.

#### **1037.5 PEER SUPPORT TEAM NOTIFICATION REQUIREMENTS**

The Peer Support Team Coordinator shall be contacted and notified as soon as possible when the on-duty supervisor becomes aware of any of the situations listed below. In the event that the Peer Support Coordinator is unavailable, any member of the Peer Support Team can be contacted to provide support. As soon as feasible, the team member will contact the Coordinator to advise of the situation.

- Officer-Involved Shooting
- Serious injury or death of a coworker whether during an incident, in route to or leaving a scene, or during a training exercise
- Mass casualty incidents
- Fatal Traffic Accident (non-employee involved)
- SIDS Death
- Violent death or serious injury to a child
- Serious injury/death of an employee's family member
- Any incident classified as traumatic and/or in which an employee requests support

## Wellness Program

### 1039.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance on establishing and maintaining a proactive wellness program for Department members.

The wellness program is intended to be a holistic approach to a member's well-being and encompasses aspects such as physical fitness, mental health, and overall wellness. It is intended to establish procedures that provide support for officers experience substance use disorders, mental health issues, or trauma from their duties, and also establish procedures for suicide prevention.

Additional information on member wellness is provided in the:

- Chaplains Policy.
- Line-of-Duty Deaths Policy.
- Drug- and Alcohol-Free Workplace Policy.

#### 1039.1.1 DEFINITIONS

Definitions related to this policy include:

**Critical incident** – An event or situation that may cause a strong emotional, cognitive, or physical reaction that has the potential to interfere with daily life.

**Critical Incident Stress Debriefing (CISD)** – A standardized approach using a discussion format to provide education, support, and emotional release opportunities for members involved in work-related critical incidents.

**Peer support** – Mental and emotional wellness support provided by peers trained to help members cope with critical incidents and certain personal or professional problems.

**Peer support member** – A member of the American Fork Police Department who has been trained in peer support skills and has been appointed to the [department/office] peer support team (Utah Code 78B-5-902).

**Peer support specialist** – An individual in sustained recovery from substance use or mental health disorders who has obtained the proper training certificate and passed the required exam through the Utah Department of Health and Human Services (Utah Code 26B-5-102; UAC R523-5-8).

### 1039.2 POLICY

It is the policy of the American Fork Police Department to prioritize member wellness to foster fitness for duty and support a healthy quality of life for [department/office] members. The [Department/Office] will maintain a wellness program that supports its members with proactive wellness resources, critical incident response, and follow-up support.

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### *Wellness Program*

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#### **1039.3 WELLNESS COORDINATOR**

The Chief of Police should appoint a trained wellness coordinator. The coordinator should report directly to the Chief of Police or the authorized designee and should collaborate with advisers (e.g., Personnel Department, legal counsel, licensed psychotherapist, qualified health professionals), as appropriate, to fulfill the responsibilities of the position, including but not limited to:

- (a) Identifying wellness support providers (e.g., licensed psychotherapists, external peer support providers, physical therapists, dietitians, physical fitness trainers holding accredited certifications).
  - 1. As appropriate, selected providers should be trained and experienced in providing mental wellness support and counseling to public safety personnel.
  - 2. When practicable, the [Department/Office] should not use the same licensed psychotherapist for both member wellness support and fitness for duty evaluations.
- (b) Developing management and operational procedures for [department/office] peer support members, such as (Utah Code 78B-5-903):
  - 1. Peer support member selection and retention.
  - 2. Training and applicable certification requirements.
  - 3. Deployment.
  - 4. Managing potential conflicts between peer support members and those seeking service.
  - 5. Monitoring and mitigating peer support member emotional fatigue (i.e., compassion fatigue) associated with providing peer support.
  - 6. Using qualified peer support personnel from other public safety agencies or outside organizations for [department/office] peer support, as appropriate.
- (c) Verifying members have reasonable access to peer support or licensed psychotherapist support.
- (d) Establishing procedures for CISDs, including:
  - 1. Defining the types of incidents that may initiate debriefings.
  - 2. Steps for organizing debriefings.
- (e) Facilitating the delivery of wellness information, training, and support through various methods appropriate for the situation (e.g., phone hotlines, electronic applications).
  - 1. Information on mental health resources shall be provided to members annually, including how to access mental health resources and directions on how to appeal a denial of mental health resources as required by Utah Code 53-21-102.
- (f) Verifying a confidential, appropriate, and timely Employee Assistance Program (EAP) is available for members. This also includes:
  - 1. Obtaining a written description of the program services.
  - 2. Providing for the methods to obtain program services.

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3. Providing referrals to the EAP for appropriate diagnosis, treatment, and follow-up resources.
  4. Obtaining written procedures and guidelines for referrals to, or mandatory participation in, the program.
  5. Obtaining training for supervisors in their role and responsibilities, and identification of member behaviors that would indicate the existence of member concerns, problems, or issues that could impact member job performance.
- (g) Assisting members who have become disabled with application for federal government benefits such as those offered through the Public Safety Officers' Benefits Program (34 USC § 10281 et seq.).
1. The coordinator should work with appropriate [Department/Office] liaisons to assist qualified members and survivors with benefits, wellness support, and counseling services, as applicable, when there has been a member death (see the Line-of-Duty Deaths Policy for additional guidance).
- (h) Serving as the designated mental health resources liaison and providing the Department of Public Safety with their current contact information (Utah Code 53-21-102).

The wellness coordinator shall serve as the designated mental health resources liaison, and the Department shall report the identity of the mental health resources liaison to the Department of Public Safety, and update the Department of Public Safety any time the designated mental health resources liaison changes.

#### **1039.4 [DEPARTMENT/OFFICE] PEER SUPPORT**

The Department maintains a Peer Support Program as one element of its Wellness Program. See the Peer Support policy for more detail.

#### **1039.5 CRITICAL INCIDENT STRESS DEBRIEFINGS**

A Critical Incident Stress Debriefing should occur as soon as practicable following a critical incident. The coordinator is responsible for organizing the debriefing. Notes and recorded statements shall not be taken because the sole purpose of the debriefing is to help mitigate the stress-related effects of a critical incident.

The debriefing is not part of any investigative process. Care should be taken not to release or repeat any communication made during a debriefing unless otherwise authorized by policy, law, or a valid court order.

Attendance at the debriefing should only include peer support members and those directly involved in the incident.

#### **1039.6 PHYSICAL WELLNESS PROGRAM**

The coordinator is responsible for establishing guidelines for any on-duty physical wellness program, including the following:

- (a) Voluntary participation by members

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### *Wellness Program*

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- (b) Allowable physical fitness activities
- (c) Permitted times and locations for physical fitness activities
- (d) Acceptable use of [department/office]-provided physical fitness facilities and equipment.
- (e) Individual health screening and fitness assessment
- (f) Individual education (e.g., nutrition, sleep habits, proper exercise, injury prevention) and goal-setting
- (g) Standards for fitness incentive programs. The coordinator should collaborate with the appropriate entities (e.g., human resources, legal counsel) to verify that any standards are nondiscriminatory.
- (h) Maintenance of physical wellness logs (e.g., attendance, goals, standards, progress)
- (i) Ongoing support and evaluation

#### **1039.7 MENTAL HEALTH SUPPORT**

The [Department/Office] shall provide or make available mental health resources, as defined by Utah Code 53-21-101, to qualified members, their spouses and children (including certain surviving spouses), and certain retired and separated members and their spouses, as required by law (Utah Code 53-21-102).

On at least an annual basis, the Department shall provide information to all employed first responders regarding:

- i. the availability of mental health resources (including for non-first responder individuals and subsequent to a separation or retirement)
- ii. how to access the mental health resources provided by the agency; and
- iii. directions on how to appeal a denial of mental health resources.

Any access of mental health resources provided by the [Department/Office] shall be kept confidential.

##### **1039.7.1 SUPPORT PERIOD FOR FORMER MEMBERS AND SPOUSES**

For retirees or separated members and their spouses, mental health resources will be made available for at least three years from the time that the services are requested (Utah Code 53-21-102).

#### **1039.8 WELLNESS PROGRAM AUDIT**

At least annually, the coordinator or the authorized designee should audit the effectiveness of the [department/office]'s wellness program and prepare a report summarizing the findings. The report shall not contain the names of members participating in the wellness program, and should include the following information:

- Data on the types of support services provided
- Wait times for support services



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### *Wellness Program*

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- Participant feedback, if available
- Program improvement recommendations
- Policy revision recommendations

The coordinator should present the completed audit to the Chief of Police for review and consideration of updates to improve program effectiveness.

#### **1039.9 TRAINING**

The coordinator or the authorized designee should collaborate with the Training Officer to provide all members with regular education and training on topics related to member wellness, including but not limited to:

- The availability and range of [department/office] wellness support systems.
- Suicide prevention.
- Recognizing and managing mental distress, emotional fatigue, post-traumatic stress, and other possible reactions to trauma.
- Alcohol and substance disorder awareness.
- Countering sleep deprivation and physical fatigue.
- Anger management.
- Marriage and family wellness.
- Benefits of exercise and proper nutrition.
- Effective time and personal financial management skills.

Training materials, curriculum, and attendance records should be forwarded to the Training Officer as appropriate for inclusion in training records.

## Leave Benefits

### 1040.1 PURPOSE AND SCOPE

This policy provides general guidance regarding Department member leave benefits.

Guidance on the use and processing of sick leave is detailed in the Sick Leave Policy and in the City personnel manual.

### 1040.2 POLICY

It is the policy of the American Fork Police Department to provide eligible employees with the leave benefits described in the City personnel manual.

### 1040.3 LEAVE BENEFITS

Leave benefits may include but are not limited to:

- Administrative leaves for jury duty, bereavement, sabbatical, military duty, training, and other temporary leaves.
- Holiday leave.
- Sick leave (see the Sick Leave Policy).
- Vacation leave.
- Compensatory leave.
- Maternity leave.

#### 1040.3.1 LEAVE BENEFITS INFORMATION

All members shall be provided with accurate information regarding leave benefits.

#### 1040.3.2 LEAVE PROCESS

Department members wishing to take administrative leave, vacation leave, compensatory leave, or maternity leave shall request the leave from their supervisor as far in advance as possible, but no less than two weeks in advance.

# American Fork PD Policy Manual

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## Attachments

## **Award Recommendation Form.pdf**

# RECOMMENDATION FOR AWARD

TO:

FROM:

DATE:

RECOMMENDED AWARD:

## CANDIDATE DATA

NAME (*Last, First, Middle Initial*):

ORGANIZATION:

## RECOMMENDER DATA

NAME (*Last, First, Middle Initial*):

TITLE/POSITION:

RANK:

RECOMMENDER SIGNATURE:

INTERMEDIATE APPROVAL:

## JUSTIFICATION AND CITATION DATA

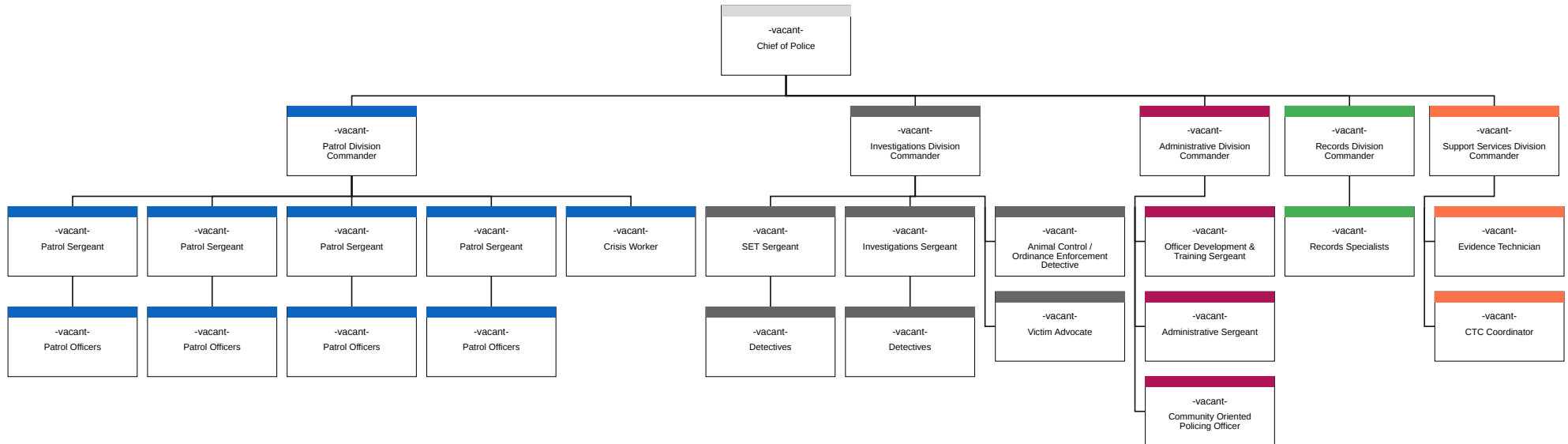
*(Use bullet point elements/criteria)*

## **American Fork Police Department FY22.pdf**



# AMERICAN FORK POLICE DEPARTMENT – ORGANIZATIONAL CHART

Last Revised 05.09.2022

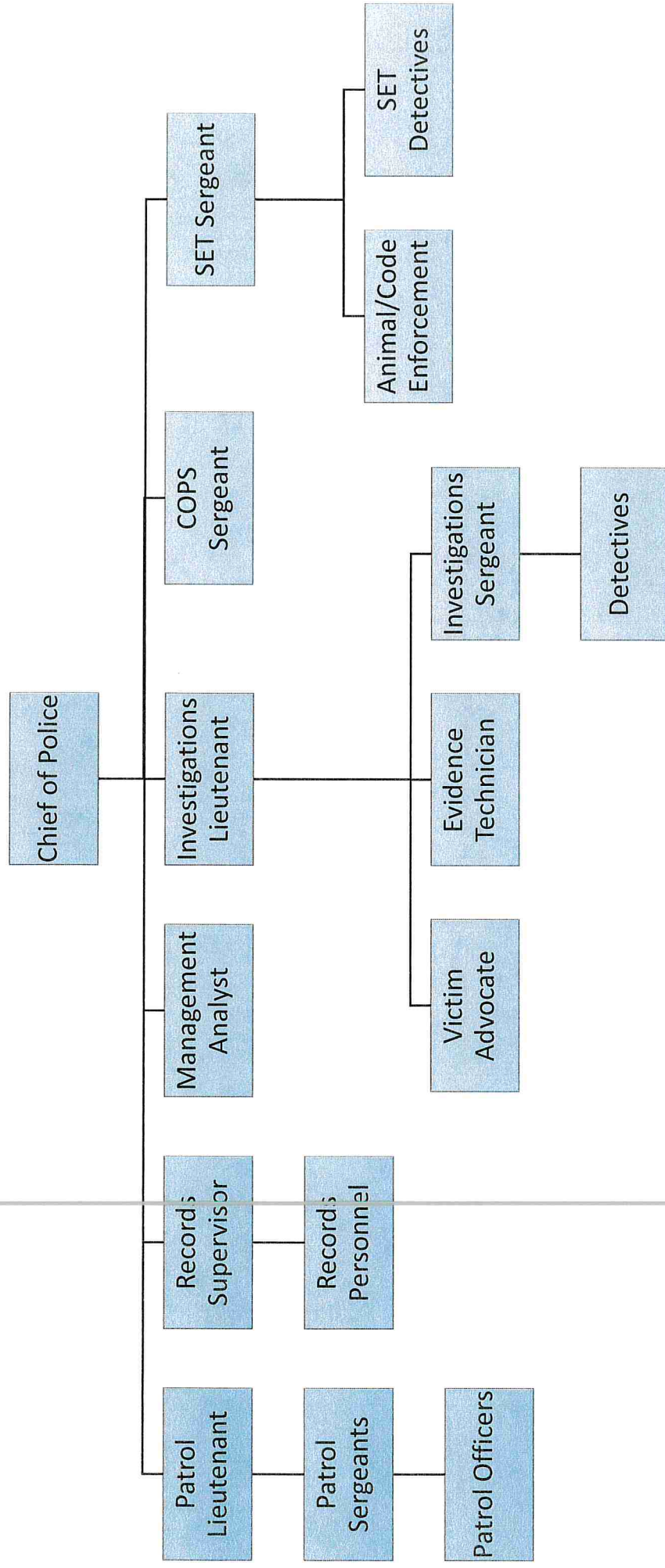


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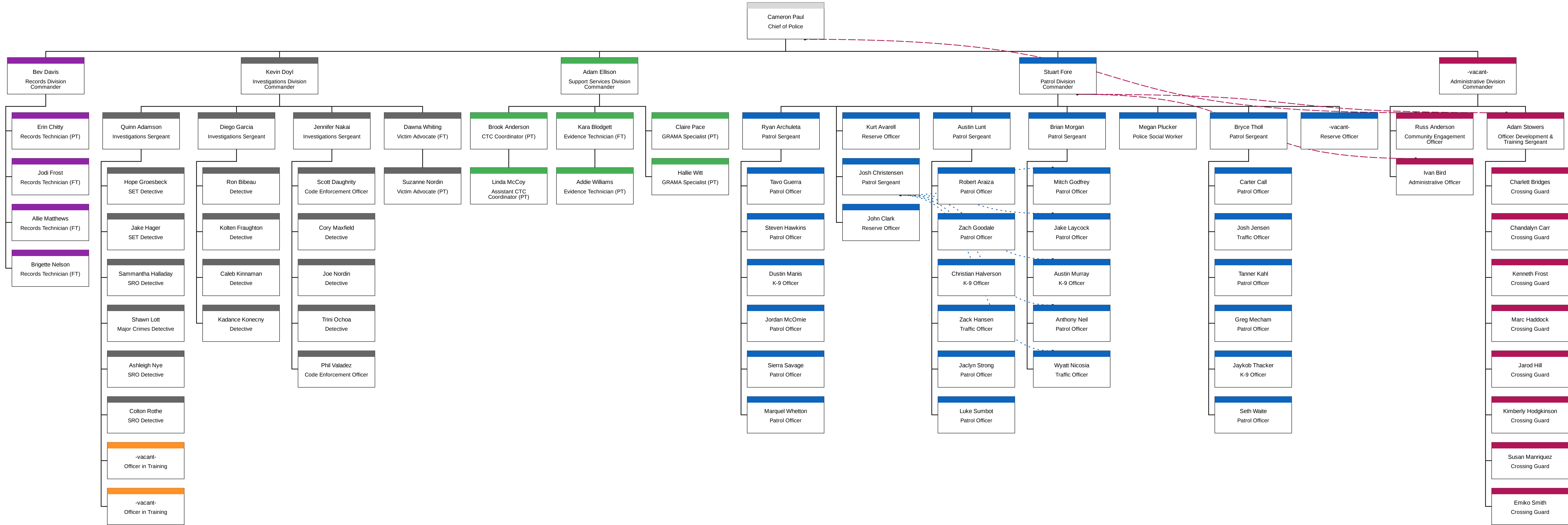


# American Fork Police Department

## Organizational Chart



**American Fork Police Department  
- FY24 Organizational Chart.pdf**



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